THE ADMIRALTY JURISDICTION OF HIGH COURTS ORDINANCE, 1980

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THE ADMIRALTY JURISDICTION OF HIGH COURTS ORDINANCE, 1980

ORDINANCE No. XLII OF 1980

[2nd *September*, 1980]

An Ordinance to consolidate and amend the law relating to Courts of Admiralty

WHEREAS it is expedient to consolidate and amend the law relating to Courts of Admiralty;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 (*CMLA. Order No. 1 of 1977*), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the Admiralty Jurisdiction of High Courts Ordinance, 1980.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "aircraft" means any machine which can derive support in the atmosphere from reactions of the air, and includes balloons, whether captive or free, airships, kites, gliders and flying machines;

(b) "charges" does not include light dues, local light dues or any other charges in respect of lighthouses, buoys, beacons or pilot age;

(c) "cause" includes any cause, suit, action or other proceeding in the High Court in the exercise of its Admiralty jurisdiction;

(d) "goods" includes baggage;

(e) "internal waters" includes any part of the sea adjacent to the coast of Pakistan as may be notified by the Federal Government;

(f) "master" includes every person, except a pilot or harbour master, having command or charge of a ship;

(g) "Merchant Shipping Acts" means the Merchant Shipping Act, 1894 ––1932;

(h) "party" includes every person served with notice of, or intervening in, or attending, any proceedings, whether named as party to that proceeding or not;

(i) "port" means any port, harbour, river, estuary, haven, dock, canal or other place, so long as a person or body of persons is empowered by or under the law to make charges in respect of ships entering it or using the facilities therein; and "limits of a port" means the limits thereof as fixed by or under the law;

(j) "proceedings" includes both actions and matters;

(k) "ship" includes any description of vessel used in navigation; and

(l) "territorial waters" means waters beyond the land territory and internal waters of Pakistan measured from the base line up to such limit as may be declared from time to time by the Federal Government.

3. Admiralty jurisdiction of the High Court.— (1) The Sind High Court and the High Court of Baluchistan shall have and exercise, within their respective territorial jurisdiction, Admiralty, jurisdiction as is in this Ordinance provided and the Lahore High Court and the Peshawar High Court shall, within their respective territorial jurisdiction, have and exercise the said jurisdiction in cases in which any question or claim relating to aircraft is to be determined.

(2) The Admiralty jurisdiction of the High Court shall be as follows, that is to say, jurisdiction to hear and determine any of the following causes, questions or claims—

(a) any claim to the possession or ownership of a ship or to the ownership of any share therein or for recovery of documents of title and ownership of a ship, including registration certificate, log book and such certificates as may be necessary for the operation or navigation of the ship;

(b) any question arising between the co-owners of a ship as to possession, employment or earnings of that ship;

(c) any claim in respect of a mortgage of or charge on a ship or any share therein;

(d) any claim for damage done by a ship;

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(e) any claim for damage received by a ship;

(f) any claim for loss of life or personal injury sustained in consequence of any defect in a ship or in her apparel or equipment, or of the wrongful act, neglect or default of the owners, charters or persons in possession or control of a ship or of the master or crew thereof or of any other person for whose wrongful acts, neglects or defaults, the owners, charterers or persons in possession or control of a ship are responsible, being an act, neglect or default in the navigation or management of the ship, in the loading, carriage or discharge of goods on, in or from the ship or in the embarkation, carriage or disembarkation of persons on, in or from the ship;

(g) any claim for loss of or damage to goods carried in a ship;

(h) any claim arising out of any agreement relating to the carriage of goods in a ship or to the use or hire of a ship;

(i) any action or claim in the nature of salvage of life from a ship or cargo or any property on board a ship or the ship itself or its apparel, whether services rendered on the high sea or within territorial waters or internal waters or in a port, including any claim arising by virtue of the application by or under section 12 of the Civil Aviation Ordinance, 1960, (XXXII of 1960), of the law relating to salvage to aircraft and their apparel and cargo;

(j) any claim in the nature of towage in respect of a ship or an aircraft, whether services were rendered on the high sea or within territorial waters or internal waters or in a port;

(k) any claim in the nature of pilot age in respect of a ship or an aircraft;

(1) any claim in respect of necessaries supplied to a ship;

(m) any claim in respect of the construction, repair or equipment of a ship or dock charges or dues;

(n) any claim by a master or members of the crew of a ship for wages and any claim by or in respect of a master or member of the crew of a ship for any money or property which, under any of the provisions of the Merchant Shipping Acts or the Merchant Shipping Act, 1973 (XXI of 1923), is recoverable as wages or in the Court and in the manner in which wages may be recovered;

(o) any claim by a master, shipper, charterer or agent in respect of disbursements made on account of a ship;

(p) any claim arising out of an act which is or is claimed to be a general average act;

(q) any claim arising out of bottomry or respondentia;

(r) any claim for the forfeiture or condemnation of a ship or of goods which are being or have been carried, or have been attempted to be carried, in a ship as a Naval Prize or in violation of customary law of the sea or otherwise, or for the restoration of a ship or any such goods after seizure, or for droits of Admiralty, together with any other jurisdiction for the grant of such reliefs as are provided under the Merchant Shipping Acts or the Merchant Shipping Act, 1923 (XXI of 1923), any other jurisdiction which was vested in the High Court as a Court of Admiralty immediately before the commencement of this Ordinance or is conferred by or under any other law and any other jurisdiction connected with ships or aircraft in respect of things done at sea which has by tradition of custom of the sea been exercised by a Court of Admiralty apart from this section.

(3) The jurisdiction of the High Court under clause (b) of subsection (2) includes power to settle any account outstanding and unsettled between the parties in relation to the ship, and to direct that the ship, or any share thereof, shall be sold, and to make such other order as the Court thinks fit.

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(4) The reference in clause (i) of subsection (2) to claims in the nature of salvage includes a reference to such claims for services rendered in saving life from a ship or an aircraft or in preserving cargo, apparel of wreck as**,** under any law for the time being in force, are autborised to be made in connection with a ship or an aircraft.

(5) The preceding provisions of this section apply—

(a) in relation to all ships or aircraft, whether Pakistani or not and whether registered or not and wherever the residence or domicile of their owners may be;

(b) in relation to all claims, wheresoever arising including in the case of cargo or wreck salvage, claims in respect of cargo or wreck found on land; and

(e) so far as they relate to mortgages and charges, to all mortgages or charges, whether registered or not and whether legal or equitable, including mortgages and charges created under foreign law:

Provided that nothing in this sub-section shall be construed as extending to cases in which money or property is recoverable under any of the provisions of the Merchant Shipping Acts or the Merchant Shipping Act**,** 1923 (XXI of 1923).

4. Mode of exercise of Admiralty jurisdiction.—(1) Subject to the provisions of section 5, the Admiralty jurisdiction of the High Court may in all cases be invoked by an action in personam.

(2) The Admiralty jurisdiction of the High Court may in the cases mentioned in clauses (a) to (d), (i) and (r) of sub-section (2) of section 3 be invoked by an action in rem against the ship or property in question.

(3) In any case in which there is a maritime lien or other charge on arty, ship, aircraft or other property of the amount claimed, the Admiralty jurisdiction of the High Court may be invoked by an action in rem against that ship, aircraft or property.

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(4) In the case of any such claim as is mentioned in clauses (e) to (h) and (j) to (q) of sub-section (2) of section 3, being a claim arising in connection with a ship, where the person who would be liable on the claim in an action in personam was, when the cause of action arose, the owner or charterer of, or in possession or in control of the ship, the Admiralty jurisdiction of the High Court may, whether the claim gives rise to a maritime lien on the ship or not, be invoked by an action in rem against—

(a) that ship, if at the time when the action is brought it is beneficially owned as respects majority shares therein by that person ; or

(b) any other ship which, at the time when the action is brought, is beneficially owned as aforesaid.

(5) In the case of a claim in the nature of towage or pilotage in respect of an aircraft, the Admiralty jurisdiction of the High Court may be invoked by an action in rem against that aircraft if at the time when the action is brought it is beneficially owned by the person who would be liable on the claim in an action in personam.

(6) In the case of a claim in the nature of a maritime lien, other than at claim on a bottomry or respondentia bond or to the possession of the ship, the Admiralty jurisdiction of the High Court maybe invoked by an action in personam against the owners of the property which would have been arrested if the proceedings had been in rem.

(7) Notwithstanding anything in the preceding provision of this section, the Admiralty jurisdiction of the High Court shall not be invoked by an action in rem in the case of any such claim as is mentioned in paragraph (n) of subsection (2) of section 3 unless the claim relates wholly or partly to wages, including any sum allotted out of wages or adjudged by a competent authority under the relevant law to be due by way of wages.

(8) Where, in the exercise of its Admiralty jurisdiction, the High Court orders any ship, aircraft or other property to be sold, the Court shall have jurisdiction to hear and determine any question arising as to the title to, or priorities of claims in, the proceeds of sale.

(9) In determining for the purposes of sub-section (4) and (5) whether a person would be liable on a claim in an action in personam it shall be assumed that he has his ordinary residence or a place of business within Pakistan.

5. Jurisdiction in personam of Courts in collision and other similar cases.— (1) No Court shall entertain an action in personam to enforce a claim to which this section applies unless—

(a) the defendant has his ordinary residence or a place of business within Pakistan; or

(b) the cause of action arose within the internal or territorial waters of Pakistan ; or

(c) an action arising out of the same incident or series of incidents is proceeding in the court or has been heard and determined in the court.

(2) No court shall entertain an action in personam to enforce a claim to which this section applies until any proceedings previously brought by the plaintiff in any court outside Pakistan against the same defendant in respect of the same incident or series of incidents have been discontinued or otherwise come to an end.

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(3) The preceding provisions of this section shall apply to counter-claims, not being counter-claims in proceedings arising out of the same incident or series of incidents, as they apply to actions in personam, but as if the references to the plaintiff and the defendant were respectively references to the plaintiff on the counter-claim and the defendant to the counter-claim.

(4) The preceding provisions of, this sections shall not apply to any action or counter-claim if the defendant thereto submits or has agreed to submit to the jurisdiction of the Court.

(5) Subject to the provisions of sub-section (2), the High Court shall have jurisdiction to entertain an action in personam to enforce a claim to which this section applies whenever any of the conditions specified in clauses (a) to (c) of sub-section (1) are satisfied.

(6) The claims to which this section applies are claims for damage, loss of life or personal injury caused by ships or arising out of collision between ships or out of the carrying out of or omission to carry out a manoeuvre in the case of one or more of two or more ships or out of non-compliance, on

the part of one or more of two or more ships, with the regulations made under section 214 of the Merchant Shipping Act, 1923 (XXI of 1923).

6. Limitation of maritime lien. No action shall be brought before the High Court to enforce a maritime lien for the damage sustained in consequence of collision wheresoever occurring or any other maritime lien unless proceedings therein are commenced within two years from the date of the damage occurring or the maritime lien arising, subject to the discretion of the High Court to extend this period.

7. Appeals.— (1) An appeal shall lie to a Bench of two or more Judges of a High Court from a judgment passed or an order made by a single Judge of that Court in the exercise of its Admiralty jurisdiction.

(2) An appeal shall be preferred within thirty days from the date of judgment or order appealed against.

(3) An appeal to the Supreme Court from a judgment or final order of a High Court in the exercise of its Admiralty jurisdiction shall lie only if the value of the subject-matter of the dispute in appeal is not less than one lac rupees and the Supreme Court grants leave to appeal.

8. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

9. Repeal and saving.—(1) The Courts of Admiralty (Pakistan) Act, 1891 (XVI of 1891), the Admiralty Court Act, 1840 (3 & 4 Vict. C, 65), and the Admiralty Court Act, 1861 (24 Vict. C. 10), in so far as they apply to, and operate in, Pakistan, are hereby repealed.

(2) Nothing in this Ordinance shall be deemed to authorise proceedings in rem in respect of any claim against the Federation or the arrest, detention or sale of any ship or aircraft of the Pakistan Navy or the Pakistan Air Force or of any cargo or other property belonging to the Federation.

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THE ALLAMA IQBAL OPEN UNIVERSITY ACT, 1974.

[1]ACT NO. XXXIX OF 1974

[21st May, 1974]

An Act to provide for the establishment of an Allama lqbal Open University at Islamabad.

WHEREAS it is expedient to provide for the establishment of an Allama lqbal Open University at Islamabad and for matters ancillary thereto;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the [2][Allama lqbal Open University Act, 1974.]

(2) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means the Academic Council of the University;

(b) "Audience level regional centre" means an audience level regional centre maintained and administered by the University;

(c) "Authority" means an Authority of the University specified in section 17;

(d) "Chancellor" means the Chancellor of the University;

(e) "Committee of Courses" means the Committee of Courses in a Faculty;

(f) "Dean" means the Dean of a Faculty;

(g) "Department" means a department maintained and administered or' recognised by the University;

(h) "Executive Council" means the Executive Council of the University;

(i) "Faculty" means a Faculty of the University;

(j) "Government" means the Federal Government;

[3][(jj) "Institute" means an institute maintained and administered by the University]

(k) "Prescribed" means prescribed by Statutes, Regulations or Rules;

(1) "Pro-Chancellor" means the Pro-Chancellor of the University;

[1] For Statement of Objects and Reasons, *see* Gaz. of P., 1974, Ext., Pt. Ill, p. 427.
[2] Subs. by the People's Open University (Amdt.) Ordinance, 1977 (43A of 1977), s. 2, for "People's Open University Act, 1974".
[3] Ins. by the Allama lqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981),S.2.

(m) "Registered Graduate" means a graduate of the University who has his name entered in the register maintained in the University for the purpose;

(n) "Statutes", "Regulations" and "Rules" means the Statutes, Regulations and Rules made under this Act;

(o) "Teachers" includes Professors, Associate Professors, Senior Instructors, Assistant Professors, Instructors and Lecturers engaged whole-time by the University or such other persons as may be recognised as Teachers by the Academic Council;

[1][(p) "University" means the Allama lqbal Open University as renamed under this Act;]

(q) "University Teacher" means a whole-time Teacher appointed and paid by the University, or recognized by the Academic Council as such; and

(r) "Vice-Chancellor" means the Vice-Chancellor of the University.

CHAPTER II
THE UNIVERSITY

3. Establishment and incorporation of the University.—(1) There shall be established a University to be called the People's Open University as a specialised educational institution with its principal seat at Islamabad for purposes of teaching, holding of examinations and tests, establishment of audience level regional centers for guidance and examinations at the post-matric, graduate, post-graduate and research levels in accordance with the provisions of this Act.

[2][(1A) The People's Open University established in accordance with the provisions of this Act shall, on and the commencement of the People's Open University (Amendment) Ordinance, 1977, be renamed as the Allama Iqbal Open University.]

(2) The University shall consist of—

(i) the Chancellor, the Pro-Chancellor, the Vice-Chancellor, the Deans, the Chairman of Teaching Departments, the [3][Directors of the Institutes, the Director of the Regional Tutorial Services], the Registrar, the Treasurer, the Auditor, the Controller of Examinations, the Librarian, and such other officers as may be prescribed;

[

(ii) members of the Executive Council, the Academic Council and other Authorities;

(iii) all University Teachers; and

(iv) Professors Emeritus.

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[1]Subs. by the People's Open University (Amdt.) Ordinance, 1977 (43A of 1977), s. 3 for cl. (p).
[2]Sub-section (1A) ins. by the People's Open University (Amdt.) Ordinance,1977 (43A of 1977) s. 4.
[3]Subs. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 3.

(3) The University shall be a body corporate by the name of the [1][Allama Iqbal Open University] and shall have perpetual succession and a common seal, and shall by the said name sue and be sued.

(4) The University shall be competent to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

4. Powers and functions of the University. The University shall have the powers—

(a) to provide educational facilities to people who cannot leave their homes and jobs in such manner as it may determine;

(b) to provide such facilities to masses for their educational uplift as it may determine;

(c) to provide facilities for the training of teachers in such manner as it may determine;

(d) to provide for instruction in such branches of learning technology or vocations as it may deem fit, and to make provision for research and for the advancement and dissemination of knowledge in such manner as it may determine;

(e) to prescribe courses of studies to be conducted by it;

(f) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under the prescribed conditions;

(g) to confer in the manner prescribed honorary degrees or other distinctions on persons approved for the purpose;

(h) to provide for such instruction for persons not being students of the University as it may determine, and to grant certificates and diplomas to such persons;

(i) to confer degrees on persons who have carried on independent research under prescribed conditions;

(j) to accept the examinations passed by students of the University at other universities and places of learning as equivalent to such examinations of the University as it may determine;

(k) to co-operate with other universities and other authorities in such manner and for such purposes as it may determine;

[1] Subs. by Ord. 43A of 1977 s. 2, for "People's Open University".

(l) to institute Professorships, Senior Instructorships, Associate Professorships, Instructorships, Assistant Professorships, Lecturerships , Counsellorships and any other posts and to appoint persons thereto:

(m) to create posts for teaching, research, extension services, administration and other related purposes and to appoint persons thereto;

(n) to recognize as University Teachers such persons as it may deem fit;

(o) to institute and award fellowships, scholarships, exhibitions, bursaries, medals and prices under prescribed conditions;

(p) to establish teaching departments, [1][institutes] faculties, laboratories, workshops, audience level regional centres and other centres of learning for the development of teaching and research and educational technology and to make such arrangements for their maintenance, management and administration as it may determine;

(q) to supervise and control the discipline of the students of the University and to promote the extra-curricular and recreational activities of such students, and to make arrangements for promoting their conduct, health and general welfare;

(r) to demand and receive such fees and other charges as it may determine;

(s) to make provision for research and development of educational technology and advisory services and with these objects to enter into arrangements with other institutions or with public bodies under prescribed conditions;

(t) to provide for making of films and cassettes and other audio-visual material and enter into arrangements with Broadcasting Corporation of Pakistan, the Television Corporation of Pakistan and such other organizations as it may deem fit;

(u) to enter into, carry out, vary or cancel contracts;

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(v) to receive and manage property transferred and grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions and to convert one kind of property into another, in such manner at it may deem fit;

(w) to provide for the printing and publication of courses and teaching material and other works; and

(x) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite in order to further the objects of the University as a centre of education, learning and research.

[1] Ins. by the Allama lqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 4.

Explanation.—In this section "Counsellorship" means a post the person appointed to which, whether on whole-time or part-time basis is in direct instructional contact with the students.

5. University open to all classes, creeds, etc. The University shall be open to all persons of either sex of whatever religion, race, creed, class or colour and no citizen of Pakistan shall be denied the privileges of the University on the ground only of sex, religion, race, caste, creed, class, colour or domicile.

6. Teaching in the University.—(1) All recognized teaching in various courses shall be conducted by the University in the prescribed manner and may include correspondence packages, films, cassettes, telecasts, broadcasts, lectures, tutorials, discussions, seminars, demonstrations as well as practical work in the laboratories, workshops and farms and other media of instruction and practice in teaching or practical training.

(2) The authority responsible for organizing recognised teaching shall be such as may be prescribed.

(3) The courses and the curricula shall be such as may be prescribed.

[1][(4) A discipline to be call "Islamic and Pakistan Studies" shall be offered, as a compulsory subject at the Bachelor's level in all arts, science, professional and other faculties provided that non-muslim students may opt for "Ethics and Pakistan Studies".

(5) A degree shall not be awarded to a student unless he has passed the examination in the discipline referred to in sub-section (4).]

CHAPTER III

OFFICERS OF THE UNIVERSITY

7. Officers of the University. The following shall be the officers of the University namely:—

(i) the Chancellor;

(ii) the Pro-Chancellor;

(iii) the Vice-Chancellor;

(iv) the Deans;

(v) the Chairman of the Teaching Departments;

[2][(va) the Directors of the Institutes]

[3][(vi) the Director of the Regional Tutorial Services]

(vii) the Registrar;

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[1] Added by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (2 of 1981), s. 2.
[2] Ins. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 5.
[3] Subs. ibid.,

(viii) the Treasurer;

(ix) the Auditor;

(x) the Controller of Examinations;

(xi) the Librarian; and

(xii) such other persons as may be prescribed by Regulations to be the officers of the University.

8. Chancellor. —(1) The President of the Islamic Republic of Pakistan shall be the Chancellor of the University.

(2) The Chancellor shall, when present, preside at the convocations of the University.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

9. Pro-Chancellor. —(1) The Federal Minister incharge of the Ministry of Education shall be the Pro-Chancellor of the University.

(2) In the absence of the Chancellor, the Pro-Chancellor shall, when present, preside at the convocations of the University.

(3) If the Pro-Chancellor is satisfied that the proceedings of any Authority or the orders of any officer are not in accordance with the provisions of this Act, the Statutes, the Regulations or the Rules, he may, after calling upon such Authority or officer to show cause why such proceedings or orders should not be annualled, by order in writing, annual such proceedings or orders.

(4) The Pro-Chancellor shall have the power to assent to such Statutes as are required to be submitted to him or withhold assent or refer them back to the Executive Council for re-consideration.

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(5) The Pro-Chancellor may remove any persons from the membership of any Authority, if such as person—

(i) has become of unsound mind; or

(ii) has become subject to an incapacity which prevents him from functioning as a member of such Authority; or

(iii) has been convicted by a court of law of an offence involving moral turpitude.

10. Visitation, etc. —(1) The Pro-Chancellor may cause a visitation or an inspection or inquiry to be made in respect of any matter connected with the affairs of the University and shall, from time to time, appoint such person or persons as he may deem fit for the purpose of carrying out inspection of—

(i) the University, its buildings, laboratories, libraries, workshops and other establishments and equipment;

(ii) any institution or audience level regional centre of the University;

(iii) the teaching and other work conducted by the University; and

(iv) the conduct of examinations held by the University.

(2) The Pro-Chancellor shall give notice to the Executive Council of his intention to cause a visitation or an inspection or inquiry to be made under sub-section (1), and the Executive Council shall be entitled to be represented thereat.

(3) The Pro-Chancellor shall communicate to the Executive Council his views with regard to the results of a visitation or an inspection or inquiry made under sub-section (1) and shall, after ascertaining the views of the Executive Council thereon, advise the Executive Council on the action to be taken by it.

(4) The Executive Council shall, within such time as may be specified by the Pro-Chancellor, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of a visitation or an inspection or inquiry communicated to it under sub-section (3).

(5) Where the Executive Council does not, within the time specified by the Pro- Chancellor, take action to the satisfaction of the Pro-Chancellor, he may, after consideration of any explanation furnished or representation made by the Executive Council, issue such directions as he thinks fit, and the Vice-Chancellor shall comply with such directions.

11. Vice-Chancellor.—(1) The Vice-Chancellor shall be appointed by the Chancellor on such terms and conditions as the Chancellor may determine for a term not exceeding four years.

(2) At any time when the office of the Vice-Chancellor is vacant, or the Vice- Chancellor is absent or is unable to perform the functions of his office due to illness or some other cause, the Pro-Chancellor shall make such arrangement for the performance of the duties of Vice-Chancellor as he may deem fit.

12. Powers and duties of the Vice-Chancellor. —(1) The Vice-Chancellor shall be the principal executive and academic officer of the University, shall ensure that the provisions of this Act, the Statutes, the Regulations and the Rules are faithfully observed in order to promote the general efficiency and good order of the University, and shall have all powers necessary for this purpose, including administrative control over all officers, Teachers and other employees of the University.

(2) The Vice-Chancellor shall, in the absence of the Chancellor, and Pro-Chancellor, preside at a convocation of the University and at the meetings of the Authorities of which he is the Chairman and be entitled to attend and preside at any meeting of any other Authority or body of the University at his discretion.

(3) The Vice-Chancellor may, with the approval of the Pro-Chancellor, in an emergency which requires immediate action, take such action as he may consider necessary and shall, as soon thereafter as possible, seek approval of his action from the Authority or other body which in the ordinary course would have dealt with the matter, but shall not exercise powers otherwise vested exclusively in the Chancellor or the Pro-Chancellor under this Act.

(4) The Vice-Chancellor shall also have the powers—

(i) to create temporary posts for a period not exceeding six months subject to availability of funds and advice of the Finance Committee and fill them on *adhoc* basis in consultation with the head of the department or section of the office;

(ii) to sanction all expenditure provided for in the approved budget, and to re-appropriate funds within the same major head of expenditure;

(iii) to sanction by re-appropriation an amount not exceeding five thousand rupees for an unforeseen item not provided for in the budget, and report it to the Executive Council at the next meeting;

(iv) to appoint course editors, consultants, course assessors, paper setters and examiners for all examinations and courses of the University after receiving panels of names from the relevant Authorities, the assessors and consultants for various courses shall be appointed in consultation with the Dean concerned, on such terms as the Vice-Chancellor may deem suitable;

(v) to make such arrangements for the scrutiny of papers, marks and results as he may consider necessary;

(vi) to direct Teachers, officers and other employees of the University to take up such assignments in connection with teaching, research, examination and administration, and such other activities in the University as he may consider necessary for the purpose of the University;

(vii) to delegate, subject to such conditions, if any, as may be prescribed any of his powers under this Act to an officer or other employee of the University;

(viii) to appoint employees on an initial monthly pay which is below four hundred and fifty rupees;

(ix) to relax Regulations in favour of a student in a case of real hardship subject to the approval of the Academic Council; and

(x) to exercise and perform such other powers and functions as may be prescribed.

13. Registrar. —(1) The Registrar shall be a whole-time officer of the University and shall be appointed by the Executive Council on such terms and conditions as it may determine.

(2) The Registrar shall—

(a) be the custodian of the Common Seal and the academic records of the University;

(b) maintain Registers of students and Registered Graduates of the University in the prescribed form ;

(c) conduct elections of members to the various Authorities in the prescribed manner;

(d) act as the Secretary of the Executive Council, Academic Council and the Selection Board and as the co-ordinator of administration under the general directions and supervision of the Vice-Chancellor; and

(e) perform such other duties as may be assigned to him by the Executive Council.

14. Treasurer. —(1) The Treasurer shall be a whole-time officer of the University and shall be appointed by the Pro-Chancellor on such terms and conditions as the Pro- Chancellor may determine.

(2) The Treasurer shall—

(a) manage the property, the finances and the investments of the University;

(b) prepare the annual and revised budget estimates of the University and present them to the Finance Committee and the Executive Council;

(c) ensure that the funds of the University are expanded for the purposes for which they are provided; and

(d) perform such other duties as may be assigned to him by the Executive Council.

15. Controller of Examinations. —(1) The Controller of Examinations shall be a whole-time officer of the University and shall be appointed by the Executive Council on such terms and conditions as it may determine.

(2) The Controller of Examinations shall be responsible for all matters connected with evaluation and assessment records and the conduct of examinations and perform such other duties as may be assigned to him by the Executive Council.

16. University Auditor. —(1) There shall be a University Auditor who shall be an officer in the service of the Federal Government whose services have been lent to the University.

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(2) The duties of the University Auditor shall include pre-audit of all bills and demands for payment submitted to the University.

CHAPTER IV

AUTHORITIES OF THE UNIVERSITY

17. Authorities. The following shall be the Authorities of the University, namely:—

(i) the Executive Council;

(ii) the Academic Council;

(iii) the Faculties;

(iv) the Committees of Courses;

(v) the Selection Board;

(vi) the Committee for Research and Educational Technology;

(vii) the Finance Committee;

(viii) the Academic Planning and Development Committee; and

(ix) such other authorities as may be prescribed by Statutes.

18. The Executive Council. —[1][(l) The Executive Council shall consist of:—

(i) the Vice-Chancellor, who shall be its Chairman;

(ii) one member of the National Assembly to be nominated by the Speaker of the Assembly;

(iii) the Chief Justice of Pakistan or his nominee;

(iv) the Secretary, Ministry of Education, Government of Pakistan;

(v) one nominee of the University Grants Commission;

(vi) one Dean to be nominated by the Chancellor on the recommendation of the Vice- Chancellor;

[2][(vii) one Professor, one Associate Professor, one Assistant Professor and one Lecturer of the University to be elected by the Professor, Associate Professors, Assistant Professors and Lecturers of the University, as the case may be, from amongst themselves:

Provided that a Lecturer shall be eligible for election if he has completed a minimum of two years' service in the University;]

(viii) three persons of eminence to be nominated by the Chancellor;

(ix) the Managing Director of the Pakistan Television Corporation;

(x) the Director General of the Pakistan Broadcasting Corporation.];

[2][(xi) one Aalim to be nominated by the Chancellor;

(xii) one woman to be nominated by the Chancellor;]

(2) The members of the Executive Council, other than [2][ex-officio] members, shall hold office for [2][three] years.

(3) The quorum for a meeting of the Executive Council shall be one third of the total number of members, a fraction being counted as one.

[1] Subs. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (2 of 1981), s. 3.
[2] Subs. and ins. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 6.

19. Powers and duties of Executive Council.—(1) The Executive Council shall be the executive body of the University and shall, subject to the provisions of this Act and the Statutes, Regulations and Rules, exercise general supervision over the affairs and management of the property of the University.

(2) In particular and without prejudice to the generality of the foregoing provisions, the Executive Council shall have the power—

(a) to hold, control and administer the property and funds of the University;

(b) to govern and regulate, with due regard to the advice of the Finance and Academic Planning and Development Committees in this behalf, the finances, accounts and investments of the University and, for that purpose, to appoint such agents as it may think fit;

(c) to consider the annual report and the annual revised budget estimates and to re-appropriate funds from one major head of expenditure to another on the recommendations of the Finance Committee;

(d) to transfer and accept transfer of movable or immovable property on behalf of the University;

(e) to enter into, vary, carry out and cancel contracts on behalf of the University;

(f) to cause proper books of accounts to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University;

(g) to invest any money belonging to the University, including any unapplied income, in any of the securities described in section 20 of the Trusts Act, 1882 (11 of 1882), or in the purchase of immovable property or in such other manner as it may determine, with the like power of varying such investment;

(h) to receive and manage any property transferred and grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University, and to administer any funds placed at the disposal of the University for specified purposes;

(i) to determine the form, provide for the custody and regulate the use of the Common Seal of the University;

(j) to provide the buildings, libraries, premises, furniture, apparatus equipment and other means required for the purposes of the University;

(k) to arrange for the inspection of the Departments and audience level regional centres;

(1) to institute Professorships, Associate Professorships, Assistant Professorships, Lecturerships, and other teaching posts, or to suspend or abolish such posts;

(m) to create, suspend or abolish such administrative, research, extension or other posts as may be necessary;

(n) to appoint University Teachers and other officers on the recommendations of the Selection Board for Teaching and other posts on an initial monthly pay which is not below four hundred and fifty rupees;

(o) to appoint Professors Emeritus on such terms and conditions as may be prescribed under Statutes;

(p) to confer, with the prior approval of the Chancellor, honorary degrees in accordance with the conditions prescribed;

(q) to prescribe the duties of officers, Teachers and other employees of the University;

(r) to suspend, punish and remove from service in the prescribed manner officers (other than the Vice-Chancellor, the Auditor and the Treasurer), Teachers and other employees whom it is empowered to appoint;

(s) to appoint members to the various Authorities in accordance with the provisions of this Act;

(t) to propose drafts of Statutes for submission to the Pro-Chancellor;

(u) to consider, and deal in the manner- prescribed, the Regulations made by the Academic Council;

(v) to regulate, determine and administer all other matters concerning the University and to this end exercise all necessary powers not specifically mentioned in this Act and the Statutes;

(w) to delegate any of its powers to an Authority or officer or a Committee or sub-committee; and

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(x) to perform such other functions as have been assigned to it by the other provisions of this Act or may be assigned to it by the Statutes.

20. —(1) The Academic Council shall consist of—

(i) the Vice-Chancellor;

(ii) four members of the Executive Council to be elected by the Executive Council;

(iii) the Deans;

(iv) the University Professors, Senior Instructors and Professors Emeritus;

(v) the Chairmen of the Departments;

[1][(va) the Directors of the Institutes;]

(vi) five University Teachers to be elected by all the University Teachers;

(vii) two Registered Graduates to be elected, after the first graduation, by all such Graduates;

(viii) three persons eminent in the arts, the sciences, and the professions, one from each category to be nominated by the Pro-Chancellor;

(ix) the Registrar;

(x) the Treasurer;

(xi) the Controller of Examinations; and

(xii) the Librarian.

(2) The Vice-Chancellor shall be the Chairman of the Academic Council and shall preside over its meetings.

(3) The Registrar shall be the Secretary to the Academic Council.

(4) The members of the Academic Council, other than nominated members, shall hold office for three years.

(5) The quorum for a meeting of the Academic Council shall be one-third of the total number of members, a fraction being counted as one.

21. Powers and duties of the Academic Council.—(1) The Academic Council shall be the highest academic body of the University and shall, subject to the provisions of this Act and the Statutes, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the University and the audience level regional centres. It shall also propagate the ideology of Pakistan and shall also endeavour to inculcate and build national character in the students.

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(2) In particular and without prejudice to the generality of the foregoing provisions, the Academic Council shall have the power—

(a) to advise the Executive Council on all academic matters;

(b) to regulate the conduct of teaching, research and examinations;

(c) to regulate the admission of students to the courses of study and examinations in the University;

(d) to regulate the conduct and discipline of the students of the University;

(e) to propose to the Executive Council schemes for the constitution and organisation of Faculties, Departments and Committees of Courses;

[1] Ins. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 7.

(f) to consider and formulate proposals for the planning and development of various media of teaching and research in educational technology in the University;

(g) to make Regulations, on the recommendations of Academic Planning and Development Committee, Committee for Research and Educational Technology or the Faculties and approve the recommendations of the Committees of Courses and Faculties prescribing the courses of study and the syllabi for all University examinations:

Provided that, if the recommendations of a Faculty or a Committee of Courses are not received by the prescribed date, the Academic Council may continue for the next year the courses of study already prescribed for an examination;

(h) to recognise the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;

(i) to regulate the award of studentships, scholarships, exhibitions, medals and prizes;

(j) to frame Regulations for submission to the Executive Council;

(k) to appoint members to the various Authorities in accordance with the provisions of this Act; and

(1) to perform such other functions as may be prescribed by Statutes.

22. Constitution, functions and powers of other Authorities. Subject to the provisions of this Act, the constitution, functions and powers of the Authorities for which no specific provision, or insufficient provision, has been made in this Act shall be such as may be prescribed by Statutes.

23. Appointment of Committees by the Authorities. The Executive council, the Academic Council and any other Authority may, from time to time, appoint such standing, special or advisory committees as it may deem fit, and may appoint to such committees persons who are not its members.

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CHAPTER V

STATUTES, REGULATIONS AND RULES

24. Statutes. —(1) Subject to the provisions of this Act, Statutes may be made to regulate or prescribe all or any of the following matters, namely:—

(a) the constitution of pension, group insurance, gratuity, provident fund and benevolent fund for University employees;

(b) the scales of pay and other terms and conditions of service of officers, Teachers and other employees of the University;

(c) the maintenance of the Register of Students and Register of Registered Graduates;

(d) the conduct of elections for membership of the Authorities and related matters;

(e) the establishment of Faculties, audience level regional centres and other academic divisions;

(f) the powers and duties of Officers and Teachers;

(g) the conditions under which the University may enter into arrangements with other institutions or with public bodies for purposes of research and advisory services and production of courses through various media;

(h) the conditions for appointment of Professor Emeritus and award of honorary degrees;

(i) efficiency and discipline of University employees; and

(j) all other matters which are to be or may be prescribed or regulated by Statutes.

(2) The draft of Statutes shall be proposed by the Executive Council to the Pro-Chancellor who may approve it, or pass it with such modifications as he may think fit, or may refer it back to the Executive Council for reconsideration:

Provided that the Executive Council shall not propose a draft of Statutes affecting the constitution or powers of any Authority, until such Authority has been given an opportunity of expressing an opinion in writing upon the proposals:

Provided further that the draft of Statutes, after the Executive Council has approved it, be forwarded to the Pro-Chancellor and shall not be effective until it has been approved by the Pro-Chancellor.

25. Regulations.—(1) Subject to the provisions of this Act and the Statutes, Regulations may be made for all or any of the following matters, namely—

(a) the general scheme of studies and the courses of study for degrees, diplomas and certificates of the University;

(b) the manner in which the recognised teaching shall be organised and conducted;

(c) the admission of students to the University;

(d) the conditions under which students shall be admitted to the courses and the examinations of the University and shall become eligible for the award of degrees, diplomas and certificates;

(e) the assessment and evaluation system and the conduct of examinations;

(f) fees and other charges to be paid by the students for admission to the courses of study and the examinations of the University and for the remission of such fees, etc., in suitable cases;

(g) the conduct and discipline of students of the University ;

(h) the conditions under which a person shall carry on independent research to entitle him to a degree;

(i) the institution of fellowships, scholarships exhibitions, medals and prizes;

(j) the institution of stipends;

(k) the academic costume;

(1) the use of the Library;

(m) the formation of departments and Committees of Courses; and

(n) all other matters which are to be or may be prescribed by Regulations.

(2) The draft of Regulations shall be prepared by the Academic Council and shall be submitted to the Executive Council which may approve or withhold approval or refer it back to the Academic Council for reconsideration:

Provided that the Executive Council may frame a Regulation as its own initiative and approve it after calling for the advice of the Academic council.

(3) No Regulation shall be valid unless it has been approved by the Executive Council.

26. Amendment and repeal of Statutes and Regulations. The procedure for adding to, amending or repealing the Statutes and the Regulations shall be the same as that provided respectively for the framing or making of Statutes and Regulations.

27. Rules—(1) The Authorities and the other bodies of the University may make rules consistent with this Act, the Statutes and the Regulations to regulate the conduct of their business and the time and place of meetings and related matters:

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Provided that the Executive council may direct the amendment or the annulment of any rules made by another Authority or body under this section:

Provided further that, if such other Authority or body is dissatisfied with such direction, it may apply for review to the Executive Council whose decision in the matter shall be final.

(2) The Executive Council may make rules to regulate any matter relating to the affairs of the University, which by this Act are not specifically required to be provided for by Statutes or Regulations.

CHAPTER VI

UNIVERSITY FUND

28. University Fund. The University shall have a fund to which shall be credited its income from fees, donations, trusts, bequests, endowments contributions, grants, property and all other sources.

29. Audit and accounts.—(1) The accounts of the University shall be maintained in such from and in such manner as may be prescribed .

(2) No expenditure shall be made from the funds of the University [1][if it is not included in the approved budget of the university nor] unless a bill for its payment has been audited by the University Auditor in conformity with the Statutes, the Regulations and the Rules.

(3) The annual statement of the accounts of the University, signed by the Treasurer and the University Auditor, shall be submitted to the Government within six months of the closing of the financial year.

(4) The accounts of the University shall be audited once a year by an auditor appointed by the Government for the purpose.

(5) The observations of the Government auditor, together with such annotations, as the Treasurer may make, shall be presented to the Executive Council.

CHAPTER VII

GENERAL PROVISIONS

30. Opportunity to show cause. Except as otherwise provided, no officer, Teacher or other employee of the University holding a permanent post shall be reduced in rank, removed, suspended or compulsorily retied from service, unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

31. Appeal to and review by the Executive Council.—(1). Where an order is passed punishing any officer (other then vice-Chancellor), Teacher or other employees of the University or altering or interpreting to his disadvantage the prescribed terms and conditions of his service, he shall, where the order is passed by the Vice-Chancellor or any other officer or Teacher of the University, have the right to appeal to the Executive Council against the order, and, where the order is made by the Executive Council, have the right to apply to that Authority for review of that order or appeal to the Pro-Chancellor.

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(2) The appeal or application for review shall be submitted to the Vice-Chancellor who shall lay it before the Executive Council or, as the case may be, Pro-chancellor or with his comments.

[1][(3) No order on an appeal or application for review shall be passed with our affording to the appellant or applicant, as the case may be, an opportunity of being heard.]

32. Pension, group insurance, gratuity, provident fund and benevolent fund. (1) The University may constitute for the benefit of its officers, Teachers and other employees in such manner and subject to such conditions as may be prescribed, such pension, group insurance, gratuity, provident fund and benevolent fund schemes as it may deem fit.

(2) Where any provident fund is constituted under this Act, the provisions of the Provident Funds Act, 1925 (XIX of 1925), shall apply to such fund as if it were a Government Provident Fund and the University were the Government.

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[1]Ins. by the Allama Iqbal Open University (Amdt.) Ordinance 1981 (2 of 1981), s.4
[2]Added by the Allama Iqbal Open University (Amdt.) Ordinance, 1984 (23 of 1984), s. 2.

33. Commencement of term of office of members of authorities. Where a member of a newly constituted Authority is elected, appointed or nominated, his term of office, as fixed under this Act, shall commence from such date as may be prescribed.

[1][**33A. Members of an Authority to cease to be members in certain circumstances.** An elected, appointed or nominated member of any Authority shall cease to be a member if he—

(a) absents himself, without the leave of such Authority, from three consecutive meetings thereof; of

(b) accepts any assignment which involves his absence from the University for a period of six months or more.]

34. Filling of casual vacancies in Authorities. Any casual vacancy among the elected, appointed or nominated members of any Authority shall be filled, as soon as may be, any the person or persons or the body who elected, appointed or nominated the member whose place has become vacant and the person elected, appointed or nominated to vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

35. Filling of vacancies in Authorities in certain circumstances. Where a vacancy in the membership of an Authority cannot be filled because of—

(a) the office the holder whereof was to be a member of the Authority *ex-officio* having ceased to exist;

(b) the organization, institution or other body, other than the University, having ceased either to exist or to function;

(b) the occurrence of other circumstances in which it has become impracticable to fill the vacancy,

the vacancy shall be filled in such manner as the Pro-Chancellor may direct.

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36. Disputes about membership of Authorities. If a question arises whether any person is entitled to be a member of any Authority, the matter shall be referred to a committee consisting of the Vice-Chancellor, the Judge of the Supreme Court of Pakistan who is a member of the Executive Council and the most senior of the Deans who are members of the Executive Council and the decision of this committee shall be final and binding.

37. Proceeding of Authorities not invalidated by vacancies. No act, proceeding, resolution or decision of any Authority shall be invalid by reason only of any vacancy in, or any defect in the constitution of, or in the election, appointment or nomination of any member of, the Authority.

38. First Statutes. Notwithstanding anything to the contrary contained in this Act, until Statutes are framed, amended or replaced by new Statutes framed in accordance with this Act,—

[1]Ins by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), S.8.

(i) the Statutes set out in the Schedule shall be deemed to be Statutes framed under section 24; and

(ii) the Statutes made under the [1][Quaid-e-Azam University] Act, 1973, (XXVVII of 1973) in respect of the terms and conditions of service of officers, Teachers and other employees shall apply to the officers, Teachers and other employees of the University.

39. Removal of difficulties. If any difficulty arises as to the first constitution of any Authority or otherwise in giving effect to the provisions of this Act, the Pro-Chancellor may, on the recommendation of the Vice-Chancellor, give appropriate directions to remove such difficulty.

[2]**[40. Tripartite mobility.**—(1) Any officer, teacher or other employee of the University shall, as the Chancellor may direct, serve in a Government department or an educational or research institution in the public interest:

Provided that the terms and conditions offered to him shall not be less favourable than those admissible to him in the University and that full benefit of his previous service shall be allowed to him:

Provided further that, in the case of a teacher, such direction shall be made after consulting the Syndicate.

(2) The Chancellor may place the services of an employee of the Government or any other University or an educational or research institution at the disposal of the University in the public interest:

Provided that the terms and conditions offered to him shall not be less favourable than those enjoyed by him immediately before his services are placed at the disposal of the University and that full benefit of his previous service shall be allowed to him:

Provided further that, in the case of a teacher, the Chancellor may consult the Selection Board of the University before placing his services at the disposal of the University.].

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THE SCHEDULE

(*See* section 38)

THE FIRST STATUTES

1. *The Faculties*.— (1) The University shall include the following Faculties and such other Faculties as may be prescribed by Statutes, namely :—

(i) Faculty of Arabic and Islamic Studies :

[1] Subs., by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s.3 and Sch.II.
[2] The original section 40 which was ins. by Ord. 2 of 1981, s. 5. have been subs. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 9.

(ii) Faculty of sciences;

(iii) Faculty of Social Sciences and Humanities;

(iv) Faculty of Pedagogy, Continuing Education and Adult Literacy;

(v) Faculty of Technical and Vocational Education;

(vi) Faculty of Home Economics.

(2) There shall be a Board of each Faculty which shall consist of—

(i) the Dean of the Faculty to be [1][appointed] in the manner prescribed in paragraph (2) of Statute 2;

(ii) the Professors, Associate Professors, Assistant Professors, Lecturers [1][, The Chairman of the Teaching Departments and the Directors of the Institutes] comprised in the Faculty ;

(iii) two members of each Committee of Courses comprised in the faculty, to be nominated by the Committee concerned; and

(iv) three specialists or Teachers to be nominated by the Academic Council by reason of their specialised knowledge of the subjects which, though not assigned to the Faculty, have, in the opinion of the Academic Council, important bearing on the subjects assigned to the Faculty.

(3) The term of members mentioned in clauses (iii) and (iv) of paragraph (2) shall be three years.

(4) The quorum for a meeting of the Board of a Faculty shall be one-third of the total number of members, a fraction being counted as one.

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(5) The Board of each Faculty shall, subject to the general control of the Academic Council and the Executive Council, have the power—

(a) to coordinate the teaching and development of courses in various media of communication and research work in the subjects assigned to the Faculty in consultation with the Committee for Research and Educational Technology.

(b) to scrutinize the recommendations of the Committee of Courses comprised in the Faculty in regard to the appointment of editors, consultants, course assessors, paper setters and examiners, except for research examiners, and to forward the panels of suitable editors, paper setters and examiners for each course and examination to the Vice-Chancellor;

[1] Subs. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 10.

(c) to consider any other academic recommendations of the Committee of Course and to report thereon to the Academic Council in consultation with the Committee for Research and Educational Technology;

(d) to consider and give advice on any matter referred to it by any Authority or body of the University for advice; and

(e) to perform such other functions as may be prescribed by Statutes.

2. *Dean*.—(1) There shall be a Dean of each Faculty who shall be the Chairman and convener of the Board of the Faculty.

[1][(2) The Dean of each Faculty shall be appointed by the Chancellor from amongst the three most senior Professors in the Faculty for a period of three years.]

(3) The Dean shall hold office for [2][three] years.

(4) The Dean shall present candidates for admission to degrees (except honorary degrees) in the courses falling within the purview of the Faculty.

(5) The Dean shall be the executive and academic head of the Faculty and supervise and control the heads of departments in the Faculty.

(6) The Dean shall exercise such other powers and perform such other duties as may be assigned to him by the Vice-Chancellor.

[1][3. *Teaching Departments and Institutes, etc*.—(1) There shall be a Teaching Department or an Institute for each subject or group or subjects, as may be approved by the Executive Council, and each Teaching Department shall be headed by a Chairman and an Institute by a Director.

(2) The Chairman of a Teaching Department or the Director or an institute shall be appointed by the Syndicate on the recommendation of the Vice-Chancellor from amongst the three most senior Professors and Associate Professors of the Department or, as the case may be, the Institute for a period of three years:

Provided that in Departments or Institutes in which there is no professor or Associate Professors, the Department or, as the case may be, the Institute shall be looked after by the Dean of the Faculty with the help and assistance of the most senior teacher of the Department or the Institute.

(3) The Chairman of a Teaching Department and the Director of an Institute shall plan, organize and supervise the work of the Department and the Institute, respectively, and shall be responsible to the Dean for the work of his Department and the Institute, respectively.]

4. *Committee of Courses*.—(1) There shall be a separate Committee of Courses for each subject or group of subjects, as may be approved by the Vice-Chancellor.

[1] Subs. by the Allama lqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981) s. 10.
[2] Subs. ibid., for "two".

(2) Each Committee of Courses shall consist of—

(i) the Chairman of the Department [1][or the Director of an Institute] concerned;

(ii) all Professors, Associate Professors, Assistant Professors and Lecturers in the Department [1][or the Institute] concerned;

(iii) three Teachers of at least five years standing, other than University Teachers, to be appointed by the Executive Council; and

(iv) one expert to be appointed by the Vice-Chancellor.

(3) The term of office of members of the Committee of Courses other than *ex-officio* members shall be three years.

(4) The quorum for a meeting of the Committee of Courses shall be one third of the number of members, a fraction being counted as one.

(5) The Chairman of the University Department [1][or the Director of Institute] concerned shall be the Chairman and convener of the Committee of Courses. Where in respect of a subject there is no University Teaching Department [1][or Institute], the Chairman of the Committee of courses shall be appointed by the Vice-Chancellor.

(6) The functions of the Committee of Courses shall be—

(a) to advise the Authorities on all academic matters connected with instruction, research and examination in the subject or subjects concerned;

(b) to propose curricula and syllabi for all degree, diploma and certificate courses in the subject or subjects concerned and produce correspondence packages, television and broadcast scripts for approval by the Faculty after seeking clearance from the Committee for Research and Educational Technology;

(c) to suggest a panel of names of paper setters and examiners in the subject or subjects concerned; and

(d) to perform such other functions as may be prescribed by Regulations.

5. ***Committee for Research and Educational Technology.***— (1) The committee for Research and Educational Technology shall consist of—

(i) the Vice-Chancellor who shall be its Chairman;

(ii) the Dean;

(iii) Chairman of Departments [2][or the Directors of Institutes];

[1] Ins, by the Allama lqbal Open University (Arndt.) Ordinance, 1981 (8 of 1981), S. 10.
[2] Added ibid.,

(iv) six Teachers of other Universities having research qualifications and experience, to be appointed by the Academic Council;

(v) four Educational Media Advisers, one each for Correspondence Courses, Radio, Television and Films Divisions;

(vi) one nominee each of the chief executives of the Pakistan Television and Broadcasting Corporations; and

(vii) the Registrar and Treasurer as non-voting members.

(2) The term of office of the members of the Committee for Research and Educational Technology other than *ex-officio* members shall be three years.

(3) The quorum for a meeting of the Committee for Research and Educational Technology shall be one half of the total number of members, a fraction being counted as one.

(4) The functions of the Committee for Research and Educational Technology shall be—

(i) to advise the Authorities on all matters connected with the promotion of various types ofcourses as recommended by the Committee of Courses;

(ii) to consider and report to the Authorities on the proposals for production of films and broadcast scripts;

(iii) to appoint supervisors for research in Educational Technology and contents of courses and to determine the terms of reference;

(iv) to recommend panels of names of assessors and consultants in various techniques for approval of the Vice-Chancellor;

(v) to advise the Faculties in proposing courses of study and supporting radio and television programmes ;

(vi) to advise the University authorities on such matters as are referred to it; and

(vii) to perform such other functions as may be assigned to it by the Vice-Chancellor.

6. Selection Board.—(1) The Selection Board shall consist of—

(i) the Vice-Chancellor who shall be its Chairman;

(ii) one member of the Federal Public Service Commission to be nominated by the Chairman of the Commission;

(iii) a nominee of the Ministry of Education not below the rank of a Joint Educational Adviser;

(iv) the Dean of the Faculty concerned;

(v) the Chairman of the Department [1][or the Director of the Institute] concerned; and

(vi) one member of the Executive Council and two other persons of eminence, to be nominated by the Pro-Chancellor provided that none of the three is an employee of the University.

(2) The term of members mentioned in clauses (ii) and (vi) of paragraph (1) shall be two years.

(3) The quorum for a meeting of the Selection Board shall be three.

(4) No Member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Board.

(5) In selecting candidates for the post of Professors, Senior Instructors, Associate Professors, Instructors and other Technical staff required for production of teaching material, the Selection Board shall coopt or consult three experts in the subject concerned and, in selecting candidates for other teaching posts, two experts in the subject concerned, to be nominated by the Vice-Chancellor from a standing list of experts for each subject approved by the Executive Council on the recommendation of the Selection Board and revised from time to time.

7. ***Functions of Selection Board.***—(1) These Selection Board shall consider the applications received in response to an advertisement and recommend to the Executive Council the names of suitable candidates for appointment to such posts.

(2) The Selection Board may recommend to the Executive Council the grant of a higher initial pay in a suitable case for reasons to be recorded.

(3) The Selection Board may recommend to the Executive Council the appointment of an eminently qualified person to a Professorship in the University on terms and conditions which differ in any particular from those prescribed.

(4) In the event of an unresolved difference of opinion between the Selection Board and the Executive Council the matter shall be referred to the Pro-Chancellor whose decision shall be final.

8. ***Finance Committee.***—(1) The Finance Committee shall consist of—

(i) the Vice-Chancellor, who shall be its Chairman;

(ii) two members of the Executive Council, to be appointed by the Executive Council;

(iii) two members of the academic council to be appointed by the Academic Council ;

(iv) one member to be nominated by the Pro-Chancellor;

(v) one member to be nominated by the Ministry of Finance;

[1] Ins. by the Allama Iqbal Open University (Arndt.) Ordinance, 1981 (8 of 1980, s. 10.

(vi) the Registrar; and

(vii) the Treasurer who shall act as Secretary of the Committee.

(2) The terms of office of the members other than the *ex-officio* members shall be three years.

(3) The quorum for a meeting of the Finance Committee shall be three.

9. *Functions of the Finance Committee.*—(1) The functions of the Finance Committee shall be—

(i) to consider the annual statement of accounts, the annual revised budget estimates and advise the Executive Council, thereon;

(ii) to review periodically the financial position of the University;

(iii) to advise the Executive Council on all matters relating to physical planning, development, finance, investments and accounts of the University and proposals having any immediate or consequential financial involvements or such other matters as may be referred to it by the Executive Council; and

(iv) to perform such other functions as may be prescribed by Statutes.

10. *The Academic, Planning and Development Committee*. —(1) The Committee shall consist of—

(i) the Vice-Chancellor who shall be its Chairman;

(ii) the Deans;

[1][(iii) the Chairmen of Teaching Departments or the Directors of Institutes;]

(iv) one nominee each of the chief executives of the Pakistan Television and Broadcasting Corporations;

(v) the Treasurer; and

(vi) the Registrar, who shall act as the Secretary of the Committee.

(2) The term of office of the members mentioned in clause (iv) of paragraph (I) shall be three years.

(3) The quorum for the meetings of the Academic Planning and Development Committee shall be five.

[1] Subs. by the Allama Iqbal Open University (Amdt.) Ordinance, 1981 (8 of 1981), s. 10.

11. ***The functions of the Academic, planning and Development Committee*****.** The functions of the Academic, Planning and Development Committee shall be—

(i) to review periodically the courses of study in the various media of communication with a view to improving them;

(ii) to make recommendations to the Committee for Research and Technology and Committee of Courses for changes or modifications in courses in the light of experience and research studies;

(iii) to prepare proposals for introduction of new courses at the various levels for consideration of Committee for Research and Educational Technology, Committee of the Courses and Faculties ;

(iv) to advise the Executive and Academic Councils on all matters related to academic, planning and development of academic programmes and facilities;

(v) to prepare proposals for the implementation of the recommendations of the Committee for Research and Educational Technology; and

(vi) to advise on such other matters as are referred to it by the Vice-Chancellor.

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THE AREA STUDY CENTRES ACT, 1975

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PREAMBLE

SECTIONS:

1. Short title, extent and commencement.
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4. Functions of centre.
5. Board of Governors.
6. Director.
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9. Audit and accounts, etc.
9A. Power to transfer centres.
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[1]THE AREA STUDY CENTRES ACT, 1975.

[1]ACT No. XLV of 1975

[24th April, 1975]

An Act to provide for the establishment of Area Study Centres in the Universities for the study of contemporary societies particularly those which effect the national interest of Pakistan.

WHEREAS it is expedient to provide for the establishment of Area Study Centres in the Universities for the study of contemporary societies particularly those which affect the national interest of Pakistan;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Area Study Centres Act, 1975.

(2**)** It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Board" means a Board of Governors referred to in sub-section (1) of section 5;

(b) "Centre" means an Area Study Centre established under section 3;

(c) "Commission" means the University Grants Commission;

(d) "Director" means the Director of a Centre;

(e) "regulations" means regulations made under section 11; and

(f) "rules" means rules made under section 10.

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3. Establishment of Centre. As soon as may be after the commencement of this Act, the Federal Government may, by notification in the official Gazette, establish an Area Study Centre in a University specified in the notification.

4. Functions of Centre. A Centre shall—

(a) engage in high level teaching and research;

(b) train research workers;

[1]For Statement of Objects and Reasons, *see* Gaz. of P., 1975, Ext., Pt. III, p. 170.

(c) establish M. Phil., Ph. D. and other programmes in the relevant disciplines in accordance with the standard and requirements of the University;

(d) promote cooperation in inter-disciplinary relationship with other teaching and research establishments;

(e) arrange conferences, seminars and refresher courses for the development of teaching and research; and

(f) conduct teaching and research in such particular field as is assigned to it by the Federal Government after consultation with the University.

5. Board of Governors.— (1) The management, overall control and supervision of the affairs of a Centre established in University shall vest in a Board of Governors consisting of the following, members, namely:—

(a) *Vice*-Chancellor of the University, who shall also be its Chairman;

(b) a representative of the Commission;

(c) a representative of the Pakistan History Commission;

(d) a representative of the Ministry of Foreign Affairs;

(e) a representative of the Ministry of Education;

(f) Dean of the Faculty of the University;

(g) two experts in the relevant discipline to be nominated by the Federal Government on the recommendation of the Commission;

(h) one nominee of the Syndicate of the University;

(i) one nominee of the Academic Council of the university; and

(j) Director of the Centre.

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(2) In particular and without prejudice to the generality of the foregoing provision, a Board shall have the power to—

(a) approve the academic and research programmes of the Centre, with the concurrence of the Academic Council of the University;

(b) lay down rules of admission to the Centre;

(c) institute fellowships for promotion of research in the discipline concerned;

(d) create, suspend or abolish such posts as may be necessary;

(e) appoint teachers and other officers; and

(f) hold, control and administer the funds of the Centre.

(3) A member of a Board referred to in clause (g) of Subsection (1) shall hold office for such term as may be determined by the Federal Government.

(4) The meetings of a Board shall be held as and when called by the Chairman:

Provided that not less than two meetings shall be held in each year.

(5) In the exercise of its powers and performance of its functions, a Board shall be subject to such special or general instructions as may be issued by the Commission from time to time.

(6) A Board may, for the speedy and efficient working of the Centre, delegate to the Director such of its powers as it may deem necessary.

6.Director.— (1) The Director shall be appointed by the Federal Government on the recommendation of the Commission on such remuneration and other terms and conditions of service as may be determined by the Federal Government in consultation with the University.

(2) The Director shall be the academic and executive head of the Centre and Secretary of the Board, and shall be responsible to the Board for carrying out the objectives of the Centre.

(3) The Director shall perform such other functions and exercise such powers as may be assigned or delegated to him by the Board.

(4) The Director may, by writing under his hand addressed to the Chairman, resign his office.

7. Academic Committee.— (1) At each Centre there shall be an Academic Committee consisting of the following members, namely: —

(a) the Director, who shall also be its convener;

(b) all Professors and Associate Professors of the Centre; and

(c) two experts to be nominated by the Commission.

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(2) The Committee may associate such other experts as it may consider necessary.

(3) The Committee shall prepare and submit to the Board the academic and research programmes of the Centre.

8. Fund. Each Centre shall have a fund to which shall be credited—

(a) grants made by the Federal Government, the Provincial Governments and the Commission;

(b) contributions and donations from individuals, local bodies, corporations, institutions, organizations and agencies; and

(c) income from fees.

9. Audit and accounts etc.— (1) The accounts of a Centre shall be maintained in such form and manner as may be prescribed by rules.

(2) The accounts of a Centre shall be audited once every year by an auditor appointed by the Commission on such remuneration, if any, to be paid by the Centre, as the Commission may fix.

(3) A Centre shall submit, through the Commission, to the Federal Government a copy of its audited annual accounts, together with the observations of the Director, if any, thereon, and a report on the activities of the Centre during the preceding year.

(4) A Centre shall furnish to the Federal Government such information relating to its activities as may be asked for by the Federal Government from time to time.

[1][**9 A. Power to transfer Centres**. The Federal Government may, by Order published in the official Gazette and subject to such conditions as may be specified therein, transfer any Centre to a university or as the case may be, the provincial Government.]

10. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

11. Power to make regulations. A Centre may, with the approval of the Commission, make such regulations, not inconsistent with the rules, as it may consider necessary for carrying out the purposes of this Act.

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[1]Ins. by Ord. 58 of 02, s.2 and Sch.

THE ASSOCIATED PRESS OF PAKISTAN (TAKING OVER) ORDINANCE, 1961

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THE ASSOCIATED PRESS OF PAKISTAN (TAKING OVER) ORDINANCE, 1961

ORDINANCE NO. XX OF 1961

[15th June, 1961]

An Ordinance to enable the Central Government to take over the Associated Press of Pakistan Limited.

WHEREAS, due to an administrative and financial breakdown, the undertaking known as the "Associated Press of Pakistan" is no longer able to function ;

AND WHEREAS in the public interest it is expedient that the Central Government should take over the undertaking to ensure free and efficient flow of news to the people and to place the undertaking on a stable footing;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title and commencement.—(1) This Ordinance may be called the Associated Press of Pakistan (Taking Over) Ordinance, 1961.

(2) It shall come into force at once.

2. Definition. In this Ordinance "Associated Press" means the company registered on the 28th day of May, 1960, under the Companies Act, 1913 (VII of 1913), under the name of the Associated Press of Pakistan Limited.

3. Power to take over Associated Press. (1) The [1][Federal Government] may, notwithstanding anything contained in any other law for the time being in force, or in any trust or *wakf*, or in any deed or other instrument, by notification in the official Gazette, take over the entire undertaking of the Associated Press on such date as may be specified in the notification.

(2) On the date specified in the notification under sub-section (1),—

(a) the Associated Press shall stand dissolved for the purposes of the Companies Act, 1913 (VII of 1913) ;

(b) all assets, rights, powers, authorities and privileges, all property, movable and immovable, cash and bank balances, reserve funds, investments and all other interests and rights in, or arising out of, such property, of the Associated Press, shall stand transferred to, and vest in, the [1][Federal Government];

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[1]*Subs. by F.A.O., 1975,Art. 2 and Table, for "Central Government".*

(c) all debts and liabilities incurred, all obligations undertaken, all contracts entered into, and all agreements made by or with the Associated Press, shall stand transferred to, and be deemed to have been incurred, undertaken, entered into or made, by or with, the [1][Federal Government] ;

(d) any sum payable to, or recoverable by, the Associated Press shall be deemed to be payable to, or recoverable by, the [1][Federal Government];

(e) the members of the Associated Press shall be liable to contribute to the assets thereof for payment of its debts and liabilities to the extent to which they would have been liable had the Associated Press been wound up under the Companies Act, 1913 (VII of 1913);

(f) all suits and other legal proceedings instituted by or against the Associated Press before the said date shall be deemed to have been instituted by or against the [1][Federal Government] and may be continued or proceeded with accordingly;

(g) any reference to the Associated Press in any law other than this Ordinance, or in any rule, regulation, order or notification or in any contract, deed or other document shall, except where the context otherwise requires or the [1][Federal Government] otherwise directs, be construed as reference to the [1][Federal Government].

4. Management etc. of the Associated Press after the taking over.—(1) After the Associated Press has been taken over, the [1][Federal Government shall conduct the business and manage and administer the affairs of that undertaking as a separate institution, hereinafter referred to as the "undertaking".

(2) The [1][Federal Government] may appoint a person to take possession of the Associated Press and all its properties, records and documents, and, after taking such possession, to manage and administer, on behalf of the [1][Federal Government] the affairs of the undertaking and to exercise such powers and perform such duties in relation thereto as the [1][Federal Government] may, from time to time, require him to exercise and perform, and any such appointment may, at any time, be revoked and a fresh appointment made on such conditions and with such limitations as the [1][Federal Government] may determine.

(3) When taking possession under sub-section (2), it shall be lawful for any police officer to seize any property of the undertaking, or its records or documents, found anywhere in Pakistan, and for any Magistrate, by warrant, to authorize any police officer, not below the rank of Sub-Inspector, to enter upon and search for any such property, record or document in any premises where they may be or where they may reasonably expected to be found.

(4) In conducting the business and managing and administering the affairs of the undertaking due regard shall be had to:—

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[1]*Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".*

(a) the free and efficient flow of information,

(b) the stability of the organization,

(c) supply of unbiased and reliable news to the news papers and news agencies in Pakistan and abroad, and

(d) expansion and development of news service.

5. Future Management of the undertaking. After the affairs of the undertaking have been put on a sound footing with respect to its finance, management and the efficiency of its news service, the [1][Federal Government] shall make such arrangements for running and managing it on a permanent basis in order to ensure that the undertaking shall provide independent, healthy and efficient news service, as to it might appear proper. To this end the [1][Federal Government] may transfer the whole or a part of the undertaking or any interest in it to an individual or an organization or a Board of Trustees set up for this purpose.

6. Recovery of dues. Any sum payable to or recoverable by the [1][Federal Government] under this Ordinance shall be recoverable as arrears of land revenue.

7. Officers and employees of the Associated Press.—.(1) The [1][Federal Government] may make such arrangements or take such measures with respect to the officers and other employees of the Associated Press as it thinks fit.

(2) Until the [1][Federal Government] otherwise directs, all the officers and employees of the Associated Press in employment immediately before the taking over under sub-section (1) of section 3, shall continue to be in their respective employments on the same terms and conditions as then in force, and unless the [1][Federal Government] otherwise directs, no such officer and employee shall be subject to rules relating to emoluments, allowances, pensions, appointment, dismissal or disciplinary action applicable to Government servants, and subject to any agreement to the contrary, such officers and employees may also be transferred with the transfer of the undertaking under section 5 of the Ordinance.

8. Compensation. If, after assessment of the assets and liabilities of the Associated Press, the value of the assets exceed the value of the liabilities, the [1][Federal Government] shall, to the extent of the excess, pay compensation to the persons who would have been entitled to surplus remaining after payment of the debts and liabilities as if the Associated Press has been wound up under the Companies Act, 1913 (VII of 1973).

9. Power to make rules. The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance.

10. Immunity. No suit or other legal proceedings shall be instituted in any court in respect of anything done under this Ordinance.

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[1]*Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".*

THE BAHRIA UNIVERSITY ORDINANCE 2000

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THE BAHRIA UNIVERSITY ORDINANCE 2000

ORDINANCE NO. V OF 2000

[7th February, 2000]

An Ordinance to provide for the establishment of Bahria University at Islamabad

WHEREAS it is expedient to provide for the establishment of Bahria University at Islamabad and to provide for the matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 as amended;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of Proclamation of the fourteenth day of October, 1999, and Provisional Constitution Order No. l of 1999, as amended, as well as Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement:—(1) This Ordinance may be called the Bahria University Ordinance, 2000.

(2) It shall come into force at once.

2. Definitions:— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means, the Academic Council of the University constituted under section 19;

(b) "affiliated institution" means an educational institution authorised by the Board to conduct academic programmes approved by the University;

(c) "authority" means any of the authorities of the University specified in section 15;

(d) "Board" means the Board of Governors of. the University constituted under section 16;

(e) "Chancellor" means the Chancellor of the University;

(f) "Constituent Units" means the Bahria Institutes of Management and Computer Sciences at Islamabad and Karachi, the Pakistan Naval Academy, Manora, Karachi, the Pakistan Navy War College, Lahore, the institute of Professional Psychology, Karachi, the Bahria Colleges at Islamabad and Karachi the faculty

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of Earth and Environmental Sciences and includes any other faculty or college instituted by the Board or any other unit established by, or on the authority of, the Board;

(g) "Committee" means the Executive Committee of the University constituted under section 18;

(h) "head" means the head of a college or institution under the University by whatever name or designation;

(i) "institute" means a teaching unit of the University;

(j) "prescribed" means prescribed by Regulations, Rules or Statutes;

(k) "Pro-Chancellor" means the Pro-Chancellor appointed under section 8;

(l) "Rector" means the Rector of the University appointed under section 9;

(m) "Registrar" means the Registrar of the University;

(n) "Regulations, Rules and Statutes" means Regulations, Rules and Statutes made or deemed to have been made under this Ordinance; and

(o) "University" means the Bahria University established under this Ordinance.

3. Establishment and incorporation of the University:—(1) There shall be established a University to be called the Bahria University Islamabad consisting of—

(i) the Chancellor, the Pro-Chancellor, the Rector, the Registrar, the Directors;

(ii) the Governing bodies of the Constituent Units by whatever names called;

(iii) members of such other councils, committees and advisory bodies as the Board may establish or authorize from time to time;

(iv) the members of the faculties and students of the colleges and Constituent Units; and

(v) such other officers and members of the staff as may be specified by the Board from time to time.

(2) The University shall be a body corporate by the name of the Bahria University Islamabad having perpetual succession and a common seal, with power, among others, to acquire, hold and dispose of any property and shall by the said name sue and be sued.

(3) The principal seat of the University shall be at Islamabad, and it may set up any number of colleges and institutes at such places in Pakistan as the Board may determine.

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4. Purposes, powers and functions of the University:—(1) The purposes of the University shall be the promotion and dissemination of knowledge and technology and to provide for instruction, training, research, demonstration and service in such branches of learning as the Board may deem fit.

(2) The University shall be a fully autonomous body with freedom to govern its academic and administrative functions in order to achieve its objectives in general and in particular freedom to—

(a) determine courses of study in management sciences, computer sciences, information and communication technology, professional psychology, naval sciences, war and strategic studies, earth and environmental sciences and such other disciplines as it may determine;

(b) determine courses of study at the undergraduate level in its constituent units where applicable as well as in its affiliated institutions;

(c) select and examine students;

(d) award degrees, diplomas, certificates and other academic distinctions

(e) pursue and co-ordinate research;

(f) affiliate itself or associate with other institutions and establish faculties in Pakistan or abroad for better discharge of its functions and responsibilities;

(g) decide teaching methods and strategies in order to ensure the most effective educational and research programmes;

(h) use the financial and other resources allocated to it for the execution of its functions;

(i) confer in the manner prescribed honorary degrees or other distinctions on persons approved by the Board for the purpose;

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(j) confer degrees on persons who have carried on independent research under prescribed conditions;

(k) provide for such instructions for persons not being students of the University as it may determine and grant certificates and diplomas to such persons;

(l) accept the examinations passed, and the periods of study spent, by students of the University at other universities and places of learning as equivalent lo such examinations and periods of study in the University as it may determine, and to withdraw such acceptance;

(m) institute professorships, associate professorships, assistant professorships, lectureships, research associateships and other posts, and to make appointments thereto;

(n) create posts for teaching, research, administration and other related purposes and to appoint persons thereto;

(o) institute and award fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(p) establish institutes, faculties, libraries, laboratories, workshops, museums and other centres of learning for the development of teaching and research and make such arrangements for their maintenance, management and administration as it may determine;

(q) make provision for research and advisory services and with these objectives to enter into arrangements with other institutions or with public bodies within Pakistan and abroad under prescribed conditions;

(r) enter into, carry out, vary or cancel contracts;

(s) receive and manage property transfers and grants, bequests, trusts, gifts, donations, endowments and other contributions made to it and invest any funds representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions and convert one kind of property into another, in such manner as it may deem fit;

(t) provide for the printing and publication of research and other works;

(u) authorise and agree when warranted by the circumstances to the mobility of qualified staff among universities, research organizations and the Government or corporate bodies, provided that the rights and privileges of the staff under this arrangement shall be protected; and

(v) do all such other acts and things, whether incidental to the powers aforesaid or not, as may be required in order to further its objectives as a place of education, learning and research.

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(3) The principal teaching facilities of the University shall be in the Constituent Units and such other colleges and institutes as may be determined by the Board from time to time.

(4) Academic activities, examinations and syllabi at the colleges and institutes referred to in sub-section (3) shall be in conformity with such conditions as the University may prescribe.

(5) The University may, with the approval of the Board, provide facilities to the representatives of the University Grants Commission and the Pakistan Navy or such relevant organizations for visitation to enable them to verify and ensure that appropriate academic standards are being maintained by it.

5. University open to all classes, creeds etc:—The University shall be open to all persons of either sex without prejudice of religion race, class, creed, colour or domicile who qualify for admission for the courses of study offered by it based on the criteria and policy determined by the Board, and no

such person shall be denied the privileges of the University on the ground of sex, religion, race, class, creed, colour or domicile.

6. Officers of the University. The following shall be the officers of the University, namely:—

(a) the Chancellor;

(b) the Pro-Chancellor;

(c) the Rector;

(d) the Registrar;

(e) the Director of Examinations and Academic Affairs;

(f) the Director Finance;

(g) the Director of Research and Development;

(h) Heads of Constituent Units and Faculties; and

(i) such other persons as may be prescribed to be officers by the Board.

7. Chancellor:—(1) The President of the Islamic Republic of Pakistan shall be the Chancellor of the University.-

(2) The Chancellor shall preside over the convocations of the University and meetings at which his presence is desirable in the light of the business being transacted.

(3) In the absence of the Chancellor, the Pro-Chancellor or the Rector shall preside at convocation of the University.

(4) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

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(5) If the Chancellor is satisfied that the proceedings or orders of any authority are not in accordance with the provisions of this Ordinance, the statutes, regulations or the rules, he may, after calling upon such authority to show cause in writing, annual such proceedings or orders.

8. Pro-Chancellor:—(1) The Chancellor shall appoint an educationist of repute as Pro Chancellor for such period and on such terms and conditions as he may determine.

(2) " The Pro-Chancellor shall act for the Chancellor at any time when the office of the Chancellor is vacant, or the Chancellor is absent or is unable to perform the functions of his office due to any cause.

(3) The Pro-Chancellor shall perform such other functions as may be entrusted to him by the Chancellor.

9. Rector:—(1) The Board shall appoint an educationist of good repute and experience as Rector to ensure the disciplined educational environment visualized for the University.

(2) The Rector shall hold office for a term of three years and shall be eligible for reappointment for a similar term or such shorter period on such terms and conditions as the Board may determine.

(3) The Rector shall be the chief executive of the University in all fields of academics and administration, and shall have overall responsibility for the direction, organization, administration and programmes of the University in accordance with the guidelines and general policies formulated by the Board and for the implementation of the decisions and policies of the Board and shall, without prejudice to the provisions of section 4,—

(a) oversee, monitor and supervise all academic activities, including examinations and applied research to ensure that proper academic standards are maintained;

(b) exercise administrative control over the academic and administrative staff employed by the University including their recruitment;

(c) submit the plans of work and budget estimates of the University for the approval of the Board;

(d) direct the activities connected with execution of programmes for instruction, training, research, demonstration and service, and authorize expenditure provided for in the budget as approved by the Board;

(e) make appointments to academic and non-academic positions that he has been authorized in accordance with the policies and procedures approved by the Board so as to ensure the highest intellectual and moral qualities in the persons appointed;

(f) appoint, subject to approval of the Board, on contract, teachers, officers and members of staff of the University and such other persons as may be necessary for a period not exceeding two years;

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(g) submit to the Board, in accordance with the rules of procedure framed by it, reports on the activities of the University and the execution of the plans of works;

(h) prepare and revise from time to time statutes and regulations with the approval of the Board for the efficient and effective operations of the University; and

(k) provide necessary assistance to the Board in its functioning

10. Registrar:— The Registrar shall be mainly responsible for the maintenance of University records, student affairs and administration and in addition, he may be entrusted With other responsibilities by the Board of Governors, the Executive Committee or the Rector as considered appropriate and necessary.

11. Director of examinations and academic affairs:— There shall be a Director examinations and academic affairs who shall deal with all matters concerning examinations and coordination with constituent and affiliated institutions and shall be responsible for policy making, coordinating and overseeing all activities relating to academics, research and development.

12. Director Finance:— The Director Finance shall be mainly responsible for the proper and judicious management of the University funds received from various sources in accordance with the policies laid by the Board of Governors.

13. Director (Research and Development):—There shall be a Director (Research and Development) who shall be responsible for providing guidelines and coordinating all arrangements for research and development activities in the University and its Constituent Units. He shall also perform such other duties as may be assigned to him by the Rector.

14. Heads of Constituent Units:— The Heads of Constituent Units shall be appointed in the manner and on the terms and conditions prescribed who shall, in addition to their positions as academic heads, abide by the academic rules and requirements of syllabi, conduct of examinations etc; prescribed by the University and perform their duties as executive heads of their respective institutions.

15.Authorities. The following shall be the authorities of the University, namely:

(a) the Board of Governors;

(b) the Executive Committee;

(c) the Academic Council;

(d) the faculty Board of Studies;

(e) the Selection Board;

(f) the Finance and Planning Committee;

(g) governing bodies of Constituent Units by whatever name called; and

(h) such other authorities as may be prescribed.

16. Board of Governors:— (1) The general supervision and control of the affairs of the University and the powers to lay down the policies shall vest in the Board of Governors consisting of—

(i) the Chief of the Naval Staff who shall be the ex-officio Chairman of the Board;

(ii) the Deputy Chief of Naval Staff (Training and Personnel);

(iii) Principal staff officers or administrative authorities as approved by the Chairman of the Board;

(iv) the Rector;

(v) Chairman, University Grants Commission, or his nominee not below the rank of a whole-time member;

(vi) Secretary, Ministry of Education, Government of Pakistan, or his nominee not below the rank of Joint Secretary;

(vii) Secretary, Ministry of Finance, Government of Pakistan, or his nominee not below the rank of Joint Secretary;

(viii) Secretary, Ministry of Science and Technology, Government of Pakistan, or his nominee not below the rank of Joint Secretary;

(ix) Vice Chancellor or Rector of a recognized Pakistani University nominated by the Chancellor for a period of two years;

(x) Director Naval Educational Services, NHQ Islamabad;

(xi) the Heads of Constituent Units;

(xii) two nominees from the industrial or financial sector nominated by the Board of Governors for a period of two years;

(xiii) two renowned educationists as approved by the Chairman of the Board; and

(xiv) Deans Faculty of Arts and Sciences of the Bahria Institutes.

(2) Registrar will be the member and shall act as Secretary of the Board but shall not be entitled to vote.

(3) The Chancellor may, in consultation with the Board, appoint any other person, including a scientist or educationist, as members of the Board.

(4) The Board may direct any officer, member of faculty or any other person to be in attendance during all or any of its meetings.

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(5) Without prejudice to the generality of sub-section (1), the Board shall exercise the powers and perform the functions hereinafter specified, namely:—

(a) to hold, control and administer the property, funds and resources of the University and to borrow or raise money for the purposes of the University upon such security as may be required;

(b) to formulate or approve the principles, policies and plans governing the activities and operations of the University so as to ensure that the academic staff enjoys academic freedom in their research and educational work;

(c) to prepare or have prepared and revised from time to time rules and regulations for the efficient and effective operation of the University;

(d) to review and approve the creation of any standing component of the University, such as faculties, and councils and other administrative bodies necessary to assist or improve the working of the University;

(e) to approve the plans of work and annual budget of the University submitted by the Director Finance which shall include the budgets of constituent institutions and colleges;

(f) to require and consider reports submitted by the officers of the University relating to the activities of the University and the execution of the plans of work and to direct the Rector to submit reports relating to any matter specified by the Board;

(g) to create such academic or administrative posts as it may consider necessary for the purposes of the University and to approve appointments recommended by the Selection Board and such of these posts as it may specify, including the posts of deans, directors, professors, associate professors, assistant professors, lecturers and demonstrators;

(h) to approve selection and appointment of all administrative and academic staff of the University made by the person or body authorised to make the appointment;

(i) to fix scales of pay, allowances and honoraria for all the staff, both academic and administrative recommended by the governing bodies of Constituent Units commensurate with their qualifications and experience, in order to attract the best talent from within and outside Pakistan for the University;

(j) to fix the scales of pay, allowances and honoraria of the academic and non-academic employees deployed in the headquarters of the University;

(k) to undertake responsibility for the financial integrity of the University, including responsibility for ensuring effectiveness of its future operations and their continuity and the preservation of the autonomy of the University;

(l) to approve all affiliations and other similar arrangements through which colleges, institutions or individuals may become associated with the University within Pakistan and abroad;

(m) to appoint from amongst its members such Committees or sub-committees as may in the opinion of the Board lead to its more efficient and effective operation; and

(n) to approve the recommendations of governing bodies of constituent units submitted to it for the purpose and to take all such initiatives as it may consider necessary or desirable for the efficient and effective management and functioning of the University.

(6) The Board shall lay down its own rules of procedure.

(7) The Board may delegate all or any of its powers and functions to a committee, sub-committee, the Rector or any other officer.

17. Meetings of the Board etc:— (1) The Board shall meet at least twice during a year for regular or scheduled meetings and may meet at any other time at which a special meeting thereof may be called by the Chairman of the Board.

(2) Not less than ten clear days' notice of a special meeting shall be given to the members of the Board and the agenda of the meeting shall be restricted to the matters specified in the agenda to be annexed to such notice.

(3) The quorum for a meeting of the Board shall not be less than fifty per cent of its members.

18. Executive Committee:—(1) The Executive Committee shall comprise the following, namely:—

(i) the Rector, who shall be the Chairman of the Executive Committee;

(ii) a nominee of the Board of Governors;

(iii) a nominee of the University Grants Commission not below the rank of a B-20 officer;

(iv) a nominee of the Ministry of Education not below the rank of a B-19 officer;

(v) a nominee of the Directorate of Naval Educational Services;

(vi) heads of the Constituent Units whose presence is essential in the light of the agenda; and

(vii) the Registrar who shall act as Secretary of the Committee.

(2) The Executive Committee shall deliberate on various aspects related to the functioning of the University and recommend specific measures to the Board for approval and shall in particular,—

(a) delineate priorities for research;

(b) recommend allocation of training and research funds to the Colleges and Institutes;

(c) guide and direct the Academic Council and the Faculty Board of Studies of each college and institute on all matters relating to academics, including syllabi and duration of various courses;

(d) recommend disciplines for all academic studies in the colleges and institutes and help in creation of necessary infrastructure for the same;

(e) help induct highly competent scientific and technical talent into the faculty of each constituent unit to enhance the quality of education and research;

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(f) prescribe guidelines for proper and efficient conduct of professional examinations at the constituent and affiliated institutions;

(g) recommend such measures which would foster and enhance interaction and collaboration between the University and the existing national and international organizations, institutions and research centres and the industrial base;

(h) recommend apportioning of the national research and development budget for the University;

(i) deliberate on, and propose, affiliation measures with foreign institutions of repute;

(j) decide methods and strategies in order to ensure the most effective scientific and technological programmes;

(k) co-ordinate with relevant Government Ministries, Universities and the University Grants Commission;

(l) propose Statutes to the Board for approval; and

(m) prepare regulations for approval by the Board.

19. Academic Council:— (1) There shall be an Academic Council, headed by the Rector, to lay down academic policies to further the objectives and functions of the University for the maintenance of the excellence of its academic programmes.

(2) Heads of all Constituent Units and teachers of the rank of professor shall be members of the Academic Council in addition to two eminent scholars nominated for a period of two years by the Board. The Director of Examinations and Academic Affairs shall act as Secretary of the Academic Council which shall frame its own rules of business.

(3) The Academic Council shall act as an advisory as well as an implementing body for the decisions of the Executive Committee on all matters relating to the conduct of examinations, revision and updating of courses syllabi, quality of education and duration of all courses including conduct of postgraduate classes in specified disciplines.

(4) The Academic Council shall also help the Rector in evaluating the performance of constituent and affiliated institutions and recommending measures for improvement.

20. Faculty Board of Studies:— (l) The Faculty Board of Studies of each Constituent Unit shall consist of the members appointed by the governing body of the each unit which shall also prescribe the tenure of office of the members.

(2) The Faculty Board of Studies shall—

(i) implement the decisions of the Board, the Executive Committee and the Academic Council on all matters relating to academic standards, examinations and research;

(ii) ensure feedback of the implemented measures on research and academic matters to the Rector; and

(iii) work out and report to the Rector details of funding required for research.

21. Selection Board:—(1) The Selection Board shall be responsible for conducting interviews and organizing tests for appointments determined to be in its purview by the Board including all academic positions.

(2) The Selection Board shall comprise the following, namely:—

(i) the Rector who shall be its Chairman ;

(ii) two subject experts in the subject concerned drawn from a list approved by the Board but not serving in the University or its Constituent Units. In the case of position of Associate Professor and Professor the experts must be those to whom the research documents of candidates have been sent for assessment;

(iii) the whole-time member of the University Grants Commission or his nominee;

(iv) a nominee of the Directorate Naval Educational Services, NHQ, Islamabad;

(v) the senior most teacher in the subject for which the interview is being conducted drawn from the Constituent Unit in which appointment is to be made. In the case of non-academic positions the senior most officer in the area in which appointment is to be made;

(vi) the head of the Constituent Unit where the appointment is to be made; and

(vii) Registrar who shall act as Secretary of the Selection Board.

22. Governing Bodies for Constituent Units:— (1) The University may set up a separate governing body for each Constituent Unit consisting of such persons as it may determine. The Registrar shall be ex-officio member of the Governing body of constituent unit.

(2) The members of the existing bodies shall continue to operate with suitable representation from the University headquarters subject to ratification by the Board in its first meeting and shall consist of suitably qualified persons appointed by the Board of Governors.

(3) The business of the governing bodies shall be regulated by the Board as may be prescribed.

23. Finance and Planning Committee:— There shall be a Finance and Planning Committee which shall—

(a) be responsible to make all financial policies and financial rules for the University;

(b) approve annual budget estimates of Constituent Units and the University;

(c) submit to the Board an annual statement regarding the performance of the constituent units; and

(d) make recommendations to the Board for approval of the audited statement of accounts.

24. Academic and non-academic employees:— The Academic and non-academic employees of the University, including its Constituent Units, shall be selected with a view to achieving its objectives and the basic criteria for their selection shall be the highest standards of competence, integrity and proficiency.

25. Statutes:— (1) Subject to the provisions of this Ordinance, Statutes may be made to regulate or prescribe all or any of the following matters, namely

(a) creation of institutes and faculties;

(b) service, pension and fringe benefits for the University employees (including those in its Constituent Units) and terms and conditions of their service;

(c) conditions for appointment of Professors Emeritus and award of honorary degrees;

(d) efficiency and discipline of the University employees; and

(e) all other matters required to be regulated by Statutes.

(2) Draft Statutes shall be proposed by the Executive Committee for approval by the Board which may approve or refer them back for reconsideration.

(3) No Statute shall be valid until it has been approved by the Board.

(4) Statutes that are already in operation shall be ratified by the Board and shall not be altered to the disadvantage of the employees being governed under statutes, rules and regulations made earlier which shall be deemed to be Statutes, Rules and Regulations made under this Ordinance.

26. Regulations:— (1) Subject to the provisions of this Ordinance and the Statutes, the Committee may make regulations for all or any of the following matters, namely:—

(a) scheme of studies and research, including the duration of courses, number of subjects or papers for examinations;

(b) syllabi and courses of study and research programmes leading to degrees, diplomas or certificates;

(c) methodology for selection and admission of students;

(d) conduct and supervision of examinations, appointment of examiners and scrutiny and tabulation of results;

(e) determination of fees and other charges for admission to various courses;

(f) maintenance of discipline among students and schemes for their welfare;

(g) institution of fellowships, scholarships, prizes and medals, honorarium and other financial assistance to students and research scholars;

(h) conduct of convocations and the manner in which they are to be conducted; and

(i) all other academic matters which are to be or may be prescribed by regulations.

(2) The regulations shall be approved by the Board on the recommendation of the Committee.

(3) No regulation shall be valid until it has been approved by the Board.

27. Rules:— The Executive Committee may make Rules for Implementation of Statutes or Regulations where so required under the Statutes or Regulations or make Rules to regulate any matter relating to the affairs of the University which under this Ordinance are not specifically required to be provided for by the Statutes or the Regulations.

28. University funds, audit and accounts:— (1) The University shall have a fund to which shall be credited all direct donations, trusts, bequests, endowments, grants, proportionate budget from the Government, assistance from international agencies, contributions, shares of fee and income from any other sources and which shall be under the control of the Board.

(2) The Constituent Units shall be financed from the following sources, namely:—

(a) annual budgets from their respective service headquarters or ministries;

(b) proportionate share of fees, including examination fees through the University budget;

(c) any grants from the Government;

(d) any sale of royalties or publications; and

(e) any assistance from the University Fund as decided by the Board.

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(3) Capital and recurring expenditures of the University shall be met from the allocation made by the Board out of the University Fund.

(4) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability for the University, or which may involve an activity not included in its programmes for the time being, shall be accepted without prior approval of the Board.

(5) The accounts of the University shall be maintained in such form and manner as may be determined by the Board and shall be audited each year within six months of the closing of the financial year of the University by the Controller of Naval Accounts audit team or a Chartered Accountant appointed by the Board.

(6) The accounts, together with the report of the auditor thereon, shall be submitted to the Board for approval.

(7) The auditor's report shall certify that the auditor has complied with the standards of audit and certification laid down by the Institute of Chartered Accountants of Pakistan.

GENERAL PROVISION

29. Indemnity and bar of jurisdiction:— (1) No suit, prosecution or other legal proceedings shall lie against any person or authority for anything which is in good faith done under this Ordinance.

(2) No decision taken, or act or thing done, by the Chancellor, the Rector or the Board shall be called in question before any court or other authority.

30. Retirement and reemployment:— An officer, teacher or other employee of the University shall retire from service on attaining the age of sixty years or as provided in the terms of appointment and on retirement may be employed in the manner prescribed by the Board on contract in specially deserving cases.

Explanation.—In this section 'competent authority' means the appointing authority or a person duly authorised by the appointing authority in that behalf, not being a person lower in rank to the officer, teacher or other employee concerned.

31. Pension, insurance, gratuity, provident fund and benevolent fund:— (1) The University shall constitute for the benefit of its officers, teachers and other employees in such manner and subject to such conditions as may be prescribed such pension, insurance, gratuity, provident fund and benevolent fund or other welfare schemes as it may deem fit.

(2) Benefits in the areas referred to above that are already in operation shall continue to remain in force and shall not be altered to the disadvantage of the beneficiaries who shall be given the option to continue to be governed by its provisions or those that are framed under the provisions of this Ordinance.

(3) The provisions of the Provident Fund Act, 1925, (XIX of 1925) where any provident fund is or has been constituted shall apply to such fund as if it were the Government Provident Fund.

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32. Opportunity to show cause:— Except as otherwise provided, no officer, teacher or other employee of the University holding a permanent post shall be reduced in rank, or removed or compulsorily retired from service, unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

33. Appeal to, and review by, the Board:— (1) Where an order is passed punishing any officer (other than the Rector), teacher or other employee of the University or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, where the order is passed by the Rector or any other officer or teacher of the University, have the right to appeal to the Board against the order, and, where the order is made by the Board have the right to apply to that authority for review of the said order.

(2) The appeal or application for review shall be submitted to the Registrar who shall place it before the Board with the views of the Rector.

(3) No order on an appeal or application for review shall be passed without affording to the appellant or applicant, as the case may be, an opportunity of being heard.

34. Commencement of term of office of members of authorities:— The term of office of a newly appointed or nominated person on a body or authority shall be as fixed under this Ordinance and shall commence from such date as may be prescribed.

35. Filling of casual vacancies in authorities:— Any casual vacancy among the appointed or nominated member of any authority shall be filled, as soon as conveniently may be, by the person or the body who appointed or nominated the member whose place has become vacant and the person appointed or nominated to the vacancy shall be a member of such authority for the residue of the term for which the person whose place he fills would have been a member.

36. Filling of vacancies in authorities in certain circumstances:— Where a vacancy in the membership of an authority other than the Board cannot be filled because—

(a) the office of which the holder, was a member of the authority ex-officio having ceased to exist;

(b) the organization,, institution or other body, other than the University having either ceased to exist or to function; or

(c) the occurrence of other circumstances in which it has become impracticable to fill the vacancy, the vacancy shall be filled in such manner as the Board may direct; and

(d) vacancies in the membership of the Board of Governors that may have been caused for reasons mentioned in the foregoing sub-clauses of this section shall be filled in the manner as the Chancellor may determine.

37. Disputes about membership of authorities etc:— A person nominated or appointed to any authority shall cease to be a member of such authority as soon as he ceases to hold the position by virtue of which he was nominated or appointed.

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38. Proceedings of authorities not invalidated by vacancies:— No act, proceedings, resolution or decision of any authority shall be invalid by reason only of any vacancy in, or any defect in the constitution of, or in the appointment or nomination of any member of the authority.

39. Interpretation:— Any question that may arise as to the interpretation of any of the provisions of the Ordinance shall be placed before the Board whose decision thereon will be final.

40. Removal of difficulties: if any difficulty arises in giving effect to any provision of this Ordinance, the Board may make such order or direction, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing such difficulty.

THE BOARD OF INVESTMENT ORDINANCE, 2001

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THE BOARD OF INVESTMENT ORDINANCE, 2001

ORDINANCE No. XV OF 2001

[22nd March, 2001]

An Ordinance to provide for the establishment of the Board of Investment as an apex agency to promote, encourage and facilitate both local and foreign investment

WHEREAS it is expedient to provide for the establishment of Board of Investment to promote, encourage and facilitate local and foreign investment, and for matters connected therewith and ancillary thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. l of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. l of 1999, read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

CHAPTER.— I

PRELIMINARY

1. Short title, extent and commencement.— (1) This Ordinance may be called the Board of Investment Ordinance, 2001.

(2) It extends to the whole of Pakistan.

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(3) It shall come into force at once.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" or "BOI" means the Board of Investment established under section 3;

(b) "Chairman" means the Chairman of the Board;

(c) "CCOI" means the Cabinet Committee on Investment constituted by Notification No.38(Cab)/97, dated 13th September, 1997;

(d) "Investment Policy" means the investment policy, the CCOI may, from time to time, approve;

(e) "member" means the member of the Board;

(f) "National Industrial Zone" means an industrial estate, an export processing zone, a free industrial zone and export oriented unit or a free trade zone, notified as such by the Federal Government;

(g) "President" means President of the Board;

(h) "Provincial Investment Committee" means any Provincial Investment Committee established under section 16;

(i) "regulations" means regulations made under this Ordinance;

(j) "rules" mean rules made under this Ordinance;

(k) "Secretary" means the Secretary of the BOI; and

(l) "Vice-President" means the Vice-President of the Board.

CHAPTER.– II

ESTABLISHMENT OF THE BOARD OF INVESTMENT

3. Establishment of the Board of Investment.– (1) There is hereby established a Board to be called the Board of Investment (BOI) for carrying out the purposes of this Ordinance.

(2) The Board shall consist of–

(a) the Chief Executive of the Islamic Republic of Pakistan who shall be its President;

(b) Federal Minister in Charge of the Division, to which the business relating to the BOI is allocated, who shall be its Vice-President;

(c) Chairman of the BOI; and

(d) not less than seven and not more than twenty-five *ex-officio* members and non-official members, provided that not less than three non-official members shall be appointed from private sector from amongst persons of renowned integrity, expertise, experience and knowledge including, *inter alia*, academia, science, agriculture, banking, business, commerce, economic, engineering, finance, industry, investment, law, marketing, mathematics, statistics and technology.

(3) The *ex officio* and the non-official members shall be appointed by the Federal Government and the terms and conditions of non-official members shall be such as the Federal Government may determine by notification in the official gazette.

(4) An *ex officio* member shall hold office as member till such time he holds the office by virtue of which he is a member and upon his transfer, retirement, resignation, or removal from office, the person appointed in such person's place shall be the member.

(5) The headquarters of the Board shall be at Islamabad and it may, with the approval of the President, establish its regional offices or sub-offices within Pakistan and abroad.

4. Chairman.— The Chairman shall—

(a) be appointed by the Federal Government on such terms and conditions as it may determine by notification in the official Gazette; and

(b) exercise such powers and perform such functions as may be assigned to him by the Board.

5. Secretary.— (l) The Federal Government may, either from the Federal Government or from the private sector, appoint a Secretary who shall attend meetings of the Board and perform such functions as the Chairman may assign.

(2) The Secretary shall be the principal staff officer and principal accounting officer of the BOI and shall have the status of a Secretary to the Federal Government.

6. Non-official members.— (1) The members of the Board who are not appointed *ex-officio* by the Federal Government hereinafter referred to as non-official members, shall hold office for a term of two years and shall be eligible for re-appointment.

(2) A non-official member may, by writing under his hand addressed to the Federal Government, resign his office.

(3) A casual vacancy of any non-official member shall be filled in by appointment of another member for the residue of the term of his predecessor.

(4) A non-official member shall hold office during the pleasure of the Federal Government, and may be removed from office if such member has, in the opinion of the Federal Government, so abused the position as to render his continuance in office detrimental to public interest:

Provided that no member shall be removed from office until he has been given a reasonable opportunity of being heard.

7. Meetings of the Board.— (1) Except as hereinafter provided, the Board shall regulate the procedure for its own meetings.

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(2) The Board shall meet at least once every three months.

(3) Meetings of the Board shall be presided—

(a) by the President;

(b) in the absence of the President, by the Vice-President;

(c) in the absence of both the President and the Vice-President by the Chairman, or

(d) in the absence of the President, the Vice-President and the Chairman, by a member nominated by the President.

(4) The quorum for meeting shall be one-third of the total membership of the Board.

(5) All questions in the meetings of the Board shall be decided by a majority of the members present and voting; and in case of equality of votes, the person presiding over the meeting

shall have a second or casting vote.

(6) Any urgent business of the Board may be transacted by circulation among all its members and any proposal so circulated and approved by a majority of the members shall be as effective and binding as if such proposal had been passed at a regular meeting of the Board.

8. Validity of proceedings.— No act, proceedings, decision or order of the Board or a Committee thereof shall be invalid by reason only of existence of any vacancy or defect in the constitutional of the Board or, as the case may be, a Committee of the Board.

9. Functions of BOI.— (1) Notwithstanding anything contained in any law the BOI shall—

(a) from time to time, review the national investment policy and laws, and propose any amendments, modifications and relaxations therein it may deem appropriate to the Cabinet for approval;

(b) initiate and consider sectoral investment proposals and categories of investment which may require specific treatment and propose such sectoral incentives or conditions or criteria requiring rationalization of existing policies; and

(c) be associated by the Federal Government in the formulation of all policies that may have an impact on investment in Pakistan, including *inter alia*, economic, fiscal and trade policies;

(d) identify and promote the investment opportunities in different sectors and their promotion in Pakistan and abroad;

(e) co-ordinate with concerned Ministries, Departments, agencies and Provincial Governments with regard to policies and their implementation having impact on investment;

(f) provide one window facilities for provision of all services and utilities to investors by concerned Federal and Provincial Agencies;

(g) deal with matters relating to National Industrial Zones as may be referred to it by the Federal Government;

(h) monitor the progress of investment programmes and projects at all stages and ensure, through inter-agency and inter-provincial coordination, prompt implementation and operation;

(i) review investment promotion plans, formulate institutional arrangements, make transparent and simplified procedures and guidelines for investment promotion;

(j) appraise, evaluate and process all investment proposals and projects received from the investors for submission to the Cabinet or a Committee of the Cabinet or the Board;

(k) appoint commissions, expert bodies and consultants to study various aspects of attracting investment in all sectors and improving the investment climate, procedures and other related matters;

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(l) maintain a data-base of investment projects in the private sector that involve local and foreign capital;

(m) negotiate and finalize agreements for protection and promotion of investment with other countries and represent Pakistan on regional and international organizations pertinent to investment promotion;

(n) liaise with private sector trade bodies and associations for their active participation in promotion of investment;

(o) collect, compile, analyze, maintain and distribute investment-related information and, from time to time publish periodical analytical reports in investment trends;

(p) promote a congenial environment for investment by ensuring de-regulation and other measures to remove obstacles to investment;

(q) develop a marketing, image-building and public relations strategy to generate interest in the potential and opportunities of the Pakistani market, and publicize its activities;

(r) communicate all major important administrative, financial and policy matters to the management of business undertakings falling within the purview of the investment policy approved by the Government;

(s) establish Overseas Commissions consisting of prominent overseas Pakistani entrepreneurs and other individuals to act as investment promotion counsellors purely in an honorary capacity;

(t) consider individual investment proposals and categories of investment which require special treatment and recommend, where appropriate, additional incentives or relaxation of conditions or criteria required under existing policies;

(u) from time to time, determine and review the scale of fees and charges for services provided to the investors by it; and

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(v) any other function assigned by the Cabinet and the CCOI.

10. Directive of the Federal Government.— For furthering the functions of the BOI, the Federal Government may, as arid when it considers necessary, issue directives to the BOI on matters of policy, and such directives shall be binding on the BOI. If a question arises whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

[1][CHAPTER.— IIA

SPECIAL INVESTMENT FACILITATION COUNCIL (SIFC)

10A. Establishment of a Special Investment Facilitation Council.— (1) The Federal Government shall, by notification in the official gazette, establish a Special Investment Facilitation Council (SIFC), for carrying out the purposes envisioned under this Chapter of the Ordinance.

[1]Ins. by Act XLI of 2023, s.2.

(2) The SIFC shall consist of a Secretary, who shall also serve as the Principal Accounting Officer, and such members, as may be notified by the Federal Government, from time to time.

(3) The President of the SIFC shall be the Prime Minister of Pakistan.

(4) The President of the SIFC may co-opt any person as a member, or may require attendance of any person by special invitation, as deemed appropriate.

10B. Scope of work of the Special Investment Facilitation Council.– (1) The SIFC shall facilitate investment and privatization in areas, including, but not limited to, Defence, agriculture, infrastructure development, strategic initiatives, logistics, minerals, information technology, telecommunication and energy (hereinafter referred to as the 'Relevant Fields') , and shall take all necessary measures in order to establish, facilitate, encourage and promote opportunities for investment, as well as, *inter alia,* business in and for Pakistan.

(2) The Federal Government may notify any other area, sector, industry or projects as Relevant Field through a notification in the official Gazette to be processed under this Chapter.

(3) The Provincial Government or an entity authorized by the said Government in this behalf may also refer any sector, industry or project to SIFC to be processed under this Chapter.

10C. Functions of the Special Investment Facilitation Council.– (1) Without prejudice to the generality of section 10B, the SIFC shall, *inter alia*.–

(a) act as Single Window for multi-domain cooperation in Relevant Fields with GCC countries, in particular, and other countries in general, for facilitation of investment and development of an enabling policy environment;

(b) recommend approvals, execute commercial transactions, and/or enter into arrangements and agreements, directly or indirectly, with local and foreign investors;

(c) enter into commercial engagements and transact with governmental as well as corporate entities, for the purposes envisioned under this Chapter of the Ordinance;

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(d) prepare long-term road-map for growth, development and investment in the 'Relevant Fields', while capitalizing on fast track initiatives;

(e) enhance awareness of Pakistan's latent potential in the 'Relevant Fields';

(f) improve ease of doing business by, *inter alia*, facilitating timely decision making, avoiding duplication of effort, fast-tracking investment and projects implementations, etc.;

(g) monitor the progress of investment programs projects at all stages and ensure, through inter-agency and inter-provincial coordination, prompt implementation and operations thereof;

(h) review investment promotion plans, formulate institutional arrangements, make transparent and simplified procedures and guidelines for investment promotion;

(i) appraise, evaluate and process all investment proposals and projects received from the investors;

(j) appoint commissions, expert bodies and consultants to study various aspects of attracting investment in all sectors;

(k) promote an enabling environment for investment by encouraging deregulation and other measures to remove unnecessary obstacles in the process;

(l) consider individual investment proposals as well as categories of investments that require special treatment, and recommend, where appropriate, additional incentives or relaxation in the regulatory and policy framework; and

(m) perform any other function assigned by the Federal Government.

(2) In order to carry out its functions, the SIFC may adopt any procedure or process, with the approval of the Federal Government.

10D. Formation of Committees.— (1) For implementation of provision of this Chapter, SIFC may constitute executive and implementation committees.

(2) The committees shall perform such functions as may be assigned to them by SIFC, in addition to facilitation and supervision of projects, transactions, arrangements and agreements made or carried out under this Chapter of the Ordinance.

10E. Power to issue directions.— (1) For furthering the objectives of this Chapter, the SIFC may, as and when it considers necessary, issue recommendation, advice of directions to the respective regulatory bodies, authorities public sector entities, divisions and departments of the Federal Government, on matters within their respective domains, which shall, to the extent not inconsistent with applicable law be binding.

(2) SIFC shall have powers to summon any regulatory bodies, authorities, public sector entities, divisions and departments of the Federal Government, or a representative thereof, in case requisite regulatory licenses, certificates and/or any other legal permits and permissions required to commence, foster or grow investment operations are delayed unnecessarily which may hamper investor (s) sentiment and inflow of investment.

(3) Powers specified in sub-sections (1) and (2) shall *mutatis mutandis* be exercisable by SIFC in respect of projects referred to the SIFC by the Provincial Government.

10F. Power to relax or exempt from regulatory compliance.— The Federal Government, upon recommendation of the SIFC, by notification in the official Gazette and subject to such conditions, limitations or restriction's if any as may be specified therein, may relax or exempt from a regulatory requirement or operation necessitated by any law for the time being in force for implementing projects, transactions, arrangements and agreements under this Chapter:

Provided that the relaxation or exemption, granted under this section, shall be granted in accordance with the provisions of the respective laws.

10G. Immunity.— (1) No suit, prosecutions or any other legal proceedings or action, in damages or otherwise shall lie against SIFC or any of its members or consultants for any act done, procedural lapse sufferd, or omission made, in exercise or performance of any functions, power or duty

conferred or imposed by or under this Chapter.

(2) Notwithstanding anything contained in any other law for the time being inforce, as investigating agency, anti-graft agency, law enforcement agency or a court shall not inquire into or initiate investigation in relation to, *inter alia*, any commercial transaction, arrangement or agreement made under this chapter, unless there exists material evidence of mala fides or bad faith on part of any person involved in the said commercial transaction, arrangement or agreement.

(3) No person shall be liable in his personal capacity for any action taken in his official capacity.

(4) Any procedural irregularity or lapse shall not affect, vitiate, set-aside, annul or rescind, *inter alia*, any transaction, arrangement or agreement under this Chapter.

10H. Overriding effect.— The provisions of this Chapter shall have effect notwithstanding anything contrary contained in any other law or instrument having the force of law for time being in force and in the event of any inconsistency between the provisions of this Chapter and any other law whether enacted prior or subsequent to the commencement of the Board of Investment (Amendment) Act, 2023, the provisions of this Chapter shall prevail.

10I. Power to make rules.— The SIFC may with prior approval of the Federal Government and by notification in the official Gazette, make rules for carrying out the purposes of this Chapter.

10J. Removal of difficulties.— Where any difficulty arises in giving effect to any provision of this Chapter, the Federal Government may by notification in the official Gazette, make an order for the removal of the difficulty.]

CHAPTER.— III

FINANCE AND ACCOUNTS

11. Grants.— The Federal Government may, from time to time, place annual grants at the disposal of the BOI for the smooth discharge of its affairs.

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12. Fund.— (1) There shall be constituted a fund to be called the BOI Fund to which shall be credited all sums received by the BOI and out of which shall be defrayed all its expenditure.

(2) The Fund shall consist of—

(a) grants made by the Federal Government;

(b) foreign aid or loans obtained or raised by the BOI with the special or general sanction of the Federal Government; and

(c) all other sums including fees and charges receivable by the BOI.

13. Budget and accounts.— (1) In respect of each financial year, the BOI shall submit for approval of the Federal Government, by such date and in such form as may be specified by the Federal Government, a statement showing the estimated receipts and expenditure and the sums which are likely to be required from the Federal Government during the next financial year.

(2) The BOI may open accounts with the State Bank of Pakistan or with any scheduled

bank in Pakistan.

(3) The accounts of the BOI shall be maintained in such form and manner as the Federal Government may, in consultation with the Auditor-General of Pakistan, determine.

(4) The accounts of the BOI shall be audited every year by the office of the Auditor-General of Pakistan.

(5) The accounts of the BOI shall be expended for the purposes of—

(a) paying any expenditure lawfully incurred by it including the remuneration and allowances of the Chairman, the members, employees, advisers and consultants, accountants, lawyers, valuers, and other experts appointed and employed by its provident fund contributions, superannuation allowances or gratuities, legal fees and costs, and other fees and costs, if any;

(b) paying for expenditure incurred on—

(i) marketing and publicity; and

(ii) seminars and conferences;

(c) purchasing or hiring equipment, machinery and any other materials, acquiring land, erecting buildings and conducting other work and undertakings in the performance of its functions or the exercise of its powers under this Ordinance; and

(d) paying any other expenses, costs or expenditure properly incurred or accepted by the BOI in the performance of its functions or the exercise of its powers under this Ordinance.

14. Annual Report.— (1) The BOI shall prepare and submit to the Federal Government, as soon as possible after the end of each financial year but not later than the last day of December of the next year, a report on the conduct of its affairs for that year.

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(2) The report shall include—

(a) an audited statement of income and expenditure;

(b) an audited balance sheet;

(c) a short financial statement of the preceding financial year;

(d) activities of the BOI during the preceding financial year;

(e) an outline of the investment programme for the year ahead; and

(f) any other matter which the Federal Government may direct or the BOI may consider appropriate.

CHAPTER.– IV

PROVINCIAL INVESTMENT COMMITTEES

15. Provincial Investment Committees.– (1) The Provincial Government shall, by Notification in the official Gazette, establish a Committee to be called the Provincial Investment Committee.

(2) The Provincial Investment Committee shall consist of such members as the Provincial Government may appoint, by Notification in the Official Gazette and the Chairman and the Secretary shall be its *ex-officio* members.

(3) Subject to any directions given by the BOI, the Provincial Investment Committee shall perform the following functions, namely:–

(a) encourage and promote investment, including joint ventures in the Province, in collaboration with the BOI;

(b) assist the BOI to discharge its functions;

(c) maintain a continuing working relationship and coordination with the BOI to facilitate and promote local and foreign investment in the Province;

(d) help and facilitate effective implementation of investment policies of the Federal Government including the speedy development of National Industrial Zones;

(e) identify investment opportunities and priority areas for investment in the Province, and assist the BOI in marketing those opportunities to prospective investors; and

(f) ensure infrastructure facilities such as roads, water and drainage in the existing and future industrial estates and National Industrial Zones in the Province.

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16. Delegation of powers.– The BOI may by general or special order, delegate to the Chairman, the Secretary or any officer of the BOI, any of its powers or functions subject to such conditions as it may deem fit to impose.

17. Recruitment etc.– (1) The BOI may appoint such officers, advisers, consultants and employees as it considers necessary for the efficient performance of its functions on such terms and conditions as may be prescribed under the rules made with the prior approval of the Federal Government:

Provided that all appointments shall be made in accordance with the prescribed educational, technical or professional qualifications and experience.

(2) The age of superannuation shall be sixty years for the employees of the BOI.

18. Members, officers, staff, etc. deemed to be public servants.— Subject to other provisions of this Ordinance, every officer and employee of the BOI shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

19. Assistance from other agencies.— (1) The BOI may require any information from all sources including private sector organizations and agencies, any Ministry, Division Department, statutory body, corporation, agency of the Federal Government or a Provincial Government which, in its opinion, concerns any matter relating to the BOI, and the requisite information shall be provided to the BOI within a fortnight of the receipt of such request.

(2) The BOI may request any Ministry, Division Department, statutory body, corporation, agency of the Federal Government or a Provincial Government, to review such proposals, policies, directions, guidelines, notifications, circulars, orders, regulations and rules, which, in its opinion, concern any matter relating to the BOI, and the concerned Ministry, Division, Department, statutory body, corporation, agency of the Federal Government or a Provincial Government shall give its decision in writing based on sound reasons within a fortnight of such request.

(3) Subject to subsection (4), if, upon receiving the decision under subsection (2), the BOI is of opinion that the decision adversely affects any policy relating to its working, it may request the concerned Ministry, Division, Department, statutory body, corporation, agency of the Federal Government or a Provincial Government to review such decision in consultation with it or its authorized officer.

(4) In case the BOI is not satisfied with the revised decision of the Ministry, Division, Department, statutory body, corporation, agency of the Federal Government or a Provincial Government under subsections (2) and (3), the unresolved issue shall be placed before the CCOI or the BOI wherein the representative from the concerned Ministry, Division, Department, statutory body, corporation etc., would be invited by special invitation to assist the CCOI or the BOI to arrive at a final decision.

20. Indemnity.— No suit, prosecution, or other legal proceeding shall lie against the BOI, the Chairman, the Secretary, the members, the employees and consultants of the BOI for anything done in good faith or intended to be done under this Ordinance or any rule or regulation made thereunder.

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21. Transfer of employees and assets.— (1) Notwithstanding anything contained in any law, contract or agreement or in the terms and conditions of service, every person, other than employees of other Departments and members of regularly constituted Service Groups posted on deputation or employed in the Board of Investment and serving in or under it immediately before the commencement of this Ordinance including employees of the BOI on deputation to other organizations, shall cease to be civil servants and stand transferred to and become employees of the BOI on such terms and conditions as may be prescribed by rules to be made under section 23:

Provided the terms or conditions of the persons so transferred shall not be less favourable than those applicable to them before the commencement of this Ordinance.

(2) Notwithstanding anything contained in any other law for the time being in force, no person who has been transferred to the BOI under subsection (1) shall be entitled to any compensation on account of such transfer.

(3) All funds, properties, rights and interests of whatsoever kind issued, used, enjoyed, possessed, owned or vested in the BOI, in existence before the commencement of this Ordinance, and all liabilities legally subsisting against the said Board shall vest in and become the liabilities of the BOI established under this Ordinance.

(4) All suits, other legal proceedings instituted by or against the BOI in existence immediately before the commencement of this Ordinance and all orders issued, instructions executed, measures taken, etc., in relation thereto, shall be deemed to pertain to the BOI established under this Ordinance, and may proceed and be dealt with accordingly.

(5) All debts and liabilities incurred, contracts entered into or rights acquired and all matters and all things, engaged to be done, by with or for the BOI, in existence before the commencement of this Ordinance, shall be deemed to have been incurred, entered into, acquired or engaged to be done by, with or for the BOI established under this Ordinance.

22. Committees.— To assist it in the performance of its functions, the BOI may constitute such committees consisting of such persons as it may deem fit.

23. Power to make rules.— (1) The BOI may, with the prior approval of the Federal Government, make rules for carrying out the purposes of this Ordinance and to regulate appointments and conditions of service of officers and employees in the service of the BOI; and

(2) Until the rules referred to in subsection (1) are made, the officers and employees of the BOI shall continue to be governed, in respect of the matters terms and conditions of service by rules applicable to them immediately before the commencement of this Ordinance.

24. Power to make regulations.— The BOI may, by Notification in the Official Gazette, make regulations, not inconsistent with the provisions of this Ordinance or the rules, for carrying out the purposes under this Ordinance.

25. Removal of difficulties.— If any difficulty arises in giving effect to the provisions of this Ordinance, the Federal Government may, within two years of the commencement of this Ordinance, make such order, not inconsistent with the express provisions of this Ordinance, as may appear to it to be necessary or expedient for the purpose of removing such difficulty.

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THE CANTONMENTS ORDINANCE, 2002

ORDINANCE NO. CXXXVII OF 2002

[3rd December, 2002]

An Ordinance to consolidate and amend the law relating to cantonments and to reconstruct and regulate local-self government in the cantonment areas

WHEREAS it is expedient to consolidate and amend the law relating to cantonments and to reconstruct and regulate local self-government in the cantonment areas and to provide for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:-

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.— (1) This Ordinance may be called the Cantonments Ordinance, 2002.

(2) It extends to the whole of Pakistan.

(3) The Federal Government may, by notification in the official Gazette, direct that this Ordinance, or any provisions thereof which it may specify, shall come into force on such *date as it may appoint in this behalf.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(i) "Armed forces" means forces governed by the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Navy Ordinance, 1961 (XXXV of 1961) or the Pakistan Air Force Act, 1953 (VI of 1953);

(ii) "Assessing Authority" means the Cantonment Administrative Officer or a Cantonment Officer designated by him as such;

(iii) "Assistant Health Officer" means a medical officer appointed by the Board to be the Assistant Health Officer for the cantonment;

*Clauses (XIII) and (XLIV) of s. 2 and s. 10, 11, 17, 57 to 62, 64, 65, 67 to 88 shall come into force .w.e.f., 1-7-2003 vide SRO No. 686(I) 103, date 03-07-2003.

(iv) “Board” means Cantonment Board constituted under this Ordinance;

(v) “body corporate” means a body having perpetual succession and a common seal with power to acquire and hold moveable and immoveable property, and transfer any property held by it, and enter into any contract and may sue and be sued in its name;

(vi) “budget” means an official statement of estimated receipts and expenditure for a financialyear;

(vii) “building" includes any shop, house, hut, outhouse, shed, stable or enclosure built of any material and used for any purpose, and also includes wall, well, veranda, platform, plinth,ramp and steps;

(viii) “building line” means a line beyond which the outer face or any part of external wall of a building does not project in the direction of any street, existing or proposed;

(ix) “bye-laws” means the bye-laws made under this Ordinance;

(x) “cantonment” means a cantonment a declared as such under the Cantonments Act, 1924 (II of 1924), or under this Ordinance;

(xi) “Cantonment Administrator” means the Officer Commanding the station as head of the Cantonment Administration;

(xii) “Cantonment Administration” includes the Cantonment Administrator and officials and employees of the Cantonment Administration;

(xiii) “Cantonment Administrative Officer” means an officer appointed by the Government toassist the Cantonment Administrator in matters of Cantonment Administration;

(xiv) “Cantonment Fund” means fund of a Cantonment Administration raised from its own local or other sources;

(xv) “Competent Authority” means the Chief of the Army Staff or any other officer appointedby the Government to be Competent Authority in respect of one or more cantonments including the cantonments where more than one armed forces are stationed;

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(xvi) “Corps Commander” means the Commander of Corps area into which Pakistan for armypurposes, is for the time being divided and for naval and airforce cantonments means an officer of equivalent command;

(xvii) “Council” means a Union Council constituted under this Ordinance;

(xviii) "dairy" includes any farm, cattle-shed, milk store, milkshop or other place where milk is kept for purposes of sale or is manufactured for sale into butter, ghee, cheese, or curds, and in relation to a dairy-man who does not occupy any premises for the sale of milk, includes any place where he keeps the vessels used by him for the storage or sale of milk;

(xix) "dairy-man" includes the keeper of a cow, buffalo, goat or other animal, the milk of which is offered or intended to be offered for sale for human consumption, or any purveyor of milk and any occupier of dairy;

(xx) "Director" means Director Military Lands and Cantonments and person appointed by the Federal Government from the officers of Military Lands and Cantonments Group for the purpose of this Ordinance to assist and advise the Services Headquarters, Corps Commanders of Pakistan Army and officers of equivalent rank or appointment for Naval and Air Force Cantonments who will act as a coordinator between three Service Headquarters and between Services Headquarters and Federal Government will act on behalf of Government regarding service matters, disciplinary cases and inquiries of officers of Military Lands and Cantonments Group and for such other matters as it may be decide and exercise such powers as are delegated by the Director General Military Lands and Cantonments;

(xxi) "Director-General" means Director-General Military Lands and Cantonments Department; an attached department in the Ministry of Defence who will be Head of the Local Government in Cantonments and exercise such other powers as may be delegated by the Federal Government;

(xxii) "disaster" includes famine, flood, cyclone, fire, earthquake, drought, and damages caused by force majeure;

(xxiii) "drain" includes a sewer, a house drain or a drain of any other description, used for carrying sullage or rain water;

(xxiv) "elector" means a person whose name appears on the electoral rolls prepared under section 64;

(xxv) "Garrison Commander" means a Corps Commander or a Division Commander, or any other officer appointed as such by the Competent Authority and in case of more than one service cantonment the Garrison Commander appointed by the Federal Government;

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(xxvi) "Government" means the Federal Government;

(xxvii) "Health Officer" means the senior executive medical officer in military employment and in on duty in a cantonment;

(xxviii) "infectious or contagious disease" means cholera, leprosy, enteric fever, smallpox, tuberculosis, diarrhoea, plague, influenza, venereal disease and any other epidemic, endemic or infectious disease, which the Government, may, by notification in the official Gazette declare to be an infectious or contagious disease for purposes of this Ordinance;

(xxix) "land" includes vacant land or on which any structure has been raised or is being raisedor is, covered with water or is under cultivation or is fallow or is barren and, in relation to a town improvement scheme includes land as defined in clause (a) of section 3 of the Land Acquisition Act 1894 (1 of 1894);

(xxx) "local area" means an area specified in section 10;

(xxxi) "local governments" in relation to a cantonment as bodies corporate, includes—

(a) a Cantonment Board and Cantonment Administration; and

(b) a Union Council and a Union Administration.

(xxxii) "Maintenance Engineer" means the Public Works Officer of that grade, or the officer of the Military Engineer Services of the corresponding grade, having charge of the military works in a cantonment or, where more than one officer has charge of the military works in a cantonment, such one of those officers as the Officer Commanding the station may designate in this behalf, and includes the officer of whatever grade in immediate executive engineering charge of a cantonment;

(xxxiii) "market" includes any place where persons assemble for the purpose of selling meat, fruit, vegetables, livestock or any other article of food or any place notified as market under this Ordinance or any other law for the time being in force;

(xxxiv) "member" means an elected or a nominated member of a Union Council, or the Board, as the case may be;

(xxxv) "Military Estate Officer" means the officer appointed by the Federal Government to perform the duties of the Military Estate Officer under this Ordinance;

(xxxvi) "*muaziaat or dehs*" means revenue estates declared as such under the Local Revenue Act, 1967 (W.P. Act XVII of 1967);

(xxxvii) "municipal offences" means the offences specified in the Third Schedule;

(xxxviii) "municipal services" include water supply, sanitation, conservancy; removal and disposal of sullage, refuse, garbage, sewer or storm water, solid or liquid waste; drainage,and public toilets; express ways, bridges, flyovers, public roads, streets, foot paths, trafficsignals, pavements and lighting thereof, public parks, gardens, arboriculture, landscaping, bill boards, hoardings, fire fighting, land use control, zoning, master planning, classification, declassification or reclassification of commercial or residential areas, markets, housing, urban infrastructure, environment and construction, maintenance and development thereof and enforcement of any law, rule or bye-law relating thereto;

(xxxix) "Naib Nazim" means, Naib Union Nazim;

(xl) "Nazim" means Union Nazim;

(xli) "nuisance" includes any act, place or thing which causes or is likely to cause injury, danger, annoyance or offence to the sense of sight, smell, hearing or which disturbs rest or sleep or which is or may be dangerous to life, injurious to health or property;

(xlii) "occupier" includes an owner in occupation of, or otherwise using his own land or building;

(xliii) "Officer Commanding the station" means the armed forces officer nominated by the Competent Authority to be the Officer Commanding the station for purposes of this Ordinance;

(xliv) "owner" includes any person who is receiving or is entitled to receive the rent of any building or land whether on his own account or on behalf of himself and others or an agent or trustee, or who would so receive the rent or to be entitled to receive it if the building or land were let to a tenant;

(xlv) "party wall" means a wall forming part of a building and used or constructed to be used for the support or separation of adjoining buildings belonging to different owners, or constructed or adapted to be occupied by different persons;

(xlvi) "peasant" means a person who is landless farm worker or one who during the period offive years preceding the year in which election is held, has been the owner of not more than five acres of land and depends directly on it for subsistence;

(xlvii) "prescribed" means prescribed by rules made under this Ordinance;

(xlviii) "President" means President of the Board;

(xlix) "public place" means any building, premise or place to which the public have access;

(l) "rent" means whatever is lawfully payable in money or kind by a tenant or lessee on account of the occupation of any building or land or use of any machinery, equipment or vehicle;

(li) "resident" means a person deemed to reside in a cantonment if he maintains therein a house or a portion of the house which is at all times available for occupation by himself or his family even though he may himself reside elsewhere; provided that he has not abandoned all intentions of again occupying such house either by himself or his family;

(lii) "Schedule" means a schedule to this Ordinance;

(liii) "slaughter house" means any place ordinarily used for the slaughter of animals for the purpose of selling the flesh thereof for human consumption;

(liv) "street" includes any way, road lane, square, court, alley or passage in a cantonment whether a thoroughfare or not and whether built upon or not, over which the public havea right of way and also the road way or foot way;

(lv) "street line" means a line dividing the land and forming part of a street from adjoining land;

(lvi) "tax" for purposes of imposition and recovery includes taxes, toll or other impost leviable under this Ordinance;

(lvii) "Union" means a local area notified as such under section 11;

(lviii) "Union Administration" includes the Union Nazim, Union Naib Nazim, Union Secretaries and employees of the Union;

(lix) "Vice-President" means the Vice-President of the Board;

(lx) "water reservoir" includes a spring, well, tube well, pond, tank, water course, culvert and any channel used for supplying water other than canal, river, lake or stream;

(lxi) "work" also includes a survey whether incidental to any other work or not ; and

(lxii) "worker" means a person directly engaged in work or is dependent on personal labour for subsistence and includes a worker as defined in the Industrial Relations Ordinance, 2002 (XCI of 2002).

CHAPTER II

DECLARATION OF CANTONMENTS AND DELIMITATION OF LOCAL AREAS

3. Definition of cantonments.— (1) The Government may, by notification in the official Gazette, declare any place or places in which any part of the armed forces of Pakistan is quartered or where defence installations or defence production units are located or which, being in the vicinity of any such place or places, is or are required for the service of such forces to be a cantonment for purposes of this Ordinance and of all other enactments for the time being in force, and may, by a like notification, declare that any cantonment shall cease to be a cantonment:

Provided that any Cantonment declared or notified under any law for the time being in force immediately before the commencement of this Ordinance shall continue to retain such status and shall be deemed to have been notified as such under this Ordinance.

(2) The Government may, by a like notification, define the limits of any cantonment for the aforesaid purposes.

(3) When any place is declared a cantonment for the first time, the Government may, until a localgovernment is constituted in accordance with the provisions of this Ordinance, by order make any provision which appears necessary to it either for the administration of the cantonment or for the constitution of the local government.

(4) The Government may, by notification in the official Gazette, direct that in any place declared a cantonment under sub-section (1) the provisions of any enactment relating to local government other than this Ordinance shall have effect only to such extent or subject to such modifications, or that any authority constituted under any such enactment shall exercise authority only to such extent, as may be specified in the notification.

4. Alteration of limits of cantonments.— (1) The Government may, by notification in the official Gazette, declare its intention to include within a cantonment any local area outside cantonment situated in the vicinity thereof or to exclude from a cantonment any local area comprised therein.

(2) The Government may, by notification in the official Gazette, create a new cantonment by bifurcating any existing cantonment.

(3) Any inhabitant of a cantonment or local area in respect of which a notification has been published under sub-section (1) may, within six weeks from the date of the notification, submit in writing to the Government through the Competent Authority an objection to the notification, and the Government shall take such objection into consideration.

(4) On the expiry of six weeks from the date of the notification, the Government may, after considering the objections, if any, which have been submitted under sub-section (2), by notification in the official Gazette, include the local area in respect of which the notification was published under sub-section (1), or any part thereof, in the cantonment or, as the case may be, exclude such area or any part thereof from the cantonment.

5. Effect of including area in cantonment.— (1) When, by a notification under section 4, any local area outside cantonment is included in a cantonment, such area shall thereupon become subject to this Ordinance and to all other enactments for the time being in force throughout the cantonment and to all notifications, rules, bye-laws, orders and directions issued or made thereunder, on a date notified by the Government.

(2) When by a notification under section 4, any area as mentioned in sub-section (1) is included in a cantonment, the local fund or portion of local fund or other property of the concerned local government shall vest in the Cantonment Administration and the liabilities of the concerned local government shall also be transferred to the Cantonment Administration.

6. Disposal of cantonment fund when area ceases to be a cantonment.—(1) When, by a notification under section 3, any cantonment ceases to be a cantonment and the local area comprised therein is placed under the control of concerned local government, the balance of the cantonment fund and other property vesting in Cantonment Administration shall vest in the concerned local government, and the liabilities of the Cantonment Administration shall also be transferred to the concerned local government.

(2) When, in like manner, any cantonment cases to be a cantonment and the local area comprised therein is not immediately placed under the control of the concerned local government, the balance of the cantonment fund and other property vesting in Cantonment Administration shall vest in Government and the liabilities of Cantonment Administration shall be transferred to the Government.

7. Disposal of cantonment fund when area ceases to be a part of cantonment. When, by a notification under section 4, any local area forming part of a cantonment ceases to be under the control of a Cantonment Administration and is placed under the control of concerned local government, such portion of the cantonment fund and other property vesting in the Cantonment Administration and such portion of the liabilities of the Cantonment Administration, as the Government may, by general or special order, direct, shall be transferred to the concerned local government:

Provided that if any local area forming part of a cantonment ceases to be under the control of Cantonment Administration and is not immediately placed under the control of the concerned local government, such portion of the cantonment fund and other property vesting in the Cantonment Administration shall vest in Government and such portion of the liabilities of the Cantonment Administration shall be transferred to the Government, as the Government may, by general or special order, direct.

8. Application of funds and property transferred under section 6 or 7. Any cantonment fund or portion of a cantonment fund or other property of Cantonment Administration vesting in Government under the provisions of section 6 or section 7 shall be applied in the first place to satisfy any liabilities of the Cantonment Administration transferred under such provisions to the Government, and in the second place for the benefit of the inhabitants of the local area which has ceased to be a cantonment or, as the case may be, part of a cantonment.

9. Limitation of operation of Ordinance. The Government may, by notification in the official Gazette, exclude from the operation of any part of this Ordinance, the whole, or any part of a cantonment.

LOCAL AREAS

[1][**10. Local areas.** For the purposes of this Ordinance, local area shall be the whole of cantonment.]

[1][**11. Delimitation of wards of a cantonment.**—(1) The Election Commission shall delimit a cantonment into wards in such a way that the number of wards is equal to the number of members to be elected on general seats of a Cantonment Board specified under section 13A of the Cantonments Act; 1924 (II of 1924).

(2) For the purposes of delimitation of wards of a cantonment,

(a) a ward shall consist of a village or revenue estate or census block or adjoining census blocks as determined for purposes of the last preceding census or delimited and notified as such by the Election Commission;

(b) the boundaries, of a ward shall not cross the limits of the cantonment; and

(c) the population of wards within a cantonment shall, as far as possible, be uniform.

(3) The wards of a cantonment shall be delimited in accordance with this Ordinance and the rulesmade thereunder. As far as possible, principles of delimitation as laid down under the Delimitation of Constituencies Act, 1974 (XXXIV of 1974), the rules made thereunder or any other law for the time being in force shall be followed.]

12. Local Governments for local areas. There shall be a local government for each local area comprising—

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(a) Cantonment Administration and Cantonment Board in, each Cantonment; and

(b) Union Administration and Union Council in each Union, of a cantonment.

[1]Subs. by Act XX of 2015, ss-2-3.

CHAPTER III

CANTONMENT ADMINISTRATION

13. Cantonment Administrator.— (1) The President shall exercise the powers and perform the functions as Cantonment Administrator.

(2) Besides exercising supervision and control over the financial, executive, and administrative matters of the Cantonment Administration, his other functions shall be

(a) to provide vision and direction for efficient municipal functioning;

(b) to formulate strategies for development of municipal infrastructure and improvement ofdelivery of the municipal services in the cantonment;

(c) to oversee formulation of the long term and annual municipal development programmes;

(d) to oversee the delivery of services by the Cantonment Administration and implementationof the laws governing the municipal services;

(e) to supervise the utilization of the funds allocated to the Cantonment Administration and to ensure their proper accounting; and

(f) to establish and supervise the working of the Internal Audit Office.

(3) The Cantonment Administrator may, in case of emergency direct the execution of any work orthe doing of any act which would ordinarily require the sanction of the Board and the immediate execution or doing of which, in his opinion, is necessary for the service or safety of the public, and may direct that the expense of executing such work or doing such act shall be paid from the cantonment fund:

Provided that such action shall be reported to the Board.

14. Composition of Cantonment Administration. In every cantonment there shall be a Cantonment Administration which shall consist of Cantonment Administrator, Cantonment Administrative Officer, Cantonment officers, and officials of the offices entrusted to the Cantonment Administration.

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15. Structure of Cantonment Administration.—(1) The Cantonment Administrator shall be the head the Cantonment Administration.

(2) Subject to sub-section (3), the Cantonment administrative officer shall act as coordinating andadministrative officer-in-charge of the following Cantonment Officers, namely:—

(a) Cantonment Officer (Municipal Regulations) who shall be responsible for licensing management of cantonment lands estates, properties, facilities and enterprises and enforcement of relevant cantonment laws, rules and bye-laws.

(b) Cantonment officer (Infrastructure and Services) who shall be responsible for water, sewerage, sanitation, roads other than Government and private roads, streets and street lighting, fire-fighting, and park services.

(c) Cantonment Officer (Planning) who shall be responsible for spatial planning and land use control, building control, and coordination of development plans and projects with Union Administration.

(d) Cantonment Officer (Finance) who shall be responsible for budget, revenue and accounts.

(3) The Government may reduce the number of Cantonment Officers by combining above functions if the situation so warrants, in a particular Cantonment.

16. Functions and powers of Cantonment Administration.—(1) The functions and powers of theCantonment Administration shall be to

(i) prepare spatial plans for the cantonment in collaboration with Union Administration, including plans for land use, zoning and related functions for which the Cantonment Administration is responsible;

(ii) seek approval of the Cantonment Board to the spatial plans prepared by it after due process of dissemination and public enquiry, incorporating modifications on the basis of such inquiry;

(iii) execute and manage development plans of the cantonment;

(iv) exercise control over land-use, land sub-division, land development and zoning by publicand private sectors for any purpose, including for agriculture, industry, commerce, markets, shopping and other employment centres, residential, recreation, parks, entertainment, passenger and transport freight and transit stations;

(v) exercise building control;

(vi) enforce all municipal laws, rules and bye-laws governing its functioning;

(vii) prevent and remove encroachments:

(viii) regulate affixing of sign-boards and advertisements;

(ix) provide, manage, operate, maintain and improve the municipal infrastructure and services, including—

(a) water supply and control and development of water sources, other than system maintained by the Union Administration;

(b) sewage and sewage treatment and disposal;

(c) storm water drainage;

(d) sanitation and solid waste collection and sanitary disposal of solid, liquid, industrial and hospital wastes;

(e) roads and streets, other than roads falling under the jurisdiction of, and maintained by, the Government, Provincial Government, District Government or the agencies controlled by them and streets maintained by the Union Administration;

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(f) traffic planning, engineering and management including trafic signalling system, signs on roads, street markings, parking places, transport stations, stops, stands and terminals;

(g) street lighting;

(h) fire fighting;

(i) parks, play grounds, public places, open spaces and arboriculture;

(j) slaughter houses;

(k) regulating animal trespass and establish cattle pounds: and

(l) providing and maintaining places of burial and cremation:

(x) compile information provided by Union Administration of prioritised projects in the cantonment;

(xi) prepare budget, including annual financial requirements of the Union Administration, long term and annual municipal development programmes in collaboration with the Union Administration;

(xii) release allocations to Union Administration for their financial requirements as per the approved budget;

(xiii) maintain, with the assistance of the Union Administration, a comprehensive data base and information system for Cantonment Administration and provide public access to it on nominal charges;

(xiv) propose taxes, cess, user fees, rates, tolls, charges, levies and duties under the First Schedule for approval of the Board and notify the same in the official Gazette after such approval;

(xv) collect approved taxes, cess, user fees, rates, rents, tolls, charges, duties, fines and penalties;

(xvi) organize sports, culture, recreational events, fairs and shows;

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(xvii) co-ordinate and support municipal functions amongst Unions:

(xviii) regulate markets and services and issue licences, permits, grant permissions and impose penalties for violation thereof as and where applicable;

(xix) manage properties, assets and funds vested in the Cantonment Administration;

(xx) develop and manage schemes, including site development schemes in collaboration with Union Administration;

(xxi) authorise an officer or officers to issue notice to a person committing any municipal offence and initiate legal proceedings for continuance of commission of such offence or for failure to comply with the directions contained in such notice;

(xxii) prosecute, sue and follow up criminal, civil and recovery proceedings against

violators of municipal laws in the courts of competent jurisdiction;

(xxiii) authorise an officer to take action in matters of urgency like removal of encroachments, and other such subjects as may be decided by the Cantonment Administration;

(xxiv) maintain municipal records and archives;

(xxv) prepare financial statements and present them for internal and external audit in the manner as may be prescribed;

(xxvi) without disturbing the existing arrangement, persuade the District Government to meet its statutory obligation of opening and maintaining educational institutions for the needs of civil population of the cantonment, and also to encourage other organisations for similar action;

(xxvii) to establish and maintain health facilities in the shape of dispensaries and hospitals with the approval of the Government; and

(xxviii) carry out inspection of Union Administration.

(2) The Cantonment Administration may,—

(a) assign or contract out, on such terms and conditions as are approved by the Board and after inviting public objections, any of its functions to any public-private, public or privateorganization:

Provided that responsibility for discharge of such functions shall continue to vest with the Cantonment Administration.

(b) on such terms and conditions as are mutually agreed, transfer its functions and responsibilities with regard to providing municipal services to the Union Administration:

Provided that no function or responsibility shall be transferred without allocation ofcorresponding resources and funds:

Provided further that the responsibility to regulate and monitor such functions andservices shall remain with the Cantonment Administration.

(c) with funds raised through voluntary contributions or external grant, but without recourse to additional enhanced taxation, user charges or fees or recourse to any other sources of public funds and without incurring debt of any nature, undertake any development project;

(d) with the approval of the Government and concerned regulatory authorities of the Government set-up, acquire, manage and operate any commercial activity on a self- financing basis with no liability to the public exchequer; and

(e) set-up a corporate body to perform any of its functions, singly or jointly with other public or private bodies:

Provided that responsibility for discharge of such functions shall continue to be with theCantonment Administration.

[1][17.* * * * * * *]

18. Source of induction of officers. The Cantonment Administrative Officer and Cantonment Officers shall be appointed by the, Government from amongst the officers of Pakistan Military Lands and Cantonments Group in such manner as may be prescribed:

Provided that if no suitable officer of technical nature from the above mentioned group is available, for the post of a Cantonment Officer, the Government may appoint an officer on deputation from other departments of the Government, Provincial Government or organizations controlled by the aforesaid Governments.

19. Cantonment Officer. The functions and powers of the Cantonment Officer of the Cantonment Administration shall be to—

(a) ensure that the business of the office under his administrative control is carried out in accordance with law and the rules and the human and material resources placed at his disposal are optimally utilized to improve governance;

(b) co-ordinate and supervise the activities of the office and ensure efficient service delivery by the functionaries under his administrative control;

(c) supply information to the Monitoring Committees of the Board and Union Councils;

(d) take appropriate corrective actions based on the information received from Monitoring Committees;

(e) enforce relevant Federal, Provincial and municipal laws and rules;

(f) prepare development plans and propose budgetary allocations for their execution;

(g) implement approved plans and policies

(h) authorize disbursement of performance bonuses to the employees;

(i) prepare proposals for expenditures necessary for the proper conduct of programmes, projects, services, and other activities;

(j) propose relevant bye-laws on service delivery to the Cantonment Administrative Officer,

(k) act as Departmental Accounting Officer for his respective office and be responsible to the Finance and Accounts Committee of the Cantonment Administration; and

(l) perform the functions of the Additional Rent Controller when so entrusted by the Cantonment Administrative Officer.

[1]Omitted by Act XX of 2015, s. 4.

CHAPTER IV

CANTONMENT BOARD

20. Composition of Cantonment Board.— (1) For every Cantonment there shall be a CantonmentBoard, which shall consist of the following, namely:—

(a) Officer Commanding the Station or if the Government so directs in respect of any cantonment such other armed forces officer as may be nominated by the Competent Authority, as President of the Board;

(b) a Vice-President indirectly elected from amongst the Union Nazims of the cantonment;

(c) all Nazims of Union Councils in a cantonment as members;

(d) indirectly elected members on reserved seats, namely:

(i) such number of women as represent thirty-three percent of total number of Unions in the cantonment, subject to minimum one member; and

(ii) such number of peasants and workers as represents five percent of the total number of the Unions in the cantonment; and such number of persons from minority communities as represent five percent of the total number of Unions in the cantonment:

Provided that the Government may, by notification in the official Gazette vary thenumber of reserved seats to such extent as it deems fit.

(e) official members including Health Officer and Maintenance Engineer, nominated by the Officer Commanding the station, equal to the number of elected members as specified in clauses (b), (c) and (d).

(2) If in calculating a percentage for the purposes of clause (d) of sub-section (1), the number of reserved seats does not come out to be a whole number and such number is,—

(a) less than half, the number shall be rounded down to the next lower number; or

(b) a half or more, the number shall be rounded up to the next higher number.

(3) The Officer Commanding the station may, with the sanction of the Garrison Commander, nominate, in place of an armed forces officer whom he is empowered to nominate under clause (e) of sub-section (1), any person who is ordinarily resident in the cantonment or in vicinity thereof.

21. Oath or affirmation by the nominated members.— (1) The President and every nominated member of a Board shall, before taking his seat, make, at a meeting of the Board, an oath or affirmation of his allegiance in the following form, namely

I, ---------- having become President been nominated a member of this Board, do solemnly swear (or affirm) that I will bear true faith and allegiance to Pakistan and that I will faithfully discharge the duty upon which I am about to enter.

(2) If any such person fails to make the oath or affirmation within such time as the Government considers reasonable, the Government shall, by notification in the official Gazette, declare his seat to be vacant.

22. Resignation. Any civilian nominated member of a Board who wishes to resign his office mayforward his resignation in writing to the President.

23. Removal of nominated member. Where the Officer Commanding the station makes a report to the effect that any nominated member is unable to discharge his duties for any reason, the Garrison Commander and where Officer Commanding the station is also the Garrison Commander, the Corps Commander may, by order in writing, relieve such member of his office.

24. Nominations, resignations etc; to be notified. All nominations, resignations and removal ofnominated members shall be notified in the official Gazette.

25. Liability of members. Every member of a Board shall be liable for the loss, waste or misapplication of any money or other property belonging to the Board. If such a loss, waste or misapplication is a direct consequence of his neglect or misconduct while such member; and a suit for compensation for the same may be instituted against him either by the Board or by the Government.

26. Functions and powers of the Cantonment Board. The functions and powers of the Cantonment Board shall be

(i) to approve taxes, cess, rates, rents, fees, user-charges, tolls, levies and duties proposed by Cantonment Administration as specified in the First Schedule;

(ii) to approve bye-laws prepared by the Cantonment Administration;

(iii) to approve annual budget and appropriations for the Cantonment Administration;

(iv) to approve long and short term development plans of the cantonment;

(v) to approve annual development plans received from the Union Councils;

(vi) to approve posts of personal staff for the office of the Vice-President and the terms and conditions of their service;

(vii) to approve land use, zoning and master plan, development and maintenance programmesor projects proposed by the Cantonment Administration;

(viii) to elect Monitoring Committees of the Cantonment Board to monitor the working of theCantonment Administration;

(ix) to ensure that Monitoring Committees perform their functions in a non-intrusive manner without interfering in the day to day working of the relevant offices of the Cantonment Administration and do not assume a command and control role;

(x) to review the reports of the Monitoring Committees and take appropriate action;

(xi) to elect an Insaaf Committee;

(xii) to elect Cantonment Finance and Accounts Committee to review the audit reports of the accounts of Cantonment Administration;

(xiii) to review the performance of Cantonment Administration presented by the CantonmentAdministrative Officer;

(xiv) to authorise the Cantonment Administration, subject to applicable laws and with the prior permission of the Government, floating of municipal bonds for raising funds for financing municipal projects;

(xv) to require, by resolution, the Cantonment Administration to undertake measures for improvement in the delivery of municipal services;

(xvi) to process Union Monitoring Reports concerning service delivery in cantonment areas;and

(xvii) to elect Code of Conduct Committee which shall be responsible for enforcing the codeof conduct for regulating the conduct of the members of the Board.

27. Conduct of business of the Board.—(1) The Board shall regulate its business and of its Committees in accordance with rules made by the Government.

(2) The Board shall meet at least once in every month. However, the President may, whenever he thinks fit, and shall, upon a requisition in writing by not less than one-fourth of the members of the Board, convene a special meeting.

(3) Save as otherwise provided, decisions of the Board shall be taken by resolutions passed by a simple majority of the members present:

Provided that in case of an equality of votes, the President shall have a second or casting vote.

(4) All meetings of the Board shall be presided over by the President and in his absence by the Vice-President, and in the absence of both, the members (both elected and nominated) present shall elect one from amongst them to preside.

(5) The quorum of the meetings of the Board shall be fifty-one percent of its membership.

(6) The Cantonment Administrative Officer shall be the principal executive and administrative officer of the Cantonment Administration and the Secretary of the Board and shall have the right to take part in the discussion but not to move any proposals at the meeting of the Board and shall also be responsible to record minutes of the proceedings of meetings of the Board in a book maintained by him.

(7) No member of a Board shall vote at a meeting of the Board or any of its committees on any question relating to his own conduct, or on any matter, other than a matter affecting generally the inhabitants of cantonment, which affects his own pecuniary interest or valuation of any property in respect of which he is directly or indirectly interested, or of any property of or for which he is a manager or agent.

(8) Minutes of the proceedings of Board meetings shall be signed by the President and shall, at such time and in such place as may be fixed by the Board, be open to inspection free of charge by any inhabitant of the cantonment.

(9) No disqualification or defect in the election, nomination or appointment of a person acting as the President or a member of a Board or any of such Committees shall, vitiate any act or proceedings of the Board or Committee if the majority of persons present at the time of the act being done or the proceeding being taken, were duly qualified members thereof.

(10) The meetings of the Board shall be open to public, unless the Board, by a resolution, decides to hold any meeting in camera.

(11) Copies of the minutes shall, as soon as possible, be forwarded for information to the Competent Authority, Garrison Commander, Cantonment Administration, and the concerned Military Estates Officer.

28. Recall of Vice-President.—(1) On a resolution passed by a majority vote, the Board may decide to remove a Vice-President if he is found working against public policy and interest or flagrantly abusing his position as Vice-President.

(2) In the event of a resolution as provided in sub-section (1) the Cantonment Administrator shall recommend to the Competent Authority, the removal of the Vice-President.

(3) On such removal by the Competent Authority, the Vice-President shall also lose his seat as a Union Nazim and this vacancy shall be filled through by-election.

(4) Before his removal, the Vice-President or the member shall have the right to appear before the Board and address in his defence.

29. Joint Committees of Councils. The Board may, with the consent of Union Councils, set up joint committees of the councils for any purpose in which such councils may be jointly interested and may delegate to such joint committees any power which may be exercised by them, including the power to make bye-laws for their functioning.

CHAPTER V

UNION ADMINISTRATION

30. Composition of Union Administration. There shall be constituted a Union Administration for every Union consisting of Union Nazim, Naib Union Nazim and Union Secretaries and, where required, the members of ancillary staff:

Provided that the Government may reduce the number of Union Secretaries in a particular cantonment.

31. Structure of Union Administration. —(1) The Union Nazim shall be the head of the Union Administration.

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(2) The Naib Union Nazim shall deputise the Union Nazim during his temporary absence.

(3) The Union Secretaries shall coordinate and facilitate in community development, functioning of the Union Committees and delivery of municipal services under the supervision of Union Nazim:

Provided that the functions of the Union may be assigned to one or more Secretaries.

32. Functions of the Union Administration. The functions of Union Administration shall be—

(a) to collect and maintain statistical information for socio-economic surveys;

(b) to identify deficiencies in the delivery of services and make recommendations for improvement thereof to the Cantonment Administration;

(c) to register births, deaths and marriages and issue certificates thereof;

(d) to work out annual requirement of Union Administration for day-to-day expenditure and seek approval of the Union Council for submission to the Cantonment Administration;

(e) to disseminate information on matters of public interest;

(f) to co-operate with the public, private or voluntary organizations, engaged in activities similar to those of the Union;

(g) to establish and maintain libraries approved and funded by the Cantonment Administration with prior approval of the Board;

(h) to organize sports tournaments, fairs, shows and other cultural and recreational activities with the prior approval of the Cantonment Administration;

(i) to organize cattle fairs and cattle markets as assigned by the Cantonment Administration;

(j) to improve and maintain public open spaces, public gardens and playgrounds with prior approval of the Cantonment Administration;

(k) to assist the relevant authorities in disasters and natural calamities, and assist in relief activities, including desilting of canals with prior approval of the Cantonment Administration;

(l) prepare the projects of the Union Annul Development Plan and submit to the Cantonment Administration for approval and funding;

(m) promote plantation of trees, landscaping and beautification of public places in the Union under the directions of the Cantonment Administration; and

(n) assist Cantonment Administration in establishment and maintenance of burial and cremation places;

33. Entrustment of functions by Cantonment Administrations, etc. The Cantonment Administration may entrust any of its functions to the Union Administration with mutual agreement:

Provided that resources required for carrying out such functions shall be made available to theUnion Administration.

34. Government to prescribe powers of Union Administration. The administrative, and regulatory powers of the Union Administration shall be such as may be prescribed by the Government.

35. Functions of Union Nazim. A Union Nazim shall—

(a) provide leadership for Union-wide development and preparation of theannual development plan;

(b) assist the Cantonment Administration in spatial planning process;

(c) dispose of the business of Union Administration; and

(d) report to the concerned authorities in respect of,

(i) encroachment on State and local government property and violation of land use andbuilding laws, rules and bye-laws;

(ii) sale and trade of dangerous and offensive articles;

(iii) environmental and health hazards;

(iv) adulteration of articles of food; and

(v) breach of public watercourses, within the area of the Union.

36. Personal responsibility of Union Nazim. The Union Nazim shall be personally responsible for any loss financial or otherwise, flowing from the decisions made by him personally or under his directions in violation of any provisions of this Ordinance or any other law for the time being in force and for any expenditure incurred without lawful authority.

37. Setting aside decisions of Union Nazim. The President may suspend action on an order or decision taken by Union Nazim, if he, for reasons to be recorded in writing, considers the same to be against the interest of the people or public policy, and place the same before the Board for final decision.

38. Resignation by Union Nazim. The Union Nazim may resign his office by tendering resignation in writing addressed to the President.

39. External recall of Union Nazim.—(1)Subject to sub-section (4), on a motion moved by the President, the Board may decide by a majority vote, to remove a Union Nazim if he is found

(a) working against public interest or public policy; or

(b) flagrantly abusing his position as Union Nazim.

(2) In the event of passage of a resolution as provided in sub-section (1) the President shall recommend to the Competent Authority, the removal of the Union Nazim.

(3) On such removal by the Competent Authority, the Union Nazim shall lose his seat as a Union Nazim and his vacancy shall be filled through byelection.

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(4) Before his removal, the Union Nazim shall have the right to appear before the Board and address in his defence.

40. Internal recall of Union Nazim.— (1) If in the opinion of a member of Union Council, there is a reason to believe that the Union Nazim is acting against the public policy or the interest of the people or on the ground of inaction or neglect to serve the needs of the people, he may, seconded by another member of the council, give a notice to move a motion in the Union Council for recall of Union Nazim.

(2) On receipt of notice referred to in sub-section (1), the Naib Union Nazim shall summon a session of Union Council within three days if the Union Council is not already in session.

(3) Where the Union Council is already in session, the motion referred to in sub-section (1) shall be taken up for deliberation on the next day from its receipt in the Union Council.

(4) If the motion referred to in sub-section (1) is approved by a majority of votes of the total membership of the Union Council through a secret ballot, followed by endorsement by majority vote of the Board the Union Nazim shall cease to hold office from the date of notification issued by the Government under sub-section (6).

(5) Where the motion fails in the Union Council, the proposer and seconder of such motion shall lose their seats as members of the Union Council.

(6) The Government shall notify the result of the approval of the motion.

(7) The Union Nazim shall have the right to appear before the Union Council and address it in his defence.

(8) No motion for recall of Union Nazim shall be moved during the first six months of assumption of office of Union Nazim nor shall such motion be repeated before the expiry of one year from the rejection of previous motion.

CHAPTER VI

UNION COUNCILS

41. Composition of Union Councils in Cantonment. There shall be a Union Council in each Union comprising the following members, namely:—

(a) twelve members, elected to general seats, including four reserved for women;

(b) six members elected to seats reserved for peasants and workers including two reserved for women;

(c) one member elected to a seat reserved for minority communities;

Provided that in a Union where the population of minorities is in excess of ten percent of the total population of the Union, reserved seats for minority communities, shall be allocated in the manner prescribed by the Government; and

(d) Union Nazim and Naib Union Nazim;

Provided that if the situation so warrants, the Government may, by notification in the official Gazette, vary the number of seats as mentioned in clauses (a) to (c).

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42. Functions of the Union Council. The functions of the Union Council shall be to

(a) recommend the annual development plan of the Union Administration for approval and funding by the Board;

(b) recommend statement of annual financial requirements for the Union and its approval and funding by the Board;

(c) facilitate the formulation and functioning of Citizen Community Boards;

(d) facilitate the formation of co-operatives for improving economic returns and reduction of interstitial poverty;

(e) mobilise the community involvement in maintenance of public ways, public streets, culverts, bridges and public buildings, desilting of canals and other development pursuits;

(f) adopt appropriate measures and provide support to the Cantonment Administration for achievement of socio-economic development and improvement of services;

(g) elect Monitoring Committees of the Union, each for municipal services, finance, safety, health, education, literacy, works and services;

(h) elect an Ethics Committee of the Union Council which shall be responsible for enforcing the code ethics to regulate the conduct of the members of the council;

(i) elect an Insaaf Committee which shall be responsible for the selection of the panel of Conciliators of Musalihat Anjuman for out of court amicable settlement of disputes;

(j) review the performance of Union Administration and Union Monitoring Committees; and

(k) review the annual statement of accounts and external or special audit report in respect of the Union Administration.

43. Conduct of the business of the Union Council.— (1) The Union Council shall regulate its business in accordance with the rules prescribed by the Government.

(2) The Union Council shall meet at least once in every month.

(3) All decisions of the Union Council shall be taken by resolutions passed by a simple majority of its total membership.

(4) All meetings of the Union Council shall be presided over by Union Nazim and, in his absence, by the Naib Union Nazim or, in absence of both Union Nazim and Naib Union Nazim or where a motion for recall of Union Nazim or Naib Union Nazim has been moved, by a member elected by the Union Council form amongst its members present in the meeting.

(5) No member of a Union Council shall vote at a meeting of the Union Council or any of its committees on any question relating to his own conduct, or on any matter, other than a matter affecting generally the inhabitants of cantonment, which effects his own pecuniary interest or valuation of any property in respect of which he is directly or indirectly interested, or of any property of or for which he is a manager or agent.

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(6) The qourum of the meeting of the Union Council shall be fifty-one percent of its total membership.

(7) The meeting of the Union Council shall be open to the public, unless the Union Council, by a resolution, decides to hold any meeting in camera.

(8) The minutes of the meeting of Union Council shall be recorded and maintained by an officer authorized by the Union Council.

(9) The meetings of the Union Council shall be open to public, unless the council, by resolution, decides to hold any meeting in camera.

(10) Copies of the minutes shall, as soon as possible, be forwarded to the Board.

44. Address of Union Nazim.— (1)At the commencement of the first session of the Union Councilafter its election and on commencement of first session of every year the Union Nazim shall address the Union Council and shall inform the council his plans and programmes for the said year and the performance of the Union Administration during the preceding year.

(2) Notwithstanding anything contained in sub-section (1), the Union Nazim may address the Union Council whenever he deems necessary to associate or consult the Union Council in functioning of the Union Administration.

45. Resignation by Naib Union Nazim. The Naib Union Nazim may resign from his office by tendering resignation in writing addressed to the President.

46. Recall of Naib Union Nazim.— (1) If in the opinion of a member of Union Council, there is a reason to believe that the Naib Union Nazim is acting against the public policy or the interest of the people or for any other reason, he may, seconded by another member of the Council, move a motion in the Union Council for recall of Naib Union Nazim.

(2) On receipt of notice referred to in sub-section (1), the Union Nazim shall summon a session of Union Council within three days, if the Union Council is not already in session.

(3) Where the Union Council is already in session, the motion referred to in sub-section (1) shall be taken up for deliberations immediately on its receipt in the Union Council.

(4) If the motion referred to in sub-section (1) is approved by a majority of votes of the total membership through a secret ballot, the Naib Union Nazim shall cease to hold office on approval of the motion by the Union Council.

(5) The Naib Union Nazim shall have the right to appear before the Union Council and address in his defence.

(6) Where the motion fails in the Union Council, the proposer and seconder of such motion shall lose their seats as members of the Union Council.

(7) No motion for recall of Naib Union Nazim shall be moved during the first six months of assumption of office of Naib Union Nazim nor shall such motion be repeated before the expiry of one year from the rejection of previous motion.

CHAPTER VII
CITIZEN COMMUNITY BOARD

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47. Composition of Citizen Community Board.— (1) In every local area, groups of non elected citizens may, through voluntary, proactive and self help initiatives, set up any number of Citizen Community Boards. Such Citizen Community Boards shall be set up *inter-alia*, for the purpose of

(a) energizing the community for development and improvement in service delivery;

(b) development and management of a new or existing public facility; identification ofdevelopment and municipal needs;

(c) mobilization of stakeholders for community involvement in the improvement andmaintenance of facilities;

(d) welfare of the handicapped, destitute, widows and families in extreme poverty; and

(e) establishment of farming, marketing and consumers cooperatives:

Provided that grants will be available subject to section 276 of this Ordinance, and reinforcing the capacity of a special Monitoring Committee at the behest of the concerned Union Council or Cantonment Board.

(2) No person shall be eligible to set up a Citizen Community Board or become its member or hold the office of the chairman or secretary of the Citizen Community Board if such person:—

(a) is a minor;

(b) is of unsound mind;

(c) has applied to be adjudicated as an insolvent and his application is pending;

(d) is an undischarged insolvent;

(e) is a defaulter of loans or Government dues and his name has been published as such.

(3) In carrying out its purposes, a Citizen Community Board may interact with voluntary organisations for community welfare.

(4) The Citizen Community Board shall be set up, registered with the registration authority, and carry on its functions and activities in such manner and subject to such rules as may be prescribed.

(5) The Citizen Community Board shall have a general body of its members who shall elect a Chairman Executive Committee and a Secretary of the Board for carrying out its functions.

48. Personal responsibility of the head of the Citizen Community Board and Executive Committee and its officers. The Chairman, Executive Committee and its officers shall be responsible for any loss, financial or otherwise, flowing from the decisions made by them individually or collectively in violation of any provisions of this Ordinance or any other law for the time being in force and for any expenditure incurred without lawful authority.

49. Raising of funds by Citizen Community Board.— (1) A Citizen Community Board may raisefunds through voluntary contributions, gifts, donations, grants and endowments for its declared purposes without compromising the larger interest of the community.

(2) A Citizen Community Board may also receive project-based cost sharing support from any local government in accordance with the provisions of this Ordinance.

(3) All funds of Citizen Community Board shall be kept in a scheduled bank or post office and alltransactions shall be made through cheques.

(4) The accounts of the Citizen Community Board shall be operated jointly by the Chairman and the Secretary.

(5) The accounts of the Citizen Community Board shall be subject to audit as may be prescribed.

50. Citizen Community Board to be a non-profit Organization.— (1) A Citizen Community Board shall be a non-profit organization and its income and assets shall be used solely for the attainment of its objectives.

(2) The properties and income of a Citizen Community Board shall vest, and be held, in the name of its Executive Committee. It shall sue and be sued in the name of its Executive Committee. No portion of its income shall be paid by way of salary, dividend, profit or bonuses or otherwise distributed to any of its members or contributors, whether past or present.

(3) If a Citizen Community Board is not carrying on its functions and activities in accordance with this Ordinance, the registration authority may appoint an administrator, with such powers and functions as the registration authority deems appropriate, to run its affairs, take over its assets or for the disposal of any other matter.

(4) Where a local government has contributed towards creation of any assets or funds of a Citizen Community Board, in case of dissolution or de-registration, its assets shall pass on to such local government and the assets shall continue to be used for community welfare by the local government through any of its agencies or any other Citizen Community Board designated by such local government in this behalf.

CHAPTER VIII

INSAAF COMMITTEE AND MUSALIHAT ANJUMAN

51. Composition of Insaaf Committee.— Every Union Council shall elect an Insaaf Committee constituting a panel of three members one of whom shall be its convener to be selected by the members of the committee.

52. Constitution of Musalihat Anjuman.— (1) In each Union, a Musalihat Anjuman shall be constituted consisting of a panel of three Musaleheen (Conciliators) one of whom shall be its Convener, to be selected by the Insaaf Committee of the Union Council, within thirty days after its election, from amongst the residents of the Union who are publicly known to be persons of integrity, good judgment and command respect:

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Provided that the Union Nazim, Naib Union Nazim or the members of the Union Council may not be appointed as Musaleheen (Conciliators).

(2) Any casual vacancy in the panel of Musaleheen (Conciliators) shall be filled by the Insaaf Committee, as soon as practicable after occurrence thereof.

(3) The Musaleheen (Conciliators) shall be selected for the term of the Union Council or until replaced earlier:

Provided that Musaleheen (Conciliators) shall be eligible for re-selection.

(4) Where in the opinion of the Insaaf Committee, a Musaleh (Conciliator) is accused of consistent partiality and malpractices in performance of his functions, the Insaaf Committee may, subject to notice to show cause, remove such Musaleh (Conciliator) and select another Musaleh

(Conciliator) in his place.

53. Encouragement for amicable settlement of disputes. The Union Nazim, members of the Insaaf Committee and Musaleheen (Conciliators) shall use their good offices to achieve the amicable settlement of disputes amongst the people in the Union through mediation, conciliation and arbitration, whether or not any proceedings have been instituted in a court of law in respect of such disputes:

Provided that such settlement shall be carried out in such cases where all parties to the disputeagree thereto and no fee shall be charged for such settlement.

Explanation.— For the purpose of this section, the expression 'dispute' relates to disputes amongstthe individuals, whether of civil or criminal nature.

54. Courts may refer cases to Musalihat Anjuman. (1) Any court competent jurisdiction may, in a case where it deems appropriate, refer a matter to the Musalihat Anjuman through the UnionNazim for settlement.

(2) The court making a reference to Musalihat Anjuman for settlement of a dispute under sub-section (1) may lay down the procedure for summoning the parties to the dispute, the terms of reference, the period during which settlement is to be made, the manner in which the report of the settlement is to be submitted and such other matters as it may deem appropriate for resolution of the dispute.

(3) Where on a reference made by the court under sub-section (1), the dispute is settled between the parties, the court may make such settlement as rule of the court.

(4) The Musalihat Anjuman shall inform the court if the dispute is not settled within the time fixed by the court or may ask for extension in time for settlement of the dispute.

55. Appointment of Musaleh (Conciliator) for individual cases. Where in a dispute parties request for appointment of a person other than the Musaleheen (Conciliators) in the panel referred to in section 52 in a particular case as a Musaleh (Conciliator), the Union Nazim may, in consultation with the Insaaf Committee, appoint such person as Musaleh (Conciliator) for that case.

56. Procedure of settlement of disputes.— (1) The Convener of the Musalihat Anjuman selected under section 52 shall—

(a) convene meetings of the Musalihat Anjuman as necessary and at such place or places inthe Union as he considers appropriate; and

(b) conduct the proceedings in an informal manner as he considers with an object to bring anamicable settlement between the parties.

(2) No legal practitioner shall be permitted to take part in the proceedings on behalf of any party.

(3) The report of the Musaleheen (Conciliators) shall be recorded in writing and copies thereof shall be provided to the parties attested by the Union Secretary.

CHAPTER IX
CANTONMENT LOCAL GOVERNMENT ELECTIONS

[1][**57. Franchise.**— (1) The election of members to be elected on general seats of a Board

shall beheld on the basis of single member constituency and adult franchise through secret ballot.

(2) Members to the seats reserved for women, peasants, youth, workers and non-Muslims shall be elected in the prescribed manner by members of the Board elected in accordance with sub-section (1).]

58. Authority for local government elections.—(1) [1][An election to a Board under this Ordinanceshall be conducted by the Election Commission in accordance with the] the rules made under this Ordinance and such rules may provide for all matters connected therewith or incidental thereto, including the time of holding the elections by-elections, corrupt or illegal practices and other election offences and the submission, trial and disposal of election petitions.

[1][* * * * * * *]

[1][(2) The Election Commission shall, on receipt of a request in writing from the Federal Government, issue a programme for the conduct of elections in the cantonment Boards and shall fix the dates for filing of nomination papers; scrutiny, allotment of symbols and poll, etc.]

[1][(3)] The [1][Election Commission] may authorize any of its officers to exercise any of its powers and to perform any of its functions under this Ordinance.

[1][(4) The Election Commission shall appoint as many returning officers and assistant returning officers as it may deem necessary, from amongst its own officers, the Federal Government, the provincial Government or an entity controlled by such government.

(5) The Election Commission may issue any direction or instruction to carry out the effective implementation of the provisions of this Ordinance for the conduct of local government elections in the Cantonment Boards.]

[1][**59**. **Indirect elections**.— Election to the seats reserved for women, peasants, youth, workers and non-Muslims shall immediately be held after the notification of the names of returned candidates on general seats.

(2) The members against seats reserved for women, peasants, youth, workers and non-Muslims shall be elected through secret ballot by the directly elected members.

(3) The elected members of a Board shall, amongst themselves, elect through secret ballot a vice-president of that Board.]

60. Qualifications for candidates and elected members.— (1) A person shall qualify to be elected [1][or to be chosen] or to hold an elective office or membership of a local government, if he-

(a) is a citizen of Pakistan;

(b) is at least twenty five years of age;

(c) is enrolled as a voter in the electoral roll of the relevant ward [1][and, in case for reserved seats, in any electoral area of that Board] ;

[1][(d) he is sagacious, righteous, non-profligated, honest and *ameen,* there being no declarationto the contrary by a court of law;]

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[1]Subs. Omitted. Ins. Renumbered and added by Act XX at 2015, ss. 5-8.

[1][(e) * * * * * * *]

(f) has not been declared by a competent court to be of unsound mind;

(g) is not in the service of the Federal Government, a Provincial Government or a local government or, any statutory body or a body which is controlled by any such Governmentor, in which any of such Government has a controlling share or interest, except the holders of elected public office and part time officials remunerated either by salary or fee; provided that in case of a person who has resigned or retired from such service, a period of not less than six months has elapsed since his retirement;

(h) has not been dismissed, removed or compulsorily retired from public service on grounds of moral turpitude;

(i) does not possess assets which are inconsistent with his declaration of assets or justifiable means, whether held in his own name or of the dependents or any other person or corporate body in whose name assets are held in trust or under any other formal or informal arrangement whereby the de-facto control of such assets including their sale, transfer or pecuniary interest, is retained by him;

(j) has not been adjudged a wilful defaulter of any tax or other financial dues owed to the Federal Government, a Provincial Government, or a local government or any financial institution, including utility bills outstanding for six months or more;

[1][(k) * * * * * * *]

(l) has not been sentenced to imprisonment for more than [1][two years] for an offence under any law and or, a period of not less than five years has elapsed since his release; and in case of a member or a holder of a public office, has not been sentenced to imprisonment;

(m) has not failed to file the required return of election expenses or is not convicted for exceeding the limits of elections expenses prescribed under the electoral laws;

(n) has not been declared an un-discharged insolvent by any court;

(o) does not engage in any transaction involving pecuniary interest with the [1][Board] of which he is a member;

(p) does not absent himself without reasonable cause from three consecutive meetings of the [1][Board] of which he is a member; provided that a member shall not be disqualified if the absence was necessitated by a national emergency or force majeure;

[1][(q) * * * * * * *]

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[1]Omitted and subs. by Act XX of 2015, s. 8.

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(r) has not been and is not involved, in activities prejudicial to the ideology, interest, security,unity, solidarity, peace and integrity of Pakistan and its people and the good order and harmony of society;

(s) has not used directly or indirectly for his election the platform, flag, symbol, affiliation andfinancial or material, resources or support of a political, religious, ethnic or sectarian party, formation or organization; or

(t) takes oath within the specified period.

(2) Whoever-

(a) is found by the [1][Election Commission] to have contravened the provisions of sub-section

(1) shall stand disqualified from being a candidate for election to a [1][Cantonment Board]for a period of four years; or

(b) having been elected as a member of [1][Cantonment Board] or being a holder of an elective office of a [1][Cantonment Board] is found by the [1][Election Commission] to have contravened the provisions of sub-section (1) shall cease forthwith to be an elected member or to hold the office of such member and stand disqualified from being a candidate for election to a [1][Cantonment Board] for a period of four years.

61. Non-party elections. Local government elections in the cantonment shall be held on non-party basis.

[1][**62.** * * * * * * *]

63. Election to vacant seats.— (1) If a seat of a member becomes vacant during the term of office of a local government a new member shall be elected through by-elections and the member elected inby-elections shall hold office for the remaining portion of the term of the local government.

(2) If any seat reserved for women remains vacant, the same shall be filled through by-elections and the elected woman member shall hold office for the remaining portion of the term of the local government.

(3) All by-elections shall be held once a year on a date or dates fixed by the President. The period of one year shall be computed from the date of assumption of office of the local government:

Provided that in the year in which general elections are to be held, the by-elections may be heldwithin eighteen months.

(4) A vacancy of Vice-President, Union Nazim or Naib Union Nazim shall be filled through by-election within sixty days of the occurrence of vacancy.

[1]Subs. and Omitted by Act XX of 2015, s.s 8-9.

(5) When the office of Vice-President falls vacant, the elected members of a Board shall, by a majority vote elect an officiating Vice-President from amongst the elected members of the Board.

Provided that the officiating Vice-President shall not be a candidate in the by-election for electionof the Vice-President.

(6) When the office of a Union Nazim, falls vacant, the members of the concerned Union Council shall by a majority vote elect an officiating Union Nazim from amongst its members and the person so elected shall continue to retain his office as a member also:

Provided that the officiating Nazim shall not be a candidate in the by-election held for election ofthe Union Nazim.

[1][64. **Electoral rolls.—** The Election Commission shall prepare electoral rolls in accordance with the provisions of the Electoral Rolls Act, 1974 (XXI of 1974) and rules made thereunder, for the purposes of elections in the Cantonment Boards on general seats.

(1) The Election Commission may issue directions to adjust the electoral rolls or cause to preparean electoral roll for any area forming part of a Cantonment Board.]

65. Validity of electoral rolls etc, not affected by reason of any mistake. The electoral rolls shall not be rendered invalid by reason of any erroneous description contained therein of any person listed or of an omission of the name of any person entitled to be enrolled as a voter or of inclusion of the name of any person not so entitled.

66. Bar against dual membership, etc. A Union Nazim and Naib Union Nazim may contest election for any other political office except for the Vice-President after resigning from the existing office of Nazim, or as the case may be, Naib Nazim:

Provided that a member elected against the reserved seats in a Board or a member of Union Council may contest election for any other political office without resigning from the membership of the Board and Union Council respectively:

Provided further that such member except the Vice-President shall not hold more than one office at one time.

[1][67. **Term of office**.(1) Subject to the provisions of this Ordinance, a member of a Board shall hold office for a period of four years from the date of oath:

Provided that notwithstanding the expiry of his term, a member shall continue to function as member until the election or, as the case may be, nomination of his successor is notified under sub-section (5) of section 13A of the Cantonments Act, 1924 (II of 1924).

(2) The term of office of an *ex-officio* member of a Board shall continue so long as he holds theoffice by virtue of which he is such a member.

(3) The term of office of a member elected through bye-election held to fill a casual vacancy shallbe the remaining period of that seat against which he has been elected.]

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[1] Subs. by Act XX of 2015, ss. 10-11

68. Oath of office. The [1][*] Vice-Presidents, [1][* * *] and members shall, before assuming the charge of their respective offices, make oath as may be prescribed.

69. Removals.— (1) Where proceedings of disqualification under sub-section (2) of section 60 have been initiated on an application made by any person, or by the President on his own motion, against a member, [1][* * *] or the Vice-President, the President may issue a notice to show cause to a member, [1][* * *] or, as the case may be, the Vice-President within a specified period as to why proceedings against him may not be taken for his removal for breach of any of the provisions of section 60.

(2) Where the President is not satisfied with the reply to the notice to show cause referred to in sub-section (1) or any reply to the said notice is not submitted within the period fixed by him, he may order for an enquiry in the matter and for that purpose appoint an enquiry officer.

(3) On the basis of enquiry held under sub-section (2), the President [1][shall submit the enquiry report along with his comments to the Election Commission for final decision through the Ministry of Defence]

Provided that before an order of removal is passed the member, [1][or] [1][* * *], Vice-President against whom enquiry proceedings are carried out shall be afforded a reasonable opportunity of being heard including personal hearing if so requested.

[1][70. Resignations of elected members.— (1) An elected member of the Board may resign from his office by writing under his hand addressed to the President, whereupon the resignation shall be deemed to have been accepted and effective forthwith.

(2) Copies of all resignations under sub-section (1) shall be forwarded by the President to the Election Commission and the Federal Government.

(3) Notwithstanding the resignation of a member under sub-section (1), the proceedings for his removal, if any, under section 69 already initiated shall not abate.]

71. Ineligibility for re-election. Where a member or [1][* * *] Vice-President has been removed [1][,] or recalled [1][or disqualified] he shall not be eligible for re-election to any office of [1][Board] for a period of four years.

72. Notification to be issued. The [1][Election Commission] shall notify every election, by-election and result of such elections and resignation, removal or recall of a member, [1][or] Vice-President, as the case may be.

73. Corrupt practice. A person guilty of bribery, personating, or undue influence shall be punishable for an offence of corrupt practice with imprisonment for a term which may extend to three years, or with fine which may extend to fifteen thousand rupees, or with both.

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[1] Omitted, Subs. and Ins. by Act XX of 2015, ss. 12-16.

74. Bribery. A person is guilty of bribery, if he, directly or indirectly, by himself or by an other person on his behalf —

(a) receives, agrees or contracts for any gratification for voting or refraining from voting or for being or refraining from being a candidate at, or withdrawing or retiring from an election; and

(b) gives, offers or promises any gratification to any person for the purpose of inducing

i. a person to be or to refrain from being a candidate at an election;

ii. a voter to vote or refrain from voting at any election;

iii. a candidate to withdraw or retire from an election;

iv. rewarding a person for having been or for having refrained from being a candidate atan election;

v. rewarding a voter for having voted or refrained from voting at an election; or

vi. rewarding a candidate for having withdrawn or retired from an election.

Explanation.—In this section, `gratification' includes a gratification in money or estimable inmoney and all forms of entertainment or employment for reward.

75. Personating. A person is guilty of personating, if he votes or applies for a ballot paper forvoting as some other person whether that other person is living or dead or fictitious.

76. Undue influences. A person is guilty of undue influences, if he—

(a) in order to compel any person to vote, refrain from voting or to induce or compel any person to withdraw his candidature at any election, directly or indirectly, by himself or by any other person on his behalf-

(i) makes or threatens to make use of any force violence or restraint;

(ii) inflicts or threatens to inflict any injury, damage, harm or loss; or

(iii) uses any official influence or governmental patronage; or

(b) on account of any person having voted or refrained from voting, or having withdrawn his candidature, does any of the acts specified in clause (a); or

(c) by abduction, duress or any fraudulent device or contrivances □

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(i) impedes or prevents the free exercise of the franchise by a voter; or

(ii) compels, induces or prevails upon any voter to refrain from voting or compels anyvoter to vote.

Explanation.— In this section, the expression "harm" includes social ostracism or excommunication or expulsion from any caste or community.

77. Illegal practices. A person is guilty of illegal practice punishable with fine which may extend to two thousand rupees, if he—

(a) obtains or procures, or attempts to obtain or procure, the assistance of any officer or official of the Federal Government, a Provincial Government or a local government or authority to further or hinder the election of a candidate;

(b) votes or applies for a ballot paper for voting at an election knowing that he is not qualified, for voting or is disqualified from voting;

(c) votes or applies for a ballot paper for voting more than once at any polling station;

(d) removes a ballot paper or a ballot box from a polling station or destroys, damages, tampers with the ballot-box used at a polling station;

(e) knowingly induces or procures any person, to do any of the aforesaid acts;

(f) fails to provide statement of election expenses as required under this Ordinance.

(g) makes or publishes a false statement—

(i). concerning the personal character of a candidate or his relation calculated to adversely affect the election of such candidate or, for the purpose of promoting or procuring the election of another candidate, unless he proves that he had reasonable ground for believing, and did believe, the statement to be true;

(ii). relating to the symbol of a candidate whether or not such symbol has been allocatedto such candidate; or

(iii). regarding the withdrawal of a candidate;

(h) knowingly, in order to support or oppose a candidate, lets, tends, employs, hires, borrows or uses any vehicle or vessel for the purpose of conveying voters to or from the polling station, except when a person conveys himself or any member of the household to which he belongs, to or from the polling station; and

(i) causes or attempts to cause any person present or waiting to vote at the polling station to depart without voting.

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78. Prohibition of canvassing. A person is guilty of an offence punishable with fine which mayextend to two thousand rupees, if he, on the polling day in connection with the election:

(a) convenes, calls or organizes within a ward any meeting; or

(b) within a radius of two hundred meters of the polling station

(i). canvasses for votes;

(ii). solicits vote of any voter;

(iii). persuades any voter not to vote at the election or for a particular candidate; or

(iv). exhibits, except with the permission of the Returning Officer and at a place reserved for the candidate or his polling agent beyond the radius of one hundred meters of the polling station, any notice, sign, banner or flag designed to encourage the voter to vote, or discourage the voters from voting, for any contesting candidate.

79. Disorderly conduct near polling station. A person is guilty of an offence punishable with imprisonment for a term which may extend to three months, or with fine which may extend to three thousand rupees, or with both, if he—

(a) uses, in such manner as to be audible within the polling station any gramophone,megaphone, loudspeaker or other apparatus for reproducing or amplifying sounds;

(b) persistently shouts in such manner as to be audible within the polling station; or

(c) does any act which

(i). disturbs or causes annoyance to any voter visiting a polling station for the purpose ofvoting;

(ii). interferes with the performance of the duty of the presiding officer, polling officer orany other person performing any duty at a polling station; or

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(iii). abets the doing of any of the aforesaid acts.

80. Tampering with papers. A person is guilty of an offence punishable with imprisonment for a term which may extend to six month with fine which may extend to six thousand rupees, or with both if he—

(a) fraudulently defaces or destroys any nomination paper or ballot paper;

(b) fraudulently takes out of the polling station any ballot paper or puts into any ballot boxany ballot paper other than the ballot paper he is authorised under the rules to put in;

(c) without due authority—

(i). supplies any ballot paper to any person;

(ii). destroys, takes, opens or otherwise interferes with any ballot box or packet or ballotpaper in use for the purpose of election; or

(iii). breaks any seal affixed in accordance with the provisions of the rules; or

(d) causes any delay or interruption in the beginning, conduct or the completion of theprocedure required to be immediately carried out on the close of the poll; or

(e) fraudulently or without due authority attempts to do any of aforesaid acts.

81. Interference with the secrecy. A person is guilty of an offence punishable with imprisonmentwhich may extend to six months, or with fine which may extend to six thousand rupees, or with both, if he

(a) interferes or attempts to interfere with a voter when he records his vote;

(b) in any manner obtains or attempts to obtain, in a polling station information as to thecandidate for whom a voter in that station is about to vote or has voted; or

(c) communicates at any time any information obtained in a polling station as to the candidatefor whom a voter in that station is about to vote or has voted.

82. Failure to maintain secrecy— Any candidate or polling agent attending a polling station, or any person attending the counting of votes, is guilty of an offence punishable with imprisonment which may extend to six months, or with fine which may extend to six thousand rupees, or with both, if he—

(a) fails to maintain or aid in maintaining the secrecy of voting; or

(b) communicates any information obtained at the counting of votes as to the candidate for whom any vote is given by any particular ballot paper.

83. Conduct of officials. A presiding officer, Polling Officer or any officer or clerk performing aduty in connection with an election, or any member of a police force, is guilty of an offence punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both, if he, during the conduct or management of an election or maintenance of order at the polling station—

(a) persuades any person to give his vote;

(b) dissuades any person to give his vote;

(c) influences in any manner the voting of any person;

(d) does any other act calculated to further or hinder the election of a candidate;

(e) fails to maintain or aid in maintaining the secrecy of voting;

(f) communicates, except for any purpose authorized by any law, to any person before the poll is closed any information as to the name or number on the electoral roll of any voter who has or has not applied for a ballot paper, or has or has not voted at a polling station; or

(g) communicates any information obtained at the counting of votes as to the candidate for whom any vote is given by any particular ballot paper.

84. Breach of official duty. A Presiding Officer or any other person employed by any such officer in connection with his official duties imposed by or under this Ordinance, is guilty of an offence punishable with fine which may extend to five thousand rupees if he, without reasonable cause does or omits to do an act to breach of any official duty.

85. Assistance by Government servants. A person in the service of the Federal Government, a Provincial Government, a local government, or a body owned or controlled by the Federal Government or a Provincial Government is guilty of an offence punishable with imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both, if he, in any manner, gives any assistance calculated to further or hinder the election of a candidate.

86. Summary trial. All offences under this Chapter, except the offences under section 73 to 76, shall be tried summarily under the provisions of the Code of Criminal Procedure 1898 (Act V of 1898).

[1][**87. Jurisdiction of cour**ts barred. No court shall question the legality of any action taken in good faith by or under the authority of the Election Commission, the Commissioner, a returning officer, presiding officer or an assistant presiding officer or any decision given by any of them or any other officer or authority appointed under this Ordinance or the rules made thereunder.]

88. Power to make rules. The Federal Government may, by notification in the official Gazette,make rules for carrying out the purposes of this Chapter.

[1][**88A. Removal of difficulties.**— (1) If any difficulty arises in giving effect to any of the provisions in this chapter of this Ordinance as in force, the Election Commission may make such orders, directives or instructions for the removal of difficulty as it may deem fit.

(1) The provision of this section shall come into force at once, notwithstanding sub-section (3) of section 1.

88B. Overriding effect.— (1)The provisions of this Ordinance as amended by the Cantonments (Amendment) Ordinance, 2015 (VI of 2015) shall have effect, notwithstanding anything contained in the Cantonments Act, 1924 (II of 1924) or any other law for the time being in force.

(2) The provision of this section shall come into force at once, notwithstanding sub-section (3) ofsection 1.]

[1]Subs. and Ins. by Act XX of 2015, ss 17-18.

CHAPTER X

SUPERVISION AND CONTROL

89. Power of Government to require production of documents. The Federal Government such other authority as it may authorize by the Government in this behalf may, at any time require a local government in the cantonment—

(a) to produce any record, correspondence, plan or other document in its possession or underits control;

(b) to furnish any return, plan, estimate, statement, accounts or statistics relating to itsproceedings, duties or works; and

(c) to furnish or obtain and furnish any report;

90. Power of Competent Authority to call for documents. The Competent Authority may—

(a) call for any book or documents in the possession or under the control of a local government; and

(b) require the local government to furnish such statements, accounts reports and copies ofthe documents relating to the proceedings, duties or works as he thinks fit.

91. Power to require execution of works, etc. If, on receipt of any information or report obtained under section 89 or 90, the Federal Government or, as the case may be, the Competent Authority is of opinion.—

(a) that any duty imposed on a local government by or under this Ordinance has not been performed or has been performed in an imperfect, inefficient or unsuitable manner; or

(b) that adequate financial provision has not been made for the performance of any such duty, it or he may direct the concerned local government, within such period as it or he thinks fit, to make arrangements to its or his satisfaction for the proper performance of the duty, or, as the case may be, to make financial provision to its or his satisfaction for the performance of the duty:

Provided that, unless in the opinion of the Federal Government or the Competent Authority, as the case may be, the immediate execution of such order is necessary, it shall, before making any direction under this section, give the concerned local government opportunity of showing cause why such direction should not be made.

92. Power to provide for enforcement of direction under section 91. If, within the period fixedby a direction made under section 91 any action directed under that section has not been duly taken, the Federal Government or the Competent Authority, as the case may be, may make arrangements for taking of such action and may direct that all expenses connected therewith shall be defrayed out of the local fund.

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93. Power to override decision of the local government.— (1) If the President, dissents with decision of a local government which he considers prejudicial to the health, welfare discipline or security of the troops in the cantonment, he may, for the reasons to be recorded, by order direct the suspension of action thereon for any period not exceeding one month, and, if he does so, he shall forthwith refer the matter to the Garrison Commander and in case the Officer Commanding the station is himself the Garrison Commander, to the Corps Commander for final decision.

(2) The Director (ML&C) shall assist and advise the Garrison Commanders Corps Commanders, and officers of equivalent command for Naval and Air Force Cantonments in the performance of this function.

94. Power of Garrison Commander on reference under section 93. When any decision of thelocal government has been referred to him under section 93, the Garrison Commander may, by order in writing—

(a) cancel the order given by the President directing the suspension of action; or

(b) extend the duration of the order for such period as he thinks fit; or

(c) after giving the local government a reasonable opportunity of showing cause why such directions shall not be made, direct that the decision shall not be carried into effect or thatit shall be carried out by the local government with such modifications as he may specify.

95. Inspection.— (1) There shall be an annual inspection of Cantonment Administration under arrangements of respective Garrison Commander and, in case the Officer Commanding the station is himself the Garrison Commander, under the arrangements of the Corps Commander.

(2) The Director (ML&C) shall assist and advise the Garrison Commanders, Corps Commanders and officers of equivalent command for Naval and Air Force Cantonments in the performance of this function.

(3) The inspecting authority shall advise the Cantonment Administrator to take appropriate actionon the report within thirty days.

(4) The Cantonment Administrator shall annually inspect the Union Administration.

(5) The Cantonment Administrator shall advise the Union Nazim to take appropriate action on thereport within thirty days.

(6) If any action is required to be taken against the concerned Nazim, the Cantonment Administrator may, initiate proceedings for recall against such Nazim as provided in section 39.

96. Report on administration. Every Cantonment Administration shall, as soon as may be after the close of the year and not later than the date fixed in this behalf by the Government, submit to the Government, through the Competent Authority a report on the administration of the cantonment including of the Union Councils therein, during the preceding financial year, in such form and containing such details as the Government may direct. The comments, if any of the Competent Authority on the report shall, be communicated by him to the Cantonment Administration which shall be allowed a reasonable time to furnish a reply thereto and the comments together with the reply, if any, shall be forwarded to the Government along with the report.

97. Enquiries.— (1) The Garrison Commander and in case the Officer Commanding the station is himself the Garrison Commander, the Corps Commander or the Director General (ML&C) may require a Cantonment Administrator to conduct an enquiry into any matter concerning respective local government and submit the report along with the proceedings of the enquiry.

(2) The Director (ML&C) shall assist and advise the Garrison Commanders Corps Commanders and officers of equivalent command for Naval and Air Force Cantonments in the performance of this function.

(3) On the basis of the findings of the enquiry, the Garrison Commander, and in case the Officer Commanding the station is himself the Garrison Commander, the Corps Commander, shall advise the Cantonment Administrator and the President to take appropriate action on the report within thirty days and place it before the Board for information.

(4) In case of a Union Council the Cantonment Administrator may require a Union Nazim to conduct an enquiry into any matter concerning the Union Council and submit a report along with the proceedings of the enquiry to the Cantonment Administrator.

(5) On the basis of findings of enquiry, the Cantonment Administrator shall advise the Union Nazim to take appropriate action on the report within thirty days and place it before the Union Council for information.

98. Transparency.— (1) Every citizen shall have the right to information about any office of the Cantonment Administration and Union Administration.

(2) Every office shall provide requisite information, if not restricted under any law for the time being in force, on the prescribed forms and on payment of such fee as may be prescribed.

(3) Information about the staffing and the performance of the office of a local government during the preceding month shall, as far as possible, be displayed at a prominent place within the premises ofthe office for access by the citizens.

99. Monitoring by committees.— (1) The Monitoring Committees of Board shall be responsible for monitoring the functioning of the offices of the Cantonment Administration and preparing quarterly evaluation reports on the prescribed format.

(2) The Monitoring Committees of Union Council shall be responsible for monitoring the functioning of all offices of local government, Cantonment Administration and Union Administration for delivery of services within its area and preparing quarterly evaluation reports on the prescribed format.

(3) The reports referred to in sub-sections (1) and (2) shall, in particular, contain evaluation of theperformance of each office in relation to—

(a) achievement of its targets;

(b) responsiveness to citizens difficulties;

(c) efficiency in the delivery of services; and

(d) transparent functioning.

(4) The Monitoring Committees shall submit their quarterly reports to the respective Boards or councils which may through a resolution require the Cantonment Administrator to take necessary action.

(5) The Monitoring Committees shall function without intruding and interfering in the day to dayworking of the offices of the local governments and shall not cause any harassment to the functionaries thereof, nor shall assume command and control of such offices.

(6) Notwithstanding any punishment provided in any law for the time being in force, any memberof the Monitoring Committee violating the provisions of sub-section (4) and sub-section (5) shall be removed from the Monitoring Committee by the respective Board or council.

(7) Any functionary being aggrieved of any misbehaviour, undue interference, harassment or misconduct by a member or members of a Monitoring Committee may report to the Ethics Committee of the concerned local government and may invoke disqualification proceedings against such member or members.

(8) The concerned Monitoring Committee may recommend to the President the payment of bonuses or performance pay to the functionaries of the local governments in recognition of their efficient performance, subject to availability of funds for this purpose.

(9) The concerned Monitoring Committee may identify inefficiency or corruption of functionaries of local governments and report to the President for appropriate action and remedial measures and the President shall inform the concerned Board or council within thirty days of the action taken by him.

100. Code of Conduct Committees of the Union Councils and the Board.— (1) There shall be an Ethics Committee of each Union Council and Board, consisting of such number of members as the Union Council or the Board may determine.

(2) The Ethics Committee shall ensure adherence of all members of the Union Councils and the Boards, Vice-Presidents, Nazims and Naib Nazims to the prescribed code of ethics for promoting theirhonest, responsible and efficient functioning and behaviour.

(3) The Ethics Committee shall monitor the conduct of the members and report to the concerned Union Council and the Board the incidents of inefficiency and corruption.

(4) On receipt of a report under sub-section (3), a Union Council or Board may, by resolution of the majority of its members, invoke proceedings of disqualification against such member.

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CHAPTER XI

LOCAL GOVERNMENT PROPERTY AND CONTRACTS PROPERTY

101. Local government property. Subject to any special reservation made by the Government, all property of the nature hereinafter in this section specified which has been acquired or succeeded from the predecessor Board or provided or is maintained by a local government shall vest in, and belong to, the concerned local government and—

(a) all markets, slaughter-houses, manure and night soil depots and buildings of everydescription;

(b) all water-works for the supply, storage or distribution of water for public purposes and allbridges, buildings, materials, and things connected therewith or appertaining thereto;

(c) all sewers, drains, culverts and water-courses, and all works, materials and things aspertaining thereto;

(d) all dust, dirt, dung, ashes, refuse, animal matter, filth and rubbish of every kind, and dead bodies of animals, collected by the concerned local government from the streets, houses, privies, sewers, cesspools or elsewhere, or deposited in places appointed by the local government for such purpose;

(e) all lamps and lamp-posts and apparatus connected therewith or appertaining thereto;

(f) all lands or other property transferred to the local government by the Federal Government or a Provincial Government, or by gift, purchase or otherwise for local public purposes; and

(g) all streets and pavements, stones and other materials thereof, and also all trees, erections, materials, implements, and things existing on or appertaining to streets, shall be under its direction, management and control.

102. Application of local government property. All properties vested in a local government shall be applied for the purposes, whether express or implied, for which, by or under this Ordinance or any other law for the time being in force, powers are conferred or duties or obligations are imposed upon the local government:

Provided that the local government shall not incur any expenditure for acquiring and renting landbeyond the cantonment limits,—

(a) with sanction of the Government; and

(b) on such terms and conditions as the Government may impose.

103. Surcharge for the loss, etc. Every member of a local government, every official or servant of a local government and every person charged with the administration of a local government or acting on behalf of a local government shall be liable for the loss, waste, misappropriation or misapplication of any money or property belonging to a local government, which is direct consequence of his negligence or misconduct and shall be liable to pay such surcharge as may be determined by the Government and after giving the person concerned a reasonable opportunity of being heard, such amount shall be recoverable as a public demand or as arrear of land revenue.

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104. Acquisition of immovable property. When there is any hindrance to the permanent or temporary acquisition upon payment of the land required by a local government for the purpose of this Ordinance the Provincial Government may, at the request of local government procure the acquisition thereof under the provisions of the Land Acquisition Act, 1894 (I of 1894) and on payment by the local government of the compensation awarded under the said Act and of the charges incurred by the Provincial Government in connection with the proceedings, the land shall vest in the concerned local government.

105. Stock taking.— (1) The Cantonment Administrative Officer shall, on assumption of his officeand thereafter, once in every year on a date fixed by him, take the physical stock of moveable and immoveable properties of the Cantonment Administration and submit a report to the Board.

(2) The report referred to in sub-section (1) shall contain—

(a) particulars of the properties held during the preceding year;

(b) total value of the property, annual return therefrom and change in its value, if any;

(c) particulars of unserviceable articles;

(d) particulars of losses, if any; and

(e) proposals for utilization, development and improvement during the following year.

106. Power to make rules regarding property. The Government by notification in the official Gazette, may make rules to provide for all or any of the following matters, namely:

(a) the conditions on which property may be acquired by a local government or on which property vested in a local government may be transferred by sale, mortgage, lease, exchange or otherwise; and

(b) any other matter relating to the local government property in respect of which no provision or insufficient provision is made by or under this Ordinance, and provision is, in the opinion of the Government necessary.

CONTRACTS

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107. Essential requirement of a contract. Every contract made on behalf of the Cantonment Administration shall be in writing as prescribed and be sealed with the common seal of the Cantonment Administration.

108. Power to make rules regarding contracts. The Government shall prescribe by rules, the authority to make contracts, manner of making contracts, personal responsibility of the persons approving or making contracts, mode of inviting tenders, security for performance of contracts, enforcement of contracts, and other conditions for the completion of contracts.

CHAPTER XII

PUBLIC SAFETY AND SUPPRESSION OF NUISANCES DANGEROUS AND OFFENSIVE TRADES

109. Dangerous and offensive articles and trades.— (1) The articles and trades specified in the Second Schedule shall be deemed to be dangerous or offensive for the purpose of this section

(2) Except under and in conformity with the conditions of a licence granted by the concerned local government—

(a) no person shall carry on any dangerous and offensive trade;

(b) no premises shall be used or offered to be used for any dangerous or offensive trade; and no person shall store or keep in any premises

(i) any dangerous or offensive articles for domestic use; or

(ii) any dangerous or offensive articles in excess of such limits and quantity as may befixed by the bye-laws.

(3) Notwithstanding the grant of a licence under sub-section (2), the concerned local government-may, for reasons to be recorded, and after notice to the person affected, pass on order for the prohibition, closure or removal of any offensive and dangerous trade of article if such action is deemed expedient or necessary to implement the order.

PREVENTION OF FIRE

110. Use of inflammable materials for building purposes.— (1) The Cantonment Administration may, by public notice, direct that within such limits in the local area as may be specified in the notice, the roofs and external walls of huts or other buildings shall not, without the permission in writing of the Cantonment Administration, be made or renewed of grass, mats, leaves or other inflammable materials, and may, by notice in writing, require any person who has disobeyed any such direction as aforesaid to remove or alter the roofs or walls so made or renewed.

(2) The Cantonment Administration may, require the owner of any building which has no externalroof or wall made of any such material as aforesaid to remove such roof or wall within such time as may be specified in the notice, notwithstanding that a public notice under sub-section (1) has not been issued or the such roof or wall was made with the consent of the Cantonment Administrationor before the issue of such public notice:

Provided that, in case of any such roof or wall in existence before the issue of such a public notice or made with the consent of the Cantonment Administration, the Cantonment Administration shall make compensation, not exceeding the original cost of constructing the roof or wall, for any damage caused by the removal.

111. Stacking or collecting inflammable materials. A local government may, by public notice, prohibit in any case where such prohibition appears to it to be necessary for the prevention of danger to life or property, the stacking or collecting the wood, dry grass, straw or other inflammable materials, or the placing of mats or thatched huts or the lighting of fires in any place in the local area, or within any limits therein, which may be specified in the notice.

112. Care of naked lights. No person shall set a naked light on or near any building in any streetor other public place in a cantonment in such manner as to cause danger of fire:

Provided that nothing in this section shall be deemed to prohibit the use subject to the permission in writing of local government, of lights for purposes of illumination on the occasion of a festival or public or private entertainment.

113. Fire-fighting.— (1) For the prevention and extinction of fires, the Cantonment Administrationshall maintain a fire brigade consisting of such staff and such number of fire stations and such implements, machinery, equipment and means of communicating intelligence as may be necessary.

(2) The Cantonment Administration shall prepare fire-fighting plan and revise it at least once a year.

114. Discharging fire works, fire-arms, etc. No body in a local area shall discharge any fire armor let off fire works or fire balloons, or detonate, engage in any game or carry on works such as blasts,timber cutting or building operation in such manner as to cause or likely to cause danger to persons passing by or dwelling or working in the neighborhood or risk of injury to property.

PUBLIC SAFETY

115. Power to require buildings, wells, etc. to be rendered safe. Where in a local area any building or wall or anything affixed thereto, or any well, tank, reservoir, pool, depression, or excavation, or any bank or tree, is in the opinion of the Cantonment Administration in a ruinous state or for want of sufficient repairs, protection or enclosure a nuisance or dangerous to persons passing by or dwelling or working in the neighborhood, the Cantonment Administration by notice in writing require the owner or part owner or person claiming to be the owner or part owner thereof, or failing any of them the occupier thereof to remove the same, or may require him to repair, or to protect or enclose the same in such manner as it thinks necessary; and, if the danger is, in the opinion of the Cantonment Administration, imminent, it shall forthwith take such steps as it thinks necessary to avert the same.

116. Enclosure of waste land used for improper purposes. The Cantonment Administration may, by notice in writing, require the owner or part-owner, of any building or land in the local area or the lessee or the person claiming to be the lessee of any such land, which by reason of disuse or disputed ownership or other causes, has remained unoccupied and has become the resort of idle and disorderly persons or of persons who have no ostensible means of subsistence or cannot give a satisfactory account of themselves, or is used for gaming or immoral purposes, or otherwise occasions or is likely to occasion a nuisance, to secure and enclose the same within such time as may be specified in the notice.

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117. Civil defence. The Cantonment Administration shall be responsible for the civil defence of its local area, and shall in this behalf, perform such functions as may be specified by Government.

118. Floods. For the fighting of floods, rescuing of people from the flood affected areas, and affording relief of flood-stricken people, the Cantonment Administration shall provide such boats, appliances and equipments as may be specified by Government.

119. Registration and control of dogs.— (1) A Board may make bye-laws to provide for the registration of all dogs kept within such area or of areas within cantonment as may be specified.

(2) Such bye-laws shall—

(a) require the registration, by the Cantonment Administration of all dogs kept within the area or areas specified or any part thereof;

(b) require that every registered dog shall wear a collar to which shall be attached a metal token to be issued by the registration authority of the concerned Cantonment Administration and fix the fee payable for the issue thereof;

(c) require that any dog which has not been registered or which is not wearing such token shall, if found in any public place, be detained at a place set apart for the purpose; and

(d) fix the fee which shall be charged for such detention and provide that any such dog shall be liable to be destroyed or otherwise disposed of unless it is claimed and the fee in respect thereof is paid within one week, and may provide for such other matters as the Board thinks fit.

(3) A Cantonment Administration may:

(a) cause to be destroyed or confined for such period as it may direct, any dog or other animalwhich is, or is reasonably suspected to be, suffering from rabies, or which has been bittenby any dog or other animal suffering or suspected to be suffering from rabies; and

(b) by public notice direct that, after such date as may be specified in the notice, dogs which are without collars or without marks distinguishing them as private property and are foundstraying on the streets or beyond the enclosures of the houses of their owners if any may be destroyed, and cause them to be destroyed accordingly.

(4) No damages shall be payable in respect of any dog or other animal destroyed or otherwise disposed of under this section.

(5) Whoever, being the owner and the person in charge of any dog, neglects to restraint it so that it shall not be at large in any street without being muzzled and without being secured by a chain lead or leash in any case which—

(a) he knows that the dog is likely annoy or intimidate any person; or

(b) the Cantonment Administration has, by public notice during the prevalence of rabies, directed that dogs shall not be at large without muzzles and leash, shall be punishable withthe punishment as provided in the Third Schedule.

(6) Whoever—

(a) allows any ferocious dog which belongs to him or is in his charge to be at large without being muzzled; or

(b) sets on or urges any dog or other animal to attack, worry or intimidate any person, or

(c) knowing or having reason to believe that any dog or animal belonging to him or in his charge has been bitten by an animal suffering or reasonably suspected to be suffering from rabies, neglects to give immediate information of the fact to the Cantonment Administration or gives information which is false, shall be punishable with punishment as provided in the Third Schedule.

120. Traffic control.— (1) The Board shall, by bye-laws, make such arrangements for the control and regulation of traffic as may be necessary to prevent danger to and ensure the safety, convenience and comfort of the public.

(2) The Cantonment Administration may, provide for parking motor vehicles on such public places as may be determined by it.

121. Public vehicles.— (1) No person shall keep or let for hire or drive or propel, within the limits of the cantonment, any public vehicle, except under a licence granted by the Cantonment Administration, and in conformity with the conditions of such licence.

(2) No horse or other animal shall be used for drawing a public vehicle within the local area except under the licence granted by the Cantonment Administration and in conformity with the conditions of such licence.

(3) The Cantonment Administration shall, in such manner as in the bye-laws may fix the rate of fares for the use of public vehicles except motor vehicles, and no person plying a public vehicle shall charge a rate in excess thereof.

(4) In this section, the expression "public vehicle" means any vehicle except a motor vehicle which ordinarily plies for hire.

122. Public ferries.— (1) The Board may, by bye-laws provide for the licensing of boats and other vessels plying for hire in a public watercourse and may specify the terms and conditions for the grant of licences and the fees to be charged therefor.

(2) Government may declare any part of the public watercourse to be a public ferry and may entrust the management thereof to the Cantonment Administration which shall manage and operate the public ferry in such manner and levy such toll as may be necessary.

CHAPTER XIII

SANITATION AND THE PREVENTION AND TREATMENT OF DISEASE SANITARY AUTHORITIES

123. Responsibility for sanitation. The following officers shall, for the purposes of sanitation, have control over, and be responsible for maintaining in a sanitary condition, those parts of a cantonment, respectively, which are specified in the case of each, that is to say:

(a) the Officer Commanding the station all buildings and lands which are occupied or used for army purposes;

(b) the Officer Commanding the naval forces in the cantonment all buildings and lands which are occupied or used for naval purposes;

(c) the Officer Commanding the air force in the cantonment all buildings and lands which areoccupied or used for air-force purposes;

(d) the Officer Commanding the Defence Production cantonment all buildings and landswhich are occupied or used for Defence Production purposes; and

(e) the head of any civil department occupying as such any part of the cantonment allbuildings and lands in his charge as head of that department.

124. General duties of Health Officer.— (1) The Health Officer shall exercise a general sanitary supervision over the whole cantonment, and shall submit monthly to the Board report as to the sanitary condition of the cantonment, together with such recommendations in connection herewith as he thinks fit.

(2) The Assistant Health Officer shall perform such duties in connection with the sanitation of thecantonment as are, subject to the control of the Cantonment Administration, allotted to him by the Health Officer.

125. Public latrines, urinals and conservancy establishment. All public latrines and urinals provided or maintained by a Cantonment Administration shall be so constructed as to provide separate compartments for each sex and not to be a nuisance, and shall be provided with all necessary conservancy establishment, and shall regularly be cleansed and kept in proper order.

126. Private latrines and urinals.— (1) A Cantonment Administration may, by notice in writing—

(a) require any person having the control whether as owner, lessee or occupier of any land orbuilding—

(i) to close any cesspool appertaining to the land or building which is, in the opinion of the Cantonment Administration a nuisance;

(ii) to keep in a clean condition, in such manner as may be prescribed by the notice, anyreceptacle or filth or sewage accumulating on the land or in the building;

(iii) to prevent the water of any private latrine, urinal, sink or bath-room or any other offensive matter, from soaking, draining or flowing, or being put, from the land or building upon any street or other public place or into any watercourse or other specified water body or into any drain not intended for the purpose;

(iv) to collect and deposit for removal by the conservancy establishment of the Cantonment Administration within such time and in such receptacle or place, situated at not more than thirty-five metres from the nearest boundary of the premises, as may be specified in the notice, any offensive matter or rubbish which such person has allowed to accumulate or remain under, in or on such building or land; or

(b) require any person to desist from making or altering any drain leading into a public drain;or

(c) require any person having the control of a drain to cleanse, purify, repair or alter the same,or otherwise put it in good order, within such time as maybe specified in the notice.

(2) Where any premises are without privy or urinal accommodation, or without adequate privy orurinal accommodation, or the privy or urinal is on any ground objectionable, the Cantonment Administration may, by notice, require the owner or occupier of such premises—

(a) to provide such or such additional privy or urinal accommodation as may be prescribed inthe notice;

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(b) to make such structural or other alteration in the existing privy or urinal accommodation as may be so specified;

(c) to remove the privy or urinal; and

(d) where there is any underground sewerage system to substitute connected privy or connected urinal accommodation or any servile privy or service urinal accommodation.

(3) In case the owner or occupier of any building or land who has been served notice under sub- section (2), fails to make arrangements to the satisfaction of the Cantonment Administration for the matter referred to in this section, the Cantonment Administration may undertake such roles and the cost so incurred shall be deemed to be a tax levied under this Ordinance on the owner or occupier.

(4) The Cantonment Administration may, by notice in writing,—

(a) require the owner or other person having the control of any private latrine or urinal not to put the same for public use; or

(b) where any plan for the construction of private latrines or urinals has been approved by theCantonment Administration and copies thereof may be obtained free of charge on application;

(i) require any person repairing or constructing any private latrine or urinal not to allow the same to be used until it has been inspected by or under the direction of the Cantonment Administration and approved by it as conforming with such plan; or

(ii) require any person having control of any private latrine or urinal to re-build or alter the same in accordance with such plan; or

(c) require the owner or other person having the control of any such private latrine or urinal which, in the opinion of the Cantonment Administration constitutes a nuisance, to removethe latrine or urinal; or

(d) require any person having the control whether as owner, lessee or occupier of any land orbuilding—

(i) to have any latrines provided for the same covered by a sufficient roof and wall orfence from the view of persons passing by or dwelling in the neighbourhood; or

(ii) to keep such latrine or urinal in proper state to the satisfaction of the Cantonment Administration and to employ such staff for the purpose as may be necessary or asmay be specified by the Cantonment Administration; or

(e) require any person being the owner and having the control of any drain to provide, withinten days from the service of the notice, such covering as may be specified in the notice.

127. Removal, collection and disposal of refuse.— (1) The Cantonment Administration shall makeadequate arrangement for the removal of refuse from all public roads and streets, public latrines, urinals, drains and all buildings and lands vested in a local government and for the collection and disposal of such refuse.

(2) The occupiers of all other buildings and lands within the local area of a Cantonment Administration shall be responsible for the removal of refuse from such buildings and lands subject to the general control and supervision of the Cantonment Administration where relevant.

(3) The Cantonment Administration shall cause public dustbins or other suitable receptacles to be provided at suitable places and where such dustbins or receptacles are provided, the Cantonment Administration may, by public notice, require that all refuse accumulating in any premises or land shall be deposited by the owner or occupier of such premises or land in such dustbins or receptacles.

(4) All refuse removed and collected by the staff of a Cantonment Administration or under its control and supervision and all refuse deposited in the dustbins and other receptacles provided by the Cantonment Administration shall be its property.

(5) The Cantonment Administration may, by notice issue directions as to the manner in which andthe conditions subject to which, any matter referred to in this section may be carried out.

128. Power of Cantonment Administration to undertake private conservancy arrangements.— (1) On the application or with the consent of the occupier of any building or land and if an occupier fails to make arrangements to the satisfaction of the Health Officer for the matters referred to in this section, without such consent, and after giving notice in writing to the occupier, the Cantonment Administration may undertake the house scavenging of any building or land in the local area for such period as it thinks fit on such terms as it may prescribe in this behalf.

(2) Where the Cantonment Administration has undertaken the duties referred to in this section, allmatters removed in the performance of such duties shall be the property of the Cantonment Administration.

129. Insanitary building and lands.— (1) The Cantonment Administration may, by notice, require the owner or occupier of any building or land which is in insanitary or unwholesome state—

(a) to clean or otherwise put it in a proper state;

(b) to make arrangements to the satisfaction of the Cantonment Administration for its propersanitation; and

(c) to limewash the building and to make such essential repairs as may be specified in thenotice.

(2) If in the opinion of the Cantonment Administration any well, tank, reservoir, pool, depression,or excavation, or any bank or tree, is in a ruinous state or for want of sufficient repairs, protection or enclosure and a nuisance or dangerous to persons passing by or dwelling or working in the neighbourhood, the Cantonment Administration may by notice in writing, require the owner or part- owner or person claiming to be the owner or part-owner thereof, or, failing any of them, the occupier thereof to remove the same, or may require him to repair, or to protect or enclose the same in such manner as it thinks necessary and, if the danger is, in the opinion of the Cantonment Administration imminent, it shall forthwith take such steps as it thinks necessary to avert the same.

(3) In case of failure to comply with the requirements of sub-sections (1) and (2) the Cantonment Administration may seal the premises till the owner meets the requirements under the supervision of Cantonment Administration.

130. Removal of congested buildings.— (1) Where it appears to a Cantonment Administration that any block of buildings in the local area is in an unhealthy condition by reason of the manner in which the buildings are crowded together or of the narrowness or the closeness of the street, or the want of proper drainage or ventilation, or of the impracticability of cleaning the buildings or other similar cause, it may cause the block to be inspected by a committee consisting of—

(a) the Health Officer, or the Assistant Health Officer;.

(b) an elected member of the Board; and

(c) the Cantonment Administration Engineer.

(2) The committee shall make a report in writing to the Cantonment Administration regarding the sanitary condition of the block, and if it considers that the condition thereof is likely to cause risk of disease to the inhabitants of the building or of the neighbourhood or otherwise to endanger the public health, it shall clearly indicate on a plan verified by the Engineer, the building which should in its opinion wholly or in part be removed in order to abate the unhealthy condition of the block.

(3) If, upon receipt of such report, the Cantonment Administration is of opinion that all or any buildings indicated should be removed, it may, by notice in writing, require the owners thereof to remove them:

Provided that the Cantonment Administration shall make compensation to the owners for any buildings so removed which may have been erected under proper authority:

Provide further that the Cantonment Administration way, if it considers it equitable in the circumstances so to do, pay to the owner such sum as it thinks fit as compensation for any buildings to be removed which have not been erected under proper authority.

(4) For the purposes of this section the expression "buildings" includes enclosures, walls, and fences appertaining to buildings.

131. Overcrowding of dwelling houses. Where it appears to a Cantonment Administration that any building or part of a building in the local area which is used as a dwelling house is so overcrowded as to endanger the health of the inmates thereof, it may after such inquiry as it thinks fit, by notice in writing require the owner or occupier of building or part thereof, as the case may be, within such time not being less than one month as may be specified in the notice, to abate the overcrowding of the same by reducing the number of lodges, tenants, or other inmates to such number as may be specified in the notice.

132. Power to require repair or alteration of buildings.— (1) Where any building in a local area is so ill-constructed or dilapidated as to be, in the opinion of the Cantonment Administration in an insanitary state, it may, by notice in writing, require the owner, within such time as may be specified in the notice, to execute such repairs or to make such alterations as it thinks necessary for the purpose of removing such defects.

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(2) A copy of every notice issued under sub-section (1) shall be conspicuously posted on the building to which it relates.

(3) A notice issued under sub-section (1) shall be deemed to have been complied with if the owner of the building to which it relates has, instead of executing the repairs or making the alterations directed by the notice, removed the building.

133. Infectious diseases.— (1) The Cantonment Administration shall adopt measures to prevent infectious diseases and to restrain infection within its local area.

(2) The Cantonment Administration shall subject to the availability of funds for the purpose, establish and maintain one or more hospitals for the reception and treatment of persons suffering from infectious diseases.

134. Medical aid and relief and medical education. The Cantonment Administration may take such measures as may be necessary or as may be specified by the Government for

(a) the provision, maintenance and management of First Aid Centres;

(b) the provision, maintenance and management of mobile medical aid units;

(c) the provision and encouragement of societies for the provision of medical aid;

(d) the payment of grants to institutions for medical relief; and

(e) the medical check up of the children of schools maintained by it.

135. Bathing and washing places.— (1) The Cantonment Administration may from time to time—

(a) set apart suitable places for use by the public for bathing on payment of such fees for theuse thereof as fixed by the Board;

(b) specify the time at which and the sex of persons by whom such places may be used; and

(c) prohibit by public notice, the use by the public for any of the said purposes of any place not so set apart.

(2) No person shall establish, maintain or run a hamam or a bath for public use except under a licence granted by the Cantonment Administration and in conformity with the conditions and term of such licence.

136. Power to call for information regarding burial grounds and cremation places.— (1) The Cantonment Administration may, by notice in writing, require the owner or person in charge of any burial or burning ground within its area to supply such information as may be specified in the notice concerning the condition, management or position of such ground.

(2) No place which has not been used as a burial or burning ground before the commencement of this Ordinance shall be so used without the permission in writing of the Cantonment Administration.

(3) No new burial or burning place shall be established within the local area of a Cantonment Administration except under a licence granted by the Cantonment Administration and in conformity with the conditions of such licence.

(4) A burial or burning place which is not administered by a Cantonment Administration shall be registered with the Cantonment Administration and shall be subject to regulation, supervision and inspection by it in such manner as the bye-laws may provide.

(5) The Government may, by notification in the official Gazette, declare that any burial or burningplace which is open to public for burial or burning shall vest in a Cantonment Administration and thereupon such burial or burning place shall vest in the Cantonment Administration and it shall take all measures necessary for the proper maintenance and administration thereof.

(6) The Cantonment Administration may provide suitable places for the burial or burning of the dead, and shall take necessary measures for the proper maintenance and administration of such burial or burning places.

(7) Where the Cantonment Administration—

(a) after making or causing to make a local inquiry, is of opinion that any burial or burning ground in its local area has become offensive, or dangerous to, the health of persons livingin the neighbourhood, it may, by notice in writing, require the owner or person in charge of such ground to close the same from such date as may be specified in the notice; and

(b) has issued notice under clause (a), is issued, it may, provide at its own expense or, if the community concerned is willingto provide a new burial or burning ground, shall provide agrant to be made towards the cost of the same.

(8) No corpse shall be buried or burnt in any burial or burning ground respect of which a notice issued under this section is for the time being in force.

REGISTRATION OF BIRTHS, MARRIAGES AND DEATHS

137. Births, marriages and deaths. A Union Administration shall register all births, marriages and deaths within the limits of the local area and information of such births, marriages and deaths shall be given by such persons or authorities, and shall be registered in such manner as the bye-laws may provide.

ENVIRONMENTAL POLLUTION

138. Environmental pollution.— (1)The Cantonment Administration may prepare and implement schemes for the prevention of the pollution of air by gases, dust or other substances exhausted or emitted by automobile engines, factories, brick or limekilns, crushing machines for grain, stone, salt or other materials and such other sources of air pollution as the bye-laws may provide.

(2) The Cantonment Administration may prepare and implement schemes for the prevention of the pollution of noise or water or land from such sources and in such manner as the bye-laws may provide.

(3) A Cantonment Administration may, by notice in writing, require the owner or part-owner, or person claiming to be the owner or part-owner, of any building or land in the cantonment or the lessee or the person claiming to be the lessee of any such land, which, by reason of disuse or disputed ownership or other cause, has remained unoccupied and has in the opinion of the Cantonment Administration become a sanitary or environmental hazard or otherwise occasions or is likely to occasion a nuisance, to secure and enclose the same within such time as may be specified in the notice.

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CHAPTER XIV

MARKETS, SLAUGHTER-HOUSES, TRADES AND OCCUPATIONS AND ANIMALS

MARKETS AND SLAUGHTER-HOUSES

139. Public markets and slaughter-houses.— (1) The Cantonment Administration may provide and maintain within its own local area, public markets and public slaughter-houses, in such number asit, thinks fit, together with stalls, shops, sheds, pens and other buildings and or conveniences for the use of persons carrying on trade or business in or frequenting such markets or slaughter-houses and may provide and maintain in any such market buildings, places, machines, weights, scales and measures for the weighment or measurement of goods sold therein.

(2) The Cantonment Administration may at any time, by public notice either close or relocate any public market or public slaughter-house or any part thereof.

140. Use of public markets.— (1) No person shall without the general or special permission in writing of the Cantonment Administration, sell or expose for sale any animal or article in any public market.

(2) Any person contravening the provisions of this section, and any animal or article exposed for sale by such person, may be summarily removed from the market by or under the orders of the Cantonment Administration or any officer or servant of the Cantonment Administration authorized by it in this behalf.

141. Levy of stallages, rents and fees. A Cantonment Administration may, in respect of public market and public slaughter-houses:—

(a) charge for the occupation or use of any stall, shop, standing, shed or pen in a public market, or public slaughter-house; or for the right to expose goods for sale in a public market; or for weighing or measuring goods sold therein; or for the right to bring in goods on vehicles or animals brought for sale or sold; or for the right to slaughter animals in any public slaughter-house; such stallages, rents and fees as it thinks fit; including that from brokers commission agents, and others practicing their calling therein;

(b) or direct the official employed for this purpose to receive such approved rents and fees liable as aforesaid or any portion thereof for any period not exceeding one year at a time; or

(c) put to public auctions or dispose of by private sale, the privilege of occupying or using any stall, shop, standing, shed or pen in a public market or public slaughter house for such term and on such conditions as it may approve.

142. Stallages, rents, etc; to be published. A copy of the table of stallages, rents and fees, if any,leviable in any public market or public slaughter-house, and of the bye-laws made under this Ordinance for the purpose of regulating the use of su.0ch market or slaughter-house, printed in Urdu and in such other language or languages as the local government may direct, shall be affixed in some conspicuous place in the market or slaughter-house.

143. Private markets and slaughter-houses.— (1) No place in a local area other than public market shall be used as a market, and no place in a local area other than a public slaughter-house shall be used as a slaughter-house, unless such place has been licenced as a market or slaughter-house, as the case may be, by the Cantonment Administration.

(2) Nothing in sub-section (1) shall be deemed to restrict the slaughter of any animal in any placeon the occasion of any festival or ceremony, subject to such conditions as to prior or subsequent notice as the Cantonment Administration may, by public or special notice, impose in this behalf.

(3) Whoever fails to comply with any conditions imposed by the Cantonment Administration under sub-section (2) shall be punishable with the punishment as provided in the Third Schedule.

144. Conditions of grant of licence for private market or slaughter-house.—(1) A Cantonment Administration may charge such fees as approved by the Board for the grant of a licence to any person to open a private market or private slaughter-house and may grant such licence subject to suchconditions, consistent with this Ordinance and any bye-laws made thereunder, as it thinks fit to impose.

(2) The Cantonment Administration may, for reasons to be recorded, refuse to grant any such licence.

145. Penalty or keeping market or slaughter-house open without licence, etc.—(1) Any person who keeps open for public use any market or slaughter-house in respect of which a licence has not been applied for or has been refused or is suspended, or after the same has been cancelled, shall be punishable with such penalty as provided in the Third Schedule.

(2) When a licence to open a private market or private slaughter-house is granted or refused or is suspended or cancelled, the Cantonment Administration shall cause a notice of the grant, refusal, suspension or cancellation to be posted in Urdu and in such other language or languages as it thinks necessary, in some conspicuous place nearby the entrance to the place to which the notice relates.

146. Prohibition and restriction of use of slaughter-houses.— (1) Where, in the opinion of the Cantonment Administration it is necessary on sanitary grounds so to do, it may, by public notice, prohibit for such period, not exceeding one month as may be specified in the notice, or for such further period, not exceeding one month, as it may specify by a like notice, the use of any private slaughter-house specified in the notice, or the slaughter therein of any animal of any description so specified.

(2) A copy of every notice issued under sub-section (1) shall be conspicuously posted in the slaughter-house to which it relates.

147. Power to inspect slaughter-house.— (1) Any servant of a Cantonment Administration authorized by order in writing in this behalf by the Cantonment Administration may, if he has reason to believe that any animal has been, is being, or is about to be slaughtered in any place in contravention of the provisions of the Ordinance enter into and inspect any such place at any time, whether by day or by night.

(2) Every such order shall specify the place to be entered and the locality in which the same is situated and the period, which shall not exceed seven days, for which the order is to remain in force.

148. Power to make bye-laws. The Board may make bye-laws consistent with this Ordinancemake bye-laws to provide for all or any of the following matters, namely:—

(a) the days on, and the hours during, which any private market or private slaughter-houses may be kept open for use;

(b) the regulation of the design, ventilation and drainage of such markets and slaughter- houses, and the material to be used in the construction thereof;

(c) the keeping of such markets and slaughter-houses and lands and buildings appertaining thereto in a clean and sanitary condition, the removal of filth and refuse therefrom, and the supply therein of pure water and of a sufficient number of latrines and urinals for the use of persons using or frequenting the same;

(d) the manner in which animals shall be stalled at a slaughter-house;

(e) the manner in which animals may be slaughtered;

(f) the disposal or destruction of animals offered for slaughter which are, from disease or any other cause, unfit for human consumption;

(g) the destruction of carcasses which from diseases or any other cause are found after slaughter to be unfit for human consumption; and

(h) any other matters which the concerned Cantonment Administration may consider necessary including any specific exemptions from the application of the bye-laws.

149. Bye-laws for articles of food and drink. A Board may, by bye-laws—

(a) prohibit the manufacture, sale or preparation or the exposure for sale of any specified articles of food or drink in any place or premises not licenced by the Cantonment Administration;

(b) prohibit the import into its local area for sale or hawking for sale, of any specified article of food of drink by person not so licenced;

(c) prohibit the hawkings of specified articles of food and drink in such parts of its local area as may be specified;

(d) regulate the time and manner of transport within its local area of any specified articles of food or drink;

(e) regulate the grant and withdrawal of a licence under this section and the levying of fees thereof; or

(f) provide for the seizure and disposal of any animal, poultry or fish intended for food which is diseased, or any article of food or drink which is noxious.

150. Milk supply.— (1) Except under a licence granted by the Cantonment Administration and inconformity with the conditions of such licence, no person shall, unless exempted by the Cantonment Administration, keep milch cattle for the sale of milk or sell miex or expose or import milk for sale or manufacture butter, ghee, or any other milk for sale or dairy product, nor shall he use any premises for such purpose.

(2) The Cantonment Administration may, in the manner prescribed, frame and enforce a milk supply scheme which may among other matters provide for the establishment of milkmen's colonies, the prohibition of the keeping of milch cattle in the local area or any part thereof, and the adoption of such other measures as may be necessary for ensuring an adequate supply of pure milk to the public.

151. Feeding animals on dirt, etc. Whoever feeds or allows to be fed on filthy or deleterious substances any animal, which is kept for the purpose of supplying milk to, or which is intended to be used for human consumption or allows it to graze in any place in which grazing has, for sanitary reasons, been prohibited by public notice by the Cantonment Administration, shall be punishable with punishment as provided in the Third Schedule.

152. Powers of entry and seizure.— (1) An officer or servant of a Cantonment Administration authorized by it in writing in this behalf;—

(a) may at any time enter into any market, building, shop, stall or other place in the local area for the purpose of inspecting, and may inspect, any animal, article or thing intended for human food or drink or for medicine, whether exposed or hawked about for sale or deposited in or brought to any place for the purpose of sale, or of preparation for sale, or any utensil or vessel for preparing, manufacturing or containing any such article, or thing,and may enter into and inspect any place used as a slaughter-house and may examine any animal or article therein;

(b) may seize any such animal, article or thing which appears to him to be diseased; or unwholesome or unfit for human food or drink or medicine, as the case may be, or to be adulterated or to be not what it is represented to be or any such utensil or vessel which is of such a kind or in such a sate as to render any article prepared, manufactured or contained therein unwholesome or unfit for human food or for medicine, as the case may be.

(2) Any article seized under sub-section (1) which is of a perishable nature may forthwith be destroyed if, in his opinion, it is diseased, unwholesome or unfit for human food, drink or medicine, as the case may be.

(3) Every animal, article, utensil, vessel or other thing seized under sub-section (1) shall, if it is not destroyed under sub-section (2), be taken before a competent court who shall give orders as to its disposal.

(4) The owner or person in possession, at the time of seizure under sub-section (1), of any animal or carcass which is diseased or of any article of thing which is unwholesome or unfit for human food,drink or medicine, as the case may be, or is adulterated or is not what it is represented to be, or of anyutensil or vessel which is of such kind or in such state as is described in clause (b) of sub-section (1), shall be punishable with penalty as prescribed in the Third Schedule and the animal, article, utensil vessel or other thing shall be liable to be forfeited to the Cantonment Administration or to be destroyed or to be so disposed of as to prevent its being exposed for sale or used for the preparation of food, drink or medicine, as the case may be.

Explanation 1.—If any such, article, having been exposed or stored in, or brought to, any place mentioned in sub-section (1) for sale as asli (pure) ghee, contains any substance not exclusively derived from milk, it shall be deemed, for the purposes of this section, to be an article which is not what it is represented to be.

Explanation 2.—Meat subjected to the process of blowing shall be deemed to be unfit for human food.

Explanation 3.— The article of food or drink shall not be deemed to be other than what it is represented to be merely by reason of the fact that there has been added to it some substance not injurious to health.

Provided that—

(a) such substance has been added to the article because the same is required for the preparation or production thereof as an article of commerce in a state fit for carriage or consumption and not fraudulently to increase the bulk weight or measure of the food or drink or conceal the inferior quality thereof;

(b) in the process of production, preparation or conveyance of such article of food or drink, the extraneous substance has unavoidably become intermixed therewith;

(c) the owner or person in possession of the article has given sufficient notice by means of a label distinctly and legibly written or printed thereon or therewith, or by other means of a public description, that such substance has been added; or

(d) such owner or person has purchased that article with a written warranty that it was of a certain nature, substance and quality and had no reason to believe that it was not of such nature, substance and quality, and has exposed it or hawked it about or brought it for sale in the same state and by the same description as that in and by which he purchased it.

TRADES AND OCCUPATIONS

153. Licences required for carrying on of certain occupations.— (1) No person of any of the following classes, namely:—

(a) butchers and vendors of poultry, game or fish;

(b) persons keeping milch cattle or milch goats for profit;

(c) persons keeping for profit any animals other than milch cattle or milch goats;

(d) dairymen, butter men and makers and vendors of ghee;

(e) vendors of fruit or vegetables;

(f) manufacturers of ice or ice-cream, and vendors of the same;

(g) vendors of any medicines, drugs or articles of food or drink for human consumption (otherthan milk, butter, bread, biscuits, cake, fruit, vegetables, aerated or other potable water or ice or ice-cream) which are of a perishable nature;

(h) vendors of water to be used for drinking purposes;

(i) laundries and washermen;

(j) persons carrying on any trade or occupation from which offensive or unwholesome smells arise;

(k) vendors of wheat, rice and other gain or of flour;

(l) makers and vendors of sweetmeats;

(m) barbers, keepers of shaving saloons and beauty parlours; and

(n) any other trades and occupations specified in the bye-laws, or through public notice by Cantonment Administration issued from time to time.

shall carry on his trade, calling or occupation in such part of a local area as may be designated by the Cantonment Administration unless he has applied for and obtained a licence in this behalf from the Cantonment Administration.

(2) A licence granted under sub-section (1) shall be valid until the end of the year in which it is issued and the grant of such licence shall not be withheld by the Cantonment Administration unless it has reason to believe that the business which it is intended to establish or maintain would be offensive or dangerous to the public.

(3) Notwithstanding anything contained in sub-section (1), —

(a) no person who was, at the commencement of this Ordinance carrying on his trade, calling or occupation in any part of a local area shall be bound to apply for a licence for carrying on such trade or occupation in that part until he has received from the Cantonment Administration not less than three months notice in writing of his obligation to do so, and if the Cantonment Administration refuses to grant him a license, it shall pay compensation for any loss incurred by reason of such refusal; and

(b) no person shall be required to take out a licence for the sale or storage of petroleum or for the sale or possession for sale, for poisons or white arsenic in any case in which he is required to take out a licence or such sale, storage or possession under any Federal or Provincial statutes.

(4) A Cantonment Administration may charge fees for the grant of licences under this section.

154. Conditions which may be attached to licences. A licence granted to any person under section 153 shall specify the part of the local area in which the licencee may carry on his trade, calling or occupation, and may regulate the hours and manner of transport within the local area of anyspecified articles intended for human consumption and may contain any other conditions which Cantonment Administration thinks fit to impose in accordance with bye-laws made under this Ordinance.

155. Power to vary licence. If a Cantonment Administration is satisfied that any place used under a licence granted by it under this Ordinance is a nuisance or is likely to be dangerous to life, health or property, the Cantonment Administration may, by notice in writing, require the owner, lessee or occupier thereof to discontinue the use of such place or to effect such alterations, additions, or improvements as will, in the opinion of the Cantonment Administration, render it no longer a nuisance or dangerous.

156. Carrying on trade, etc., without licence or in contravention of section 155. Whoever carries on any trade, calling or occupation for which a licence is required with obtaining a licence therefore or while the licence therefore is suspended or after the same has been cancelled, and whoever, after receiving a notice under section 155, uses or allows to be used any building or place in contravention thereof, shall be punishable with punishment as provided in Third Schedule.

ANIMALS

157. Prohibition of picketing or tethering in streets. No animal shall be picketed or tethered in such streets or places as may be specified by the Cantonment Administration and any animal found picketed or tethered in any such street or place shall be liable to seizure and impounding.

158. Prohibition against keeping and maintaining cattle— (1) Notwithstanding anything to contrary contained in any other law or any agreement, instrument, custom or usage or decree, judgment or order of any court or other authority, the Cantonment Administration may declare any part of its local area as a prohibited zone.

(2) At any time after declaration under sub-section (1) has been made, the Cantonment Administration may, by general or special notice, prohibit the keeping and maintaining the cattle by any person in the prohibited zone.

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(3) No person shall, after the expiry of the period fixed under sub-section (2), keep or maintain cattle in any part of the prohibited zone:

Provided that the prohibition shall not apply to—

(a) cattle kept *bona fide* for sacrificial purpose;

(b) cattle kept for drawing carts or use in mills, with the permission of the CantonmentAdministration and subject to such conditions as it may impose;

(c) cattle under treatment in any veterinary hospital;

(d) cattle brought to a cattle market demarcated by the local government for the purpose of sale; and

(e) cattle brought to a slaughterhouse or kept by butchers for the purpose of slaughter withinthe area demarcated by Cantonment Administration.

(4) Persons affected by the prohibition order under sub-section (2) to meet their genuine needs may be allowed to keep and maintain their cattle at the places earmarked as "cattle colonies" by Cantonment Administration on such terms and conditions as it may impose.

159. Dangerous animals. A Board may, by bye-laws, define the animals which shall be deemed tobe dangerous animals and the circumstances under which animals not otherwise dangerous shall be deemed to be dangerous and such bye-laws, among other matters, may provide for the detention, destruction or disposal otherwise of such animals.

160. Disposal of carcasses. Whenever an animal in the charge of a person dies, otherwise than bybeing slaughtered for sale or consumption or for some other religious purpose such person shall either—

(a) convey the carcasses within twenty-four hours to a place, if any, fixed by the CantonmentAdministration for the disposal of the dead bodies of animals or to a place beyond the limits of cantonment, not being a place within two kilometres of such limits; or

(b) give notice of the death to the Cantonment Administration whereupon the local government shall cause the carcass to be disposed of and charge such fees from the person concerned as the bye-laws may provide.

161. Registration of the sale of the animals or cattle. A Board may, by bye laws, require that sale of such of the animals as may be specified shall be registered with the Cantonment Administration in such manner and subject to the payment of such fees as the bye-laws may provide.

162. Cattle shows, zoo, etc.— (1) A Cantonment Administration shall not hold cattle shows and fairs within the limits of its local area, but may hold bakar mandies for sale of cattle meant for slaughter and charge such fee per cattle head sold as the bye-laws may provide:

Provided that where a Board established under the Cantonments Act, 1924, was holding cattle shows and fairs before the promulgation of this Ordinance within the limits of its local area the successor local government may continue holding such cattle shows and fairs and charge such fees from the people attending such shows or fairs, as the bye-laws may provide.

(2) A Cantonment Administration may, with the previous approval of the Government, maintain or contribute towards the maintenance of zoological gardens.

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ANIMAL TRESPASS

163. Power to seize.— (1) A cultivator, tenant, occupier, vendee or mortgagee of any land or crop or produce or any part thereof or any person who has advanced cash for the cultivation of crop may seize or cause to be seized animals trespassing on such land and doing damage thereto, or any crop orproduce thereon, to send them or cause them to be sent within twenty-four hours to a pound established under this Ordinance.

(2) Persons in charge of public roads, pleasure grounds, plantations, canals, drainage works, embankments and the like, and the officers of police, may seize or cause to be seized animals doing damage thereto, and shall send them or cause them to be sent, within twenty-four hours of the seizure, to the nearest animal pound.

164. Pounds. The Cantonment Administration may establish such number of animal pounds as may be necessary and may fix, from time to time, the location of the animal pounds, the rate of feeding, watering and accommodating the impounded animals.

165. Pound keepers. The Cantonment Administration may appoint pound keepers on whole-timeor part-time basis on such terms and conditions as may be fixed.

166. Registers and returns.— (1) A pound-keeper shall keep such registers and furnish such returns as may be required by the Cantonment Administration.

(2) When animals are brought to the pounds, the pound-keeper shall enter in the register the number and description of animals, the day and hour on which they were so brought, the name and residence of the seizurer and that of the owner, if known, and shall give the seizurer or his agent a copy of such entry.

167. Possession and feeding. The pound-keeper shall take charge of feed and water the animals until they are disposed of as hereinafter provided.

168. Fines for impounded animals. For every animal impounded under this Ordinance, the pound-keeper shall levy a fine in accordance with the scale fixed by the Board and the fines so charged shall form part of and be credited to the local government fund.

169. Delivery or sale of animals.— (1) If the owner of an impounded animal or his agent appears and claim, the animal, the pound-keeper shall deliver it to him on payment of the fine and charges incurred in respect of such animal under proper receipt to be recorded by the owner or his agent in the register.

(2) If the animal is not claimed within seven days of impounding, the pound-keepers shall inform the officer in charge of the Police Station who shall thereupon display at a conspicuous place in his office a notice stating the number and description of animals and places of seizure and impounding. A similar notice shall be displayed at a conspicuous place in the office of the Cantonment Administration.

(3) If the animal is not claimed within seven days of the notice it shall be sold by the CantonmentAdministration by open auction after giving sufficient publicity in the local area:

Provided that the person auctioning the animals or the pound-keeper or his relatives shall not bidfor or purchase the impounded animals.

(4) The proceeds of the sale of the animal shall be paid to the owner if he appears within six months of the sale, after deduction of fines, feeding and other charges.

CHAPTER XV

SPATIAL PLANNING, BUILDING AND LAND USE CONTROL, STREETS, TREES etc.

PLANNING

170. Spatial plan.— (1) The Cantonment Administration may draw up spatial (master) Plan for its local area which shall, among other matters, provide for—

(a) a survey of its local area including its history, statistic public service and other particulars;

(b) development, expansion and improvement of any area within the local area;

(c) restrictions, regulations and prohibitions to be imposed with regard to the development ofsites, and the erection and re-erection of buildings within the local area; and

(d) such other matters as the Cantonment Administration may require to be included in the plan.

(2) The spatial planning in case of a cantonment forming part of a City District shall be carried out in consultation with the City District Government.

(3) After final approval of the Master Plan by the Cantonment Board, the same shall be submittedto the Garrison Commander for approval.

171. Site development schemes.— (1) Where a plan has been drawn up under section 170 and such plan has been approved, no owner of land exceeding such area as may be specified in this behalfin the plan so approved shall develop the site or erect or re-erect a building on any plot of land covered by the plan except in conformity with the provisions of a site development scheme sanctioned for the area.

(2) Where a plan has not been drawn up under section 170, no owner of land shall develop the site or erect or re-erect any building on any plot or land except in conformity with the provisions of the site development scheme sanctioned by the Cantonment Administration.

(3) An owner of land who desires to develop a plot or a piece of land belonging to him for whichno sanctioned site development scheme exist, or where the proposed development is not in conformity with the existing development scheme, he may apply to the Cantonment Administration for sanction of his development scheme and the Cantonment Administration may, on such terms and conditions and on payment of such fees or charges as may be laid down by it in its bye-laws, sanction the scheme:

Provided that the Cantonment Administration may, after giving notice and for reasons to be recorded, cancel, modify or withdraw the sanction any time before construction in pursuance of the scheme has commenced or been made.

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(4) Among other matters, the site development scheme shall provide for—

(a) the division of the site into plots;

(b) provision for streets, drains and open spaces;

(c) reservation of land for public utility services to be transferred to the CantonmentAdministration;

(d) provisions for acquisition of land by the Cantonment Administration, if any;

(e) the works that shall be executed at the cost of the owners of the site or sites; and

(f) the period during which the area shall be developed.

(5) The land reserved for public utility services in the Site Development Scheme shall be transferred, free of cost by the owner or the owners to the Cantonment Administration before the sanction of the scheme. Such land shall not be converted or used for any purpose other than that shown in the same scheme.

172. Execution of site development schemes.— (1) The execution of site development scheme shall be subject to the inspection and control of the Cantonment Administration and the Cantonment Administration may from time to time give such directions with regard to the execution of the scheme as may be deemed necessary.

(2) If any area is developed or otherwise dealt with in contravention of the provisions of the sanctioned scheme, the Cantonment Administration may, by notice, require the owner of such area or the person who has contravened the provisions to make such alteration in the site as may be specified in the notice, and where such alteration is not made or for any reason cannot be carried out, the Cantonment Administration may require and enforce the demolition of unauthorized structures and notwithstanding anything to the contrary contained in any law, no compensation shall be payable for such demolition.

(3) If an area for which a scheme has been sanctioned is not developed within the period provided in the scheme and further extension is not allowed by the Cantonment Administration, or if the development is not in conformity with the terms of the site development scheme, the Cantonment Administration may take over the development of the scheme and execute the necessary works and the cost so incurred shall be deemed to be a tax levied on the owners or owner under this Ordinance.

BUILDING AND LAND USE CONTROL

173. Sanction of buildings. No person shall erect or re-erect a building or commence to erect or re-erect a building on any land in a local area except with the previous sanction of the Cantonment Administration nor otherwise than in accordance with the provisions of this Ordinance and of the rules and the bye-laws made under this Ordinance relating to the erection and re-erection of buildings.

174. Notice for new buildings.— (1) Whoever intends to erect or re-erect any building in a local area shall apply for sanction by giving notice in writing of his intention to the Cantonment Administration.

(2) For the purposes of this Ordinance, a person shall be deemed to erect or re-erect a building who—

(a) makes any material alteration or enlargement of any building;

(b) converts into a place for human habitation any building not originally constructed for that purpose;

(c) converts into more than one place for human habitation a building originally constructed as one such place;

(d) converts two or more places for human habitation into one such place or into greater number of such places;

(e) converts a building or a site or land meant for one particular use or in one particular zoning area into any other use or a use meant for another zoning area;

(f) converts into a stable, cattle-shed or cow-house any building originally constructed for human habitation;

(g) makes any alteration which there is reason to believe is likely to affect prejudicially the stability or safety of any building or the condition of any building in respect of drainage, sanitation or hygiene; or

(h) makes any alteration to any building which increases or diminishes the height of, or area converted by, or the cubic capacity of, the building, or which reduces the cubic capacityof any room in the building below the minimum prescribed by any bye-laws made under this Ordinance.

175. Conditions of valid notice.— (1) A person giving the notice required by section 174 shall specify the purpose for which he intends to use the building.

(2) Where a plan to re-lay a street has been approved by the Cantonment Administration, a person who intends to erect or re-erect a building or commences to erect or re-erect a building shall adopt the approved building or street line and for this purpose any space required to be left vacant shall vest in the Cantonment Administration.

(3) No notice shall be valid until it is made in the manner prescribed in the bye-laws along with plans and other information which may be required therein, have been furnished to the satisfaction of the Cantonment Administration along with the notice.

176. Power to sanction or refuse.— (1) The Cantonment Administration may for reason to be recorded in writing, either refuse to sanction the erection or re-erection, as the case may be, of the building, or may sanction it either absolutely or subject to such directions as it thinks fit in respect of all or any of the following matters, namely:—

(a) the free passage or way to be left in front of the building;

(b) the space to be left around the building;

(c) the ventilation of the building, the minimum cubic area of the rooms and the number andheight of the stories of which the building may consist;

(d) the provision and position of drains, latrines, urinals, cesspools or other receptacles forwastes;

(e) the level and width of the foundation, the level of the lowest floor and the stability of thestructure;

(f) the line of frontage with neighbouring buildings if the building abuts on a street;

(g) the means to be provided for egress from the building in case of fire;

(h) the materials and methods of construction to be used for external and internal walls forrooms, floors, fire-places and chimneys;

(i) the height and slope of the roof above the uppermost floor upon which human beings areto live or cooking operations are to be carried on; and

(j) any other matter affecting the ventilation, sanitation, safety or environmental aspects ofthe building and its relationship with the surrounding buildings or areas, and the persons erecting or re-erecting the building shall obey all such written directionsin every particular.

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(2) The Cantonment Administration may refuse to sanction the erection or re-erection of any building, either on grounds sufficient in the opinion of the Cantonment Administration affecting the particular building, or in pursuance of a notified general scheme or plan of the Cantonment Administration, restricting the re-erection or re-erection of the buildings within specified limits or for any other public purpose.

(3) The Cantonment Administration before sanctioning the erection or re-erection of a building onland which is under the management of the Military Estates Officer or other departments of Federal or Provincial Government or any agency thereof, shall ascertain in writing within forty five days of application whether there is any objection on the part of the concerned Government or its agency to such erection or re-erection.

(4) The Cantonment Administration may refuse to sanction the erection or re erection of any building—

(a) when the land on which it is proposed to erect or re-erect the building is held on a lease from the Federal or Provincial Government and the erection or re-erection constitutes a breach of the terms of the lease; or

(b) when the land on which it is proposed to erect or re-erect the building is not held on a lease from the Government, if the right to build on such land is in dispute between the person applying for sanction and the Government.

(5) If the Cantonment Administration decides to refuse to sanction the erection or re-erection of the building, it shall communicate in writing the reasons for such refusal to the person by whom notice was given.

(6) Where the Cantonment Administration neglects or omits, for forty-five days after the receipt of a valid notice to make and to deliver to the person who has given the notice any order of any nature specified in this section and such person thereafter by a written communication sent by registered post to the Cantonment Administration calls the attention of the Cantonment Administration to the neglect or omission, then, if such neglect or omission continues for a further period of fifteen days from the date of such communication the Cantonment Administration shall be deemed to have given sanction to the erection or re-erection, as the case may be, unconditionally to the extent that it does not contravene the provisions of the building bye-laws and any notified general scheme for the area:

Provided that, in any case to which the provisions of sub-section (3) apply, the period of forty-five days therein specified shall reckoned from the date on which the Cantonment Administration has received the report referred to in that sub-section.

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(7) The Cantonment Administration may, after giving notice and for reasons to be recorded, cancel, or withdraw the sanction of a site plan at any time before construction has commenced or been made.

177. Compensation.— (1) No compensation shall be claimed by any person for any damage or loss which he may sustain in consequences of the refusal of the Cantonment Administration of sanction to the erection of any building or in respect of any direction issued by it under sub-section (1) of section 176.

(2) The Cantonment Administration shall make compensation to the owner of any building for any actual damage or loss sustained by him in consequence of the prohibition of the re-erection of any building or of its requiring any land belonging to him to be added to the street.

178. Lapse of sanction. Every sanction for the erection or re-erection of a building given or deemed to have been given by the Cantonment Administration as hereinbefore provided shall be available for one year from the date on which it is given, and, if the building so sanctioned is not begun by the person who has obtained the sanction or someone lawfully claiming under him within that period it shall not thereafter be begun unless the Cantonment Administration on application made thereof has allowed an extension of that period.

179. Period for completion of building.— The Cantonment Administration, when sanctioning the erection or re-erection of a building as hereinbefore provided, shall specify a reasonable period after the work has commenced within which the erection or re-erection is to be completed, and, if the erection or re-erection is not completed within the period so fixed, it shall not be continued thereafterwithout fresh sanction obtained in the manner hereinafter provided, unless the Cantonment Administration on application made therefore has allowed an extension of that period:

Provided that not more than two such extensions shall be allowed by the Cantonment Administration in any case.

180. Illegal erection and re-erection. Whoever begins, continues or completes the erection and re-erection of a building —

(a) without having given a valid notice as required by section 174 and 175 or before thebuilding has been sanctioned or is deemed to have been sanctioned;

(b) without complying with any direction made under sub-section (1) of section 176; or

(c) when sanction has been refused, or has ceased to be available, or has been suspended bythe Cantonment Administration,

shall be punishable with punishment as provided in the Third Schedule.

181. Completion of building or alteration of buildings.— (1) Every person who has erected or re-erected a building shall, within thirty days of the completion of the building, report such completion to the Cantonment Administration.

(2) The Cantonment Administration may cause to be inspected any building of which construction has begun or which has been erected or re-erected in or contravention of any provision of this Ordinance, rules or the bye-laws or of the master plan or site development scheme, if any. The Cantonment Administration may require the alteration of the building so as to be in compliance therewith, and where such alteration is not possible, it may require the building or any part thereof to be demolished, or on the application of the owner of such building compound the offence on payment of such composition fee as may be deemed reasonable.

(3) If a building is required to be demolished under the provisions of sub-section (2) and such requirement is not complied with, within the specified period the Cantonment Administration may have the building demolished through its own agency and the cost so incurred shall be deemed to be a tax levied on the owner or occupier of the building under this Ordinance.

182. Orderly use of buildings.— (1) Except with prior sanction of the Cantonment Administration, no building shall be put to a use other than shown in the building plan according to which it was erected or re-erected:

Provided that the Cantonment Administration shall not sanction any change in the use of a building which may be in violation or contravention of the master plan or site development scheme, if any.

(2) Notwithstanding the provisions of Chapter XIII, if any building or anything fixed thereon be deemed by the Cantonment Administration to be in a ruinous state or likely to fall or in any way dangerous to any inhabitant of such building or of any neighbouring building or to any occupier thereof or to passers-by, the Cantonment Administration may, by notice, require the owner or occupier of such building to demolish it or to take such action in regard to the building as may be specified in the notice, and if there is default, the Cantonment Administration may take necessary action and the cost so incurred shall be deemed to be a tax levied on the owner or occupier of the building under this Ordinance.

(3) If a building is so ill constructed, or dilapidated or in dangerous condition or otherwise unfit for human habitation, the Cantonment Administration may prohibit the occupation of such building till it has been suitably repaired to the satisfaction of the Cantonment Administration.

(4) If the building is in dangerous condition and declared unfit for human habitation, the Cantonment Administration may for the purpose of demolition eject the owner or occupier from such building with such necessary force as may be required or in the manner laid down in section 188.

(5) If a building is put to a use other than shown in the building plan for which it was erected or re-erected, the Cantonment Administration may seal such premises till such misuse is removed under the supervision of Cantonment Administration.

183. Projections and obstructions.— (1) No owner or occupier of any building in a local area shall, without the permission in writing of the Cantonment Administration add or place against or in front of the building any projection or structure overhanging, projecting into, or encroaching on, any street or any drain, sewer or aqueduct therein.

(2) The Cantonment Administration may, by notice in writing, require the owner or occupier of any such building to alter or remove any such projection or encroachment as aforesaid:

Provided that in the case of any projection or encroachment lawfully in existence at the commencement of this Ordinance the Cantonment Administration shall make compensation for any damage caused by the removal or alteration thereof.

184. Unauthorized buildings over drains, etc. A Cantonment Administration may, by notice in writing, require any person who has, without its permission in writing, newly erected or re-erected any structure over any public sewer, drain, culvert, watercourse or water-pipe in its local area to pull down or otherwise deal with the same as it thinks fit.

185. Power to attach brackets for lamps. A Cantonment Administration may attach to the outside of any building, or to any tree in its local area, brackets for lamps in such manner as not to occasion injury thereto or inconvenience.

186. Power to make bye-laws. A Board may make bye-laws prescribing-

(a) the manner in which notice of the intention to erect or re-erect a building in its local area shall be given to the Cantonment Administration and the information and plans to be furnished with the notice;

(b) the type or description of building which may or may not, and the purpose for which a building may or may not, be erected or re-erected in its local area or any part thereof;

(c) the minimum cubic capacity of any room or rooms in a building which is to be erected or re-erected;

(d) the fees payable on provision by the Cantonment Administration of plans or specificationsof the type of buildings which may be erected in the cantonment or any part thereof;

(e) the circumstances in which a mosque, temple or church or other sacred building may be erected or re-erected; and

(f) any other matter which the Cantonment Administration may consider necessary including any specific exemption from the applications of the bye-laws.

ENCROACHMENTS

187. Encroachment and subsisting lease and licences.— (1) No person shall make an encroachment moveable or immoveable on an open space or land vested in or managed, maintained or controlled by a local government, or on, over or under a street, road, graveyard, within its local area or a drain.

(2) The local government may, after such notice as may be considered reasonable, remove the encroachment mentioned in sub-section (1) with such force as may be necessary.

(3) A person who trespasses into or is in wrongful occupation of a building or property which is vested in or is managed, maintained or controlled by the concerned local government may, in addition to any other penalty to which he may be liable under this Ordinance or any other law for the time being in force, after such notice as may be considered reasonable by the concerned local government,be ejected from such building or property by the local government with such force as may be necessary.

(4) Any person aggrieved by the notice issued under sub-section (3) may, within seven days, of the service of notice, appeal to such authority as may be prescribed in the rules relating to appeals and its decision thereon shall be final.

(5) Notwithstanding anything contained in any other law, no compensation shall be payable for any encroachment removed or ejectment carried out under this section.

(6) The cost of removal of encroachment or ejectment under this section shall be payable to the Cantonment Administration by the encroacher or wrongful occupier, and if the cost is not paid on demand, the Cantonment Administration may cause it to be recovered as arrears of land revenue or cause the materials or articles used by the encroacher or the wrongful occupier of encroachment or wrongful occupation to be sold in auction and if the proceeds of the sale are not sufficient to cover the cost the balance shall be recoverable as arrears of land revenue but if such proceed exceeds the cost, the excess shall be paid to the encroacher or the wrongful occupier.

(7) In this section, the expressions “encroacher” or “wrongful occupier” includes a person who owns the material or articles used for encroachment or wrongful occupation at the time of removal of encroachment or ejectment and also any person in possession thereof on his behalf or with his permission or connivance.

STREETS AND STREET LIGHTING

188. Public streets.— (1) The Cantonment Administration shall provide and maintain such public streets and other means of public communications as may be necessary.

(2) The Cantonment Administration shall, in the manner prescribed, prepare and execute a road maintenance and development programme.

(3) A Cantonment Administration may, by order in writing, permit the temporary occupation of any street, or of any land vested in it for the purpose of depositing any building materials or making any temporary excavation thereon, subject to such conditions as it may prescribe for the safety or convenience of the public, and may charge a fee for such permission, and may in its discretion withdraw such permission.

(4) A Cantonment Administration shall not permanently close any street or open any new street without the previous sanction of the Competent Authority.

(5) A Cantonment Administration may, by public notice, temporarily close any street or any part of a street for repair or for the purpose of carrying out any work connected with drainage, water-supply or lighting or any other work which is by or under this Ordinance required or permitted to carry out:

Provided that where, owing to any works or repair or from any other cause, the condition of anystreet or of any water-works, drain, culvert or premises vested to the local government is such as to be likely to cause danger to the public, the Cantonment Administration shall—

(a) take all reasonable means for the protection of the adjacent buildings and land andprovide reasonable means of access thereto; and

(b) cause sufficient barriers or fences to be erected for the security of life and property, andcause such barriers or fences to be sufficiently lighted from sunset to sun rise.

189. Streets.— (1) No new street shall be laid out except with the previous sanction of the Cantonment Administration and in conformity with the terms and conditions of such sanction.

(2) All streets other than public streets shall be maintained in such manner as the bye-laws may provide.

(3) The Cantonment Administration may, by notice, require that any street may be paved, metaled, drained, channeled, approved or lighted in such manner as may be specified and in the event of default, the Cantonment agency and the cost so incurred shall be deemed to be a tax levied on the person concerned under this Ordinance.

190. Street lighting and electrification.— (1) The Cantonment Administration shall take such measures as may be necessary for the proper lighting of the public streets and other public places vested in the Cantonment Administration by oil, gas, electricity or such other illuminant as the Cantonment Administration may determine.

(2) The Cantonment Administration shall also provide or cause to be provided electricity in coordination with the concerned department to its local area for public and private purposes.

(3) The Cantonment Administration may frame and enforce street lighting and electrification

schemes.

191. Street watering. The Cantonment Administration shall take such measures as may be necessary for the watering of public streets for the comfort and convenience of the public, and may, for this purpose, maintain such vehicles, staff and other apparatus as may be necessary.

192. Boundary walls, hedges and fences.— (1) No boundary wall, hedge or fence and hedges any material or description shall be erected in such parts of the local areas as are specified by the Cantonment Administration, without the permission in writing of the Cantonment Administration.

(2) A Cantonment Administration may, by notice in writing, require the owner or lessee of any land of its local area,—

(a) to remove from the land any boundary wall, hedge or fence which is, in its opinionunsuitable, unsightly or otherwise objectionable;

(b) to construct on the land sufficient boundary walls, hedges or fences of such material,description or dimensions as may be specified in the notice; or

(c) to maintain boundary walls, hedges or fences of such lands in good order:

Provided that in the case of any such boundary wall, hedge or fence which was erected with the consent or under the orders of the Cantonment Administration or which was in existence at the commencement of this Ordinance the Cantonment Administration shall make compensation for any damage caused by the removal thereof.

(3) A Cantonment Administration may, by notice in writing, require the owner, lessee or occupierof any such land to cut or trim any hedge on the land in such manner and within such time as may be prescribed in the notice.

ARBORICULTURE

193. Arboriculture. The concerned local government shall plant trees on public streets and otherpublic places within its local area and take all such steps as may be necessary for the plantation and protection of trees on such streets and places.

194. Forests. The Cantonment Administration may, in the manner prescribed frame and enforce plans providing for the improvement, development and exploitation of forests and maintain and plan forests in accordance with such plans.

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195. Nuisance pertaining to trees and plantations.— (1) A local council may, by bye-laws, determine the pests of trees and plants and provide for their destruction.

(2) If any land or premises within the local area of the Cantonment Administration is grown with rank or noxious vegetation, or under-growth, the Cantonment Administration may by notice require the owner or the occupier of such land or premises to clear such vegetation or under-growth within a specified time and if he fails to do so within such time, the Cantonment Administration may have such vegetation or under-growth cleared and the cost incurred shall be deemed to be a tax levied on the owner or the occupier under this Ordinance.

(3) A Cantonment Administration may, in the manner provided in the bye-laws, prohibit the cultivation of any crop which is considered dangerous to public health within such part of its local area as may be specified.

196. Felling, lopping and trimming of trees.— (1) Where, in the the opinion of the Cantonment Administration the felling of any tree of mature growth standing in a private enclosure in its local area is necessary for any reason, the Cantonment Administration may, by notice in writing, require the owner, lessee or occupier of the land to fell the tree within such time as may be specified in the notice.

(2) A Cantonment Administration may—

(a) cause to be lopped or trimmed any tree standing on land in its local area which belongs to the Cantonment Administration; or

(b) by public notice require all owners, lessees or occupiers of the land in its local area or by notice in writing require the owner, lessee or occupier of any such land, to lop or trim, in such manner as may be specified in the notice, all or any trees standing on such land or toremove any dead trees from such land.

OPEN SPACES

197. Gardens.— (1) The Cantonment Administration may lay-out and maintain within its local area such public gardens as may be necessary for the recreation and convenience of the public and such public gardens shall be maintained and administered in such manner as the bye-laws, may provide.

(2) For every public garden there shall be framed and enforced, in the manner prescribed, a garden development plan, which shall provide for the development and improvement of the garden.

198. Parks and open spaces. The Cantonment Administration may provide and maintain within its local area such open spaces as may be necessary for the convenience of the public and such spaces shall be grassed, hedged, planted and equipped with amenities in such manner as the bye-laws may provide.

LAND USE

199. Digging of public land. Whoever without the permission in writing of the Cantonment Administration digs up the surface of any open space in its local area, which is not private property, shall be punishable with punishment as provided in the Third Schedule.

200. Improper use of land.— (1) If, in the opinion of a Cantonment Administration the working ofa quarry in its local area or the removal of stone, earth or other material from the soil in any place in its local area is dangerous, to persons residing in or frequenting the neighborhood of such quarry or place, or creates, or is likely to create, a nuisance, the Cantonment Administration may, by notice in writing, prohibit the owner, lessee or occupier of such quarry or place or the person responsible for such working or removal, from continuing or permitting the working of such quarry or the moving of such material, or require him to take such steps in the matter as the Cantonment Administration may direct for the purpose of preventing danger or abating the nuisance likely to arise therefrom.

(2) If, in any case referred to in sub-section (1), the Cantonment Administration is of the opinion that such a course is necessary in order to prevent imminent danger it may, by order in writing, require a proper hoarding or fence to be put up for the protection of passers-by.

CHAPTER XVI

WATER SUPPLY AND DRAINAGE

WATER SUPPLY

201. Water supply.— (1) The Cantonment Administration shall provide or cause to be provided to its local area a supply of wholesome water sufficient for public and private purposes.

(2) Where a piped water supply is provided, the Cantonment Administration shall supply water to private and public premises in such manner and on payment of such charges as the by-laws may provide.

202. Private source of water supply.— (1) All private sources of water supply within the local area of a cantonment shall be subject to control, regulation and inspection by the Cantonment Administration.

(2) No new well, water pump or any other source of water for drinking purposes, shall be dug, constructed or provided except with the sanction of the Cantonment Administration.

(3) A Cantonment Administration may, by notice, require the owner or any person having the control of any private source of water supply used for drinking purposes—

(a) to keep the same in good order and to clean it from time to time of silt, refuse and decaying matter;

(b) to protect the same from contamination in such manner as the Cantonment Administration directs; and

(c) if the water therein is proved to satisfaction of the Cantonment Administration to be unfit for drinking purposes, to take such measures as may be specified in the notice to prevent the use of such water for drinking purposes.

203. Public watercourses.— (1) A Cantonment Administration may, with the previous sanction of the Government, declare any source of water, river, spring, tank, pond or public stream, or any part thereof within its local area, which is not private property, to be a public watercourse.

(2) A Cantonment Administration may, in respect of any public watercourse, provide such amenities, make such arrangements for lifesaving, execute such works, and subject to the provisions of any law for the time being in force relating to irrigation, drainage and navigation, regulate the use thereof, as the bye-laws may provide.

204. Tanks, ponds and low-lying areas. The Cantonment Administration may take such steps with regard to the excavation or re-excavation of tanks and ponds and the reclamation of low-lying areas as it thinks fit or, as the case may be, the Government may direct.

DRAINAGE AND SEWERAGE

205. Drainage.— (1) The Cantonment Administration shall provide an adequate system of public drains in its local area and all such drains shall be constructed, maintained, kept cleared and emptied with due regard to the health and convenience of the public.

(2) Every owner or occupier of any land or building within the cantonment may, with the previous permission of the Cantonment Administration, and subject to such terms and conditions, including the payment of fees, as it may impose, cause his drains to be emptied into public drains.

(3) All private drains shall be subject to control, regulation and inspection by the Cantonment Administration.

(4) Subject to the provisions of any other law for the time being in force, the Cantonment Administration may by notice direct a commercial or industrial concern to provide for the disposal of its waste or effluent in the manner specified, and failure on the part of owner, tenant or occupier thereof to comply with such directions, shall be a municipal offence.

(5) The Cantonment Administration may, by notice, require the owner of any building, land or an industrial concern within its local area—

(a) to construct such drains within the building or land or the street adjoining such building or land and to take such other measures for treatment and disposal of effluent as may be specified in the notice;

(b) to remove, alter or improve any such drains; and

(c) to take other steps for the effective drainage of the building or land as may be specified.

(6) In case of failure of owner to comply with the requirements of notice under sub-section (5), the Cantonment Administration may itself cause such requirements to be carried out, and the cost so incurred shall be deemed to be a tax levied on the owner of the building or land, as the case may be, under this Ordinance.

206. Drainage and sewerage schemes for commercial and industrial area.— (1) The Cantonment Administration may, by notice, require the owners, tenants and occupiers of commercial and industrial concerns in any area or areas within the cantonment to have at their own cost prepared a scheme for the adequate and safe drainage and disposal of their wastes and effluent of the quality permitted under the rule or the bye-laws and submit it to the local government within the time specified in the notice:

Provided that the time limit may be extended by the Cantonment Administration for a maximum period of three months at the request of the owners, tenants or occupiers of the commercial and the industrial units concerned.

(2) The drainage, sewerage and disposal scheme as approved by the Cantonment Administration with modifications, if any, shall be executed and implemented by the owners, tenants or occupiers of the commercial or industrial units at their expense in such manner and within such time as maybe specified by the Cantonment Administration.

(3) In case of the failure of the owners, tenants or occupiers of the commercial or industrial concerns to comply with the provisions of sub-section (1) and (2), the Cantonment Administration may itself prepare the drainage, sewerage and disposal scheme and execute and implement it at its own expense, and the cost so incurred shall, under this Ordinance, be deemed to be a tax levied on the owners, tenants or occupiers of the industrial and commercial units concerned.

207. Drainage and sewer connections.— (1) A Cantonment Administration may, by notice in writing, require the owner or lessee of any building or land in any street, at his own expense and in such manner as the Cantonment Administration thinks fit, to put up and keep in good condition proper troughs and pipes for receiving and carrying rain water from the building or land and for discharging the same or to establish and maintain any other connection or communication between such building or land and any drain or sewer.

(2) For the purpose of efficiently draining any building or land in its local area, the Cantonment Administration may, by notice in writing, require the owner or lessee of the building or land,—

(a) to pave, with such materials and in such manner as it thinks fit, any courtyard, alley or passage between two or more buildings; or

(b) to keep any such paving in proper repair.

CHAPTER XVII

ENTRY, INSPECTION AND PROCEDURES

ENTRY AND INSPECTION

208. Power of entry. It shall be lawful for the Administrator, the Cantonment Administrative Officer, or any other officer, the Health Officer or Assistant Health Officer, or any other person authorized by general or special order of a Cantonment Administration in this behalf, to enter into or upon any building or land with or without assistants or workmen in order to make any inquiry, inspection, measurement, valuation or survey, or to execute any work, which is authorised by or under this Ordinance or which is necessary to make or execute for any of the purposes or in pursuance of any of the provisions of this Ordinance or of any rule, bye-law or order made thereunder:

Provided that nothing in this section shall be deemed to confer upon any person any power such as is referred to in section 147 or section 152 or to authorize the conferment upon any person of any such power.

209. Power of inspection, etc.— (1) A Cantonment Administration may, by general or special order, authorize any person—

(a) to inspect any drain, privy, latrine, urinal, cesspool, pipe, sewer or channel in or on any building or land in the cantonment, and, in his discretion, to cause the ground to be open for the purpose of preventing or removing any nuisance arising from the drain, privy, latrine, urinal, cesspool, pipe, sewer or channel, as the case may be; and

(b) to examine work under construction in the cantonment, to take level or to remove, test,examine, replace or read any meter.

(2) If, on such inspection, the opening of the ground is found to be necessary for the prevention or removal of a nuisance, the expenses thereby incurred shall be paid by the owner or occupier of the land or building, but if it is found that no nuisance exists or but for such opening would have arisen the ground or portion of any building, drain, or other work opened, injured or removed for the purpose of such inspection shall be filled in, reinstated, or made good, as the case may be, by the Cantonment Administration.

210. Power to enter land adjoining land where work is in progress.— (1) An officer authorized by the Cantonment Administration may, with or without assistants or workmen, enter on any land within fifty yards of any work authorized by or under this Ordinance for the purpose of depositing thereon any soil, gravel, stone or other materials, or of obtaining access to such work, or for any other purpose connected with the carrying on of the same.

(2) The authorized officer shall, before entering on any land under sub-section (1) give the occupier, or, if there is no occupier, the owner not less than three days previous notice in writing of his intention to make such entry, and shall state the purpose thereof, and shall, if so required by the occupier or the owner, fence off so much of the land as may be required for such purpose.

(3) The authorized officer shall, in exercising any power conferred by this section, do as little damage as may be, and compensation shall be payable by the Cantonment Administration to the owner or occupier of such land, or to both, for any such damage whether permanent or temporary.

211. Breaking into premises. It shall be lawful for any person, authorized by or under this Ordinance to make any entry into any place to open, or cause to be opened any door, gate or other barrier—

(a) if he considers the opening thereof necessary for the purpose of such entry; and

(b) if the owner or occupier is absent, or being present refuses to open such door, gate or barrier.

212. Entry to be made in the day time. Save as otherwise expressly provided in this Ordinance,no entry authorized by or under this Ordinance shall be made except between the hours of sunrise and sunset.

213. Owner's consent ordinarily be obtained. Save as otherwise expressly provided in this Ordinance, no building or land shall be entered without the consent of the occupier, or if there is no occupier, of the owner thereof, and no such entry shall be made without giving the said occupier or owner, as the case may be, not less than four hours written notice of the intention to make such entry:

Provided that no such notice shall be necessary if the place to be inspected is a factory orworkshop or trade premises or a place used for carrying on any trade, calling, or occupation or a stable for horses, or cattle shed or a latrine, privy, or urinal or a work under construction, or for the purpose of ascertaining whether any animal intended for human food is slaughtered in that place in contravention of this Ordinance, or any bye-law made thereunder.

214. Regard to be had to social and religious usages. When any place used as a human dwelling is entered under this Ordinance, due regard shall be paid to the social and religious customs and usages of the occupants of the place entered, and no apartment in the actual occupancy of a female shall be entered to break open until she has been informed that she is at liberty to withdraw and every reasonable facility has been afforded to her for withdrawing.

CHAPTER XVIII

OFFENCES AND PUNISHMENTS

215. Offences. An act or omission specified in the Third Schedule shall be an offence liable to punishment by way of imprisonment or penalty under this Ordinance.

216. Notices and authorisation. Each Cantonment Administrator or Union Nazim shall authorize an officer or officers under his administrative control—

(a) to issue legal notices on behalf of the respective Administration for violation or commission or any offence under this Ordinance, rules or bye-laws;

(b) to take such measures and actions for compliance of directions contained in the notices issued restraining violations or commission of any offence under this Ordinance, rules or byelaws; and

(c) to initiate legal proceedings, defend any legal proceedings initiated against the Cantonment Administration or Union Administration, attend court proceedings and represent the Cantonment Administration or as the case may be, the Union Administration.

217. Cognizance of offences.— (1) No court shall take cognisance of any offence under this Ordinance except on a complaint in writing received from the Cantonment Administrator or Nazim, or an officer or a person generally or specially authorized by the local government or on a complaint made by an affected citizen if no action is taken on the complaint made by him under sub-section (2).

(2) The Cantonment Administrator or the Nazim or an officer or any other person generally or specially authorised by him may, on his own motion, or on the complaint of any affected citizen, institute any suit or initiate prosecution or any other legal action against a person committing an offence under this Ordinance.

218. Summary disposal of cases.— (1) Except the offences specified in Part-I of the Third Schedule, a court taking cognisance of the offences punishable under this Ordinance shall try such offences in a summary manner in accordance with the provisions of the Code of Criminal Procedure 1898 (Act V of 1898).

(2) Notwithstanding anything in the Code of Criminal Procedure, 1898(Act V of 1898), a Court trying any offence, referred to in the Third Schedule, shall be competent to pass any sentence authorised by this Ordinance.

219. Punishments and penalties.— (1) Whoever commits any of the offences specified in Part-I of the Third Schedule shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to fifteen thousand rupees, or with both and, if the offence is continued, with a further fine which may extend to one thousand rupees for every day after the date of the first commission during which period the offender has persisted in the offence.

(2) Whoever commits any of the offences specified in Part-II of the Third Schedule shall be punishable with imprisonment which may extend to six months and with fine which may extend to five thousand rupees and, if the offence is continued, with a further fine which may extend to two hundred rupees for every day after the date of first commission during which period the offender has persisted in the offence.

(3) Whoever commits any of the offences specified in Part-III of the Third Schedule shall be punishable with imprisonment which may extend to one month, or with fine which may extend up to five thousand rupees, or with both and, if the offence is continued, with a further fine which may extend up to one hundred rupees for every day after the date of first commission during which period the offender has persisted in the offence.

220. Compounding of offences. Subject to provision of section 345 of the Code of Criminal Procedure1898 (Act V of 1898), except as otherwise provided, the Cantonment Administrator, Cantonment Administrative Officer or an officer or any other official generally or specially authorised in this behalf, by him may, at any time or after the commission of the offence but before the conclusion of proceedings in the court, compound any offence under this Ordinance.

221. Rights of citizen not affected. Nothing contained in section 217 shall restrict or abridge the rights of the citizens or residents of a local area to bring any suit or other legal proceedings against any Cantonment Administration or Union Administration, their officers or other functionaries violating their rights available to them under any law for the time being in force.

CHAPTER XIX

ROLE OF POLICE IN CANTONMENTS

222. Duties of Police Officers. It shall be the duty of all police officers employed in the cantonment to give immediate information to the Cantonment Administrator of the commission of any offence against the provisions of this Ordinance or any of the rule or bye-law made thereunder, and to assist all officers and servants of the local governments in the cantonment in exercise of their lawful authority.

223. Responsibilities of Police Officers under the Police Order. The police officers shall exercise powers and perform functions in the following manner:—

(a) the Head of District Police shall, from time to time, and subject to any other laws and such orders as may have been made by a local government in a cantonment issue orders to give effect to all relevant provisions of this Ordinance or rules and bye-laws made thereunder;

(b) the Provincial Police Officer and as the case may be, the City Police Officer, while dividing districts into police divisions, police sub-divisions, police stations and police posts, shall see that as for as possible, these are coterminous with the limits of cantonments and Unions;

(c) the Head of District Police shall provide copy of the approved Policing Plan related to cantonment to the Cantonment Administrator;

(d) for effective administration of cantonment under this Ordinance the Cantonment Administrator may, need a police force of appropriate strength, and if so required, the District Police Officer shall, place the force at the disposal of the Cantonment Administration on payment of such cost as may be determined by the Provincial Government; and

(e) where the Zila Nazim so directs, the District Coordination Officer shall be responsible for coordination of police support by Head of District Police to the Cantonment Administration, in exigencies threatening law and order, natural calamities and emergencies.

CHAPTER XX

CONTROL OF ANTI-SOCIAL AND SEDITIOUS PERSONS

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224. Power to remove brothels and prostitutes. The Officer Commanding the station may, on receiving information that any building in the cantonment is used as a brothel or for purposes of prostitution, by order in writing setting forth the substance of the information received, summon the owner, lessee, tenant or occupier of the building to appear before him either in person or by an authorized agent, and, if the Officer Commanding the station is then satisfied as to the truth of the information, he may, by order in writing, direct the owner, lessee, tenant or occupier, as the case may be, to discontinue such use of the building within such period as may be specified in the order.

225. Penalty for loitering and importuning for purposes of prostitution.— (1) Whoever in a cantonment loiters for the purpose of prostitution, or importunes any person to the commission of sexual immorality, shall be punishable with imprisonment which may extend to one month, or with fine which may extend to five thousand rupees.

(2) No prosecutions for an offence under this section shall be instituted except on the complaint of the person importuned, or of an armed forces officer in whose presence the offence was omitted, or of a member of the armed forces police, employed in the cantonment and authorised in this behalf by the Officer Commanding the station, in whose presence the offence was committed, or of a police officer not below the rank of a sub-inspector who is employed in the cantonment and authorised in this behalf by the Officer Commanding the station.

226. Removal of lewd persons from cantonment. If the Officer Commanding the station is, after such inquiry as he thinks necessary, satisfied that any person residing in or frequenting the cantonment is a prostitute or has been convicted of an offence under section 225, or of the abetment of such an offence, he may cause to be served on such person an order in writing requiring such person to remove from the cantonment within such time as may be specified in the order, and prohibiting such person from re-entering it without the permission in writing of the Officer Commanding the station.

227. Removal and exclusion from cantonment of disorderly persons.— (1) The Officer Commanding the station on receiving information that any person residing in or frequenting the cantonment—

(a) is a disorderly person who has been convicted more than once of gaming or who keeps or frequents a common gaming house, a disorderly drinking shop or a disorderly house of anyother description;

(b) has been convicted more than once, either within the cantonment or elsewhere, of an offence punishable under Chapter XVII of the Pakistan Penal Code (Act XLV of 1860); or

(c) has been ordered under Chapter VIII of the Code of Criminal Procedure, 1898, (Act V of 1898) either within the cantonment or elsewhere, to execute a bond for his good behaviour,

may record in writing the substance of the information received, and may summon such person requiring such person to appear and show cause why he should not be required to remove from the cantonment and be prohibited from re-entering it.

(2) Every summons issued under sub-section (1) shall be accompanied by a copy of the record aforesaid and the copy shall be served along with the summons on the person against whom the summons is issued.

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(3) The Officer Commanding the station shall, when the person so summoned appears before him,proceed to inquire into the truth of the information received and take further evidence as he thinks fit,and if, upon such enquiry, it appears to him that such person is a person of kind described in sub-section (1) and that it is necessary for the maintenance of good order in the cantonment that such person should be required to remove therefrom and be prohibited from re-entering the cantonment, and, if, the Officer Commanding the station so directs, shall cause to be served on such person an order in writing requiring him to remove from the cantonment within such time as may be specified in the order and prohibiting him from re-entering it without the permission in writing of the Officer Commanding the station.

228. Removal and exclusion from cantonment of seditious persons.— (1) If any person in a cantonment causes or attempts to cause or does any act which he knows is likely to cause disloyalty, disaffection or breaches of discipline amongst any portion of the armed forces of Pakistan or is a person who, the Officer Commanding the station has reason to believe, is likely to do any

such act, the Officer Commanding the station may make an order in writing setting forth the reasons for the making of the same and requiring such person to remove from the cantonment within such time as may be specified in the order and prohibiting him from re-entering it without the permission in writing of the Officer Commanding the station:

Provided that no order shall be made under this section against any person unless he has had a reasonable opportunity of being informed of the grounds on which it is proposed to make the order and of showing cause why the order should not be made.

(2) Every order made under sub-section (1) shall be sent to the District Police Officer, who shall cause a copy thereof to be served on the person concerned.

(3) Upon the making of any order under sub-section (1), the Officer Commanding the station shall forthwith send a copy of the same to the Government.

(4) The Government may, of its own motion, and shall, on application, made to it in this behalf within one month of the date of the order by the person against whom the order has been made, request the Sessions Judge to make, after such inquiry as the Federal Government may prescribe, a report regarding the justice of the order and the necessity therefor. At every such inquiry the person against whom the order has been made shall be given an opportunity of being heard in his own defence.

(5) The Government may, at any time after the receipt of a copy of an order sent under sub-section (3), or where a report has been called for under subsection (4), on receipt of that report, if it is of opinion that the order should be varied or rescinded, make such order thereon as it thinks fit.

(6) Any person who has been excluded from a cantonment by an order made under this section may, at anytime after the expiry of one month from the date thereof, apply to the Competent Authority, for the rescission of the same and, on such application being made, the said Authority may,after making such inquiry, if any, as he thinks necessary, either reject the application or rescind the order.

229. Penalty. Whoever—

(a) fails to comply with an order issued under this Chapter within the period specified therein, or, whilst an order prohibiting him from re-entering a cantonment without permission is in force, re-enters the cantonment without such permission; or

(b) knowing that any person has, under this Chapter, being required to remove from the cantonment and has not obtained the requisite permission to re-enter it, harbours or conceals such person in the cantonment,

shall be punishable with an imprisonment for a term which may extend to three months or fine which may extend to five thousand rupees, and, in the case of a continuing offence, with an additional fine which may extend to one hundred rupees for every day after the first during which he has persisted in the offence.

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CHAPTER XXI

FINANCE

230. Establishment of Funds and Public Accounts.— There shall be established a Cantonment Fund for each Cantonment Administration.

(2) All revenues received by a Cantonment Administration shall form part of the respective Cantonment Fund including—

(a) grants made to or monies received by a Cantonment Administration from the K Government, Provincial Government, local government or other sources;

(b) the proceeds of taxes, charges or fees etc., levied by a Cantonment Administration under this Ordinance;

(c) rents and profits payable or accruing to a Cantonment Administration from immovable property vested in or controlled or managed by it;

(d) proceeds or any other profits howsoever known or called from bank accounts, investments or commercial enterprises of a Cantonment Administration;

(e) gifts, grants, donations or contributions to a Cantonment Administration by individuals or institutions:

(f) income accruing from markets, fairs or any other enterprises run or regulated by a Cantonment Administration;

(g) fines paid with respect to offences under this Ordinance or bye-laws or under any other law for the time being in force in which provision is made for the fines to be credited to the Funds established under this Ordinance;

(h) proceeds from other sources of income which are placed at the disposal of a Cantonment Administration under directions of the Government; and

(i) the balance, if any, in the accounts of the Board.

(3) All other public monies including—

(a) refundable deposits received by a Cantonment Administration; and

(b) deferred liabilities,

shall be credited to the Public Account of the respective Cantonment Administration.

231. Custody of Funds.— (1) Monies credited to a Cantonment Fund or a Public Account of the Cantonment Administration shall be kept in the State Bank, government treasury, a post office or a bank approved by the Government in such manner as shall be specified by the Government.

(2) The Public Account of the Cantonment Administration shall be in a separate Bank Account.

(3) All Bank Accounts shall be operated through the Accounts Officer specified under section 240 of the concerned Cantonment Administration.

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232. Transfer of Funds from the Government.— (1) The Cantonment Administration shall receive its share directly from the Federal Government.

(2) The grants shall be received in the Cantonment Fund.

(3) The grants shall include the share of the Cantonment Administration and Unions in theCantonments.

(4) The responsibility of the financial management in Cantonment shall lie with the respectiveCantonment Administration.

(5) The share of the Unions shall not be transferred to the Unions, instead each Union shall be provided a budget reflected separately in the Cantonment Administration Budget.

(6) Financial requirements of each Union shall be met by the Cantonment Administration as per the approved budget.

233. Provision of data to Federal Government.— (1) The Cantonment Administration shall provide all data required for the determination and application of the formula as required by the.

(2) The Government may, where it deems appropriate, institute data collection or recommend such data collection to a Cantonment Administration and may also recommend to the Cantonment Administration to bear the cost such data collection.

(3) The Cantonment Administrations shall provide reports to the Government in accordance with time frames and methodology for the flow of funds prescribed by the Government.

234. Application of funds.— (1) The monies credited to a Cantonment Funds shall be expended by a Cantonment Administration in accordance with the Annual Budget and Supplementary Budget approved by its Board.

(2) A Cantonment Administration may transfer approved budgeted amounts to a Union Administration or Citizen Community Board, within its local area, for carrying out a project.

(3) No Cantonment Administration shall transfer monies to a higher level of government except by way of repayment of debts contracted before the coming into force of this Ordinance.

(4) The development budget shall be prioritized in accordance with the bottom up planning system as laid down in section 276:

Provided that

(a) not less than twenty-five percent of the development budget for new schemes shall be set apart for Citizen Community Boards for utilization by the Citizen Community Boards in accordance with the provisions of section 276; and

(b) the amount referred to in clause (a) which remains unspent shall be credited under the same head in the following year's budget in addition to the fresh allocation under the said clause for that year.

(5) In every budget a provision shall be made for payment of performance incentive bonuses by the Cantonment Administration.

235. Charged Expenditure. The following expenditure shall be treated as charged expenditure—

(a) the administrative expenses of the Board;

(b) any sum to satisfy any judgment, decree or award against a Cantonment Administration by any Court or Tribunal; and

(c) interest payments.

236. Budget preparation.— (1) Before the commencement of a financial year each Cantonment Administration shall, for its Cantonment Fund, prepare in the prescribed manner, a budget for that year, in conformity with the provisions of section 276.

(2) The annual budget for each Cantonment Administration shall contain estimates of—

(a) grants and monies received from all sources;
(b) amounts available in the Cantonment Fund;

(c) receipts for the next year; and

(d) expenditures to be incurred for the next year.

(3) To enable the budget preparation by Cantonment Administrations, the Government shall, sufficiently before the beginning of each financial year, notify the provisional shares, which may be credited to the Cantonment Fund.

(4) The final shares shall be notified by the Government after approval of the Provincial Budget.

(5) No demand for a grant shall be made from Cantonment Administration Budget except on the recommendations of the Cantonment Administrator.

(6) The schedule of establishment shall be prepared by the Cantonment Administration and approved by the Cantonment Board.

(7) Conditional grants shall be shown separately in the budget and shall be governed by conditions agreed therein.

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(8) The proposed budgetary requirements of a Union Administration shall be provided to the Cantonment Administration by the Union Administration after approval of the Union Council.

(9) The Cantonment Administration shall accommodate the Unions requirements to the extent possible keeping in view the resources and the priorities.

(10) A Cantonment Administration shall re-appropriate budgetary provisions in accordance with the re-appropriation powers delegated to it by the respective Board:

Provided that at the end of a financial year a full statement of all re-appropriations made shall besubmitted to the Board.

237. Approval of budget.— (1) Following the presentation of the Federal budget but, before the commencement of the next financial year, each Cantonment Administration shall, present the budget for approval by the respective Board before the beginning of such financial year:

Provided that the charged expenditure may be discussed but shall not be voted upon by the Board.

(2) When a Cantonment Administration assumes office for the first time, it may within ten weeks, present to the respective Board a budget for the remaining part of the financial year for approval.

(3) The budget of a Cantonment Administration, on presentation before the Board, may be referred to the Finance and Accounts Committee of the Board for detailed scrutiny and recommendation to the Board.

(4) The budget of a Cantonment Administration shall be approved by simple majority of the totalmembership of the respective Board.

(5) A budget shall not be approved if—

(a) the sums required to meet estimated expenditures exceed the estimated receipts; and

(b) the constraints specified in section 278 have not been complied with.

(6) No other business shall be taken up by a Board during the budget session.

(7) After approval by the Board, the respective Cantonment Administrator shall authenticate by his signature a Schedule specifying the—

(a) grants made or deemed to have been made by the Board; and

(b) the several sums required to meet the expenditure charged upon the Cantonment Fund.

(8) The Schedule so authenticated shall be laid before the Board, but shall not be open to discussion or vote thereon.

(9) The Schedule so authenticated shall be communicated to the respective Accounts Officer as specified in section 240 of this Ordinance and the Government

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(10) In case a budget is not approved by a Board before the commencement of the financial year to which it relates, the concerned Cantonment Administration shall spend money under various heads in accordance with the budgetary provisions of the preceding financial year for a period not exceeding thirty days:

Provided that a Cantonment Administration shall not spend funds or make commitments for any expenditure, under any Demand for Grant or Appropriation, in excess of eight percent of the amount budgeted in the preceding year within the thirty days period.

(11) In case the budget is not passed within the extended period as specified in sub-section (10) the budget shall be prepared, approved and authenticated by the Government for the full year.

(12) The Government shall notify the period for which a revised budget for the year shall be prepared by a Cantonment Administration and approved by its Board.

238. Honoraria and allowances. Each Cantonment Administration shall make budgetary provisions for honoraria and allowances for the Vice-President, and the elected members of the Board and the Union Councils.

239. Form of accounts. The accounts of the receipts and expenditure of Cantonment Administration shall be kept in such form and in accordance with such principles and methods as the Controller General of Accounts may, with the approval of the President prescribe.

240. Accounts Officer.— (1) The following arrangement for maintaining of accounts of the Cantonment Administration shall be followed namely:—

(a) the Cantonment Administrator shall designate an officer or official as Cantonment Accounts Officer who shall maintain the accounts of Cantonment Administration as prescribed;

(b) the Cantonment Accounts Officer shall perform pre-audit of all payments from the Cantonment Fund before approving the disbursements of monies as prescribed in accordance with the pre-audit checks prescribed by the Cantonment Administration;

(c) all cheques shall be signed by the Accounts Officer and the Cantonment Administrative Officer for drawing monies from the Bank Account;

(d) the Cantonment Administrative Officer shall be the principal accounting officer and shall be responsible to the Finance and Accounts Committee of the Board;

(e) the Cantonment Accounts Officer shall be responsible for the compilation of the accounts, which shall be reflected in the Provincial Accounts; and

(f) the Cantonment Accounts officer shall submit the compiled accounts of the Cantonment Administration and other reports to the District Accounts Officer as required by him.

Explanation.—The expression "Cantonment Accounts Officer" for purposes of this Chapter includes an Accountant in smaller cantonments.

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(2) A statement of monthly and annual accounts and such other necessary statements shall be placed at a conspicuous place for public inspection.

(3) The respective Finance and Accounts Committees of the Board shall hold public hearings in which—

(a) objections to statement of accounts referred to in sub-section (3) above may be heard and, if required, appropriate action may be taken; and

(b) internal and external Audit Reports will be discussed for appropriate action.

241. Audit.— (1) The Auditor General of Pakistan shall, on the basis of such audit as he may consider appropriate or necessary, certify the accounts, compiled and prepared by the respective Accounts Officer of the Cantonment Administration for each financial year, showing under the

respective heads the annual receipts and disbursements for the purposes of each Cantonment Administration and shall submit the certified accounts with such notes, comments or recommendations as he may consider necessary to the Government.

(2) The Cantonment Administrator shall cause the Audit Report to be submitted to the respective Board and the Board shall refer it for examination to its Finance and Accounts Committee.

(3) The Auditor-General shall have authority to audit and report on the accounts of stores and stock kept in any office of a Cantonment Administration.

(4) The Auditor-General shall—

(a) audit all expenditure from the Cantonment Fund to ascertain whether the moneys shownin the accounts as having been disbursed were legally available for, and applicable to, the service or purpose to which they have been applied or charged and whether the expenditure conforms to the authority which governs it;

(b) audit all transactions of a Cantonment Administration relating to Public Accounts;

(c) audit a trading, manufacturing, profit and loss accounts of a Cantonment Administration; and

(d) to audit all receipts which are payable into a Cantonment Fund and to satisfy himself that all such receipts which are payable into a Cantonment Fund have been properly and correctly deposited and rules and procedures relating to such receipts have been fully observed.

(5) The Auditor-General shall have the authority—

(a) to inspect accounts and initial or subsidiary accounts, under the control of a Cantonment Administration;

(b) to require any accounts, books, papers and other documents which deal with, or form, the basis of or are otherwise relevant to the transactions to which his duties, in respect of audit extend;

(c) to enquire or make such observations as he may consider necessary, and to call for such information as he may require for the purpose of the audit; and

(d) the officials shall afford all facilities and provide record for audit inspection and comply with requests for information in as complete a form as possible and with all reasonable expedition.

(6) Upon request of a Cantonment Administrator, the Auditor-General shall cause a special audit of that Cantonment Administration's accounts to be undertaken and shall forward his report to the Cantonment Administrator who shall cause the same to be submitted to respective Board for necessary action and to the Government.

(7) The Auditor-General shall have access to all the books and documents pertaining to the accounts and may also examine any public servant or premises of the Cantonment Administration concerned.

(8) The Auditor-General shall perform functions and exercise power in relation to audit of the accounts of the companies, authorities, bodies or corporations owned or managed by a Cantonment Administration.

242. Internal Audit.— (1) Cantonment Administrator shall appoint an Internal Auditor.

(2) The Internal Auditor shall serve as a principal support person to respective Cantonment Administrator by providing information to him and members of the respective Board on the Cantonment Administration performance.

243. Taxes to be levied.— (1) A Board may levy taxes, cesses, fees, rates, rents, tolls, charge, surcharges and levies specified in the First Schedule:

Provided that the Government shall vet the tax proposal prior to the approval by the concerned Board:

Provided further that the proposal shall be vetted within thirty days from the date of receipt of theproposal failing which it would be deemed to have been vetted by the Government.

(2) No tax shall be levied by the Council without previous publication of the tax proposal and after inviting and hearing public objections.

(3) A Board may, subject to the provisos under sub-section (1), increase any tax, reduce, suspend, abolish or exempt a tax.

(4) Unless varied the existing rates in the areas within a Cantonment shall remain in force.

PROPERTY TAX

244. Levy of property tax. There shall be charged, levied and paid property tax on the annual rental value of buildings and lands in a cantonment at such rate as the Board my with the prior approval of the Government, approve.

245. Exemptions. The following buildings/lands shall be exempt from the property tax, namely:—

(a) places set apart for public worship and either actually so used or used for no other purpose;

(b) buildings used for educational purpose and public libraries, parks and play-grounds or other such public amenities which are open to the public and from which no income is derived ;

(c) hospitals and dispensaries maintained wholly by charitable contributions;

(d) burning and burial grounds, not being the property of the Government or a Board, which are controlled under the provisions of this Ordinance;

(e) buildings or lands vested in Cantonment Administration;

(f) any buildings or lands, used or acquired for the public service or for any public purpose, which are the property of the Government, or in the occupation of the Federal or any Provincial Government:

Provided that if any such building or land is used for commercial purposes the same shall not be exempted; and

(g) one residential house, whether rented or self-occupied, in any one cantonment owned by awidow, a minor orphan or a disabled person, who is permanently, incapacitated to earn his/her livelihood.

246. General power of exemption. The Government may, by notification in the official Gazette, exempt, either wholly or in part, from the payment of any tax imposed under this Ordinance, any person or class of persons.

247. Exemption of poor persons. A Cantonment Administration may exempt, for a period not exceeding one year at a time from the payment of any tax or any portion of a tax imposed under this Ordinance, any person who is in its opinion by reason of poverty unable to pay the same.

248. Incidence of taxation.— (1) Save as otherwise expressly provided in the notification imposing the tax, every tax assessed on the annual value of buildings or land or of both shall be leviable primarily upon the actual occupier of the property upon which the said tax is assessed, if he is the owner of the buildings or lands or holds them on a building or other lease granted by or on behalf of the Government or the Cantonment Administration or on a building lease from any person.

(2) In any other case, the tax shall be primarily leviable as follows, namely;—

(a) if the property is let, upon the lessor;

(b) if the property is sub-let, upon the superior lessor; and

(c) if the property is unlet, upon the person in whom the right to let the same vests.

(3) On failure to recovery any sum due on account of such tax from the person primarily liable, these may be recovered from the occupier of any part of the buildings or lands in respect of which the tax is due, such portion of the sum due as bears to the whole amount due the same ratio which the rent annually payable by such occupier bears to the aggregate amount of rent so payable in respect of the whole of the said buildings or lands, or to the aggregate amount of the letting value thereof, if any, stated in the authenticated assessment list.

(4) An occupier who makes any payment for which he is not primarily liable under this section shall, in the absence of any contract to the contrary, be entitled to be reimbursed by the person primarily liable for the payment, and, if so entitled, may deduct the amount so paid from the amount of any rent from time to time becoming due from him to such person.

249. Determination annual rental value. For the purposes of property tax, the expression "annual rental value" means—

(a) in case of any building or land, the gross annual rent at which such building or land together with appurtenances (exclusive of any furniture or machinery) is actually let or where the building or land is not let or in the opinion of the Assessing Authority is let for a sum less than its fair letting value for which such building or land might reasonably be expected to let from year to year, as determined by application of a uniform method and/or criteria for various categories or rating areas as prescribed; and

(b) in the case of railway stations, hotels, colleges, schools, hospitals, factories and any other buildings which an Assessing Authority decides to assess under this clause, one-twentieth of the sum obtained by adding the estimated present cost of erecting the building to the estimated value of the land appertaining thereto:

Provided that where the annual value of any building is by reason of exceptional circumstances in the opinion of the Cantonment Administration, excessive if calculated in the aforesaid manner, the Cantonment Administration may fix the annual value at any less amount which appears to it to be just and fair.

250. Assessing Authority.— (1) There shall be an Assessing Authority for every cantonment for the purposes of property tax.

(2) The Assessing Authority shall exercise such powers and perform such duties as are conferred on it by this Ordinance or the rules made thereunder.

251. Preparation of assessment list. When property tax is imposed for the first time in any cantonment the Cantonment Administration shall cause an assessment list of all building or lands in the Cantonment, as the case may be, to be prepared in the form prescribed.

252. Publication of assessment list. When the assessment list has been prepared, the Cantonment Administration shall give public notice thereof, and of the place where the list or a copy thereof may be inspected, and every person claiming to be the owner, lessee or occupier of any property included in the list, and any authorized agent of such person, shall be at liberty to inspect the list and to make extracts therefrom free of charge.

253. Revision of assessment list.— (1) The Cantonment Administration shall, at the same time, give public notice of a date, not less than one month thereafter, when it will proceed to consider the valuations and assessments entitled in the assessment list, in all cases in which any property is for the first time, assessed or the assessment is increased.

(2) An objection to a valuation or assessment shall be made in writing to the Cantonment Administrator before the date fixed in the public notice, and shall state in what respect the valuation or assessment is disputed, and all objections so made shall be recorded in a register to be kept for the purpose by the Cantonment Administration.

(3) The objections shall be inquired into and investigated, and the persons making them shall be allowed an opportunity of being heard either in person or by authorized agent, by the Cantonment Administrator.

254. Authentication of assessment list.— (1) When all objections made under section 253 have been disposed of, and the revision of the valuation and assessment has been completed, the assessment list shall be authenticated by the signature of the Cantonment Administrator who shall, at the same time, certify that all objections made, have been duly considered and the list has been amended so far as is required by the decisions on such objections.

(2) The assessment list so authenticated shall be deposited in the office of the Cantonment Administration, and shall there be open, free of charge, during office hours to all owners, lessees and occupiers of property comprised therein or the authorized agents of such persons, and a public notice that it is so open shall forthwith be published.

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255. Evidentiary value of assessment list. Subject to such alterations as may thereafter be made in the assessment list under the provisions of this Ordinance and to the result of any appeal made thereunder, the entries in the assessment list authenticated and deposited as provided in section 254 shall be accepted as conclusive evidence,—

(a) for the purpose of assessing any tax imposed under this Ordinance, of the annual value or other valuation of all buildings and lands to which such entries respectively refer ; and

(b) for the purposes of any tax imposed on buildings or lands, of the amount of each such taxlivable thereon during the year to which such list relates.

256. Amendment of assessment list.— (1) The Cantonment Administration may amend the assessment list at any time during the current triennial period,—

(a) by inserting or omitting the name of any person whose name ought to have been or oughtto be inserted or omitted;

(b) by inserting or omitting any property which ought to have been or ought to be inserted or omitted;

(c) by altering the assessment on any property which has been erroneously valued or assessed through fraud, accident or mistake;

(d) by revaluing or re-assessing any property the value of which has been increased; or

(e) in the case of a tax payable by an occupier, by changing the name of the occupier:

Provided that no person shall by reason of any such amendment become liable to pay anytax or increase of tax in respect of any period prior to the current triennial period for which the assessment is made.

(2) Before making any amendment under sub-section (1) the Cantonment Administration shall give to any person, affected by the amendment, notice of not less than one month that it proposes to make the amendment.

(3) Any person interested in any such amendment may tender an objection to the Cantonment Administration in writing before the time fixed in the notice, and shall be allowed an opportunity of being heard in support of the same in person or by authorized agent.

257. Preparation of new assessment list. The Assessing Authority shall prepare a new assessment list at least once in every three years and for this purpose the provisions of sections 251 to 256 shall apply in like manner as they apply for the purpose of the preparation of an assessment list for the first time. Any list so prepared and finalized during the said three years shall be effective and valid for the complete period of such three years.

258. Notice of transfers.— (1) Whenever the title of any person primarily liable for the payment of a tax on the annual value of any building or land to or over such building or land is transferred, the person whose title is transferred and the person to whom the same is transferred shall within three months after the execution of the instrument of transfer or after its registration, if it is registered, or after the transfer is effected, if no instrument is executed, give notice of such transfer to the Cantonment Administrative Officer.

(2) In the event of the death of any person primarily liable as aforesaid, the person on whom the title of the deceased devolves shall give notice of such devolution to the Cantonment Administrative Officer within six months from the death of the deceased.

(3) The notice to be given under this section shall be in such form as the Cantonment Administrative Officer may direct, and the transferee or other person on whom the title devolves shall, if so required, be bound to produced before the Cantonment Administrative Officer any documents evidencing the transfer or devolution.

(4) Every person who makes a transfer as aforesaid without giving such notice to the Cantonment Administrative Officer shall continue to be liable for the payment of all taxes assessed on the property transferred until he gives notice or until the transfer has been recorded in the registers of the Cantonment Administration, but nothing in this section shall be held to affect the liability of the transferee for payment of the said tax.

(5) The Cantonment Administrative Officer shall record every transfer or devolution of title notified to him under sub-section (1) or sub-section (2) in the assessment list and other tax registers of the Cantonment Administration.

259. Notice of erection of buildings.— (1) If any building is erected or re-erected within a cantonment, the owner shall give notice thereof to the Cantonment Administrator within thirty days from the date of its completion or occupation whichever is earlier.

(2) Any person failing to give the notice required by sub-section (1) shall be punishable with fine which may extend to two thousand rupees or ten times the amount of the tax payable on the said building, as erected or re-erected, as the case may be, in respect of a period of three months, whichever is greater.

260. Demolition of buildings, etc. If any building is wholly or partly demolished or destroyed or is otherwise deprived of value, the Cantonment Administration may, on the application in writing of the owner or occupier, remit or refund such portion of any tax assessed on the annual rental value thereof as it thinks fit.

261. Remission of tax in certain cases. In a cantonment when any building or land has remained vacant and unproductive of rent for sixty or more consecutive days, the Cantonment Administration shall remit or refund, as the case may be, such portion or any tax assessed on the annual value thereof as may be proportionate to the number of days during which the said building or land had remained vacant and unproductive of rent.

262. Power to require entry in assessment list of details of buildings. For the purpose of obtaining a partial remission or refund of tax, the owner of a building composed of separate tenements may request the Cantonment Administration, at the time of the assessment of the building, to enter in the assessment list, in addition to the annual value of the whole building, a note recordingin detail the annual value of each separate tenement. When any tenement, the annual value of which has been thus separately recorded, has remained vacant and unproductive of rent for sixty or more consecutive days, such portion of any tax assessed on the annual value of the whole building shall be remitted or refunded as would have been remitted or refunded if the tenement had been separately assessed.

263. Notice to be given of the circumstances in which remission or refund is claimed. No remission or refund under section 261, or section 262 shall be made unless notice in writing of the fact that the building, land or tenement has become vacant and unproductive of rent has been given to the Cantonment Administration and no remission or refund shall take effect in respect of any period commencing more than fifteen days before the delivery of such notice:

Provided that where in case of failure of giving of such notice the Cantonment Administration is satisfied on the basis of other irrefutable evidence that the building, land or tenement remained vacant and unproductive of rent for a period of more than sixty days, it may grant the remission.

264. Notice to be given of every occupation of vacant building or house.— (1) The owner of anybuilding, tenement or land in respect of which a remission or refund of tax has been given under section 261 or section 262 shall give notice of the reoccupation of such building, tenement or land within fifteen days of such re-occupation.

(2) Any owner failing to give the notice required by sub-section (1) shall be punishable with fine which shall not be less than twice the amount of the tax payable on such building, tenement or land in respect of the period during which it has been re-occupied.

265. Appeals from orders.— (1) Any person aggrieved by an order of appropriate authority upon an objection made before that authority may prefer appeal against such order at any time before the expiration of thirty days from the date of such order as may be prescribed:

Provided that the appeal shall be maintainable only after the amount, if any, in dispute in the appeal has been deposited by the appellant in the office of Cantonment Administration.

266. Revision. Where an appeal from an order made by the Cantonment Administrator has been disposed of, either party to the proceedings may, within thirty days of the date thereof, apply, to such Authority as the Government may appoint in this behalf for a revision of the decision.

267. Tax to be levied notwithstanding appeal. The tax shall be levied in accordance with the valuation list in force for the time being, and shall be collected and be recoverable notwithstanding the fact that an appeal is pending with respect to that list.

268. Recovery of tax from tenants.— (1) Where the tax due from any person on account of any building or land is in arrears, it shall be lawful for the Cantonment Administration to serve upon any person paying rent in respect of that building or land, or any part thereof, to the person from whom the arrears are due, a notice stating the amount of such arrears of tax and requiring all future payments of rent (whether the same have already accrued due or not) by the person paying the rent to be made direct to the Cantonment Administration until such arrears shall have been duly paid, and such notice shall operate to transfer to the Cantonment Administration the right to recover, receive and give a discharge for such rent. If the person paying rent willfully fails or neglects to comply with the notice aforementioned, the Cantonment Administration may, after giving him an opportunity of being heard proceed against him as it would have proceeded under the provisions of this Ordinance against the owner of the building or land in respect of which the tax is in arrears.

269. Penalty for default in payment.— (1) Where a person fails to pay the property tax within due date of the demand, he shall, in addition to the amount of the tax, be liable to pay a surcharge, not exceeding one per cent of the tax due, as may be prescribed, within a period of thirty days from the prescribed date.

(2) Where the tax and the surcharge are not paid as provided in sub-section (1) the Cantonment Administration may, after giving the defaulter an opportunity of being heard, impose upon him a penalty not exceeding the amount of the tax.

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270. Recovery of unpaid dues.— (1) If any sum due on account of any tax, rate, fee or charge levied under this Ordinance or as a penalty imposed under this Ordinance is not paid within the time allowed for its payment and the person from whom it is due does not show cause to the satisfaction of the Cantonment Administration or any other person authorized by them why he should not pay the same, such sum (inclusive of all costs of recovery) may be recovered under a warrant in the prescribed form or in a form to the like effect to be signed by the Cantonment Administrative Officer—

(a) by distress or sale of the moveable property belonging to such person; or

(b) by attachment and sale of the immoveable property belonging to him.

(2) The warrant may be addressed to an officer of the Cantonment Administration for execution, and in executing it he may obtain such assistance from other servants of the Cantonment Administration, as he may consider necessary.

(3) Notwithstanding anything contained in sub-section (1), any sum on account of any dues leviedor penalty imposed under this Ordinance remaining unrecovered shall be recoverable as arrears of land revenue.

(4) Notwithstanding anything contained in any law and notwithstanding any rights arising out of any contract or otherwise whatsoever, any sum due on account of the tax, rate, fee or charge levied under this Ordinance or as a penalty imposed thereunder in respect of any building or land, shall, subject to the prior payment of the land revenue, if any, due to a Provincial Government thereon, be a first charge upon such building or land and upon the movable property, if any, found within or upon such building or land and belonging to the person liable for such tax or penalty.

271. Powers of Assessing Authority to require returns for assessment list.— (1) The Assessing Authority may, by written notice, call upon any inhabitant of the cantonment to furnish such information as may be necessary for the purpose of ascertaining,—

(a) whether such inhabitant is liable to pay any tax imposed under this Ordinance;

(b) at what amount he should be assessed; or

(c) the annul value of the building or land which he occupies and the name and address of the owner or lessee thereof.

(2) If any person, when called upon under sub-section (1) to furnish information neglects to furnish it or furnishes information which is not true to the best of his knowledge or belief, he shall be punishable with fine which may extend to five thousand rupees.

272. Valuation list not to be rendered invalid by certain failure or omission. Any failure on the part of the Assessing Authority to complete any proceedings with respect to the preparation of an assessment list within the time required by this Ordinance or the rules made thereunder, or the omission from an assessment list of any matters required by the rules to be included therein shall not, of itself, render the list invalid.

273. Bar of jurisdiction. Notwithstanding anything in any law for the time being in force no Court shall have jurisdiction in any matter which the Cantonment Administrator or an Assessing Authority or any officer or servant is empowered by this Ordinance or the rules made thereunder to dispose of, or take cognizance of the manner in which the Government, or any Assessing Authority, officer or servant exercise any powers vested in it or him by or under this Ordinance or the rules made thereunder.

274. Award for collection of property tax. The Cantonment Administration may as an incentive and award fix any percentage upto a maximum of 2.5% of the total recovery in a financial year to be dispersed to the officers and officials responsible for such tax collection.

275. Collection of taxes.—

(1) All taxes, levied under this Ordinance shall be levied and collected as prescribed.

(2) Failure to pay any tax and other money claimable under this Ordinance shall be an offence and the arrears shall be recovered as arrears of land revenue, by the Cantonment Administrative Officer who shall exercise the powers of Collector under Land Revenue Act 1967 (W.P. XVII of 1967).

276. Bottom up planning.— (1) Before the beginning of the financial year the respective Cantonment Administration shall lay down and announce the classification of development schemes to be undertaken by Citizen Community Boards under the provisions of this section.

(2) A Cantonment Administration may grant to the Citizen Community Boards within its local area, up to eighty percent of an approved development scheme in the prescribed manner:

Provided that a scheme shall be deemed to be an approved scheme if—

(a) the official procedure for estimating the cost of the scheme has been followed;

(b) the Citizen Community Board has deposited its share of the cost of the developmentscheme with concerned Cantonment Administration; and

(c) the complete estimates and the proof of deposit of the Citizen Community Board'scontribution are attached.

(3) The grant referred to in sub-section (2) shall be spent from the reserved twenty-five percent of the annual development budget for new schemes as provided in proviso to sub-section (4) of section 234 and any amount, which remains unspent, shall be credited under the same head in following year's budget in addition to the fresh allocation for that year.

(4) A cut off date for submission of all schemes proposed by the Citizen Community Boards shall be announced by the Cantonment Administration concerned before the presentation of its budget.

(5) The respective Cantonment Administration shall authorize an Officer to draw up a statement specifying the schemes submitted by the cut off date specified to sub-section (4) above by classification including the total amount of contributions for a particular classification of schemes.

(6) A second statement shall determine contributions for a particular classification of schemes as a ratio of the total contributions for all schemes submitted with a particular Cantonment Administration for that year and the statement shall be used to determine amounts of allocations for a classification of schemes from the budget reserved for the purpose.

(7) A third statement shall be drawn up which shall identify the number of schemes submitted in aparticular classification, beginning with the scheme containing the highest contribution by the Citizen Community Board in a classification until all the schemes in the classification are selected or the funds allocated for the particular classification in the amount determined in sub-section (6) are exhausted.

(8) The twenty-five percent funds for Citizen Community Boards under sub-section (4) of section 234 shall be communicated to the authorized Officer under sub-section (5) by the Cantonment Officer (Finance).

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(9) The identified schemes shall be included in the budget before submission to the concerned Board.

(10) The statement referred to in sub-section (7) above shall be approved by a simple majority of, the members in the budget session of the respective Board.

(11) The schemes approved by the respective Boards shall be carried out as prescribed.

(12) Subject to sub-section (10), the Accounts Officer of the respective Cantonment Administration shall release funds in the prescribed manner in accordance with the schedule of expenditure.

277. Cantonment Administration not to incur debt.— (1) No Cantonment Administration shall incur debt.

(2) No monies of the Cantonment Administration shall be invested in securities other than those floated or approved by the Government.

278. Delegation of powers. The Cantonment Board shall determine the financial powers of the officials of the Cantonment Administration.

CHAPTER XXII

MISCELLANEOUS

279. Social welfare and community development. The local government in a cantonment may—

(a) establish, manage and maintain welfare homes, asylums, orphanages, widow homes and other institutions for the relief of the distressed;

(b) provide for the burial or cremation of unidentified dead bodies within its local area at its own expense;

(c) promote Islamic values in the society;

(d) organise social service volunteers;

(e) develop small scale cottage industries;

(f) adopt such measures as may be specified by Government for the prevention of beggary, prostitution, gambling, taking of injurious drugs and consumption of liquor, juvenile delinquency and other social evils;

(g) adopt such measures as may be prescribed for the promotion of the welfare of backward classes, families of the persons serving in the armed forces; and

(h) provide housing accommodation to any class of inhabitants including local government servants.

280. Culture. The local government in cantonment may—

(a) establish and maintain information centres for the furtherance of civic education and dissemination of information on such matters as community development and other matters of public interest;

(b) provide and maintain public halls and community centres;

(c) celebrate national occasions;

(d) encourage national and regional languages;

(e) promote physical culture and encourage public games an sports; and organize rallies and tournaments; and

(f) provide, promote or subsidise facilities for the recreation of the public.

281. Libraries. The local government in a cantonment may establish and maintain such libraries, reading rooms and circulation libraries as may be necessary for the use of the public.

282. Fairs and shows. The local government in a cantonment may make such arrangements on the occasion of any fairs, shows or public festivals within its local area as may be necessary for the public health, public safety and public convenience, and may levy fees on the persons attending such fairs, shows and festivals.

283. Complaint Cell. Every Cantonment Administration and Union Administration shall set up aComplaint Cell for redressed of grievances within the ambit of their responsibilities under this Ordinance.

284. Servants of local governments in Cantonments.— (1) A local government being a body corporate may, employ such servants locally as are deemed necessary for the efficient performance of its functions under this Ordinance as prescribed or may discharge them in the prescribed manner.

(2) The Government may also, by rules prescribe the conditions of service of servants of the local governments including their employment, qualifications for various posts, schedule of establishment, control, supervision, conduct, suspension, removal, dismissal, punishment, amount and nature of security and grant of leave.

(3) The Government may also make rules requiring a local government to—

(a) establish and maintain a pension fund for payment to its servants after retirement;

(b) grant special pension or gratuity to the family of the servant who dies of disease or injury contracted or suffered in the discharge of his official duties;

(c) establish and maintain a Provident Fund and such other funds as considered necessary, for its servants in the same manner as is established and maintained for Government servants; and

(d) operate scheme of group insurance of its servants, and require the servants to subscribe toit.

(4) Cantonment servants may be appointed as Cantonment Officers on terms and conditions as prescribed by the rules.

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285. Training. The *Vice-Presidents*, Nazims, Naib Nazims and members of the Union Councils and Boards shall attend training courses for such periods and in such manner and at such places as may be prescribed by the Government from time to time:

Provided that the Government may also arrange training courses for the officers and employeesof local governments.

286. Appeals. Any person aggrieved by any order passed by a local government or its functionaries, in pursuance of this Ordinance or the rules or bye-laws made thereunder may prefer appeal to such authority, in such manner and within such period as may be prescribed.

287. Power to make rules.— (1) The Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the fore-going power, such rules may provide for all or any of the matters specified in the Fourth Schedule.

(3) The rules made under sub-section (1) shall be subject to previous publication in the official Gazette and shall meet the following considerations:—

(a) consistency with democratic decentralization and subsidiarity;

(b) enhancement of welfare of the people;

(c) fairness and clarity; and

(d) natural justice and due process of law.

288. Power to make bye-laws.— (1) A Union Council or the Board may in their ambit of responsibilities make bye-laws to carry out the purpose of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such bye-laws may provide for all or any of the matters specified in the Fifth Schedule.

(3) Power to make bye-laws shall be subject to previous publication locally. In case of Union Councils, their bye-laws shall also be subject to approval of the Board. A copy of the bye-laws shall be forwarded by the Union Council and the Board to the Government and the Government shall havethe power to order any change therein which appears to it to be necessary.

289. Members and servants deemed to be public servants. All Vice Presidents, Nazims, Naib Nazims, members of the Union Councils and Boards, functionaries of the local government and every other person duly authorised to act on behalf of the local governments shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code 1860 (Act XLV of 1860).

290. Action taken in good faith. No suit, prosecution, or other legal proceedings shall lie againstany public servant serving in cantonment Administration, Cantonment Board or local governments for anything done in good faith under this Ordinance.

291. General powers of local government. Notwithstanding any specific provisions, every localgovernment shall perform functions conferred by or under this Ordinance and in performance of suchfunction shall exercise such powers which are necessary and appropriate of thereto.

292. Delegation of powers.— (1) The Government may, by notification in the official Gazette, delegate all or any of its powers under this Ordinance or the rules made thereunder to any officer subordinate to it, subject to such conditions or limitations as may bespecified in the notification.

(2) The Competent Authority may, by notification in the official Gazette, delegate all or any of its powers under this Ordinance or the rules made thereunder to any officer subordinate to it, subject to such conditions or limitations as may be specified in the notification.

293. Validity of notices and other documents. No notice, order, requisition, licence, permissionin writing or other such documents issued under this Ordinance shall be invalid merely by reason of any defect of form.

294. Cantonment Administration, etc., deemed to municipalities. For the purpose of the Government Buildings Act, 1899 (IV of 1899), Cantonments and Cantonment Administrations shall

be deemed to be municipalities and municipal authorities respectively.

295. Management of lands in bazaar areas. Lands in bazaar areas established under the Cantonment Act, 1924 (II of 1924) and rules made thereunder shall be managed by the Cantonment Administration.

296. Resolution of disputes.— (1) A matter of disputes between the local governments within the cantonment areas shall be resolved by the Competent Authority whose decision shall be final.

(2) Disputes between local governments in a cantonment and those outside shall be resolved by the Federal Government or an Officer appointed by the Federal Government and decision thereon in this behalf shall be final.

297. Action in case of non-compliance. In the event of non-compliance with the terms of any notice, order or requisition issued to any person under this Ordinance, or any rule or bye-law made thereunder, requiring such person to execute to any work or to do any act, it shall be lawful for the Cantonment Administration, whether or not the person in default is liable to punishment for such default or has been prosecuted or sentenced to any punishment therefore, after giving notice in writing to such person to take such action or such steps as may be necessary for the completion of the act or work required to be done or executed by him, and all the expenses incurred on such account shall be receivable by the Cantonment Administration as arrears of tax.

298. Notice to be given of suits.— (1) No suit shall be institute against any Board or against any member of a Board, or against any officer or servant of a Cantonment Administration, in respect of any act done, or purporting to have been done, in pursuance of this Ordinance or of any rule or bye-law made thereunder, until the expiration of two months after notice in writing has been left at the office of the Cantonment Administration, and, in the case of such member, officer or servant, unless notice in writing has also been delivered to him or left at his office or place of abode, and unless such notice states explicitly the cause of action, the nature of the relief sought, the amount of compensation claimed, and the name and place of abode of the intending plaintiff, and unless the plaint contains a statement that such notice has been so delivered or left.

(2) If the Board, member, officer or servant of the Cantonment Administration has, before the suit is instituted, tendered sufficient amends to the plaintiffs, the plaintiff shall not recover any sum in excess of the amount so tendered, and shall also pay all costs incurred by the defendant after such tender.

(3) No suit, such as referred to in sub-section (1), shall, unless it is an action for the recovery of immovable property or for a declaration of title thereto, be instituted after the expiry of six months from the date on which the cause of action arises.

(4) Nothing in sub-section (1) shall be deemed to apply to a suit in which the only relief claimed isan injunction of which the object would be defeated by the giving of the notice or the postponement of the institution of the suit or proceeding.

299. Repeals and savings. On commencement of this Ordinance, the following laws shall stand repealed:—

(a) the Cantonments Act 1924 (II of 1924) and the Cantonment Local Government (Elections) Ordinance 2002 (Ordinance No. LXXIX (79) of 2002);

(b) all Cantonment Boards constituted under the Cantonments Act 1924 (II of 1924) shall stand dissolved on constitution of local governments in cantonments under

this Ordinance;

(c) save as otherwise specifically provided, nothing in the Ordinance, or any repeal effected thereby, shall affect or be deemed to affect anything done, action taken, investigation or proceedings commenced, order, rule, regulation, appointment, conveyance, mortgage, deed, document or agreement made, tax levied, resolution passed, direction given, proceedings taken or instrument executed or issued, under or in pursuance of any law repealed or amended by this Ordinance and any such thing, action, investigation, proceedings, order, rule, regulation, appointment, conveyance, mortgage, deed, document, agreement, tax, resolution, direction, proceedings or instrument shall, if in force at the commencement of this Ordinance and not inconsistent with any of the provisions of this Ordinance, continue to be in force, and have effect as if it were respectively done, taken, commenced, made, directed, passed, given, executed or issued under this Ordinance or the law, as amended by this Ordinance;

(d) notwithstanding the repeal of Cantonment Local Government (Elections) Ordinance 2002 Ordinance No. LXXIX (79) of 2002), all Vice-Presidents, Nazims and Naib Nazims and members of local governments elected under the said Ordinance shall be deemed to have been elected under this Ordinance, and shall continue to hold their respective offices till the completion of their terms, unless earlier removed, resigned or recalled under this Ordinance; and

(e) unless repealed or amended, the Cantonments Local Government Elections Rules 2002, shall be deemed to be the election rules made under this Ordinance.

300. Removal of difficulties. The Government may, by order provide for the removal of any difficulty which may arise in giving effect to the provisions of this Ordinance.

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THE FIRST SCHEDULE

(*See* section 243)

TAXES, TOLLS, DUTIES, RATES, CHAGES AND FEES

Cantonment Board

1. Tax on transfer of immoveable property.

2. Tax on professions, trades and callings.

3. Tax on annual value of buildings and lands.

4. Sewerage tax if the private drains are connected with public sewerage system.

5. Entertainment duties on cinemas, dramatical and theatrical shows and tickets thereof andother entertainment.

6. Toll on roads, bridges, and ferries within the limits of a cantonment.

7. Fee on advertisements, other than on radio and television, displayed anywhere in a cantonment.

8. Fee for sanction of building plans and erection and re-erection of buildings.

9. Fee for parking of vehicles on site provide by the Cantonment Administration.

10. Fee for fairs, agricultural shows, cattle fairs, industrial exhibitions, tournaments and otherpublic events.

11. Fee for licences and permits and penalties or fines for violation of the licensing rules or bye-laws.

12. Fee for certification of births, marriages and deaths.

13. Fee on sale of animals in cattle markets.

14. Market fees.

15. Charges for development of undeveloped area.

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16. Conservancy charges.

17. Charges for execution and maintenance of works of public utility like lighting of publicplaces and drainage and supply of water.

18. Collection charges for recovery of any tax on behalf of the Government, Provincial government, District government, or any statutory authority as prescribed.

THE SECOND SCHEDULE

(*See* section 109)

DANGEROUS AND OFFENSIVE ARTICLES AND TRADES

1. The business of storing and selling timber, firewood, coal, charcoal and coke, hay, straw, grass and bamboo, jute, shrub, hemp, munj and their products, matches, explosives, petrol, oil and lubricants, paper, ghee and other dangerously inflammable materials.

2. Sugar refining and sugar refineries.

3. Preparation of aerated water.

4. Operating or running bake houses.

5. Electroplating.

6. Welding.

7. Storing packing, pressing, cleaning, preparing or manufacturing by any process whatever, blasting powder, ammunition, fireworks, gun-powder, sulphur, mercury, gases, gum, cotton, saltpetre, nitrocompounds, nitromixture, phosphorous, dynamite.

8. Cleaning, dying, preparing or manufacturing by any process whatever, cloth or yarn in indigo and other colours.

9. Storing, processing, cleaning, crushing, melting, preparing or manufacturing by any process whatever or dealing in bones, tallow, offal, fatblood, soap, raw hides and skins, candles, manure, catgut and oil cloth.

10. Manufacturing oils.

11. Washing or dying wool or hair.

12. Making or manufacturing bricks, surkhi, tiles or earthenware pots, clay pipes or other earthenware by any process of baking or burning.

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13. Burning or grinding of limestone or metal stone or storing of lime for sale.

14. Cleaning or grinding of grain or chillies by any kind or class of machinery

15. Keeping animals likely to create nuisances.

16. Fellmongering

17. Casting of heavy metals such as iron lead, copper, and brass,

18. Dealing in chemicals, liquid or otherwise.

19. Wholesale storing, cleaning, pounding and selling of tobacco, except the storing of tobacco required for the preparation of biddies, cigars or cigarettes□

20. Operating or running of tin factories.

21. Manufacture of safes trunks and boxes.

22. Marble cutting and polishing.

23. Glass levelling and polishing.

24. Manufacture of cement and fume pipes.

25. Storing, packing, pressing, cleaning, preparing or manufacturing by any process whatever,rags, pitch, tar, turpentine dammar, coconut, fibre, flax, hemp, rosin or spirit.

26. Tanning, pressing or packing hide or skins raw or dry.

27. Trade or operation of ferries.

28. Working of power-looms, rice husking plants, steam whistle, steam trumpet or electric or hand operated sirens beyond hours fixed for their operation by a local government.

29. Discharging firearms and letting of fire-works, fire balloons or detonators or any game dangerous to life, dwelling and other property.

30. Any other article or trade declared by the Government or the concerned local government to be dangerous to life, health, or property or likely to cause nuisance, either from its nature or by reason of the manner in which or the conditions under which the same may be processed or carried on.

THE THIRD SCHEDULE

(*See* section 215)

OFFENCES, PENALTIES AND LEGAL PROCEEDINS PART I

1. Immoveable encroachment in or on or under any property or any open spaces or land vested in, managed, maintained or controlled by a local government.

2. Without licence from relevant authority manufacturing, storing, trading or carrying fire crackers, fire balloons or detonators or any dangerous chemical inflammable, hazardous or offensive article or material.

3. Discharging any dangerous chemical, inflammable, hazardous or offensive article in any drain, or public water course or public land in such manner as causes or is likely to cause danger to person passing by or living or working in neighbourhood, or risk or injury to property.

4. Overcharging or illegal charging of any tax, fee, fine, charge or rate by an employee of a local government or a contractor or his staff without the authority of a local government.

5. Preparing or using counterfeit or prescribed forms of the local government for recovery of taxes.

6. Erection or re-erection of building over set back area or parking area or building line area

required to be left open under the bye-laws for using such space for any purpose which is not approved.

7. Changing or converting into any other use any portion of commercial building or area specified or earmarked for public parking.

8. Failure to demolish or otherwise secure a building declared by the local government to be dangerous building.

9. Failure of industrial or commercial concerns to provide adequate and safe disposal of effluent or prevention of their mixing up with the water supply or sewerage system.

10. Establishing any parking stand on any property or on any open space and public park or land vested in or managed, maintained or controlled by a local government on or under a street, road, graveyard or a drain without the sanction of the relevant local government.

11. Supplying or marketing drinking water for human consumption in any form, from any source which is contaminated or suspected to be dangerous to public health, or its use hasbeen prohibited by a local government on the ground of being unsafe for human consumption, or whose quality or suitability for human consumption has not been ascertained and certified by a laboratory authorized by the Government.

12. Cultivation of agriculture produce or crop, for supply or sale to public using such manure,or irrigating it with sewer or any such liquid as may be injurious to public health or offensive to the neighbourhood.

13. Quarrying, blasting, cutting timber or carrying building operations to such manner as cause or likely to cause danger to person passing by or living or working in the neighbourhood.

14. Erection or re-erection of building without the sanction required under this Ordinance or using a building for a purpose which may endanger the security of people.

15. Dying or tanning skins, within such distance of any commercial or residential area as maybe specified by the local government.

16. Violation of the prohibition provided in the Master Plan, the sanctioned Site Development Schemes under this Ordinance, or any other law for the time being in force including the plans and schemes sanctioned under the repealed enactments.

17. Adulteration of any eatable or drinkable or consumable item sold or supplied to the public.

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18. Neglect in safe storage of eatable, drinkable or other consumable items sold or supplied tothe public.

19. Manufacturing, trading, storing or supplying any eatable or drinkable items and other items unsafe for human consumption or public health.

20. Contravention of the prohibition or attempt or abetment of any of the offences in this part.

PART II

21. Willfully obstructing any officer or servant of the local government or any person

authorised the exercise of power conferred under this Ordinance.

22. Establish any cattle market or bakar mandi without permission of the local government.

23. Failure to deliver back possession of property, to the local government on cancellation or expiry of lease.

24. Establish any bus, wagon, taxi or other commercial motorized or non-motorized vehicle stand for the purpose of plying them on different routes on any road, street, footpath, public place or any other property vested or managed or controlled or maintained by a local government without its permission.

25. Establishing or running any restaurant or vending stalls for eatables on any road, street, footpath, public place, over a drain, or any other property vesting in or managed or controlled or maintained by a local government without its permission.

26. Fixing of wooden khokhas, plying of handcarts for the sale of goods and temporary shops or extension thereof on footpaths or beyond the street line.

27. Establishing a brick kiln and lime kiln within such distance of a residential area as may be specified by the local government.

28. Failure by the owner or occupier of any land to clear away and remove any vegetation declared by a local government to be injurious to health or offensive to neighbourhood.

29. Failure to comply with notice to abate overcrowding or to make alteration in a building.

30. Slaughtering of animals for the sale of meat at the place other than the place set apart for the purpose.

31. Cutting down of any trees, or cutting of a branch of any tree, or erection or demolition of any building or part of a building where such action is declared under this Ordinance to bea cause of danger or annoyance to the public.

32. Stocking or collecting timber, wood, dry grass, straw or other inflammable materials or fuels, adjacent to commercial buildings or residential houses.

33. Without the permission of local government causing or knowingly or negligently allowing the contents of any sink, sewer or cesspool or any other offensive matter to flow, or drain to be put upon any street or public place, or into irrigation channel or any sewer or drain not set apart for the purpose.

34. Doing an act without licence or permission when the doing of such act requires a licence or permission under any of the provisions of the Ordinance or the rules or bye-laws.

35. Manufacturing, keeping, storing or selling wire thread or any other material meant for kite flying or in the manner causing danger to human life or the electric installations or disruption in electric supply.

36. Keeping or maintaining any cattle in any part of the prohibited zone or failure to remove the cattle from the prohibited zone within the specified time when an order to this effect has been made.

37. Keeping ferocious dogs or other animals in residential areas or taking such animals to public places without leash, or contravening requirements of section 119 in respect of dogs and other animals.

38. Obstructing or tampering with any road, street, drain or pavement.

39. Obstructing or tampering with any main pipe, meter or any apparatus or appliances for supply of water or sewerage system.

40. Evasion of payment of tax or other impost lawfully levied by a local government.

41. Preparation or sale of articles of food or drink by a person apparently suffering from any infectious or contagious disease that may endanger the health of people.

42. Contravention of the prohibition or attempt or abetment of any of the offences in this part.

PART III

43. Laying out a drain or altering any drain in a street or road without the sanction required under this Ordinance.

44. Connecting any house drain with a drain in a public street without the permission required under this Ordinance.

45. Excavation of earth, stone or any other material within such distance of the residential areas as specified by the local government.

46. Digging of public land without permission of the local government.

47. Burying or burning a dead body at a place, which is not a public or registered burial, or burning place, except with the sanction of the local government.

48. Failure to report completion or alteration of a building.

49. Failure to furnish, on requisition, information in respect of any matter which a local government is authorised to call for under any of the provision of the Ordinance, rules or bye-laws or furnishing wrong information.

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50. Obstructing lawful seizure of animals liable to be impounded on the ground of violation of rules or bye-laws governing the picketing, tethering, keeping milching or slaughter of animals or their trespass of private or public property.

51. Picketing, parking animals or collecting carts or vehicles on any street, using any street as a halting place for vehicles or animals or as a place of encampment without the permission of the local government concerned.

52. Causing or permitting animals to stray or keeping, tethering, stalling, feeding or gazing any cattle on any road, street or thoroughfare or in any public place or damaging or causing or permitting to be damaged any road, street or thoroughfare by allowing cattle to move thereon.

53. Disposal of carcasses of animals within prohibited distance.

54. Failure to dispose of offal, fat or any organ or part of a dead animal in a place set apart for the purpose by the local government.

55. Throwing or placing any refuse, litter or garbage on any street, or in any place, not provided and appointed for the purpose by a local government.

56. Failure to provide for disposal of litter or garbage inside or outside a shop by its owner.

57. Failure to maintain clean premises of the area in front of the shop, office or factory up to the public street or road serving this facility.

58. Watering cattle or animals, or bathing or washing at or near a well or other source of drinking water for the public.

59. Steeping hemp, jute or any other plant in or near a pound or any other excavation within such distance of the residential area as may be specified by a local government.

60. Drawing off, diverting or taking any water except with the permission required under this Ordinance.

61. Failure to provide, close, remove, alter, repair, clean, disinfect or put in proper order any latrine, urinal drain, cesspool or other receptacle for filth, sullage water or refuse by an owner of a house, shop, office, industry or premises.

62. Failure to clean the premises, houses, shops and cultivated lands of plastic bags and othernon-perishable materials.

63. Damaging or polluting physical environment, inside or outside private or public premises, in a manner to endanger public health.

64. Failure by the, owner or occupier of any land to cut or trim the hedges growing thereon which overhang any well, tank or other source from which water is derived for public use.

65. Failure by the owner or occupier of any land or building to clean, repair, cover, fill up or drain off any private well, tank of other source of water supply, which is declared under this Ordinance to be injurious to health or offensive to the neighbourhood.

66. Failure to stop leakages of water pipes, faucets and sanitary fittings resulting in dirty water pools affecting physical environments and breeding of mosquitoes.

67. Failure of an owner or occupier of any building or land to put up and keep in good condition throughs and pipes for receiving or carrying water or sullage water.

68. Feeding or allowing to be fed an animal meant for dairy or meat purposes, on deleterious substance, filth or refuse of any kind, which is dangerous to health of consumers.

69. Defacing or disturbing any direction-post, lamp post or lamp extinguishing or any light arranged by a local government without due authority.

70. Fixing any bill, notice, placard, poster or other paper or means of advertisement against or upon any private or public properties including building places other than the places fixed for the purpose by a local government.

71. Exhibiting any obscene advertisement.

72. Loud playing of music or radio, beating of drum or tom-tom, blowing a horn or beating or sounding any brass or other instruments or utensils in contravention of any general or special prohibition issued by a local government or a hospital or an educational institution.

73. Loud shouting in abusive language causing distress to the inhabitants of a neighbourhood or village or any other public place.

74. Using or allowing the use for human habitation of a building declared by a local government to be unfit for human habitation.

75. Failure to lime-wash or repair a building if so required by local government.

76. Begging importunately for alms by exposing any deformity or disease or any offensive sore or wound to solicit charity.

77. Failure of the head of the family to report the birth, marriage or death to a local government or a person appointed in this behalf within a reasonable time.

78. Causing or permitting to be caused by any owner or keeper of an animal who through neglect or otherwise damage of any land or crop or produce of land, or any public road, by allowing such animal to trespass thereon.

79. Selling cattle or any animal in contravention of any law, rule or bye-laws of a local government.

80. Kite flying in contravention of any general or specific prohibition issued by local government.

81. Keeping pigeon or other birds in a manner causing danger to air traffic.

82. Selling of any diseased animal, article or other thing which is unwholesome or unfit for human food, drink or medicine.

83. Failure to comply with the requirements of a notice issued under the Ordinance or rules orbye-laws.

84. Contravention of the prohibition or attempt or abetment of any of the offences in this part.

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THE FOURTH SCHEDULE

(*See* section 287)

RULES

1. Cantonments local government (Conduct of Business) Rules

2. Cantonments local government (Imposition and Recovery of Taxes) Rules.

3. Cantonments local government (Tax on Immoveable Property) Rules.

4. Cantonments local government (Tax on Transfer of Immoveable Property) Rules.

5. Cantonments local government Servants (Service) Rules.

6. Cantonments local government (Budget) Rules.

7. Cantonments local government (Accounts) Rules.

8. Cantonments local government (Internal Audit) Rules.

9. Cantonments local government (Property) Rules.

10. Cantonments local government (Contracts) Rules.

11. Cantonments local government (Works) Rules.

12. Cantonments local government (Monitoring) Rules.

13. Cantonments local government (Milk Supply Scheme) Rules.

14. Cantonments local government (Training) Rules.

15. Cantonments local government (Appeals) Rules.

16. Administration of Military Lands in Cantonments Rules.

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17. Citizen Community Board Rules.

18. Any other rules necessary for implementation of this Ordinance.

THE FIFTH SCHEDULE

(*See* section 288)

BYE-LAWS

1. Regulating traffic of all kinds in street and other public places.

2. Regulating the conditions under which vehicles may remain standing in streets and other public places.

3. The manner in which vehicles standing, driven, led or propelled in the street between sunset and sunrise shall be lighted.

4. Prohibiting except in accordance with such orders the placing of building materials or otherarticles in any street or public place.

5. Prevention and removal of encroachments.

6. Prohibiting the hanging or placing of any cord or poll across a street or part thereof or the making of a projection of structure so as to obstruct traffic or the free access of light and air.

7. Regulating and controlling the manner and mode of conveying timber, scaffolding poles, ladders iron girders, beams or bars, boilers or other unwielding articles through the street and the route and hours for such conveyance.

8. The seizure and confiscation of ownerless animals.

9. Regulation of grazing of animals and charging fee therefore.

10. Picketing, fastening or detention of any animal in any street or public place.

11. Specifying certain hours of the day during which the cattle shall not be driven, or as the case may be, driven only in accordance with such orders along the street or along certain specified streets.

12. The regulation or prohibition of the stabling or herding of animals or any class of animals,so as to prevent danger to public health.

13. Regulation of sale and control of cattle and animals.

14. Animal husbandry and milk supply.

15. Regulating the leading, driving, conducting or conveying of any wild or dangerous animals through or in any street.

16. Segregation in, or the removal, or exclusion from the cantonment or the destruction of animals suffering or reasonably suspected to be suffering from any infectious or contagious disease.

17. Regulation of the use of public parks, gardens, open spaces and other places, and the protection of forests, avenues, trees and grass, and other plantation.

18. Prevention of adulteration of foodstuffs.

19. The manner in which connection with water-works may be constructed or maintained and the agency which shall or may be employed for such construction and maintenance.

20. Tampering with any main pipe, or any apparatus or appliance for the supply of water.

21. Fixing of any bill, notice, placard, or other paper or means of advertisement against or upon any building or place other than the places fixed for the purpose by the local government but also ensuring that such advertisements do not cause any distraction or obstruction to traffic.

22. Erection of any enclosure, fence, tent, awning, or other temporary structure of whatever material or nature on any land.

23. Fixing of wooden khokhas, plying of hand carts for the sale of goods, and temporary or permanent shops or extensions thereof on foot paths or beyond the street line.

24. Closing certain streets or places temporarily, in case of danger from ruinous buildings or other cause, with such exceptions as shall appear reasonable.

25. Guarding against injury to person and property in the construction, repair and demolition of buildings, platforms and other structures from which danger may arise to passengers, neighbours or the general public.

26. The prevention and extinction of fire.

27. Prohibiting the setting of fire to or burning of any straw or other matter, or lighting a bonfire or wantonly discharging a fire-arm or air-gun, or letting off or throwing a fire-work, or sending up fire balloon or rocket in or upon a street or within fifty feet of a street or building or the putting up of any post or other thing on the side of or across a street for the purpose of affixing thereto lamps or other contrivances for illumination except in accordance with orders in this behalf.

28. Controlling or, in order to prevent obstruction, inconvenience, annoyance, risk, danger or damage to the residents or passengers in the vicinity, prohibiting:—

(i) the illumination of streets and public places and the exterior of building by persons other than government servants or any person duly authorized in that behalf;

(ii) the blasting of rockets or making excavation in or near streets or public places; and

(iii) the use of loudspeaker in or near any public place or public entertainment.

29. Regulation of burial and cremation places.

30. Regulation of markets.

31. Slaughter of animals and maintenance of slaughter houses.

32. The fixing and regulation of public bathing and washing places.

33. Regulation and control of encamping grounds, serais, hostels, dak-bungalows, lodging houses, buildings let in tenements, residential clubs, restaurants, cafes, refreshment rooms, and places of public recreation, entertainment or resort.

34. The matters regarding which conditions may be imposed by licences granted under section 154.

35. Prevention of air, water, noise and soil pollution.

36. Regulation in any manner of the construction, alteration, maintenance, preservation, cleaning and repairs of drains, ventilation shafts, pipes, water closets, privies, latrines, urinals, cess pools, and other draining works.

37. Flow and drain to be put on a street or public place or into an irrigation channel or any sewer or drain not set apart for the purpose.

38. Use of sewer water for farming.

39. Throwing or placing any refuse on any street, or in any place not provided or appointed for the purpose.

40. Specifying certain hours of the day during which odours or offensive matter or objects shall not be taken from or into houses or buildings in certain street or conveyed through such streets except in accordance with such orders.

41. Dyeing or tanning animal skins.

42. Disposal of carcasses of animals.

43. Watering cattle or animals or bathing or washing at or near a well or other source of drinking water for the public.

44. Prevention of the spread of infectious or contagious diseases.

45. Preventing obstruction, inconvenience, annoyance, risk, danger or damage to the residents or passengers in the vicinity and prohibiting the praying of music the beating of drums, or other instruments and blowing or sounding of horns or other noisy instruments in or near street or other public places.

46. Prevention and abatement of nuisances.

47. Dangerous and offensive trades and articles.

48. Preventing obstruction, inconvenience, annoyance, risk, danger, or damage to the residents or passengers in the vicinity, prohibiting the carrying in street and public places of gun-powder or any other explosive substance or any dangerous or hazardous material.

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49. Dangerous buildings and structures.

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52. Local government (community development).

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54. Prevention of beggary, juvenile delinquency and other social evils.

55. Regulation of libraries.

56. Organization and regulation of fairs, shows, tournaments and other public gatherings.

57. The regulation of the collection and recovery of taxes, tolls, charges and fees under this Ordinance and their refund.

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THE CAPITAL DEVELOPMENT AUTHORITY (ABATEMENT OF ARBITRATION PROCEEDINGS) ACT, 1975

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THE CAPITAL DEVELOPMENT AUTHORITY (ABATEMENT OF ARBITRATION PROCEEDINGS) ACT, 1975

ACT No. XXVII of 1975

[5th March, 1975]

An Act to provide for the annulment of certain references to arbitration and abatement of certain arbitration proceedings

WHEREAS the Capital Development Authority has entered into agreements with certain persons for the execution of certain projects and other works required to be undertaken by it under the Capital Development Authority Ordinance, 1960 (XXIII of 1960), and for the supply of goods or labour or the performance of certain obligations;

AND WHEREAS such agreements provide for reference of disputes arising therefrom to arbitration;

AND WHEREAS pursuant to the aforesaid provision of the said agreements, certain disputes between the Capital Development Authority and the said persons have been, or may hereafter be, referred to arbitration, either by the parties themselves or by order of a Court;

AND WHEREAS the references made to arbitration pursuant to such agreements have failed to achieve the objects for which provision for such references was made;

AND WHEREAS it is necessary that the references to arbitration in which the Capital Development Authority is a party be annulled and the proceedings before the arbitrators be abated, and necessary provisions consequent upon such annulment and abatement be made;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This act may be called the Capital Development Authority (Abatement of Arbitration Proceedings) Act, 1975.

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(2) It shall come into force at once.

2. Definitions.— (1) In this Act unless there is anything repugnant in the subject or context,—

(a) "Authority" means the Capital Development Authority established under the Capital Development Authority Ordinance, 1960 (XXIII of 1960); and

(b) "contractor" means any person, firm or company, not being a foreigner or a foreign firm or company, who or which has entered into an agreement with the Authority for the execution of any projects or works, or for the supply of any goods or labour or for the performance of any obligation, and includes a sub-contractor.

(2) Words used but not defined in this Act shall respectively have the same meanings as are assigned to them in the Arbitration Act, 1940 (X of 1940).

3. Abatement of proceedings before arbitrators, etc.—(1) Notwithstanding anything contained in any law for the time being in force, or any order of a Court or any agreement,—

(a) any provision in an agreement entered into before the coming into force of this Act by or on behalf of the Authority and a contractor relating to the execution of any project or works or to the supply of any goods or labour or to the performance of any obligation, providing for reference to arbitration of any dispute arising out of the agreement or any term or condition thereof shall stand abrogated and annulled and be of no effect;

(b) all arbitration proceedings in pursuance of any such agreement as is referred to in clause (a), whether the reference to arbitration was made by consent of the parties thereto, by order of a Court or otherwise, pending before an arbitrator or arbitrators or an umpire immediately before the coming into force of this Act shall forthwith abate and, save as hereinafter provided, shall be of no effect;

(c) any award made by an arbitrator, arbitrators, or umpire in pursuance of any such agreement as is referred to in clause (a) shall, unless the award has been made the rule of the Court, or partly or wholly implemented or acted upon, stand annulled and be of no effect, and any proceedings in respect of such award, if pending immediately before the coming into force of this Act, shall abate;

(d) all proceedings in relation to an application made to a Court for referring a dispute to arbitration pursuant to an agreement referred to in clause (a) shall abate, and any order made by a Court on such application referring the dispute to arbitration shall be of no effect; and

(e) any dispute referred to arbitration the proceedings whereof have abated by reason of the provisions of this section shall be decided in accordance with the provisions of the law for the time being in force.

(2) The fees to be paid to an arbitrator, arbitrators or an umpire in respect of the proceedings which have abated or an award which has been annulled, under sub-section (1) shall, unless mutually agreed to by such arbitrator or arbitrators or umpire, the Authority and the contractors, be of such amount, and shall be payable by the Authority or the contractors, or in such proportion by the Authority and the contractors, as the Court having jurisdiction to adjudicate in the matter of the dispute referred to arbitration may determine on application made to it in this behalf by the arbitrator, arbitrators or umpire, as the case may be.

(3) In determining the fees to be paid to an arbitrator, arbitrators or an umpire under sub-section (2), the Court shall take into consideration the stage of the proceedings before the arbitrator, arbitrators or the umpire, as the case may be, at which such proceedings abated under this section:

Provided that the fees so determined shall in no case exceed the fees agreed upon by the Authority and the contractors at the time of making the reference to arbitration or at any time thereafter and consented to by the arbitrator, arbitrators or umpire, as the case may be.

4. Limitation.—In computing the period of limitation prescribed for a suit or application relating to any dispute to which the provisions of sub-section (1) of section 3 apply, the time commencing on the date—

(a) of the execution of an agreement of reference to arbitration by the Authority and the contractor;

(b) of the making of a reference to arbitration; or

(c) of the making of an application to a Court for referring dispute to arbitration;

and ending immediately before the coming into force of this Act shall be excluded :

Provided that nothing in this section shall be deemed to have the effect of extending the period of limitation for a suit or an application where such period had expired prior to the execution of an agreement or the making of a reference or an application as is referred to in clause (a), clause (b) or clause (c).

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THE CAPITAL DEVELOPMENT AUTHORITY ORDINANCE, 1960

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THE CAPITAL DEVELOPMENT AUTHORITY ORDINANCE, 1960.
(ORDINANCE NO. XXIII OF 1960)

[*27th* June, *1960*]

An Ordinance to establish a Capital Development Authority.

WHEREAS it is expedient to establish a Capital Development Authority for making all arrangements for the planning and development of Islamabad within the frame-work of a regional development plan;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

CHAPTER I.—PRELIMINARY

1. Short title, extent and commencement.— (1)This Ordinance may be called the Capital Development Authority Ordinance, 1960.

(2) It extends to the Specified Areas.

(3) It shall come into force at once.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "agency" means any department or organization of the [1][Federal] or Provincial Government and includes a corporation, or other autonomous or semi-autonomous body set up by the [1][Federal] or Provincial Government;

(b) "Authority" means the Capital Development Authority established under section 4;

(c) "Board" means the Board constituted under section 6;

(d) "building" includes any factory, industrial or business establishment, shop, godown, warehouse, house, outhouse, hut, hutment, shed, garrage, stable, well or platform, and any other structure, whether meant for residential or business purposes or not, made of masonry, bricks, wood, mud, thatch, metal or any other material, but does not include a temporary structure made for purposes connected with agriculture;

(e) "Capital Site" means the part or parts of the Specified Areas declared to be the site for the Pakistan Capital under section 3;

(f) "Chairman" means the Chairman of the Authority;

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[1]Subs. by Federal Adaptation of Laws Order, 1975, Art. II and Table.

(g) "Commissioner" means the Commissioner of the Division concerned, and includes any other officer appointed by the Authority to exercise the powers of the Commissioner under this Ordinance;

(h) "Deputy Commissioner" means the Deputy Commissioner of the District concerned, and includes any other officer appointed by the Authority to exercise all or any of the powers and discharge all or any of the functions of the Deputy Commissioner under this Ordinance;

(i) "land" includes buildings and benefits arising out of land and things attached to the earth or permanently fastened to anything attached to the earth;

(j) "local body" means [1][the local body,] the local council or the municipal body as defined in clauses (23) [1][,(24)] and (27) of Article 3 of the Basic Democracies Order, 1959, (P.O. 18 of 1959), or the Cantonment Board, having jurisdiction in the area concerned, and includes an Improvement Trust within such area;

[2][(k) "market value" means,—

(i) in relation to land acquired before the first day of January, 1968, the average market value thereof prevailing during the period commencing the first day of January, 1954, and ending on the thirty first day of December, 1958; [3][*]

(ii) in relation to land acquired on or after the first day of January, 1968, the aggregate of the average market value as aforesaid determined with reference to its classification recorded in the Register of *Haqdaran Zamin* as in force on that day and twenty-five per cent of such value [3][; and]

[3][(iii) in relation to land acquired on or after the first day of January, 1996, the market value as may be determined in accordance with the provisions of the Land Acquisition Act, 1894 as applicable in the Province of the Punjab.]

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(l) "Member" means a member of the Authority;

(m) "regulations" means regulations made under this Ordinance;

(n) "rules" means rules made under this Ordinance;

(o) "scheme" means a planning scheme or a development scheme made under this Ordinance;

(p) "Specified Areas" means the areas specified in the Schedule, and such other area or areas as may from time to time be included therein by the [4][Federal Government] by notification in the official Gazette;

(q) "Vice-Chairman" means the Vice Chairman of the Authority."

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[1]Ins. by Act No. XXII of 1966, s. 2.
[2]Subs. by Act No. VII of 1968, s. 2.
[3]Omitted, subs. & added by Act No. III of 1999, s. 2.
[4]Subs. by Federal Adaptation of Laws Order, 1975, Art. II and Table.

3. Declaration of Capital Site.— (1) The [1] [Federal Government] may, from time to time, by notification in the official Gazette, declare any part or parts of the Specified Areas to be the site for the Pakistan Capital.

(2) Notwithstanding anything contained in this Ordinance or in any other law any such notification as aforesaid may be made so as to be retrospective to any day not earlier than the first day of June,1959, and where a notification is so made, the provisions of the Ordinance shall, in so far as they affect the Capital Site, apply as if this Ordinance were promulgated on the day to which the notification is made retrospective.

CHAPTER II.— CONSTITUTION OF THE AUTHORITY

4. Constitution of the Authority.— (1) There shall be established an authority to be known as the Capital Development Authority for carrying out the purposes of this Ordinance.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal, with power, subject to the provisions of this Ordinance, to acquire and hold property, both movable and immovable, and shall by the said name sue and be sued.

5. Management.— (1) The general direction and administration of the Authority and its affairs shall vest in the Board which may exercise all powers and do all acts and things which may be exercised or done by the Authority.

(2) The Board in discharging its functions shall act on sound principles of development, town planning and housing, and shall be guided on questions of policy by such directions as the [1][Federal Government] may from time to time give.

(3) If any question arises as to whether any matter is a matter of policy or not the decision of the [1][Federal Government] shall be final.

6. Constitution of the Board.— (1) The Board shall consist of not less than three members, to be appointed by the [1][Federal Government].

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(2) The [1] [Federal Government] shall appoint a Chairman, a Vice Chairman and a Financial Advisor from amongst the members.

(3) The Chairman and other members shall hold office during the pleasure of the [1][Federal Government] and unless sooner removed the Chairman and the Financial Adviser shall hold office for a period of five years and other members shall hold office for a period of four years.

(4) Any person ceasing to be Chairman, Vice Chairman or member of the Board, by reason of the expiry of the term of his office, shall be eligible for reappointment for another term or for such shorter term as the [1][Federal Government] may decide.

(5) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of the Board.

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[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

(6) The Chairman or any member may at any time resign:

Provided that his resignation shall not take effect until accepted by the [1][Federal Government].

7. Remuneration and conditions of service. The Chairman and each member shall receive such salary and allowances and shall be subject to such conditions of service as may be determined by the [1][Federal Government].

8. Disqualification of the members. No person shall be or shall continue to be a member who—

(a) is or, at any time, has been, convicted of an offence involving moral turpitude; or

(b) is or, at any time, has been adjudicated insolvent; or

(c) is found to be a lunatic or of unsound mind ;or

(d) is a minor; or

(e) has a financial interest in any scheme or a conflicting interest directly or indirectly between his interests as a member and his private interests and has failed to disclose such interest in writing to the [1][Federal Government];

[2][(f) * * * * * * *]

9. Duties and functions of Chairman and other members.—(1) The Chairman and other members shall discharge such duties and perform such functions as are assigned to them by or under this Ordinance.

(2) Until the Board is duly constituted, the Chairman shall, subject to such directions as the [1][Federal Government] may from time to time give, exercise the powers, discharge the duties and perform the functions of the Board.

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(3) The Vice-Chairman shall have such powers, duties and functions as may be delegated to him by the Chairman.

10. Headquarters of the Authority and meetings of the Board.—(1) Until the Authority establishes its headquarters elsewhere within the Specified Areas, its headquarters shall be situated at Rawalpindi.

(2) The meetings of the Board shall be held at such times and places and in such manner as the regulations may provide;

Provided that until regulations are made in this behalf, the meetings of the Board shall be held as and when convened by the Chairman.

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[1]Subs. by Federal Adaptation of Laws Order, 1975, Art. II and Table.
[2]Omitted by Act. No IX of 2023 s. 2.

CHAPTER III.— POWERS AND DUTIES OF THE AUTHORITY

11. Master-plan and master programme.— The Authority shall prepare a master-plan and a phased master-programme for the development of the Capital Site, and may prepare a similar plan and programme for the rest of the Specified Areas, and all such plans and programmes shall be submitted to the [1][Federal Government] for approval.

12. Preparation of schemes by local bodies or agencies.— (1) The Authority may, pursuant to the master plan and the master-programme, call upon any local body or agency operating in the Specified Areas to prepare, in consultation with the Authority, a scheme or schemes in respect of matters ordinarily dealt with by such local body or agency, and thereupon the local body or agency shall be responsible for the preparation of the scheme or schemes within a reasonable time.

(2) Such schemes, may relate to—

(a) land use, zoning and land reservation;

(b) public buildings;

(c) industry;

(d) transportation and communications; highway, roads, streets, railways, aerodromes;

(e) tele-communications, including wireless, television, radio, telephone;

(f) utilization of water, power and other natural resources;

(g) community planning, housing, slum clearance, amelioration;

(h) community facilities including water supply, sewerage, drainage, sewage disposal, electricity supply, gas supply and other public utilities;

(i) preservation of objects or places of historical or scientific interest or natural beauty.

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(3) The [1][Federal Government] may, by notification in the official Gazette, add to, alter or amend the list of subjects given in sub-section (2), and any such addition, alteration or modification shall take effect as if it had been enacted in this Ordinance.

(4) The expenditure incurred on the preparation of any such schemes as aforesaid shall be borne as agreed to between the Authority and the local body or agency, and in the event of disagreement between them as may be determined by the [1][Federal Government].

[2][(5) No planning or development scheme shall be prepared by any person or by any local body or agency except with the concurrence of the Authority.]

13. Preparation of schemes by Authority.— The Authority may, pursuant to the master-programme, itself prepare, when it considers it desirable to do so in the public interest, schemes for the Specified Areas relating to the matters enumerated in sub-section (2) of section 12.

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[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

[2]Subs. by Act No. XXII of 1966, s. 3.

14. Manner and form etc., of scheme.— All schemes under section 12 and section 13 shall be prepared in such manner and form as the [1] [Federal Government] may specify, and shall contain among other things the following information, namely:—

(a) description of the scheme and the manner of its execution;

(b) estimate of costs and benefits;

(c) allocation of costs to the various purposes to be served by the scheme.

15. Power of the Authority.— (1) Subject to the other provisions of this Ordinance and the rules, the Authority may take such measures and exercise such powers as may be necessary for the carrying out of the purposes of this Ordinance.

(2) Without prejudice to the generality of powers conferred by sub-section (1), the Authority may—

(i) acquire any land in the Specified Areas in accordance with the procedure laid down in Chapter IV;

(ii) undertake any works in the Specified Areas in pursuance of any scheme prepared under Section 13;

(iii) incur any expenditure;

(iv) procure plant, machinery, instruments and materials required for its use;

(v) enter into and perform all such contracts [2][including but not limited to joint ventures, public private partnerships, concession agreements, etc.] as it may consider necessary;

(vi) cause studies, surveys, experiments and technical researches to be made or contribute towards the cost of any such studies, surveys, experiments or technical researches made by any other agency at the request of the Authority;

(vii) issue interim development orders for areas for which a master-plan is under preparation and restrict or prohibit by general or special order any change in the use of land and alteration in buildings, structures and installations;

(viii) cause removal of any works obstructing the execution of its schemes;

(ix) seek and obtain advice and assistance for the preparation of any planning scheme or for the execution of any schemes from any local body or agency and such local body or agency shall give the advice and assistance sought by the Authority to the best of its ability, knowledge and judgment, and the additional expenditure, if any, involved in giving such advice or assistance shall be borne by the Authority.

[3][15A * * * * * * *]

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[1] Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

[2] Ins. by Act No. IX of 2023 by s.3.

[3] Omitted by Islamabad Capital Territory Local Govt. Act,2015 (X of 2015), s.132.

16. Borrowing powers.— (1) The Authority may, with the previous approval in writing of the [1][Federal Government], raise funds for the purpose or raising its working capital by issuing bonds and debentures carrying interest at such rates as may be approved by the [1][Federal Government].

(2) The repayment of the principal and the payment of interest due on the bonds and debentures issued by the Authority shall be guaranteed by the [1][Federal Government].

17. Execution of schemes etc., through local bodies and agencies.— (1) The Authority may require a local body or agency within whose jurisdiction any particular area covered by a scheme lies—

(a) to execute a scheme in consultation with the Authority;

(b) to take over and maintain any of the works and services in that area;

(c) to enforce regulations, on behalf of the Authority.

(2) The expenditure incurred on the execution of any scheme, or on the taking over or maintenance of any work, or the enforcement of regulations, under this section, shall be borne as may be agreed to between the Authority and the local body or agency, and, in the event of disagreement, as may be determined by the [1][Federal Government].

[2][**18. Utilisation of building material.** Notwithstanding anything contained in any other law for the time being in force or in any contract or agreement, no person shall, without the prior concurrence of the Authority, allocate, exploit or in any manner utilise, except for the purpose of his own personal use, such natural resources used as building material as the Authority may, by notification in the official Gazette, specify in this behalf.]

19. Amendment of schemes.— Any scheme prepared under section 12 or section 13 may at any time be amended or modified—

(a) in cases where the amended or modified scheme should exceed the financial powers of the Authority, by the Authority with the previous approval in writing of the [1][Federal Government], and

(b) in other cases, by the Authority [2][.]

[2][* * * * * *]

20. Removal, etc., of buildings after hearing. — The Authority shall not order or cause any building in the Specified Areas, excluding the Capital Site, to be removed or demolished unless an opportunity of being heard has been given to the owner or occupier thereof, and his objections, if any, have been duly considered, and the Authority is satisfied that removal or demolition of the building is essential to the execution of its schemes.

21. Schemes to be executed after calling objections.— The Authority shall not execute or cause to be executed any scheme in the Specified Areas, excluding the Capital Site, unless the persons whose rights and interests are thereby affected have been given a reasonable opportunity to file their objection to such execution, and the Authority has heard such of them as it considers necessary.

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[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

[2]Subs. and omitted by Act No XXII of 1966, ss. 5 and 6.

CHAPTER IV.—ACQUISITION OF LAND

22. Liability to acquisition.— All land within the Specified Areas shall be liable to acquisition at any time in accordance with the provisions of this Chapter.

23. Entry upon land, preliminary survey, etc.— (1) It shall be lawful for the Authority, and any member thereof, and for the Deputy Commissioner, and any such person as may either generally or specially be authorised by the Authority, in this behalf,

(a) to enter upon and survey and take levels of any land;

(b) to dig or bore into the subsoil;

(c) to do all other acts necessary to ascertain whether land is adapted for the purposes of this Ordinance;

(d) to set out the boundaries of the land proposed to be acquired and the intended line of the work, if any, proposed to be made thereon;

(e) to mark such levels, boundaries and line by placing marks and cutting trenches; and

(f) where it is necessary for the purposes of the survey, taking of levels or marking of line, to cut down and clear away any part of any standing crop, fence or jungle.

(2) No person shall enter into any building or upon any enclosed court or garden attached to a dwelling house (unless with the consent of the occupier thereof) without previously giving such occupier at least twenty-four hours' notice in writing of his intention to do so.

24. Compensation for damage.— Where any damage is caused to any land in consequence of anything done in pursuance of section 23, there shall be paid compensation, the amount of which shall be determined in the manner and in accordance with the provisions hereinafter set out, that is to say,

(a) where the amount of compensation can be fixed by agreement, it shall be fixed in accordance with such agreement; and

(b) where no such agreement can be reached, it shall be fixed by the Deputy Commissioner.

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25. Power to acquire land.— (1) Subject to the other provisions of this Ordinance, the rules made thereunder, and the directions of the Authority, the Deputy commissioner may, by order in writing, acquire any land for the purposes of this Ordinance.

(2) No order under sub-section (1) shall be issued except on the receipt by the Deputy Commissioner of specified directions from the Authority.

26. Land to be marked out measured and planned.— Where any land is proposed to be acquired under Section 25, the Deputy Commissioner shall cause the land (unless it has been already marked out) to be marked out and measured, and if no plan has been made thereof, a plan to be made of the same.

27. Notice to persons interested.— (1) The Deputy Commissioner shall then cause public notice to be given at convenient places on or near the land to be taken, stating that the [1][Federal Government] intends to take possession of the land, and that claims to compensation for all interests in such land may be made to him.

(2) Such notice shall state the particulars of the land so needed, and shall require all persons interested in the land to appear personally or by agent before the Deputy Commissioner at a time and place therein mentioned (such time not being earlier than ten days after the date of publication of the notice), and to state the nature of their respective interests in the land [2][***] and particulars of their claims to compensation for such interests, and their objections, if any, to the measurements made under section 23, and the Deputy Commissioner may require any such statement to be made in writing and signed by the party or his agent.

(3) The Deputy Commissioner shall also serve notice to the same effect on the occupier, if any, of such land and on all such persons known or believed to be interested therein, or to be entitled to act for persons so interested.

28. Enquiry and award of Deputy Commissioner.— [2][(1)] On the day so fixed, or on any other day to which the enquiry has been adjourned, the Deputy Commissioner shall proceed to enquire into the objections, if any, which any person interested has stated pursuant to the notice given under section 27, and into the market value of the land and into the respective interests of the persons claiming the compensation, and shall make an award of—

(i) the true area of the land;

(ii) the compensation which in his opinion should be allowed for the land; and

(ii) the apportionment of such compensation among all the persons known or believed to be interested in the land of whom, or of whose claims, he has information, whether or not they have appeared before him.

[2][(2) Notwithstanding anything contained in this Ordinance, where land includes a building or build up property, the Deputy Commissioner may issue two separate awards one for the land and another for the building or build up property.]

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29. Compensation.— where any land is acquired under this Ordinance there shall be paid compensation, [2][in the form of monetary payment, land sharing, or any other form as may be determined by the Authority. The Deputy Commissioner shall announce the award and shall be guided by the provisions of sections 30 and 31].

[2][**29A. Rehabilitation and resettlement benefits.**— The pending cases for grant of rehabilitation and resettlement benefits in lieu of any award of land and build-up property, pending on the 30th October, 2024 shall be governed and processed in accordance with the provisions of the applicable Rehabilitation Policy in force at the relevant time.]

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[1]Subs. by Federal Adaptation of Laws Order, 1975, Art. II and Table.
[2]Omitted, re-numbered, added, subs., and ins by Act No. I of 2026, ss. 2, 3, 4 and 5.

30. Matter to be considered in determining compensation.— (1) In determining the [1][**] compensation to be awarded for land acquired under this Ordinance the Deputy Commissioner shall take into consideration,

first, the market value of land [2][on the date of order of its acquisition made under section 25];

secondly, the damage sustained by the person interested, by reason of dispossession of any standing crops or trees which may be on the land;

thirdly, the damage, if any sustained by the person interested at the time of taking possession of the land by reason of severing such land from his other land;

fourthly, the damage, if any, sustained by the person interested at the time of taking possession of the land by reason of the acquisition injuriously affecting his other property, movable or immovable, in any other manner, or his earnings; and;

fifthly, if, in consequence of the acquisition of the land the person interested is compelled to change his residence or place of business, the reasonable expenses, if any, incidental to such change.

(2) In addition to the value of the land determined as aforesaid, the Deputy Commissioner shall in every case award a sum of fifteen per centum on such value in consideration of the compulsory nature of the acquisition.

[2][(3) In relation to land acquired on or after the first day of January, 1996, in addition to the value of the land determined as aforesaid, the Deputy Commissioner shall in every case award a sum of twenty per centum on such value in consideration of the compulsory nature of the acquisition.]

[1][(4) Where compensation is provided through land sharing, rehabilitation benefits, resettlement benefits, or any other form as determined by the Authority, it shall ensure that the,—

(a) allotted land is of equivalent value, utility and accessibility as the acquired land;

(b) rehabilitation and resettlement benefits are provided where required ensuring the restoration of livelihood and standard of living; and

(c) compensation package aligns with principles of equity ensuring that affected persons are not placed at a disadvantage due to the acquisition.]

31. Factors to be ignored in determing compensation.— In determining compensation as aforesaid, the Deputy Commissioner shall not take into consideration—

first, the degree of urgency which has led to the acquisition;

secondly, any disinclination of the person interested to part with the land acquired;

thirdly, any damage sustained by him which, if caused by a private person would not render such person liable to a suit;

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[1]Omitted and ins. by Act No. I of 2026, s. 6.
[2]Added by Act No. III of 1999, s.3.

fourthly, any increase likely to accrue to the value of the land acquired from the use to which such land will be put on acquisition; and

fifthly, any increase likely to accrue to the value of the other land of the person interested from the use to which the land acquired will be put.

32. Vesting of land in the Authority.— Immediately on the making of the award under section 28, the land shall vest in the Authority free from all encumbrances [1][and thereupon the Deputy Commissioner may, after giving reasonable notice to the occupier, enter upon and take possession of the same] [2][:]

[2][Provided that in case of a separate award for land and the buildings thereon, the land or the building, as the case may be, shall vest in the Authority free from all encumbrances upon the making of the respective award.]

[2][**32A. Additional Compensation.**— When the compensation is determined under section 29 and sub-sections (3) and (4) of section 30, is not paid, deposited or tendered with the Deputy Commissioner on or before taking possession of the land, the Deputy Commissioner shall, in addition to such compensation, pay additional compensation computed at the rate of eight per centum per annum on such compensation from the time of so taking the possession until it has been so paid or deposited.]

33. Acquisition in cases of urgency.— In cases of urgency, the Deputy Commissioner may immediately after the publication of the notice mentioned in sub section (1) of section 27 enter upon and taken possession of the land which shall thereupon vest absolutely in the [1][Authority] free from all encumbrances:

Provided that the Deputy Commissioner shall not take possession of any building or part of building under this section without giving to the occupier thereof at least twenty-four hours' notice of his intention so to do, or such longer notice as may be reasonably sufficient to enable such occupier to remove his movable property from such building without unnecessary inconvenience.

[1][**33A. Temporary occupation and use of land.**— (1) Where the Authority requires any land for temporary occupation and use for the purposes of this Ordinance for a period not exceeding five years, it may direct the Deputy Commissioner to take possession of the land in accordance with the provisions of this section for such occupation and use.

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(2) Upon a direction under sub-section (1) in respect of any land, the Deputy Commissioner shall give the persons having interest in the land notice in writing of his intention to take possession of the same for the purpose and period specified therein calling upon such persons to submit within ten days of the receipt of the notice written statements describing the nature and extent of their interest in such land.

[2][(3) The Deputy Commissioner shall, after giving the person having interest in the land an opportunity of being heard, determine the compensation for the temporary occupation and use of the land at the rate at which it was rented during the preceding agricultural year and, if it was not so rented, at such rate as he may consider fair and equitable, and make an award specifying the,—

(a) area and description of the land;

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[1]Added, subs. and ins. by Act No. XXII of 1966, ss. 7, 8 and 9.
[2]Subs. and added by Act No. I of 2026, ss. 7, 8 and 9.
[3]Added by Act No. III of 1999, s. 4.

(b) purpose and the period for which the land is required;

(c) compensation and shares therein of the persons, if there be more than one, entitled thereto; and

(d) mode of compensation.]

(4) After making an award under sub section (3) in respect of any land, the Deputy Commissioner may enter upon and take possession of such land for the purpose and the period specified in the notice under sub-section (2).

(5) If it appears that as a result of the occupation and use as aforesaid any land proposed to be taken possession of under this section is likely to be permanently unfit for the use for which it is for the time being used and the owner applies for its acquisition under this Ordinance, the Deputy Commissioner shall report the fact to the Authority and shall, if the Authority so direct,—

(a) acquire the land under this Ordinance; or

(b) assess the damage likely to be caused to the land and make an award for reasonable compensation for such damage; or

(c) terminate the proceedings for taking possession of the land.

33B. [1]**[Compensation] to persons under disability and heirs of deceased persons.**— [1][(1) If any person entitled to the compensation under this Ordinance is a minor or of unsound mind or otherwise under a legal disability to receive and administer the compensation the Deputy. Commissioner may, by order, direct that the compensation shall be made to the person applying for it on behalf of the person entitled thereto, if the Deputy Commissioner, after making such enquiry as he may deem fit, is satisfied that the person so applying is the proper person to receive and administer the compensation for the benefit of the person entitled to compensation.]

(2) Where a person entitled to receive compensation under the Ordinance dies after the making of an award, the Deputy Commissioner may, to provide relief in suitable cases, on the application of the heirs or legal representatives of such person and after holding an enquiry into the title of the applicants, direct, that compensation shall be paid to the applicants on such terms and conditions as the Deputy Commissioner may deem fit to impose.

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[1][(3) Any compensation provided under sub-section (1) or sub-section (2) shall afford full indemnity to the Authority for the compensation made but shall not affect the liability of the person who has received the compensation to account therefore to the person lawfully entitled thereto.]]

34. Power of Deputy Commissioner to call for information.— With a view to acquiring any land or determining any compensation therefor or to carrying out any other purpose of this Ordinance, the Deputy Commissioner may—

(a) require any person, by order in writing, to furnish such information in his possession relating to any land as may be specified in the order;

(b) enter or authorize any person to enter upon any land and take such action as may be necessary.

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[1]Subs. by Act No. I of 2026, s. 10.

35. Power of Authority to give directions to Deputy Commissioner.— The Authority may give direction to the Deputy Commissioner as respects the exercise of his powers and the discharge of his functions under this Chapter and the Deputy Commissioner shall be guided by, and act in accordance with, such directions.

[1][**36. Appeal and review.**—(1) The Authority or any person aggrieved by an award or final order of the Deputy Commissioner may, within fifteen days of such award or order, appeal to the Commissioner.

(2) The Commissioner may, after giving the Authority and the persons affected by the award or order appealed against an opportunity of submitting any objection to the appeal and of being heard, pass such orders thereon as he may think fit.

(3) The Deputy Commissioner or the Commissioner, either of his own motion or on an application made in this behalf, at any time within five years from the date of an award or order made or passed by himself or by any of his predecessors in office, including an award or order made or passed before the commencement of the Capital Development Authority (Amendment) Act, 1966, may, after giving the parties concerned a notice and an opportunity of being heard, review the award or order and pass such order thereon as he may deem fit:

Provided that an order under this sub-section shall not, except in so far as it corrects an arithmetical, clerical or patent error or mistake in the award or order under review, enhance the amount of compensation [2][, rehabilitation and resettlement] awarded.

(4) Any [2][compensation awarded] to any person which is found, for any reason including fraud or misrepresentation, not to be due or in excess of the amount he is entitled to under the award or order, as reviewed under sub-section (3), shall be recoverable by the Authority and the Deputy Commissioner shall call upon such person to refund it.

(5) Subject to the provision of sub-section (3), the order of the Commissioner passed on any appeal shall be final and shall not be called in question in any court.]

[1][**36A. Deputy Commissioner and Commissioner to have powers of civil court, etc.—** (1) The Deputy Commissioner making any enquiry, or conducting any proceedings for an award under this Ordinance, or the Commissioner hearing an appeal or holding a review under section 36, shall have the same powers in respect of the following matters as are vested in a civil court, when trying a suit, under the Code of Civil Procedure, 1908 (Act V of 1908), namely:—

(a) summoning and enforcing attendance of any person and examining him an oath or affirmation;

(b) requiring the discovery and production of any document;

(c) requisitioning any record from any court or office;

(d) issuing commissions for examination of witnesses, inspection of property or making any local investigations;

(e) appointing guardian *ad litem* or next friends;

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[1]Subs. and ins. by Act No. XXII of 1966, ss. 10 and 11.

[2]Ins. and Subs. by Act No. I of 2026, s. 11.

(f) adding or substituting representatives of deceased parties to proceedings ;

(g) adding or dropping parties from pending proceedings ;

(h) restoration of cases dismissed for default ;

(i) consolidating and splitting up cases; and

(j) any other matter connected with the holding of an inquiry or hearing of an appeal.

(2) The Deputy Commissioner or the Commissioner exercising powers under this Ordinance shall be deemed to be a court for the purposes of sections 480 and 482 of the Code of Criminal Procedure, 1898 (V of 1898), and a proceeding before him shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (XLV of 1860).

36B. Fees on applications.— The Authority may prescribe fees on applications made to it.]

CHAPTER V.—ESTABLISHMENT

37. Appointment of officers and servants, etc.— (1) The Authority may, from time to time, appoint such officers, servants, experts or consultants as it may consider necessary for the performance of its functions, on such terms and conditions as it may deem fit:

Provided that salaried officers and servants whose remuneration exceeds two thousand and five hundred rupees per mensem shall not be appointed except with the previous approval in writing of the [1][Federal Government].

(2) Subject to the proviso to sub-section (1), the Chairman may, in cases of urgency, appoint such officers, servants, experts or consultants and on such terms and conditions as he deems fit:

Provided that every appointment made under this sub-section shall be reported to the Authority without unreasonable delay.

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38. Recruitment, conditions of service and disciplinary powers.— The Authority shall lay down the procedure for the appointment of its officers, servants, experts and consultants, and the terms and conditions of their service including the constitution and management of provident fund for them, and shall be competent to take disciplinary action against them.

39. Members, officers, experts–public servants.— The Chairman, members, officers, servants, experts and consultants of the Authority shall, when acting or purporting to act in pursuance of any of the provisions of this Ordinance be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

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[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

40. Indemnity.— No suit, prosecution or other legal proceedings shall lie against the Authority, the Chairman, any member, officer, servant, expert or consultant of the Authority in respect of anything done or intended to be done, in good faith under this Ordinance.

41. Delegation of powers to Chairman, etc. The Authority may, by general or special order, delegate to the Chairman, or a member, or an officer of the Authority, any of its powers, duties or functions under this Ordinance, subject to such conditions as it may think fit to impose.

CHAPTER VI.—FINANCE

42. Capital Development Authority Fund.— (1) There shall be formed a fund to be known as the "Capital Development Authority Fund" which shall vest in the Authority and shall be utilized by the Authority to meet charges in connection with its functions under this Ordinance including the payment of salaries and other remuneration to the Chairman, members, officers, servants, experts, and consultants of the Authority.

(2) To the credit of Capital Development Authority Fund shall be placed,—

(a) grants made by the [1][Federal Government];

(b) loans obtained from the [1][Federal Government];

(c) grants made by local bodies;

(d) sale proceeds of movable and immovable property and receipts for services rendered;

(e) loans obtained by the Authority with the special or general sanction of the [1][Federal Government];

(f) foreign aid and loans obtained from the International Bank of Reconstruction and Development or from any other source outside Pakistan, with the sanction of, and on such terms as may be approved by, the [1][Federal Government]; and

(g) all other sums receivable by the Authority.

43. Budget.— (1) In the month of February each year the Authority shall submit to the [1][Federal Government] for approval a statement of the estimated receipts and expenditure in rupees in respect of the next financial year.

(2) In the manner prescribed by the [1][Federal Government] the Authority shall also submit to the [1][Federal Government] for approval a statement of the estimated receipts and expenditure in foreign exchange in respect of the next financial year.

(3) The Authority shall obtain specific sanction of the [1][Federal Government] in respect of each individual scheme costing rupees twenty-five lacs or more to be financed out of the Capital Development Authority Fund.

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[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

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44.Audit and account.— (1) The accounts of the Authority shall be audited by not less than two auditors holding certificates under section 144 of the Companies Act, 1913 (VII of 1913), who shall be appointed by the [1][Federal Government], in consultation with the [1][Auditor General] of Pakistan (hereinafter referred to as the Auditor-General) on such remuneration, to be paid by the Authority, as the [1][Federal Government] may fix, and the Auditor-General shall have the power to give directions to the auditors in regard to the extent and method of their audit subject to the provisions of the Companies Act, and to prescribe the forms of accounts to be maintained by the Authority consistent with the requirements of this Ordinance.

(2) Notwithstanding the provisions of the preceding sub-section, the Auditor General, may either of his own motion or upon a request received in this behalf from the [1][Federal Government], undertake such audit of the accounts of the Authority at such time as may be considered necessary, and the Authority shall, at the time of such audit, produce the account books and connected documents at such place or places as the Auditor-General may fix, and furnish such explanations and information as the Auditor-General or an officer or officers authorized by him in this behalf may ask for.

(3) Every auditor appointed under sub-section (1) shall be given a copy of annual balance-sheet of the Authority, and shall examine it together with the accounts and vouchers relating thereto, and shall have a list delivered to him of all books kept by the Authority, and shall at all reasonable times have access to the books, accounts and other documents of the Authority, and may in relation to such accounts examine any member or officer of the Authority.

(4) The auditors shall report to the [1][Federal Government] upon the annual balance-sheet and accounts and in their report they shall state whether in their opinion the balance-sheet is a full and fair balance-sheet containing all necessary particulars and properly drawn up so as to exhibit a true and correct view of the state of the Authority's affairs, and in case they have called for any explanation or information from the Board, whether it has been given and whether it is satisfactory.

(5) The [1][Federal Government] may at any time issue directions to the auditors requiring them to report to it upon the adequacy of measures taken by the Authority for the protection of the interests of the [1][Federal Government] and of the creditors of the Authority or upon the sufficiency of their procedure in auditing the affairs of the authority, and may at any time enlarge or extend the scope of the audit or direct that a different procedure in audit be adopted or that any other examination be made by the auditor if in its opinion the public interest so requires.

(6) The Authority shall comply with every direction issued by the [1][Federal Government] for the rectification of matters objected to in audit.

45. Consultation with the Financial Advisor.— Save as provided in the rules or regulations, the Financial Advisor shall be consulted on every proposal of expenditure.

CHAPTER VII.—PENALTY AND PROCEDURE

46. Penalty.— Whoever contravenes any provision of this Ordinance or of any rules or regulations made or scheme sanctioned thereunder shall, if no other penalty is provided for such contravention, be punishable with imprisonment which may extend to six months or fine or with both.

[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II, Table and Sch.

[1][**46A. Causing damage to property.—** Whoever willfully causes damage or allows damage to be caused to any property which vests in the Authority or unlawfully converts it to his own use or to that of any other person shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

46B. Disobedience of orders.— Whoever, without lawful excuse, fails or refuses to comply with any direction or order issued by the Authority under this Ordinance shall be guilty of an offence punishable under section 46.

46C. Attempts and abetments.— Whoever attempts to commit or abets the commission of an offence punishable under this Ordinance shall be deemed to have committed that offence.

46D. Summary trial of offences.— Any Magistrate or Bench of Magistrates empowered for the time being to try in a summary way the offences specified in sub-section (1) of section 260 of the Code of Criminal Procedure, 1898 (Act V of 1898), may, if such Magistrate or Bench of Magistrates thinks fit, on application being made in this behalf by the prosecution, try any offence punishable under this Ordinance in accordance with the provisions contained in sections 262 to 265 of the said Code.]

47. Cognizance of offences by Courts.— No court shall take cognizance of any offence punishable under this Ordinance except on a complaint in writing made by the Authority or by an officer authorized for the purpose by the Authority.

CHAPTER VIII.—MISCELLANEOUS

48. Submission of Yearly reports and returns, etc.— (1) The Authority shall submit to the [2][Federal Government], as soon as possible after the end of every financial year but before the last day of December next following, a report on the conduct of its affairs for that year.

(2) The [2][Federal Government] may, after giving sufficient notice to the Authority, require it to furnish the Government with—

(i) any return, statement, estimate, statistics, or other information on regarding any matter under the control of the Authority, or

(ii) a report on any subject with which the Authority is concerned, or

(iii) a copy of any document in the charge of the Authority; and the Authority shall comply with every such requisition.

49. Power to dispose of land. — The Authority may retain, or may lease, sell, exchange, rent or otherwise dispose of any land vested in it.

[1][**49A. Recovery of dues, etc.—** Any sum due to the Authority from, or any sum wrongly paid to, any person under this Ordinance shall be recoverable as arrears of land revenue.

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[1]Ins. by Act No. XXII of 1966, ss. 12 and 13.
[2]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

49B. Summary ejectment of unauthorised occupants.— The Deputy Commissioner or any person authorized by him or the Authority in this behalf may, after giving fifteen days notice, summarily eject any person in unauthorised occupation of any land or property vested in the Authority and may, for such ejectment, use such force including police force as may be necessary.

49C. Removal of building, etc., erected or used in contravention of this Ordinance.—(1) If any building, structure, work or land is erected, constructed or used in contravention of the provisions of this Ordinance or of any rule, regulation or order made thereunder, the Deputy Commissioner, or any person empowered in this behalf by the Authority, may, by order in writing, require the owner, occupier, user or person in control of such building, structure, work or land to remove, demolish or so alter the building, structure or work, or to desist from using or to so use the land, as to be in accordance with the said provisions.

(2) If an order under sub-section (1) in respect of any building, structure, work or land is not complied with within such time as may be specified therein, the Deputy Commissioner, or any person empowered in this behalf by the Authority, may, after giving the person affected by the order an opportunity of being heard, remove, demolish or alter the building, structure or work, or stop the use of the land and, in so doing, may use such force including police force as may be necessary and may also recover the cost therefor from the person responsible for the erection, construction or use of the building, structure, work or land in contravention of the provisions as aforesaid.

49D. Police assistance. — The officer-in-charge of a police-station shall render such police assistance as the Deputy Commissioner may require in the discharge of his functions under this ordinance.

49E. Jurisdiction of courts barred.— Save as otherwise provided by this Ordinance no court or other authority shall have jurisdiction to question the legality of anything done or any action taken under this Ordinance by or at the instance of the Authority.]

[1][**49F. Admissibility of document or entry as evidence.**— A copy of any receipt, application, plan, notice, order or other document or of any entry in a register, in the possession of the Authority shall, if duly certified by the legal keeper thereof or other person authorized by the Authority in this behalf, be admissible in evidence of the existence of the document or entry, and shall be admitted as evidence of the matters and transactions therein recorded in every case where, and to the same extent to which, the original document or entry would, if produced, have been admissible to prove such matters.]

[2][**49G. Ordinance to override other laws**. — The Provisions of this Ordinance shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force and such law shall, to the extent of any inconsistency , cease to have effect.]

50. Power to make rules. The [3][Federal Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Ordinance:

Provided that no rules shall be made on any of the matters specified in section 38.

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[1]Ins. by Act No. XVI of 1968, s. 2.
[2]Ins. by Act. No IX of 2023, s. 4.
[3]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

[1][**51. Power to make regulations.**— The Authority may make regulations, not inconsistent with the rules, if any, on all matters for which regulations are necessary or expedient; and such regulations shall be published in the official Gazette.]

52. Dissolution of Authority and transfer of its assets and liabilities to the [2][Federal Government] and other agency determined by that Government.— (1) The [2][Federal Government] may, by notification in the official Gazette, declare that the Authority shall be dissolved on such date as may be specified in such notification, and the Authority shall stand dissolved accordingly.

(2) On and from the said date—

(a) (i) all properties, funds and dues placed at the disposal of the Authority by the [2][FederalGovernment] ; and

(ii) all properties, funds and dues exchanged for, derived from, or otherwise attributable to the properties, funds and dues referred to in sub-clause (i), which, immediately before the said date, were held by or were realisable by the Authority shall vest in, and be realisable by, the [2][Federal Government] ;

(b) all properties, funds and dues, other than those referred to in cause (a), which, immediately before the said date, were vested in or were realisable by the Authority shall vest in and be realisable by such agency as the [2][Federal Government] may determine, and its decision thereon shall be final ;

(c) all liabilities which, immediately before the said date, were enforceable against the Authority shall be assumed by and be enforceable against the [2][Federal Government]or such agency as the [2][Federal Government] determines under clause (b), as the case may be;

(d) for the purpose of completing the execution of any scheme which has not been fully executed by the Authority and of realizing properties, funds and dues referred to in clause (a) and (b), the functions of the Authority under this Ordinance shall be discharged by the [2][Federal Government] or by the agency determined by the [2][Federal Government] under clauses (b) and (c), as the case may be; and

(e) the agency referred to in clauses (b), (c) and (d) shall keep such accounts of all moneys respectively received and expended by it under this Ordinance, as the [2][Federal Government] may prescribe.

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[1]Subs. by Act No. XXII of 1966, s. 14.
[2]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Table.

THE SCHEDULE

[*See section 2(p)*]

LIMITS OF THE CAPITAL SITE

From Triangulation Point 5264 (near Village Nilan Bhotu), Map Ref.191698 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G-/1) north-east along the Rawalpindi tehsil boundary to spot height 4949 Map Ref. 223713 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet 43 G/1); then south-east again along Rawalpindi tehsil boundary to the tehsil boundary and Nala junction at Map Ref. 227707 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.33 G/1); from here south-east along the Nala to the junction in the Nala at Map Ref. 250701 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/1). From this junction south-east across the range of hills and *via* Village Mangial (Map Ref. 268696) to Village Karlot Map Ref. 287693 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/1). From Village Karlot south-east along the Nala to Nala and Kurang Nala junction and along Kurang Nala to junction of Kurang Nala and Murree Road near Village Chatter Parao at mile-stone 18 and 6 furlongs, Map Ref. 304685 (Survey of Pakistan map, scale 1 in. to 1 mile sheet No.43 G/1). From here due east across country to the Rawalpindi tehsil boundary at Map Ref. 310683 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/5) and south-east along the tehsil boundary to the junction of the tehsil boundary and Kurang Nala at Map Ref. 315676, then north-east along the Kurang Nala to the junction of the nala and tehsil boundary at Map Ref. 327678 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/5). From this junction south-east across country *via* spot height 2954 Map Ref. 345664 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/5) across the range south-east to spot height 2276 Map Ref. 358655 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/5), located near Rawalpindi tehsil boundary then south-east along the Rawalpindi tehsil boundary to junction of boundary and Gumrah Kas at Map Ref. 369636 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/6). From this junction south-east across country to Village Sambli Tijal on the River Soan, Map Ref. 405615; then along River Soan and Rawalpindi tehsil boundary east up to Map Ref. 457595 (bend in the boundary) and south-west again along tehsil boundary to a point at Map Ref. 424541 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/6) 400 yards south of the Lehtrar Road. Then west along a line parallel to Lehtrar Road (400 yards south of the road) to a point on Malal Nala at Map Ref. 302523 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No. 43 G-/2). Then south-west along the Malal Kas to junction Malal Kas and River Kurang Map Ref. 225455 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/2). From here north- west along River Kurang to the junction of River Kurang and Nala at Map Ref. 172528 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/2); then north-west along this Nala via Village Sohan Map Ref. 166528 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/2) to the junction of Nala and Muree Road near Milestone 6, map Ref. 154537 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/2); from this junction south-west across country to the bend in Lei Nala (near village Narala) at Map Ref. 138530 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/2). Then south-west along Lei Nala to junction of Lei Nala and Bedara wali Kas, Map Ref. 119510 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 G/2). Then south along Leh Nala to a point map Ref. 117479 being junction of Leh Nala and a tributary (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No. 43 G/2.) Then north-west and west to the source of this tributary near a point map Ref. 047477 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 C/14); from this point north-west along the Kutcha road to the junction of this Kutcha road a and track at Map Ref. 044480 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43, C/14). From here, south-west across country to a point 100 yards west of G.T.Road, Map Ref. 040478 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 C/14); then north-west along a line parallel to the G. T. Road, and at a distance of 100 yards from it to Nicholson Monument at map. Ref. 884568 (Survey of Pakistan map, scale 1 in. to 1 mile, sheet No.43 C/14). Then east along the ridge of

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Maragala Range *via* spot heights 2613, 2981, 3371 and 3338 to triangulation point height 3352 map Ref. 979604 on the boundary line of districts Hazara and Rawalpindi (Survey of Pakistan map, scale 1 in to 1 mile, sheet No.43 C/14). Then east along this boundary line back to the starting point triangulation height 5264.

LIMITS OF THE SPECIFIED AREAS

Starting from a point, map reference 534125 (sheet 43 F/8, 1 in. to 1 mile map of G.T.S.) nearly 2 miles North of Kohala on Azad Kashmir [1][Pakistan] border running south along River Jhelum (boundary of Azad Kashmir and [1][Pakistan] up to a point, Map, Ref. 641678 (sheet 43 G/9) being the junction of boundaries of Murree Tehsil, Kahuta Tehsil and Azad Kashmir. Then along the southern boundary of Murree Tehsil up to junction of Khad Nala and Murree Tehsil boundary Map Ref. 568699 (sheet 43 G/9). Then south-west along Khad Nala to a point Map Ref. 504608 (sheet 43 G/6) being the junction of Khad Nala and a Tributary. Then south-east along the tributary via Village Lehtrar Nala to Nala and track junction at map reference 518594 (sheet 43 G/6). Then along this track via village Marhiman south-west to the track and a nala junction at map reference 506571 (sheet 43 G/6). Then south-west along this Nala via Village Jambhiri and Pihar to this Nala and River Ling junction at map reference 463483 (sheet 43 G/6). From here south-west along River Ling to the junction of Rawalpindi Tehsil boundary and River Ling at map reference 369382 (sheet 43 G/6). Then along eastern, southern and western boundary of Rawalpindi Tehsil up to bend at map reference 910683 (sheet 43 C/13), about a mile south of Village Salargah. Then follow along River Harro north east up to a point map Ref. 168810 (sheet 43 G/1) near spot height 2518, which is the junction of River Harro and boundary line of Haripur and Abbottabad Tehsils of Hazara District. Then along southern boundary of Abbottabad Tehsil of Hazara District up to point map reference 253833 (sheet 43 G/1) at the intersection of Abbottabad Tehsil boundary and River Karral Harroo; along River Karral Harro due north-east to point map reference 344933 (sheet 43 G/5) being junction of Karral, Harro and Samundar Katha near spot height 3730 and then along Samundar Katha. Stream up to point Map Ref. 381017 (sheet 43 F/8) on junction of Samundar Katha Stream and boundary line between Villages Tatrila and Nagribala of Tehsil Abbottabad. Then running along the boundary line between Villages Tatrila and Nagribala (near spot height 7799), Bagh and Nagribala, Bagnotar and Bara Gali, Namli Mira, Phalkot and Bakot and Mulia and Bakot including Villages Nagribala, Bara Gali, Namli Mira and Bakot back to the starting point map reference 534125 (sheet 43 F/8).

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Dated. 12-01-2026

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[1]Subs. by Federal Adaptation of Laws Order, 1975 Art. II and Sch.

THE CENTRES OF EXCELLENCE ACT, 1974

CONTENTS

SECTIONS:

1. Short title, extent and commencement.
2. Definitions.
3. Establishment of Centre.
4. Functions of Centre.
5. Board of Governors.
6. Director.
7. Academic Committee.
8. Fund.
9. Audit and accounts, etc.
9 A. Power to transfer centres.
10. Power to make rules.
11. Power to make regulations.

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THE CENTRES OF EXCELLENCE ACT, 1974.

[1]ACT NO. XXIV OF 1974

[22nd April 1974]

An Act to provide for the establishment of centres of excellence in the universities for conducting high-level teaching and research.

WHEREAS it is expedient to provide for the establishment of centres of excellence in the universities for conducting high-level teaching and research;

It is hereby enacted as follows:—

1. Short title, extent and commencement. —(1) This Act may be called the Centres of Excellence Act, 1974.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "Board" means a Board of Governors referred to in sub-section (1) of section 5;

(b) "Centre" means a Centre of Excellence established under section 3;

(c) "Commission" means the University Grants Commission established or to be established under the law providing for the establishment of such Commission;

(d) "Director" means the Director of a Centre;

(e) "regulations" means regulations made under section 11; and

(f) "rules" means rules made under section 10.

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3. Establishment of Centre.— As soon as may be after the commencement of this Act, the Federal Government may, by notification in the official Gazette, establish a Centre of Excellence in a University specified in the notification.

4. Functions of Centre.— A Centre shall—

(a) engage in goal-oriented high-level teaching and research;

(b) train research workers;

[1]For Statement of Objects and Reasons, see Gaz. of P ., 1974, Ext., Pt. III, p. 214.

(c) establish M.Phil, [1][Ph. D. and other] programmes in the relevant discipline in accordance with the standard and requirements of the University in which the Centre is established;

(d) promote co-operation in inter-disciplinary relationship with other teaching and research establishment;

(e) arrange conferences, seminars and refresher courses for the development of teaching and research; and

(f) conduct teaching and research in such particular discipline as is assigned to it by the Federal Government [2][in consultation with the University in which the Centre is established].

5. Board of Governors.— (1) The management, overall control and supervision of the affairs of a Centre established in a University shall vest in a Board of Governors consisting of the following members, namely:—

(a) Vice-Chancellor of the University, who shall also be its Chairman.

(b) A representative of the Commission.

(c) A representative of the Pakistan Science Foundation.

(d) A representative of the Ministry of Education.

(e) Dean of the Faculty of the University.

[2][(f) Two experts in the subject to be nominated by the Federal Government on the recommendation of the commission.

(g) One expert in the subject to be nominated by the Syndicate of the University.

(h) One expert in the subject to be nominated by the Academic Council of the University.

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(i) One expert in the subject to be nominated by the National Education Council.

(j) Director of the Centre.]

(2) In particular and without prejudice to the generality of the foregoing provision, the Board shall have the power to—

(a) approve the academic and research programmes of the Centre [2][with the concurrence of the Academic Council of the University in which the Centre is established.]

[1]Subs. and added by the Centres of Excellence (Amdt.) Act, 1976 (IX of 1976), s. 2, for "and Ph.D."
[2]Subs. and added by the Centres of Excellence (Amdt.) Act, 1976 (IX of 1976), s. 3, for clauses (f) and (g).

(b) lay down rules of admission to the Centre;

(c) institute fellowships for promotion of research in the discipline concerned;

(d) create, suspend or abolish such posts as may be necessary;

(e) appoint teachers and other officers; and

(f) hold, control and administer the funds of the Centre.

(3) A member of the Board referred to in paragraph (f) of sub-clause (1) shall hold office for such term as may be determined by the Federal Government.

(4) The meetings of the Board shall be held as and when called by the Chairman:

Provided that not less than two meetings shall be held in each year.

(5) In the exercise of its powers and the performance of its functions, a Board shall be subject to such special or general instructions as may be issued by the Commission from time to time.

(6) The Board may, for the speedy and efficient working of the Centre, delegate to the Director such of its powers as it may deem necessary.

6. Director.— (1) The Director shall be appointed by the Federal Government [1][after consultation with the Commission and the Vice-Chancellor of the University in which the Centre concerned is established,] on such remuneration and other terms and conditions of service as may be determined by the Federal Government.

(2) The Director shall be the academic and executive head of the Centre and secretary of the Board, and shall be responsible to the Board for carrying out the objectives of the Centre.

(3) The Director shall perform such other functions and exercise such powers as may be assigned or delegated to him by the Board.

(4) The Director may, by writing under his hand addressed to the Chairman, resign his office.

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7. Academic Committee.— (1) At each Centre, there shall be an Academic Committee consisting of the following members, namely:—

(a) Director of the Centre, who shall also be its Convener.

(b) All Professors and Associate Professors of the Centre.

(c) Two experts to be nominated by the Commission.

(2) The Committee may associate such other experts as it may consider necessary.

(3) The Committee shall prepare and submit to the Board the academic and research programmes of the Centre.

[1]Subs. by the Centres of Excellence (Amdt.) Act, 1976. (IX of 1976), s. 4, for "on the recommendation of the Commission".

8. Fund.— Each Centre shall have a fund to which shall be credited—

(a) grants made by the Federal Government, the Provincial Governments and the Commission;

(b) contributions and donations from individuals, local bodies, corporations, institutions, organizations and agencies; and

(c) income from fees.

9. Audit and accounts, etc.— (1) The accounts of a Centre shall be maintained in such form and manner as may be prescribed by rules.

(2) The accounts of a Centre shall be audited once in every year by an auditor appointed by the Commission on such remuneration, if any, to be paid by the Centre, as the Commission may fix.

(3) A Centre shall submit, through the Commission, to the Federal Government a copy of its audited annual accounts, together with the observations of the Director, if any, thereon, and a report on the activities of the Centre during the preceding year.

(4) A Centre shall furnish to the Federal Government such information relating to its activities as may be asked for by the Federal Government from time to time.

[1][**9A. Power to transfer Centres.—** The Federal Government may, by Order published in the official Gazette and subject to such terms and conditions as it may think fit to impose, transfer any Centre to a university or, as the case may be, the Provincial Government.]

10. Power to make rules.— The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act, [2][including rules to regulate the financial and administrative matters relating to a Centre.]

11. Power to make regulations.— A Centre may, with the approval of the Commission, make such regulations [3][concerning academic matters], not inconsistent with the rules, as it may consider necessary for carrying out the purposes of this Act.

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[1]Ins. by Ord. of the Centers Laws (Amdt.) Ordinance, 2002. (LVIII of 2002). s.2 & Sch.
[2]Added by the Centers of Excellence (Amdt.) Act, 1976 (IX of 1976), s. 5.
[3]Ins. by The Centers of Excellence (Amdt.) Act, 1976 (IX of 1976), s.6.

THE CHAIRMAN AND MEMBERS OF FEDERAL LAND COMMISSION (VALIDATION OF ORDERS) ORDINANCE, 1981

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1. Short title and commencement.

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THE CHAIRMAN AND MEMBERS OF FEDERAL LAND COMMISSION (VALIDATION OF ORDERS) ORDINANCE, 1981

ORDINANCE No. XXII OF 1981

[*15th June, 1981*]

An Ordinance to validate certain orders passed by the Chairman or a Member of Federal Land Commission.

WHEREAS it is expedient to validate certain orders passed by the Chairman or a Member of the Federal Land Commission;

AND WHERES the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by Article 89 of the Constitution, read with Article 2 of the Provisional Constitution Order, 1981 (C.M.L.A.Order.No.1 of 1981), the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the Chairman and (Validation of Orders) Ordinance, 1981.

(2) It shall come into force at once.

2. Validation. Notwithstanding any order or decision of any Court, any order passed by the Chairman or a Member of the Federal Land Commission at any time before the commencement of this Ordinance and purporting to be in exercise of the authority conferred on the Chairman and Members of the Commission by an order of the Federal Government under the Dir and Swat (Devolution and Distribution of Property) Regulation, 1972, the Dir and Swat (Settlement of Disputes of Immovable Property) Regulation, 1972, the Distribution of Property (Chitral) Regulation, 1974 (II of 1974), or the Settlement of Disputes of Immovable Property (Chitral) Regulation, 1974 (III of 1974) shall be deemed to have been validly passed and shall have, and shall be deemed always to have had, effect accordingly.

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THE CHARTERED ACCOUNTANTS ORDINANCE, 1961

PREAMBLE.

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2. Definitions.

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6. Certificate of practice.
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SCHEDULE I.

[See section 20A]

SCHEDULE II.

[See section 20A and 20D]

SCHEDULE III.

[See section 20A and 20E]

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THE CHARTERED ACCOUNTANTS ORDINANCE, 1961

ORDINANCE No. X OF 1961

[10th March, 1961]

An Ordinance to make provision for the regulation of the profession of Accountants.

WHEREAS it is expedient to make provision for the regulation of the profession of accountants and for that purpose to establish and Institute of Chartered Accountants;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958 and in exercise of all powers enabling him in that behalf the President in pleased to make and promulgate the following Ordinance:—

CHAPTER I.
PRELIMINARY

1. Short title, extend and commencement.—(1) This Ordinance my be called the Chartered Accountants Ordinance, 1961.

(2) It extends to the whole of Pakistan [1][and shall apply to all members, wherever they may be].

(3) It shall come into force on such date[2] [[3][Federal Government] may, by notification in the official Gazette, appoint in this behalf.

2. Definitions.—(1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "associate" means an associate member of the Institute;

(b) "chartered accountant" means a person who is a member of the Institute;

(c) "Council" means the Council of the Institute;

[4][(cc) "fellow" means a fellow member of the Institute];

(d) "Institute" means the Institute of Chartered Accountants of Pakistan on stituted under this Ordinance;

(e) "prescribed" means prescribed by the bye-laws of the Institute;

(f) "Register" means the Register of the Members of the Institute maintained under thisOrdinance;

(g) "registered accountant" means any person who has been enrolled on the Registerof Accountants maintained by the [3][Federal Government] under the Auditors'Certificates Rules, 1950;

[4][(gg) "student" means a person who is or has been a trainee under a training contract with a member of the Institute entitled to train students under this Ordinance and the bye-laws made thereunder and has not successfully completed the examinations of the Institute ; and]

(h) "year" means the period commencing on the first day of July of any year and ending on the thirtieth day of June of the succeeding year.

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[1]Added by the Chartered Accountant (Amdt.) Ordinance, 1983 (15 of 1983), s. 2.
[2]The 1st July, 1961, see Gaz. of P., 1961, Ext., p. 1025.
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government". [4]Ins. by Ord. 15 of 1983, s. 3.

(2) A member of the Institute shall be deemed "to be in practice" when individually or in partnership with chartered accountants in practice, he, in consideration of remuneration received or to be received—

(i) engages himself in the practice of accountancy, or

(ii) offers to perform or performs services involving the auditing, or verification of financial transactions, books, accounts, or records or the preparation, verification or certification of financial accounting and related statements or holds himself out to the public as an accountant; or

(iii) renders professional services or assistance in or about matters of principle or detail relating to accounting procedure or the recording, presentation or certification of financial facts or data ; or

(iv) renders such other services as, in the opinion of the Council, are or may be rendered by a chartered accountant in practice; and the words "to be in practice" with their grammatical variations and cognate expressions shall be construed accordingly.

Explanation.—An associate or a fellow the Institute who is salaried employee of a chartered accountant in practice or a firm of such chartered accountants shall, notwithstanding such employment, be deemed to be in practice for the limited purpose of the training of [1][students].

CHAPTER II.

THE INSTITUTE OF CHARTERED ACCOUNTANTS OF PAKISTAN.

3. Incorporation of the Institute.—(1) All persons whose names are entered in the Register at the commencement of this Ordinance and all persons who may hereafter have their names entered in the Register under the provisions of this Ordinance, so long as they continue to have their names borne on the said Register, are hereby constituted a body corporate by the name of the Institute of Chartered Accountants of Pakistan, and all such persons shall be known as members of the Institute.

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(2) The Institute shall have perpetual succession and a common seal and shall have power to acquire, hold and dispose of property, both movable and immovable, and shall by its name sue and be sued.

4. Entry of names in Register.—(1) Any of the following persons shall be entitled to have his name entered in the Register, namely,—

(i) any person who is registered accountant at the commencement of this Ordinance;

(ii) any person who has passed such examination and completed such training as may be prescribed;

[1] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 3, for "articled clerks".

(iii) any person who has passed such other examination and completed such other training outside Pakistan as is recognized by the [1][Federal Government] or the Council with the approval of the [1][Federal Government] as being equivalent to the examination and training prescribed for members of the Institute:

[2][Provided that, in the case of any such person, the Council may, with the approval of the Federal Government, impose such conditions as it may deem fit.]

(iv) any person domiciled in Pakistan, who at the commencement of this Ordinance is studying for any foreign examination and is at the same time undergoing training, whether within or without Pakistan or, who, having passed such foreign examination, is at the commencement of this Ordinance undergoing training whether within or without Pakistan.

Provided that any such examination or training was recognized before the commencement of this Ordinance for the purpose of conferring the right to be registered as an accountant under the Auditors Certificates Rules, 1950, and provided further that such person passes the examination or completes training [3][.]

[4]* * * * * * *

(2) The name of every person belonging to the class mentioned in clause (i) of sub-section (1) shall be entered in the Register without the payment of any entrance fee or any application being made in that behalf and shall, for the purpose of sub-section (1) of section 3, be deemed to have been so entered at the commencement of this Ordinance.

(3) Every person belonging to any of the classes mentioned in clauses (ii), [4][(iii), [5][and (iv)]] of sub- section (1) shall have his name entered in the Register on application being made and granted in the prescribed manner and on payment of the prescribed fee, which shall not exceed rupees five hundred in any case.

(4)The [1][Federal Government] shall take such steps as may be necessary for the purpose of having the names of all persons belonging to the class mentioned in clause (i) of sub- section (1) entered in the Register.

5. Associates and Fellows.—(1) The members of the Institute shall be of two classes designated respectively as associates and fellows.

(2) Every person shall, on his name being entered in the Register, become an associate member of the Institute and be entitled to use the letters A.C.A after his name to indicate that he is an associate member of the Institute of Chartered Accountants.

[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983) s. 4, for the Proviso.
[3] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1968 (4 of 1968) s. 2, for the semi-colon, which was previously amended by Ord. 24 of 1962, s. 2, for full-stop. [4]Cl.(v) omitted ibid.
[4] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1962 (24 of 1962), s. 2, for clauses (iii) and (iv).
[5] Subs. by the Chartered Accountants (Amdt.) Act 1968, (4 of 1968), s. 2, for "clauses (iv) and (v)".

[1][(3) An associate member who has been in practice for at least five years or an associate member of the Institute for a period of not less than ten years shall, on payment of the prescribed fee, have his name transferred to the Register of Fellows of the Institute and on having his name transferred to the Register of Fellows, he shall be entitled to use the letters F.C.A after his name to indicate that he is a fellow member of the Institute.

Explanation.—For the purpose of this sub-section, two years as a non-practicing associate shall be counted as one year of practice of such associate.]

6. Certificate of practice.—(1) No member of the Institute shall be entitled to practice as an auditor of a public company as defined in the Companies Act, 1913 (VII of 1913) , unless he has obtained from the Council a certificate of practice [2][.]

[3]* * * * * * *

(2) Every such member shall pay such annual fee for his certificate as may be prescribed, and such fee shall be due on the first day of July in each year.

7. Members to be known as Chartered Accountants.—Every member of the Institute in practice shall and any other member may, use the designation of a Chartered Accountants and no member using such designation shall use any other designation whether in addition thereto or in substitution therefore:

Provided that nothing contained in this section shall be deemed to prohibit any such person from adding any other description or designatory letters to his name, if entitled thereto, to indicate membership of such other institute of accountancy, whether in Pakistan or elsewhere as may be recognized in this behalf by the Council, or any other qualification that he may possess, or to behalf by the Council, or any other qualification that he may possess, or to prohibit a firm, all the partners of which are members of the Institute and in practice, from being known by its firm name as Chartered Accountants.

8. Disabilities.—Notwithstanding anything contained in section 4, a person shall not be entitled to have his name entered in or borne on the Register if he—

(i) has not attained the age of twenty-one years at the time of his application for the entry of his name in the Register; or

(ii) is of unsound mind and stands so adjudged by a competent Court; or (iii) is an undercharged insolvent; or

(iv) having been discharged of insolvency, has not obtained from the Court a certificate stating that his insolvency was caused by misfortune without any misconduct on his part ; or

(v) has been convicted by a competent Court, whether within or without Pakistan of an offence involving moral turpitude and punishable with transportation or imprisonment or of an offence, not of a technical nature, committed by him in his professional capacity unless in respect of the offence committed he has either been granted a pardon or, on an application made by him in this behalf, the [1][Federal Government] has, by an order in writing, removed the disability; or

[1] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 5, for sub-section (3).
[2] Subs. ibid., s.6, for the colon.
[3] Proviso omitted *ibid.*

(vi) has been removed from the membership of the Institute on being found on inquiry to have been guilty of such professional or other misconduct, as may be prescribed:

Provided that a person who has been removed from the membership of the Institute for a specified period, shall be entitled to have his name entered in the Register after the expiry of such period.

CHAPTER III.
COUNCIL OF THE INSTITUTE

9. Constitution of the Council of the Institute.—(1) There shall be a Council of the Institute for the management of the affairs of the Institute and for discharging the functions assigned to it under this Ordinance.

[1][(2) The Council shall be composed of the following persons, namely :—

(a) the prescribed number of persons, not being less than twelve, elected from the two prescribed regional constituencies by the members of the Institute belonging to such constituencies from among such members of at least five years' standing, the number of members to be elected from each such constituency being such as may be prescribed:

Provided that each such regional constituency shall consist of two zones, to be known as Zone "A" and Zone "B", having the prescribed limits :

Provided further that at least one member shall be elected from each of the aforesaid Zones; and

(b) not more than four persons nominated by the Federal Government.]

[2]* * * * * * *

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10. Mode of election to the Council.—(1) Elections under clause (a) of sub-section (2) of section 9 shall be conducted in the prescribed manner.

[3][(2) Where any dispute arises regarding any such election, the matter shall be referred by the Council to a tribunal appointed by the President of the Council in this behalf and the decision of such Tribunal shall be final:

Provided that in case the President of the Council in office is himself a party to such dispute or is unwilling to make such appointment, the immediate past President of the Council shall appoint the Tribunal :

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[1] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 7, for sub-section (2).
[2] Sub-section (3) omitted ibid.
[3] Subs. ibid., s. 8. for sub-section (2).

Provided further that no such reference shall be made except on an application made to the Council by an aggrieved party, within thirty days from the date of the declaration of the result of the Election.]

(3) The expenses of the Tribunal shall be borne by the Institute.

[1][**11. Nomination in default of election**.—(1) If the members of the Institute referred to in clause (a) of sub-section (2) of section 9 fail to elect the required number of members which they are empowered under that section to elect from a zone of a constituency, the members declared elected from that zone shall nominate the number of members not elected who shall be deemed to be members of the Council as if they had been duly elected.

(2)Where the members of the Institute referred to in clause (a) of sub-section (2) of section 9 do not at all elect any member, the Council shall nominate the required number of members from the respective regional constituencies and such members shall be deemed to be the members of the Council as if they had been duly elected.]

12. President and Vice President or Vice-Presidents.—(1) The Council shall elect from members a President and one or, if the Council so decides, [2][more than one] Vice-Presidents of the Institute, who shall also be the President and Vice-President or Vice Presidents of the Council) respectively and so often as the office or offices of the President or the Vice-President or Vice- Presidents become vacant, the Council shall choose from among its members a President or a Vice- President or vice-Presidents, as the case may be [3][.]

[4]* * * * * * *

(2) The President shall be the chief executive authority of the Council.

(3) The President and the Vice-President or Vice-Presidents shall hold office for a period of one year from the date on which they are chosen but so as not to extend beyond their term of office as members of the Council, and, subject to their being members of the Council at the relevant time, they shall be eligible for re-election for a total period not exceeding three consecutive years [5][:]

[6][Provided that, notwithstanding the expiry of the term of their office, the President and the Vice- President or Vice-Presidents of the Council, shall continue to hold office till such time as their successors are elected.]

(4) On the dissolution of the Council, the President of the Council at the time of such dissolution shall continue to hold office and discharge such administrative and other duties as may be prescribed until such time as a new President shall have been elected and shall have taken over charge of his duties.

13. Resignation of membership and casual vacancies.—(1) Any member of the Council may at time resign his membership by writing under his hand addressed to the President and the seat of such member shall become vacant when such resignation is notified in the official Gazette.

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[1]Subs. by the Chartered Accountants (Amdt.) Ordinance 1983 (15 of 1983) s. 9, for section 11.
[2]Subs. by the Chartered Accountants (Amdt.) Ordinance, 1970 (9 of 1970), s. 2, for "two".
[3]Subs. by Ord. 15 of 1983 . s. 10, for colon.
[4]Proviso omitted ibid.
[5]Subs. ibid., for full-stop.
[6]Proviso added *ibid*.

(2) A member of the Council shall be deemed to have vacated his seat if he is declared by the Council to have been absent without sufficient excuse from three consecutive meetings of the Council, or if his name is, for any cause, removed from the Register under the provisions of section19.

(3) A casual vacancy in the Council shall be filled by fresh election from the constituency concerned or by nomination by the [1][Federal Government] as the case may be, and the person elected or nominated to fill the vacancy shall hold office until the dissolution of the Council:

Provided that no election shall be held to fill a casual vacancy occurring within six months prior to the date of the expiry of the duration of the Council but such a vacancy may be filled by nomination by the [2][Council].

(4) No act done by the Council shall be called in question on the ground merely of the existence of any vacancy in, or defect in the constitution of, the Council.

14. Duration and dissolution of Council.— (1) The duration of the Council constituted under this Ordinance shall be [3][four] years from the date of the first meeting of the Council on the expiry of which it shall stand dissolved and a new Council constituted in accordance with the provisions of this Ordinance [:][4]

[5][Provided that the duration of the Council existing immediately before the commencement of the Chartered Accountants (Amendment) Ordinance, 1983, shall be three years.]

(2) Notwithstanding the expiry of the duration of the Council it shall continue to function until a new Council is constituted in accordance with the provisions of this Ordinance and upon such constitution, the Council so functioning shall stand dissolved.

15. Functions of the Council.—(1) The duty of carrying out the provisions of this Ordinance shall be vested in the Council.

(2) In particular, and without prejudice to the generality of the foregoing provisions, the [6][functions] of the Council shall include—

(a) the examination of candidates for enrolment and the prescribing of fees therefore;

(b) the regulation of the engagement and training of [7][students];

(c) the prescribing of qualifications for entry in the Register;

(d) the recognition of the foreign qualifications and training for purposes of enrolment;

(e) the granting or refusal of certificates of practice under this Ordinance;

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[1] Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".
[2] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 11, for certain words.
[3] Subs. ibid., s. 12, for "three".
[4] Subs. ibid., for full-stop.
[5] Proviso added ibid.
[6] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 13, for "duties".
[7] Subs. ibid., for "articled and audit clerks".

(f) the maintenance and publication of a Register of persons qualified to practice as chartered accountants;

(g) the levy and collection of fees from members, examines and other person;

(h) the removal of names from the Register and the restoration to the Register of names which have been removed;

(i) the regulation and maintenance of the status and standard of professional qualifications of the members of the Institute;

(j) the carrying out, by financial assistance to persons other than members of the Council or in any other manner, of research in accountancy;

(k) the maintenance of a library and publication of books and periodicals relating to accountancy;

(l) the exercise of such disciplinary power over the members and servants of the Institute as may be prescribed;

(m) the formation of such Standing Committees as may be prescribed; and

[1][(mm) the constitution of an Investigation Committee consisting of such members as may be prescribed;].

(n) such other powers as may be conferred on the Council by the [2][Federal Government].

16. Staff, remuneration and allowances.—For the efficient performance of its duties, the Council may—

(a) appoint a full-time Secretary who may also, if so decided by the Council, act as Treasurer;

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(b) appoint such other officers and servants as it deems necessary;

(c) require and take from the Secretary or from any other officer or servant of the Council such security for the due performance of his duties, as the Council considers necessary;

(d) fix salaries, fees, allowances and other conditions of service of the officers and servants of the Council.

(e) with the previous sanction of the [2][Federal Government] fix the allowances of the

President, *Vice* President or *Vice*-Presidents and other members of the Council and members of its Committees.

[1] Cl (mm) ins. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 13.
[2] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

17. Finances of the [1][Institute.] There shall be established a fund under the management and control of the Council into which shall be paid all monies received by the [1][Institute] and out of which shall be met all expenses and liabilities properly incurred by the [1][Institute].

CHAPTER IV.
REGISTER OF MEMBERS

18. Register.—(1) The Council shall maintain in the prescribed manner a Register of the Members of the Institute.

(2) The Register shall include the following particulars about every member of the Institute, namely,—

(a) his full name date of birth, domicile, residential and professional addresses;

(b) the date on which his name is entered in the Register;

(c) his qualifications;

(d) whether he holds a certificate of practice; and

(e) any other particulars which may be prescribed.

(3) The Council shall cause to be published, in such manner as may be prescribed, a list of members of the Institute as on the first day of July of each year, and shall, if requested to do so by any such members, send to him a copy of such list.

(4) Every member of the Institute shall, on his name being entered in the Register pay such annual membership fee, as may be prescribed and different fees may be prescribed for associates and for fellows.

19. Removal from the Register.—[2][(1)] The Council may remove from the Register the name of any member of the Institute—

(a) who is dead; or

(b) from whom a request has been received to that effect; or

(c) who has not paid any prescribed fee required to be paid by him; or

(d) who is found to have been subject at the time when his name was entered in the Register, or who at anytime thereafter has become subject, to any of the disabilities mentioned in section 8, or who for any other reason has ceased to be entitled to have his name borne on the Register [3][; or]

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[1] Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".
[2] Re-numbered by the Chartered Accountants (Amdt.). Ordinance, 1983 (15 of 1983), s. 15
[3] Subs. ibid., s. 15, for full-stop.

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[1][(e) against whom an order has been passed under this Ordinance removing him from the membership of the Institute.];

[2][(2) The Council may, on an application made to it by a person whose name has been removed from the Register for a specified period, restore his name if he is otherwise eligible to such membership :

Provided that he shall have paid before such restoration the admission fee for the year during which his name is restored, and, if his name has been removed under clause (b) or clause (c) of sub- section (1), all arrears on account of annual membership fee subject to maximum of five years of annual membership fee according to the scale applicable to him.

(3) The restoration of the name of a member shall be notified in the official Gazette and in such journal or journals as the Council thinks desirable and shall also be communicated in writing to the person concerned.]

CHAPTER V.
REGIONAL COMMITTEES

20. Constitution and functions of Regional Committees.—(1) For the purpose of advising and assisting it on matters concerning its functions, the Council may constitute such Regional Committees as and when it deems fit for one or more of the regional constituencies that may be [3][prescribed] under clause (a) of sub-section (2) of section 9.

(2) The Regional Committees shall be constituted in such manner and exercise functions as may be prescribed.

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[4][CHAPTER VA.
MISCONDUCT

20A. Facts, etc., to be laid before the Investigation Committee.— (1) The Secretary of the Institute shall, and any member or any aggrieved person may, lay before the Investigation Committee any fact indicating that —

(a) a member of the Institute has *prima facie* been guilty of any professional misconduct specified in Schedule I or Schedule II; or

(b) a student has *prima facie* been guilty of any professional misconduct specified in Schedule III.

(2) Where a complaint is received by the Institute that any member of the Institute or student is guilty of professional misconduct referred to in sub-section (1), the complaint shall, with relevant and necessary facts, be laid before the Investigation Committee.

20B. Enquiry by the Investigation Committee.—(1) If on considering the facts or complaint laid before it under section 20A, the Investigation Committee is of opinion that such facts or complaint require investigation, it shall, after giving a notice to the member of the Institute or student whose conduct is in question, hold an inquiry.

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[1] Cl. (e) added ibid.,
[2] New sub-section (2) added ibid.,
[3] Subs. by the Chartered Accountants (Amdt.) Ordinance 1983 (15 of 1983), ibid., s. 16, for "specified by the Federal Government".
[4] Chapter VA ins. *ibid*., s. 17.

(2) A member of the Institute or a student whose conduct is in question shall be given an opportunity of being heard and, such member or student so desires, the Investigation Committee shall permit such member or student to be represented before it by a counsel or by a member of the Institute.

(3) After the conclusion of inquiry, the Investigation Committee shall report the result of the inquiry to the Council.

20C. Member or student not found guilty.—If, on receipt of the report under section 20B, the Council finds that the member of the Institute or student, as the case may be, is not guilty of any professional misconduct, it shall record its finding accordingly and direct that the proceedings or, as the case may be the complaint be filed.

20D. Orders by the Council if member found guilty.—(1) If, on receipt of the report under section 20B, the Council is of opinion that the member of the Institute has been guilty of any professional misconduct specified in Schedule I, it may, after affording such member an opportunity of being heard, either personally or through counsel or another member of the Institute, make any of the following orders, namely:—

(a) reprimand or warn such member;

(b) impose such penalty as it may deem necessary not exceeding one thousand rupees; and

(c) remove the name of such member from the Register for a period not exceeding five years:

Provided that, where it appears to the Council that the case is one in which the name of such member ought to be removed from the Register for a period exceeding five years or permanently, shall not make any order but shall refer the case to the High Court with its recommendations thereon.

(2) If the Council is of opinion that the member of the Institute is guilty of a professional misconduct specified in Schedule II, it shall refer the case to the High Court with its recommendations thereon.

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20E. Orders by the Council if student found guilty.—If, on receipt of report under section 20B, the Council is of opinion that the student is guilty of any professional misconduct specified in Schedule III, it shall, after affording such student an opportunity of being heard, either personally or through a counsel or a member of the Institute, make any of the following orders, namely:—

(a) reprimand or warn the student; or

(b) suspend the student from training, or extend the period of training of the student, for such period as it may deem fit; or

(c) debar the student from training.

20F. Hearing of case by the High Court.—On receipt of a reference under section 20D, the High Court shall fix a date for the hearing of the reference and cause notice of the date so fixed to be given to the member of the Institute and the Council, and shall, after affording such member and the Council, either personally or through counsel or a member of the Institute, an opportunity of being heard, make any of the following orders, namely:—

(a) direct that the proceedings be filed, or dismiss the complaint, as the case may be;

(b) reprimand such member;

(c) remove him from membership of the Institute either permanently or for such period as it may deem fit; or

(d) refer the case to the Council for further inquiry and report.

20G. Effect of inquiry.—For the purposes of this Chapter, "member of the Institute" includes a person who was a member of the Institute on the date of the alleged misconduct but has ceased to be a member of the Institute at the time of inquiry for any reason.

20H. Council and Investigation Committee to have powers of civil court.—The council and the Investigation Committee shall, for the purpose of an inquiry under this Chapter, be deemed to be a civil court and shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (V of 1908) in respect of the following mattes, namely:—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) the discovery and production of any document; and

(c) receiving evidence on affidavits.

20I. Publication of findings and decisions.— Where a member of the Institute or a student is found guilty, the Council shall cause the findings and decisions given against such member or student, as the case may be, to be published in the official Gazette and in such journal or journals as the Council may deem fit:

Provided that, where the Council deems necessary, it may omit the name of such member or student from publication.

20J. Return of certificate.—(1) Where the name of member of the Institute is removed from the Register, whether for a specified period or permanently, every certificate of membership or practice held by such member shall be deemed to be cancelled from the date of the order removing his name from the Register and shall stand so cancelled for the said period or, as the case may be, permanently.

(2) The certificate referred to in sub-section (1) shall be returned by the member of the Institute to the Secretary of the Council who shall, in the case of a member whose name is removed from the Register for a specified period, return the certificate to the member on the expiration of the said period.

20K. Appeal and revision.—(1) Any member of the Institute aggrieved by an order of the council imposing on him any of the penalties referred to in section 20D may, within sixty days of the date of communication of such order to him, prefer an appeal to the High Court.

(2) The High court may, on its own motion or on an application made to it, call for the record of any case in which the Council has made an order under section 20D and may—

(a) confirm, modify or set aside the order;

(b) impose any penalty or set aside, reduce, confirm or enhance the penalty imposed by the order;

(c) remit the case to the Council for such further inquiry as the High Court may consider proper in the circumstances of the case; or

(d) pass such other order as it may deem fit:

Provided that no order of the Council shall be modified or set aside unless the Council has been given an opportunity of being heard and no order imposing or enhancing a penalty shall be passed unless the person concerned has also been given an opportunity of being heard.]

CHAPTER VI.
PENALTIES

21. Penalty for falsely claiming to be a member, etc.— Any person who—

(i) not being a member of the Institute,—

(a) represents that he is a member of the Institute; or

(b) uses the designation Chartered Accountant, [1]* * *; or

(ii) being a member of the Institute, but not having a certificate of practice, represents that he is in practice or practices as a chartered accountant, shall be punishable on first conviction with fine which may extend to one thousand rupees, and on any subsequent conviction with imprisonment which may extend to six months or with fine which may extend to five thousand rupees, or with both.

22. Penalty for using name of the Council awarding degree of chartered accountancy, etc.—

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(1) No person shall—

(i) use a name or a common seal which is identical with the name or the common seal of the Institute or so nearly resembles it as to deceive or as is likely to deceive the public;

(ii) award any degree, diploma or certificate or bestow any designation which indicates or purports to indicate the possession or attainment of any qualification or competence possessed by a person by virtue of his being a member of the Institute; or

(iii) seek to regulate in any manner whatsoever the profession of chartered accountants.

[1] The certain words omitted by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983) s. 18.

(2) Any person contravening the provisions of sub-section (1) shall, without prejudice to any other proceedings which may be taken against him, be punishable with fine which may extend on first conviction to one thousand rupees, and on any subsequent conviction with imprisonment which may extend to six months, or with fine which may extend to five thousand rupees, or with both.

23. Companies not to engage in accountancy.—(1) No company, limiting the liability of its members, whether incorporated in Pakistan or elsewhere shall practice as chartered accountants [:][1]

[2][Provided that the members of the Institute shall be permitted to form into a limited company solely for practicing as "Management Consultants".]

(2) If any company contravenes the provisions of sub-section (1) then, without prejudice to any other proceedings which may be taken against the company, every director, manager, secretary and any other officer thereof, who is knowingly a party to such contravention, shall be punishable with fine which may extend on first conviction to one thousand rupees and on any subsequent conviction to five thousand rupees.

24. Unqualified persons not to sign documents.— (1) No person other than a member of the Institute shall sign any document on behalf of a chartered accountant in practice or a firm of such chartered accountants in his or its professional capacity.

(2) Any person contravening the provisions of sub-section (1) shall, without prejudice to any other proceedings which may be taken against him, be punishable with fine which may extend on first conviction to one thousand rupees, and on any subsequent conviction with imprisonment which may extend to six moths, or with fine which may extend to five thousand rupees, or with both.

5. Sanction to prosecute.—No person shall be prosecuted under this Ordinance except on a complaint made by or under the order of the Council or of the [3][Federal Government].

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[1] Subs. by the Chartered Accountants (Amdt.) Ordinance, 1983 (15 of 1983), s. 19, for full-stop.
[2] Proviso added ibid.
[3] Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

CHAPTER VII.
MISCELLANEOUS

26. Maintenance of branch offices.—(1) Where a chartered accountant in practice or a firm of such chartered accountants has more than one office [1]** each one of such offices shall be in the separate charge of a member of the Institute [2][who ordinarily resides in the area served by such office].

Provided that the Council may in suitable cases exempt any chartered accountant in practice or a firm of such chartered accountants from the operation of this sub-section.

(2) Every chartered accountant in practice or a firm of such chartered accountants maintaining more than one office shall send to the Council a list of offices and the persons in charge thereof and shall keep the Council informed of any change in relation thereto.

27. Power to make bye-laws.—(1) The Council may, by notification[3] in the official Gazette, make bye-laws for the purpose of carrying out the object of this Ordinance and a copy of such bye- laws shall be sent to each member of the Institute.

(2) In particular, and without prejudice to the generality of the foregoing power, such bye-laws may provide for all or any of the following matters:—

(a) the standard and conduct of examinations under this Ordinance;

(b) the qualifications for the entry of the name of any person in the Register;

(c) the conditions under which any examination or training may be treated as equivalent to the examination and training prescribed for the membership of the Institute;

(d) the conditions under which any foreign qualifications may be recognized;

(e) the manner in which and the conditions subject to which applications for entry in the Register may be made;

(f) the fees payable for membership of the Institute and the annual fees payable by associates and fellows of the Institute in respect of their certificates;

(g) the manner in which elections to the Council and the Regional Committees may be held;

(h) the particulars to be entered in the Register;

(i) the functions of Regional Committees;

[4][(j) the training of the students and suspension of the training of students for misconduct or for any other cause;]

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[1]The words in Pak istan omitted by the Chartered Accountant (Amdt.) Ordinance, 1983, (15 of 1983) s. 20.
[2]Added ibid.
[3]For the Chartered Accountants bye-laws, 1961, see Gaz of P., 1961 Ext., pp10 26-1060.
[4] Subs. by the Chartered Accountants (Amdt.) Ordinance 1983 (15 of 1983) s. 21 for (j)

(k) the regulation and maintenance of the status and standard of professional qualifications of members of the Institute;

[1][(kk) the issue of directives to the members of the Institute on professional matter;]

(l) carrying out of research in accountancy;

(m) the maintenance of a library and publication of books and periodicals on accountancy;

(n) the management of the property of the Council and the maintenance and audit of its accounts;

(o) the summoning and holding of meetings of the Council, the times and places of such meetings, the conduct of business thereat and the number of members necessary to form a quorum;

(p) the powers, duties and functions of the President and the Vice-President or Vice-Presidents of the Council;

(q) the functions of the Standing and other Committees and the conditions subject to which such functions shall be discharged;

(r) the terms of office, and the powers, duties and functions of the Secretary and other officers and servants of the Council;

(s) the rules of professional and other misconduct, and the exercises of disciplinary powers; and

(t) any other matter which is required to be or may be prescribed under this Ordinance.

(3) All bye-laws made by the Council under this Ordinance shall be subject to the condition of previous publication and to the approval of the [2][Federal Government].

(4) Notwithstanding anything contained in sub-section (1) and (2), the [2][Federal Government] may frame the first bye-laws for the purposes mentioned in this section, and such [3]bye-laws shall be deemed to have been made by the Council, and shall remain in force from the date of the coming into force of this Ordinance, until they are amended, altered or revoked by the Council.

28. Powers of [2][Federal Government] to direct bye -laws to be made or to make or amend bye - laws.– (1) Where the [2][Federal Government] considers it expedient so to do, it may, by order in writing, direct the Council to make any bye-law or to amend or revoke any bye-law already made within such period as it may specify in this behalf.

(2) If the Council fails or neglects to comply with such order within the specified period, the [2][Federal Government] may make or amend, with or without modifications, or revoke, any bye-laws, directed to be made, amended or revoked by that order.

[1] Cl. (kk) added ibid.
[2] Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".
[3] For such bye-laws see Gaz. of p 1961 Ext, P.1026.

29. Reference to registered accountants, etc. to be construed as references to chartered accountants.—Any reference to a chartered accountant or a registered accountant or a certified or qualified auditor in any other law or in any document whatsoever shall be construed as a reference to a chartered accountant in practice within the meaning of this Ordinance.

30. ***[****Amendment of section 144 of the Companies Act, 1913 (VII of 1913),] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981, (XXVII of 1981), s. 3, and Sch., II.*

31. ***[Savings.]*** *Omitted by the Federal Law (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3, and Sch., II.*

[1][SCHEDULE-I

[See Section 20A]
PART I

Professional misconduct in relation to chartered accountants in practice.

A Chartered Accountant in practice shall be deemed to be guilty of professional misconduct, if he—

(1) allows any person to practice in his name as a chartered accountant, unless such person is also a chartered accountant in practice and is in partnership with, or employed by, him;

(2) pays or allows or agrees to pay or allow, directly or indirectly, any share, commission or brokerage in the fees or profits of his professional business to any person other than a member of the Institute or a partner or a retired partner or the legal representative of a deceased partner;

Explanation.—In this clause, "partner" includes a person residing outside Pakistan with whom a chartered accountant in practice has entered into partnership which is not in contravention of clause (4) of this part;

(3) accepts or agrees to accept any part of the profits of the professional work of a lawyer, auctioneer, broker, or other agent who is not a member of the institute;

(4) places his professional service at the disposal of, or enters into partnership with, an unqualified person or person in a position to obtain business of the nature in which chartered accountants engage by means which are not open to a member of the Institute:

Provided that this paragraph shall not be construed as prohibiting a member from practicing in a country outside Pakistan in association with a person who is entitled under the laws in force in that country to perform functions similar to those a member of the Institute is entitled to perform in Pakistan;

(5) solicits clients for professional work either directly or indirectly by circular, advertisement, personal communication or interview or by any other means;

(6) advertises his professional attainments or services, or uses any designation or expression other than chartered accountant on professional documents, visiting cards, letter head or sign boards unless it be a degree of a University established by law in Pakistan or recognized by the Federal Government or the Council;

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[1]Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government".
[2]Added by Chartered Accountant (Amdt.). Ordinance, 1983 (15 of 1983) s. 22.

(7) accepts a position as auditor previously held by another member of the Institute without first communicating with him in writing;

(8) accepts an appointments as auditor of a company without first ascertaining from it whether the requirements of sub-section (6) of section 144 of the Companies Act, 1913 (VII of 1913), in respect of such appointment have been duly complied with;

(9) charges or offers to charge, accepts or offers to accept in respect of any professional employment fees which are based on a percentage of profits or which are contingent upon the findings or results of such employment, except in cases which are permitted under any law for the time being in force or by an order of the Government;

(10) Engages in any business or occupation other than the profession of chartered accountants unless permitted by the Council so to engage:

Provided that nothing contained herein shall disentitle a chartered accountant from being a director of a company, unless he or any of his partners is interested in such company as an auditor;

(11) accepts a position as auditor previously held by some other chartered accountant in such conditions as to constitute undercutting;

(12) allows a person not being a member of the Institute or a member not being his partner to sign on his behalf or on behalf of his firm, any balance sheet, profit and loss account, report or financial statement; or

(13) gives estimates of future profits for publication in a prospectus or otherwise or certifies for publication the statements of average profits over a period of two years or more without, at the same time, stating the profits or losses for each year separately.

PART 2

Professional misconduct in relation to members engaged in management consultancy.

A member of Institute engaged in management consultancy shall be deemed to be guilty of professional misconduct, if he—

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(1) advertises or solicits for work or issues any circular, calendar or publicity material;

(2) issues brochures, except to existing clients or in response to an unsolicited request;

(3) uses designatory letters indicating qualifications of the directors and members of the company on letter head, note-papers, or professional cards excepts as provided in clause (6) of Part 1 of this Schedule;

(4) refers to associate firms of Chartered Accountants on his letter head or professional cards or announcements;

(5) adopts a name or associates himself as a partner or director of a firm or a company whose name is indicative of its activities;

(6) uses the term chartered accountants for his management consultancy firm or company;

(7) shares profits of remuneration in a manner contrary to clauses (2) and (3) of Part 1 of this Schedule, except when he associates with non-members as stated in clause (10) of this part;

(8) or his partner in any firm accepts auditing, taxation, or other conventional accounting work from any client introduced to him for management consultancy services by the client's own professional accountant;

(9) uses the term "Management Consultant (s)" except in respect of a company engaged in management consultancy field;

(10) associates with non-members for the rendering of various management services except as long as such non-member observes the bye-laws and code of professional ethics of the Institute;

(11) does not communicate with the existing professional accountant or consultant, if a member of the Institute, informing him of the special work he has been asked to undertake in the event of an introduction for management consultancy work other than through the existing professional accountant; or

(12) under the guise or through the medium of a company or firm does anything which he is not allowed to do as an individual.

PART 3

Professional misconduct in relation to members of the Institute in service.

A member of the Institute (other than a member in practice) shall be deemed to be guilty of professional misconduct, if he, being an employee of any company, firm or person,—

(1) pays or allows or agrees to pay directly or indirectly to any person any share in the emoluments of the employment undertaken by the member;

(2) accepts or agrees to accept any part of fees, profits or gains from a lawyer, chartered accountant or broker engaged by such company, firm or person or agent or customer of such company, firm or person by way of commission or gratification; or

(3) discloses confidential information acquired in the course of his employment except as and when required by law or except as permitted by the employer.

PART 4

Professional misconduct in relation to members of the Institute generally.

A member of the Institute, whether in practice or not, shall be deemed to be guilty of professional misconduct, if he—

(1) includes in any statement, return or form to be submitted to the Institute any particulars knowing them to be false;

(2) not being a fellow styles himself as a fellow;

(3) does not supply the information called for by the Institute or does not comply with the requirements asked to be complied with or does not comply with any of the directives issued or pronouncements made by the Council or any of its Standing Committees;

(4) generally, willfully maligns the Institute, the Council or its Committee to lower their prestige, or to interfere with performance of their duties in relation to himself or others;

(5) has been guilty of any act or default discreditable to a member of the Institute; or

(6) contravenes any of the provisions of the Ordinance or the bye-laws made thereunder.

SCHEDULE II

(See section 20A and 20D)

PART 1

Professional misconduct in relation to chartered accountants in practice requiring action by a High Court.

A chartered accountant in practice shall be deemed to be guilty of Professional misconduct, if he—

(1) discloses information acquired in the course of his professional engagement to any person other than his client, without the consent of his client or otherwise than as required by any law for the time being in force;

(2) certifies or submits in his name or in the name of his firm a report of an examination of financial statement unless the examination of such statements and the related records has been made by him or by a partner or an employee in his firm or by another chartered accountant in practice;

(3) permits his name or the name of his firm to be used in connection with any estimates of earnings contingent upon future transactions in a manner which may lead to the belief that he vouches for the accuracy of the forecast;

(4) expresses his opinion on financial statements of any Business or any enterprise in which he, his firm or a partner in his firm has a substantial interest, unless he discloses his interest in his report;

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(5) fails to disclose a material fact known to him which is not disclosed in a financial statement, but disclosure of which is necessary to ensure that the financial statement is not misleading;

(6) fails to report a material mis-statement known to him to appear in a financial statement with which he is concerned in a professional capacity;

(7) is grossly negligent in the conduct of his professional duties;

(8) fails to obtain sufficient information to warrant the expression of an opinion or his exceptions are sufficiently material to negate the expression of an opinion; or

9) fails to keep moneys of his client in a separate banking account or fails to use such moneys for purposes for which they are intended.

PART 2

Professional misconduct in relation to members engaged in management consultancy requiring action by a High Court.

A member engaged in management consultancy shall be deemed to be guilty of professional misconduct, if he—

(1) discloses information acquired in the course of his professional engagements to any person other than his client, without the consent of his client or otherwise than as required by any law for the time being in force;

(2) is grossly negligent in the conduct of his professional duties; or

(3) fails to keep moneys of his client in a separate banking account or fails to use such moneys for purposes for which they are intended.

SCHEDULE III

(See Section 20A and 20E)

Professional misconduct in relation to the students of the Institute.

A student of the Institute shall be deemed to be guilty of professional misconduct, if he—

(1) contravenes any of the provisions of the Ordinance or the bye-laws made thereunder;

(2) does not supply the information called for by the Institute;

(3) does not comply with any requirements which he is asked by the Institute to comply with;

(4) does not comply with any of the directives issued by the Council or any of its committees;

(5) discloses confidential information acquired in the course of his training except as and when required by law or except as permitted by his principal;

(6) includes in any statement or form to be submitted to the Institute, any particulars knowing them to be false; or

(7) has been guilty of any act or omission discreditable to a student of the Institute.

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THE COMSATS INSTITUTE OF INFORMATION TECHNOLOGY ORDINANCE, 2000

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THE COMSATS INSTITUTE OF INFORMATION TECHNOLOGY

ORDINANCE, 2000

ORDINANCE No. XXXVIII OF2000

[12th August, 2000]

An Ordinance to provide for the establishment of the COMSA TS Institute of Information Technology

WHEREAS, the Commission on Science and Technology for Sustainable Development in the South (COMSATS) has expressed the desire to establish COMSATS Institute of Information Technology;

AND WHEREAS it is in the interest of the region in general and in the interest of the country in particular to establish a center of excellence under an international organization for provision of quality education of international standard to talented students of Pakistan and other member countries of the COMSATS;

AND WHEREAS it is expedient to provide for the establishment of the COMSATS Institute of Information Technology and for matters ancillary thereto or connected therewith;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of. 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement. —(1) This Ordinance may be called the COMSATS Institute of Information Technology Ordinance, 2000.

(2) It shall come into force at once.

2. Definitions.—(1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means the Academic Council of the Institute;

(b) "Authority" means any of the Authorities of the Institute specified in section 7 ;

(c) "Board" means the Board of Governors of the Institute constituted under section 13;

(d) "Chancellor" means the Chancellor of the Institute;

(e) "COMSATS" means the Commission on Science and Technology for Sustainable Development in the South;

(f) "Dean" means the Dean of a Faculty;

(g) "Department" means a Teaching Department established and maintained by the Institute;

(h) "Director" means the Director appointed under section16;

(i) "Faculty" means a Faculty of the Institute;

(j) "Institute" means the COMSATS Institute of Information Technology;

(k) "Patron" means the Patron of the Institute;

(l) "prescribed" means prescribed by regulations, rules or Statutes;

(m) "Rector" means the Rector of the Institute;

(n) "regulations", "rules" or "Statutes" means the regulations, rules or Statutes made or deemed to have been made under this Ordinance; and

(o) "teacher" includes the Professors, Associate Professors, Assistant Professors, Lecturers and research staff engaged by the Institute for teaching graduate classes and such other person as may be declared as teacher by the Board.

3. Establishment and incorporation of the Institute.—(1) There shall be established, in accordance with the provisions of this Ordinance, an Institute to be called the COMSATS Institute of Information Technology consisting of the Patron, the Chancellor, the Board, the Rector, the Directors, and such other officers as may be prescribed.

(2) The Institute shall be a body corporate having perpetual succession and common seal, with power to acquire, hold and dispose of any property, both movable and immovable, and shall by the said name sue and be sued.

(3) The Institute shall have its principal seat at Islamabad and may set-up any number of campuses at such places as the Board may determine.

4. Powers and functions of the Institute. The Institute shall have the powers—

(a) to provide for instruction and training in computer and information technology and to make provisions for the advancement and dissemination of knowledge in such manner as it may deem fit;

(b) to admit and examine students;

(c) to hold examinations and confer or award degrees, diplomas, certificates and other academic distinctions on and to persons who have passed its examinations under prescribed conditions;

(d) to confer honorary degrees or other distinctions on approved persons in the manner as may be prescribed;

(e) to prescribe courses of studies and undertake research as it may determine;

(f) to demand and receive such fees and other char ges as it may determine;

(g) to appoint such officers including teachers and members of the staff and prescribe terms and conditions, powers and duties of such officers and staff;

(h) to appoint members of the various bodies and committees as the Board may determine for instructional and curricular activities and admit students of the Institute and its constituent units;

(i) to affiliate and disaffiliate educational institutions and inspect such institutions or associate itself with other educational, training and research institutions;

(j) to receive and manage property, grants, bequests, trusts, gifts, donations, endowments and other contributions made to the Institute and to invest them in such manner as it may deem fit;

(k) to enter into agreements, contracts and arrangements with governments, organizations, institutions, bodies and individuals for carrying out its function and activities; and

(l) to do all such other acts and things as may be required to further its objectives.

5. Institute open to all classes, etc. The Institute shall be open to all persons of either sex of whatever religion, race, creed, colour or domicile who are academically qualified for admission to the courses of study offered by the Institute, and no such person shall be denied the privilege on the ground only of sex, religion, creed, race, class, colour or domicile.

6. Teaching and examinations.—(1) The academic programmes of the Institute shall be conducted in the prescribed manner.

(2) The Institute shall restrict to phase-wise development of its academic programmes and having developed the necessary infrastructure it shall launch its academic programmes subsequently.

(3) The degree awarding programmes of the Institute shall conform to the approved criteria of the University Grants Commission.

(4) The Institute may associate external examiners for the conduct of examinations.

(5) No degree shall be granted unless a student has passed an examination in Islamic and Pakistan Studies at the Bachelor's degree level or, in the case of non-muslim student, in Ethics and Pakistan Studies at his option.

7. Authorities of the Institute. The following shall be the Authorities of the Institute, namely:—

(a) the Academic Council;

(b) the Board;

(c) the Board of Studies;

(d) the Selection Board; and

(e) such other Authorities as may be specified by regulations to be the Authority.

8. Officers of the Institute. The following shall be the officers of the Institute, namely:—

(a) the Patron;

(b) the Chancellor;

(c) the Rector;

(d) Directors;

(e) Registrar; and

(f) such other persons as may be specified by regulations to be the officers.

9. **Patron**.—(1) The President of the Islamic Republic of Pakistan shall be the Patron of the Institute.

(2) The Patron, or in his absence, the Chancellor shall preside at the convocation of the Institute.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Patron.

10. Visitation. —(1) The Patron, may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of the Institute and shall, from time to time, direct any person or persons as he may deem fit to inquire into or carry out inspection of—

(i) the Institute, its building, laboratories, libraries, and other facilities;

(ii) any institution, Department or hostel maintained by the Institute;

(iii) the adequacy of financial and human resources;

(iv) the teaching, research, curriculum, examination and other matters of the Institute; and

(v) such other matters as may be specified by him.

(2) The Patron shall communicate to the Board his views with regard to the result of visitation and shall, after ascertaining the views of the Board, advise the Board on the actions to be taken by it.

(3) The Board shall, within such time as may be specified by the Patron, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the result of visitation.

(4) Where the Board does not, within the time specified, take action to the satisfaction of the Patron, the Patron may issue such directions as he deems fit and the Board shall comply with all such directions.

(5) The Patron shall have full power to take any action as he may deem fit against the Institute including its closure if found in any subversive or unlawful activity

11. Chancellor.—(1) The Minister for Science and Technology shall be the Chancellor of the Institute.

(2) In case the Chancellor is satisfied that the proceedings of any Authority or order of any officer are not in accordance with the provisions of this Ordinance, the rules or regulations, he may, after calling upon such Authority or officer to show cause as to why such proceedings or, as the case may be, order should not be annulled, by order in writing, annual such proceedings or orders.

(3) The Chancellor may cause a visitation or inquiry to be made in respect of any matter connected with the affairs of the Institute and appoint any such person as he may deem fit for the purpose.

(4) The Chancellor may, on receipt of a report, issue such directions as he thinks fit and the Rector shall comply with such directions.

12. Rector.—(1) The Board may appoint the Rector on such terms and conditions, as it may determine.

(2) The Rector shall be the principal academic and administrative officer of the Institute, and shall be responsible for proper implementation of the decisions of the Board and for the execution of the programmes of the Institute in accordance with the guidelines and policies formulated by the Board.

(3) At any time when the office of the Rector is vacant, or the Rector is absent or is unable to perform the functions of his office due to illness or some other cause, the Executive Director, COMSATS, shall make such arrangement for the performance of the duties of the Rector as he may deem fit.

13. Board of Governors.—(1) The general supervision and control of administrative, academic and financial affairs of the Institute and the power to lay down policies of the Institute shall vest, in a Board of Governors consisting of the following members, namely:—

(a) the Executive Director, COMSATS, who shall be the Chairman of the Board;

(b) the Rector;

(c) the Secretary, Ministry of Science and Technology, Government of Pakistan or his nominee;

(d) the Secretary, Ministry of Education, Government of Pakistan or his nominee;

(e) the Chairman, University Grants Commission or his nominee;

(f) one person to be nominated by the Educational NGOs;

(g) the Directors of the campuses of the Institute;

(h) two Deans to be nominated by the Managing Committee of COMSATS;

(i) three persons of outstanding merit to be nominated by the Managing Committee of COMSATS; and

(j) the Registrar of the Institute, who shall be the Secretary.

(2) A nominated member of the Board shall hold office for a term of three years and shall be eligible for renomination on the expiry of his term.

(3) The office of a nominated member of the Board shall become vacant if he resigns or fails to attend three consecutive meetings of the Board without sufficient cause or leave of absence.

(4) A casual vacancy in the office of a nominated member of the Board shall be filled by a person nominated by the authority which nominated the member whose vacancy is to be filled.

(5) No act or proceedings of the Board shall be invalid by reason only of the existence of a vacancy in or a defect in the constitution of the Board.

14. Powers and functions of the Board. —(I) The Board shall exercise the powers and perform the following functions, namely:—

(a) to hold, control and administer the property, funds, assets and resources of the Institute;

(b) to transfer and accept transfer of movable or immovable property on behalf of the Institute;

(c) to consider and approve, on he advice of the Finance and Planning Committee, the annual and revised budget estimates and to lay down guidelines or rules of business dealing with financial matters;

(d) to approve, carry out, vary or cancel contracts on behalf of the Institute;

(e) to initiate and approve schemes for achievement of the objectives of the Institute;

(f) to determine the form, and regulate the custody and use of common seal of the Institute;

(g) to create professional, research, administrative posts and such other posts as may be required to carry out for the purposes of the Institute, and to suspend or abolish such posts;

(h) to appoint teachers, researchers and officers on the recommendations of the Selection Board;

(i) to suspend, punish and remove from service employees of the Institute in the manner as may be prescribed after due enquiry and defence;

(j) to approve rules on the recommendations of the appropriate bodies

(k) to determine, regulate and administer all other matters concerning the Institute; an

(l) to arrange convocation.

15. Meetings of the Board. —(1) The Board shall meet at least twice in a year on such dates as may be fixed by the Rector.

(2) A special meeting may be called at any time on the direction of the Chancellor or on a requisition made by not less than four members of the Board to consider a matter of urgent nature.

(3) Not less than seven clear days notice of a special meeting shall be given to the members of the Board and the agenda of the meeting shall be restricted to the matter for which the special meeting is called.

(4) The quorum for a meeting of the Board shall be one half of its members, a fraction being counted as one.

(5) The decision of the Board shall be expressed in terms of the views of the majority of the members present and voting and, if the members are equally divided, the Chairman of the Board shall have a casting vote.

16. Director. —(1) The Board may appoint a Director of each campus of the Institute, on such terms and conditions, as it may determine.

(2) The Director of a campus shall have the following powers, namely:—

(a) to sanction all expenditure provided for in the approved budget;

(b) to sanction reappropriation of an amount not exceeding such amount as the Board may authorize in this behalf for and unforeseen item not provided for in the budget;

(c) to make such arrangements for the scrutiny of papers, marks and results as may be necessary; and

(d) to direct teachers, officers and other employees of the campus of the Institute to take up such assignments in connection with teaching, research, examination, administration and such other activities in the campus, as he may consider necessary.

17. Academic Council. —(1) The Academic Council shall consist of—

(a) the Rector who shall be its Chairman;

(b) the Directors of the respective campuses;

(c) the Chairman of the Teaching Departments;

(d) all Professors of the Institute;

(e) the Registrar who shall be the Secretary; and

(f) five eminent scholars to be nominated by the Board.

(2) A nominated member of the Academic Council shall hold office for a term of three years and shall be eligible for renomination.

(3) The office of a nominated member of the Academic Council shall become vacant if he resigns or fails to attend three consecutive meetings of the Academic Council without sufficient cause or leave of absence.

(4) The quorum for a meeting of the Academic Council shall be one half of the total number of its members, a fraction being counted as one.

18. Powers of the Academic Council. —(1) The Academic Council shall be the highest academic body of the Institute, and shall, subject to the provisions of this Ordinance and the Statutes, have the powers to lay down proper standards of instructions, research and examinations, and to regulate and promote the academic life of the Institute.

(2) In particular and without prejudice to the generality of the foregoing powers the Academic Council shall have the powers—

(a) to advise the Board on academic matters;

(b) to regulate the admission of students to the courses of studies and examinations;

(c) to propose to the Board schemes for the constitution and organization of Faculties, Teaching Departments, campuses of the Institute and Board of Studies;

(d) to consider and formulate proposals for the planning and development of teaching and research in the Institute;

(e) to make regulations, on the recommendations of the Board of Studies, prescribing the courses of studies and the syllabi for all Institute examinations provided that if the recommendations of the Board of Studies are not received by the prescribed date, the Academic Council may, subject to the approval of the Board, continue for the next year the courses of studies already prescribed for an examination;

(f) to recognise the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the Institute;

(g) to frame regulations for submission to the Board;

(h) to appoint members to the various Authorities in accordance with the provisions of this Ordinance; and

(i) to perform such other functions as may be prescribed by Statutes.

19. **Constitution, functions and powers of the Authorities.** —(1) Subject to the provisions of the Ordinance, the constitution, functions and powers of the Authorities for which no specific provision has been made in this Ordinance shall be such as may be prescribed by Statutes.

(2) No act, proceedings resolution or decision of any Authority shall be invalid by reason only of any vacancy or defect in the constitution of or in the appointment or nomination of any member of the Authority.

20.**Committees**. The Board, the Academic Council or any other Authority may appoint such Standing, Special or Advisory Committees as it may consider necessary in the performance of its functions.

21. Academic and administrative staff. —(1) The academic and administrative staff of the Institute shall be selected with a view to achieve stated objectives, and the basic criteria for their selection shall be the highest standards of competence, integrity and efficiency.

(2) In the case of academic staff, the academic qualifications and fringe benefits shall not be less than those duly approved by the University Grants Commission for such appointments.

22. Fund of the Institute. —(1) The Institute shall have a Fund to which shall be credited income from fees, donations, trusts, bequests, endowments, grants, contributions and income from any other source.

(2) The capital and recurrent expenditure of the Institute shall be met from the contributions made by any source including foundations, universities and individuals, and from the income derived from such sources.

(3) The Institute may obtain funds from the COMSATS according to such terms and conditions as may be mutually agreed upon.

(4) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability for the Institute, or which may involve an activity not included in the academic programmes of the Institute for the time being, shall be accepted without the prior approval of the Board.

23. Audit and accounts. —(1) The accounts of the institute shall be maintained in such form and manner as may be determined by the Board.

(2) The accounts of the Institute shall be audited each year within four months of the closing of the financial year of the Institute by a Chartered Accountant to be appointed by the Board.

(3) The accounts of the Institute shall, together with the report of the auditor thereon, be submitted for approval of the Board.

(4) The auditor's report shall certify that the auditor has complied with the standards of audit and certification laid down by the Institute of Chartered Accountants of Pakistan.

(5) Each campus of the Institute shall have a separate fund and the accounts of such fund shall be maintained and audited on similar lines as the Fund of the Institute.

24. Indemnity. No suit, prosecution or legal proceedings shall lie against the Institute, Board, any Authority or an employee of the Institute for anything which is done, or intended to be done in good faith under this Ordinance.

25. Power to make rules. —(1) Subject to the provisions of this Ordinance, the Board may make rules for carrying put the purposes of this Ordinance.

(2) Without prejudice to the generality of the foregoing powers, such rules may provide for—

(a) terms and conditions of contractual appointments of teachers, researchers and of ficers;

(b) powers and duties of officers and teachers;

(c) conditions under which the Institute may enter into arrangements with other public or private organizations for purposes of instructions, research and other scholarly activities;

(d) conditions of appointment of Professors Emeritus and award of honorary degrees;

(e) efficiency and discipline of the employees of the Institute;

(f) acquisition and administration of properties and investments of the Institute; and

(g) all other matters which under this Ordinance are required to be regulated by rules.

(3) The Rector, the Director or the Academic Council may propose the draft of the rules for approval of the Board.

(4) Any Authority or any other body of the Institute may propose rules, consistent with the provisions of this Ordinance, for approval of the Board, to regulate the conduct of its business.

26. Statutes. —(1) Subject to the provisions of this Ordinance, Statutes may be made to regulate or prescribe all or any of the following matters, namely:—

(a) creation of Faculties, Teaching Departments and other academic units and divisions;

(b) terms and conditions of service of employees of the Institute including pension, insurance, gratuity, provident fund, benevolent fund and other fringe benefits;

(c) efficiency and discipline of the employees of the Institute; and

(d) all matters required to be regulated under the Statutes.

(2) The Rector shall propose draft of the Statutes for approval of the Board.

(3) The Board may approve the Statutes or refer the same back for reconsideration.

(4) No Statute shall be valid until the Board has approved it.

27. First Statutes. Notwithstanding anything contained in this Ordinance, the Statutes set-out in the Schedule to this Ordinance shall be deemed to be the Statutes framed under section 26 and shall remain in force until they are rescinded or replaced by new Statutes framed in accordance with the provisions of this Ordinance.

THE SCHEDULE

(See section 27)

1. Faculties.—(1) The Institute shall have the following Faculties, namely:—

(a) Faculty of Science;

(b) Faculty of Engineering;

(c) Faculty of Business Administration; and

(d) Faculty of Information Sciences and Technology.

(2) Each Faculty shall include such institutes, Teaching Departments, centres or the other teaching or research units as may be prescribed by the Statutes.

2. Board of Faculty.—(1) There shall be a Board of each Faculty which shall consist of—

(a) the Dean of the Faculty;

(b) the Professors, the Directors and the Chairmen of the Teaching Departments comprised in the Faculty; and

(c) three teachers to be nominated by the Rector by reason of their special knowledge of the subject which though not assigned to the Faculty.

(2) The term of office of a nominated member of the Board of a Faculty shall be three years.

(3) The quorum for a meeting of the Board of a Faculty shall be one-half of the total number of members, a fraction being counted as one.

3. Functions of the Board of Faculty. The Board of each Faculty shall, subject to the general control of the Academic Council and the Board, have the powers—

(a) to co-ordinate the teaching and research work in the subject assigned to the Faculty;

(b) to scrutinies the schemes of courses and syllabi proposed by the Board of Studies comprised in the Faculty, and forward them to the Academic Council along with its observations;

(c) to scrutinies the recommendations made by the Board of Studies comprised in the Faculty, on the appointment of paper setters and examiners, except for research and degree examiners who shall be scrutinized by the Rector;

(d) to consider any other academic matter relating to the Faculty and to report thereon to the Academic Council; and

(e) to perform such other functions as may be prescribed by the Statutes.

4. Dean.—(1) There shall be a Dean of each Faculty who shall be the Chairman and convener of the Board of Faculty.

(2) The Dean shall be appointed by the Rector from amongst the three senior most Professors in the Faculty, for a term of three years and shall be eligible for reappointment for another term.

(3) The Dean shall present candidates for admission to degrees, except honorary degrees, to the Chancellor in the courses falling within the purview of the Faculty.

(4) The Dean shall exercise such powers and perform such duties as may be prescribed.

5. Teaching Department.-(1) There shall be a Teaching Department for each subject or a group of subjects as may be prescribed by regulations and each Department shall be headed by a Chairman.

(2) The Chairman of the Department shall be appointed by the Board, on the recommendation of the Rector, from amongst the three senior most Professors and three most senior Associate Professors of the Department for a period of three years:

Provided that where there is no Professor or Associate Professor in a Department, it shall be looked after by the Dean with the assistance of the senior most teacher of the Department.

(3) The Chairman of the Department shall plan, organize and supervise the work of the Department and shall be responsible to the Dean for the work of his Department.

6. Board of Studies.—(1) There shall be a separate Board of Studies for each subject or group of subject, as may be prescribed by regulations.

(2) Each Board of Studies shall consist of—

(a) Chairman of the Department who will be its Chairman and convener;

(b) all Professors and Associate Professors in the Department;

(c) teachers other than Institute teachers to be nominated by the Board of Faculty. The number shall be determined by the Board of Faculty according to the needs of each Board of Faculty; and

(d) three experts to be nominated by the Rector.

(3) The term of office of a nominated member of the Board of Studies shall be three years.

(4) The quorum for meeting of the Board of the Studies shall be one-half of the total number of members, a fraction being counted as one.

(5) The functions of the Board of Studies shall be—

(a) to advice the authorities on all academic matters connected with instruction, research and examination in the subject or subjects concerned.

(b) to propose curricula and syllabi for all degrees, diploma's and certificate courses in the subjects concerned.

(c) to suggest a panel of names of paper setters and examination in the subjects concerned; and

(d) to perform such other functions as may be prescribed by regulations.

7. Board of Advanced Studies and Research.—(1) The Board of Advanced Studies and Research shall consist of—

(a) the Rector who shall be the Chairman;

(b) the Deans;

(c) three Professor other than Deans to be appointed by the Board; and

(d) three scholars of eminence in a field not represented on the Board of Advanced Studies and Research to be appointed by the Rector, on the recommendation of the Academic Council.

(2) The term of office of members of the Board of Advanced Studies and Research other than *ex-officio* members shall be three years.

(3) The quorum for a meeting of the Board of Advanced Studies and Research shall be one-half of the total number of members, a fraction being counted as one.

(4) The functions of the Board of Advanced Studies and Research shall be—

(a) to advice the Authorities on all matters connected with the promotion of advanced studies and research in the Institute;

(b) to consider and report to the Authorities on the institution of research degree in the Institute;

(c) to appoint supervisors for research studies;

(d) to propose regulations for award of research degree; and

(e) to recommend the names of examiners for research degree.

8. Selection Board.—(1) There shall be a Selection Board consisting of—

(a) the Rector who shall be the Chairman;

(b) one member of the Board;

(c) two persons of eminence to be nominated by the Board provided that none of them is an employee of the Institute;

(d) the Director of the campus concerned;.

(e) the Dean of the Faculty concerned; and

(f) the Chairman of the Teaching Department concerned.

(2) A member of the Selection Board other than an *ex-officio* member shall hold office for three years.

(3) The quorum for a meeting of the Selection Board shall be five members.

(4) No member of the Selection Board who is a candidate for the post to which appointment is to be made shall take part in such proceedings of the Selection Board.

(5) In selecting candidates for the post of Professors and Associate Professors, the Selection Board shall co-opt or consult three experts in the subject concerned and in selecting candidates for other teaching posts, two experts in the subject concerned to be nominated by the Rector from a standing list of experts of each subject as may be approved by the Board and as revised from time to time.

(6) The functions of Selection Board shall be—

(a) to consider all applications for teaching and other posts received in response to an advertisement and shall recommend to the Board the names of suitable candidates for appointment to such posts;

(b) to recommend to the Board the grant of a higher initial pay in a suitable case for reasons to be recorded in writing;

(c) to recommend to the Board the appointment of a highly qualified person, to a position in the Institute on such terms and conditions as may be prescribed; and

(d) to consider all cases of promotions of officers of the Institute and recommend to the Board the names of suitable candidates for such promotions.

(7) In the event of an unresolved difference of opinion between the Selection Board and the Board, the matter shall be referred to the Chancellor whose decision shall be final.

9. Finance and Planning Committee.—(1) There shall be a Finance and Planning Committee consisting of—

(a) the Rector, who shall be the Chairman;

(b) two nominees of the Institute;

(c) one nominee of the Board;

(d) the Director of the campus concerned;

(e) three experts in the field of finance and planning to be nominated by the Board;

(f) Dean to be nominated by the Board on the recommendation of the Rector; and

(g) the Treasurer who shall be the Secretary.

(2) The quorum for a meeting of the Finance and Planning Committee shall be four members.

(3) The functions of the Finance and Planning Committee shall be—

(a) to consider annual statement of accounts and revised budget estimates and advice the Board thereon;

(b) to review periodically the financial position of the Institute;

(c) to advise the Board on all matters relating to planning, development, finance, investment and accounts of the Institute;

(d) to prepare short term and long term development plan;

(e) to prepare resource development plans; and

(f) to perform such other functions as may be prescribed by the Statutes.

10. Affiliation Committee.—(1) There shall be an Affiliation Committee consisting of—

(a) the Rector who shall be the Chairman;

(b) one member to be nominated by the Board; and

(c) two Professors or two Directors to be nominated by the Academic Council.

(2) The term of office of the members of the Affiliation Committee other than *ex-officio* members shall be two years.

(3) The Affiliation Committee may co-opt not more than three experts.

(4) The quorum of the meeting of the Affiliation Committee shall be three members.

(5) An officer of the Institute to be designated by the Rector for this purpose shall be the Secretary of the Affiliation Committee.

11. **Discipline Committee.**—(1) The Discipline Committee shall consist of—

(a) the Rector or his nominee;

(b) two Professors to be nominated by the Academic Council;

(c) one member to be nominated by the Board; and

(d) the teacher or officer Incharge Students Affairs by whatever name called who shall be the member and Secretary.

(2) The term of office of the members of the Discipline Committee other than *ex-officio* members shall be two years.

(3) The quorum for a meeting of the Discipline Committee shall be three members.

(4) The functions of the Discipline Committee shall be—

(a) to propose regulations to the Academic Council for the conduct of Institute students, maintenance of discipline and for dealing with cases of in discipline; and

(b) to perform such other functions as may be assigned to it by regulations.

THE CORPORATE AND INDUSTRIAL RESTRUCTURING CORPORATION ORDINANCE, 2000

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THE CORPORATE AND INDUSTRIAL RESTRUCTURING CORPORATION ORDINANCE, 2000

ORDINANCE NO. L OF 2000

22nd September, 2000

AN

ORDINANCE

to make provisions for the acquisition, restructuring, rehabilitation, management, disposition and realization of non-performing loans and other assets of various banks and financial institutions

WHEREAS it is expedient, in the public interest, to deal with financial institutions and their assets, to assist the business sector by dealing with distressed enterprises and to promote the rehabilitation of the national economy by making provisions for the acquisition, restructuring, rehabilitation, management, disposition and realization of non-performing loans and other assets of various banks and financial institutions and for matters ancillary or incidental thereto;

AND WHEREAS, the National Assembly and the Senate stand suspended in pursuance of the Proclamation of the Fourteenth day of October, 1999 and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

CHAPTER I. — PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Corporate and Industrial Restructuring Corporation Ordinance, 2000.

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(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Administration Committee" means the administration committee established under section 12;

(b) "Board" means the Board of directors constituted under section 6;

(c) "bonds" mean bonds, debentures, participation term certificates, term finance certificates, redeemable capital certificates or similar instruments providing for scheduled or contingent payment of debt obligations;

(d) "book value" means the rupee amount, inclusive of principal and accrued profit, owed by any obligor in connection with any financial asset as reflected on the books and records of the financial institution, as of the transfer date;

(e) "Chairman" means the chairman of the Board;

(f) "Chief Executive" means the Chief Executive Officer of the Corporation;

(g) "collateral" means any asset, property, right, claim, entitlement, share, undertaking, guarantee, agreement, document or instrument, security interest, charge, mortgage, lien, hypothecation, pledge or assignment in respect of or as security for any financial asset;

(h) "Commission" means the Securities and Exchange Commission of Pakistan established under section 3 of the Securities and Exchange Commission of Pakistan Act, 1997 (XLII of 1997);

(i) "Corporation" means the Corporate and Industrial Restructuring Corporation established under section 4;

(j) "director" means a director of the Board;

(k) "financial asset" means any short, medium or long term interest and non-interest bearing loan, finance, advance, lease, installment, term finance certificate, participation term certificate, musharaka, modaraba, profit and loss sharing agreement, redeemable capital, guarantee or contractual right to receive payment of money in respect of sums advanced or committed to an obligor by a financial institution including collateral pertaining thereto;

[1][(l) "Financial Institution" means any bank or other financial institution operating in Pakistan wherein the Federal Government holds any equity.]

(m) "Government entity" means any Ministry, Division, Department or office of the Federal Government or any corporation, company, trust, statutory body or other entity of which more than fifty per cent of the equity or beneficial interest is directly or indirectly owned or controlled by the Federal Government;

(n) "non-performing asset" means any financial asset:

(a) which is held as an asset on the books of a financial institution;

(b) with respect to which the obligor has been in arrears on any payment obligation for a period more than three hundred and sixty-five days, including—

[1]Subs. by the Corporate and Industrial Restructuring Corporation (Amdt.) Act, 2005 (3 of 2005) s. 2 for clause (1).

(i) collateral with respect to any financial asset; and

(ii) a whole or partial right or interest of a financial institution in any financial asset, that otherwise constitutes a non-performing asset including a financial asset with respect to which the financial institution has an ongoing funding obligation; and

[1][(c) with respect to which the obligor's outstanding payment obligation to any financial institution exceeds thirty million rupees:

Provided that the Federal Government may, by notification in the official Gazette, alter, reduce or increase the said amount as and when it deems fit.]

(o) "obligor" means any individual, proprietorship concern, company or other body corporate, trust, partnership or other entity that has, with respect to a non-performing asset, a contractual or legal obligation or duty to make payment, effect performance, provide security, or collateral with respect to any financial asset whether as principal, surety, guarantor or otherwise and whether such obligation is primary, secondary, matured or contingent;

(p) "outstanding amount" means the book value of a non-performing asset of the financial institution less, —

(a) any amount on the books of the financial institution appearing as a specific reserve applicable to that non-performing asset;

(b) any amount on the books of the financial institution appearing in a general loan loss and/or other reserve applicable to that non-performing asset; and

if, in the opinion of the Board, the book value of the non-performing asset, as adjusted in sub-clauses (a) and (b), is higher than the estimated market price of the non-performing asset, the Board shall commission an independent evaluator to determine such market price and in the event that the market price as determined by the independent evaluator is lower than the book value as adjusted in sub-clauses (a) and (b), such market price shall be deemed to be the outstanding amount;

(q) "regulations" means regulations made under this Ordinance;

(r) "rules" means rules made under this Ordinance;

(s) "Schedule" means the Schedule to this Ordinance; and

(t) "State Bank" means the State Bank of Pakistan.

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[1] Subs. by the Corporate and Industrial Restructuring Corporation (Amdt.) Ordinance, 2000 (57 of 2000) s. 2 for the original sub-clause (c).

3. Ordinance not to derogate from other laws.—The provisions of this Ordinance shall be in addition to and save as hereinafter provided, not in derogation of any other law for the time being in force.

CHAPTER II. — ESTABLISHMENT OF THE CORPORATION AND THE BOARD

4. Establishment of the Corporation.—(1) A corporation called the Corporate and Industrial Restructuring Corporation is hereby established for carrying out the purposes of this ordinance.

(2) The Corporation shall be a body corporate having a common seal, with powers, subject to the provisions of the Ordinance, to hold and dispose of property and shall by its name sue and be sued.

(3) The headquarters of the Corporation shall be at Islamabad or such other place as may be determined by the Board.

5. Board and its Powers.—(1) The overall direction, management, control and superintendence of the affairs of the Corporation shall vest in the Board which may exercise all such powers and do all such acts and things as may be exercised and done by the Corporation as set out in section 18.

(2) In discharging its functions, the Board shall act with prudence and sound business and financial considerations for and on behalf of all persons who have beneficial interest as creditors or otherwise are beneficiaries, including the financial institutions and Government entity.

6. Composition of the Board.—(1) The Board shall consist of the following directors, namely:—

(a) the Minister for Finance, Government of Pakistan;

[1][(b) the Minister of Commerce, Government of Pakistan;

(bb) the Minister of Industries, Government of Pakistan;]

(c) the Governor, State Bank of Pakistan;

(d) the Chairman, Privatization Commission of Pakistan;

[1][(e) the Finance Secretary, Ministry of Finance;]

(f) the Chief Executive as defined in clause (f) section 2; and

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[1]Subs. by the Corporate and Industrial Restructuring Corporation (Amdt.) Act, 2005 (3 of 2005) s. 3 for clause (b) and (e)

(g) a minimum of four and a maximum of eight persons of repute from the private sector and as far as possible from each Province, one of whom shall be from the banking sector.

(2) The directors referred to in clauses (a) to (f) of sub-section (1) shall be ex officio directors.

(3) The directors under clause (g) of sub-section (1) shall be appointed by the Federal Government, who shall hold office for a term of two years and shall be eligible for re-appointment for additional terms of two years each.

(4) No act or proceedings of the Board shall be invalid merely on the ground of the existence of any vacancy in, or defect in the constitution of, the Board.

(5) No director shall have any direct or indirect financial interest in, or have business connection with any obligor or financial institution whose non-performing assets are the subject of this Ordinance.

Explanation. — For the purposes of this sub-section, any involvement of the spouse or any lineal ascendant or descendant of any director with any obligor or financial institution shall be considered as a direct financial interest or connection of the director with such obligor or financial institution.

(6) The directors shall not, for two years after the expiry of their term of office, enter into the employment of or accept any advisory or consultancy relationship with any obligor or financial institution whose non-performing assets are the subject of this Ordinance.

7. Chairman of the Board. — The Minister for Finance shall be the Chairman of the Board.

8. Chief Executive of the Corporation.—(1) The Chief Executive shall be appointed by the Federal Government who shall be the whole-time chief executive officer of the Corporation.

(2) The Chief Executive shall hold office for a term of two years and shall be eligible for re-appointment for additional terms of two years each.

(3) Subject to its superintendence, direction and control, the Board may authorise in writing the Chief Executive to exercise and perform any or all of the following powers and functions as the Board deems fit, namely:—

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(a) to deal with, negotiate, enter into and sign agreements and contracts with any obligor or financial institution in respect of the non-performing assets or related collateral and to take any and all actions, in any manner, to advance the business of the Corporation as specified in section 18;

(b) to institute, finance, manage, oversee and terminate rehabilitation plans and schemes for the non-performing assets or the obligor, as the case may be;

(c) to pay the cost, charges and expenses for the day to day business of the Corporation;

(d) to receive money or goods on behalf of the Corporation;

(e) to sell, deal in and dispose of all articles and goods of the Corporation;

(f) to engage, employ, fix and pay the remuneration and dismiss or discharge all managers, agents, secretaries, clerks, servants, workmen and other persons employed in, or in connection with, the Corporation's business;

(g) to appoint any person or persons to be attorney or attorneys of the Corporation for such purposes and with such powers, authorities and discretions and for such period and subject to such conditions as he may from time to time think fit;

(h) to make and give receipt, release and discharge, all moneys payable to the Corporation or for the claims and demands of the Corporation;

(i) to draw, accept, endorse and negotiate all such cheques, bills of exchange, promissory notes and Government and other securities as shall be necessary in or for carrying on the affairs of the Corporation whether the account may be overdrawn or not;

(j) to institute, compromise, withdraw or abandon any legal proceedings by or against the Corporation or its officers or otherwise concerning the affairs of the Corporation;

(k) to provide for the welfare of employees or ex-employees of the Corporation and the wives, widows or families or the dependents of such persons in such manner as he may think fit;

(l) to open, maintain and operate accounts or letters of credit for any amount with any bank or banks and to give instructions for operation of such accounts;

(m) to appear before any court law, civil, criminal, revenue, excise, income-tax including banking courts and tribunals established for recovery of bank dues and loans, whether original or appellate, High Courts and Supreme Court of Pakistan and other authorities for and on behalf of the Corporation and to institute, apply for transfer of suits and other proceedings, conduct, prosecute and defend suits and legal proceedings whatsoever including original, appellate or any other jurisdiction, sign power of attorney or other authorisation, statements, pleadings and petitions on behalf of the Corporation and to represent, defend and safeguard the interest of the Corporation;

(n) to enter into all such negotiations and contracts and rescind or vary all such contracts and do all acts, deeds and things, in the name and on behalf of the Corporation as he may consider necessary, expedient or proper, or in relation to any of the matters aforesaid or otherwise, for the purposes of the Corporation;

(o) to give effectual discharge for moneys payable to the Corporation and for its claims and demands;

(p) to purchase or take on lease or otherwise acquire for the Corporation, land, buildings, rights and privileges for the purpose of offices or premises of the Corporation at such prices and generally on such terms as he may think necessary and expedient, to build, alter and furnish offices, houses or premises and let or sub-let any such houses or premises in portion or otherwise;

(q) to demand and enforce payment, delivery, transfer of any dues for recovery and receive from all and every persons, body corporate or corporations, firm or companies whatsoever, all money, securities for money, debts and claims of all kinds and demand, enforce, deliver and receive and take possession of money, securities, shares, and goods produced and property of all kinds whether belonging to the Corporation as security or in trust or held by any person or company in trust or by way of security for the Corporation;

(r) to deal with, make arrangements, sign contracts with Government, semi Government, autonomous bodies, corporations, local Government and other institutions; and

(s) to appoint attorneys, agents, managers and authorise them to exercise any or all such powers and functions as are mentioned in clauses (a) to (r) above.

(4) The Federal Government may, by notification in the official Gazette, remove the Chief Executive if, —

(a) he refuses or fails to discharge or becomes in the opinion of the Federal Government, incapable of discharging his responsibilities under this Ordinance; or

(b) he has been declared insolvent; or

(c) he has been declared to be disqualified for employment in, or has been dismissed from the service of Pakistan, or has been convicted of an offence involving moral turpitude; or

(d) he has knowingly acquired or continued to hold without the permission in writing of the Federal Government, directly or indirectly or through a partner, any share or interest in any obligor or financial institution.

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9. Committees. — The Board may, for the purpose of obtaining advice and assistance in carrying out the purposes of this Ordinance, constitute one or more committees consisting of members of the Board and any other suitable persons as it may deem fit. Any committee so formed shall, in exercise of the powers delegated to it or conferred on it conform to any restrictions that may be imposed on it by the Board.

10. Verification Committees.—(1) For the purposes of this Ordinance and before taking any action thereunder, the Corporation shall, having regard to the facts and circumstances of a case, refer a question of bona fide dispute relating to liability of the obligor in respect of the non-performing assets or cases relating thereto, including the cases of fraud, misrepresentation, and breach of any provision of law, rule, regulation and circulars of the State Bank, regarding the calculation, existence and repayment of a financial obligation or outstanding loan, mark-up or interest claimed against an

obligor, to the Governor State Bank for verification and correct determination and calculation by the Verification Committee as hereafter provided:

Provided that the Corporation may in appropriate cases and having regard to the facts and circumstances of a case require the Governor State Bank to include one or more suitable persons including an expert or consultant to be member of the Verification Committee.

(2) The verification, determination and calculation of matters referred to in sub-section (1) shall be made in accordance with the existing law, rules, regulations and circulars of the State Bank in the manner provided herein in regard to the principal amount of loan, mark up, interest and ancillary financial matters relating to the financial institutions as claimed by or against the financial institution or the Corporation, as the case may be, in respect of the non-performing assets and the liability of the obligor.

(3) Save as provided in this Ordinance, the provisions of sub-sections (1) and (2) shall not affect the validity, continuance and enforcement of an order of winding up of a company under the Companies Ordinance, 1984, which has been made before the commencement of this Ordinance except for the purpose of calculating the payment of any financial obligation or verified claim to the creditor or contributory or liability of the guarantor or any other person.

(4) Where a matter is referred to the Governor State Bank under sub-sections (1) and (2), he may constitute one or more Verification Committees for the purposes of this Ordinance.

(5) The Verification Committee shall consist of a nominee of the Governor State Bank being a senior officer of the State Bank who shall be the Chairman of the Committee, two Chartered Accountants, to be nominated by the Governor State Bank and one Chartered Accountant to be nominated by the Council of the Institute of Chartered Accountants of Pakistan, Karachi, such nomination to be obtained by the Governor State Bank and such other person as the Corporation may require.

(6) The Chairman of the Verification Committee shall convene the meetings, conduct proceedings of the Committee, maintain record including the evidence submitted before him by the parties and their statements and on their request supply authenticated copies of the record to them.

(7) The Verification Committee after examination of the record of the concerned lending financial institution and the obligor and after due notice by courier service, fax, U.M.S. or any other effective mode to both parties and affording them reasonable opportunity to explain their position and hearing them in person and through their chartered accountants shall make correct determination, verification and calculation of liability and matters referred to in sub-sections (1), (2) and (3) in accordance with the law, rules, regulations and circulars of the State Bank.

(8) Where a party after due notice under sub-section (7) does not appear in person or through chartered accountant before the Verification Committee, it may proceed ex-parte:

Provided that nothing contained herein shall prevent such party from appearance before the Verification Committee before the conclusion of the proceedings.

(9) The Verification Committee shall submit its finding and report with recommendations to the Governor State Bank within thirty days of the commencement of the proceedings or such extended period as the Governor State Bank may allow for reasons to be recorded in writing.

(10) The Governor State Bank shall consider the findings and report and recommendations submitted to him by the Verification Committee under sub-section (9) and may accept or modify the same or may, for reasons to be recorded, make such other appropriate recommendations and findings in respect thereof as he may deem fit.

(11) The Governor State Bank shall forward his recommendations and findings made under sub-section (10) alongwith the finding, report, recommendations and record of the Verification Committee to the Corporation and the parties will be entitled to obtain copies thereof from the Corporation.

(12) The recommendations and findings of the Governor State Bank made on the basis of finding, report and recommendations of the Verification Committee in regard to calculation of liability of obligor shall be final and have presumption of truth unless found to contain manifest error or contrary to law, but the same shall be subject to orders of the High Court.

(13) The Corporation after considering the recommendations and findings of the Governor State Bank forwarded to it under sub-section (11) will take appropriate action under this Ordinance having regard to the facts of each case.

(14) In the event of failure either of the Verification Committee to conclude the reference within thirty days of the commencement of the proceedings or such extended period referred to in sub- section (9) or the failure of the obligor or the financial institution to accept the recommendations and findings of the Governor State Bank, the Corporation may proceed in respect of the non-performing asset under this Ordinance.

(15) Notwithstanding anything contained in any other law for the time being in force, the final recommendations and findings by the Governor State Bank and the finding, report and the recommendations of the Verification Committee under sub-section (11) shall constitute admissible evidence for any legal proceedings.

Explanation.— For the purpose of this Ordinance any instructions given by the State Bank to any bank or financial institution for writing off any debt for the purpose of accounting of any such bank or financial institution shall not be construed as satisfaction of any debt payable by the obligor.

11. Guidelines for Corporation and the Governor State Bank. — The Corporation, and where a matter is referred by it to Governor State Bank under sub-section (1) of section 10, the Governor State Bank, shall take into consideration inter-alia the following factors as the Corporation, or as the case may be, the Governor State Bank, may deem fit having regard to the facts of each case, namely: —

(a) the practical possibilities of the non-performing asset;

(b) the possibility of re-scheduling of financial assistance;

(c) the adequacy of the subsisting securities and the willingness of the obligor to provide sufficient additional security;

(d) such other preventive, ameliorative and remedial measures including amalgamation or merger, change in management whether partial or whole or such incidental, consequential or supplemental measures as may be necessary;

(e) examine the possibility of keeping alive a running project by providing reasonable financial assistance through financial institutions keeping in view the interest of both borrower and lender and avoiding unemployment;

(f) where the obligor can make financial arrangement on a joint venture basis with a third person on mutually agreed terms so as to provide sufficient security to the satisfaction of the Governor State Bank or the Board for repayment of the outstanding amount or liability of the non-performing asset to be determined in accordance with the State Bank's circulars, instructions, rules, regulations and the law; and

(g) any other, facts and circumstances having regard to public interest and the objectives of the Ordinance.

12. Administration Committee.—(1) The Administration Committee shall consist of the Chief Executive and four other members of the Corporation to be appointed from the fields of banking, law, finance, engineering, management or accountancy.

(2) The minutes of every meeting of the Administration Committee shall be laid before the Board at its meeting next following the meeting of the Administration Committee.

(3) Subject to the superintendence, direction and control of the Board, the Administration Committee may deal with any matter within the competence of the Board and may exercise such powers and perform such functions as may be assigned to it by the Board.

13. Members, officers and servants of the Corporation.—(1) The Board shall appoint four members of the Corporation in the fields of banking, law, finance, engineering, management or accountancy to assist the Corporation in the discharge of its function under this Ordinance. Each member shall receive such salary and allowances, be subject to such conditions of service and removal, as may be prescribed by the rules.

(2) The Corporation may appoint such officers and servants as it considers necessary for the efficient discharge of its functions on such terms and conditions as the Board may decide.

14. Meeting of the Board and the Administration Committee.—(1) No business of the Board or of the Administration Committee shall be transacted except at a meeting at which a quorum of a majority of the directors then appointed in the case of the Board, and three members in the case of the Administration Committee, are present.

(2) The meetings of the Board and of the Administration Committee shall be held at such times and at such places as the Federal Government may, by rules, prescribe.

(3) All meetings of the Board shall be presided over by the Chairman of the Board and of the Administration Committee by the Chief Executive. In the absence of the Chairman of the Board at a Board meeting, the Chief Executive shall preside. In the absence of the Chief Executive at a meeting of the Administration Committee, the meeting shall be presided over by a member authorized in writing by the Chief Executive.

(4) The decisions at the Board and the Administration Committee shall be taken by a majority provided that such majority includes the presiding officer as mentioned in sub-section (3). At a meeting of the Board or of the Administration Committee, each director or member, as

the case may be, shall have one vote, and in the case of equality of votes, the presiding officer shall have a second or casting vote.

(5) A resolution in writing signed by the majority of the Board and the Chairman of the Board or the Administration Committee and the Chief Executive or affirmed by them through facsimile, telex or telegram shall be as valid and effectual as if it had been passed at a meeting of the Board or the Administration Committee, as the case may be, duly convened and held.

15. Qualifications and disqualifications of directors. — No person shall be, or shall continue to be, a director who-

(a) is or at any time has been adjudicated as insolvent;

(b) is found to be a lunatic or becomes of unsound mind;

(c) is or has at any time been convicted of any offence which, in the opinion of the Federal Government, is an offence involving moral turpitude;

(d) absents himself from all the meetings of the Board, without leave of absence from the Board, for a continuous period of six months or, if less than three meetings are held within such period, from three consecutive meetings of the Board; and

(e) is a salaried official of the Corporation other than the Chief Executive.

16. Employees of the Corporation to be public servants. — Every person in the service of the Corporation shall, when acting or purporting to act in pursuance of any of the provisions of this Ordinance, be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code. 1860 (Act XLV of 1860).

17. Indemnity of members, directors, officers or servants.—(1) A director shall not be personally responsible for the acts of any other director or of any member or officer or servant of the Corporation or for any loss or expenditure of the Corporation by reason of the insufficiency or deficiency in value of or title to any property or security acquired or taken on behalf of the Corporation, or for anything done by him in good faith in the discharge of his duties.

(2) No suit, prosecution or legal proceedings shall lie against the Corporation, the Chairman of the Board, the Chief Executive, the directors, members or officers and servants of the Corporation, in respect of anything done or intended, to be done in good faith under this Ordinance.

CHAPTER III. — POWERS AND FUNCTIONS OF THE CORPORATION

18. Business which the Corporation can transact.— Without prejudice to the provisions of any other law for the time being in force and subject to the provisions of this Ordinance, the Corporation may exercise powers and functions as under: —

(a) to acquire, purchase, hold, manage, restructure, rehabilitate, sell and dispose of non-performing assets;

(b) to acquire, purchase, manage, restructure, rehabilitate, sell and dispose of any obligor being a corporation or a company;

(c) to purchase, take over, own, hold, sell, lease, arrange finance for, manage, dispose of, re-organize, restructure, rehabilitate and otherwise, enter into any settlement or contract, realize, mortgage, hypothecate, control, manage any loan, finance, advance, commitment, lease installment, sale contract or other activity relating to a non-performing asset;

(d) to purchase, take over, own, hold, sell, lease and otherwise dispose of, re-organize, restructure, rehabilitate and otherwise enter into any settlement or contract, realize, pledge, mortgage, hypothecate, control, manage and arrange finance for any asset, property, undertaking, collateral or security underlying or relating to or securing any financial asset or instrument, including any intellectual property, trade mark, equity, financial interest, legal and contractual right, asset, guarantee and other undertaking;

(e) to initiate, take, continue, resist, implement and perform any and all activities for the recovery of non- performing assets including filing suits and appeals and to enter into settlements, through the courts or outside, in respect thereof;

(f) to engage and enter into agreements with financial and other institutions, and financial, legal, accounting, valuation and other specialists, for the purposes of the business of the Corporation;

(g) to purchase, amalgamate, enter into partnerships, form joint ventures, make profit sharing arrangements or co-operate or participate with any company or other entity for the business purposes of the Corporation;

(h) to borrow money and secure or discharge any debt or obligation binding on the Corporation in such manner as may be thought fit, and in particular by mortgages of or charges upon all or any of the real and personal property, present and future, of the Corporation or by the creation and issue, on such terms as may be deemed expedient, of debentures, term finance certificates, participation term certificates, or other redeemable capital as defined in the Companies Ordinance, 1984 (XLVII of 1984) or other securities of any description;

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(i) to sell, improve, manage, develop, exchange, mortgage, let or rent (for profit or royalty or otherwise), grant licences, easements, options, servitudes and other rights over and in any other manner deal with or dispose the real and personal property, assets, rights and effects of the Corporation;

(j) to open and maintain the Corporation's accounts with banks and financial institutions and to draw, make, endorse, accept, discount, executive and issue promissory notes, bills of exchange, bills of lading, warrants, participation term certificates and other negotiable or transferable instruments;

(k) to establish or promote, or concur or participate in establishing, any corporation or other entity whose objects shall include the acquisition of all or

any of the property or liabilities of the Corporation, or the promotion of which may seem, directly or indirectly, calculated to benefit the Corporation;

(l) to enter into any agreement with any authorities, Federal, Provincial, autonomous, semi- autonomous, municipal, local or otherwise that may seem conducive to the Corporation's objects or any of them, and to obtain from any such authority, rights, privileges and concessions which the Corporation may deem desirable to obtain and to carry out, exercise and comply with any such arrangements, rights, privileges and concessions; and

(m) all powers enumerated in sub-section (3) of section 8 entrusted to the Chief Executive.

19. Corporation not to be a banking company. — Without prejudice to the provisions of section 32, the Corporation shall be deemed not to be engaged in the business of banking for purposes of the Banking Companies Ordinance, 1962 (LVII of 1962), or, as the case may be, the State Bank of Pakistan Act, 1956 (Act XXXII of 1956).

20. Financial Institutions to which the provisions of this Ordinance shall apply. — [1][The Federal Government may, by notification in the official Gazette include in the schedule the name of any financial institution as defined in sub-clause (1) of section 2.]

21. Consideration for transfer of non-performing assets. — The Corporation shall pay to the concerned financial institution the outstanding amount as consideration for the transfer of non-performing assets by mutual agreement upon such terms and conditions and in such manner as may be prescribed by rules to be notified in the official Gazette.

22. Bonds issued by the Corporation.—(1) The payment obligations in respect of any bonds issued by the Corporation pursuant to mutual agreement between the Corporation and the financial institution shall bear the full faith and credit of the Islamic Republic of Pakistan. Recourse for payment of such bonds, in accordance with their respective terms, may be against the Corporation or directly against the Federal Government without the necessity of notice to or prior demand on the Corporation. The tenure of the bonds shall not exceed five years from the date of issuance.

(2) At the request of the Corporation, the appropriate representatives of the Federal Government shall execute and deliver, on behalf of the Federal Government, any bonds presented to them by the Corporation to evidence the full faith and credit obligation of the Federal Government.

(3) Any bond issued by the Corporation to a financial institution shall also constitute an approved investment for purposes of the liquidity and reserve requirements under the Banking Companies Ordinance, 1962 (LVII of 1962).

[1]Subs. by the Corporate and Industrial Restructuring Corporation (Amdt.) Act, 2005 (3 of 2005) s. 4 for section 20.

23. Certain rights and remedies.—(1) In addition to the provisions of this Ordinance or any other law for the time being in force, the Corporation shall, for the rehabilitation, management and restructuring of the obligor in respect of whom any non-performing assets and collateral are held by it or on its behalf, have the following powers, rights and remedies, each of which shall be independent and in addition to the others, namely: —

(a) the Corporation may request the Commission as provided in section 295 of the Companies Ordinance, 1984 (XLVII of 1984) to take action under section 295 of the said Ordinance if it is of the opinion that the condition of the obligor warrants such action. The Commission may in pursuance of the said section and after complying with its requirements and giving the obligor an opportunity to be heard, appoint the Chief Executive or his nominee as an Administrator, hereinafter referred to as the Administrator, to manage the affairs of the obligor;

(b) all the provisions of section 295 of the Companies Ordinance, 1984 (XLVII of 1984) shall apply, as far as possible, to the functioning of the Administrator as stated herein; and

(c) the Corporation shall be entitled to apply to the Commission to avail the benefits of section 296 of the Companies Ordinance, 1984 (XLVII of 1984).

24. Powers of the Corporation to seek assistance.—(1) The Corporation shall have the power to seek assistance and information from any department of the Federal Government or a Provincial Government, local authority, financial institution, law enforcement agencies including the police and the Federal Investigation Agency, patwari, mukhtiarkar, registrar of assurances and the Commission and it shall be the duty of such department, local authority, financial institution, law enforcement agency, registrar of assurances and the Commission to render such assistance or furnish such information as it may reasonably require.

(2) Any information required under sub-section (1) shall only be used for the purpose of the Corporation and shall not be divulged to any other person.

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CHAPTER IV.—FINANCE

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25. Corporation Fund.—(1) There shall be a fund to be known as the "Restructuring Corporation Fund" vested in the Corporation which shall be utilised by the Corporation to meet charges in connection with its functions under this Ordinance including the payment of salaries and other remunerations to the Chief Executive and members of the Corporation and to its officers and servants.

(2) The Corporation fund shall consist of,—

(a) funds provided by the Federal Government;

(b) allocations made by the Federal Government from the Federal Consolidated Fund or any other source available with the Federal Government;

(c) loans obtained from the Federal Government;

(d) loans obtained by the Corporation with the special or general sanction of the Federal Government;

(e) foreign aid and loans obtained with the sanction of, and on such terms and conditions as may be approved by the Federal Government;

(f) recovery fees collected by the Corporation from financial institutions; and

(g) all other sums received by the Corporation including income from investments.

26. Accounts and audit.—(1) The financial year of account of the Corporation shall be the year commencing the first day of July and ending the last day of June.

(2) Subject to sub-section (1), the Corporation shall maintain its accounts in such manner as the Federal Government may, in consultation with the Auditor General of Pakistan, prescribe.

(3) The accounts of the Corporation shall be audited by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961(X of 1961), appointed by the Corporation.

27. Reserve fund. — The Corporation shall establish a reserve fund to which shall be credited its annual recoveries.

CHAPTER V. — BUDGET STATEMENT AND ANNUAL REPORT

28. Budget Statement.—(1) The Corporation shall, in respect of each financial year, prepare its own budget and submit to the Federal Government three months before the commencement of every financial year for allocation of funds required before the commencement of every financial year.

(2) The budget statement shall specifically state the estimated receipts and expenditure and the sums which are likely to be required by the Corporation from the Federal Government for the relevant financial year.

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(3) Any surplus of receipts over the actual expenditure in a year shall be remitted to the Federal Consolidated Fund and any deficit from the actual expenditure shall be made up by the Federal Government.

(4) Notwithstanding the provisions of sub-section (1) the Corporation may apply to the Federal Government for a supplementary grant during the financial year for sufficient reason.

29. Annual report to the Federal Government. — Within one hundred and eighty days of the end of each financial year of the Corporation, the Board shall prepare a presentation to the Federal Government with respect to the financial performance and results of operations of the Corporation for the preceding financial year and the overall policies and goals of the Corporation.

CHAPTER VI. — RULES AND REGULATIONS

30. Power of Federal Government to make rules. — The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

31. Power of the Board to make regulations.—(1) The Board may make regulations not inconsistent with the provisions of this Ordinance and the rules made hereunder to provide for all matters for which provision is necessary or expedient for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may provide for,—

(a) the manner and terms of issue and redemption of bonds and debentures by the Corporation;

(b) the form of returns and statements required to be prepared under this Ordinance;

(c) the duties and conduct of officers and servants and agents of the Corporation; the recruitment of officers and staff of the Corporation, the terms and conditions of their service, the constitution and management of provident or other funds for the officers and staff of the Corporation connected with any of these things;

(d) the disclosure of interest, direct or indirect of any director or any member of the Administration Committee in any financial institution or obligor;

(e) the manner in which the handing over of all original documents and files from the financial institution to the Corporation will take place; and

(f) generally for the efficient conduct of the affairs of the Corporation.

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CHAPTER VII. — RIGHTS AND REMEDIES OF CORPORATION

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32. Rights and remedies available to Corporation.—(1) In respect of any non-performing asset held by the Corporation and any collateral, the Corporation shall be entitled to exercise and shall have all rights and remedies available to a banking company under the Code of Civil Procedure (Act V of 1908), Banking Companies Ordinance, 1962 (LVII of 1962), the Offences in Respect of Banks (Special Courts) Ordinance, 1984 (IX of 1984), and the Banking Courts (Recovery of Loans, Advances, Credits and Finances) Act, 1997 (Act XV of 1997) and shall also have the rights and remedies available under the Companies Ordinance, 1984 (XLVII of 1984, XLVII of 1984), and further all recoveries by the Corporation in pursuance of this Ordinance shall be made in accordance with the aforesaid laws.

(2) It is declared that the Corporation shall be entitled to the the rights, title, interest, benefits, privileges of a financial institution as specified in the Schedule subject to the terms of mutual agreement between the Corporation and the Financial Institutions specified in the

Schedule and likewise the Corporation shall be subject to the legal liability, if any, of the Financial Institutions.

(3) All acts pursuant to and in exercise of the powers under this Ordinance and rights and remedies thereunder shall be done performed and pursued in accordance with the provisions of the prevailing law inter-alia as set out in sub-section (1).

33. Rights and remedies not exhaustive. —The rights and remedies provided to the Corporation under this Ordinance may be exercised separately or concurrently by the Corporation and are in addition to, and not in lieu or derogation of, any other rights or remedies the Corporation or any other person may legally have in respect of any non-performing assets of the obligor and any related collateral.

34. Exemption from taxes. —Notwithstanding anything contained in any other law for the time being in force, the Federal Government may exempt Corporation from the payment of, all or any other taxes, duties, levies, charges and fees payable under or pursuant to any Federal law, on its investment, income, assets or wealth.

35. Liquidation of the Corporation.—(1) The Corporation shall have a life of six years from the date of commencement of this Ordinance which may be extended further by the Federal Government by law. The Corporation may be wound up by order of the Federal Government in such manner as it may direct, or under the orders of the competent court.

(2) Notwithstanding anything contained in sub-section (1) or any other provision of this Ordinance or the agreement between the Corporation and the Financial institutions concerned and further in case the Corporation is wound up at any time prior to the expiry of the third year of its existence, all non-performing assets at that time shall be deemed transferred, assigned, sold and conveyed back hereunder to the financial institution by the Corporation with immediate effect and without the necessity of any further action or instrument.

(3) On the winding up of the Corporation, the bonds issued by the Corporation, if any under section 21, shall be deemed to be bonds as if they were issued directly by the Federal Government and the winding up of the Corporation shall in no way affect the ability of the holder of the bond to receive full payment in terms of the bond.

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CHAPTER VIII . — GENERAL

36. Limitation of liability. — The Corporation shall not have any liability to any financial institution save in accordance with law.

37. Right of recovery as arrears of land revenue. — The Corporation shall be entitled to recover all outstanding amounts, subject to law, on the basis of and under any non-performing assets held by the Corporation as if they are arrears of land revenue under the Land Revenue Act, 1967. (West Pakistan Act XVII of 1967).

38. Power to obtain information and documents etc.—(1) The Corporation may call upon any person, authority, agency, bank or financial institution to furnish any information, documents, papers and accounts it may require for the purposes of this Ordinance.

(2) Any person who does not or fails to furnish the information, documents, papers and accounts required by the Corporation under sub-section (1) shall be punishable with imprisonment of either description for a term which may extend to one year, or with fine or, with both.

39. Removal of difficulties. — If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may, by order published in the official Gazette, make such provisions not inconsistent with the provisions of this Ordinance as may appear to it to be necessary for the purpose of removing such difficulty.

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SCHEDULE

(See section 2(1) and section 20)

Name of the Financial Institution (1)	Extent of Shares/Equity of the Federal Government (2)
1. Habib Bank Limited.	100%
2. United Bank Limited.	100%
3. National Bank of Pakistan.	100%
4. National Development Finance Corporation.	100%
5. Industrial Development Bank of Pakistan.	93%
6. Agriculture Development Bank of Pakistan.	99.7%

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THE DAR-UL-MADINA INTERNATIONAL UNIVERSITY ISLAMABAD ACT, 2013

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THE DAR-UL-MADINA INTERNATIONAL UNIVERSITY ISLAMABAD ACT, 2013

ACT NO. V OF 2013

[1st March, 2013]

An Act to provide for the establishment of Dar-ul-Madina International University

WHEREAS it is expedient to provide for the establishment of Dar-ul-Madina International University and for matters ancillary thereto;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title and commencement.—(1) This Act may be called the Dar-ul-Madina International University Islamabad Act, 2013.

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(i) "Academic Council" means the Academic Council of the University;

(ii) "Affiliated institution" means educational institution authorized by Board to conduct academic programs, research and development projects and approved by the University;

(iii) "Authority" means any of the authorities of the University set up under Section 18;

(iv) "Board" means the Board of executives of the University;

(v) "Board of trustees" means the Board of trustees of the University;

(vi) "Chancellor" means the Chancellor of the University;

(vii) "College" means a constituent college;

(viii) "Commission" means the Higher Education Commission of Pakistan;

(ix) "Constituent college" means an educational institution, by whatever manner described, maintained and administered by the University;

(x) "Controller" means the head of examination department of the University;

(xi) ”Dean” means the head of a faculty of the University;

(xii) ”Department” means a teaching department of the University;

(xiii) “Director” means the head of an institute established as a constituent institute by the University;

(xiv) “Executive Committee” means the Executive Committee of the University;

(xv) ”Faculty” means an administrative and academic unit of the University consisting of one or more departments;

(xvi) “Government” means the Federal Government;

(xvii) “Institute” means an institute maintained and administered by the University;

(xviii) “Officer” means any officer of the University;

(xix) “Patron” means the Patron of the University;

(xx) “prescribed” means prescribed by the statutes, regulations or rules;

(xxi) “Professor emeritus” means a retired Professor appointed by the Chancellor on honorary basis;

(xxii) “Principal” means the head of a college;

(xxiii) “Registrar” means the Registrar of the University;

(xxiv) “Selection committee” means the selection committee set up by the Board;

(xxv) “Shariah Advisory Committee” means the Shariah Advisory Committee of the University;

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(xxvi) “Statutes”, “regulations” and “rules” means respectively the statutes, regulations and rules made under this Act;

(xxvii) “Trust” means the Dawat-e-Islami Trust;

(xxviii)“teacher” means and includes any Professor, Associate Professor, Assistant Professor and or Lecturer engaged whole-time by the University, or by a constituent college;

(xxix) “University” means the Dar-ul-Madina International University;

(xxx) “University Teacher” means a whole-time Professor, Associate Professor, Assistant Professor or Lecturer teacher appointed whole-time and paid by the University; and

(xxxi) “Vice-Chancellor” means the Vice-Chancellor of the University.

CHAPTER II
THE UNIVERSITY

3. Establishment and incorporation of the University.—(1) There shall be established a University to be called the Dar-ul-Madina International University consisting of the following, namely:—

(a) the Patron, the Chancellor, the Vice-Chancellor, the members of the Board and the Board of Trustees;

(b) the members of Executive Committee, Deans, the chairmen of the teaching departments and members of the Academic Council of the University;

(c) the members of the Executive or governors Boards, committees and other bodies as the board may establish;

(d) the members of faculties and students of the University and its constituent units in accordance with the terms prescribed from time to time, and all other; and

(e) such other officers and members of the staff as the Board may, from time to time, specify.

(2) The University shall be a body corporate by the name of Dar-ul-Madina International University having perpetual succession and a common seal, with powers, among others, to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

(3) The principal seat of the University shall be at Islamabad and it may set up his campuses, colleges, institutes, offices, research or study centers and other facilities at such places in Pakistan as well as abroad as the Board of trustees may determine. The additional campuses shall be set up in other parts of the country, and in other parts of the world.

(4) Notwithstanding anything contained in any other law for the time being in force, the University shall have academic, financial and administrative autonomy, including the powers to employ officers, teachers and other employees on such terms as may be prescribed, subject to the terms of this Act.

(5) In particular and without prejudice to the authority granted to the Commission by the law, the Government or any authority or auditor shall have no power to question the policy underlying the acquisition and allocation of resources approved by the Board in the annual budget of the University.

4. Powers and purposes of the University.—The University shall have the following powers, namely:—

(i) to promote and disseminate of knowledge and technology and to provide education, training, research demonstration and scholarship in such branches of knowledge as it may determine;

(ii) to make provisions for research, service to society and for the application, advancement and dissemination of knowledge* by employing information technology including satellite, television, internet, radio etc., or through conventional and innovative methods in all field of knowledge as it may determine by the Board of trustees;

(iii) to determine courses for study at the under graduate level in its constituent units as well as in its affiliated institutions, centers and colleges;

(iv) to prescribe courses of studies to be conducted by it and its affiliated constituent units and appropriate bodies ;

(v) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under prescribed conditions;

(vi) to prescribe the terms and conditions of employment of the officers, teachers and other employees of the University;

(vii) to affiliate itself or associate with any other institutions or universities and relevant bodies whether national or international;

(viii) to pursue and co-ordinate research innovation and development;

(ix) to use the financial and other resources allocated to it for execution of its functions;

(x) to engage, where necessary, persons on contract of specified duration and to specify the terms of each engagement;

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(xi) to confer honorary degrees or other distinctions on approved persons in the manner prescribed;

(xii) to provide for such instruction for persons not being students of the University as it may prescribe and to grant certificates and diplomas to such persons;

(xiii) to institute programs for the academic collaboration and exchange of students and teachers between the University and other universities, educational institutions and research organizations, inside as well as outside Pakistan;

(xiv) to provide career counseling and job search services to the students and alumni as it may deem fit;

(xv) to maintain linkages with alumni and the industry;

(xvi) to develop and implement fund-raising plans;

(xvii) to provide and support the academic development of the faculty of the University;

(xviii) to confer degrees on persons who have carried on independent research under prescribed conditions;

(xix) to accept the examinations passed and the period of study spent by students of the University at other universities and places of learning equivalent to such examinations and periods of study in the University, as it may prescribe, and to withdraw such acceptance;

(xx) to co-operate with other universities, public authorities or private organizations, inside as well as outside Pakistan, in such manner and for such purposes as it, may prescribe;

(xxi) to institute professorships, associate professorships, assistant professorships and lectureships and any other posts and to appoint persons thereto;

(xxii) to create posts for research, extension, administration and other related purposes and to appoint persons thereto;

(xxiii) to recognize selected members of teaching staff of colleges or educational institutions admitted to the privileges of the University or such other persons, as it may deem fit, as University teachers;

(xxiv) to institute and award financial assistance to students in need, fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(xxv) to establish teaching departments, schools, colleges, faculties, institutes, museums and other centers of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may prescribe;

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(xxvi) to affiliate and disaffiliate educational institutions or relevant organizations under prescribed conditions;

(xxvii) to inspect colleges and other educational institutions affiliated or seeking affiliation with it;

(xxviii) to maintain order, discipline and security on campuses of the University and the colleges;

(xxix) to promote extra-curricular and recreational activities of the students and to make arrangements for promoting their health and general welfare;

(xxx) to demand and receive such fees and other charges as it may determine from time to time;

(xxxi) to make provision for research, advisory or consultancy services and with these objects to enter into arrangements with other institutions, public or

private bodies, commercial and industrial enterprises under prescribed conditions;

(xxxii) to enter into, carry out, vary or cancel contracts;

(xxxiii) to receive and manage property transferred and grants, contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions in such manner as it may deem fit;

(xxxiv) to provide for the printing and publication of research and other works;

(xxxv) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite or expedient in order to further the objectives of the University as a place of education, learning and research; and

(xxxvi) to decide virtual, distance learning or online teaching methods and strategies in order to ensure the conduct of most effective educational and training programs in the light of policy on the subject made by the Commission.

5. University open to all classes, creeds, etc.—(1) The University shall be open to all persons of either gender and of whatever religion, race, creed, class, color or domicile who qualify for the admission as set forth in the rules and regulations and the criteria and the policy maintained by the body.

(2) An increase in any fee or charge that is in excess of ten percent per annum on an annualized basis from the last such increase may not be made except in special circumstances and only with approval of the Board of trustees.

(3) The University shall institute financial aid and support programs for students in need, to the extent considered feasible by the Board given the resources available, so as to enable admission and access to the University and the various opportunities provided by it to be based on merit rather than ability to pay.

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6. Teaching at the University.—(1) All recognized teaching in various courses shall be conducted by the University or the colleges in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations and other methods of instruction as well as practical work in the laboratories, hospitals, workshops and other organizations.

(2) The authority responsible for organizing recognized teaching shall be such as may be prescribed.

CHAPTER III
OFFICERS OF THE UNIVERSITY

7. Officers of the University.—The following shall be the officers of the University, namely:—

(a) Patron;

(b) Chancellor;

(c) Vice-Chancellor;

(d) Deans;

(e) Principals of the constituent colleges;

(f) Head of the teaching departments;

(g) Registrar;

(h) Treasurer;

(i) Controller of examinations; and

(j) such other persons as may be prescribed by the statutes or regulations.

8. Patron.—(1) The Patron will be appointed by Trust in the manner as may be determined by the Trust.

(2) The Patron shall, when present, preside at the convocation of the University. In the absence of the Patron, the Board may request a person of eminence or the Chancellor to preside over the convocation of the University.

(3) Every proposal to confer an honorary degree shall be subject to the confirmation by the Patron.

9. Visitation.—(1) The Patron may, in accordance with the terms and procedures as may be prescribed, cause an inspection or inquiry to be made on his own motion or at the request of the Commission in respect of any matter connected with affairs of the University and shall, from time to time, direct any person or persons to inquire into or carry out inspection of—

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(a) the University, its building, laboratories, libraries and other facilities;

(b) any institution, department or hostel maintained by the University;

(c) the adequacy of financial and human resources;

(d) the teaching, research, curriculum, examination and other matters of the University; and

(e) such other matters as the Patron may specify.

(2) The Patron shall communicate to the Board of trustees his views with regard to the result of visitation and shall, after ascertaining the views of the Board, advise the Chancellor on the action to be taken by it.

(3) The Chancellor shall, within such time as may be specified by the Patron, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of visitation.

(4) Where the Board as per Chancellor's does not, within the time specified, take action to the satisfaction of the Patron, the Patron may issue such directions as he deems fit and the Board shall comply with all such directions.

(5) The patron shall be appointed by the prescribed term from the Board of trustees and he may be removed by the Board of trustees.

10. Chancellor.—(1) The Chancellor of the University shall be appointed by the Board of trustees to hold the office at the pleasure of, and for a term determined by the Board of trustees.

(2) The Chancellor shall also act as the chairperson of the Board.

(3) The members of the Board except the Vice-Chancellor shall be appointed by the Chancellor as in the manner prescribed in accordance with this Act and the statutes.

(4) Where the Chancellor is satisfied that serious irregularity or mismanagement with respect to affairs of the University has occurred, he may,—

(a) as regards proceedings of the Board, direct that specified proceedings be reconsidered and appropriate action taken within one month of the direction having been issued; and

(b) as regards proceedings of any authority or with respect to matters within the competence of any authority other than the Board, direct the Board to exercise powers under Section 19.

(5) If the Chancellor will be incapacitated from acting as such due to absence or any other cause, the Vice-Chancellor or a nominee of the Chancellor himself, or a nominee of the Board of trustees shall act for him.

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11. Removal from the Board.—(1) The Chancellor may remove any person from membership of the Board on the ground that such person after satisfaction of Board of trustees—

(a) has become of unsound mind; or

(b) has become incapacitated to function as member of the Board; or

(c) has been convicted by a court of law for an offence involving moral turpitude; or

(d) has absented himself from two consecutive meetings without just cause; or

(e) has been guilty of misconduct, including use of position for personal advantage of any kind, or gross inefficiency in the performance of functions.

(2) The Chancellor shall remove any person from membership of the Board if he deems fit.

12. Vice-Chancellor.—(1) There shall be a Vice-Chancellor of the University who shall hold office at the pleasure of the Board of trustees. He will be an eminent academician or a distinguished administrator and shall be appointed on such terms and conditions as may be prescribed.

(2) The Vice-Chancellor shall be the chief executive officer of the University responsible for all administrative and academic, functions of the University and for ensuring that the provisions of this Act, statutes, regulations and rules are faithfully observed.

(3) The Vice-Chancellor shall, if present, be entitled to attend any meeting of any authority or body of the University.

(4) The Vice-Chancellor may, in an emergency that in his opinion requires an immediate action ordinarily not in competence of the Vice-Chancellor, take such action and report to the Board.

(5) The Vice-Chancellor shall also have the following powers, namely:--

(a) to direct teachers, officers and other employees of the University to take up such assignments in connection with examination, administration and such other activities in the University as he may consider necessary for purposes of the University;

(b) to sanction by re-appropriation an amount, not exceeding an amount prescribed by the Board, for an unforeseen item not provided for in the budget;

(c) to make appointment of such categories of employees of the University and in such manner as may be prescribed by statutes;

(d) to suspend, punish and remove from service, in accordance with prescribed procedure, officers, teachers and other employees of the University except those appointed by or with approval of the Board;

(e) to delegate, subject to such conditions as may be prescribed, any of his powers under this Act to an officer or officers of the University; and

(f) to exercise and perform such other powers and functions as may be prescribed.

13. Appointment and removal of Vice-Chancellor.—(1) The Vice-Chancellor shall be appointed by the Board of trustees on recommendations made by the selection committee.

(2) A selection committee for recommendation of person suitable for appointment as Vice-Chancellor shall be constituted by the Board of trustees on the date and in the manner prescribed by statutes.

(3) The person proposed by the selection committee for appointment as Vice-Chancellor shall be considered by the Board and shall be recommended by the Board to the Chancellor.

(4) The Vice-Chancellor shall be appointed for a renewable tenure as determined by the Board of trustees on terms and conditions prescribed by statutes. The tenure of an incumbent Vice-Chancellor shall be renewed by the Chancellor on receipt of a resolution of the Board in support of such renewal:

Provided that the Chancellor may call upon the Board to reconsider such resolution once.

(5) The Board may, pursuant to a resolution in this behalf recommend to the Chancellor the removal of the Vice-Chancellor on the ground of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantage of any kind.

(6) The Chancellor may make a reference to the Board stating about inefficiency, moral turpitude or physical or mental incapacity or gross misconduct on the part of the Vice-Chancellor that has come to his notice. After consideration of the reference, the Board may, pursuant to a resolution in this behalf recommend to the Chancellor the removal of the Vice-Chancellor:

Provided that prior to a resolution for removal of the Vice-Chancellor being voted upon, the Vice-Chancellor shall be given an opportunity of being heard.

(7) A resolution recommending removal of the Vice-Chancellor shall be submitted to the Chancellor forthwith. The Chancellor may accept the recommendation and order removal of the Vice-Chancellor or return the recommendation to the Board.

(8) At any time when office of the Vice-Chancellor is vacant or the Vice-Chancellor is absent or is unable to perform functions of his office due to illness or some other cause, the Board of trustees shall make such arrangements for performance of the duties of the Vice-Chancellor as it may deem fit.

14. Dean.—(1) There shall be a Dean of each faculty to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

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(2) The Dean shall be in charge of the faculty and shall assist the Vice-Chancellor on matters relating to teaching, research, academic program and extension of other development projects.

(3) Subject to overall supervision of the Vice-Chancellor, the Dean shall formulate and recommend to the Academic Council, rules and regulations relating to academic and research matters of the faculty.

(4) The Dean shall also have the following powers, namely:—

(a) to collaborate with universities, industry and other research organizations;

(b) to formulate recommendations to the Academic Council on the courses of study to be taught in different departments of the faculty;

(c) to co-ordinate the award of fellowships, stipends, medals and prizes;

(d) to co-ordinate the teaching and research work of the faculty;

(e) to perform such other functions and exercise such other powers as may be entrusted or delegated to him by the Board or the Vice-Chancellor; and

(f) to delegate any of his powers to appropriate levels of management, subject to such conditions as may be prescribed.

15. Registrar.—(1) There shall be a Registrar of the University to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience as well as professional and academic qualifications necessary for appointment to the post of the Registrar shall be as may be prescribed.

(3) The Registrar shall be a full-time officer of the University and shall,—

(a) be the administrative head of the secretariat of the University and be responsible for the provision of secretariat support to the authorities of the University;

(b) be the custodian of the common seal and the academic record of the University;

(c) maintain a register of registered graduates in the prescribed manner;

(d) supervise the process of election, appointment or nomination of members to the various authorities and other bodies in the prescribed manner; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Registrar shall be a renewable period of three years:

Provided that the Board may, on advice of the Vice-Chancellor, terminate appointment of the Registrar on grounds of inefficiency or misconduct in accordance with prescribed procedure.

16. Treasurer.—(1) There shall be a Treasurer of the University to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience as well as professional and academic qualifications necessary for appointment to the post of the Treasurer shall be as may be prescribed.

(3) The Treasurer shall be the chief financial officer of the University and shall:—

(a) manage the assets, liabilities, receipts, expenditures, funds and investments of the University;

(b) prepare annual and revised budget estimates of the University and present them to the Executive Committee or a committee thereof for approval and incorporation in the budget to be presented to the Board;

(c) ensure that funds of the University are expended on the purposes for which they are provided;

(d) have accounts of the University audited annually; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Treasurer shall be for a renewable period of three years:

Provided that the Board may, on advice of the Vice-Chancellor, terminate the appointment of the Treasurer on grounds of inefficiency or misconduct in accordance with prescribed procedure.

17. Controller of examinations.—(1) There shall be a Controller of examinations to be appointed by the Board on recommendation of the Vice-Chancellor on such terms and conditions as may be prescribed.

(2) The minimum qualifications necessary for appointment to the post of the Controller of examinations shall be as may be prescribed.

(3) The Controller of examinations shall be a full-time officer of the University and shall be responsible for all matters connected with the conduct of examinations and shall perform such other duties as may be prescribed.

(4) The Controller of examinations shall be appointed for a renewable term of three years:

Provided that the Chancellor may, on advice of the Vice-Chancellor, terminate appointment of the Controller of examinations on grounds of inefficiency or misconduct in accordance with prescribed procedure.

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CHAPTER IV

AUTHORITIES OF THE UNIVERSITY

18.Authorities.—The following shall be the authorities of the University, namely:—

(a) authorities established by the Act;

(i) Board of trustees;

(ii) Board;

(iii) Executive Committee; and

(iv) Academic Council; and

(b) authorities to be established by the statutes:--

(i) Board of advanced studies and research;

(ii) Board of studies;

(iii) Selection Board;

(iv) finance and planning committee;

(v) selection committee for the appointment of the Vice-Chancellor;

(vi) representation committees for appointment to the Board, Executive Committee and the Academic Council;

(vii) quality assurance committee;

(viii) discipline committee; and

(ix) such other authorities as may be prescribed by the Board.

19. Board of trustees.—The Board of trustees will be the apex authority of the University and authorized to make or change statutes, rules and regulations as it may deem fit. All the members of the Board of trustees shall be appointed by the Trust. All the decisions of the Board shall be referred to the Board of trustees for final approval. The decision of the Board of trustees shall be considered as final and cannot be challenged in any court of law.

20. Board.—(1) The body responsible for the functioning of the University shall be described as the Board and shall consist of the following, namely:—

(a) the Chancellor who shall be chairperson of the Board;

(b) the Vice-Chancellor;

(c) one member of the Government not below the rank of Additional Secretary from any Ministry of Federal Government of Pakistan;

(d) four persons from society at large being persons of distinction in the fields of administration, management, education, academics, Islamic jurisprudence, law, accountancy, medicine, fine arts, architecture, agriculture, science, technology and engineering, such that the appointment of these persons reflects a balance across the various fields:

Provided that special focus or affiliation of the University, to be declared in the manner prescribed, may be reflected in the number of persons of distinction in an area of expertise relevant to the University who are appointed to the Board;

(e) one person from amongst the alumni of the University;

(f) two persons from the academic community of the country, other than an employee of the University, at the level of professor or principal of a college;

(g) four University teachers; and

(h) one person nominated by the Commission.

(2) The number of members of the Board described under clauses (e) to (h) of sub-section (1) may be increased by the Board through statutes subject to the condition that total membership of the Board does not exceed twenty-one, with a maximum of five University teachers and the increase is balanced, to the extent possible, across different categories specified in sub-section (1).

(3) All appointments to the Board shall be made by the Chancellor. Appointment of persons described under clauses (e) and (f) of sub-section (1) shall be made from amongst a panel of three names .for each vacancy recommended by the representation committee set up in terms of Section 25 and in accordance with procedure as may be prescribed.

(4) Members of the Board, other than *ex officio* members, shall hold office for three years. One-third of the members, other than *ex officio* members, of the first restructured Board, to be determined by lot, shall retire from office on expiration of one year from the date of appointment by the Chancellor. One-half of the remaining members, other than *ex officio* members, of the first restructured Board, to be determined by lot, shall retire from office on expiration of two years from the date of appointment and the remaining one-half, other than *ex officio* members, shall retire from office on expiration of the third year.

(5) The Board shall meet at least twice in a calendar year.

(6) Service on the Board shall be on honorary basis:

Provided that actual expenses may be reimbursed as may be prescribed.

(7) The Registrar shall be Secretary of the Board.

(8) In absence of the Chancellor, meetings of the Board shall be presided over by such member, not being an employee of the University or the Government, as the Chancellor may, from time to time, nominate. The member so nominated shall be convener of the Board.

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(9) Unless otherwise prescribed by this Act, all decisions of the Board shall be taken on the basis of opinion of a majority of the members present. In the event of the members being evenly divided on any matter, the person presiding over the meeting shall have a casting vote.

(10) The quorum for a meeting of the Board shall be two thirds of its membership, a fraction being counted as one.

21. Powers and functions of the Board.—(1) The Board shall have power of general supervision over the University and shall hold the Vice-Chancellor and the authorities accountable for all functions of the University. The Board shall have all powers of the University not expressly vested in an authority or officer by this Act and all other powers not expressly provided by this Act that are necessary for performance of its functions but which are not inconsistent with the provisions of this Act or the statutes, regulations and rules made thereunder.

(2) Without prejudice to the generality of the foregoing powers, the Board shall have the following powers, namely:—

(a) to approve proposed annual plan of work, annual and revised budgets, annual report and annual statement of accounts;

(b) to hold, control and lay down policy for administration of the property, funds and investments of the University, including approval of the sale and purchase or acquisition of immovable property;

(c) to oversee quality and relevance of the University's academic programs and to review academic affairs of the University in general;

(d) to approve appointment of Deans, Professors, Associate Professors and such other senior faculty and senior administrators as may be prescribed;

(e) to institute schemes, directions and guidelines for the terms and conditions of appointment of all officers, teachers and other employees of the University;

(f) to approve the strategic plans of the University;

(g) to approve financial resource development plans of the University;

(h) to consider drafts of statutes and regulations proposed by the Executive Committee and the Academic Council and deal with them in the manner as provided for in sections 27 and 28, as the case may be:

Provided that the Board may make a statute or regulation on its own initiative and approve it after calling for advice of the Executive Committee or the Academic Council, as the case may be;

(i) to annul by order in writing the proceedings of any authority or officer if the Board is satisfied that such proceedings are not in accordance with the provisions of this Act, statutes or regulations after calling upon such authority or officer to show cause why such proceedings should not be annulled;

(j) to recommend to the Chancellor removal of any member of the Board in accordance with the provisions of this Act;

(k) to make appointment of members of the Executive Committee, other than *ex officio* members, in accordance with the provisions of this Act;

(l) to make appointment of members of the Academic Council, other than *ex officio* members, in accordance with the provisions of this Act;

(m) to appoint Professors emeritus on such terms and conditions as may be prescribed;

(n) to remove any person from membership of any authority if such person has—

(i) become of unsound mind; or

(ii) become incapacitated to function as member of such authority; or

(iii) been convicted by a court of law for an offence involving moral turpitude; and

(o) to determine the form, provide for the custody and regulate the use of the common seal of the University.

(3) The Board may, subject to the provisions of this Act delegate all or any of the powers and functions of any authority, officer or employee of the University at its main campus, to any authority, committee, officer or employee at its additional campus for the purpose of exercising such powers and performing such functions in relation to such additional campus and for this purpose the Board may create new posts or positions at the additional campus.

22. Executive Committee.—(1) There shall be an Executive Committee of the University consisting of the following, namely:—

(a) Vice-Chancellor who shall be its chairperson;

(b) Deans of faculties of the University;

(c) three Professors from different departments, who are not members of the Board, to be elected by the University teachers in accordance with procedure to be prescribed by the Board;

(d) Principals of the constituent colleges;

(e) Registrar;

(f) Treasurer;

(g) Controller of examinations; and

(h) a member of the Shariah advisory committee.

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(2) Members of the Executive Committee, other than *ex officio* members, shall hold office for three years.

(3) As regards the three Professors described in clause (c) of sub-section (1), the Board may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the representation committee set up in terms of Section 25. Appointment of persons proposed by the representation committee may be made by the Board on recommendation of the Vice-Chancellor.

(4) The quorum for a meeting of the Executive Committee shall be one-half of the total number of members, a fraction being counted as one.

(5) The Executive Committee shall meet at least once in each quarter of the year.

23. Powers and duties of the Executive Committee.—(1) The Executive Committee shall be the executive body of the University and shall, subject to the provisions of this Act and the statutes, exercise general supervision over affairs and management of the University.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act, the statutes and directions of the Board, the Executive Committee shall have the following powers to—

(a) consider annual report, annual and revised budget estimates and to submit these to the Board;

(b) transfer, and accept transfer, of movable property on behalf of the University;

(c) enter into, vary, carry out and cancel contracts on behalf of the University;

(d) cause proper books of accounts to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University;

(e) invest any money belonging to the University including any unapplied income in any of the securities described in Section 20 of the Trusts Act, 1882 (Act II of 1882) or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;

(f) receive and manage any property transferred and grants, bequests, trust, gifts, donations, endowments and other contributions made to the University;

(g) administer any funds placed at the disposal of the University for specified purposes;

(h) provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the University;

(i) establish and maintain halls of residence and hostels or approve or license hostels or lodgings for residence of students;

(j) recommend to the Board admission of educational institutions to the privileges of the University and withdraw such privileges;

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(k) arrange for the inspection of colleges and the departments;

(l) institute professorships, associate professorships, assistant professorships, lectureships and other teaching posts or to suspend or to abolish such posts;

(m) create, suspend or abolish such administrative or other posts as may be necessary;

(n) prescribe the duties of officers, teachers and other employees of the University;

(o) report to the Board on matters with respect to which it has been asked to report;

(p) appoint members to various authorities in accordance with the provisions of this Act;

(q) propose drafts of statutes for submission to the Board;

(r) regulate conduct and discipline of students of the University;

(s) take actions necessary for good administration of the University in general and to this end exercise such powers as are necessary;

(t) delegate any of its powers to any authority or officer or a committee; and

(u) perform such other functions as have been assigned to it by provisions of this Act or may be assigned to it by statutes.

24. Academic Council.—(1) There shall be an Academic Council of the University consisting of the following, namely:—

(a) Vice-Chancellor who shall be its chairperson;

(b) Deans of faculties and such heads of departments as may be prescribed;

(c) five members representing the departments, institutes and the constituent colleges to be elected in the manner prescribed by the Board;

(d) five Professors including Professors emeritus;

(e) Registrar;

(f) Controller of examinations;

(g) Librarian; and

(h) a member of the Shariah advisory committee.

(2) The Board shall appoint members of the Academic Council, other than *ex officio* and elected members, on recommendation of the Vice-Chancellor:

Provided that as regards the five Professors and the members representing the departments, institutes and the constituent colleges, the Board may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the representation committee set up in terms of Section 25. Appointment of persons proposed by the representation committee may be made by the Board on recommendation of the Vice-Chancellor.

(3) Members of the Academic Council shall hold office for three years.

(4) The Academic Council shall meet at least once in each quarter.

(5) The quorum for meetings of the Academic Council shall be one-half of the total number of members, a fraction being counted as one.

25. Powers and functions of the Academic Council.—(1) The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act and the

statutes, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the University and the colleges.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act and the statutes, the Academic Council shall have the power to—

(a) approve the policies and procedures pertaining to the quality of academic programs;

(b) approve academic programs;

(c) approve the policies and procedures pertaining to student-related functions including admissions, expulsions, punishments, examinations and certification;

(d) approve the policies and procedures assuring quality of leaching and research;

(e) propose to the Executive Committee schemes for the constitution and organization of faculties, teaching departments and Board of studies;

(f) appoint paper setters and examiners for all examinations of the University after receiving panels of names from the relevant authorities;

(g) institute programs for the continued professional development of University teachers at all levels;

(h) recognize examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;

(i) regulate award of studentships, scholarships, exhibitions, medals and prizes;

(j) make regulations for submission to the Board;

(k) prepare an annual report on academic performance of the University; and

(l) perform such functions as may be prescribed by regulations.

26. Representation committees.—(1) There shall be a representation committee constituted by the Board through statutes for recommendation of persons for appointment to the Board in accordance with the provisions of Section 19.

(2) There shall also be a representation committee constituted by the Board of trustees through statutes for recommendation of persons for appointment to the Executive Committee and the Academic Council in accordance with the provisions of sections 22 and 24.

(3) Members of the representation committee for appointment to the shall consist of the following, namely:—

(a) three members of the Board who are not University teachers;

(b) two persons nominated from amongst the University teachers;

(c) one person from the academic community, not employed by the University, at the level of professor or college principal to be nominated by the University teachers in the manner prescribed;

(d) one eminent citizen with experience in administration, philanthropy, development work, law or accountancy; and

(e) a member of the Shariah advisory committee.

(4) The representation committee for appointments to the Executive Committee and the Academic Council shall consist of the following, namely:—

(a) two members of the Board who are not University teachers; and

(b) three persons nominated from amongst the University teachers.

(5) The tenure of the representation committees shall be determined by the Board of trustees.

(6) The procedures of the representation committees shall be as may be prescribed.

(7) There may also be such other representation committees set up by any of the other authorities of the University as are considered appropriate for recommending persons for appointment to the various authorities and other bodies of the University.

27. Appointment of committees by certain authorities.—The Board of trustees, Board, the Executive Committee, the Academic Council and other authorities may, from time to time, appoint such standing, special or advisory committees, as they may deem fit, and may place on such committee persons who are not members of the authorities appointing the committees.

28. Shariah advisory committee.—The Chancellor will appoint three members of this committee headed by a competent Mufti or scholar in Islamic jurisprudence. The Shariah advisory committee will give its recommendations in the light of Islamic Shariah on any matter referred to it by any of the committees mentioned herein above in this Act for consideration and taking decision on a compliant with regard to Islamic jurisprudence.

CHAPTER V

STATUTES, REGULATIONS AND RULES

29. Statutes.—(1) Subject to the provisions of this Act, statutes, to be published in the official Gazette, may be made to regulate or prescribe all or any of the following matters, namely:—

(a) the contents of and the manner in which the annual report to be presented by the Vice-Chancellor before the Board shall be prepared;

(b) the University fees and other charges;

(c) scales of pay and other terms and conditions of service of officers, teachers and other University employees;

(d) maintenance of the register of registered graduates;

(e) admission of educational institutions to the privileges of the University and the withdrawal of such privileges;

(f) establishment of faculties, departments, institutes, colleges, study centers and other academic divisions;

(g) powers and duties of officers and teachers;

(h) conditions under which the University may enter into arrangements with other institutions or with public bodies for purposes of research and advisory services;

(i) conditions for appointment of emeritus Professors and award of honorary degrees;

(j) efficiency and discipline of University employees;

(k) constitution and procedure to be followed by the representation committees in carrying out functions in terms of this Act;

(l) constitution and procedure to be followed by the search committee for appointment of the Vice-Chancellor;

(m) constitution, functions and powers of the authorities of the University; and

(n) all other matters which by this Act are to be or may be prescribed or regulated by statutes.

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(2) The draft of statutes shall be proposed by the Executive Committee to the Board which may approve or pass with such modifications as the Board may think fit or may refer back to the Executive Committee, as the case may be, for reconsideration of the proposed draft:

Provided that statutes concerning any of the matters mentioned in clauses (a) and (I) of sub-section (1) shall be initiated and approved by the Board, after seeking views of the Executive Committee:

Provided further that the Board of trustees may initiate a statute with respect to any matter in its power or with respect to which a statute may be made in terms of this Act and approve such statute after seeking views of the Board and the Executive Committee.

30. Regulations.—(1) Subject to the provisions of this Act and the statues, the Academic Council may make regulations, to be published in the official Gazette, for all or any of the following matters, namely:—

(a) courses of study for degrees, diplomas and certificates of the University;

(b) manner in which the teaching referred to in sub-section (1) of Section 6 shall be organized and conducted;

(c) admission and expulsion of students to and from the University;

(d) conditions under which students shall be admitted to the courses and examinations of the University and shall become eligible for award of degrees, diplomas and certificates;

(e) conduct of examinations;

(f) conditions under which a person may carry on independent research to entitle him to a degree;

(g) institution of fellowships, scholarships, exhibitions, medals and prizes;

(h) use of the library;

(i) formation of faculties, departments and Board of studies; and

(j) all other matters which by this Act or the statutes are to be or may be prescribed by regulations.

(2) Regulations shall be proposed by the Academic Council and shall be submitted to the Board which may approve them or withhold approval or refer them back to the Academic Council for reconsideration. A regulation proposed by the Academic Council shall not be effective unless it receives approval of the Board.

(3) Regulations regarding or incidental to matters contained in clauses (g) and (i) of sub-section (1) shall not be submitted to the Board without prior approval of the Executive Committee.

31. Amendment and repeal of statutes and regulations.—The procedure for adding to, amending or repealing the statutes and the regulations shall be the same as that prescribed respectively for framing or making Statutes and Regulations.

32. Rules.—(1) The authorities and other bodies of the University may make rules, to be published in the official Gazette, consistent with this Act, statutes and the regulations, to regulate any matter relating to affairs of the University which has not been provided for under this Act or that is not required to be regulated by statutes and regulations, including rules to regulate the conduct of business and the time and place of meetings and related matters.

(2) Rules shall become effective upon approval by the Executive Committee and the Shariah advisory committee.

CHAPTER VI

UNIVERSITY FUND

33. University fund.—(1) The University shall have a fund to which shall be credited its income from fees, donations, trusts, bequests, endowments, grants, contributions and all other sources.

(2) Capital recurrent expenditure of the University shall be met from contributions made by the Board and any other source, including other foundations, universities and individuals and from the income derived from such sources.

(3) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability for the University, shall be accepted without prior approval of the Board.

34. Audit and accounts.—(1) The accounts of the University shall be maintained in such form and manner as may be determined by the Board and shall work under the Finance and Planning committee. The committee shall consist of Vice-Chancellor, all the Deans, one member of the Board nominated by the Board, one nominee of the Academic Council and one member of the independent auditor. The quorum of the meeting shall be five and term of nominated members will be three years. The Director finance shall be the Secretary of the Finance and Planning Committee.

(2) Function of committee shall be to prepare the annual statement of accounts, propose and annual budget estimates and advice to the Board thereon, review periodically the financial position of the university and advice the Board on all matters related to finance, investment and accounts of the university and perform such other functions as may be prescribed by the statutes.

CHAPTER VII

GENERAL PROVISIONS

35. Commencement of term of members of authorities.—(1) When a member of an authority is elected, appointed or nominated, his term of office, as fixed under this Act shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remained absent from the University for a period of not less than six months, he shall be deemed to have resigned and vacated his scat.

36. Disputes about membership of authorities.—(1) Notwithstanding anything contained in this Act, a person nominated or appointed to any authority shall cease to be member of such authority as soon as he ceases to hold the position by virtue of which he was nominated or appointed.

(2) If a question arises whether any person is entitled to be a member of any authority, the matter shall be referred to a committee consisting of the Chancellor, two nominees of the Board and a nominee of the Vice-Chancellor and decision of the committee thereon shall be final and binding.

37. Proceedings of authorities not invalidated by vacancies.—No act, resolution or decision of any authority shall be invalid by reason of any vacancy on the authority doing, passing or making it or by reason of any want of qualification or appointment or nomination of any *de facto* member or the authority, whether present or absent.

38. Removal of difficulties.—If any difficulty arises as to the first constitution or reconstitution of any authority upon coming into force of this Act or otherwise in giving effect to any provision of this Act, the Patron may give appropriate directions to remove such difficulty.

39. Indemnity.—No suit or legal proceedings shall lie against the Government, the University or any authority or employee of the University or any person, in respect of anything which is done or purported to have been done in good faith under this Act.

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THE ESTABLISHMENT OF THE OFFICE OF FEDERAL TAX OMBUDSMAN ORDINANCE, 2000

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THE ESTABLISHMENT OF THE OFFICE OF FEDERAL TAX OMBUDSMAN ORDINANCE, 2000

ORDINANCE No. XXXV of 2000

[11th August, 2000]

An Ordinance to provide for the appointment of the Federal Tax Ombudsman

WHEREAS, it is expedient to provide for the appointment of the Federal Tax Ombudsman to diagnose, investigate, redress and rectify any injustice done to a person through maladministration by functionaries administering tax laws;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

NOW, THEREFORE, in pursuance of the aforesaid Proclamation of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement:— (1) This Ordinance may be called the Establishment of the Office of Federal Tax Ombudsman Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions:— In this Ordinance, unless there is anything repugnant in the subject or context,—

(1)”Federal Tax Ombudsman" means the Federal Tax Ombudsman appointed under section-3;

(2)”Inspection Team" means the Inspection Team constituted under section 17;

(3)”maladministration" includes,—

(i) a decision, process, recommendation, act of omission or commission which—

(a) is contrary to law, rules or regulations or is a departure from established practice or procedure, unless it is bona fide and for valid reasons;

(b) is perverse, arbitrary or unreasonable, unjust, biased, oppressive, or discriminatory;

(c) is based on irrelevant grounds; or

(d) involves the exercise of powers, or the failure or refusal to do so, for corrupt or improper motives, such as bribery, jobbery, favouritism, nepotism and administrative excesses;

(ii) neglect, inattention, delay, incompetence, inefficiency and ineptitude, in the administration or discharge of duties and responsibilities;

(iii) repeated notices, unnecessary attendance or prolonged hearings while deciding cases involving—

(a) assessment of income or wealth;

(b) determination of liability of tax or duty;

(c) classification or valuation of goods;

(d) settlement of claims of refund, rebate or duty drawback; or

(e) determination of fiscal and tax concessions or exemptions.

(iv) wilful errors in the determination of refunds, rebates or duty drawbacks;

(v) deliberate withholding or non-payment of refunds, rebates or duty drawbacks already determined by the competent authority;

(vi) coercive methods of tax recovery in cases where default in payment of tax or duty is not apparent from record; and

(vii) avoidance of disciplinary action against an officer or official whose order of assessment or valuation is held by a competent appellate authority to be vindictive, capricious, biased or patently illegal.

(4) "Office" means the office of the Federal Tax Ombudsman.

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(5) "prescribed" means prescribed by rules made under this Ordinance.

(6) "Relevant Legislation" means—

(i) the Provisional Collection of Taxes Act 1931; (XVI of 1931)

(ii) the Commercial Documents Evidence Act, 1939; (XXX of 1939)

(iii) the Central Excises Act, 1944; (I of 1944)

(iv) the Wealth Tax Act, 1963; (XV of 1963)

(v) the Customs Act, 1969; (IV of 1969)

(vi) the Worker's Welfare Fund Ordinance, 1971; (XXXVI of 1971)

(vii) the Prevention of Smuggling Act, 1977; (XII of 1977)

(viii) the Income Tax Ordinance, 1979; (XXXI of 1979)

(ix) the Import of goods (Anti-dumping and Countervailing Duties) Ordinance, 1983; (III of 1983)

(x) section 7 of the Finance Act, 1989; (V of 1989)

(xi) the Sales Tax Act, 1990; (XII of 1991)

(xii) section 12 of the Finance Act, 1991;

(xiii) such other laws having nexus with taxation as the Federal Government may, by notification in the official Gazette, specify to be the Relevant Legislation for the purposes of this Ordinance; and

(xiv) the rules, regulations and notifications, made or issued thereunder.

(7)"Revenue Division" means the administrative unit responsible for the conduct of business of the Federal Government in matters relating directly or indirectly with the collection of revenue from federal taxes, levy of taxes, duties, cesses or fees and declared as such by the Federal Government, and includes all its subordinate departments, offices and agencies;

(8)"Staff Member" means any officer or employee of the Office appointed under section 8 and includes advisers, commissioners, consultants, experts, fellows, interns, liaison officers, bailiffs and other staff appointed under section 20;

(9)"Standing or Advisory Committee" means a Standing or advisory Committee established under section 18; and

(10) 'Tax Employee" means an employee of the Revenue Division and includes an officer and any other functionary serving in, or any office subordinate to, the said Division.

3. Appointment of Federal Tax Ombudsman:— (1) There shall be a Federal Tax Ombudsman who shall be appointed by the President.

(2) Before entering upon office, the Federal Tax Ombudsman shall make oath before the President in the form set out in the Schedule to this Ordinance.

(3) The Federal Tax Ombudsman shall, in all matters, perform his functions ad exercise his powers fairly, honestly, diligently and independently of the executive and all executive authorities throughout Pakistan shall act in aid of the Federal Tax Ombudsman.

4. Tenure of the Federal Tax Ombudsman:— (I) The Federal Tax Ombudsman shall hold office for a period of four years and shall not be eligible for any extension of tenure or reappointment as Federal Tax Ombudsman. .

(2) The Federal Tax Ombudsman may resign his office by writing under his hand addressed to the President.

5. Federal Tax Ombudsman not to hold any other office of profit, etc:— (1) The Federal Tax Ombudsman shall not—

(a) hold any other office of profit in the service of Pakistan; or

(b) hold any other position carrying the right to remuneration for rendering of services.

(2) The Federal Tax Ombudsman shall not hold any office of profit in the service of Pakistan before the expiration of two years after he has ceased to hold that office; nor shall he be eligible during the tenure of office and for a period of two years thereafter for election as a member of Majlis-e-Shoora (Parliament) or a Provincial Assembly or any local body or take part in any political activity.

6. Terms and conditions of service and remuneration of Federal Tax Ombudsman:— (1) The Federal Tax Ombudsman shall be entitled to such salary, allowances and privileges and other terms and conditions of service as the President may determine and these terms shall not be varied during the term of office of a Federal Tax Ombudsman.

(2) The Federal Tax Ombudsman may be removed from office by the President on grounds of misconduct or of being incapable of properly performing the duties of his office for reasons of physical or mental incapacity:

Provided that the Federal Tax Ombudsman may, if he sees fit and appropriate to refute any charges, request an open public evidentiary hearing before the Supreme Judicial Council and, if such a hearing is not held within thirty days of the receipt of such request or not concluded within ninety days of its receipts, the Federal Tax Ombudsman well be absolved of any charge whatever. In such circumstances, the Federal Tax Ombudsman may choose to leave his office and shall be entitled to receive full remuneration and benefits for the rest of his term.

(3) If the Federal Tax Ombudsman makes a request under the proviso to sub-section (2), he shall not perform his functions under this Ordinance until the hearing before the Supreme Judicial Council has concluded.

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(4) A Federal Tax Ombudsman removed from office on the ground of misconduct shall not be eligible to hold any office of profit in the service of Pakistan or for election as a member of Majlise-Shoora (Parliament) or a Provincial Assembly or any local body.

7. Acting Federal Tax Ombudsman:— At any time when the office of Federal Tax Ombudsman is vacant, or the Federal Tax Ombudsman is absent or is unable to perform his functions due to any cause, the President shall appoint an acting Federal Tax Ombudsman.

8. Terms and conditions of service of staff:— Subject to the provision of section 20, the Staff Members shall be entitled to such salary, allowances and other terms and conditions of service as may be prescribed having regard to the salary, allowances and other terms and conditions of service that may for the time being be admissible to other employees of the Federal government in the corresponding Basic Pay Scales.

9. Jurisdiction, functions and powers of the Federal Tax Ombudsman:— (1) Subject to Sub –section (2). the Federal Tax Ombudsman may on a complaint by any aggrieved person, or on a

reference by the President, the Senate or the National Assembly, as the case may be, or on a motion of the Supreme Court or a High Court made during the course of any proceedings before it or of his own motion, investigate any allegation of maladministration on the part of the Revenue Division or any Tax Employee.

(2) The Federal Tax Ombudsman shall not have jurisdiction to investigate or inquire into matters which—

(a) are *sub judice* before a court of competent jurisdiction or tribunal or board or authority on the date of the receipt of a complaint, reference or motion by him; or

(b) relate to assessment of income or wealth, determination of liability of tax or duty, classification or valuation of goods, interpretation of law, rules and regulations relating to such assessment, determination, classification or valuation in respect of which legal remedies of appeal, review or revision are available under the Relevant Legislation.

(3) Notwithstanding anything contained in sub-section (1), the Federal Tax Ombudsman shall not accept for investigation any complaint by or on behalf of a Tax Employee concerning matters relating to the Revenue Division in respect of any personal grievance relating to his service.

(4) For carrying out the objectives of this Ordinance and, in particular for ascertaining the causes of corrupt practices and injustice, the Federal Tax Ombudsman may arrange for studies to be made or research to be conducted and may recommend appropriate steps for their eradication.

(5) The Federal Tax Ombudsman may set up regional offices as, when and where required

10. Procedure and evidence:—(1) A complaint shall be made in writing on solemn affirmation or oath and shall be addressed to the Federal Tax Ombudsman by the person aggrieved or, in the case of his death, by his legal representative and may be lodged in person at the office or handed over to the Federal Tax Ombudsman in person or sent by any other means of communication to the Office.

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(2) The Federal Tax Ombudsman shall not entertain anonymous or pseudonymous complaints.

(3) A complaint shall be made not later than six months from the day on which the person aggrieved first had the notice of the matter alleged in the complaint, but the Federal Tax Ombudsman may conduct any investigation pursuant to a complaint which is not within time if he considers that there are special circumstances which he deems proper in he interest of justice to entertain the complaint.

(4) When the Federal Tax Ombudsman proposes to conduct an investigation he shall issue to the Secretary of the Revenue Division, and to the person who is alleged in the complaint to have taken or authorised the action complained of, a notice calling upon him to reply to the allegations contained in the complaint:

Provided that the Federal Tax Ombudsman may proceed with the investigation if no response to the notice is received by him from the Secretary or other person within thirty days of the receipt of

the notice or within such longer period as may be allowed by the Federal Tax Ombudsman, for sufficient cause to be recorded.

(5) Every investigation shall be conducted in private, but the Federal Tax Ombudsman may adopt such procedure as he considers appropriate for such investigation and he may obtain information from such persons and in such manner and make such inquiries as he thinks fit.

(6) A person shall be entitled to appear in person or be represented before the Federal Tax Ombudsman.

(7) The Federal Tax Ombudsman shall, in accordance with the rules made under this Ordinance, pay expenses and allowances to any persons who attends or furnishes information for the purposes of any investigation.

(8) The conduct of an investigation shall not affect any action taken by the Revenue Division, or any power or duty of the Revenue Division to take further action with respect of any matter subject to the investigation.

(9) For the purposes of an investigation under this Ordinance, the Federal Tax Ombudsman may require any Tax Employee to furnish any information or to produce any document which in the opinion of the Federal Tax Ombudsman is relevant and helpful in the conduct of the investigation, and there shall be no obligation to maintain secrecy in respect of disclosure of any information or document for the purposes of such investigation.

(10) In any case where the Federal Tax Ombudsman decides not to conduct an investigation, he shall send to the complainant a statement of his reasons for not conducting the investigation.

(11) Save as provided in this Ordinance, the Federal Tax Ombudsman shall regulate the procedure for the conduct of business or the exercise of powers under this Ordinance.

11. Recommendations for implementation:— (1) If the Federal Tax Ombudsman is of opinion that the matter considered amounts to maladministration, he shall communicate his finding with a recommendation to the Revenue Division within a period of sixty days from the date of receipt of the complaint, reference or motion, as the case may be.

(2) The Revenue Division shall, within such time as may be specified by the Federal Tax Ombudsman, inform him about the action taken on his recommendations or the reasons for not complying with the same.

(3) In any case where the Federal Tax Ombudsman has considered a matter, or conducted an investigation, on a complaint or on a reference by the President, the Senate or the National Assembly or on a motion by the Supreme Court or a High Court, the Federal Tax Ombudsman shall forward a copy of the communication received by him from the Revenue Division in pursuance of sub-section (2) to the complainant or, as the case may be, the President, the Senate, the National Assembly, the Supreme Court or the High Court.

(4) If, after conducting an investigation, it appears to the Federal Tax Ombudsman that an injustice has been caused to the person aggrieved in consequence of maladministration and that the

injustice has not been or will not be remedied, he may, if he thinks fit lay, a special report on the case before the President.

(5) If the Revenue Division does not comply with the recommendations of the Federal Tax Ombudsman or does not give reasons to the satisfaction of the Federal Tax Ombudsman for non-compliance, it shall be treated as"Defiance of Recommendations" and shall be dealt with as hereinafter provided.

12. Defiance of Recommendations:— (1) If there is a "Defiance of Recommendations" by a Tax Employee with regard to the implementation of a recommendation given by the Federal Tax Ombudsman, the Federal Tax Ombudsman may refer the matter to the President who may, in his discretion, direct the Revenue Division to implement the recommendation and inform the Federal Tax Ombudsman accordingly.

(2) It shall be the duty of the Revenue Division and the Tax Employee to implement the finding made under sections 11 and 12 within thirty days of such decision being communicated to the concerned Tax Employee. In each instance of"Defiance of Recommendations", a report by the Federal Tax Ombudsman shall become a part of the personal file or character roll of the Tax Employee primarily responsible for the defence, and such Tax Employee shall be liable for contempt as provided hereafter in section 16:

Provided that the Tax Employee concerned had been granted an opportunity to be heard in the matter.

13. Reference by Federal Tax Ombudsman. Where, during or after an investigation, the Federal Tax Ombudsman is satisfied that any person is guilty of any allegations as referred to in subsection (1) of section 9, the Federal Tax Ombudsman may refer the case to the Revenue Division for appropriate corrective or disciplinary action, or both corrective and disciplinary action, and the Revenue Division shall inform the Federal Tax Ombudsman within thirty days of the receipt of reference of the action taken. If no information is received within this period, the Federal Tax Ombudsman may bring the matter to the notice of the President for such action as he may deem fit, besides action for contempt under section 16 hereof.

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14. Powers of the Federal Tax Ombudsman:— (1) The Federal Tax Ombudsman shall, for the purposes of this Ordinance, have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 (Act V of 1908) in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) compelling the production of documents;

(c) receiving evidence on affidavits; and

(d) issuing commission for the examination of witnesses.

(2) The Federal Tax Ombudsman shall have the power to require any person to furnish information on such points or matters as, in the opinion of the Federal Tax Ombudsman, may be useful for, or relevant to, the subject matter of any investigation.

(3) The powers referred to in sub-section (1) may be exercised by the Federal Tax Ombudsman or any person authorised in writing by the Federal Tax Ombudsman in this behalf while carrying out an investigation under the provisions of this Ordinance.

(4) Where the Federal Tax Ombudsman finds the complaint referred to in sub-section (1) of section 9 to be false, frivolous or vexatious, he may award reasonable compensation to the Revenue Division or Tax Employee against whom the complaint was made. The amount of such compensation shall be recoverable from the complainant as an arrear of land revenue:

Provided that the award of compensation under this subsection shall not debar the aggrieved person from seeking civil and criminal remedy.

(5) If the Revenue Division or Tax Employee fails to comply with the order of the Federal Tax Ombudsman, he may, in addition to taking other actions under this Ordinance, refer the matter to the appropriate authority for taking disciplinary action against the person who disregarded the order of the Federal Tax Ombudsman.

(6) If the Federal Tax Ombudsman has reason to believe that any Tax Employee has acted in a manner warranting criminal or disciplinary proceedings against him, he may refer the matter to the appropriate authority for necessary action to be taken within the time specified by the Federal Tax Ombudsman.

(7) The Staff Members and nominees of the Office may be commissioned by the Federal Tax Ombudsman to administer oaths for the purposes of this Ordinance and to attest various affidavits, affirmations or declarations which shall be admitted in evidence in all proceedings under this Ordinance without proof of the signature or seal or official character of such person.

(8) The Federal Tax Ombudsman shall have the power to review any finding communicated or recommendation made or any order passed by him.

15. Power to enter and search any premises:— (1) The Federal Tax Ombudsman, or any Staff Member authorised in this behalf, may, for the purpose of making any investigation, enter any premises where the Federal Tax Ombudsman or, as the case may be, such member has reason to believe that any article, book of accounts, or any other document relating to the subject matter of investigation may be found, and may—

(a) search such premises and inspect any article, book of accounts or other document;

(b) take extracts or copies of such books of accounts and documents;

(c) impound or seal such articles, books of accounts or documents; and

(d) make any inventory of such articles, books of accounts and other documents found in such premises.

(2) All searches made under sub-section (1) shall be carried out, mutatis mutandis, in accordance with the provisions of the Code of Criminal Procedure, 1898. (Act V of 1898)

16. Power to punish for contempt:— (1) The Federal Tax Ombudsman shall have the same powers, *mutatis mutandis*, as the Supreme Court has to punish any person for its contempt who—

(a) abuses, interferes with, impedes, imperials, or obstructs the process of the Federal Tax Ombudsman in any way or disobeys any order of the Federal Tax Ombudsman;

(b) scandalises the Federal Tax Ombudsman or otherwise does anything which tends to bring the Federal Tax Ombudsman, Staff Members, nominees of the Office, or any person authorised by the Federal Tax Ombudsman in relation to his office into hatred, ridicule or contempt;

(c) does anything which tends to prejudice the determination of a matter pending before the Federal Tax Ombudsman; or

(d) does any other thing which, by any other law, constitutes contempt of court:

Provided that fair comments made in good faith and in public interest on the working of the Federal Tax Ombudsman or any Staff Member, or on the final report of the Federal Tax Ombudsman after the completion of the investigation shall not constitute contempt of the Federal Tax Ombudsman or his Office.

(2) Any person sentenced under sub-section (1) may, notwithstanding anything herein contained, within thirty days of the passing of the order, appeal to the Supreme Court.

(3) Nothing contained in this section takes away the power of the President to grant pardon, reprieve, or respite and to remit, suspend or commute any sentence passed by any court, tribunal or other, authority, under this section.

17. Inspection Team:— (1) The Federal Tax Ombudsman may constitute an Inspection Team for the performance of any of the functions of the Federal Tax Ombudsman.

(2) The Inspection Team shall consist of one or more Staff Members and shall be assisted by such other person or persons, is the Federal Tax Ombudsman may consider necessary.

(3) The Inspection Team shall exercise such of the powers of the Federal Tax Ombudsman as he may specify by order in writing and every report of the Inspection Team shall first be submitted to the Federal Tax Ombudsman with its recommendations for appropriate action.

18. Standing or advisory committees:— The Federal Tax Ombudsman may, whenever he thinks fit, establish standing or advisory committees at specified places with specified jurisdiction for performing such functions of the Federal Tax Ombudsman as are assigned to them from time to time and every report of such committee shall first be submitted to the Federal Tax Ombudsman with its recommendations for appropriate action.

19. Delegation of powers:— The Federal Tax Ombudsman may, by order in writing, delegate such of his powers as may be specified in the order to any Staff Member or to a Standing or Advisory Committee, to be exercised subject to such conditions as may be specified, and every report of such

member or committee shall first be submitted to the Federal Tax Ombudsman with his or its recommendations for appropriate action.

20. Appointment of advisers and other staff:— (1) The Federal Tax Ombudsman may appoint advisers, commissioners, consultants, experts, fellows, interns, liaison officers, bailiffs, and other staff, with or without remuneration, to assist him in the discharge of his duties under this Ordinance.

(2) The Federal Tax Ombudsman may, in his discretion, fix an honorarium or remuneration of advisers, commissioners, consultants, experts, fellows, interns, liaison officers, bailiffs, and other staff, engaged by him from time to time for the services rendered.

21. Authorisation of provincial functionaries:— The Federal Tax Ombudsman may, if he considers it expedient, authorise, with the consent of a Provincial Government any agency, public servant or other functionary working under the administrative control of the Provincial Government to undertake the functions of the Federal Tax Ombudsman under sub-section (1) or sub-section (2) of section 14 in respect of any matter falling within the jurisdiction of the Federal Tax Ombudsman; and it shall be the duty of the agency, public servant or other functionary so authorised to undertake such functions to such extent and subject to such conditions as the Federal Tax Ombudsman may specify.

22. Award of costs and compensation and refunds of amounts:— (1)The Federal Tax Ombudsman—(1) may, where he deems necessary, call upon a Tax Employee or the Revenue Division to show cause why compensation be not awarded to an aggrieved party for any loss or damage suffered by him on account of any maladministration committed by such Tax Employee or Revenue Division, and after considering the explanation, and hearing such Tax Employee or Revenue Division, award reasonable costs or compensation and the same shall be recoverable as arrears of land revenue from the Tax Employee or Revenue Division.

(2) In cases involving payment of illegal gratification to any Tax Employee, or to any other person on his behalf, or misappropriation, criminal breach of trust or cheating, the Federal Tax Ombudsman may order the payment thereof for credit to the government or pass such other order as he may deem fit.

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(3) An order made under sub-section

(2) against any person shall not absolve such person of any liability under any other law.

23. Assistance and advice to Federal Tax Ombudsman:— (1) The Federal Tax Ombudsman may seek the assistance of any person, officer or authority for the performance of his functions under this Ordinance.

(2) All Staff Members and any other person or authority whose assistance has been sought by the Federal Tax Ombudsman in the, performance of his functions shall render such assistance to the extent it is within their power or capacity.

(3) No statement made by a person or authority in the course of giving evidence before the Federal Tax Ombudsman or any Staff Member shall subject him to, or be used against him in any civil or criminal proceedings except for prosecution of such person for giving false evidence.

24. Conduct of business:— (1) The Federal Tax Ombudsman shall be the chief executive of the Office.

(2) The Federal Tax Ombudsman shall be the Principal Accounting Officer of the Office in respect of the expenditure incurred against budget grant or grants controlled by the Federal Tax Ombudsman and shall, for this purpose, exercise all the financial and administrative powers delegated to a ministry or division.

25. Requirement of affidavits:—(1) The Federal Tax Ombudsman may require any complainant or any party connected or concerned with a complaint, or with any inquiry or reference, to submit affidavit attested or notarised before any competent authority in that behalf within the time prescribed by the Federal Tax Ombudsman or any Staff Member.

(2) The Federal Tax Ombudsman may take evidence without technicalities and may also require complainants or witnesses to take lie detection tests to examine their veracity and credibility and draw such inferences that are reasonable in all circumstances of the case, especially when a person refuses, without reasonable justification, to submit to such tests.

26. Reward and remuneration:—(1) The Federal Tax Ombudsman may, in his discretion, fix the honorarium or remuneration of advisers, consultants, and experts engaged by him from time to time for services rendered.

(2) The Federal Tax Ombudsman may, in his discretion, fix a reward or remuneration to be paid to any person for exceptional services rendered or valuable assistance given to the Federal Tax Ombudsman in carrying out his functions:

Provided that the Federal Tax Ombudsman shall withhold the identity of the person, if so requested by the person concerned, and take steps to provide due protection under the law to such person against harassment, victimisation, retribution, reprisals or retaliation.

27. Federal Tax Ombudsman and Staff Members to be public servants:— The Federal Tax Ombudsman and Staff Members shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code. (Act XLV of 1860)

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28. Annual and other reports:— (1) Within three months of the conclusion of the calendar year to which the report pertains, the Federal Tax Ombudsman shall submit an Annual Report to the President.

(2) The Federal Tax Ombudsman may, from time to time, lay before the President such other reports relating to his functions as he may think proper or as may be desired by the President. .

(3) Simultaneously, the Federal Tax Ombudsman shall release such reports for publication and copies thereof shall be provided to the public at reasonable cost.

(4) The Federal Tax Ombudsman may also, from time to time, make public any of his studies, research, conclusions, recommendations, ideas or suggestions in respect of any matters being dealt with by the Office.

(5) The report and other documents mentioned in this section shall be placed before the Senate or the National Assembly, as the case may be.

29. Bar of jurisdiction:— No court or other authority shall have jurisdiction to—

(a) question the validity of any action taken, or intended to be taken, or order made, or anything done or purporting to have been taken, made or done under this Ordinance; or

(b) grant an injunction or stay or to make any interim order in relation to any proceedings before, or anything done or intended to be done or purporting to have been done by, or under the orders or at the instance of the Federal Tax Ombudsman.

30. Immunity:— No suit, prosecution or other legal proceeding shall lie against the Federal Tax Ombudsman, Staff Members, Inspection Team, members of a Standing or Advisory Committee, nominees of the Office, or any person authorised by the Federal Tax Ombudsman for anything which is in good faith done or intended to be done under this Ordinance.

31. Reference by President:— (1)The President may refer any matter, report or complaint for investigation and independent recommendation by the Federal Tax Ombudsman.

(2) The Federal Tax Ombudsman shall promptly investigate any such matter, report or complaint and submit his finding within a reasonable time.

32. Representation to President:— The Revenue Division or any person aggrieved by a recommendation of the Federal Tax Ombudsman may, within thirty days of the recommendation, make a representation to the President who may pass such order thereon as he may deem fit.

33. Informal resolution of disputes:— (1) Notwithstanding anything contained in this Ordinance, the Federal Tax Ombudsman and authorised Staff Members shall have the authority to informally conciliate, amicably resolve, stipulate, settle or ameliorate any grievance without written memorandum and without the necessity of docketing any complaint or issuing any official notice.

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(2) The Federal Tax Ombudsman may appoint for purposes of liaison counselors, whether honorary or otherwise, at local levels on such terms and conditions, as the Federal Tax Ombudsman may deem proper.

34. Service of process:— (1) For the purposes of this Ordinance, a written process or communication from the Office shall be deemed to have been duly served upon a respondent of any other person by, *inter alia*, any one or more of the following methods, namely:—

(a) by service in person through any Staff Member or by any special process-server appointed in the name of the Federal Tax Ombudsman by any authorised Staff Member, or any other person authorised in this behalf;

(b) by depositing in any mail box or posting in any Post Office a postage-prepaid copy of the process, or any other document under certificate of posting or by registered post acknowledgement due to the last known address of the

respondent or person concerned in the record of the office, in which case service shall be deemed to have been effected ten days after the aforesaid mailing;

(c) by a police officer or any Staff Member or nominee of the Office leaving the process or document at the last known address, abode, or place of business of the respondent or person concerned and, if no one is available at the aforementioned address, premises or place, by affixing a copy of the process or other document to the main entrance of such address; and

(d) by publishing the process or document through any newspaper and sending a copy thereof to the respondent or the person concerned through ordinary mail, in which case service shall be deemed to have been effected on the day of the publication of the newspaper.

(2) In all matters involving service the burden of proof shall be upon a respondent to credibly demonstrate by assigning sufficient cause that he, in fact, had absolutely no knowledge of the process, and that he actually acted in good faith.

(3) Whenever a document or process from the Office is mailed, the envelope or the package shall clearly bear the legend that it is from the Office.

35. Expenditure to be charged on Federal Consolidated Fund:— The remuneration payable to the Federal Tax Ombudsman and the administrative expenses of the office, including the remuneration payable to eligible Staff Members, nominees and grantees, shall be an expenditure charged upon the Federal' Consolidated Fund.

36. Power to make rules:— The Federal Tax Ombudsman may, with the approval of the President, make rules for carrying out the purposes of this Ordinance.

37. Ordinance to have overriding effect:— The provisions of this Ordinance shall have effect notwithstanding anything contrary contained in any other law for the time being in force, including the Establishment of the Office of Wafaqi Mohtasib (Ombudsman) Order, 1983 (President's Order). (I of 1983)

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38. Removal of difficulties:— If any difficulty arises in giving effect to any provision of this Ordinance, the President may make such order, not inconsistent with the provisions of this Ordinance, as may appear to him to be necessary for the purpose of removing such difficulty.

THE SCHEDULE

[See section 3(2)]

I, ...do solemnly swear that I will bear true faith and allegiance to Pakistan;

That as Federal Tax Ombudsman, I will discharge my duties and perform my functions honestly, to the best of my ability, faithfully in accordance with the laws of the Islamic Republic of Pakistan, and without fear or favour, affection or ill-will;

The I will not allow my personal interest to influence my official conduct or my official decisions;

That I shall do my best to promote the best interest of Pakistan;

And that I will not directly or indirectly communicate, or reveal to any person any matter which shall be brought under my consideration, or shall become known to me, as Federal Tax Ombudsman, except as may be required for the due discharge of my duties as Federal Tax Ombudsman.

May Allah Almighty help and guide me (Ameen).

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THE FEDERAL SUPERVISION OF CURRICULA, TEXT-BOOKS AND MAINTENANCE OF STANDARDS OF EDUCATION ACT, 1976

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4. Penalty
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THE FEDERAL SUPERVISION OF CURRICULA, TEXT-BOOKS AND MAINTENANCE OF STANDARDS OF EDUCATION ACT, 1976

[1]ACT No. X OF 1976

[29th March, 1976]

An Act to make provision for Federal supervision of curricula text-books and maintenance of standards of education.

WHEREAS it is necessary to provide for the building up of national cohesion by promoting social and cultural harmony, and designing curricula relevant to the nation's changing social and economic needs, compatible with the basic national ideology and providing massive shift from general education to more purposeful agro-technical education; and to make provision for Federal supervision of curricula, text-books for various classes and maintenance of standards of education;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Federal Supervision of Curricula, Text-books and Maintenance of Standards of Education Act, 1976.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Competent Authority" means an authority appointed as such under section 3; and

(b) "institution" means a school, college or university and includes such other educational establishment as the Federal Government may, by notification in the official Gazette, specify for the purpose of this clause.

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3. Appointment and duties of Competent Authority.—(1) The Federal Government may, by notification in the official Gazette, appoint one or more Competent Authorities for carrying out the purposes of this Act.

(2) The Competent Authority may, for carrying out the purposes of this Act,—

(a) prepare or cause to be prepared schemes of studies, curricula, manuscripts of text-books and schedules or strategy for their introduction in various classes of an institution in connection with the implementation of the education policy of the Federal Government;

(b) approve manuscripts of text-books produced by other agencies before they are prescribed in various classes of an institution; and

[1]For Statement of Objects and Reasons, see Gaz. of P ., 1975,. Ext., Pt. III, p. 694.

(c) direct any person or agency in writing to delete, amend or withdraw any portion, or the whole, of the curriculum, text-book or reference material prescribed for any class of an institution within a period specified in such directive.

(3) Action on the directive of the competent Authority under clause (c) of sub-section (2) shall be taken as soon as possible by the person or agency and an implementation report shall be submitted to the Competent Authority within such period as may be laid down in the directive.

4. Penalty. If the person, to whom or the person responsible for the conduct of the affairs of any agency to which, a directive has been issued under clause (c) of sub-section (2) of section 3 fails to carry it out, he shall be punishable with imprisonment for a term which may extend to one year and shall also be guilty of gross misconduct; and such agency may be superseded by order of the authority appointing or constituting it. .

5. Jurisdiction to try offences. No court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by the Competent Authority.

6. Indemnity. No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done in pursuance of this Act or any rule or order made thereunder.

7. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

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THE FLYING CLUBS (APPOINTMENT OF ADMINISTRATORS) ORDINANCE, 1978

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THE FLYING CLUBS (APPOINTMENT OF ADMINISTRATORS) ORDINANCE, 1978

(ORDINANCE NO. XXVII OF 1978)

[9th June, 1978]

An Ordinance to provide for the appointment of Administrators of Flying Clubs.

WHEREAS it is expedient to provide for the appointment of Administrators for the management of the affairs of Flying Clubs;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the laws (Continuance in Force) Order, 1977, (C.M.L.A. Order No. I of 1977), and in exercise of all powers enabling him in that behalf, the President is pleased lo make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Flying Clubs (Appointment of Administrators) Ordinance, 1978.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2.Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Administrator", in. respect of a Club, means the Administrator of the Club appointed under section 4;

(b) "Committee", in respect of a Club, means the Managing Committee of the Club; and

(c) "Club" means a Flying Club.

3. Ordinance to override other laws, etc. The provisions of this Ordinance shall have effect notwithstanding anything contained in the Companies Act, 1913 (VII of 1913.), or any memorandum or articles of association or bye-laws.

4. Appointment of Administrator.—(1) If at any time the Federal Government has reason to believe that the Committee is unable to function properly for any reason whatever or that for the proper management of the affairs and business of a Club it is necessary or proper so to do, the Federal Government may, after giving to the Committee an opportunity of showing cause against the action proposed to be taken, appoint an Administrator to manage the affairs and business of the Club.

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(2) The Administrator shall receive such remuneration as the Federal Government may direct and shall hold office during the pleasure of the Federal Government.

(3) On the appointment of the Administrator, the management of the affairs and business of the Club shall vest in the Administrator and the Committee shall be divested of that management and the members thereof shall cease to hold Office.

(4) The Administrator shall, subject to such directions as the Federal Government may issue from time to time, exercise and perform all the powers and functions of the Committee, including powers and functions connected with or incidental to the management of the affairs and business of the Club, such as the powers to have the accounts of the Club audited, institute inquiries and initiate proceedings, both civil and criminal, against any person responsible for committing irregularities in financial, flying, administrative and other matters connected with the Club.

(5) The Federal Government may, on the recommendation of the Administrator, make such modifications in the articles of association of the Club as it may consider necessary for the efficient management of the affairs of the Club; and such modifications shall form part of the articles of association.

5. Termination of appointment of Administrator.—(1) If at any time it appears to the Federal Government that the purpose of the order appointing the Administrator has been fulfilled, the Federal Government may require the Administrator to have a Committee elected in accordance with the articles of association of the Club within such time as the Federal Government may specify.

(2) After the Committee has been elected in pursuance of sub-section (1), the Federal Government shall cancel the order appointing the Administrator and thereupon the Administrator shall be divested of the management of the affairs and business of the Club, which shall best in the Committee.

6. Penalty for withholding property, etc. from Administrator. If any member of the Committee or any other person fails to deliver to the Administrator any books of account, registers or any other documents in his custody relating to the affairs or business of the Club the management of which has vested in the Administrator, or retains any property of the Club, or obstructs or hinders the Administrator in the exercise or performance of his powers or functions, he shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

7. Indemnity.—(1) No suit, prosecution or other legal proceeding shall lie against the Administrator or any other officer or authority in respect of any thing which is in good faith done or intended to be done under this Ordinance.

(2) No suit or other legal proceeding shall lie against the Federal Government for any damage caused or likely to be caused by anything which is in good faith done or intended to be done under this Ordinance.

8. Bar of Jurisdiction. No court shall, grant an injunction, make any order or entertain any proceedings in respect of anything done or action taken, or intended to be done or taken, under this Ordinance

9. Power to make rules. The Federal Government may make rules for carrying out the purposes of this Ordinance.

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THE INDUS RIVER SYSTEM AUTHORITY ACT, 1992

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THE INDUS RIVER SYSTEM AUTHORITY ACT, 1992

ACT No. XXII OF 1992

[6th December, 1992]

An Act to provide for the establishment of the Indus River System Authority

WHEREAS it is expedient to establish the Indus River System Authority for regulating and monitoring the distribution of water sources of Indus River in accordance with the water accord amongst the Provinces and to provide for matters connected therewith and ancillary thereto;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Indus River System Authority Act, 1992.

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Authority" means the Indus River System Authority established under section 3;

(b) "Chairman" means the Chairman of the Authority;

(c) "member" means a member of the Authority ;

(d) "prescribed" means prescribed by rules made under this Act;

(e) "rules" means rules made under this Act; and

(f) "Water Accord" means the agreement entitled "Apportionment of the Waters of the Indus River System Between the Provinces" signed by the Provinces on the sixteenth day of March 1991, and approved by the Council of common Interest on the twenty-first day of March, 1991.

CHAPTER II

AUTHORITY AND ITS FUNCTIONS

3. Constitution of the Authority.—(1) As soon as may be after the commencement of this Act, the Federal Government shall, by a notification in the official Gazette, establish an authority to be known as the Indus River System Authority for carrying out the purposes of this Act.

(2) The Authority shall be a body corporate having perpetual succession and a common seal with power subject to provisions of this Act to a acquire and hold property, both moveable and immovable, and shall sue and he sued by the name assigned to it under sub-section (1).

4. Appointment and term of office of Chairman and members.—(1) The Authority shall consist of five members, one each to be nominated by each Province and the Federal Government from amongst high-ranking engineers in irrigation or related engineering fields.

(2) The first Chairman shall be the member nominated by the Government of Balochistan to be followed by the nominees of the Government of North-West Frontier Province, Punjab, Sindh and the Federal Government and thereafter in that order.

(3) The term of office of the Chairman shall be one year and that of a member three years.

(4) Any member shall be eligible for re-appointment for one or more term or for such shorter term as the Provincial Government or, as the case may be, the Federal Government may decide.

(5) The Chairman and any member may, by writing under his hand, addressed to the Secretary to the Government of Pakistan, Water and Power Division, resign from his office:

Provided that the resignation shall not take effect until it is accepted by the Federal Government.

(6) In the absence of the Chairman, the member next due for appointment as Chairman shall act as the Chairman.

(7) In the absence of a member representing a Province, the Secretary, Irrigation Department of the Province shall represent that Province.

(8) In the absence of member nominated by the Federal Government the Chief Engineering Adviser or his nominee shall represent the Federal Government.

(9) The Chairman of the Water and Power Development Authority and Chief Engineering Adviser or their nominees shall be *ex-officio* members of the Authority, but they shall have no right to vote.

5. Remuneration and conditions of service.—The Chairman and every member shall receive such salary and allowances and be subject to such conditions of service as may be prescribed and shall perform such duties and functions as are assigned to them under this Act or by rules.

6. Removal of Chairman or Members.—The Federal Government may, by notification in the official Gazette, after providing an opportunity of being heard and in consultation with the Provincial Government concerned, remove the Chairman or any member, where—

(a) he refuses or fails to discharge or, in the opinion of the Federal Government, becomes incapable of discharging his responsibilities;

(b) he is declared insolvent by a competent court; or

(c) he is declared to be disqualified for employment in, or has been dismissed from, the service of Pakistan or of Province, or has been convicted by a competent court of an offence involving moral turpitude.

7. Meetings of the Authority.—(1) The Authority shall meet at least once in every month at such time and in such manner as may be specified by regulations:

Provided that until regulations are made in this behalf, such meetings shall be convened by the Chairman as he deems necessary.

(2) The Chairman and two other members entitled to vote shall constitute a quorum for a meeting of the Authority.

8. Powers and Duties of the Authority.—(1) The duties of the Authority shall be to—

(a) lay down the basis for the regulation and distribution of surface waters amongst the Provinces according to the allocations and policies spelt out in the Water Accord;

(b) review and specify river and reservoir operation patterns and periodically review the system of such operation;

(c) coordinate and regulate the activities of the Water and Power Development Authority in exchange of date between the Provinces in connection with the gauging and recording of surface water-flows;

Explanation.—Actual observation and compilation of the data shall be the responsibility of the respective Provinces, Water and Power Development Authority and other allied organisations, while the process shall be monitored by the Authority;

(d) determine priorities with reference to sub-clause (c) of clause 14 of the Water Accord for river and reservoir operations for irrigation and hydro-power requirements;

(e) compile and review canal withdrawal indents as received from the Provinces on 5-daily or, as the case may be, on 10-daily basis and issue consolidated operational directives to Water and Power Development Authority for making such releases from reservoirs as the Authority may consider appropriate or consistent with the Water Accord;

Explanation.—The directives issued under this clause shall be binding upon Water and Power Development Authority and the Provinces, and shall be followed in letter and spirit;

(f) settle and question that may arise between two or more Provinces in respect of distribution of river and reservoir waters; and

(g) consider and make recommendations on the availability of water against the allocated shares of the Provinces within three months of receipt of fully substantiated water accounts or all new water projects for the assistance of the Executive Committee of the National Economic Council.

(2) Any question in respect of implementation of Water Accord shall be settled by the Authority by the votes of the majority of members and in case of an equality of votes, the Chairman shall have a casting vote.

(3) A Provincial Government or the Water and Power Development Authority may, if aggrieved by any decision of the Authority, make a reference to the Council of Common Interests.

CHAPTER III

ADVISORY COMMITTEE

9. Advisory Committee.—The Authority shall have an Advisory Committee consisting of the following:—

(a) Chairman of the Authority, who shall also be the Chairman of the Advisory Committee;

(b) members of the Authority;

(c) Chief Engineering Advisor to the Government of Pakistan;

(d) Members, Water and Power Development Authority, in-charge of Water and Power Wings;

(e) Secretaries, Agriculture Departments of the Provinces; and

(f) Secretaries, Irrigation Departments of the Provinces.

10. Meetings of the Committee.—The Advisory Committee shall meet at such time and place to consider such matters as the Authority may from time to time, refer to it:

Provided that the Advisory Committee shall, at the start of each cropping seasons of Kharif and Rabi, hold its meetings without such reference.

CHAPTER IV

ESTABLISHMENT

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11. Headquarter of the Authority.—The Authority shall have its headquarters at [1][Islamabad].

12. Employment of officers and staff.— The Authority may from time to time, employ such officers and other members of staff or appoint such experts and consultants as it may consider necessary for the performance of its functions, as it may be prescribed.

(2) The Authority shall prescribe the procedure for appointment, terms and conditions of service of its officers and members of staff, experts and consultants and shall be competent to take disciplinary action against its officers and members of staff.

13. Immunity of the Authority and its employees.—(1) The Chairman, members, officers and members of staff shall, be deemed to be public servants, within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

[1]Subs. by Ord. XLI of 2000, s.2.

(2) No suit, prosecution or other legal proceedings shall lie against the Authority, the Chairman, members or officers and members of staff of the Authority in respect of anything done or intended to be done in good faith under this Act.

14. Delegation of powers to and by Chairman.—The Authority may, by general or special order, delegate to the Chairman, a member or officer of the Authority, all or any of its powers, duties or functions under this Act subject to such conditions as it may consider fit to impose.

CHAPTER V

REPORTS AND STATEMENTS

15. Submission of yearly reports and returns.—(1) The Authority shall, after the close of each cropping seasons of Kharif and Rabi, furnish a Water Account Report to the Federal Government with copies thereof to the Provincial Governments and Water and Power Development Authority indicating Summary of the quantities of inflows and supplies utilised by the Provinces in relation to their authorised shares.

(2) Observations on the seasonal water forecast reports prepared by Water and Power Development Authority and other issues faced during all seasons shall be incorporated in the Water Accounts Report.

(3) As soon as may be, after the end of every financial year but before the last day of September next following, the Authority shall submit to the Federal Government, a report with copies thereof to the Provincial Government on the conduct of its affairs for that year.

(4) The Federal Government may require the Authority to furnish it with—

(a) Any return, statement, estimate, statistics or other information regarding any matter under the control of the Authority; and

(b) copies of every documents in the charge of the Authority.

CHAPTER VI

THE PAKISTAN CODE

FINANCING

16. Fund of Authority.—(1) There shall be a fund to be known as the "Authority Fund" vested in the Authority which shall be utilised by it to meet all expenses and charges in connection with its functions under this Act including the payment of salaries and other remunerations to the Authority and to its officers and members of staff.

(2) The Authority Fund shall consists of—

(a) Grants made by the Government;

(b) loan obtained by the Authority ; and

(c) all other sums received by the Authority.

17. Limited liability.—The liability of the Federal Government to the creditors of the Authority shall be limited to the extent of grants made by the Federal Government and the loans raised by the Authority as guaranted by the Federal Government.

18. Maintenance of Accounts.—The Authority shall maintain complete and accurate books of accounts in the form to be prescribed by the Auditor-General of Pakistan.

19. Annual statement of Accounts.—In the month of January each year, the Authority shall submit to the Federal Government, for approval, a statement of the estimated receipts and expenditures in respect of next financial year.

20. Audit.—(1) The accounts of the authority shall be audited every year by the Auditor-General of Pakistan in such manner as may be specified.

(2) Copies of the audit report shall be sent to the Authority which shall, alongwith its comments, present to the Federal Government and shall also make it available for public inspection.

(3) The Authority shall carry out any directive issued by the Federal Government for rectification of an audit objection.

CHAPTER VII

MISCELLANEOUS

21. Rules.—The Federal Government may make rules to carry out the purposes of this Act.

22. Regulations.—(1) The Authority may make regulations consistent with this Act and the rules framed thereunder for the purpose of giving effect to the provisions of this Act.

(2) In particular and without prejudice to the generality of the aforegoing provisions, such regulations may provide for all or any of the following matters, namely:—

(a) the manner in which the meetings of the Authority may be convened and held and the procedure to be followed thereat; and

(b) formation of committees and conduct of business in such committees.

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THE INTERNATIONAL FINANCE CORPORATION ACT, 1956

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5. Certain provisions of Agreements to have force of Law.

THE SCHEDULE

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THE INTERNATIONAL FINANCE CORPORATION ACT, 1956

ACT NO. XXVIII OF 1956

[18th April, 1956]

An Act to give effect to an international agreement for the establishment and operation of an International Finance Corporation and for purposes connected therewith.

WHEREAS Articles of Agreement of the International Finance Corporation have, on the eleventh day of April 1955, been approved by the Executive Directors of the International Bank for Reconstruction and Development, hereinafter referred to as the Bank, and deposited in the archives of the Bank for signature and acceptance on behalf of Governments ;

AND WHEREAS it is expedient to provide for the participation of Pakistan in the said Corporation in pursuance of the aforesaid agreement;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the International Finance Corporation Act, 1956.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date[1] as the [2][Federal Government] may, by notification in the official Gazette, appoint.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,—

(a) "agreement" means any Agreement which may be signed and accepted on behalf of the Government of Pakistan in pursuance of the Articles of Agreement approved by the Executive Directors of the Bank on the eleventh day of April 1955 providing for the establishment and operation of an international body to be called the International Finance Corporation ;

(b) "Corporation" means the International Finance Corporation ;

(c) "member" means a member of the Corporation.

[1]i.e., the 8th May, 1956, see Gaz. of P., 1956, Ext., P. 1033.
[2]Subs. by The Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975, Art. 2 and Table.

3. Financial provisions.—(1) There shall be paid out of the [1][Federal Consolidated Fund] and until the [1][Federal Consolidated Fund] is constituted, out of the Revenues of the [2][Federal Government], all such sums as may be required for the purpose of making payments on behalf of the Government of Pakistan under paragraph (a) of section 3 of Article II of the Agreement.

(2) Any sums received by the Government of Pakistan from the Corporation in pursuance of the Agreement shall be paid into the [1][Federal Consolidated Fund] and until the [1][Federal Consolidated Fund] is constituted into the Revenues of the [2][Federal Government].

4. State Bank to be depository for the Corporation.— The State Bank of Pakistan shall be the depository of the Pakistan currency holdings or other assets of the Corporation.

5. Certain provisions of Agreements to have force of Law.— Notwithstanding anything to the contrary contained in any other law, the provisions of Article VI of the Agreement set out in the Schedule shall have the force of law in Pakistan :

Provided that nothing in section 9 thereof shall be construed as—

(a) entitling the Corporation to import into Pakistan goods free of any duty of customs without any restriction on their subsequent sale therein, or

(b) conferring on the Corporation any exemption from duties or taxes which form part of the price of goods sold or which are in fact no more than charges for services rendered.

THE SCHEDULE

(*S*ee section 5)

Provisions of Agreement which shall have force of Law

THE AGREEMENT

Article VI

THE PAKISTAN CODE

STATUS, IMMUNITIES AND PRIVILEGES

SECTION 1.— *Purpose Article of*

To enable the Corporation to fulfil the functions with which it is entrusted, the status, immunities and privileges set forth in this Article shall be accorded to the Corporation in the territories of each member.

[1]Subs. by The Federal Adaptation of Laws Order 1975 (President's Order No. 4 of 1975, Art. 2 and Table.
[2]Subs., ibid.

SECTION 2.—*Status of the Corporation*.

The Corporation shall possess full juridical personality and in particular, the capacity:

(i) to contract ;

(ii) to acquire and dispose of immovable and movable property ;

(iii) to institute legal proceedings.

SECTION 3.—*Position of the Corporation with regard to Judicial Process.*

Actions may be brought against the Corporation only in a court of competent jurisdiction in the territories of a member in which the Corporation has an office, has appointed an agent for the purpose of accepting service or notice of process, or has issued or guaranteed securities. No action shall, however, be brought by members or persons acting for or deriving claims from members. The property and assets of the Corporation shall, wheresoever located and by whomsoever held, be immune from all forms of seizure, attachment or execution before the delivery of final judgment against the Corporation.

SECTION 4.— *Immunity of Assets from Seizure.*

Property and assets of the Corporation, wherever located and by whomsoever held, shall be immune from search, requisition, confiscation, expropriation or any other form of seizure by executive or legislative action.

SECTION 5.—*Immunity of Archives.*

The archives of the Corporation shall be inviolable.

SECTION 6.— *Freedom for Assets from Restrictions*

To the extent necessary to carry out the operations provided for in this Agreement and subject to the provisions of Article III, section 5, and the other provisions of this Agreement, all property and assets of the Corporation shall be free from restrictions, regulations, controls and moratoria of any nature.

SECTION 7.—*Privilege for Communications*

The official communications of the Corporation shall be accorded by each member the same treatment that it accords to the official communications of other members.

SECTION 8.— *Immunities and Privileges of Officers and Employees.*

All Governors, Directors, Alternates, officers and employees of the Corporation:

(i) shall be immune from legal process with respect to acts performed by them in their official capacity ;

(ii) not being local nationals, shall be accorded the same immunities from immigration restrictions, alien registration requirements and national service obligations and the same facilities as regards exchange restrictions as are

accorded by members to the representatives, officials, and employees of comparable rank of other members ;

(iii) shall be granted the same treatment in respect of travelling facilities as is accorded by members to representatives, officials and employees of comparable rank of other members.

SECTION 9.— *Immunities from Taxation*

(a) The Corporation, its assets, property, income and its operations and transactions authorized by this Agreement, shall be immune from all taxation and from all customs duties. The Corporation shall also be immune from liability for the collection or payment of any tax or duty.

(b) No tax shall be levied on or in respect of salaries and emoluments paid by the Corporation to Directors, Alternates, officials or employees of the Corporation who are not local citizens, local subjects, or other local nationals.

(c) No taxation of any kind shall be levied on any obligation or security issued by the Corporation (including any dividend or interest thereon) by whomsoever held:

(i) which discriminates against such obligation or security solely because it is issued by the Corporation ; or

(ii) if the sole jurisdictional basis for such taxation is the place or currency in which it is issued, made payable or paid, or the location of any office or place of business maintained by the Corporation.

(d) No taxation of any kind shall be levied on any obligation or security guaranteed by the Corporation (including any dividend or interest thereon) by whomsoever held:

(i) which discriminates against such obligation or security solely because it is guaranteed by the Corporation ; or

(ii) if the sole jurisdictional basis for such taxation is the location of any office or place of business maintained by the Corporation.

SECTION 10.— *Application of Article*

Each member shall take such action as is necessary in its own territories for the purpose of making effective in terms of its own law the principles set forth in this Article and shall inform the Corporation of the detailed action which it has taken.

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THE INTERNATIONAL ISLAMIC UNIVERSITY ORDINANCE, 1985

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THE INTERNATIONAL ISLAMIC UNIVERSITY ORDINANCE, 1985

ORDINANCE No. XXX OF 1985

[31st March, 1985]

An Ordinance to reconstitute and re-organize the Islamic University

WHEREAS it is expedient to establish an international seat of Islamic learning in Pakistan so as to provide every opportunity for an all round and harmonious development of individuals and society and reconstruction of human thought in all its form on the foundations of Islam;

AND WHEREAS the Islamic University, Islamabad, working to achieve these objectives, has now reached a stage when it can be reconstituted to become an autonomous International Islamic University in order to encourage and promote education, training and research in Islamic learning, social, natural, applied and communication sciences and other branches of learning to ensure the Muslim Ummah's ideological, moral, intellectual, social, economic and technological development in accordance with the values, ideals, principles and norms of Islam ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:

CHAPTER I

THE PRILIMINARY

1. Short title and commencement.— (1) This Ordinance may be called the International Islamic University Ordinance, 1985.

(2) It shall come into force at once.

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2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,

(a) "Academic Council" means the Academic Council of the University ;

(b) "Academy" means an Academy of the University ;

(c) "Authority" means an authority of the University as specified in this Ordinance;

(d) "Board of Trustees" means the Board of Trustees referred to in this Ordinance;

(e) "Board of Governors" means the Board of Governors of the University ;

(f) "Chancellor" means the Chancellor of the University ;

(g) "Dean" means the head of a faculty or other teaching, research or training unit of the University;

(h) "Director" or "Director General" means the head of an Academy, Institute or Centre ;

(i) "Government" means the Federal Government;

(j) "Institute" means a constituent/self-governing Institute maintained and administered by the University ;

(k) "prescribed" means prescribed by Statutes, Regulations or Rules ;

(l) "President" means the President of the University ;

(m) "Pro-Chancellor" means the Pro-Chancellor of the University ;

(n) "Rector" means the Rector of the University ;

(o) "Statutes" "Regulations" and "Rules" means the Statutes, Regulations and Rules made or deemed to have been made under this Ordinance ;

(p) "Trust" means the International Islamic University Trust established in Pakistan or abroad to support the University;

(q) "Teachers" include whole time Professors, Associate Professors, Assistant Professors and research staff engaged by the University for teaching at the University and such other persons as may be recognised to be Teachers by the Board of Governors ;

(r) "University" means the International Islamic University as constituted under this Ordinance; and

(s) "Vice-President" means Vice-President of the University.

CHAPTER II

THE UNIVERSITY

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4. Establishment of the University.— (1) On the commencement of this Ordinance, the Islamic University established under the Islamic University Ordinance, 1980 (LIII of 1980), shall be re- constituted and re-named as the International Islamic University with its principal seat at Islamabad.

(2) The University shall consist of :—

(i) the Chancellor, the Pro-Chancellor, the Rector, the President, the Directors-General, the Vice-Presidents, the Deans, and the Directors ;

(ii) members of the Board of Trustees, the Board of Governors, the Academic Council and other Authorities ;

(iii) Teachers ; and

(iv) such other officers as may be prescribed.

(3) The University shall be a body corporated by the name of the International Islamic

University having perpetual succession and a common seal and shall, by the said name, sue and be sued.

(4) The University shall be competent to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have vested in it or acquired by it in and outside Pakistan.

(5) The University shall be the custodian of the Faisal Mosque, Islamabad, and the buildings attached to the Mosque and shall be responsible for its supervision, control and maintenance.

5. Powers and functions of the University.— (1) The University shall make arrangements for the promotion and dissemination of knowledge and for instruction, training and research in such fields as the University may determine.

(2) The University shall produce skilled manpower for effective implementation of Islamic laws and management of Islamic Institutions in Pakistan and the rest of the Muslim World.

(3) The University shall be a fully autonomous body with freedom to govern its academic functions in order to achieve its objectives.

(4) The University shall have the powers to:—

(a) admit, teach and examine students ;

(b) award degrees, diplomas, certificates and other academic distinctions ;

(c) determine and prescribe courses of study in such branches of learning as the University may determine ;

(d) provide for instruction, training and research in such branches of learning and at such levels, as it may determine ;

(f) decide teaching methods and strategies in order to ensure the most effective educational and other programmes ;

(g) institute Professorships, Associate Professorships, Assistant Professorships, Research Associateships and any other positions, and to appoint persons thereto under prescribed conditions ;

(h) create posts for teaching, research, extension, administration and other related purposes and to appoint persons thereto under prescribed conditions ;

(i) institute and award fellowships, scholarships, exhibitions, bursaries, medals and prizes and prescribe conditions for their dispensation ;

(j) establish Academies, Institutes, Faculties, Departments, Research and Training Centres, Libraries, Laboratories, Workshops, Museums and such other establishments as may be necessary from time to time, and other centres of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may determine ;

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(k) establish and control the residences of the students, scholars and trainees of the University and to institute and maintain halls of residence ;

(l) confer in the manner prescribed, honorary degrees, Emeritus Professorships or other distinctions on persons approved for the purpose ;

(m) confer degrees on persons who have conducted independent research under prescribed condition ;

(n) determine the equivalence of the examinations passed, and the periods of study spent, by students of the University at other Universities and places of learning and to review such equivalence, if necessary ;

(o) supervise and control the discipline of students of the University, promote co-curricular and recreational activities of such students, and make arrangements for promoting their health, Islamic personality, morality and general welfare in accordance with Islamic values ;

(p) demand and receive such fees and other charges as it may determine from time to time ;

(q) make provisions for research, training and advisory services and with these objectives to enter into arrangements with other institutions or with public bodies under prescribed conditions ;

(r) enter into, execute, vary or cancel agreements, contracts and other arrangements with governments, organizations, institutions, bodies and individuals for the purpose of carrying out its functions and activities ; and

(s) receive and manage properties, grants, donations, endowments, bequests, trusts, gifts and other contributions in Pakistan and abroad and administer, transfer or invest the funds so received and apply as much of its income to the maintenance and development of the University and its constituent establishments as it may deem fit ;

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(5) Without prejudice to the generality of the above provisions, all powers not allocated to any other body of the University shall vest in the University to conduct its affairs and it may do all such other acts and things, as may be requisite in order to further the objects of the University.

6. University open to all classes, creeds, etc. The University shall be open to all persons of either sex of whatever religion, race, creed, class or color who desire to receive higher education with Islamic orientation and no such person shall be denied the privileges of the University on the ground only of sex, religion, race, caste, creed, class, colour or domicile.

7. Teaching in the University.—(1) All recognized teaching in various courses shall be conducted by the University in the prescribed manner.

(2) The objective of all teaching at the University shall be to lay emphasis on the seeking of knowledge rather than on examinations and degrees, and, therefore, in addition to formal education, the University may organize as many non-degree courses, classes, seminars, colloquia and workshops as possible.

(3) The authority responsible for organising recognized teaching shall be such as may be prescribed.

(4) The courses and the curricula shall be such as may be prescribed.

CHAPTER III

OFFICERS OF THE UNIVERSITY

8. Officers of the University. The following shall be the officers of the University, namely :—

(i) the Chancellor ;

(ii) the Pro-Chancellor;

(iii) the Rector ;

(iv) the President;

(v) the Directors-General of Academies ;

(vi) the Vice-President(s) ;

(vii) the Deans ;

(viii) the Directors ; and

(ix) such other persons as may be prescribed by Regulations to be the officers.

9. Chancellor.— (1) The President of the Islamic Republic of Pakistan shall be the Chancellor of the University.

(2) The Chancellor shall, when present, preside at the convocation of the University and the meeting of the Board of Trustees.

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(3) If the Chancellor is satisfied that any regulation or rule, or proceedings of any Authority are not in accordance with the provisions of this Ordinance, the Statutes, the Regulations or the Rules, he may refer them to the Board of Trustees for reconsideration.

(4) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(5) The Chancellor may remove any person from the membership of any Authority, if such person.

(i) has become of unsound mind ; or

(ii) has become subject to an incapacity which prevents him from functioning as a member of such Authority ; or

(iii) has been convicted by a court of law of an offence involving moral turpitude ; or

(iv) has been found involved in activities detrimental to the interests of the University.

10. Visitation.— (1) The Chancellor or the Pro-Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of the University and shall, from time to time, appoint such person or persons as he may deem fit for the purpose of carrying out inspection of:—

(i) the University, its buildings, laboratories; libraries, museums, work-shops and equipment ;

(ii) any institution or hostel maintained by the University ;

(iii) the teaching, research and other work conducted by the University; and

(iv) the conduct of examination held by the University.

(2) The Chancellor or the Pro-Chancellor shall give notice to the Board of Governors of his intention to cause an inspection or inquiry to be made under sub-section (1) and the Board of Governors shall be entitled to be represented thereat.

(3) The Chancellor or the Pro-Chancellor shall communicate to the Board of Governors his views with regard to the results of an inspection or inquiry made under sub-section (1) and shall, after ascertaining the views of the Board of Governors thereon, advise the Board of Governors, on the action to be taken by it.

(4) The Board of Governors shall, within such time as may be specified, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of an inspection or inquiry communicated to it under sub-section (3).

(5) If the Board of Governors does not, within the specified time, take action to the satisfaction of the Chancellor or the Pro-Chancellor, he may, after considering any explanation furnished or representation made by the Board of Governors, issue such directions as he thinks fit, and the Rector shall comply with such directions.

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11. Pro-Chancellor.—(1) The Chancellor shall appoint a scholar of international repute or an educationist of distinction as Pro-Chancellor for such period and on such terms and conditions as he may determine.

(2) The Pro-Chancellor shall, in the absence of the Chancellor, preside at the convocation of the University and at any meeting where business of the University is being considered.

(3) The Pro-Chancellor shall perform such functions as the Chancellor may delegate to him from time to time.

12. Rector.—(1) The Chancellor shall appoint a scholar of international repute or an educationist of distinction as Rector for such period and on such terms and conditions as he may determine.

(2) The Rector, in the absence of the Chancellor and the Pro-Chancellor, shall preside at the convocation of the University and the meetings of the Board of Trustees and when present he shall preside over the meetings of the Authorities.

(3) The Rector shall exercise general control and supervision over the affairs of the University and shall ensure that the provisions of this Ordinance, the Statutes, the Regulations, the Rules, policies and directions of the Board of Trustees are properly executed.

(4) The Rector shall submit the plans of work, the budget, as approved by the Board of Governors, and a report on the activities of the University to the Board of Trustees.

(5) The Rector shall perform such other functions as may be entrusted to him by the Chancellor, the Pro-Chancellor or the Board of Trustees.

13. President.— (1) The President shall be appointed by the Board of Trustees, out of a panel to be recommended by the Rector, on such terms and conditions as the Board of Trustees may determine and shall hold office during the pleasure of the Board of Trustees for a term not exceeding four years.

(2) At any time when the office of the President is vacant or the President is absent or is unable to perform the functions of his office due to illness or some other cause, the Rector shall, so far as may be, in consultation with the President, appoint one of the Vice-Presidents to perform the duties of the President.

(3) The President shall have the following powers and duties, namely:—

(a) The President shall be the academic and administrative officer of the University and shall have, subject to the provisions of this Ordinance, Statutes, Regulations and Rules, such powers and duties as may be determined by the Board of Trustees from time to time.

(b) He may, in an emergency, which in his opinion requires immediate action, take such action as he may consider necessary and shall, as soon thereafter as possible, report his action to the authority or other body which in the ordinary course would have dealt with the matter.

(c) He shall have the power to create and fill posts temporarily for a period not exceeding six months, and shall, with the approval of the Rector, secure the services of experts on the basis of contract for a period not exceeding two years and shall report all such cases to the Board of Governors.

(d) He shall have the power to detail any employee on any duty commensurate with his status, qualifications and experience or transfer any employee to an equivalent post and report his action for information to the Board of Governors.

(e) He shall authorize expenditure in accordance with the budget and other guidelines, laid down by the Board of Governors from time to time.

(f) He shall promote general efficiency and good order of the University and shall have all powers necessary to exercise control and enforce discipline over all Teachers, employees, research workers, students, scholars and trainees of the University.

(g) He may delegate any of his powers to Vice-Presidents or any Teacher, officer

or a committee and exercise such other powers as may be delegated to him by the Board of Trustees or the Board of Governors.

14. Vice-Presidents.— (1) There may be one or more Vice-Presidents of the University.

(2) The Vice-President shall be appointed by the Board of Governors on the recommendation of the President on such terms and conditions as may be determined by the Board of Governors and exercise such powers as may be delegated to him by the President in consultation with the Rector.

(3) The Vice-President shall perform such duties and functions as assigned by the President from time to time.

15. Other Officers. Subject to the provisions of this Ordinance, the terms and conditions of service and powers and duties of other officers of the University shall be such as may be prescribed.

CHAPTER IV
AUTHORITIES OF THE UNIVERSITY

16. Authorities. The following shall be the Authorities, namely:—

(i) the Board of Trustees ;

(ii) the Board of Governors ;

(iii) the Academic Council ;

(iv) the Board of Studies ;

(v) the Selection Board ;

(vi) the Finance and Planning Committee ;

(vii) the University Discipline Committee ; and

(viii) such other authorities as may be prescribed by the Statutes.

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17. Board of Trustees.— (1) There shall be a Board of Trustees consisting of the following *ex-officio* members, namely:

(i) Chancellor .. .. .. Chairman

(ii) Pro-Chancellor

(iii) Rector

(iv) President

(v) Sheikh of Al-Azhar, Cairo.

(vi) Secretary-General, Rabita al-Alam-al-Islami.

(vii) Chairman, International Islamic Charitable Foundation, Kuwait.

(viii) Chief Justice, Supreme Court of Pakistan.

(ix) Chief Justice, Federal Shariat Court, Pakistan.

(x) Chairman, University Grants Commission, Pakistan.

(xi) Director-General, ISESCO, Rabat.

(xii) Secretary, Federal Ministry of Education, Government of Pakistan.

(xiii) Rector, Ummul Qura University, Makkah.

(xiv) Rector, International Islamic University, Malaysia.

(xv) Rector, Cairo University.

(xvi) Rector, Al-Azhar University.

(xvii) Rector, Muhammad Ibn Saud University, Riyadh.

(xviii) Such other *ex-officio* members as may be elected by the Board of Trustees.

(2) The following shall be the Founder Members of the Board of Trustees, namely:—

(i) General Muhammad Zia-ul-Haq (Pakistan).

(ii) Sh. Abdul Aziz ben Baz (Saudi Arabia).

(iii) Dr. Abdullah Omer Nasif (Saudi Arabia).

(iv) Dr. Muhammad Afzal (Pakistan).

(v) Sheikh Yusuf Jasim Al-Hajji (Kuwait).

(vi) Dr. Ahmed Mohammad Ali (Saudi Arabia).

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(vii) Dr. Hussain Hamid Hassan (Egypt).

(viii) Prof. Khurshid Ahmad (Pakistan).

(ix) Maulana Zafar Ahmad Ansari (Pakistan).

(x) Dr. Ishaq Farhan (Jordan).

(xi) Dr. Ahmad Amin Faud (Egypt).

(xii) Dr. Muhammad Abdur Rahman al Bakr (U.A.E.)

(xiii) Mr. Ahmed Bazi Yasin (Kuwait).

(xiv) Dr. Tayyib Zainul Abidin (Sudan).

(xv) Dr. Omar Jah (Gambia).

(xvi) Prof. Dr. Sabahuddin Zaim (Turkey).

(xvii) Sheikh Mohammad Al-Gazali A1 Sakka (Algeria).

(xviii) Mr. Abdullah Ali Al-Mutawa (Kuwait).

(xix) Maulana Abu Hassan al Nadvi (India).

(xx) Dr. Muhammad Hamid Ullah (Paris).

(xxi) Mr. Ibrahim Afandi (Saudi Arabia).

(xxii) Mr. Saleh Kamil (Saudi Arabia).

(3) The ordinary members of the Board of Trustees may elect outstanding scholars as ordinary members.

(4) Whenever there is a vacancy in the list of Founder Members, the Board of Trustees shall elect an ordinary member in his place who shall hold office for three years from the date of his appointment.

(5) One of the Vice-Presidents shall act as Secretary of the Board of Trustees who shall be appointed by the Rector in consultation with the President.

(6) Subject to the provisions of this Ordinance, the Board of Trustees shall be the supreme authority of the University in all matters and its decisions shall be final and binding.

(7) Without prejudice to the generality of the provisions of sub-section (6), the Board of Trustee shall exercise and perform the powers and functions hereinafter specified, namely:—

(a) to formulate or approve the principal policies and the plans governing the activities of the University ;

(b) to review and approve the creation of any component of the University, such as faculties, colleges, programmes, institutes, standing committees, councils and other administrative bodies necessary to assist or improve the working of the University ;

(c) to consider annual reports and budget, submitted by the Rector, relating to the activities of the University and the execution of the plans of work and to direct the Rector to submit reports relating to any mater specified by the Board of Governors ;

(d) to make arrangements for the financial stability of the University, for ensuring effectiveness of its future operations, the continuity and preservation of the autonomy of the University and academic freedom of the faculties in their educational and research activities ;

(e) to create a Trust or Trusts for meeting developmental and recurring requirements of the University ;

(f) to appoint from amongst its members such committees or sub-committees as

may, in the opinion of the Board of Trustees, lead to its more efficient and effective operation ;

(g) to approve the recommendations of the Board of Governors on all affiliations and other similar arrangements through which institutions or individuals may become associated with the University ;

(h) to appoint professors emeritus, to confer honorary degrees and other academic distinctions with the approval of the Chancellor ;

(i) to take such initiatives as it may consider necessary or desirable for the efficient and effective management and functioning of the University so as to make the University an effective and intellectual instrument for educational advancement of the Ummah.

(8) No act or proceeding of the Board of Trustees shall be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Board of Trustees.

18. Meetings of the Board of Trustees.—(1) The Board shall meet at least once during a year for regular or scheduled meetings and may meet at any other time at which a special meeting thereof may be called by the Chancellor or requisitioned in writing by not less than five members of the Board of Trustees.

(2) Not less than ten clear days, notice of a special meeting shall be given to the members of the Board of Trustees and the agenda of the meeting shall be restricted to the matters specified in the agenda to the annexed to such notice.

(3) The quorum for a meeting of the Board of Trustees shall be one-third of its members, a fraction being counted as one.

(4) The decisions of the Board shall be based on the majority vote of the members present and voting.

(5) In the case of equality of votes, the Chairman shall have a second or casting vote.

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19. Board of Governors.—(1) The Board of Governors shall have the following members, namely:—

(i)	Rector	.. .. ..	Chairman
(ii)	President	.. .. ..	Vice-Chairman.
(iii)	Chief Justice of the Federal Shariat Court or a Judge of the said Court nominated by the Chief Justice	.. .. ..	Member.
(iv)	Secretary, Ministry of Education, Government of Pakistan	.. .. ..	Member.
(v)	Chairman, University Grants Commission, or his nominee not below the rank of a permanent Member of the Commission	.. .. ..	Members.

(vi)	One Vice-Chancellor of a Pakistani University to be nominated by the Chancellor	..	..	..	Members.
(vii)	Three scholars of international repute in the domain of Islamics to be nominated by the Pro-Chancellor in consultation with the Rector.	..	..	..	Members.
(viii)	Three nominees of the Board of Trustees	..	..	..	Members.
(ix)	One Vice-President appointed by the Rector in consultation with the President	..	..	..	Secretary.

(2) The members other than *ex-Officio* members, shall hold office for two years.

20. Meetings of the Board of Governors.— (1) The Board shall ordinarily meet once in three months but a special meeting may be called by the Rector at any time.

(2) Not less than ten clear days notice of a special meeting shall be given to the members of the Board of Governors.

(3) The quorum for a meeting of the Board of Governors shall be one-half of its members, a fraction being counted as one.

(4) The decisions of the Board of Governors shall be based on the majority vote of the members present and voting.

21. Powers of the Board of Governors.— (1) The Board of Governors shall function under the overall guidance of the Board of Trustees and shall have the powers to execute the policies laid down by it.

(2) Without prejudice to the generality of the provisions of sub-section (1), the Board of Governors shall exercise and perform the powers and functions hereinafter specified, namely:—

(a) to hold, control and administer the property, funds and resources of the University;

(b) to act as custodian of the University assets, properties and funds, other than that of the Trust;

(c) to regulate and govern the finances, accounts, investments, funds, loans, donations and appoint agents for financial purposes.

(d) to consider and approve, on the advice of the Finance and Planning Committee of the University, the annual budget estimates and the revised budget estimates and to reappropriate funds from one head of the budget to the other, and to lay down guidelines or rules of business dealing with financial disbursement ;

(e) to approve, vary or cancel contracts ;

(f) to initiate or approve schemes for the realisation of the objectives of the University;

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(g) to determine the form, provide for custody and regulate the use of common seal of the University ;

(h) to institute Profession ships, Associate and Assistant Professorships, research fellowships, and other teaching, research and administrative posts or to suspend or abolish them or convert them into other posts ;

(i) to appoint Teachers, researchers and officers on the recommendations of the Selection Board;

(j) to suspend, punish and remove from service the University employees whom it is empowered to appoint, in the manner prescribed after due enquiry and defence ;

(k) to propose Statutes for submission to the Board of Trustees ;

(l) to approve Regulations and Rules on the recommendations of the appropriate bodies ;

(m) to appoint such individuals, committees or sub-committees and delegate such powers and assign such functions as may, in the opinion of the Board of the Governors, lead to its more efficient and effective operation ; and

(n) to determine, regulate and administer all other matters concerning the University and to this end exercise all necessary powers not specifically mentioned in this Ordinance or the Statutes, the Regulations and the Rules.

22. Academic Council.— (1) The Academic Council shall consist of,—

(i) the President, who shall be its Chairman ;

(ii) the Vice-Presidents ;

(iii) Directors-General ;

(iv) the Deans ;

(v) the Directors of Institutes ;

(vi) the University Professors and Professors Emeritus ;

(vii) two Teachers to be appointed by the Rector in consultation with the President ; and

(viii) two eminent scholars to be nominated by the Board of Governors.

(2) One of the Deans or a Director appointed by the President shall act as Secretary of the Academic Council.

(3) The quorum for a meeting of the Academic Council shall be one-half of the total number, of members a fraction being counted as one.

23. Powers and duties of the Academic Council.— (1) The Academic Council shall be

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the academic body of the University and shall, subject to the provisions of this Ordinance and the Statutes, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the University.

(2) The Academic Council shall advise the Board of Governors on academic matters and shall exercise such powers and perform such duties as may be assigned to it by the Board of Governors and those prescribed by the Statutes.

24. Constitution, functions and powers of other Authorities. Subject to the provisions of this Ordinance, the constitution, functions and powers of the Authorities for which no specific provision or insufficient provision has been made in this Ordinance shall be such as may be prescribed by the Statutes.

25. Appointment of Committees by the Authorities. The Board of Trustees, the Board of Governors and the Academic Council and any other Authority may, from time to time, appoint such standing, special or advisory committees as it may deem fit, and may also appoint to such committees persons who are not its members.

26. The academic and administrative staff. The academic and administrative staff of the University shall be selected with a view to achieve its stated objectives and the basic criteria for their selection shall be the highest standards of intellectual competence, integrity, efficiency and commitment to Islam.

27. Academic freedom. The academic staff of the University shall enjoy freedom of expression in their research and educational work in accordance with the objectives of the University.

CHAPTER V

STATUTES, REGULATIONS AND RULES

28. Statutes.— (1) Subject to the provisions of this Ordinance, Statutes may be made to regulate or prescribe all or any of the following matters namely:—

(a) creation of institutes and faculties ;

(b) service, pension and fringe benefits for University employees and terms and conditions of their service ;

(c) conditions of appointment of Professors Emeritus and award of honorary degrees ;

(d) efficiency and discipline of the University employees ; and

(e) all other matters required to be regulated under the Statutes.

(2) Draft of the Statutes shall be proposed by the Board of Governors for approval by the Board of Trustees which may approve them or refer them back for reconsideration.

(3) No Statute shall be valid until it has been approved by the Board of Trustees.

29. Regulations.— (1) Subject to the provisions of this Ordinance and the Statutes, Regulations may be made for all or any of the following matters, namely :—

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(a) schemes of studies and research including the duration of courses, number of subjects or papers for examination ;

(b) syllabi and courses of study and research programmes leading to degrees, diplomas or certificates ;

(c) conduct and supervision of examinations, appointment of examiners and scrutiny and tabulation of results ;

(d) determination of fees and other charges for admission to various courses ;

(e) maintenance of discipline among students and schemes for their welfare ;

(f) institution of fellowships, scholarships, prizes and medals, honorarium and other financial assistance to students and research scholars ;

(g) conduct of convocations and form of academic costumes ; and

(h) all other academic matters which are to be or may be prescribed by Regulations.

(2) The draft regulations shall be approved by the Board of Governors in consultation with the Academic Councils.

(3) No regulation shall be valid until it has been approved by the Board of Governors.

30. Rules. The Board of Governors may prescribe rules for implementation of Statutes or Regulations where so required under the Statutes and the Regulations or make rules to regulate any matter relating to the affairs of the University which under this Ordinance are not specifically required to be provided for by the Statutes or the Regulations.

CHAPTER VI

THE UNIVERSITY FUND

31. University Fund.— (1) There shall be a University fund to which shall be credited income from any source including transfers from the Trust, fees, donations, bequests, endowments, contributions and grants.

(2) The Board of Governors may establish special funds for specific institutions or projects.

32. Payments. All payments from the University fund shall be made in accordance with the approved budget or funds for services rendered to, or supplies received by, the University.

33. Accounts. The accounts of the University shall be maintained and audited once a year under financial rules to be prescribed by the Board of Governors in consultation with the Finance and Planning Committee.

34. Audit. All payments shall be made after pre-audit by a resident Audit Officer to be appointed by the Board of Governors.

35. Annual statement of accounts. The President shall submit each year a statement of expenditure and receipts of the University, duly audited by an external auditor appointed by the Board of Governors with his comments for consideration by the Board of Governors.

CHAPTER VII

GENERAL PROVISIONS

36. Retirement from service. An officer, Teacher or other employee of the University shall retire from service.—

(i) on such date, after he has completed twenty five years of service qualifying for pension or other retirement benefits as the competent authority may direct ; or

(ii) where no direction is given under clause (1), on the completion of sixty years of his age.

Explanation.— In this section 'competent authority' means the appointing authority or a person duly authorised by the appointing authority in that behalf, not being a person lower in rank to the officer, Teacher or other employee concerned.

37. Opportunity to show cause. Except as otherwise provided, no officer, teacher on other employee of the University holding a permanent post shall be reduced in rank, or removed or compulsorily retired from service, unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

38. Appeal to, and review by, the Board of Governors.— (1) Where an order is passed punishing any officer (other than President). Teacher or other employee of the University or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, where the order is passed by the President of any other officer or Teacher of the University, have the right to appeal to the Board of Governors, against the order, and, where the order is made by the Board have the right to apply to that Authority for review of that order.

(2) The appeal or application for review shall be subject to the President who shall lay it before the Board of Governors with his views.

39. Pension, insurance, gratuity, provident fund and benevolent fund. The University shall constitute for the benefit of its officers, teachers and other employees in such manner and subject to such conditions as may be prescribed such pension, insurance, gratuity, provident fund and benevolent fund schemes as it may deem fit.

40. Commencement of term of office of members of Authorities. When a member of a newly constituted Authority is appointed or nominated his term of office as fixed under this Ordinance shall commence from such date as may be prescribed.

41. Filling of casual vacancies in Authorities. Any casual vacancy among the appointed or nominated member of any Authority shall be filled, as soon as conveniently may be, by the person or the body who appointed or nominated the member whose place has become vacant and the person appointed or nominated to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

42. Filling of vacancies in Authorities in certain circumstances. Where a vacancy in the membership of an Authority other than the Board of Trustees cannot be filled because of—

(a) the office the holder whereof, was to be a member of the Authority ex- Officio having ceased to exist ;

(b) the organization, institution or other body, other than the University, having either ceased to exist or to function ; or

(c) the occurrence of other circumstances in which it has become impracticable to fill the vacancy.

The vacancy shall be filled in such manner as the Rector may direct.

43. Disputes about membership of Authorities, etc.— (1) Notwithstanding anything contained in this Ordinance, a person nominated or appointed to any Authority shall cease to be a member of such Authority as soon as he ceased to hold the position by virtue of which he was nominated or appointed.

(2) If a question arises whether any person is entitled to be a member of any Authority, the matter shall be referred to a committee consisting of the President, a member of the Board of Governors and a nominee of the Rector and the decision of this committee shall be final and binding.

44. Proceeding of Authorities not invalidated by vacancies. No act, proceedings, resolution or decision of any Authority shall be invalid by reason only of any vacancy in or any defect in the constitution of, or in the appointment or nomination of any member of, the Authority.

45. First Statutes. Notwithstanding anything contained in this Ordinance, the Statutes set out in the Schedules shall be deemed to be the Statutes framed under section 28 and shall remain in force until they are amended or replaced by new Statutes framed in accordance with this Ordinance.

46. Bar of jurisdiction. No Court shall have jurisdiction to entertain any proceeding, grant any injunction or make any order in relation to anything done in good faith or purported to have been done or intended to be done under this Ordinance.

47. Indemnity. No suit or legal proceedings shall lie against the Government, the University or any Authority, officer or employee of Government or the University or any person, in respect of anything which is done, or purported to have been done in good faith or is intended to, or has been done under this Ordinance.

48. Transitional provisions. Notwithstanding anything contained in this Ordinance, the Board of Governors shall start functioning immediately after the promulgation of this Ordinance.

49. Repeal and savings.— (1) The Islamic University Ordinance, 1980 (LI11 of 1980) is hereby repealed.

(2) Notwithstanding the repeal of the said Ordinance,—

(a) everything done, action taken, obligations or liabilities incurred, rights and assets acquired, persons appointed or authorised, jurisdiction or powers conferred, endowments, bequests, funds or trusts created, donations of grants made, scholarships, studentships, or exhibitions instituted, affiliations or privileges granted and orders issued under any of the provisions of the said Ordinance or the Statutes, the Regulations and the Rules made or deemed to have been made thereunder , shall, if not inconsistent with the provisions of this Ordinance or the Statutes, the Regulations or the Rules made under this Ordinance, be continued and, so far as may be, be deemed to have been authorised, conferred, created, made, instituted, granted and issued under this

Ordinance.

(b) any Statutes, Regulations or Rules made or deemed to have been made under the said Ordinance, shall, if not inconsistent with the provisions of this Ordinance, be deemed to be Statutes, Regulations or Rules made under this Ordinance having regard to the various matters which by this Ordinance have to be regulated or prescribed by Statutes, Regulations or Rules respectively, and shall continue to be in force, until they are repealed, rescinded or modified in accordance with the provisions of this Ordinance.

50. Trust.— (1) The Board of Trustees shall create a Trust with sufficient endowment in Pakistan and abroad in collaboration with International Islamic organizations, with similar objective to provide for financial back up and stability of the University.

(2) The administration and management of the Trust shall vest in the Board of Trustees.

(3) The accounts of the Trust shall be jointly operated by the Rector and the President.

(4) The objectives of the Trust shall be—

(i) to provide financial support to the University ;

(ii) to create an endowment for meeting the recurring and developmental expenditure of the University ;

(iii) to encourage and receive donations, grants, bequests, gifts and contributions for attaining the objectives of the University ; and

(iv) to adopt measures for promotion and development of the University and to do all such other things and acts as may be necessary.

51. Removal of difficulties. If any difficulty arises as to the first constitution or reconstitution of any Authority upon coming into force of this Ordinance or otherwise in giving effect to the provisions of this Ordinance, the Chancellor may, on the recommendation of the Rector, give appropriate directions to remove such difficulty.

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THE SCHEDULE

THE FIRST STATUTES

(*See section 45*)

1. The Faculties, Institutes and Academies.— (1) The University shall have the following faculties, institutes and academies, namely :—

(i) Faculty of Shari'ah and Law;

(ii) Faculty of Usul al Din;

(iii) Faculty of Da'wah Wa al I'lam;

(iv) Islamic Research Institute;

(v) International Institute of Islamic Economics;

(vi) Institute of Linguistics and Languages;

(vii) Institute of Applied Sciences;

(viii) Institute of Social Sciences;

(ix) Institute of Education;

(x) Shari'ah Academy;

(xi) Academy for Da'wah and Training of Imams;

(xii) Institute of Medicine and Health Sciences;

(xiii) Institute of Engineering and Technology; and

(xiv) such other faculties, institutes or teaching, research and training units as may be prescribed by Statutes.

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(2) Each Faculty, Institute, Academy or teaching, research and training unit shall cover such subject or group of subjects as may be prescribed.

2. Directors, Deans, etc., of Faculties, Institutes and Academies.— (1) Each Faculty shall be headed by a Dean while each Institute and Academy shall be headed by a Director or Director-General as may be prescribed.

(2) A Dean, Director or Director-General shall be appointed by the Board of Trustees.

(3) The duties, functions, duration and terms of appointment of Deans, Directors and Director- Generals shall be such as may be prescribed.

3. Statutes for Institutes, Academies etc— (1) The Statutes of the Islamic Research

Institute, the International Institutes of Islamic Economics, the Shari'ah Academy and the Academy for Dawah and Training of Imams shall be such as prescribed in Annexures to the First Statutes.

(2) They shall remain in force until amended or replaced in the prescribed manner.

4. Board of Studies.— (1) There shall be a separate Board of Studies for each subject or group of subjects, as may be prescribed by regulations.

(2) Each Board of Studies shall consist of—

(i) the Dean of the Faculty or Director-General or Director of the Institute or Academy;

(ii) all Professors and Associate Professors in the Institute or Academy concerned;

(iii) two University Teachers, other than Professors or Associate Professors, to be appointed by rotation in order of seniority by the Academic Council;

(iv) three Teachers, other than University Teachers, to be appointed by the Board of Governors; and

(v) one expert to be appointed by the President.

(3) The term of office of members of the Board of Studies, other than *ex-officio* members, shall be two years.

(4) The quorum for a meeting of the Board of Studies shall be one-half of the total number of members, a fraction being counted as one.

(5) The Dean, Director-General or Director of the Faculty Institute or Academy shall be the Chairman and Convenor of the Board of Studies.

(6) The functions of the Board of Studies shall be—

(a) to advise the authorities on all academic matters connected with instruction, research and examination in the subject or subjects concerned;

(b) to propose curricula and syllabi for all academic and training programmes;

(c) to suggest a panel of names of examiners in the subject or subjects concerned; and

(d) to perform such other functions as may be prescribed by the Regulations.

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5. The Selection Board.– (1) The Selection Board shall consist of—

(i)	the President		*Chairman.*
(ii)	the Chief Justice, Federal Shariat Court, or a Judge of the Court nominated by him.		*Member.*
(iii)	a Vice-Chancellor of a University in Pakistan to be nominated by the Chancello.r		*Member.*
(iv)	the Whole-time-Member, University Grants Commission, Islamabad.		*Member.*
(v)	one member of the Board of Governors, one specialist in the subject concerned and two other men of eminence to be appointed by the Board of Governors provided that non of them is an employee of the University.		*Member.*
(vi)	the head of the teaching or research unit concerned and		*Member.*
(vii)	one Vice-President to be nominated by the President		*Member/Secretary.*

(2) The members of the Selection Board, other than *ex-officio* members, shall hold office for two years.

(3) The quorum for a meeting of the Selection Board shall be six.

(4) No member of the Selection Board who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Selection Board.

(5) In selecting candidates for the posts of Professors and Associate Professors, the Selection Board shall, co-opt or consult three experts in the subject concerned and, in selecting candidates for other teaching posts, two experts in the subject concerned, to be nominated by the President, from a standing list of experts of each subject approved by the Board of Governors on the recommendation of the Selection Board and revised from time to time.

6. Functions of the Selection Board.—(1) The Selection Board shall consider all applications for teaching and other posts received in response to an advertisement in case of direct appointments and shall recommended to the Board the names of suitable candidates for appointment to such posts.

(2) The Selection Board may recommend to the Board of Governors the grant of a higher initial pay in a suitable case for reasons to be recorded.

(3) The Selection Board may recommend to the Board of Governors the appointment of an eminently qualified person to a position in the University on terms and conditions which may differ in any particular case from those prescribed.

(4) The Selection Board shall consider all cases of promotion of officers of the university and recommend to the Board of Governors the names of suitable candidates for such promotions.

(5) In the event of an unresolved difference of opinion between the Selection Board and the Board of Governors, the matter shall be referred to the Board of Trustees whose decision shall be final.

7. The Finance and Planning Committee.— (1) There shall be a Finance and Planning Committee consisting of—

(i)	the President.	.. .. ..	Chairman.
(ii)	two nominees of the Board of Trustees.	.. .. ..	Member.
(iii)	a nominee of the Board of Governors.	.. .. ..	Member.
(iv)	the Whole-time-Member University Grants Commission.	.. .. ..	Member.
(v)	the Director-General of the Academy of Educational Planning & Management.	.. .. ..	Member.
(vi)	one Vice-President to be nominated by the President.	.. .. ..	Member/Secretary

(2) The term of office of the members of the Committee, other than the *ex-officio* members, shall be two years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be four.

8. Functions of the Finance and Planning Committee.— The functions of the Finance and Planning Committee shall be—

(a) to consider the annual statement of accounts and the annual and revised budget estimates and advise the Board of Governors thereon;

(b) to review periodically the financial position of the university;

(c) to advise the Board of Governors on all matters relating to planning, development, finance, investments and accounts of the university;

(d) to prepare short-term and long-term academic development plans;

(e) to prepare staff and resource development plans; and

(f) to perform such other functions as may be prescribed by Statutes.

9. University Discipline Committee.— (1) The University Discipline Committee shall consist of three senior teachers to be nominated by the President, including the officer incharge of student affairs (by whatever name called) who shall also be its Secretary.

(2) The Chairman of the Committee shall be nominated by the President from amongst the members of the Committee.

(3) The term of office of the members of the Committee shall be two years.

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(4) The quorum for a meeting of the University Discipline Committee shall be three.

(5) The functions of the committee shall be—

(a) to deal with all inter-institute cases of discipline in the University;

(b) to propose regulations relating to the conduct of university students, maintenance of discipline and breach of discipline;

(c) to recommend to the President suspension, expulsion and rustication of students on the basis of the inquiry conducted under the Rules or Regulations; and

(d) to perform such other functions as may be prescribed.

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Annex I

ISLAMIC RESEARCH INSTITUTE

1. ***Establishment of the Institute.—*** The Islamic Research Institute, hereafter in this Annex referred to as the Institute, established under Notification No. F. 15-1059-E-IV, dated the 10th March, 1960, and referred to in section 43 of the Islamic University Ordinance, 1980 (LIII of 1980), shall be reconstituted in the manner described in these Statutes.

2. ***Objectives and Functions of the Institute.—*** The objectives and functions of the Institute shall be to—

(i) act as the research arm of the University;

(ii) develop and disseminate methodology for research in various fields of Islamic Learning;

(iii) to interpret the teachings of Islam in such a way as to bring out its dynamic character in the context of the intellectual and scientific progress of the modern world;

(iv) identity and study contemporary problems of the world of Islam;

(v) contribute to the revival of Islamic heritage;

(vi) publish monographs, research reports, research journals and such other research material as may be considered necessary for the promotion of knowledge of Islam;

(vii) appoint study groups for identifying issues facing the Muslim society;

(viii) serve as a clearing house of knowledge on various aspects of Islam;

(ix) organize seminars, conferences, symposia and work-shops to promote harmonious understanding amongst various schools of thought in Muslim societies;

(x) perform such other functions as may be necessary for realization of its objectives.

3. ***The Council.—*** (1) There shall be a Council of the Institute consisting of—

(i)	the Chairman to be appointed by the Board of Governors.	.. .. ..	*Chairman*
(ii)	the Chairman, Council of Islamic Ideology	.. .. ..	*Member.*
(iii)	the Chairman, University Grants Commission or a Member of the Commission nominated by him.	.. .. ..	*Member.*
(iv)	a Judge of the Shariat Bench of the Supreme Court to be nominated by the Chief Justice of Pakistan.	.. .. ..	*Member.*

(v)	The Chief Justice, Federal Shariat Court or a Judge to be nominated by him.	..	..	..	*Member.*
(vi)	the Secretary, Ministry of Religious Affairs.	..	..	..	*Member.*
(vii)	one nominee of the Board of Trustees.	..	..	..	*Member.*
(viii)	one nominee of the Board of Governors.	..	..	..	*Member.*
(ix)	two eminent scholars to be nominated by the Rector.	..	..	..	*Member.*
(x)	one Vice-President to be nominated by the President.	..	..	..	*Member.*
(xi)	the Director-General of the Institute.	..	..	..	*Member.*

(2) The members, other than *ex-officio* members, of the Council shall hold office for a period of two years and shall be eligible for re-appointment.

(3) The quorum for a meeting of the Council shall be one-half of the total number of members fraction being counted as one.

(4) The Director-General shall appoint an officer of the Institute to act as Secretary of the Council.

(5) The meetings of the Council shall be convened ordinarily at ten day's notice specifying the time, date and place for the meeting and supplying the agenda with working papers, but a meeting in emergency may be called at a notice of not less than three days.

4. ***Powers and functions of the Council***.— (1) Under the general supervision and control of the Board of Trustees, the Council shall be the executive body of the Institute and shall, subject to the provisions of these Statutes, exercise general supervision over the affairs of the Institute.

(2) In particular and without prejudice to the generality of the foregoing provisions, the Council shall have the powers to—

(i) exercise executive and financial control over the Institute and to manage its properties and assets;

(ii) approve the annual budget estimates and annual statements of accounts of the Institute and to make bye- laws for the financial control and proper administration of the Institute;

(iii) frame Rules for regulating the affairs and, carrying out the objectives of the Institute and in particular, for—

(a) conducting its own proceedings;

(b) the constitution of committees or sub-committees

(iv) lay down and define the functions of the various constituent parts of the Institute, its departments, committees and sections and to define the functions and duties of its functionaries;

(v) develop and promote collaboration with other appropriate bodies for the development of educational material in various disciplines, particularly human and social sciences with Islamic perspective;

(vi) appoint the officers and staff of the Institute and determine the terms and conditions of their service as may be prescribed;

(vii) secure the services of experts on terms and conditions agreed upon between the Institute and the experts or the Institute and the agency or organization from which the services of the experts are secured;

(viii) perform such other functions as may be necessary for the realization of its approved targets and objectives.

5. ***The Chairman of the Council***.— (1) The Chairman of the Council shall be appointed by the Board of Governors for such period and on such terms and conditions as the Board may determine.

(2) The Chairman of the Council shall have the powers to convene the meetings of the Board.

(3) The meetings of the Council shall be presided over by the Chairman, and in his absence, by a member to be elected by the members present to preside over that meeting.

(4) The Chairman shall perform such functions as may be entrusted to him by the Board of Governors and the Council.

6. ***Director-General***.— (1) There shall be a Director-General of the Institute, who shall be appointed by the Board of Governors for such period and on such terms and conditions as the Board of Trustees may, from time to time, determine.

(2) The Director-General of the Institute shall be the executive and academic head of the Institute and shall exercise such powers and perform such functions as may be assigned to him by the Chairman or the Council.

(3) The Council may, from time to time, delegate to the Dean of the Institute such powers and functions as it may consider necessary for the purpose of these Statutes.

(4) Without prejudice to the generality of the foregoing provisions, the Director-General shall have the powers—

(i) to make all appointments to posts as may be prescribed;

(ii) to accord formal sanction to the expenditure provided for in the sanctioned budget and to reappropriate funds within the same major heads of expenditure;

(iii) to appoint, from time to time, Committees or sub-committees for specified periods with clearly defined functions and terms of reference for assisting him in academic and administrative affairs of the Institute.

7. ***Funds, audit, etc***.— (1) The funds of the Institute shall comprise the following, namely:—

(i) Grants made by the Board of Trustees directly or through the University;

(ii) grants, if any, made by the Government of Pakistan or other agencies;

(iii) donations, gifts and endowments received by the Institute;

(iv) income from other sources such as sale-proceeds and royalties on publications of the Institute, fees and remunerations.

(2) No expenditure shall be made from the Fund unless a bill for its payment has been audited by a qualified auditor to be appointed by and in a manner approved by the Rector.

(3) The accounts of the Institute shall be maintained in such form and manner as may be prescribed by the Council and shall be audited once a year by an auditor appointed by the Council.

(4) An Annual report on the activities and performance of the Institute shall be submitted by the Director-General for consideration of the Council as soon as possible after the close of each financial year alongwith the Annual Statement of Accounts and audit report thereon and the Council shall submit them alongwith its comments to the Board of Trustees.

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Annex II

INTERNATIONAL INSTITUTE OF ISLAMIC ECONOMICS

1. ***Establishment of the Institute.—***There shall be an Institute to be called the International Institute of Islamic Economics, hereafter in this Annex referred to as the Institute.

2. ***Objectives and functions of the Institute.—***The Institute shall—

(a) organize teaching of economics, Islamic economics and related disciplines and conduct advanced studies and research in the field of economics and allied disciplines and evaluation of Islamic economics at undergraduate, graduate, doctoral and post-doctoral levels.

(b) promote cooperation with other institutes and organisations in the field of economics and allied disciplines and Islamic economic through seminars, scholarships, stipends and bursaries and in any other manner which the Council of the Institute, hereafter in this Annex referred to as the Council, may approve.

(c) organize studies, surveys, collection of data in the field of economics and allied disciplines from the Muslim world and publish the results of this work for the larger benefit of the Ummah; and

(d) adopt such other measures to achieve its objectives as the Council may determine from time to time.

3. There shall be a Council consisting of—

(i) a Chairman to be appointed by the Board of Trustees.. .. .. *Chairman.*

(ii) a representative of the University Grants Commission not below the rank of member of the Commission .. .. .. *Member.*

(iii) a representative of the President of the below the rank of a Professor.. *Member.*

(iv) two experts to be nominated by the Board of Trustees.. .. .. *Member.*

(v) three experts to be nominated by the Rector in consultation with the Chairman of the Council.. .. .. *Member.*

(vi) One Vice-President to be nominated by the President.. .. .. *Member.*

(vii) the Director General of the Institute .. .. .. *Member.*

(2) The members of the Council, other than *ex-officio* members, shall hold office for two years.

(3) The quorum for a meeting of the Council shall be one-half of the total number of members, a fraction being counted as one.

4. ***Powers and functions of the Council***.—(1) The Council shall be the executive body of the Institute and shall, subject to the provisions of these Statutes, exercise general supervision over the affairs of the Institute.

(2) In particular and without prejudice to the generality of the foregoing provisions, the Council shall have the power to—

(a) exercise executive and financial control over the administration of the Institute and to manage its properties and assets;

(b) to prepare the annual budget estimates and annual statement of accounts of the Institute and to make bye-laws for financial control and proper administration of the Institute and submit it to the Board of Trustees for approval;

(c) lay down and define the functions of the various constituent parts of the Institute its departments, committees and sections and to define the functions and duties of its functionaries;

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(d) sanction schemes of undergraduate, postgraduate and doctoral programmes of teaching and research in economics with special emphasis on Islamic economics leading to the award of degrees in accordance with, and under the conditions prescribed by, Regulations;

(e) develop and approve non-degree programmes of specialized teaching or training leading to the award of diplomas or certificates in areas of Islamic economics to be prescribed by Regulations;

(f) approve schemes of faculty development for specialization in economics, Islamic economics and allied disciplines;

(g) develop and promote collaboration with other appropriate bodies for the development of courses in Islamic economics for introduction as a regular discipline at various levels of education in the country and abroad and coordinate teaching and research in Islamic economics at international level;

(h) secure the services of experts on terms and conditions agreed upon between the Institute and the experts or the Institute and the agency or organization from which the services of the experts are secured;

(i) lay down the functions and rules of business and procedure for the various organizations and bodies of the institute;

(j) issue directions on administrative and financial matters connected with or incidental to the provisions of this Chapter; and

(k) perform such other functions as may be necessary for the realization of its approved targets and objectives.

5. ***Chairman of the Council***.— (1) The Chairman of the Council shall be appointed by the Board of Trustees for such period and on such terms and conditions as the Board may determine.

(2) The Chairman of the Council shall, when present, preside over the meetings of the Council.

(3) In the absence of the Chairman of the Council, meetings of the Council may be presided at by one of its members to be appointed by the members present.

(4) The Chairman of the Council shall perform such other functions as may be entrusted to him by the Board of Trustees or the Council.

6. ***Director-General***.— (1) There shall be a Director-General of the Institute to be appointed by the Council on such terms and conditions as it may determine.

(2) The Director-General of the Institute shall be the executive and academic head of the Institute and shall exercise such powers and perform such functions as may be assigned to him by the Chairman or the Council.

(3) The Council may, from time to time, delegate to the Director General of the Institute such powers and functions as it may consider necessary for the purpose of these Statutes;

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(4) Without prejudice to the generality of the foregoing provision, the Director-General shall have the powers:—

(i) to make all appointments to posts as may be prescribed;

(ii) to accord formal sanction to the expenditure provided for in the sanctioned budget and to reappropriate funds; and

(iii) to appoint from time to time committees or sub-committees for specified periods with clearly defined functions and terms of reference for assisting him in academic and administrative affairs of the Institute.

7. ***Funds and reports of the Institute***.— (1) The Institute shall have a Fund to which shall be credited all grants and contributions made by the University or received through gifts and endowments, sale proceeds and royalties on publications, fees and remunerations or from any other source.

(2) Grants and other expenditure to be made and incurred by the Institute under these statutes shall be disbursed out of the Fund and no expenditure shall be made from the Fund unless a bill for its payment has been audited by a qualified auditor to be appointed by and in a manner approved by the Council.

(3) The accounts of the Institute shall be maintained in such form and manner as may be prescribed and shall be audited once a year by an auditor appointed by the Council.

8. ***Annual statement of accounts to be submitted to the Board of Trustees.—*** The annual statement of accounts and audit report thereon shall be submitted by the auditor for consideration of the Council which shall submit it alongwith its comments to the Board of Trustees.

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Annex III

SHARI'AH ACADEMY

1. ***Establishment of the Academy***.—There shall be an Academy to be called the Shari'ah Academy.

2. ***Objectives and functions of the Academy***.—The Academy shall —

(i) arrange pre-service and in-service training in Islamic Shariah, hold conferences, seminars, symposia and workshops ;

(ii) develop methodologies for training, research and advanced studies in Islamic law and allied disciplines;

(iii) serve as a clearinghouse of information;

(iv) publish monographs, reports, journals and such other material as may be considered necessary; and

(v) perform such other functions as may be necessary for realization of its objectives.

3. ***Council of the Academy.—***(1) There shall be a Council of the Academy consisting of—

(i) Chairman, to be appointed by the Board of Governors;

(ii) Director-General of the Academy;

(iii) two representatives of the Board of Trustees;

(iv) one representative of the Board of Governors;

(v) Chief Justice of the Federal Shariat Court;

(vi) a member of the Shariat Bench of the Supreme Court, to be nominated by the Chief Justice of Pakistan ;

(vii) one Vice-Chancellor of a University in Pakistan, to be nominated by the Chancellor;

(viii) Chairman, University Grants Commission, or a member of the said Commission, to be nominated by the Chairman;

(ix) Two experts in Islamic law, to be nominated by the Ministry of Justice;

(x) Secretary to the Government of Pakistan in the Ministry of Justice; and

(xi) a Vice-President, to be nominated by the President.

(2) Members, other than ex-officio members, of the Council shall hold office for a period of three years and shall be eligible for re-appointment.

(3) The quorum for a meeting of the Council shall be one-half of the total number of members, a fraction being counted as one.

(4) The meeting of the Council shall be convened ordinarily at ten days' notice specifying the time, date and place for the meeting and supplying the agenda with working papers, but a meeting in emergency may be called at a notice of not less than three days.

(5) The Director-General shall appoint a staff member of the Academy to act as Secretary of the Council.

4. ***Powers and functions of the Council***.— (1) Under the general supervision and control of the Board of Trustees, the Council shall be the executive body of the Academy and shall, subject to the provisions of these Statutes, exercise general supervision over the affairs of the Academy;

(2) In particular and without prejudice to the generality of the foregoing provisions, the Council shall have the powers to—

(i) exercise executive and financial control over the Academy and to manage its properties and assets:

(ii) approve the annual budget estimates and annual statement of accounts of the Academy and to make bye-laws for financial control and proper administration of the Academy ;

(iii) frame rules for regulating the affairs and carrying out the objectives of the Academy and, in particular, for—

(a) conducting its own proceedings;

(b) constitution of committees or sub-committees and the conduct of their business;

(iv) lay down the functions of various departments of the Academy and define the duties of their functionaries;

(v) collaborate with other appropriate bodies for developmental purposes and sharing of intellectual and physical resources;

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(vi) secure the services of experts on terms and conditions agreed upon between the Academy and the expert concerned or the Academy and the agency or organization from which the services of the experts are secured: and

(vii) perform such other functions as may be necessary for the realization of its approved targets and objectives.

5. ***Director-General.—*** (1) There shall be a Director-General of the Academy, who shall be a whole-time officer appointed by the Board of Governors on such terms and conditions as the Board may determine.

(2) The Director-General shall be the executive and academic head of the Academy and shall exercise such powers and perform such functions as may be determined by the Council.

(3) The Council may, from time to time, delegate to the Director-General such powers and functions as it may deem fit for the purpose of these Statutes.

(4) Without prejudice to the generality of the fore-going provisions, the Director-General shall have the powers—

(i) to make all appointments to such posts as may be prescribed;

(ii) to accord formal sanction to the expenditure provided for in the sanctioned budget and to re-appropriate funds within heads of expenditure ;

(iii) to appoint committees or sub-committees for such specified periods and purposes as may be necessary to advance the objectives of the Academy and to assist him in the discharge of the academic and administrative functions of the Academy.

6. ***Funds, audit, etc***.— (1) The funds of the Academy shall consist of—

(i) grants made by the Board of Trustees, directly or through the University ;

(ii) grants made by the Government or other public or private agencies ;

(iii) donations, gifts and endowments received by the Academy; and

(iv) income from all other sources, such as, sale proceeds and royalties on publications of the Academy, fees charged from trainees and remunerations received for services rendered.

(2) No expenditure shall be made from the funds of the Academy unless a bill for its payment has been audited by a qualified auditor to be appointed by and in a manner approved by the Council.

(3) The accounts of the Academy shall be maintained in such form and manner as may be prescribed by the Council and shall be audited once a year by an auditor appointed by the Council.

7. ***Annual Report.—*** (1) An annual report on the activities and performance of the Academy shall be submitted for consideration of the Council as soon as possible after the close of each financial year, alongwith the annual statement of accounts and the audit report thereon.

(2) The Council shall submit the statements and reports, together with its comments, to the Board of Governors and the Board of Trustees.

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Annex IV

ACADEMY FOR DA'WAH AND TRAINING OF IMAMS

1. Establishment of the Academy.— There shall be an Academy for Da'wah and Training of Imams.

2. *Objectives and functions of the Academy*.—The Academy shall :—

(a) plan and develop educational, training and research programmes of Da'wah;

(b) organize programmes for the training of Imams;

(c) develop methods and techniques in Da'wah and in training of Imams;

(d) design and develop literature on Da'wah;

(e) plan and develop audio-visual material for use in Da'wah and training of Imams;

(f) seek cooperation and coordination with other institutions with similar objectives in and outside Pakistan;

(g) organize symposia, seminars, workshops, conferences, tarbiyah programmes, exchange of scholars, orientation courses and in-service training programmes;

(h) develop a resource centre on Da'wah;

(i) publish monographs, reports, surveys, journals, booklets, books and such other materials as may be considered necessary to achieve the objectives of the Academy ;

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(j) establish regional centres to promote the objectives of the Academy; and

(k) perform such other functions as may be determined by the Council to achieve the objectives of the Academy.

3. *The Council*.— (1) There shall be a Council of the Academy consisting of—

(i)	a Chairman, to be appointed by the Board of Governors..	*Chairman.*
(ii)	the Chairman, Council of Islamic Ideology	*Member.*
(iii)	the Chairman, University Grants Commission or a member of Commission nominated by him	*Member.*

(iv)	the Chief Justice, Federal Shariat Court, or a Judge to be nominated by him	*Member.*
(v)	the Secretary , Ministry of Religious Afairs or his nominee not below the rank of a Joint Secretary..	*Member.*
(vi)	the Secretary, Ministry of Information and Broad- casting or his nominee not below the rank of a Joint Secretary	*Member.*
(vii)	a nominee of the Board of Trustees	*Member.*
(viii)	a nominee of the Board of Governors..	*Member.*
(ix)	two eminent scholars to be nominated by the Rector	*Member.*
(x)	a Vice-President to be nominated by the President; and	*Member.*
(xi)	the Director-General of the Academy..	*Member.*

(2) The members of the Council, other than ex-officio members, shall hold office for a period of two years and shall be eligible for re-appointment.

(3) The quorum for a meeting of the Council shall be one-half of the total number of members, a fraction being counted as one.

(4) The Director-General shall appoint an officer of the Academy to act as the Secretary of the Council.

(5) A meeting of the Council shall be convened ordinarily at ten days notice specifying the time, date and place for the meeting and supplying the agenda with working papers, but a meeting in emergency may be called at a notice of not less than three days.

4. ***Powers and functions of the Council.—***(1) Under the general supervision and control of the Board of Trustees, the Council shall be the executive body of the Academy and shall, subject to the provisions of these Statutes, exercise general supervision over the affairs of the Academy.

(2) In particular and without prejudice to the generality of the foregoing provision, the Council shall have the powers to :—

(a) exercise executive and financial control over the Academy;

(b) approve the annual budget estimates and annual statement of accounts of the Academy and to make by-laws for financial control and proper administration of the Academy;

(c) frame rules for regulating the affairs and carrying out the objectives of the Academy and in particular, for the following purposes:

(i) conducting its own proceedings; and

(ii) constitution of committees or sub-committees and the conduct of their

business;

(d) lay down the functions of various departments of the Academy and define their duties and functions;

(e) collaborate with other appropriate bodies with similar objectives for developmental purposes and sharing of intellectual and physical resources;

(f) appoint academic and administrative staff of the Academy and determine the terms and conditions of their services;

(g) secure the services of experts on terms and conditions agreed upon between the Academy and the expert concerned, or the Academy and the agency or organization from which the services of the experts are secu red; and

(h) perform such other functions as may be necessary for the realization of its objectives.

5. ***Director-General***.—(1) There shall be a Director-General of the Academy, who shall be a whole-time officer appointed by the Board of Governors, on such terms and conditions as it may determine.

(2) The Director-General shall be the executive and academic head of the Academy and shall exercise such powers and perform such functions as may be determined by the Council.

(3) The Council may, from time to time, delegate to the Director-General such powers and functions as it may deem fit for carrying out the purposes of these Statutes.

(4) Without prejudice to the generality of the foregoing provisions, the Director-General shall have the powers.—

(a) to make all appointments to such posts as may be prescribed ;

(b) to accord formal sanction to the expenditure provided for in the sanctioned budget and to reappropriate funds within the major head of expenditure ; and

(c) to appoint committees or sub-committees for such specified periods and purposes as may be necessary to promote the objectives of the Academy and to assist him in the discharge of the academic and administrative functions of the Academy.

6. ***Funds and Accounts*.—**(1) The funds of the Academy shall consist of—

(a) grants made by the Board of Trustees ;

(b) grants made by the Government or other public or private agencies ;

(c) donations, gifts and endowments revived by the Academy ; and

(d) income from all other sources such as sale proceeds and royalties on publications of the Academy, fees charged from trainees and remuneration

received for services rendered.

(2) No expenditure shall be made from the funds of the Academy unless a bill for its payment has been audited by a qualified auditor to be appointed in a manner approved by the Council.

(3) The accounts of the Academy shall be maintained in such form and manner as may be prescribed by the Council and shall be audited once a year by an auditor appointed by the Council.

7. ***Annual report.***— An annual report on the activities and performance of the Academy shall be submitted for consideration of the Council, as soon as possible, after the close of each financial year alongwith the annual statement of accounts and the audit report thereon and the Council shall submit the statements and reports, together with its comments, to the Board of Governors and the Board of Trustees.

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THE INVESTMENT CORPORATION OF PAKISTAN ORDINANCE, 1966.

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THE INVESTMENT CORPORATION OF PAKISTAN ORDINANCE, 1966

[1]ORDINANCE NO. IV OF 1966

[*19th February, 1966*]

An Ordinance to establish an Investment Corporation in Pakistan

WHEREAS it is expedient to establish an Investment Corporation to encourage and broaden the base of investments and develop the capital market in Pakistan and to provide for all matters connected therewith;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred on him by clause (1) of Article 29 of the Constitution, and all other powers enabling him in that behalf, the President of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Investment Corporation of Pakistan Ordinance, 1966.

(2) It shall extend to the whole of Pakistan and shall also apply to the business of the Corporation transacted outside Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context—

(a) "advance" means a loan for purposes of investment;

(b) "Board" means the Board of Directors of the Corporation ;

(c) "bond" means a bond of any description issued by any institution or by the [2][Federal Government] or a Provincial Government ;

(d) "Chairman" means the Chairman of the Board ;

(e) "company" means a company as defined in section 2 (2) of the Companies Act, 1913 (VII of 1913), and includes a body corporate established or incorporated under any other law for the time being in force in Pakistan;

[1]Approved by the National Assembly of Pakistan on the 16th March, 1966, *see* Gaz. of P., 1965, Ext., p. 137.
[2]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

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(f) "constituent institution" means any scheduled bank or other investing institution which becomes a shareholder of the Corporation with the approval of the [1][Federal Government];

(g) "Corporation" means the Investment Corporation of Pakistan established under this Ordinance;

(h) "debenture" means debenture issued by any company or institution in Pakistan in accordance with the rules for the time being applicable to the issue of debentures and includes debenture stock ;

(i) "Deposit Account" means an account maintained by the Corporation of the cash deposits made with it for purposes of investment;

(j) "Director" means a Director of the Corporation;

[2][(jj) "ICP Mutual Funds" means Mutual Funds from time to time constituted, issued and managed by the Corporation, whether directly or through a subsidiary company or agency set-up by it or by any other entity or person qualified to manage Mutual Funds to whom the right to manage the Mutual Funds has been assigned by the Corporation, whether under its trusteeship or any other entity appointed or approved by it operating under any law for the time being in force and the rules or regulations made thereunder]

(k) "institution" means an organisation established under any law for the time being in force in Pakistan for the promotion of some public object ;

(l) "investment" means investment in the equity or debentures and other securities of any company or institution ;

(m) "Managing Director" means the Managing Director of the Corporation and includes any person for the time being authorised to discharge the functions of the Managing Director ;

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(n) "prescribed" means prescribed by rules ;

(o) "prospectus" means a prospectus as defined in clause (14) of section 2 of the Companies Act, 1913 (VII of 1913);

(p) "regulations" means regulations made under this Ordinance ;

(q) "rule" means a rule made under this Ordinance ;

(r) "scheduled bank" has the same meaning as is assigned to it in the State Bank of Pakistan Act, 1956 (XXXIII of 1956);

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Subs. by Act 4 of 1999, s.9.

(s) "securities" include any note, stock, bond, debenture, evidence of indebtedness, transferable share, investment contract, certificate of deposit for a security, a certificate of interest or participation in any profit sharing agreement ;

(t) "share" means share of any joint stock company registered in Pakistan ;

(u) "State Bank" means the State Bank of Pakistan ;

(v) "underwriting" means contracting, with or without conditions, to purchase or subscribe for stocks, shares, bonds, debentures or other securities issued by any company or institution with a view to holding, selling or distributing the whole or part thereof.

3. Establishment and incorporation.—(1) As soon as may be after the coming into force of this Ordinance, the [1][Federal Government] shall establish, by notification in the official Gazette, a Corporation to be called the Investment Corporation of Pakistan for the purposes of this Ordinance.

(2) The Corporation shall be a body corporate by the name of the Investment Corporation of Pakistan, having perpetual succession and a common seal, with power, subject to the provisions of this Ordinance, to acquire, hold and dispose of any property and shall, by the said name, sue and be sued.

(3) The Corporation shall not be deemed to be a banking company within the meaning of the Banking Companies Ordinance, 1962 (LVII of 1962).

4. Share capital.—(1) The authorised share capital of the Corporation shall be twenty crores of rupees divided into twenty lakh ordinary shares of one hundred rupees each.

(2) The paid-up share capital of the Corporation shall, in the first instance, be five crores of rupees fully paid-up, and may, with the approval of the [1][Federal Government], be increased from time to time.

(3) Shares of the Corporation shall be offered for subscription to the constituent institutions and general public as may be decided by the [1][Federal Government].

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(4) The shares of the Corporation shall be listed on each Stock Exchange in Pakistan as the Board of Directors determines.

5. Shares deemed to be securities under certain Acts. The shares of the Corporation shall be deemed to be included among the securities enumerated in section 20 of the Trust Act, 1882 (II of 1882), and to be approved securities for the purpose of the Insurance Act, 1938 (IV of 1938), and the Banking Companies Ordinance, 1962 (LVII of 1962).

6. Numbering of shares. Every share of the Corporation shall be assigned a number and shall be distinguished by such number.

7. Register of shareholders. The Corporation shall maintain at its head office a register of shareholders.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

8. Qualification of shareholders.— (1) No person shall be qualified to be registered as a shareholder who is not, under any law relating to contracts for the time being in force, competent to enter into a contract.

(2) If at any time after the registration of a person as a shareholder, it is found that he was not, at the time of registration, qualified to be so registered, he shall not be entitled to exercise any of the rights of a share holder otherwise than for the purpose of sale of his shares under the orders of a competent Court.

9. Notice regarding trust. The Corporation shall not enter in its register of shareholders any notice of any trust express, implied or constructive, nor be under any obligation to receive any such notice.

10. Offices, branches, etc.— (1) The head office of the Corporation shall be located at Karachi.

(2) The Corporation may establish such regional and other offices, branches and agencies as the Board may think fit.

11. Direction and superintendence.— (1) The general direction and superintendence of the affairs and business of the Corporation shall vest in a Board of Directors constituted in accordance with section 12 which may exercise all such powers and do all such acts and things as may be exercised or done by the Corporation and are not, by this Ordinance, expressly directed or required to be done by the Corporation in general meeting.

(2) The Board in discharging its functions shall act on commercial considerations with due regard to the investment climate and to the interests of the capital market and of its depositors and the public generally.

(3) Where the [1][Federal Government] is satisfied that—

(a) in the public interest ; or

(b) to prevent the affairs of the Corporation being conducted in a manner detrimental to the interests of the depositors or in a manner prejudicial to the interests of the Corporation ; or

(c) to secure the proper management of the Corporation generally ;

it is necessary to issue directions to the Corporation generally or in any particular case, it may, from time to time, issue such directions as it deems fit, and the Corporation shall be bound to comply with such directions.

(4) The [1][Federal Government] may, on representation made to it or on its own motion, modify or cancel any direction issued under sub-section (3) and in so modifying or cancelling any direction may impose such conditions as it thinks fit, subject to which the modification or cancellation shall have effect.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

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12. Board.— (1) The Board shall consist of the following Directors, namely:—

(a) the Chairman to be appointed by the [1][Federal Government];

(b) four persons to be appointed by the [1][Federal Government] of whom two shall be from amongst persons serving under the [1][Federal Government] and two from amongst the shareholders;

(c) five persons to be elected by the shareholders in such manner as may be laid down in the regulations ; and

(d) the Managing Director to be appointed by the [1][Federal Government]:

Provided that the [1][Federal Government] may, if it so considers expedient, increase by two the number of the Directors to be appointed by it:

Provided further that in constituting the Board for the first time, the [1][Federal Government] shall appoint five Directors in place of the Directors required to be elected under clause (c).

(2) Save as provided in sub-section (2) of section 13 in respect of the Chairman, and in sub-section (2) of section 14 in respect of the Managing Director a Director appointed by the [1][Federal Government] shall hold office during its pleasure.

(3) A Director elected under clause (c) of sub-section (1) shall hold office for a term of three years and shall continue in office thereafter until his successor is elected and shall also be eligible for re-election:

Provided that such Director may be removed before the expiration of his term by a special resolution passed by the vote of such shareholders as hold more than half of the shares of the Corporation.

(4) A casual vacancy in the office of an elected Director shall be filled by election and the person elected to fill such vacancy shall hold office for the unexpired period of the term of his predecessor:

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Provided that it shall not be necessary to fill a vacancy for a period not exceeding three months.

13. Chairman.— (1) The appointment of the Chairman shall be honorary.

(2) Unless the [1][Federal Government] otherwise directs, the Chairman shall hold office for term of three years and continue in office thereafter until his successor is appointed and shall be eligible for re-appointment.

(3) A casual vacancy in the office of the Chairman shall be filled by the [1][Federal Government] and the person appointed to fill such vacancy shall, unless the [1][Federal Government] otherwise directs, hold office for the unexpired period of the term of his predecessor.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

14. Managing Director.— (1) The Managing Director shall be appointed on such salary and terms and conditions as the [1][Federal Government] may determine.

(2) The Managing Director shall, unless the [1][Federal Government] otherwise directs, hold office for a term of five years which the [1][Federal Government] may, from time to time, extend.

(3) The Managing Director shall be the chief executive of the Corporation and shall subject to the provisions of this Ordinance, the rules and regulations be responsible for the management of the affairs of the Corporation. He shall be a whole-time officer and shall in addition to his functions as the chief executive exercise such powers and perform such functions as may be assigned to him by the Board:

Provided that the [1][Federal Government] may utilise the services of the Managing Director for any other work.

15. Qualifications and disqualifications of Directors.— (1) No person shall be or shall continue to be a Director who—

(a) is or has at any time been convicted of an offence which in the opinion of the [1][Federal Government] is an offence involving moral turpitude;

(b) is found to be lunatic or becomes of unsound mind;

(c) is for the time being disqualified for membership of any elective body under any law for the time being in force ;

(d) is a salaried official of the Corporation, other than the Managing Director ;

(e) is or at any time has been adjudicated an insolvent or has suspended payment or compounded with his creditors ;

(f) without leave of absence from the Board, absents himself from all the meetings of the Board for a continuous period of six months or, if less than three meetings are held within such period, from three consecutive meetings of the Board ;

(g) in the case of an elected Director, ceases to hold in his own right the minimum number of shares required to qualify him for election ;

(h) ceases to represent the constituent institution which nominated him as its representative.

(2) No person shall be elected or qualified for election as Director who—

(a) is in the service of Government ;

(b) does not hold in his own right unencumbered shares of the Corporation of the nominal value of twenty-five thousand rupees.

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

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16. Executive Committee.— (1) The Board shall constitute an Executive Committee consisting of the following members to assist it in the discharge of its functions under this Ordinance :—

(a) the Managing Director ;

(b) two Directors appointed under clause (b) (i) of sub-section (1) of section 12 ;

(c) two Directors from amongst the remaining Directors.

(2) The members of the Executive Committee shall hold office for such period as may be laid down in the regulations;

(3) The minutes of every meeting of the Executive Committee shall be laid before the Board for information at its meeting next following the meeting of the Committee.

(4) Subject to general or special directions of the Board, the Executive Committee may deal with any matter within the competence of the Board.

17. Annual general meetings and special meetings of the shareholders.—(1) The annual general meeting of the shareholders shall be held on such date in the first week of September every year or as soon thereafter as is convenient, at such time and such place in Pakistan as may be fixed by the Board [.][1]

2* * * * * * *

(2) The Board shall submit at the annual general meeting for the consideration of shareholders a balance sheet and a statement of profit and loss of the Corporation for the financial year ending on the thirtieth day of June next preceding such meeting.

(3) The Board may convene a special meeting of the shareholders to be held at such time and place as it may fix for consideration of any matter which, in the opinion of the Board ought to be considered by the shareholders.

(4) Every shareholder shall be entitled to attend a meeting of the shareholders, but no shareholder shall be entitled to vote at any such meeting unless he—

(a) has been registered as a shareholder for a period of not less than three months prior to the date of such meeting ; and

(b) has paid all calls and other sums presently payable by him in respect of shares of the Corporation.

(5) Every shareholder entitled to vote shall, when present in person have one vote to be cast by show of hands.

(6) On a poll each shareholder entitled to vote shall have one vote for every five shares and may give his vote either personally or by proxy.

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[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sch., II, for colon.
[2] Proviso omitted *ibid*.

18. Meeting of the Board and the Executive Committee.—(1) No business of the Board or of the Executive Committee shall be transacted except at a meeting at which a quorum of three Directors in the case of the Board and two members in the case of the Executive Committee is present.

(2) The meetings of the Board and of the Executive Committee shall be held at such time and at such places as may be laid down in the regulations:

Provided that until regulations are made in this behalf such meetings shall be convened, in the case of the Board, by the Chairman, and in the case of Executive Committee, by the Managing Director.

(3) All meetings of the Board shall be presided over by the Chairman and in his absence by the person elected by the Directors present from amongst themselves and all meetings of the Executive Committee shall be presided over by the Managing Director.

(4) At a meeting of the Board or of the Executive Committee each Director or member, as the case may be, shall have one vote, and in the case of equality of votes, the person presiding shall have a second or casting vote:

Provided that no Director or member shall vote or participate in a discussion of any matter in which he is directly or indirectly interested and it shall be the obligation of the Director or member to disclose such interest.

(5) No act or proceeding of the Board or of the Executive Committee, or of any person acting in good faith as a Director or member of the Executive Committee, shall be invalid or questioned merely on the ground of the existence of any vacancy in, or any defect in the constitution of, the Board or the Executive Committee, or of any defect in the appointment or qualification of the Director or member, as the case may be.

19. Fees for attending meetings. A Director shall be paid such fees for attending meetings of the Board or Executive Committee as may be prescribed.

20. Appointment of officers, advisers, etc. The Corporation may appoint such officers, advisers, consultants, agents and servants as it considers necessary for the efficient performance of its functions.

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21. Declaration of fidelity and secrecy. Every Director, member of the Executive Committee, adviser, auditor, consultant, agent, officer or servant of the Corporation shall, before entering upon his duties, make a declaration of fidelity and secrecy in the form set out in the Schedule.

22. Indemnity of Directors.—(1) Every Director shall be indemnified by the Corporation against all losses and expenses reasonably incurred by him in the discharge of his duties except such as are caused by his own willful act, negligence or default.

(2) A Director shall not be personally responsible for the acts of any other Director or of any officer or servant of the Corporation for any loss or expense resulting to the Corporation by reason of the insufficiency or deficiency in value of or title to any property or security acquired or taken on behalf of the Corporation, or by the wrongful act of any person under liability to the Corporation, or by anything done by him in good faith in the discharge of his duties.

23. Business which the Corporation is authorised to transact. The Corporation may carry on, transact or do the several kinds of business and acts hereinafter specified, namely:—

(1) underwriting, managing and distributing the issue to of stocks, shares, bonds, debentures and other securities either directly or through or jointly with one or more of its constituent institutions or other investment or financial institutions ;

(2) opening and maintaining of Investors' Deposit Accounts;

(3) making advances for purchase of shares and investment in such other securities as may be approved in each case ;

(4) purchasing and selling shares to the Investors' Deposit Account holders over the counter ;

(5) engaging in the business of investing and reinvesting in and the owning and holding of securities [1][and of discounting of debentures and other securities];

(6) merchandising of shares ;

(7) facilitating investments by selling new floatations of existing or new companies without underwriting obligations ;

(8) helping generally in broadening the base of investments and encouraging investments in sound projects [1][whether by issuing ICP Mutual Funds or otherwise] ;

(9) managing investment portfolios on behalf of individuals or institutions ;

(10) providing professional counsel regarding investments ;

(11) promoting industrial development in Pakistan ;

(12) being a member of a Stock Exchange in Pakistan;

(13) acting in any manner as a principal or agent in matters relating to investment in securities;

(14) for purposes of, and in matters relating to, its business or objects;

(a) to purchase or otherwise acquire, own, sell, transfer and exchange any tangible or intangible, movable or immovable property and any rights, title or interest in such property absolutely, temporarily or on hire or by hire-purchase or on instalment or on such other terms and conditions as may be approved by the Board ;

(b) to accept and furnish any undertaking or commercial guarantee for the performance of any obligation or the fulfilment of any contract or the repayment of any money ;

(c) to accept and furnish any lien, charge, hypothecation or mortgage on any movable or immovable property or any promissory note or bill of exchange ;

[1]Added by the Investment Corporation of Pakistan (Amdt.) Ordinance, 1971 (12 of 1971), s. 3.

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(d) to enter into agreements and contracts and execute such documents as may be considered necessary or expedient ;

[1][(e) to be and act as trustees in respect of ICP Mutual Funds and any debentures, debenture stock or other securities or obligations and to execute any trusts ;]

[2][(f) to assign, transfer to or enter into any contractual arrangements with any person or entity regarding rights and obligations pertaining to management, trusteeship of custodianship of ICP Mutual Funds.]

(15) to appoint attorneys and agents ;

(16) to receive and pay commission, fees and brokerage in connection with its business ;

(17) to sell and realise all property whether movable or immovable which may in any way come into possession of the Corporation in satisfaction or part satisfaction of its claims ; and

(17) generally do all such acts and things as may be necessary or incidental or subsidiary to the transacting of any of the aforesaid business or acts including proceedings in courts of law.

24. Borrowing powers.— (1) With the prior approval of the [3][Federal Government], the Corporation may, for its purposes, raise finances by—

(a) issue and sale of bonds and debentures carrying interest at such rates as may be approved by the [3][Federal Government] ; and

(b) borrowing monies from commercial banks and other institutions and sources with or without the pledge of shares held in its portfolios.

(2) The bonds and the debentures of the Corporation may be guaranteed by the [3][Federal Government] as to the repayment of the principal and payment of interest at such rate as may be fixed by the [3][Federal Government] at the time the bonds and debentures are issued.

25. Special powers. The Corporation's commission, brokerage, fees and other charges for the underwriting and placement of any issue shall, notwithstanding anything contained in any other law be determined by the Corporation after negotiations.

26. Power to impose conditions. For the purpose of transacting any business under this Ordinance with any person, the Corporation may impose such conditions as it may consider necessary or expedient for protecting its interests including provisions to the effect that the proceeds of any issue underwritten by it or accepted by it for placement or any other financial assistance is put to such use by the person as may have been agreed between the Corporation and the person, and any condition so imposed shall notwithstanding anything contained in any other law for the time being in force be valid and enforceable.

27. Disposal of profit.— (1) The Corporation shall establish a Reserve Fund to which shall be credited such amount out of its net annual profit as the Board may determine.

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[1]Added by the Investment Corporation of Pakistan (Amdt.) Ordinance, 1971 (12 of 1971), s. 3.
[2]Added by Act 4 of 1999, s. 9.
[3]Subs. by F.A.O., 1975, Art. 2 and Table for "Central Government".

(2) After deducting the amount under sub-section (1) and making necessary provisions for depreciation of assets and such other matters as are usually provided for by investment companies and institutions or are considered expedient in their interest the Corporation may, out of the surplus remaining from that net annual profit, declare such dividends as may be approved by the Board.

28. Auditors.— (1) The accounts of the Corporation shall be audited by not less than two chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961), appointed from amongst those approved in this behalf by the [1][Federal Government] by the shareholders at the general meeting on such remuneration to be paid by the Corporation as the shareholders may fix.

(2) Every auditor appointed under sub-section (1) shall be given a copy of the annual balance- sheet of the Corporation and shall examine it together with the accounts and vouchers relating thereto, and shall have a list delivered to him of all books kept by the Corporation and shall at all reasonable times have access to the books, accounts and other documents of the Corporation, and may in relation to such accounts examine any Director or officer of the Corporation.

(3) The auditors shall report to the shareholders upon the annual balance sheet and accounts, and in their report they shall state whether in their opinion the balance-sheet contained all necessary particulars and is properly drawn up so as to exhibit a true and correct view of the state of affairs of the Corporation, and in case they have called for any explanation or information from the Board, whether it has been given and whether it is satisfactory.

(4) The [1][Federal Government] may, at any time, issue directions to the auditors requiring them to report to it upon the adequacy of measures taken by the Corporation for protection of its shareholders and creditors or upon the sufficiency of their procedure in auditing the affairs of the Corporation and may, at any time, enlarge or extend the scope of the audit or direct that a different procedure in audit be adopted or that any other examination be made by the auditors if in its opinion the public interest so requires.

(5) The Corporation shall furnish to each shareholder at least fifteen days before the date of the general meeting a copy of the audited balance sheet together with a copy of the profit and loss account for the year and a report on the working of the Corporation during the year.

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29. Return. The Corporation shall furnish to the 1[Federal Government] within three months of the close of the financial year an audited statement in the prescribed form of its assets and liabilities as they stand at the close of that year together with a profit and loss account for the year and a report on the working of the Corporation during the year, and shall also publish the said statement, account and report in the official Gazette.

30. Power to call for payment before agreed period.— (1) Notwithstanding any agreement to the contrary, the Corporation may, by notice, require any person to which it has made advance or which is otherwise liable to make any payment on any specified date or dates forthwith to repay the advance or make the payment aforesaid immediately in full, if—

(a) it appears to the Board that information false or misleading in any material particular has been given in the application for the advance or the creation of the aforesaid pecuniary liability ; or

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(b) the person has failed to comply with the terms of any agreement with the Corporation; or

(c) there is a reasonable apprehension that the person is unable to pay its debts and liabilities or may go into liquidation ; or

(d) the property pledged, mortgaged, hypothecated or assigned to the Corporation, as security for the advance or the said pecuniary liability, is not insured or kept insured by the person to the satisfaction of the Corporation or has, in the opinion of the Board, depreciated in value and further security to the satisfaction of the Board is not given.

(2) On the giving of such notice the entire advance or the aforesaid deferred pecuniary liability shall become immediately due and realisable.

(3) Notwithstanding the provisions of any agreement of managing agency and subject to conditions prescribed in this behalf the Corporation may take over through an appointed agent the management of any company in which it has acquired majority shareholding, if the affairs of the company are, in the opinion of the Board, not being conducted in a satisfactory manner and if the share capital of the enterprise has been impaired.

31. Recovery of Corporation's dues. Without prejudice to the right of the Corporation to recover its dues in any other manner all sums due to the Corporation shall be recoverable as arrears of land revenue:

Provided that no sum shall be so recovered unless fifteen days notice has first been given by the Corporation to the debtor that the sum will be so recovered.

32. Delegation of powers.— (1) The Board may for the purposes of ensuring efficient functioning of the Corporation and facilitating transaction of its business, delegate to the Managing Director subject to such conditions and limitations, if any, as may be specified in this behalf, such of its powers and duties under this Ordinance as it may deem necessary.

(2) The Managing Director may for the purpose of facilitating the transaction of the Corporation's business delegate to the officers of the Corporation, subject to such conditions and limitations if any as may be specified in that behalf, such of his powers and duties under this Ordinance or the rules and regulations as may be necessary.

33. Offences.— (1) Whoever, without the consent in writing of the Corporation, uses the name of the Corporation in any prospectus or advertisement shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

(2) Whoever being a Chairman, Director, adviser, auditor, officer or servant of the Corporation contravenes his declaration of fidelity and secrecy shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

(3) No court shall take cognizance of any offence punishable under this Ordinance except upon a complaint in writing signed by an officer of the Corporation duly authorised in this behalf by the Corporation.

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34. Liquidation of Corporation. No provision of law relating to the winding up of companies or banks shall apply to the Corporation and the Corporation shall not be wound up save by order of the [1][Federal Government] and in such manners as it may direct.

35. Power of Federal Government to make rules. The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance and publish them in the official Gazette.

36. Power of the Board to make regulations.— (1) The Board may make regulations to provide for all matters not required to be provided for by rules and for which provision is necessary or expedient for carrying out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for—

(a) the holding and conduct of elections under this Ordinance, including the final decision of doubts or disputes regarding the validity of any election;

(b) the manner in which and the conditions subject to which the first allotment of the shares of the Corporation shall be made ;

(c) the maintenance of the register of shareholders, the manner in which and the conditions subject to which shares may be held and transferred, suspension and the manner of suspension of transfer of shares and all matters relating to the rights and duties of shareholders ;

[2][(cc) the constitution, issue, trusteeship and management of ICP Mutual Funds and transferability of Mutual Fund certificates ;]

(d) the manner in which the general meetings shall be convened and the procedure to be followed thereat;

(e) the calling of the meeting of the Board and the Executive Committee, fees for attending the meetings thereof and the conduct of business thereat ;

(f) the manner and terms of issue and redemption of bonds and debentures by the Corporation;

(g) the conditions subject to which the Corporation may make investments in shares and securities, underwrite issues of stocks, shares, bonds, debentures, make advances and enter into guarantee arrangements and any business relating to investments as principal or agent ;

(h) the manner and conditions subject to which the Corporation can borrow and raise finances ;

(i) the form of returns and statements required to be prepared under this Ordinance ;

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Ins. by the Investment Corporation of Pakistan (Amdt.) Ordinance, 1971 (12 of 1971), s. 4.

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(j) the duties and conduct of officers and servants and agents of the Corporation ; the recruitment of officers and staff of the Corporation; the terms and conditions of their service, the constitution and management of provident or other funds for the officers and staff of the Corporation and all matters connected with any of these things ;

(k) the disclosure of interest, direct or indirect, of any Director or any member of the Executive Committee in any business under the consideration of the Corporation ;

(l) taking over the management of, and managing the affairs of any person committing a breach of its agreement with the Corporation ;

(m) generally for the efficient conduct of the affairs of the Corporation.

(3) All regulations made under this section shall come into force on the date specified in each case.

(4) Where any provisions of a regulation is inconsistent with any provision of the rule, the provision of the rule shall prevail.

SCHEDULE

(***See*** **section 21**)

DECLARATION OF FIDELITY AND SECRECY

I,…… hereby declare that I will faithfully, truly and to the best of my judgment skill and ability, execute and perform the duties required of me as a Director, member of a Committee, Officer, employee, consultant, adviser, agent or auditor (as the case may be) of the Investment Corporation of Pakistan and which properly relate to any office or position in the said Corporation held by me.

I further declare that I will not communicate or allow to be communicated to any person not legally entitled thereto any information relating to the affairs of the Corporation nor will I allow any such person to inspect or have access to any books or documents belonging or in the possession of the Corporation and relating to the business of the Corporation.

Signature……

Signed before me

Signature……

Designation……

Dated…….

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Date: 11-11-2024

THE IQBAL ACADEMY ORDINANCE, 1962

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THE IQBAL ACADEMY ORDINANCE, 1962

ORDINANCE No. XXVI OF 1962

[29th *May*, 1962]

An Ordinance to repeal and, with certain modifications, re-enact the Iqbal Academy Act, 1951

WHEREAS it is expedient to repeal and, with certain modifications, re-enact the Iqbal Academy Act, 1951, for the purpose of bringing greater efficiency into the administration of the affairs of the Academy;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Iqbal Academy Ordinance, 1962.

2. It extends to the whole of Pakistan.

3. It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Academy" means the Iqbal Academy constituted under section 3;

(b) "Act" means the Iqbal Academy Act, 1951 (IV of 1951);

(c) "Governing Body" means the Governing Body of the Academy;

(d) "Executive Committee" means the Executive Committee of the Academy;

(e) "prescribed" means prescribed by rules made under this Ordinance;

(f) "President", "Vice-President", "Treasurer", "Honorary Members," "Life-Members" and Members mean the President, Vice-President, Treasurer, Honorary Members, Life-Members, and Members of the Academy, respectively.

CHAPTER II

THE ACADEMY

3. The Academy.—(1) There shall be constituted, in accordance with the provisions of this Ordinance, an Academy to be called the Iqbal Academy.

(2) The Academy shall be a body corporate, having perpetual succession and a common seal, and shall by its name sue and be sued.

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(3) The Academy shall have power to acquire and hold property, both movable and immovable, to lease, sell or otherwise transfer any movable or immovable property which may have become vested in, or been acquired by, it, and to contract and to do all other things necessary for the purposes of this Ordinance.

4. Composition of the Academy.—(1) The Academy shall consist of—

(a) the Parton-in-Chief;

(b) Patron;

(c) the President;

(d) the Vice-President;

(e) Honorary Members;

(f) Life-Members; and

(g) Members.

(2) Notwithstanding anything contained in sub-section (1), the Academy constituted for the first time without there being any Honorary members or Members shall be deemed to be validly constituted.

(3) No Proceedings or decisions of the Academy shall be invalid by reason only of the existence of any vacancy in, or defect in the constitution of, the Academy.

5. Aims and objects of the Academy.— The aims and objects of the Academy shall be —

(a) to promote the study and understanding of the works of Iqbal;

(b) to institute scholarships and Lecturerships for furthering the study of the works and teachings of Iqbal;

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(c) to publish books, pamphlets and periodicals relating to the said study;

(d) to award prizes, rewards and donations to authors who, in the opinion of the Academy, have made contributions to the study of the works and teachings of Iqbal, and to enter into contracts with authors in order to carry out the purposes of this Ordinance;

(e) to organise lectures, talks, discussions, study groups and conferences on Iqbal and to send delegates to conferences held in foreign countries for the study of Iqbal's works and teachings, or for any matter to which that study is relevant or by which it may be advanced or profited;

(f) to confer in the prescribed manner Fellowships on scholars who, in the opinion of the Academy, have made contributions to the study of the works and teachings of Iqbal;

(g) to co-operate with, or grant amalgamation or affiliation to, any other association established for a purpose similar to that of the Academy, whether the purpose of that other association is confined to the works and teachings of Iqbal or not; and

(h) to do such other acts and things as may further the aims and objects of the Academy.

[1][**6. Affiliation.—** The Academy shall be affiliated to the Institute of Islamic Research established under the Federal Government's Notification No. S. R.O. 745 (I)/79, dated the 22nd August, 1979.]

7. Headquarters.— The Headquarters of the Academy shall be at a place determined by the [2][Federal Government].

8. The Patron-in-Chief.— The President of Pakistan shall be the Patron-in-Chief of the Academy.

9. Patrons.—(1) Persons who, immediately before the commencement of this Ordinance, were Honorary Patrons or Patrons of the Academy constituted under the Act, shall be deemed to be the Patrons of the Academy.

(2) The Governing Body may invite distinguished persons to become Patrons of the Academy.

10. The President.— The Minister for Education and Scientific Research, Government of Pakistan, shall be the President of the Academy.

11. The Vice-President.—(1) The Vice-President of the Academy shall be nominated by the [2][Federal Government] for a period of three years.

(2) In the absence of the President, the Vice-President shall preside over the meetings of the Academy and the Governing Body.

12. Treasurer.—(1) There shall be a Treasurer of the Academy nominated by the [1][Federal Government] for a period of three years.

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(2) The Treasurer shall be responsible for the management of the finances of the Academy and shall maintain proper accounts for submission to the Governing Body.

13. Honorary Members.— The Governing Body may, in the prescribed manner, appoint —

(a) scholars of outstanding eminence who have made significant contributions to the study of Iqbal, or

(b) distinguished persons who have rendered singular service concerning the aims and objects of the Academy,

to be Honorary Members of the Academy.

[1]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

14. Life–Members.—(1) Persons who, immediately before the commencement of this Ordinance, were on the rolls of Life-Members of the Academy constituted under the Act shall be deemed to be the Life-Members of the Academy.

(2) Any Member may become a Life-Member on fulfilling the conditions prescribed in this behalf.

15. Members.— Persons interested in the study of Iqbal's works may become Members of the Academy if they are elected thereto in the prescribed manner.

16. Privileges of Membership.— Life-Members and Members shall be entitled to the following privileges, namely :—

(a) to propose candidates for the honorary membership and membership of the Academy;

(b) to use the facilities of the Library of the Academy;

(c) to receive the proceedings issued by the Academy, and to purchase such publications of the Academy at such reduced price as may be decided by the Governing Body;

(d) to offer papers and communications to be read before the literary meetings of the Academy and to publish papers in the proceedings and journals of the Academy in such manner as may be prescribed; and

(e) to elect two members to the Governing Body.

17. Governing Body.—(1) The control and administration of the Academy shall vest in a Governing Body consisting of—

(a) the President who shall also be the Chairman of the Governing Body;

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(b) the Vice-President;

(c) the Treasurer;

(d) the Director, Central Institute of Islamic Research;

(e) two persons elected, in the prescribed manner, from amongst the Life-Members or Members;

(f) one representative of the Ministry of Education and Scientific Research to be nominated by that Ministry; and

(g) five other persons to be nominated by [1][Federal Government].

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(2) No proceedings or decision, of the Governing Body shall be invalid by reason only of the existence of any vacancy in, or defect in the constitution of, the Governing Body.

(3) Members other than *ex-officio* Members of the Governing Body shall hold office for a period of three years.

(4) If any vacancy occurs in the Governing Body during the currency of the term of office of an appointed Member, the appointment of a new Member shall be made by the authority concerned, and the Member so appointed shall hold office for the unexpired portion of the term of office of his predecessor.

18. Powers of the Governing Body.— The Governing Body shall have the power—

(1) to hold, control and administer the property and funds of the Academy, including funds for specific purposes, and to make contracts on behalf of the Academy;

(2) to manage and regulate the finances, accounts and investments of the Academy and to frame rules governing the pay scales, conditions of service and the appointment of the staff of the Academy;

(3) to make rules not inconsistent with the provisions of this Ordinance for carrying out the purposes of this Ordinance; and

(4) to do all acts that may be necessary for carrying out the aims and objects of the Academy.

19. Executive Committee.—(1) There shall be an Executive Committee for managing the day to day affairs of the Academy.

(2) The Executive Committee shall consist of the following, namely :—

(a) the Vice-President;

(b) the representative of the Ministry of Education and Scientific Research on the Governing Body;

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(c) the Treasurer; and

(d) two other persons appointed by the Governing Body from amongst its members.

(3) The Director of the Academy shall act as Secretary of the Executive Committee.

(4) The powers and functions of the Executive Committee and the manner in which the two members of the Governing Body may be appointed thereon shall be such as may be prescribed.

20. Director.—(1) The Director shall be appointed by the Governing Body for such period and on such terms and conditions of service as may be prescribed.

(2) The Director shall, under the direction of the Governing Body, prepare programme of the work and research projects of the Academy and shall be responsible for its execution.

(3) The Director shall be responsible to the Governing Body for carrying out its decisions and for the proper administration of the office of the Academy.

21. Funds of the Academy.— The funds of the Academy shall comprise—

(a) grants from the [1][Federal Government] and the Provincial Governments;

(b) fees from Members;

(c) donations; and

(d) Proceeds from the sale of its publications and other sources.

22. Audit.— The accounts of the Academy shall be audited annually by a qualified auditor appointed by the Governing Body.

23. Prohibition on the use of name.—(1) No person or body of persons shall use the name of the Academy for any purpose other than that of reference to the Academy.

(2) Any person or body of persons contravening the provisions of sub-section (1) shall be punishable with imprisonment for a term which may extend to six months, or with fine, or with both.

24. [2][* * * * * * *]

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

RGN Date:14.04.2026

THE MEDICAL COLLEGES (GOVERNING BODIES) ORDINANCE, 1961

CONTENTS

1. Short title extent and commencement
2. Definitions
3. Constitution of Governing Bodies
4. Powers and functions of a Governing Body
5. Committees
6. College Fund, accounts and finance
7. Returns and statements
8. Power to make rules
9. Power to make regulations

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THE MEDICAL COLLEGES (GOVERNING BODIES) ORDINANCE, 1961

ORDINANCE No. XIII of 1961

[18th April, 1961]

An Ordinance to provide for the constitution of Governing Bodies for Medical Colleges in Pakistan.

WHEREAS it is expedient to provide for the constitution of Governing Bodies for Medical Colleges in Pakistan for the efficient administration and management of the affairs of such colleges;

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title extent and commencement.—(1) This Ordinance may be called the Medical Colleges (Governing Bodies) Ordinance, 1961.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Chairman" means the Chairman of a Governing Body;

(b) "Governing Body" means a Governing Body constituted under this Ordinance;

(c) "Medical College" includes any hospital attached thereto; and

(d) "member" means the member of a Governing Body.

3. Constitution of Governing Bodies.—(1) As soon as may be after the commencement of this Ordinance, the Provincial Government shall, for the efficient administration and management of the affairs of all Medical Colleges within the Province, by notification in the official Gazette, constitute for each such college a Governing Body consisting of such number of members not exceeding fifteen as may be appointed by it [1][* *].

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(2) Not more than one third of the members shall be chosen directly by the Provincial Government and the remaining members shall be chosen from amongst persons proposed by such institutions, bodies or organisations as the [1][Provincial Government] may, from time to time, by notification in the official Gazette, specify:

Provided that in the case of the Governing Body for a Medical College in a district in which there is a University, the Vice-Chancellor of such University shall be appointed as one of the members.

(3) The Provincial Government shall appoint one of the members to be the Chairman of the Governing Body:

Provided that where the Vice-Chancellor of a University is a member of the Governing Body, he shall be the Chairman thereof.

[1]Omitted and subs. by A.O., 1964 Art. 2 and Sch.

(4) The Chairman as such and the members chosen directly by the Provincial Government shall hold office during the pleasure of the Provincial Government and the other members shall, unless earlier required to vacate by the Provincial Government, hold office for a term of three years and shall be eligible for re-appointment [1][.].

[1][* * * * * * *]

4. Powers and functions of a Governing Body.—(1) A Governing Body shall administer and manage the affairs of the Medical College for which it has been constituted and shall, subject to any rules made in this behalf, have all powers necessary for the purpose.

(2) In the exercise of its powers and performance of its functions, a Governing Body shall, in respect of policy making, coordination and maintenance of educational standards, be guided by such directions as the [1][Provincial Government] may, from time to time, give.

5. Committees.—(1) A Governing Body shall, for the efficient performance of its functions under this Ordinance, constitute, with such of its members and other persons as it may appoint, the following committees, namely:—

(a) The Executive Committee;

(b) The Finance and Departmental Grants Committee ;

(c) The Establishment and Discipline Committee ;

(d) The Medical Staff Committee ;

(e) The Hospital Management and Hostels Committee; and

(f) The Nursing Committee.

(2) Subject to such directions as the [1][Provincial Government] may, from time to time give in this behalf, a committee constituted under sub-section (1) shall perform such-functions as may be prescribed by regulations or otherwise specified by the Governing Body.

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6. College Fund, accounts and finance.—(1) Except as otherwise provided in this section, the constitution of a Governing Body for a Medical College shall not affect the position obtaining before such constitution with respect to the receipt, expenditure or any arrangement relating to the finances of a Medical College or the maintenance and audit of its accounts.

(2) All receipts of a Medial College from any source whatsoever shall constitute the College Fund which shall be applied, subject to any rules made in this behalf, by its Governing Body to meet all expenditure for the administration and management of the affairs of the Medical College and other charges connected with the performance of the functions of that Governing Body under this Ordinance.

[1] Subs and omitted by A. O., 1964, Article 2 & Sch.
.

7. Returns and statements.—(1) As soon as may be after the close of every financial year but not later than the last day of September next following, every Governing Body shall submit to the [1][Provincial Government] a report of the conduct of its affairs for that year [1][* * *].

(2) The [1][* *** ***] Provincial Government may require a Governing Body to furnish it with—

(a) any report, return, statement, estimate, statistics or other information regarding any matter under the control of that Governing Body or on any subject with which that Governing Body is concerned ; or

(b) any document or copy thereof in the charge or under the control of that Governing Body.

8. Power to make rules.—The [1][Provincial Government] may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

9. Power to make regulations.—(1) A Governing Body may, subject to the previous approval of the [1][Provincial Government], make regulations to provide for any matter which is not required to be provided for by rules and for which provision is necessary or expedient for efficient conduct of its business or the performance of its functions under this Ordinance.

(2) Where any provision of a regulation is inconsistent with any provision of a rule, the latter shall prevail.

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RGN Date: 20-05-2024

[1]Subs. and omitted by A.O., 1964, Act. 2 and Sch.

THE MILITARY COLLEGE OF ENGINEERING, RISALPUR (DEGREE) ORDINANCE, 1962

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5. Commandant
6. Academic Board
7. Functions of Academic Board
8. Power to make rules
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THE MILITARY COLLEGE OF ENGINEERING, RISALPUR (DEGREE) ORDINANCE, 1962

ORDINANCE NO. XVII OF 1962

[9th May, 1962]

An Ordinance to grant a charter to the Military College of Engineering, Risalpur.

WHEREAS it is expedient to grant a charter to the Military College of Engineering, Risalpur, for the purpose of enabling it to award the Degree of Bachelor of Civil Engineering and to provide for matters ancillary thereto;

NOW, THEREFORE, in pursuance of Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Military College of Engineering, Risalpur (Degree) Ordinance, 1962.

(2) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(1) 'Academic Board' means the Academic Board of the College;

(2) 'College' means the Military College of Engineering, Risalpur;

(3) 'Commandant' means the Commandant of the College;

(4) 'Controlling Authority' means the Controlling Authority of the College.

3. Constitution and powers of the College.—(1) The College shall consist of the Controlling Authority, the Commandant and the Academic Board.

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(2) Subject to rules made under this Ordinance, the College shall have the powers:—

(a) to provide for instruction in Civil Engineering and allied subjects;

(b) to hold examinations and confer the Degree of Bachelor of Civil Engineering on persons who have pursued a regular course of study in the College and have passed the final examination of the College, whether before or after the commencement of this Ordinance;

(c) to co-operate with Universities and other authorities in such manner and for such purposes as may be necessary;

(d) to institute professorships, readerships or lecturerships and to create any other teaching or administrative posts required by the College and to make appointments thereto;

(e) to institute and award fellowships, scholarships bursaries, medals and other awards in accordance with the prescribed conditions;

(f) to establish teaching departments and to make such arrangements for their maintenance, management and administration as it may consider necessary;

(g) to supervise and control the residence and discipline of the students of the College and to make arrangements for the promotion of their health and general welfare;

(h) to organize exhibitions and such other functions as may be beneficial to the students; and

(i) to do such other acts and things as may be necessary for the furtherance of the objects of the College as an examining and teaching body.

4. Controlling Authority.—(1) The Engineer-in-Chief of the Pakistan Army shall be the Controlling Authority of the College.

(2) Subject to the provisions of this Ordinance and the rules made thereunder, the Controlling Authority shall have such powers and duties as the [1][Federal Government] may determine.

5. Commandant.—(1) There shall be a Commandant of the College who shall be appointed by the Controlling Authority on such terms and conditions as it may determine.

(2) Subject to provisions of this Ordinance and the rules and regulations made thereunder, the Commandant shall have such powers and duties as the Controlling Authority may determine.

6. Academic Board.—There shall be an Academic Board consisting of—

(a) the Commandant who shall be the Chairman of the Academic Board;

(b) the Professors and Assistant Professors of the College; and

(c) such other persons as may be appointed by the Controlling Authority.

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7. Functions of Academic Board.—The functions of the Academic Board shall be—

(a) to advise the Controlling Authority on all academic matters;

(b) to make arrangements for the proper teaching and conduct of examinations and the promotion of academic life in the College;

(c) to propose to the Controlling Authority schemes for the constitution of teaching departments in the College;

(d) to prescribe, subject to the approval of the Controlling Authority, the course of studies, the syllabi and the outlines of texts for the Degree examination in Civil Engineering.

[1]Subs. by F.A.O., 1975.

8. Power to make rules.—The [1][Federal Government] may, by notification in the official Gazette, make rules for the purpose of carrying into effect the provisions of this Ordinance.

9. Regulations. The Controlling Authority may with the previous approval of the [1][Federal Government] make regulations, not inconsistent with the rules, to carry out the purposes of this Ordinance.

10. Interpretation by [1][Federal Government].—If any question arises regarding interpretation of any provisions of this Ordinance or of any rules or regulations made thereunder, the matter shall be referred by the Controlling Authority to the [1][Federal Government] whose decision thereon shall be final.

11. Waiver of defect in the constitution of Academic Board.—No act or proceeding of any Authority or other body of the College shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of the Academic Board.

12. Bar of Jurisdiction.—No order made under this Ordinance or the rules or regulations made thereunder shall be called in question in any court, and no suit, prosecution or other legal proceedings shall lie against any person for anything in good faith done or intended to be done under this Ordinance or the rules or regulations.

13. Power to remove difficulties.—The [1][Federal Government] may for the purpose of removing any difficulties in first giving effect to the provisions of this Ordinance, particularly in relation to the constitution or re-constitution of any authority, make such order as it may deem necessary or expedient.

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RGN Date: 20-05-2024

[1]Subs. by F.A.O., 1975.

MY UNIVERSITY ISLAMABAD ACT, 2013

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THE MY UNIVERSITY ISLAMABAD ACT, 2013

ACT NO. VII OF 2013

[14th March, 2013]

An Act to provide for the establishment of my University, Islamabad

WHEREAS it is expedient to provide for the establishment of MY University at Islamabad and for matters connected with and ancillary thereto;

It is hereby enacted as follows:

CHAPTER I

PRELIMINARY

1. Short title and commencement.— (1) This Act may be called the My University Islamabad Act, 2013.

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(i) "Academic Council" means the Academic Council of the University;

(ii) "Authority" means any of the authorities of the University;

(iii) "Affiliated institution" means Educational institution authorized by the Board to conduct academic programs, research and development projects as approved by the University;

(iv) "Board" means the Board of the University;

(v) "Board of trustees" means Board of Trustees of the University;

(vi) "Chancellor" means the Chancellor of the University;

(vii) "College" means a constituent college, department, Institute or Centers;

(viii) "Commission" means the Higher Education Commission of Pakistan;

(ix) "Constituent college" means an educational institution, by whatever manner described, maintained and administered by the University;

(x) "Controller" means the head of examination department of the University;

(xi) "Dean" means the head of a faculty of the University;

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(xii) "Department" means teaching department of the University;

(xiii) "Director" means the head of an institute established as a constituent institute by the University;

(xiv) "Executive Committee" means the Executive Committee of the University;

(xv) "Faculty" means an administrative and academic unit of the University consisting of one or more departments. It also includes any Professor, Associate Professor, Assistant Professor or Lecturer, tutor, engaged whole-time or part-time by the University, or by a constituent college, institute or Centre;

(xvi) "Government" means the Federal Government;

(xvii) "Institute" means an institute or Centre, maintained and administered by the University;

(xviii) "Officer" means any officer of the University;

(xix) "Patron" means the Patron of the University;

(xx) "prescribed" means prescribed by the statutes, regulations or rules;

(xxi) "Professor Emeritus" means a retired Professor appointed by the Chancellor on honorary basis;

(xxii) "Principal" means the head of a college, or the institution under the University by whatever name or the designation;

(xxiii) "Registrar" means the Registrar of the University;

(xxiv) "Committee" means the committee set up by the Board of Trustees;

(xxv) "Statutes", "regulations" and "rules" mean respectively the statutes, regulations and rules made under this Act;

(xxvi) "Trust" means the My Trust;

(xxvii) "University" means MY University Islamabad, established under this Act; and

(xxviii) "Vice-Chancellor" means the Vice-Chancellor of the University.

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CHAPTER-II

THE UNIVERSITY

3. Establishment and incorporation of the University.—(1) There shall be established a University to be called as MY University Islamabad, consisting of,—

(a) the Patron, the Chancellor, the Vice-Chancellor, the members of the Board and the Board of Trustees;

(b) the members of Executive Committee, Deans, the Chairmen of the teaching departments and members of the Academic Council or any other Councils, Committee or Advisory Committees, as the Board of Governors may establish or authorize from time to time of the University;

(c) the members of the Boards, committees and other bodies as the Board may establish;

(d) the members of the Faculties and students of the University and its constituent units in accordance with the terms prescribed from time to time, and all other; and

(e) such other officers and members of the staff as the Board may, from time to time, specify.

(2) The University shall be a body corporate by the name of MY University, having perpetual succession and a common seal, with powers, among others, to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

(3) The principal seat of the University shall be at Islamabad and it may set up its campuses, colleges, institutes, offices, research or study centers and other facilities at such places in Pakistan as well as abroad as the Board may determine. The additional campuses shall be set up in other parts of the country, and in other parts of the world.

(4) Notwithstanding anything contained in any other law for the time being in force, the University shall have academic, financial and administrative autonomy, including the powers to employ officers, teachers and other employees on such terms as may be prescribed, subject to the terms of this Act.

(5) In particular and without prejudice to the authority granted to the Commission by the law, the Government or an authority or auditor appointed by the Government shall have no power to question the policy underlying the allocation of resources approved by the Board in the annual budget of the University.

4. Powers and Purposes of the University.—The University shall have the following powers, namely;—

(i) to promote and dissemination of knowledge and technology and to provide education, training, research, demonstration and scholarship in such branches of learning, as it may determine;

(ii) to make provisions for research, service to society and for the application, advancement and dissemination of knowledge by employing information technology including satellite, television, internet etc., or through conventional and innovative methods in the fields of management sciences, medical sciences, computer sciences, professional psychology, strategic studies, security studies, environmental sciences, engineering and such other disciplines from the fields of natural and social sciences as it may determine;

(iii) to determine courses for study at the under graduate level in its constituent units as well as in its affiliated institutions, centers and colleges;

(iv) to prescribe courses of studies to be conducted by it and its affiliated constituent units and appropriate bodies;

(v) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under prescribed conditions;

(vi) to prescribe the terms and conditions of employment of the officers, Faculty and other employees of the University;

(vii) to affiliate itself or associate with any other Institutions or Universities and relevant bodies whether national or international;

(viii) to pursue and co-ordinate research innovation and development;

(ix) to decide teaching methods and strategies in order to ensure most effective research and academic programs;

(x) to use the financial and other resources allocated to it for execution of its functions;

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(xi) to engage, where necessary, any persons on contract of specified duration and to specify the terms of each engagement;

(xii) to confer honorary degrees or other distinctions on approved persons in the manner prescribed by the Board in consultation with Board of trustees for the purpose;

(xiii) to confer degrees on the person who have carried out an independent research under prescribed conditions;

(xiv) to liaison with other research or academic organizations, industry and the relevant organization or institutions to promote Public Private partnership, innovation and research, development, industrialization for the purposes of education, training and development;

(xv) to provide for such instruction for persons not being students of the University as it may prescribe and to grant certificates and diplomas to such persons;

(xvi) to institute programs for the academic collaboration and exchange of students and Faculty between the University and other universities, educational institutions and research organizations, inside as well as outside Pakistan;

(xvii) to maintain linkages with alumni and the industry and the relevant bodies;

(xviii) to develop and implement fund-raising plans;

(xix) to provide and support the academic development of the faculty of the University;

(xx) to affiliate and dis-affiliate educational institutions or relevant organizations under prescribed conditions;

(xxi) to inspect colleges and other educational institutions affiliated or seeking affiliation with it;

(xxii) to accept the examinations passed and the period of study spent by students of the University at other universities and places of learning equivalent to such examinations and periods of study in the University, as it may prescribe, and to withdraw such acceptance;

(xxiii) to co-operate with other universities, public authorities or private organizations inside as well as outside Pakistan, in such manner and for such purposes as it, may prescribe;

(xxiv) to institute professorships, associate professorships, assistant professorships and lectureships and any other posts and to appoint persons thereto;

(xxv) to create posts for teaching, research, extension, administration and other related purposes and to appoint persons thereto;

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(xxvi) to reeognize selected members of teaching staff of colleges or educational institutions admitted to the privileges of the University or such other persons, as it may deem fit, as University Faculty;

(xxvii) to institute and award fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(xxviii) to establish teaching departments, schools, colleges, faculties, institutes, workshops, laboratories. Museums and other centers of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may prescribe;

(xxix) to maintain order, discipline and security on campuses of the University and the colleges as per the rules and regulations of the University;

(xxx) to promote extra-curricular and recreational activities of the students and to make arrangements for promoting their health and general welfare;

(xxxi) to demand and receive such fees and other charges as it may determine from time to time;

(xxxii) to make provisions for research, advisory or consultancy services and with these objects to enter into arrangements with other institutions, public or private bodies, commercial and industrial enterprises, relevant Government, International, non-Governmental bodies, under prescribed conditions;

(xxxiii) to enter into, carry out, vary or cancel contracts;

(xxxiv) to receive and manage property transferred and grants, contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions and convert one kind of property into other in such manner as it may deem fit;

(xxxv) to provide for the printing and publication of research and other works;

(xxxvi) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite or expedient in order to further the objectives of the University as a place of education, learning and research; and

(xxxvii) to decide virtual, online and distance teaching methods and strategies in order to ensure the conduct of most effective educational and training programs in the light of policy on the subject made by the Board of trustees.

5. University open to all classes, creeds, etc.—The University shall be open to all persons of either gender and of whatever religion, race, creed, class, color or domicile who qualify for the admission as set forth in the rules and regulations and the criteria and the policy maintained by the body and no person shall be denied privileges of the University on the ground of religion, race, caste, creed, class, color or domicile.

6. Teaching at the University.—(1) All recognized teaching in various courses shall be conducted by the University or the colleges in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations and other methods of instruction as well as practical work in the laboratories, hospitals, workshops and other organizations as it may deem appropriate.

(2) The authority responsible for organizing recognized teaching shall be such as may be prescribed.

CHAPTER III

OFFICERS OF THE UNIVERSITY

7. Officers of the University.—The following shall be the officers of the University, namely:—

(a) Patron;

(b) Chancellor;

(c) Vice-Chancellor;

(d) Deans;

(e) Principals of the constituent colleges;

(f) Head of the teaching and research departments;

(g) Registrar;

(h) Treasurer;

(i) Controller of examinations and academic affairs; and

(j) such other persons as may be prescribed by the statutes or regulations or by the Board.

8. Patron.—(1) The Patron shall be appointed by the Trust.

(2) The Patron shall, when present, preside at the convocation of the University. In the absence of the Patron, the Board may request a person of eminence or the Chancellor to preside over the convocation of the University.

(3) The Patron shall have the authority to annul any decision or action of the Board, which he thinks was taken against the interest of academic excellence, religious and cultural ideology and national integrity.

9. Visitation.—(1) The Patron may, in accordance with the terms and procedures as may be prescribed, cause an inspection or inquiry to be made at the request of the Board of trustees or on his own motion in respect of any matter connected with affairs of the University and shall, from time to time, direct any person or persons to inquire into or carry out inspection of,—

(a) the University, its building, laboratories, libraries and other facilities;

(b) any institution, department or hostel maintained by the University;

(c) the adequacy of financial and human resources;

(d) the teaching, research, curriculum, examination and other matters of the University; and

(e) such other matters as the Patron may specify.

(2) The Patron shall communicate to the Board of trustees his views with regard to the result of visitation and shall, after ascertaining the views of the Board, advise the Chancellor on the action to be taken by it.

(3) The Chancellor shall, within such time as may be specified by the Patron, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of visitation.

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(4) The Chancellor shall communicate to the Board his views with regard to the results of inspection or inquiry and shall after ascertaining the views of said Board, advice the action to be taken.

(5) Where the Board as per Chancellor's direction does not, within the time specified, take action to the satisfaction of the Patron, the Patron may issue, in consultation with the Board of trustees, such directions, as he deems fit and the Board shall comply with all such directions.

10. Appointment and removal of Patron.—The Patron may be appointed for a fixed period of time two years and can be extended for another term of same length. He may be removed before expiry of his term by the Board of trustees resolution on any misconduct.

11. Chancellor.—(1) The Chancellor of the University shall be appointed by the Board of Trustees to hold the office for a term determined by the Trust.

(2) The Chancellor shall in the absence of Patron, preside over the convocations and meetings of the University of which his presence is desirable in the light of business being transacted. Every proposal to confer an honorary degree shall be subject to confirmation of the Chancellor.

(3) Where the Chancellor is satisfied that the proceedings or orders of any authority are not in accordance with provision of the act, the statues, regulations or rules, he may after, calling upon such authority to show cause in writing, annul such proceedings or order, after the final approval from the Board of trustees.

12. Appointment and Removal of the Chancellor.—(1) The terms of the office of Chancellor shall be for a period of three years:

Provided that there will be no bar to appoint a Chancellor for a second or subsequent term.

(2) The Board of trustees may, in consultation with the patron, remove the Chancellor; if he,—

(a) has become of unsound mind; or

(b) has been incapacitated to function as member of such authority; or

(c) has been convicted by a court of law of Pakistan of an offence involving moral turpitude; or

(d) on the resolution of the Board of trustees for misconduct.

13. Vice-Chancellor.—(1) There shall be a Vice-Chancellor of the University who shall be appointed by the Board of Trustees in consultation with the Chancellor. The Vice-Chancellor shall be an eminent academician or a distinguished administrator and shall be appointed on such terms and conditions as may be prescribed.

(2) The Vice-Chancellor shall be the chief executive officer of the University responsible for all administrative and academic, functions of the University and for ensuring that the provisions of this Act, statutes, regulations and rules are faithfully observed. He shall have the overall responsibility for the direction, organization, administration and programmes of the University, in

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accordance with the guidelines and general policies formulated by the Board and for the implementation of the decisions and policies of the Board.

(3) The Vice-Chancellor shall, if present, be entitled to attend any meeting of any authority or body of the University.

(4) The Vice-Chancellor may, in an emergency that in his opinion requires an immediate action ordinarily not in his competence, take such action and report to the Board.

(5) The Vice-Chancellor shall be appointed for a renewable tenure of five years on terms and conditions prescribed by statutes. The tenure of an incumbent Vice-Chancellor shall be renewed by the Chancellor on receipt of a resolution of the Board in support of such renewal and under recommendation of Board of trustees:

Provided that the Chancellor may call upon the Board to reconsider such resolution once.

(6) The Board may, pursuant to a resolution in this behalf passed by simple majority vote of its membership, and on the final recommendation of the Board of trustees recommend to the Chancellor the removal of the Vice-Chancellor on the ground of in-efficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantage of any kind:

Provided that the Chancellor may make a reference to the Board stating about in-efficiency, moral turpitude or physical or mental incapacity or gross misconduct on the part of the Vice-Chancellor that has come to his notice. After consideration of the reference, the Board under recommendation may, pursuant to a resolution in this behalf passed by simple majority of its membership, recommend to the Chancellor the removal of the Vice-Chancellor:

Provided further that prior to a resolution for removal of the Vice-Chancellor being voted upon, the Vice-Chancellor shall be given an opportunity of being heard.

(7) A resolution recommending removal of the Vice-Chancellor shall be submitted to the Chancellor forthwith. The Chancellor may accept the recommendation and order removal of the Vice-Chancellor or return the recommendation to the Board.

(8) At any time when office of the Vice-Chancellor is vacant or the Vice-Chancellor is absent or is unable to perform functions of his office due to illness or some other cause, the Board shall make such arrangements for performance of the duties of the Vice-Chancellor as it may deem fit.

(9) The Vice-Chancellor shall also have the following powers, namely:—

(a) to oversee, monitor and supervise all academic activities, including examinations and applied research to ensure that proper academic standards are maintained, in consultation with the academic council and the Board;

(b) to direct, faculty, scholars, officers and other employees of the University to take up such assignments in connection with examination, administration and such other activities in the University, as he may consider necessary for purposes of the University;

(c) to sanction by re-appropriation an amount, not exceeding an amount prescribed by the Board, for an unforeseen item not provided for in the budget;

(d) to make appointment of such categories of employees of the University and in such manner, as may be prescribed by statutes;

(e) to suspend, punish and remove from service, in accordance with prescribed procedure, officers, teachers and other employees of the University except those appointed by or with approval of the Board;

(f) to delegate, subject to such conditions as may be prescribed, any of his powers under this Act to an officer or officers of the University; and

(g) to exercise and perform such other powers and functions as may be prescribed.

14. Dean.—(1) There shall be a Dean of each faculty, department, college, institution or centre to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) Dean shall be in-charge of the faculty and shall assist the Vice-Chancellor on matters relating to teaching, research, academic program and extension of other development projects.

(3) Subject to overall supervision of the Vice-Chancellor, the Dean shall formulate and recommend to the Academic Council, rules and regulations relating to academic and research matters of the faculty.

(4) The Dean shall also have the following powers, namely:-

(a) to collaborate with universities, industry and other research organizations;

(b) to formulate recommendations to the Academic Council on the courses of study to be taught in different departments of the faculty;

(c) to co-ordinate the award of fellowships, stipends, medals and prizes;

(d) to co-ordinate the teaching and research work of the faculty;

(e) to perform, such other functions and exercise such other powers as may be entrusted or delegated to him by the Board or the Vice-Chancellor; and

(f) to delegate any of his powers to appropriate levels of management, subject to such conditions as he may deem fit.

15. Registrar.—(1) There shall be a Registrar of the University to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions, as may be prescribed.

(2) The experience as well as professional and academic qualifications necessary for appointment to the post of the Registrar shall be as may be prescribed.

(3) Registrar shall be a full-time officer of the University and shall—

(a) be the administrative head of the secretariat of the University and be responsible for the provision of secretariat support to the authorities of the University;

(b) be the custodian of the common seal and the academic record of the University;

(c) maintain a register of registered graduates in the prescribed manner;

(d) supervise the process of election, appointment or nomination of members to the various authorities and other bodies in the prescribed manner; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Registrar shall be a renewable period of three years:

Provided that the Board may, on advice of the Vice-Chancellor, terminate appointment of the Registrar on grounds of in-efficiency or misconduct in accordance with prescribed procedure.

16. Treasurer.—(1) There shall be a Treasurer of the University to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience as well as professional and academic qualifications necessary for appointment to the post of the Treasurer shall be as may be prescribed.

(3) The Treasurer shall be the chief financial officer of the University and shall—

(a) manage the assets, liabilities, receipts, expenditures, funds and investments of the University;

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(b) prepare annual and revised budget estimates of the University and present them to the Executive Committee or a committee thereof for approval and incorporation in the budget to be presented to the Board;

(c) ensure that funds of the University are expended on the purposes for which they are provided;

(d) have accounts of the University audited annually; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Treasurer shall be for a renewable period of three years:

Provided that the Board may, on advice of the Vice-Chancellor, terminate the appointment of the Treasurer on grounds of in-efficiency or misconduct in accordance with prescribed procedure.

17. Controller of examinations.—(1) There shall be a Controller of examinations to be appointed by the Board on recommendation of the Vice-Chancellor on such terms and conditions as may be prescribed.

(2) The minimum qualifications necessary for appointment to the post of the Controller of examinations shall be as may be prescribed.

(3) The Controller of examinations shall be a full-time officer of the University and shall be responsible for all matters connected with the conduct of examinations and shall perform such other duties as may be prescribed.

(4) The Controller of examinations shall be appointed for a renewable term of three years:

Provided that the Chancellor may, on advice of the Vice-Chancellor, terminate appointment of the Controller of examinations on grounds of in-efficiency or misconduct in accordance with prescribed procedure.

CHAPTER-IV

AUTHORITIES OF THE UNIVERSITY

18. Authorities.—The following shall be the authorities of the University, namely:—

(a) authorities established by the Act:—

(i) Board;

(ii) Executive Committee;

(iii) Academic Council; and

(iv) Board of Advance study and Research; and

(b) authorities to be established by the statutes:—

(i) Board of studies;

(ii) selection Board;

(iii) finance and planning committee;

(iv) search committee for appointment of the Vice-Chancellor;

(v) representation committees for appointment to the Board;

(vi) Board of Trustees;

(vii) quality assurance committee;

(viii) discipline committee; and

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(ix) such other authorities as may be prescribed by the Board.

19. Board of Governors.—(1) The body responsible for governance of the University shall be described as the Board and shall consist of the following, namely:—

(a) the Chairman of the Trust who shall be a chairperson of the Board (the Board).

(b) the Chancellor;

(c) the Vice-Chancellor;

(d) one member of the Government not below the rank of Additional Secretary from any Ministry of Government;

(e) four persons from society at large being persons of distinction in the fields of administration, Government, management, education, academics, law, accountancy, medicine, fine arts, architecture, agriculture, science, technology, engineering, social and natural sciences and such that the appointment of these persons reflects a balance across the various fields:

Provided that special focus or affiliation of the University, to be declared in the manner prescribed, may be reflected in the number of persons of distinction in an area of expertise relevant to the University who are appointed to the Board;

(f) one person nominated by the Patron of the University;

(g) two persons from the academic community of the country, other than an employee of the University, at the level of professor or principal of a college nominated by the Board or Chancellor; and

(h) one person nominated by the Higher Education Commission.

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(2) The number of members of the Board described under clauses (e) to (g) of sub-section (1) may be increased by the Board through statutes subject to the condition that total membership of the Board does not exceed twenty-one, with a maximum of five University teachers (faculty) and the increase is balanced, to the extent possible, across different categories specified in sub-section (1).

(3) Appointment of persons described under clause (e) of sub-section (1) shall be made in accordance with procedure as may be prescribed. All appointments to the Board shall be made by the Chancellor in consultation of the Board of trustees and the Chairman of the Board will be permanent member of the Board with veto powers.

(4) Members of the Board, other than *ex-officio* members, shall hold office for three years. One-third of the members, other than *ex-officio* members, of the first restructured Board, to be determined by lot, shall retire from office on expiration of one year from the date of appointment by the Chancellor. One-half of the remaining members, other than *ex-officio* members, of the first restructured Board, to be determined by lot, shall retire from office on expiration of two years from

the date of appointment and the remaining one-half, other than *ex-officio* members, shall retire from office on expiration of the third year.

(5) The Board shall meet at least twice in a calendar year.

(6) Service on the Board shall be on honorary basis:

Provided that actual expenses may be re-imbursed as may be prescribed.

(7) The Registrar shall be Secretary of the Board.

(8) absence of the Chancellor, meetings of the Board shall be presided over by such member, not being an employee of the University or the Government, as the Chancellor may, from time to time, nominate. The member so nominated shall be convener of the Board.

(9) Unless otherwise prescribed by this Act, all decisions of the Board shall be taken on the basis of opinion of a majority of the members present. In the event of the members being evenly divided on any matter, the person presiding over the meeting shall have a casting vote.

(10) The quorum for a meeting of the Board shall be two thirds of its membership, a fraction being counted as one.

20. Powers and functions of the Board of Governors.—(1) The Board shall have power of general supervision over the University and shall hold the Vice-Chancellor and the authorities accountable for all functions of the University.

(2) The Board shall have all powers of the University not expressly vested in an authority or officer by this Act and all other powers not expressly provided by this Act that are necessary for performance of its functions but which are not inconsistent with the provisions of this Act or the statutes, regulations and rules made there under.

(3) Without prejudice to the generality of the foregoing powers, and subject to the provision of this Act, the statutes and prior approval of the Board of trustees, the Board have the powers,—

(a) to approve proposed annual plan of work, annual and revised budgets, annual report and annual statement of accounts;

(b) to hold, control and lay down policy for administration of the property, funds and investments of the University, including approval of the sale and purchase or acquisition of immovable property;

(c) to oversee quality and relevance of the University's academic programs and to review academic affairs of the University in general;

(d) to approve appointment of Deans, Professors, Associate Professors and such other senior faculty and senior administrators as may be prescribed;

(e) to institute schemes, directions and guidelines for the terms and conditions of appointment of all officers, faculty, teachers and other employees of the University;

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(f) to approve the strategic plans of the University;

(g) to approve financial resource development plans of the University;

(h) to consider drafts of statutes and regulations proposed by the Executive Committee and the Academic Council and deal with them in the manner as provided for in Sections 27 and 28, as the case may be:

Provided that the Board may make a statute or regulation on its own initiative and approve it after calling for advice of the Executive Committee or the Academic Council, as the case may be;

(i) to annul by order in writing the proceedings of any authority or officer if the Board is satisfied that such proceedings are not in accordance with the provisions of this Act, statutes or regulations after calling upon such authority or officer to show cause why such proceedings should not be annulled;

(j) to recommend to the Chancellor removal of any member of the Board in accordance with the provisions of this Act;

(k) to make appointment of members of the Executive Committee, other than *ex-officio* members, in accordance with the provisions of this Act;

(l) to make appointment of members of the Academic Council, other than *ex-officio* members, in accordance with the provisions of this Act;

(m) to appoint Professors emeritus on such terms and conditions as may be prescribed;

(n) to remove any person from membership of any authority if such person has:—

(i) become of unsound mind; or

(ii) become incapacitated to function as member of such authority; or

(iii) been convicted by a court of law for an offence involving moral turpitude; and

(o) to determine the form, provide for the custody and regulate the use of the common seal of the University.

(4) The Board may subject to the provisions of this Act delegate all or any of the powers and functions of any authority, officer or employee of the University at its main campus, to any authority, committee, officer or employee at its additional campus, colleges, institutions or centers for the purpose of exercising such powers and performing such functions in relation to such additional campus and for this purpose the Board may create new posts or positions at the additional campus as it deems appropriate.

21. Executive Committee.—(1) There shall be an Executive Committee of the University consisting of the following, namely:—

(a) Vice-Chancellor who shall be its chairperson;

(b) Deans of faculties of the University;

(c) three Professors from different departments, who are not members of the Board, to be elected by the University teachers in accordance with procedure to be prescribed by the Board of Trustees in consultation with the Board;

(d) Principals of the constituent colleges, centers and institutions;

(e) Registrar;

(f) Treasurer; and

(g) Controller of examinations.

(2) Members of the Executive Committee, other than *ex-officio* members, shall hold office for three years.

(3) As regards the three Professors described in clause (c) of sub-section (1), the Board may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the representation committee set up in terms of Section 25. Appointment of persons proposed by the representation committee may be made by the Board on recommendation of the Vice-Chancellor.

(4) The quorum for a meeting of the Executive Committee shall be one-half of the total number of members, a fraction being counted as one.

(5) The Executive Committee shall meet at least once in each quarter of the year.

22. Powers and duties of the Executive Committee.—(1) The Executive Committee shall be the executive body of the University and shall, subject to the provisions of this Act and the statutes, exercise general supervision over affairs and management of the University.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act, the statutes and directions of the Board of trustees, the Board, the Executive Committee shall have the following powers to,—

(a) consider annual report, annual and revised budget estimates and to submit these, to the Board of trustees;

(b) transfer, and accept transfer, of movable property on behalf of the University;

(c) enter into, vary, carry out and cancel contracts on behalf of the University;

(d) cause proper books of accounts to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University;

(e) invest any money belonging to the University including any unapplied income in any of the securities described in Section 20 of the Trusts Act, 1882 (Act III

of 1882) or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;

(f) receive and manage any property transferred and grants, bequests, trust, gifts, donations, endowments and other contributions made to the University;

(g) administer any funds placed at the disposal of the University for specified purposes;

(h) provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the University;

(i) establish and maintain halls of residence and hostels or approve or license hostels or lodgings for residence of students;

(j) recommend to the Board admission of educational institutions to the privileges of the University and withdraw such privileges;

(k) arrange for the inspection of colleges and the departments;

(l) institute professorships, associate professorships, assistant professorships, lectureships and other teaching posts or to suspend or to abolish such posts;

(m) create, suspend or abolish such administrative or other posts as may be necessary;

(n) prescribe the duties of officers, teachers and other employees of the University;

(o) report to the Board on matters with respect to which it has been asked to report;

(p) appoint members to various authorities in accordance with the provisions of this Act;

(q) propose drafts of statutes for submission to the Board;

(r) regulate conduct and discipline of students of the University;

(s) take actions necessary for good administration of the University in general and to this end exercise such powers as are necessary;

(t) delegate any of its powers to any authority or officer or a committee; and

(u) perform such other functions as have been assigned to it by provisions of this Act or may be assigned to it by statutes.

23. Academic Council.—(1) The Academic Council of the University shall be the academic body of the University and shall by statues have the powers to lay down proper standards of

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instructions, research and publication and examination and to regulate and promote academic life of the University.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act and the statutes the Academic Council shall have the powers to,—

(a) advice the Board on the academic matters;

(b) regulate the conduct of teaching, research, publication and examination;

(c) approve the policies and procedures pertaining to the quality of academic programs;

(d) approve academic programs;

(e) approve the policies and procedures pertaining to student-related functions including admissions, expulsions, punishments, examinations and certification;

(f) approve the policies and procedures assuring quality of teaching and research;

(g) propose to the Executive Committee schemes for the constitution and organization of faculties, teaching departments and Boards of studies;

(h) appoint paper setters and examiners for all examinations of the University after receiving panels of names from the relevant authorities;

(i) institute programs for the continued professional development of University teachers at all levels;

(j) recognize examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;

(k) regulate award of studentships, scholarships, exhibitions, medals and prizes;

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(l) make regulations for submission to the Board for the constitution of faculties and the teaching departments;

(m) prepare an annual report on academic performance of the University;

(n) regulate the admission of students to the courses of studies and the examinations at the University;

(o) regulate the conduct and the discipline of the students and faculty; and

(p) perform such functions as may be prescribed by regulations and statutes.

(3) There shall be academic department for each subject or group of subjects as may be prescribed by regulations and each academic department shall be headed by a head of department.

(4) The head of Academic Department shall be appointed be the Board on the recommendation of the Vice-Chancellor from amongst three senior most professors shall be eligible

for re-appointment provided that in a department where there are less than three eligible professors, the appointment shall be made amongst three most senior associates professors and professors of departments. The head of department shall plan, organize and supervise the work of department and shall be responsible to the Dean for the work of department.

(5) The head of department shall under the supervision of Vice-Chancellor and Dean supervise all administrative, financial and academic powers and such other duties and powers as may be delegated to him.

(6) The head of departments shall prepare a comprehensive reports regarding the performance of departments at the under graduate, graduate and post graduate level, faculty research and development and submit the report to the Dean of faculty for his evaluation.

(7) The Board of advance studies and research shall consist of:

(a) Vice-Chancellor;

(b) all the Deans;

(c) one University professor from each faculty other than Dean to be appointed by the Board;

(d) one member nominated by the Patron;

(e) three members from the relevant research originations and Government departments to be nominated by the Board and registrar as the Secretary; and

(f) term of the members of Board of advance studies shall be other than the *ex-officio* member shall be three years and the quorum will be one half of total number of members.

24. First Statutes.—The schedule prescribes the regulations for the establishment of departments, faculties and bodies under the first statutes of the University.

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25. Appointment of committees by certain authorities.—(1) The Board, the Executive Committee, the Academic Council and other authorities may, from time to time, appoint such standing, special or advisory committees, as they may deem fit, and may place on such committee persons who are not members of the authorities appointing the committees.

(2) The Board of Trustees shall take necessary actions on all related issues of the University and its decision shall be the final after Chairman of the trust's decision on that issue.

(3) The constitution, functions and powers of the authorities for which no specific provision has been made in this Act shall be such as may be prescribed by statutes or regulations.

CHAPTER-V

STATUTES, REGULATIONS AND RULES

26. Regulations.—(1) Subject to the provisions of this Act and the statues, the Academic Council may make regulations, to be published in the official Gazette, for all or any of the following matters, namely:—

(a) courses of study for degrees, diplomas and certificates of the University;

(b) manner in which the teaching referred to in sub-section (1) of Section 6 shall be organized and conducted;

(c) admission and expulsion of students to and from the University;

(d) conditions under which students shall be admitted to the courses and examinations of the University and shall become eligible for award of degrees, diplomas and certificates;

(e) conduct of examinations;

(f) conditions under which a person may carry on independent research to entitle him to a degree;

(g) institution of fellowships, scholarships, exhibitions, medals and prizes;

(h) use of the library;

(i) formation of faculties, departments and Board of studies; and

(j) all other matters which by this Act or the statutes are to be or may be prescribed by regulations.

(2) Regulations shall be proposed by the Academic Council and shall be submitted to the Board which may approve them or withhold approval or refer them back to the Academic Council for re-consideration. A regulation proposed by the Academic Council shall not be effective unless it receives approval of the Board.

(3) Regulations regarding or incidental to matters contained in clauses (g) and (i) of sub-section (1) shall not be submitted to the Board without prior approval of the Executive Committee.

27.Amendment and repeal of statutes and regulations.—The procedure for adding to amending or repealing the statutes and the regulations shall be the same as that prescribed respectively for framing or making Statutes and Regulations.

28. Rules.—(1) The authorities and other bodies of the University may make rules, to be published in the official Gazette, consistent with this Act, statutes and the regulations, to regulate any matter relating to affairs of the University which has not been provided for under this Act or that is not required to be regulated by statutes and regulations, including rules to regulate the conduct of business and the time and place of meetings and related matters.

(2) Rules shall become effective upon approval by the Executive Committee and the Board of trustees.

CHAPTER-VI

UNIVERSITY FUND

29. The University fund.—(1) The University shall have a fund to which shall be credited its income from fees, donations, trusts, bequests, endowments, grants, contributions and all other sources.

(2) Capital recurrent expenditure of the University shall be met from contributions made by the Board and any other source, including other foundations, universities and individuals and from the income derived from such sources.

(3) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability for the University, shall be accepted without prior approval of the Board.

30. Audit and accounts.—(1) The accounts of the University shall be maintained in such form and manner as may be determined by the Board and work under the Finance and Planning Committee. The committee shall consist of Vice-Chancellor, all the Deans, one member of the Board nominated by the Board, one nominee of the Academic Council, and one member of the independent auditor. The quorum of the meeting shall be five and the term of nominated members will be three years. The Director finance shall be the Secretary of the Finance and Planning Committee.

(2) Function of committee shall be to prepare the annual statement of accounts, propose and annul budget estimates and advice to the Board thereon, review periodically the financial position of the University and advice the Board on all matters related to finance, investment and accounts of the University and to perform such other functions as may be prescribed by the statutes.

CHAPTER-VII

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GENERAL PROVISIONS

31. Commencement of term of members of authorities.—(1) When a member of a authority is elected, appointed or nominated, his term of office, as fixed under this Act shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remained absent from the University for a period of not less than six months, he shall be deemed to have resigned and vacated his seat.

32. Disputes about membership of authorities.—(1) Notwithstanding anything contained in this Act, a person nominated or appointed to any authority shall cease to be member of such authority as soon as he ceases to hold the position by virtue of which he was nominated or appointed.

(2) If a question arises whether any person is entitled to be a member of any authority, the matter shall be referred to a committee consisting of the Chancellor, two nominees of the Board and a nominee of the Vice-Chancellor and decision of the committee thereon shall be final and binding.

33. Proceedings of authorities not invalidated by vacancies.—No act, resolution or decision of any authority shall be invalid by reason of any vacancy on the authority doing, passing or making it or by reason of any want of qualification or appointment or nomination of any *de facto* member or the authority, whether present or absent.

34. Removal of difficulties.—If any difficulty arises as to the first constitution or re-constitution of any authority upon coming into force of this Act or otherwise in giving effect to any provision of this Act, the Patron may give appropriate directions to remove such difficulty.

35. Indemnity.—No suit or legal proceedings shall lie against the Government, the University or any authority or employee of the University or any person, in respect of anything which is done or purported to have been done in good faith under this Act.

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THE NATIONAL BOOK FOUNDATION ACT, 1972

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1. Short title, extent and commencement
2. Definitions
3. Establishment of the Foundation
4. Constitution of the Foundation
5. Managing Director
6. Functions of the Foundation
7. Audit
8. Power to make rules
9. [Omitted]

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THE NATIONAL BOOK FOUNDATION ACT, 1972

ACT NO. XIX OF 1972

[25th September, 1972]

An Act to provide for the establishment of a Foundation for making books available at moderate prices.

WHEREAS it is expedient to provide for the establishment of a Foundation for making books available at moderate prices, and for matters ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the National Book Foundation Act, 1972.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "books" shall include textbooks, reference books and other books on religion and other books and reading material for use by students and the general public; and

(b) "Foundation" means the Foundation established under this Act.

3. Establishment of the Foundation.—(1) As soon as may be after the commencement of this Act, the Federal Government may, for the purpose of making books available at moderate prices, by notification in the official Gazette, establish a National Book Foundation, hereinafter referred to as the Foundation.

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(2) The Foundation shall be a body corporate having perpetual succession and a common seal with power to acquire, hold and dispose of property, both movable and immovable.

4. Constitution of the Foundation.—(1) The management, overall control and supervision of the affairs of the Foundation shall vest in a Board of Governors consisting of the following members, namely:—

(1) the Minister for Education and Provincial Coordination, who shall also be the chairman of the Board;

(2) the Secretary, Ministry of Education and Provincial Coordination;

(3) one representative of each of the Provinces;

(4) one representative of the areas not forming part of any province, to be appointed by the Federal Government;

(5) a representative of the University Grants Commission;

(6) the Chairman, Committee of Chairmen of Education Board;

(7) (i) five persons to be appointed by the Federal Government from amongst eminent educationists scholars, scientists, men of letters and persons connected with education or the production of books;

(ii) five representatives of whom one shall be a female to be elected by the National Assembly of Pakistan from amongst themselves;

(8) the Managing Director of the Foundation, to be appointed by the Federal Government; and

(9) the Secretary of the Foundation, to be appointed by the Federal Government.

(2) The members of the Board of Governors, other than the *ex-officio* members, shall hold office for three years and shall be eligible for re-appointment.

(3) The office of the Foundation shall be at Islamabad.

5. Managing Director. The Managing Director shall be the chief executive officer of the Foundation and shall, subject to the general supervision of the Chairman of the Board of Governors, be responsible for carrying out the objects of the Foundation as laid down by the Board from time to time.

6. Functions of the Foundation. The following shall be the functions of the Foundation, namely:—

(a) to receive any money or financial grants from the Federal Government, the Provincial Governments, local bodies and any statutory or non-statutory corporation;

(b) to collect, accept or otherwise receive from any person, body, association, institution or organization any subscription or donation made to the Foundation;

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(c) to undertake writing of books and to encourage writers to produce good books;

(d) to undertake the translation of foreign and locally-produced books into the national and regional languages of the country and *vice versa*;

(e) to arrange the original publication and re-production of local books as well as those published abroad;

(f) to import foreign books and to undertake the distribution of books among the educational institutions and the general public;

(g) to encourage the writers and the book trade in general in the production of books and making them available to the students and the general public at moderate prices;

(h) to provide technical know-how and financial assistance and to take other steps aimed at fostering interest in books and in reading; and

(i) to initiate such other activities and programmes as may assist in the task of book development, book promotion, advancement of literacy and dissemination of knowledge by means of the printed word.

7. Audit. The accounts of the Foundation shall be audited annually by the Auditor- General of Pakistan and the balance-sheet and statements of assets and liabilities shall be duly considered by the Board of Governors.

8. Power to make rules. The Foundation may make rules for carrying out the purposes of this Act.

9. [1]*[Omitted]*

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RGN Date:-22.04.2024

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.

THE NATIONAL COLLEGE OF ARTS ORDINANCE, 1985

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THE NATIONAL COLLEGE OF ARTS ORDINANCE, 1985

ORDINANCE XXVIII OF 1985

[31st March, 1985]

An Ordinance to confer on the National College of Arts, Lahore, the power to award degrees.

WHEREAS it is expedient to confer on the National College of Arts, Lahore, the power to award degrees and to provide for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement. — (1) This Ordinance may be called the National College of Arts Ordinance, 1985.

(2) It shall come into force at once.

2. Definitions. —In this Ordinance, unless there is anything repugnant in the subject or context, —

(a) "Board" means the Board of Governors of the College;

(b) "Chairman" means Chairman of the Board;

(c) "College" means the National College of Arts, Lahore, established by the late Government of West Pakistan under letter No. C-II-26/58, dated the 14th October, 1958;

(d) "Commission" means the University Grants Commission;

(e) "Controlling Authority" means the Controlling Authority of the College ;

(f) "Member" means member of the Board ;

(g) "Patron" means the President of the Islamic Republic of Pakistan ;

(h) "prescribed" means prescribed by Regulations or Rules made under this Ordinance ; and

(i) "Principal" means Principal of the College.

3. Establishment of the College. —The National College of Arts Lahore as reconstituted in accordance with the provisions of this Ordinance shall be a body corporate having perpetual

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succession and a common seal with power to acquire, hold and dispose of property, both movable and immovable, and shall by the said name sue and be sued.

4. The purpose, powers and functions of the College. —(1) The purpose of the College shall be to provide for instruction, training, research, demonstration and service in the fields of arts and allied disciplines at the under-graduate, graduate and post graduate levels.

(2) The College shall, under prescribed conditions, perform academic functions to achieve its objectives, in particular, to—

(a) admit and examine students ;

(b) award degrees, diplomas, certificates and other academic distinction;

(c) select, appoint and promote academic and administrative staff;

(d) frame and prescribe courses of study ;

(e) pursue research ;

(f) establish and support other sites and facilities for educations, training and research;

(g) affiliate or associate itself with other institutions for better discharge of its functions and responsibilities;

(h) decide teaching methods and strategies in order to ensure the most effective educational and other programmes ; and

(i) undertake such other activities as would ensure effective and efficient operation of the College.

5. Teaching and Examinations. —(1) All academic programmers of the college shall be conducted in the prescribed manner and the Commission shall ensure that the courses of study, the curriculum, and the practical work at the college are comparable in standard with other similar institutions.

(2) The college shall associate external examiners in the conduct of its examinations.

(3) No degree shall be granted unless a student has passed an examination in Islamic and Pakistan Studies, or, in the case of a non-Muslim student, in Ethics and Pakistan Studies.

6. Patron. —The President of the Islamic Republic of Pakistan shall be the Patron of the College.

7. The Controlling Authority. —(1) The Federal Minister for Education shall be the Controlling Authority of the College.

(2) The Controlling Authority shall preside at the Convocation and when present at the meetings of the Board or Committees.

(3) If the Controlling Authority is satisfied that the proceedings of the Board or Committees are not in accordance with the provisions of this Ordinance, the Regulations and the Rules, it may annul such proceedings.

8. Visitation. —(1) The Controlling Authority may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of the College and shall, from time to time, direct the Commission to carry out, or appoint such person or persons as it may deem fit for the purpose of carrying out, inspection of :—

(i) the College, its buildings, laboratories, library and other facilities ;

(ii) any department or teaching unit or hostel maintained by the College ;

(iii) the instruction, training, research, curriculum, examinations and overall performance, of the College;

(iv) such other matters as the Controlling Authority may determine.

(2) The Controlling Authority shall communicate to the Board its views with regard to the result of the inspection or the inquiry and, after ascertaining the views of the Board, advise the Board as to the action to be taken by it.

(3) Where the Board does not take action within a specified time, to the satisfaction of the Controlling Authority, the Controlling Authority may issue such directions as it may deem fit to the Principal who shall comply with all such directions.

9. The Principal. —(1) The Principal shall be appointed by the Controlling Authority in consultation with the Chairman, on such terms and conditions as may be determined by the Controlling Authority.

(2) The Principal shall hold office during the pleasure of the Controlling Authority for a term not exceeding four years, and shall be eligible for re-appointment.

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(3) The Principal shall be the academic and executive head of the College and shall be responsible to the Board for carrying out the day to day administration of the College.

(4) The Principal shall perform such other functions and exercise such powers as may be assigned to him by the Chairman.

(5) The Principal shall ensure that the provisions of this Ordinance and the Regulations and Rules framed thereunder are faithfully complied with by the College.

10. Board of Governors. —(1) There shall be a Board of Governors consisting of the following:

(i) Chairman,
University Grants Commission,
Islamabad.

(ii) Secretary, Ministry of Education,

Government of Pakistan,
or his nominee not below
the rank of a Joint Educational
Adviser.

(iii) Vice-Chancellor,
University of the Punjab.

(iv) Vice-Chancellor,
University of Engineering
and Technology, Lahore.

(v) One Judge of the Lahore High Court to be nominated
by the Chief Justice of the Court.

(vi) Principal,
Pakistan Administrative Staff College,
Lahore.

(vii) Secretary Education,
Government of the Punjab,
Lahore.

(viii) Chairman,
Pakistan Television Corporation,
Islamabad.

(ix) Outstanding professionals, one
each in the fields of Architecture,
Commercial Design and Fine Arts,
to be nominated by the Controlling
Authority.

(x) One outstanding industrialist to
be nominated by the Controlling
Authority.

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(xi) Two distinguished Educationists
to be nominated by the Chairman.

(xii) One outstanding alumnus to be
nominated by the Chairman.

(xiii) Secretary, Ministry of Finance,
Government of Pakistan,
or, if nominated by him, Financial Adviser
to the Ministry of Education,
Islamabad.

(xiv) Two distinguished citizens to
be nominated by the Controlling
Authority.

(xv) Two eminent women representatives to be nominated by the Controlling Authority.

(xvi) Principal Member/Secretary.

(2) Members other than *ex-officio* member shall hold office for two years.

(3) The quorum for a meeting of the Board shall be one half of the total number of members, a fraction being counted as one.

11. Powers and functions of the Board. —(1) The Board shall be the principal executive body of the College, and shall, subject to the provisions of this Ordinance and the Rules and Regulations made thereunder, exercise general supervision over the affairs of the College.

(2) In particular and without prejudice to the generality of the foregoing provisions, the Board shall have the power :—

(i) to conduct teaching and research in arts and allied or auxiliary disciplines at the Bachelor and higher levels ;

(ii) to prescribe courses of studies and curricula ;

(iii) to hold examinations through external evaluation and grant degrees, diplomas, certificates and other academic distinctions ;

(iv) to create, suspend or abolish such posts for teaching, research, administration and other related matters as may be necessary ;

(v) to prescribe the terms and conditions of service of teaching and non-teaching staff including their qualifications, experience and eligibility for appointment, and to appoint, confirm, suspend, remove, dismiss or take disciplinary action against the staff ;

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(vi) to institute fellowships, scholarships, medals and prizes ;

(vii) to devise and adopt ways and means for the promotion of education and research in arts and related subjects ;

(viii) to hold, control and administer the property and funds of the College ;

(ix) to consider and approve the annual report and the annual and revised budget estimates of the college and re-appropriate funds from one head of expenditure to another ;

(x) to enter into, vary, carry out and cancel contracts on behalf of the College ;

(xi) to invest any money belonging to the College ;

(xii) to receive and manage property, grants, bequests, trusts, gifts, donations, endowments and other contributions made, to the College ;

(xiii) to decide about the location of the College and its constituent institutes, if any;

(xiv) to regulate the conduct and enforce discipline among the teachers and students of the College;

(xv) to govern, maintain, regulate and operate the finances, accounts and investments of the College ;

(xvi) to take all steps necessary for the proper and efficient functioning of the College ; and

(xvii) to perform such other functions as may be necessary for the advancement of arts in the country.

(3) The meetings of the Board shall be presided at by the Chairman or, in his absence by one of the members to be elected by the members present.

(4) The quorum for a meeting of the Board shall not be less than half of its members.

(5) The Board may for speedy and efficient working of the College delegate to the Principal or a Committee or a Sub-Committee or any other person such of its powers as it may deem fit.

12. Chairman of the Board. —(1) The Chairman of University Grants Commission shall be the Chairman of the Board.

(2) The Chairman shall ensure that the provisions of this Ordinance, the Regulations and Rules are faithfully observed in the College.

(3) The Chairman shall perform such other functions as may be entrusted to him by the Board or the Controlling Authority.

13. Committees. —(1) There shall be the following Committees of the College, namely:-

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(i) the Executive Committee ;

(ii) she Academic Committee;

(iii) the Selection Committee ;

(iv) the Finance and Planning Committee ; and

(v) such other Committees as may be constituted by the Board.

(2) The decisions of the Executive, Finance and Selection Committee shall be subject to the approval of the Board.

(3) The constitution, functions and powers of the Committees shall be such as may be prescribed.

14. Regulations. —(1) Subject to the provisions of this Ordinance, Regulations may be made by the Board with the approval of the Controlling Authority to regulate all or any of the following matters, namely : —

(a) the constitution of pension, insurance, gratuity, provident fund and benevolent fund for College employees ;

(b) the scales of pay and other terms and conditions of service of officers, teachers and other employees of the college ;

(c) the establishment of Departments ;

(d) the conditions under which the College may enter into arrangements with other institutions or with public bodies for purposes of research, consultancy and advisory services ;

(e) the general scheme of studies, including the duration of courses and the number of subjects or pacers for an examination ;

(f) the conduct of examination ;

(g) the formation of Institutes and Boards of Studies ;

(h) the constitution, functions and powers of the Committees ; and

(i) all other matters which are to be or may be prescribed by Regulations.

(2) The draft of Regulations shall be proposed by the Board to the Controlling Authority who may approve it, or refer it back to the Board for reconsideration or may reject it.

15. First Regulations. —Notwithstanding anything contained in section 14 the Regulations set out in the Schedule shall be deemed to be Regulations framed under the said section and shall remain in force until they are amended or replaced by new Regulations framed in accordance with this Ordinance.

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16. Rules. —(1) The Board and other bodies of the College may make Rules consistent with this Ordinance and the Regulations to regulate the conduct of their business and the time and place of meetings and related matters:

Provided that the Board may direct the amendment or the annulment of any Rules made by another body under this section:

Provided further that, if such other body is dissatisfied with such direction, it may appeal to the Controlling Authority whose decision in the matter shall be final.

(2) The Board may make Rules to regulate any matter relating to the affairs of the College particularly on the following:

(a) the powers and duties of officers and teachers ;

(b) the courses of study for degrees, diplomas and certificates of the College ;

(c) the manner in which the recognised teaching referred to in sub-section (1) of section 4 shall be organised and conducted ;

(d) the admission of students to the College ;

(e) fees and other charges to be paid by the students for admission to the courses of study and the examinations of the College ;

(f) the conduct and discipline of students of the College ;

(g) conditions of residence of the students of the College including the levying of fees for residence in halls of residence and hostels ;

(h) the institution of stipends and free and half-free studentships ;

(i) the academic costume.

17. Fund of the College. —The College shall have a fund to which shall be credited:

(i) grants made by the Federal Government ;

(ii) contribution and donations from individuals, local bodies, corporations, institutions, organisations and agencies ; and

(iii) income from fees, publications and such other sources as may be approved by the Board.

18. Audit and accounts. —(1) The accounts of the College shall be maintained in the prescribed form and manner and shall be audited annually by an auditor appointed by the Accountant General, Pakistan Revenue.

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(2) No expenditure shall be made from the funds of the College unless a bill for its payment has been audited by the Audit Officer of the College in accordance with the rules made under this Ordinance.

(3) The College shall furnish to the Federal Government each year a report on annual audited accounts, a report on the activities of the College during the preceding year and such information relating to its activities as may be asked for by the Federal Government.

19. Transfer of assets and liabilities, etc. —Upon the commencement of this Ordinance,—

(i) everything done, action taken, obligations and liabilities incurred, persons appointed or authorised, fellowships or scholarships instituted and orders issued prior to such commencement shall be continued and, so far as may be, be deemed to have been respectively done, taken, incurred, appointed or authorised, instituted or issued by the College.

(ii) all moneys and properties held by the College immediately before such commencement shall stand transferred to, and vest in, the College ; and

(iii) any rules made by the College shall, in so far as they are not inconsistent with the provisions of this Ordinance, continue to be in force until they are repealed, rescinded or modified under this Ordinance.

20. Removal of difficulties. —If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Controlling Authority may, on the recommendations of the Board, give such directions, not inconsistent with the said provisions, as it may consider necessary for the removal of such difficulty.

———

THE SCHEDULE

(*See* section 15)

THE FIRST REGULATIONS

1. *The Executive Committee.*— (1) The Executive Committee shall comprise the following, namely :—

(i) The Chairman.

(ii) Vice-Chancellor Punjab University…….*Member*

(iii) The Secretary Education, Government of the Punjab, Lahore……*Member*

(iv) Principal, Pakistan Administrative Staff College……*Member*

(v) Three nominees of the Board……..*Member*

(vi) One nominee of the Academic Committee……*Member*

(vii) One woman representative of the Board……..*Member*

(viii) The Chairman of the Finance and Planning Committee…….*Member*

(ix) The Principal of the College……*Member/Secretary*

(2) The Chairman of the Executive Committee shall be appointed by the Controlling Authority on such terms and conditions and for such period as it may determine.

(3) Members other than *ex-officio* members shall hold office for two years.

(4) The quorum for a meeting of the Committee shall be one-half of the total number of members, a fraction being counted as one.

2. *Powers and functions of the Executive Committee*.— (1) Subject to the provisions of the Ordinance and the Regulations made thereunder and the general or special directions of the Board,

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the Executive Committee shall be responsible for the administration of the College and execution of policies and directions of the Board for carrying out the purpose of this Ordinance.

(2) The Executive Committee shall exercise such powers as may be delegated to it by the Board from time to time.

(3) The minutes of the meeting of the Executive Committee shall be circulated to all members of the Committee after approval by the Chairman. The decision shall be implemented only on receipt of the approval of the Chairman.

(4) All decisions of the Executive Committee shall be placed before the Beard for approval.

3. ***Academic Committee.***—(1) The Academic Committee shall comprise the following, namely :—

(i) Principal……..... *Chairman*

(ii) All Professors and Chairman of the Departments……. *Member*

(iii) Chairman, Department of Fine Arts,
University of the Punjab Lahore …….. *Member*

(iv) Chairman, Department of Architecture,
University of Engineering and Technology, Lahore…….*Member*

(v) One outstanding alumnus of the College
to be nominated by the Chairman of the Board…… *Member*

(vi) Two representatives of the profession
to be nominated by the Chairman of the Board
on the recommendation of the Principal……..*Member*

(vii) One representative of the Council of Architects
of Pakistan to be nominated by the Council……*Member*

(viii) Chairman, Department of Architecture,
Dawood College of Engineering & Technology, Karachi…*Member*

(ix) Registrar of the College …….……*Member/ Secretary.*

(2) Members other than *ex-officio* members shall hold office for two years.

(3) The quorum for meeting of the Committee shall be one half of the total number of members, a fraction being counted as one.

4. ***Functions and powers of the Academic Committee.***—(1) The Academic Committee shall be the academic body of the College and shall, subject to the provisions of this Ordinance and the Regulations, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the College.

(2) In particular and without prejudice to the generality of the foregoing provision; the Academic Committee shall have the power:—

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(a) to advise the Board on academic matters ;

(b) to regulate the conduct of teaching, research and examination ;

(c) to regulate the admission of students to the courses of studies and examinations in the College;

(d) to regulate the conduct and discipline of the students of the College ;

(e) to consider and formulate proposals for the planning and development of teaching and research in the College;

(f) to frame Regulations prescribing the courses of studies and the syllabi for submission to the Controlling Authority;

(g) to regulate the award of student ships, scholarships exhibitions, medals and prizes ;

(h) to perform such other functions as may be prescribed by Regulations.

5. ***Finance and Planning Committee.***—(1) The Finance and Planning Committee shall comprise the following, namely:—

(i) Whole-time-Member, University Grants Commission, Islamabad…….. *Chairman*

(ii) Chairman, Punjab Planning Board, Lahore……..*Member*

(iii) Financial Adviser, Ministry of Education *Member*

(iv) Director General, Academy of Planning and Management, Government of Pakistan, Islamabad……*Member*

(v) Treasurer of one of the Universities in Lahore to be nominated by the Chairman of the Board……*Member*

(vi) Chief of Education Section, Planning Division Government of Pakistan, Islamabad…….*Member*

(vii) Principal……..*Member/Secretary.*

(2) The Members, other than *ex-officio* members, shall hold office for two years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be four.

6. ***Functions of the Finance and Planning Committee.***—The functions of the Finance and Planning Committee shall be:—

(a) to consider the annual statement of accounts, the annual and revised budget estimates and advise the Board thereon;

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(b) to review periodically the financial position of the College;

(c) to advise the Board on all matters relating to planning, development, finance, investments, and accounts of the College ; and

(d) to perform such other functions as may be prescribed by Regulations.

7. *Selection Committee.*—(1) The Selection Committee shall consist of

(i) Members of the Executive Committee;

(ii) the Chairman of the Teaching Department concerned ;

(iii) one member of the Board and two other persons of eminence, to be appointed by the Board provided that none of the three is an employee of the College ;

(iv) Principal …… *Member/ Secretary*

(2) The Chairman of the Executive Committee shall be the Chairman of the Selection Committee.

(3) The members nominated under clause (iii) shall hold office for two years.

(4) The quorum for a meeting of the Selection Committee shall be four.

(5) No member who is a candidate, for the-post to which appointment is to be made shall take part in the proceedings of the committee.

8. *Functions of Selection Committee.*—(1) The Selection Committee for teaching and other posts shall consider the applications received in response to an advertisement and recommend to the Board the names of suitable candidates for appointment to such posts.

(2) The Selection Committee may recommend to the Board the grant of a higher initial pay in a suitable case for reasons to be recorded.

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(3) The Selection Committee may recommend to the Board the appointment of an eminently qualified person to a position in the College on terms and conditions which may differ from those prescribed.

(4) In the event of an unresolved difference of opinion between the Selection Committee and the Board the matter shall be referred to the Controlling authority whose decision shall be final.

THE NATIONAL COMMISSION FOR HUMAN DEVELOPMENT ORDINANCE, 2002.

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THE NATIONAL COMMISSION FOR HUMAN DEVELOPMENT ORDINANCE, 2002.

ORDINANCE XXIX OF 2002

An

Ordinance

to provide for the establishment of National Commission for Human Development

WHEREAS it is expedient to establish a National Commission for Human Development to implement various programmes and projects in the social sector in collaboration with philanthropists;

AND WHEREAS the objective of the National Commission for Human Development is to promote Human Development by supporting Government line departments, non-Governmental Organizations and elected officials at the district level in primary education literacy, income generating activities and basic health care service etc;

AND WHEREAS the President is satisfied that circumstances exist which render necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the Fourteenth lay of October, 1999, and the Provisional Constitution Order No.1 of 1999, read with the Provisional Constitutional (Amendment) Order No.9 of 1999, and in exercise of all power, enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance.

CHAPTER - I

PRELIMINARY

1. Short title, extend and commencement.—(1) This Ordinance may be called the National Commission for Human Development Ordinance, 2002.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Chairman" means the Chairman of the Commission;

(b) "Commission" means the National Commission for Human Development establishment under section 3;

(c) "Director-General" means the principal staff officer and in-charge of general Administration of the Commission;

(d) "Fund" means the Pakistan Human Development Fund registered under the companies Ordinance 1984 (XLVII of 1984);

(e) "Member" means a member of the Commission;

(f) "Prescribed" means prescribed by rules made under this Ordinance;

(g) "President" means President of the Islamic Republic of Pakistan;

(h) "Regulations" means the regulations made under this Ordinance;

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(i) "Rules" means the rules made under this Ordinance; and

(j) "staff' means the members of staff of the Commission and includes persons on deputation or employed on contract.

CHAPTER II

NATIONAL COMMISSION FOR HUMAN DEVELOPMENT

3. Establishment of the Commission.—(1) There shall be established a National Commission for Human Development for carrying out the purposes of this Ordinance.

(2) The Commission shall be a body corporate having perpetual succession and a common seal with powers, subject to the provisions of this Ordinance, to enter into agreements, contracts, acquire and hold property, both moveable and immovable, and to sue and be sued in its name.

(3) The President shall be the Patron-in-Chief of the Commission.

(4) The Commission shall comprise the Chairman, to be appointed by the President, and five Members, including a representative of Ministry of Finance, to he appointed by the President on the recommendation of the Chairman:

Provided that Provincial representation and gender equality will be ensured amongst the Members.

(5) The main office of the Commission shall be at Islamabad and the Commission may set-up sub-offices at such place or places as it may deem necessary.

(6) The Commission shall be an autonomous body of the Cabinet Division, Government of Pakistan.

4. Chairman of the Commission.—(1) The Chairman shall be an eminent professional of known integrity, reputation, competence, and expertise in the social sector.

(2) The Chairman shall hold office for a period of five years.

(3) The Chairman may resign his office by writing under his hand addressed to the President.

(4) The Chairman shall be the Chief Executive Officer of the Commission.

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5. Members of the Commission.—(1) The Members of the commission shall be professionals of known integrity and experience in the social sector.

(2) A Member shall hold office during the pleasure of the President.

(3) A Member may resign his office by writing in his hand addressed to the Chairman.

(4) The business of the Commission shall be conducted as prescribed.

6. Terms and conditions of office of Chairman and Members.—The terms and conditions of the Chairman and Members and their remuneration and privileges shall be such as may be determined by the President.

7. Functions of the Commission.—The functions of the Commission shall be to—

(a) formulate, approve manage, promote, enhance, implement, execute monitor and organize its support programmes and projects fur assistance of the line Ministries, Departments and agencies concerned, *inter alia*, for-

(i) capacity building, training, and enhancement of competency of Governmental functionaries and line departments, and non--govemmental organizations working in the social sectors, specially under District Governments;

(ii) literacy and non-formal basic education programmes supported by skills training programmes for income generating activities;

(iii) programmes to assist in universal primary education;

(iv) programmes to assist in primary health-care;

(v) programmes to assist in alleviation of poverty;

(vi) national volunteer programme to assist in the social sectors.

(b) undertake research, studies and surveys to assess the needs an requirements of an area for extending scope of its activities and disseminate information in respect thereof;

(c) keep informed the Federal Government and respective Provincial Governments and their District Administration of its programme and projects being carried out by it in performance of its functions;

(d) global resource mobilization including finances, intellectual expertise and talent to assist in the social sectors; and'

(e) perform such other functions as may be incidental or ancillary to the execution of its programmes and projects.

8. Policy Guidelines.—(1) The Commission may for the implementation and execution of its programmes and projects pursuant to its aims and objectives, issue Policy Guidelines for the Commission.

(2) Without prejudice to the generality of the provisions of sub-section (1), the Policy Guidelines shall lay down parameters for:—

(a) alleviation of poverty;

(b) non-formal basic education and promotion of literacy;

(c) primary health care;

(d) sustainable livelihood; and

(e) capacity building, training, and enhancement of competency of Governmental agencies and non-government organizations working in the social sector, especially under District Governments.

(3) The advice of the Advisory Council shall be given due consideration by the Commission.

9. Advisory Council.—(1) There shall be an Advisory Council of the Commission consisting of—

(a) the Chairman who shall act as its Convener;

(b) representatives from civil society, community based organizations an such other persons as are approved by the Commission;

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(c) one representative each of :-

(i) the Ministry of Education, Government of Pakistan;

(ii) the Ministry of Health, Government of Pakistan;

(iii) the Ministry of Finance, Government of Pakistan;

(iv) Ministry of Environment, Local Government and Rural Development Government of Pakistan;

(v) the Government of Balochistan Government of North west Frontier Province, Government of Sindh, and Government of the Punjab;

(vi) States and Frontier Regions Division, Government of Pakistan;

(vii) the Ministry of Women Development, Social Welfare and Special Education; Government of Pakistan;

(viii) Planning Commission;

(ix) National Reconstruction Bureau of Pakistan.

(2) The functions of the Advisory Council shall be—

(a) to render assistance and advice in improvement of the Policy Guidelines of the Commission; and

(b) to make recommendations for augmenting financial resources of the Commission.

(3) The Advisory Council shall meet at least once in every quarter and may hold its meetings as and when necessary.

(4) The Advisory Council may invite any technical expert or person possessing specialized knowledge on related subjects for assistance in performance of its functions.

(5) The Advisory Council shall make rules of procedure and conduct of its business.

10. Director General.—(1) The Chairman may appoint, as prescribed, a person of known integrity, and experience in the field of administration and management as Director General, who shall be the principal staff officer of the commission.

(2) The Director General shall be responsible for—

(a) the administration and day to day business of the Commission;

(b) the execution of all orders and directions given by the Chairman;

(c) the preparation of periodical reports, for submission to the President by the Chairman;

(d) coordinate the monitoring of the work for the Commission down to the level of each district and tehsil; and

(e) any other duty or assignment given by the Chairman.

(3) In addition to the responsibilities specified in sub-section (1) the Chairman may assign any other function or assignment to the Director General.

(4) The Director General shall be entitled to such remuneration and privileges as the Commission may determine.

(5) The Director General may resign his office in writing addressed to the Chairman.

11. Committees of the Commission.—(1) The Commission may, for carrying out its functions, constitute such committees as may be considered appropriate by the Commission.

(2) The membership of a Committee and conduct of business thereof shall be such as may be prescribed.

12. Remuneration of officers and staff of the Commission.—(1) The Commission shall, by regulations, determine the terms and conditions of, including salaries, allowances and other benefits for officers and staff commensurate with the economic condition of the country and compatible with other such organizations, including private sector.

(2) The regulations referred to in sub-section (1) shall include the procedure it inquires and disciplinary action to be taken in result thereof against any employee of the Commission

Provided that any person in the service of Pakistan employed in the Commission whether on deputation or on transfer, shall be governed by the service rules and regulations applicable to him before his appointment in the Commission.

13. Employment of advisors, consultants, etc.—(1) Subject to subsection (1) of section 12 and sub-section (2), the Commission may appoint any professional, adviser, consultant, expert or such other person as may be considered necessary for performance of its functions.

(2) The appointment of the persons referred to in sub-section (1) shall be made in accordance with the requirements of the Policy Guidelines of the Commission:

Provided that the terms and conditions of appointment of such persons, including tenure, shall be determined by the Commission.

14. The Budget of the Commission, etc.—(1) The budget of the Commission shall be met out of the Fund for the implementation and execution of the programmes and projects of the Commission and fulfillment of its objectives.

(2) The Director General with the approval of the Chairman shall prepare and submit the annual plan of the budget of the Commission to the Fund.

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(3) The Commission shall, three months before the commencement of a financial year review its budget position and if there are some additional requirement, the same shall be met through re-appropriation by the Commission or as the case may be by fresh allocation by the Fund, in case there are some savings, the same shall be surrendered to the Fund by 15th of June.

(4) The Commission may maintain bank accounts in scheduled banks as it may determine.

(5) The Chairman shall be the Principal Accounting Officer of the Commission.

15. Expenditure of the Commission.—(1) All programmes, projects, operations and schemes of the, Commission shall be met and executed from the budget of the Commission referred to in section 14.

(2) In addition to the expenditure referred to in sub-section (1), the following expenses shall be met from the budget of the Commission, namely:—

(a) payment of salaries, allowances, remuneration, honoraria, provident fund contributions, superannuation allowances, gratuities, fees, legal charges or costs payable by the Commission to Members, officers, members of staff, advisors, consultants, professional, experts or any other persons appointed or employed by the Commission;

(b) expenditure incurred on seminars, conferences, travelling, publicity; and such other related expenditure;

(c) purchase or hiring of equipment, machinery, transport and any other material as may be necessary for execution of the programme; projects and schemes of the Commission;

(d) acquisition of any property, both movable and immovable, or assets, construction of any building etc; and

(e) any other expenditure as may be incurred or accepted in carrying out any other work or undertaking in performance of its functions.

CHAPTER III

MISCELLANEOUS

16. Delegation of powers.—(1) The Commission may delegate all or any of its powers and functions to the Chairman or such other officer of the Commission, subject to such conditions and limitations, as it may deem appropriate.

(2) The Chairman or the Director General may delegate all or any of their powers and functions under this Ordinance to any officer of the Commission, subject to such conditions and limitations, as he may deem fit.

17. Audit and accounts.—(1) The accounts of the Commission shall be audited by a reputable firm of Chartered Accountants to be appointed by the Commission on such remuneration as it may determine.

(2) The auditors appointed under sub-section (1) shall be provided access to the books, accounts and other documents as may be considered necessary by them for audit of the accounts of the Commission and may examine any Member, officer or member of the staff of the Commission in connection with such audit.

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(3) The auditors shall submit periodical reports to the Commission after audit of the accounts.

18. Annual and other reports.—(1) Within three months of the conclusion of each calendar year, the Chairman shall submit an annual report to the President in respect of activities of the Commission including the status of its existing programmes, projects and future plans formulated in furtherance of its aims and objects.

(2) In addition to the annual report referred to in sub-section (1), the Chairman shall, from time to time, place before the President such other reports relating to the performance of the Commission or whenever so directed by the President.

19. Rules.—(1) The Commission may, with the approval of the President, lake rules to carry out the purposes of this Ordinance.

(2) Without prejudice to the generality of the forgoing provision, the rules referred to therein may provide for—

(a) Policy Guidelines for setting up of District Human Development Centres for the purpose of—

(i) strengthening competence of line department officials;

(ii) support to elected representatives with required skills;

(iii) facilitate change management;

(iv) coordinate the work of stake holders; and

(v) capacity building of non-government organizations;

(b) procedure of appointment of members of the different committees and laying down rules for conduct of their business.

20. Regulations.—(1) The Commission may make regulations not consistent with-this Ordinance and the rules to carry out the purposes of this Ordinance.

(2) Without prejudice to the generality of the forgoing provisions regulations referred to therein may provide for—

(a) the determination of salaries and allowances and other benefits of the members of the staff of the Commission;

(b) disciplinary proceedings and award of punishment,

(c) prescription of different scales and grades etc. for and privileges of officers and staff of the Commission; and

(d) all or any of the matters, which by this Ordinance, are to be, or may be, prescribed.

21. Authorities to aid the Commission.—(1) All executive authorities in the Federation and in the Provinces shall render such assistance to the Commission as may be necessary for execution of its programmes and projects being carried out under this Ordinance.

22. Immunity of the Commission.—No suit, prosecution or other legal proceeding shall lie against the Commission, the Chairman, Members, officers, advisors, consultants and other persons and employees of the Commission in respect of anything done or intended to be done in good faith under this Ordinance.

23. Removal of Difficulties.—If any difficulty arises in giving effect to any of the provisions of this Ordinance, the President may make such order, inconsistent with the provisions of this Ordinance, as may appear to be necessary for removing the difficulty.

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THE NATIONAL INSTITUTE OF ELECTRONICS ORDINANCE, 1979

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THE NATIONAL INSTITUTE OF ELECTRONICS ORDINANCE, 1979

ORDINANCE No. III OF 1979

[22nd January, 1979]

An Ordinance to provide for the establishment of a National Institute of Electronics.

WHEREAS it is expedient to provide for the establishment of a National Institute of Electronics and for matters connected therewith or incidental thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July 1977, read with the Laws (Continuance in Force) Order, 1977 (C. M. L. A. Order No. 1 of 1977), and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the National Institute of Electronics Ordinance, 1979.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context;

(a) "Director" means the Director of a Division;

(b) "Director General" means the Director General of the Institute;

(c) "Division" means a unit of the Institute;

(d) "electronic components" means metallic and non-metallic parts possessing definite electrical and mechanical characteristics which are connected together in a specific pattern to produce electronic equipment;

(e) "electronic equipment" means an electronic device assembled and finally prepared for use, such as radio and television receivers, radio transmitters, tape recorders, radar sets, tele-communication apparatus, computers, electronic controls, military and space electronic equipment;

(f) "electronic industry" means an industry producing electronic materials, components and equipment;

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(g) "electronics" means the branch of science, engineering and technology which deals with the controlled flow of electrons in networks consisting of metallic conductors, insulators, semi-conductors, electronic valves, resulting in coherent and meaningful signals which find application in communication, data processing, data transmission and display as well as in the automatic and semiautomatic control of machines, missiles and such other devices;

(h) "Governing Body" means the Governing Body of the Institute;

(i) "Institute" means the National Institute of Electronics Established under section 3;

(j) "Laboratory" means a laboratory set up by the Institute;

(k) "Member" means member of the Governing Body;

(l) "standardization" means uniformity in equipment, components and techniques aiming to achieve efficiency and economy in production and maintenance, and includes uniformity of specifications and nomenclature.

3. Establishment of the Institute.—(1) As soon as may be after the commencement of this Ordinance, the Federal Government shall establish, in accordance with the provisions of this Ordinance, an Institute to be called the National Institute of Electronics.

(2) The Institute shall be a body corporate by the name of the National Institute of Electronics, having perpetual succession and a common seal, with power, subject to the provisions of this Ordinance, to acquire, hold and dispose of property, both movable and immovable, and shall by the said name sue and be sued.

(3) The headquarters of the Institute shall be at Islamabad.

CHAPTER II

FUNCTIONS OF THE INSTITUTE

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4. The functions of the Institute shall be to:—

(a) carry out design and development work in vital areas in electronics not within the resources of the existing development centres;

(b) design and develop items of common utility for the various user organizations and production units and assist in augmenting the local content in production;

(c) develop know-how in advanced electronic techniques of value and exchange specialized know-how with other research centres in the country;

(d) participate with other development centres in research and development projects of national importance and coordinate the work of various research centres in the country;

(e) assist in advanced training in electronics;

(f) design, develop and guide fabrication of electronic components, particularly integrated circuits, keeping abreast of the latest technologies;

(g) design, develop and guide production of electronic measuring instruments, industrial control equipment, computing devices, medical electronic equipment and opto-electronic devices;

(h) design, develop and guide production of radio and television sets, including colour television and other consumer electronic devices;

(i) develop expertise in digital electronic techniques to enable its application to control systems, data processing and data transmission equipment of the future;

(j) establish and maintain close liaison with other development centres, universities, user organizations and production units for the promotion of electronic research and development activities;

(k) undertake design and development projects on contract with user organizations and coordinate the work in the various development centres in case of composite projects;

(l) conduct seminars on electronic topics of national interest and exchange specialised knowhow with other research organizations, universities and centres of competence;

(m) publish an electronics journal with the objects of disseminating knowledge and expertise and the progress of research and development work;

(n) undertake small quantity production of specialised components; integrated circuits and equipment;

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(o) assist industry to enable increased use of local components circuits and design; and

(p) assist in standardization of components, equipment and techniques on the national level.

CHAPTER III

ADMINISTRATION OF INSTITUTE

5. The Governing Body.—(1) The general administration of the affairs of the Institute and the formulation of its policies shall vest in the Governing Body.

(2) The Governing Body shall consist of the following members to be appointed by the Federal Government, namely:

(a) Fulltime Members:

(i) Director General, who shall also be the Chairman of the Governing Body; and

(ii) Directors of Divisions;

(b) *Ex-officio* Members:

(i) Five members representing the Ministries and Organizations concerned, including the Ministry of Science and Technology; and

(ii) A member representing the Universities.

(3) The Governing Body may, for such time as it may deem fit, co-opt as member a representative of any unit or organization relating to electronic industry or an establishment engaged in research in, or development of electronics.

(4) A person appointed to be a member of the Governing Body by virtue of his holding an office or appointment shall cease to be such member when he ceases to hold that office or appointment.

(5) A person appointed to be member of the Governing Body may at any time resign his office by writing in his hand addressed to the Chairman:

Provided that no resignation shall take effect until it has been accepted by the Federal Government.

(6) No act or proceeding of the Governing Body shall be invalid by reason only of the existence of vacancy in, or defect in the constitution of, the Government Body.

6. The Director General and Directors.—(1) The Director General shall be the chief executive of the Institute and shall exercise both administrative and financial powers within the framework of policy laid down by the Governing Body.

(2) The Director-General shall be appointed by the Federal Government and shall be an eminent technologist of standing by virtue of his contribution to the profession of electronic engineering and technology.

(3) The Directors, other than the Director, Finance, shall be appointed by the Federal Government from amongst eminent technologists in the field of activity of the Division concerned and shall perform such functions as may be assigned to them by the Director General, and the Director, Finance, shall be nominated by the Ministry of Finance.

(4) The Director-General and a Director shall hold office for such period not exceeding three years as the Federal Government may determine at the time of his appointment and shall be eligible for re-appointment for such further period or periods, not exceeding three years at any one time, as the Federal Government may deem fit.

(5) The remuneration and other terms and conditions of service of the Director-General and Directors shall be such as may be determined by the Federal Government.

7. Executive Committee of the Governing Body.—(1) There shall be an Executive Committee of the Governing Body consisting of the Director-General and the Directors.

(2) The Executive Committee shall be responsible for the day to day functioning of the Institute within the framework of policy laid down by the Governing Body.

8. Meeting of the Governing Body.— (1) Meetings of the Governing Body shall be convened by the Director-General on such date and at such time and place as may be specified by him:

Provided that not less than four meetings shall be held every year and not less than eight days' notice of a meeting shall be given to the members, specifying the date, time and place of the meeting.

(2) To constitute a quorum at a meeting of the Governing Body, not less than five members, including the Director-General, shall be present.

(3) The Director General or, in his absence, a member authorised by him in writing shall preside at a meeting of the Governing Body.

9. Committees and working groups. The Governing Body may from time to time appoint such working groups or committees from amongst its members as it may consider necessary to assist it in the performance of its functions and to discharge such of its functions as it may assign to them

10. Funds of the Institute. The funds of the Institute shall consist of—

(a) grants made by the Federal Government and the Provincial Government;

(b) donations and endowments;

(c) income from investments and royalties;

(d) income from development contracts; and

(e) foreign aid and loans obtained with the approval of the Federal Government.

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11. Budget and accounts.—(1) The Institute shall cause to be prepared and submit for the approval of the Federal Government a statement of its receipts and expenditure for each financial year and the sums which are likely to be required from the Federal Government during that financial year.

(2) The funds of the Institute shall be kept in a personal ledger account of the Institute with the State Bank of Pakistan or with any Branch of the National Bank of Pakistan, acting as an agent of the State Bank of Pakistan.

(3) The accounts of the Institute shall be maintained in such form and manner as the Auditor-General of Pakistan may determine in consultation with the Federal Government.

(4) The accounts of the Institute shall be audited by the Auditor-General of Pakistan or one or more auditors who are chartered accountants within the meaning of he Chartered Accountants Ordinance, 1961 (X of 1961), and are appointed by the Institute in consultation with the Auditor-General of Pakistan.

12. Appointments. The Executive Committee of, the Governing Body may appoint, subject to such general or special orders as the Federal Government may issue to it from time to time, such officers and sub-ordinate staff and engage such consultants or experts as it may consider necessary for the efficient performance of the functions of the Institute on such terms and conditions as it may deem fit.

13. International cooperation. The Institute may with the prior approval of the Federal Government cooperate with any foreign agency or international organization for the development of electronics, pursuant to an international agreement or arrangement made before or after the establishment of the Institute.

CHAPTER IV

MISCELLANEOUS

14. Reports and returns.—(1) The annual report and accounts of the Institute for every financial year shall be considered and approved at a meeting of the Governing Body to be held within six months of the close of that year and shall be submitted to the Federal Government.

(2) The Institute shall submit to the Federal Government such reports, returns, summaries, comments, statements and accounts, at such times and in such form as it may specify.

15. Directives of the Federal Government. The Federal Government may from time to time, issue to the Institute such directives and orders as it may consider necessary to guide the functions of the Institute and the Institute shall be bound to comply with or carry out such directives and orders.

16. Ordinance XXIII of 1969 not to apply to Institute. Nothing contained in the Industrial Relations Ordinance, 1969 (XXIII of 1969), shall apply to or in relation to the Institute or any of the officers, employees, consultants or experts employed by it.

17. Discoveries and inventions. All rights relating to discoveries, inventions, designs and any improvements in materials, techniques, processes, apparatus or equipment made by any officer or employee of the Institute in the course of his employment shall vest in the Institute, but the Institute may grant to any such officer or employee such award or honorarium as it may deem fit.

18. Declaration of fidelity and decrecy. Every member of the Governing Body and every officer, employee, consultant or expert of the Institute shall make such declaration of fidelity and secrecy as may be prescribed by rules made under this Ordinance.

19. Power to make rules and regulations.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) The Institute may, with the prior sanction of the Federal Government make such regulations not inconsistent with this Ordinance or the rules made thereunder as may in its opinion be necessary or expedient for the achievement of its aims and objects or for the performance of its functions.

THE NATIONAL INSURANCE CORPORATION (REORGANIZATION) ORDINANCE, 2000

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THE NATIONAL INSURANCE CORPORATION (REORGANIZATION) ORDINANCE, 2000

ORDINANCE No. XXXVII of 2000

[11th August, 2000]

An Ordinance to provide for conversion of the National Insurance Corporation into a public limited company

WHEREAS, it is expedient to provide for conversion of the National Insurance Corporation into a public limited company for incorporation under the Companies Ordinance, 1984. (XLVII of 1984).

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. I of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the National Insurance Corporation (Reorganization) Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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2. Definitions.— (1) In this Ordinance, unless there is anything repugnant in the subject or context—

(a) "Company" means the National Insurance Company Limited incorporated under the Companies Ordinance, 1984. (XLVII of 1984)

(b) "Corporation" means the National Insurance Corporation established under section 3 of the National Insurance Corporation Act, 1976; (XXIII of 1976)

(c) "effective date" means the date on which property, rights and liabilities of the Corporation are vested in the Company under section 3; and

(2) All words and expressions used but not defined in this Ordinance shall have the same meaning as in the Insurance Act, 1938. (IV of 1938)

3. Vesting of the property, rights and liabilities of the Corporation.— (1) As soon as may be after the commencement of this Ordinance, the Federal Government may, by order, published in Official Gazette, direct that as and from the date, as may be specified in the order by the Federal Government, (hereinafter referred to as the effective date), all property, rights and liabilities to which the Corporation was entitled or subject, immediately before such orders, and identified therein, shall, on such terms and conditions as the Federal Government may determine, vest in the Company and become the property, rights and liabilities of the Company.

(2) An order issued under sub-section (1) shall provide for all such matters consequential and incidental to the matters provided for in sub-section (1) as the Federal Government shall consider necessary or expedient.

(3) An order issued under sub-section (1) shall provide for —

(a) the continuation by the Company of the operations and undertaking of the Corporation on the same basis as were being carried on immediately prior to the date of the order; and

(b) the dissolution of the Corporation from the effective date on which date the Corporation shall cease to exist.

(4) In consideration of the vesting in the Company of the property, rights and liabilities of the Corporation under the order issued under sub-section (1), the Company shall issue in the name of the President of the Islamic Republic of Pakistan such number of fully paid ordinary shares, of the Company as the Federal Government may determine to be the estimated net asset value of the Corporation on the effective date.

(5) No stamp duty shall be payable under any law for the time being in force or in relation to the transfer or vesting of property of the Corporation under any order issued under subsection (1), or on any shares or securities or the certificates or scripts evidencing title thereto issued to the President of the Islamic Republic of Pakistan.

(6) The value ascribed to the property vested in the Company by the Federal Government under the order made under this section shall represent the actual acquisition cost of the property for the purposes of taxation and depreciation.

(7) All contracts, bonds, agreement, powers of attorney, grants of legal representation and all other instruments of whatever kind in each case subsisting or having effect immediately before the effective date or to, which the Corporation may have been a party before the effective date shall be deemed to have been made with the Company, as if, instead of the Corporation, the Company had been a party thereto.

(8) All suits, appeals or other legal proceedings of whatever nature by or against or relating to the Corporation pending on the effective date in any court, tribunal or other authority shall be continued, prosecuted and enforced in the same manner and to the same extent as they would or might have been continued, prosecuted and enforced by or against the Corporation.

(9) On and after the effective date, any reference to the Corporation in any law other than the Ordinance, or in any rule, regulation, other notification or in any contract, deed or other document

shall, except where the context otherwise requires or the Federal Government otherwise directs, be construed as reference to the Company.

Explanation.—-For the purpose of this section the expression "property" includes assets and entitlements of every description and nature, wherever situated; and "liabilities" includes duties, obligations, loans, encumbrances, claims and charges of every description and nature, actual or contingent, whether or not they are capable, under any law of Pakistan or of any other State or under any agreement or otherwise, of being vested, transferred or assigned by the Corporation.

4. Transfer of employees from the Corporation to the Company.— (1) All whole time employees of the Corporation who had continuously served for a period of not less than six months before the effective date shall be transferred to, and become the employees of the Company, hereinafter referred to as the "Transferred Employees", on the same terms and conditions, including remuneration, tenure of office, rights, perquisites, privileges, pension benefits, gratuity, provident fund, group insurance and other matters, as were applicable to them immediately before the effective date.

(2) No person transferred to the Company pursuance to sub-section (1) shall be entitled to any compensation as a consequence of transfer to the Company.

(3) The terms and conditions of service of any Transferred Employee shall not be altered adversely by the Company except in accordance with the laws of Pakistan or with the consent of the Transferred Employees and the award of appropriate compensation.

5. Exemption from registration fees.— Notwithstanding the provisions of section 470 and Sixth Schedule of the Companies Ordinance, 1984, (XLVII of 1984) the company shall be exempt from payment of the registration fees for the purpose of its incorporation.

6. Registration.—(1) The company shall be entitled to carry on non-life insurance business in accordance with the object clause of its Memorandum of Association, without obtaining the registration under the Insurance Ordinance 2000 for a period of one year from the effective date.

(2) Within one year from the effective date, the Company shall either:—

(a) get itself registered under the said Insurance Ordinance, or

(b) cease to enter into new contracts or insurance and all the provisions under the law for the time being in force shall apply to the Company as they apply to the unregistered companies.

7. Power to make rules.— The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

8. Removal of difficulties.— If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Federal Government may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty.

9. Repeal.— Immediately after the incorporation and registration of the National Insurance Company as a public limited company, the National Insurance Corporation Act, 1976, (XXIII of 1976) shall stand repealed.

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THE NATIONAL INVESTMENT (UNIT) TRUST ORDINANCE, 1965

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THE NATIONAL INVESTMENT (UNIT) TRUST ORDINANCE, 1965

ORDINANCE No. VII OF 1965

[8th *April*, 1965]

AN

ORDINANCE

to provide for certain matters relating to the National Investment (Unit) Trust

WHEREAS it is expedient to provide for certain matters relating to the National Investment (Unit) Trust and for matters connected therewith;

AND WHEREAS the National Assembly is not in session and the Acting President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 29 of the Constitution and of all other powers enabling him in that behalf, the Acting President makes and promulgates the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the National Investment (Unit) Trust Ordinance, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—(1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(*a*) "Management Company" means the National Investment Trust Limited, and includes any other company for the time being managing the affairs of the Trust;

(*b*) "rules" means rules made under this Ordinance;

(*c*) "Trust" means the National Investment (Unit) Trust constituted under the Trust Deed or, if that Trust is reconstituted, the reconstituted trust;

(*d*) "Trustee" means the National Bank of Pakistan, as trustee under the Trust Deed and includes its successors, or if the Trust is reconstituted, the trustees of the reconstituted trust;

(e) "Trust Deed" means the deed of trust dated the 12th November, 1962, constituting the National Investment (Unit) Trust, made between the National Investment Trust Limited, a limited liability company registered under the Companies Act, 1913 (VII of 1913), with its registered office at Karachi as Management Company of the one part, and the National Bank of Pakistan, a bank constituted under the National Bank of Pakistan Ordinance, 1949 (XIX of 1949), having its head office at Karachi as Trustee of the other part, and includes any supplemental deeds made in accordance with the aforesaid deed.

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(2) All other expressions defined or used in the Trust Deed but not defined in this Ordinance shall have the same sense as is given to them in the Trust Deed.

3. Units to be transferable movable property.—Subject to the rules and the provisions of the Trust Deed, Units shall be deemed to be transferable movable property.

4. Power of [1][Federal Government] to authorize issue of Bearer Certificates.— Notwithstanding anything to the contrary contained in any other law for the time being in force, but subject to rules, the [1][Federal Government] may, by notification in the official Gazette, authorise the Trust to issue Bearer Certificates in respect of the Units sold, and no Bearer Certificates shall be issued by the Trust unless so authorised.

5. Units to be approved securities.—Notwithstanding anything to the contrary contained in any law for the time being in force, the Units shall be deemed to be included among the securities enumerated in section 20 of the Trust Act, 1882 (II of 1882), and to be approved securities and approved investments for the purposes of the Insurance Act, 1938 (IV of 1938) and section 282B (2) of the Companies Act, 1913 (VII of 1913).

6. Trust Deed to be binding on the holders of Units.—Notwithstanding anything to the contrary contained in any other law for the time being in force but subject to section 4 of this Ordinance, the provisions of the Trust Deed shall be binding upon every Certificate Holder and his heirs, successors and legal representatives as if he were a party to the Trust Deed having full knowledge of its contents.

7. Notice of trust not receivable.—No notice of a trust, express, implied or constructive, shall be receivable by or on behalf of the Trust:

Provided that the Management Company or the Trustee may, without creating any liability on their part, record in their books and comply with such directions of the holders of Units for the distribution of income as they think fit.

8. Act XVIII of 1891 to apply.—The provisions of the Bankers Books Evidence Act, 1891 (XVIII of 1891), shall apply to the books of the Trust as if it were a bank as defined in section 2 of the Act.

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9. Power to make rules.—The [1][Federal Government] may, by notification in the official Gazette, make rules to provide for all matters for which provision is necessary for the purpose of giving effect to the provisions of this Ordinance.

RGN Uploaded Date: 27.03.2024

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

THE NATIONAL UNIVERSITY OF COMPUTER AND EMERGING SCIENCES ORDINANCE, 2000

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THE NATIONAL UNIVERSITY OF COMPUTER AND EMERGING SCIENCES ORDINANCE, 2000

ORDINANCE No. XXIII OF 2000

[1st July,2000]

An Ordinance to provide for the establishment of a National University of Computer and Emerging Sciences

WHEREAS it is in the interest of the country to establish centres of excellence in the emerging disciplines of science and technology to provide a strong base for economic growth and human development and to provide quality education to talented students;

AND WHEREAS it is expedient to provide for the establishment of a National University of Computer and Emerging Sciences, and for matters ancillary thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. I of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of Proclamation of the Fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.— (1) This Ordinance may be called the National University of Computer and Emerging Sciences Ordinance, 2000.

(2) It shall come into force at once.

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2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means the Academic Council of the University;

(b) "Authority" means any of the authorities of the University specified in section 7;

(c) "Board" means the Board of Governors of the University;

(d) "Board of Trustees" means the Board of Trustees of the University:

(e) "Chancellor" means the Chancellor of the University;

(f) "Dean" means the Dean of a Faculty of the University;

(g) "Faculty" means the Faculty of the University;

(h) "Foundation" means Foundation for Advancement of Science and Technology (FAST) registered under the Societies Registration Act, 1860 (XXI of 1860) ;

(i) "Head" means Head of a teaching department of the University;

(j) "Patron" means the Patron of the University;

(k) "prescribed" means prescribed by Statutes, Regulations or Rules;

(l) "Rector" means the Rector of the University;

(m) "Registrar" means the Registrar of the University;

(n) "Statutes", "Regulations and Rules" means the Statutes, the Regulations and the Rules made, or deemed to have been made, under this Ordinance;

(o) "teachers" includes the Professors, Associate Professors, Assistant Professors, Lecturers and research staff engaged by the University for teaching graduate or post graduate classes and such other persons as may be declared as "Teachers" by the Board;

(p) "teaching department" means a teaching department established and maintained by the University; and

(q) "University" means the National University of Computer and Emerging Sciences.

3. **Establishment and incorporation of the University.**— (1) There shall be established at Islamabad a University to be called the National University of Computer and Emerging Sciences consisting of—

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(a) the Patron, the Chancellor, the Rector, the Deans and the members of the Board of Trustees and the Board of Governors;

(b) the members of such councils, committees and other bodies as the respective Boards may establish;

(c) the teachers and students of the University and its constituent units; and

(d) such other officers and members of the staff as may, from time to time, be specified by the respective Board.

(2) The University shall be a body corporate by the name of the National University of Computer and Emerging Sciences having perpetual succession and a common seal, with power, among others, to acquire, hold and dispose of any property or investments and shall by the said name sue and be sued.

(3) The University will be a multi-campus university with its principal seat at Islamabad and in addition to Foundation's existing institutes at Islamabad, Lahore and Karachi, may set up any number of campuses, colleges and Institutes at such places in Pakistan as the board may determine.

(4) The University shall receive and abide by the directives issued by the Foundation from time to time in furtherance of the Foundation's objectives.

4. **Powers and functions of the University.—** The University shall have the powers—

(a) to provide for instruction and training in computer and emerging sciences and in such allied branches of learning as it may deem fit; and to make provision for research, demonstrations and other services, and for the advancement and dissemination of knowledge in such manner as it may determine;

(b) to admit and examine students;

(c) to hold examinations and confer or award degrees, diplomas, certificates and other academic distinctions on and to persons who have passed its examinations under prescribed conditions;

(d) to select and promote faculties;

(e) to confer honorary degrees;

(f) to prescribe courses of studies in computer and emerging sciences and such other branches of learning as the University may determine;

(g) to pursue research;

(h) to establish and support other facilities for education, training and research;

(i) to decide teaching methods and strategies in order to ensure the most effective educational and training programmes;

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(j) to use its financial and other resources to the fullest extent for the execution of its programmes;

(k) to enter into agreements, contracts and arrangements with organizations, institutions, bodies and individuals for carrying out its functions and activities;

(l) to affiliate or associate itself with other institutions for effective discharge of its functions and responsibilities;

(m) to provide for the teaching of specified courses and training for persons not being the students of the University and grant certificates and diplomas to such persons;

(n) to establish, administer and maintain halls of residence and approve any place as hostel or lodging for students;

(o) to recognise the examinations passed or the period of study spent at other universities or places of learning as equivalent to examinations or periods of study in the University or to withdraw such recognition; and

(p) to do all such other acts and things as may be required to further its objectives.

5. University open to all.— The University shall be open to persons of either sex of whatever religion, race, creed, colour or domicile who are academically qualified for admission to the courses of study offered by the University and no such person shall be denied the privileges of the University on the ground only of sex, religion, creed, race, class, colour or domicile.

6. Teaching and examinations.— (1) The academic programmes of the University shall be conducted in the prescribed manner.

(2) The University may associate external examiners for the conduct of examinations.

(3) No degree shall be granted unless a students has passed an examination in Islamic and Pakistan Studies at the Bachelor's degree level or, in the case of a non-Muslim student, in Ethics and Pakistan Studies at his option.

7. Authorities of the University.— The authorities of the University shall consist of—

(i) Academic Council;

(ii) Advanced Studies and Research Board;

(iii) Board of Governors;

(iv) Board of Trustees;

(v) Finance and Planning Committee;

(vi) Selection Board; and

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(vii) such other authority as may be specified by regulations to be the authority.

8. Officers of the University. The following shall be the officers of the University namely:—

(a) the Chancellor who shall be appointed by the Patron on the recommendation of the Foundation;

(b) the Rector;

(c) the Deans;

(d) the Heads of teaching departments;

(e) the Registrar; and

(f) such other persons as may be specified by regulations to be officers.

9. Patron.— (1) The President of the Islamic Republic Of Pakistan shall be the Patron of the University.

(2) The Patron, or in his absence, the Chancellor shall preside at the convocation of the University.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Patron.

10. Visitation.— (1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of the University and shall, from time to time, direct any person or persons to enquire into or carry out inspection of—

(i) the University, its buildings, laboratories, libraries, and other facilities;

(ii) any institution, department, school, college or hostel maintained by the University;

(iii) the adequacy of financial and human resources;

(iv) the teaching, research, curriculum, examinations and other matter of the University; and

(v) such other matters as may be specified by him.

(2) The Chancellor shall communicate to the Board his views with regard to the result of visitation and shall, after ascertaining the views of the Board, advise the Board on the action to be taken by it. .

(3) The Board shall, within such time as may be specified by the Chancellor, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of visitation.

(4) Where the Board, within the time specified, does not take action to the satisfaction of the Chancellor, the Chancellor may issue such directions as he thinks fit and the Board shall comply with all such directions.

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11. Rector.— (1) The Chancellor shall, on the recommendation of the Board of Trustees appoint an eminent scholar and an educationist of distinction as Rector for a period of four years and on such terms and conditions as he may determine.

(2) The Rector shall be the chief academic and administrative officer of the University and shall be responsible for the implementation of the decisions of the Board and for the execution of the programmes of the University in accordance with the guidelines and policies formulated by the Board and shall be responsible for implementing the decisions of the Board of Trustees.

(3) The Rector shall—

(a) submit plans of work and budget estimates of the University for the consideration of the Board;

(b) direct the activities connected with the execution of programmes for instruction, training, research, demonstration, services to community, etc;

(c) authorise expenditure provided for in the approved budget;

(d) re-appropriate funds within the approved budget and report it to the Board in the next meeting;

(e) appoint, with the approval of the Board, teachers, officers and members of the staff of the University and such other persons as may be necessary in accordance with policies and procedures approved by the Board so as to ensure the highest intellectual and moral qualities in the persons appointed;

(f) submit to the Board, in accordance with the rules of procedure made by it, reports on the activities of the University and the execution of the plans of work;

(g) create and fill temporary posts for a period not exceeding six months; and

(h) undertake any work assigned by the Board of Trustees.

12. Board of Trustees.— (1) There shall be a Board of Trustees consisting of the following, namely:—

(i) The Chancellor who shall be its Chairperson;

(ii) Chairman, University Grants Commission or his nominee not below the rank of an officer of Basic Pay Scale 20;

(iii) a retired judge of the Supreme Court of Pakistan or a High Court;

(iv) a retired vice-chancellor or an eminent scholar;

(v) two eminent scientists;

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(vi) two nominees of the Foundation;

(vii) Rector;

(viii) one nominee of the Board; and

(ix) Secretary, Ministry of Education.

(2) Members of the Board of Trustees referred to in clauses (iii), (iv) and (v) shall be nominated by the Foundation.

(3) Members of Board of Trustees, other than *ex-officio* members, shall hold office for three years.

(4) The quorum for the meeting of the Board of Trustees shall be one half of total number of the members, a fraction being counted as one.

(5) The Chairperson may nominate any member of the Board of Trustees to act as Chairperson in his absence.

(6) The Board of Trustees shall meet at least twice in a year on dates to be fixed by the Chairperson.

13. Powers and functions of the Board of Trustees.— The Board of Trustees shall exercise the powers and perform the following functions, namely:—

(a) To hold, control and administer the property, funds and resources of the University and borrow or raise funds for the purposes of the University upon such security as may be required;

(b) to undertake responsibility for the financial viability of the University including responsibility for ensuring effectiveness of its operations, their continuity and preservation of the autonomy of the University;

(c) to approve the draft statutes proposed by the Board of Governors;

(d) to consider and pass the resolutions of the annual report, plan of work, statement of accounts and the annual budget estimates as recommended by the Board of Governors;

(e) to appoint members of the Board and other authorities in accordance with the provision of this Ordinance;

(f) to delegate powers to an authority or officer or a committee; and

(g) to approve arrangements through which other institutions may become affiliated or associated with the University.

14. Board of Governors.— (1) The general supervision and control of administrative, academic and financial affairs and the power to lay down the policies of the University shall vest in a Board of Governors consisting of the following members, namely:—

(a) Rector who shall be the Chairperson of the Board;

(b) one retired judge of the Supreme Court of Pakistan or a High Court, to be nominated by the Foundation;

(c) Chairman, University Grants Commission, or his nominee not below the rank of an officer of Basic Pay Scale 20;

(d) one vice-chancellor of a University to be nominated by the Foundation;

(e) Secretary, Ministry of Education, or his nominee not below the rank of an officer of Basic Pay Scale 20;

(f) one Dean to be nominated by the Board of Trustees in consultation with the Rector;

(g) three persons, prominent in the field of their specialisation because of their experience and achievements, to be nominated by the Board of Trustees; and

(h) Registrar of the University shall act as Secretary of the Board.

(2) A nominated member of the Board shall hold office for a term of three years and shall be eligible for re-nomination on the expiry of his term unless the Board of trustees, for reason to be recorded, terminates his membership earlier.

(3) The office of a nominated member of the Board shall become vacant if he resigns or fails to attend three consecutive meetings of the Board without sufficient cause or leave of absence.

(4) A casual vacancy in the office of a member of the Board shall be filled by a person nominated by the authority which nominated the member whose vacancy is to be filled.

(5) No act or proceedings of the Board shall be invalid by reason only of the existence of a vacancy in, or any defect in the constitution of, the Board.

15. Powers and functions of the Board.— (1) The Board shall exercise the powers and perform the following functions, namely:—

(a) to formulate or approve the principles, policies and plans governing the activities and operations of the University so as to facilitate research, teaching and other academic work;

(b) to make rules and regulations;

(c) to prepare or have prepared and revised from time to time rules and regulations for the efficient and effective operation of the University;

(d) to create a component of the University such as faculties, departments, schools, colleges and institutions under its jurisdiction and to constitute such standing committees, councils and other administrative or academic advisory bodies, as it deems necessary, and review their work;

(e) to consider plans of work and annual budget of the University for the approval of Board of Trustees;

(f) to call for and consider reports relating to the activities of the University and the execution of the plans of work and to direct the Rector to furnish information relating to any matter specified by the Board;

(g) to create such academic or administrative posts as it may deem necessary and to approve appointments to such posts as it may specify;

(h) to appoint from amongst its members, committees or sub-committees as it may deem necessary;

(i) to take all such initiatives as it may consider necessary or desirable for the efficient and effective management and functioning of the University; and

(j) to lay down its own rules of procedure.

(2) The Board may delegate any of its powers to the Rector subject to such conditions as it may deem fit to impose.

16. **Meetings of the Board.**— (1) The Board shall meet at least twice in a year on dates to be fixed by the Rector.

(2) A special meeting may be called at any time by the Patron, Chancellor or Rector or on a request by not less than five members of the Board to consider any matter of urgent nature.

(3) In the case of a special meeting not less than ten clear days' notice shall be given to the members of the Board and the agenda of the meeting shall be restricted to the matter for which the special meeting is called.

(4) The quorum for a meeting of the Board shall be one half of its members, a fraction being counted as one.

(5) The decisions of the Board shall be expressed in terms of the views of the majority of the members present and voting and, if the members are equally divided, the Chairperson of the Board shall have, and exercise, a casting vote.

17. **Academic and administrative staff.**— (1) The academic and administrative staff of the University shall be selected with a view to achieving its stated objectives and the basic criteria for their selection shall be the highest standards of competence, integrity and efficiency.

(2) In the case of academic staff, academic qualification and fringe benefits shall not be less than those duly approved by the University Grants Commission for such appointments.

18. **University fund, audit and accounts.**— (1) The University shall have a Fund to which shall be credited income from fees, donations, trusts, bequests, endowments, grants, contributions and any other sources.

THE PAKISTAN CODE

(2) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability of the University, or which may involve an activity not included in its programmes for the time being, shall be accepted without the prior approval of the Board of Trustees.

(3) The accounts of the University shall be maintained in such form and in such manner as may be prescribed by rules.

(4) The accounts of the University shall be audited each year within four months or the closing of the financial year of the University by a Chartered Accountant appointed by the Board of Trustees.

(5) The accounts, together with the report of the auditor thereon, shall be submitted to the Board of Trustees for approval.

(6) The auditor's report shall certify that the auditor has complied with the standards of audit and certification laid down by the Institute of Chartered Accountants of Pakistan.

19. Academic Council.— (1) The Academic Council shall consist of—

(i) the Rector who shall be its Chairperson;

(ii) all the Deans;

(iii) all the Heads of the teaching departments and institutes;

(iv) all professors and Associate Professors of the University;

(v) two Assistant Professors and two Lecturers to be nominated by the Board;

(vi) three eminent persons, one each from the field of arts, sciences and engineering to be nominated by the Board;

(vii) nominee of the University Grants Commission; and

(viii) the Registrar as Secretary.

(2) Members appointed by nomination shall hold office for three years.

(3) The quorum for a meeting of the Academic Council shall be one-third of the total number of members, a fraction being counted as one.

20. Powers and duties of the Academic Council .— (1) The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Ordinance and the Statutes, have the powers to lay down proper standards of instructions, research, publications and examinations and to regulate and promote the academic life of the University.

(2) In particular and without prejudice to the generality of the foregoing provisions, and subject to the provisions of this Ordinance and the Statutes, the Academic Council shall have the powers—

(a) to advise the Board on academic matters;

(b) to regulate the conduct of teaching, research, publications and examinations;

(c) to regulate the admission of students to the courses of studies and examination in the University;

(d) to regulate the conduct and discipline of the students of the University;

(e) to propose to the Board schemes for the constitution and organisation of faculties and teaching departments;

(f) to consider or formulate proposals for the planning and development of teaching and research in the University;

(g) to make regulations prescribing the courses of studies; the syllabi and the outlines of tests for all University examinations subject to the approval of the Board;

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(h) to regulate the award of fellowships, scholarships, stipends, bursaries, exhibitions, medals and prizes;

(i) to frame regulations for submission to the Board;

(j) to appoint or nominate members to the various authorities in accordance with the provisions of this Ordinance; and

(k) to perform such other functions as may be prescribed by Statutes. .

21. **Constitution, function and powers of authorities.**— Subject to the provisions of this Ordinance, the constitution, functions and the powers of the authorities for which no specific provision has been made in this Ordinance shall be such as may be prescribed by Statutes.

22. **Appointment of Committees by certain authorities.**— The Board of Trustees, the Board, the Academic Council and any other authorities may from time to time, appoint such standing, special or advisory committees as they may deem fit and may appoint such persons on these committees who are not members of the authorities appointing the committees.

23. Statutes.— (1) Subject to the provisions of this Ordinance, Statutes may be made to regulate or prescribe all or any of the following matters, namely:—

(a) creation of institutes and faculties;

(b) service, pension and fringe benefits for University employees and terms and conditions of their service;

(c) efficiency and discipline of the University employees;and

(d) all matters required to be regulated under the statutes.

(2) The Board shall propose draft of the Statutes for approval by the Board of Trustees which may approve them, or refer them back for reconsideration, and no Statute shall be valid until the Board of Trustees has approved it.

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(3) Notwithstanding anything contained in sub-section (2), the Statutes set out in the Schedule to this Ordinance shall be deemed to be the Statutes framed under this section and shall remain in force until they are rescinded or replaced by new Statutes framed in accordance with this Ordinance.

24. Indemnity and bar of jurisdiction.— (1) No suit, prosecution or other proceeding shall lie against any person or authority for anything which is in good faith done or intended to be done under this Ordinance.

(2) No decision taken, or act or thing done, by the Chancellor or the Board shall be called in question before any court or other authority.

25. Removal of difficulties.— (1) If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Chancellor may make such order, not inconsistent with the provisions of this Ordinance, as may appear to him to be necessary for removing the difficulty.

(2) Where this Ordinance makes any provision for anything to be done, but no provision or no sufficient provision has been made as respects the authority of whom, or the time at which, or the manner in which, it should be done, then it shall be done by such authority, at such time, or in such manner as the Chancellor may direct.

THE SCHEDULE

[See section 23 (3)]

1. Faculties.— There shall be a faculty for a teaching department or a group of teaching departments. The University shall include the following faculties and such other faculties as may be prescribed by the Board of Trustees:

(a) Faculty of Computer Science and Software Engineering;

(b) Faculty of Engineering Sciences;

(c) Faculty of Economics, Business Management and Environmental Sciences; and

(d) Faculty of New and Emerging Sciences.

2. Board of Faculty.— (1) There shall be a Board of each Faculty which shall consist of—

(a) the Dean of the Faculty;

(b) the Professors and the Head of the teaching departments in the Faculty;

(c) one member other than Professors and Head of each teaching department to be nominated by the Head of Department;

(d) two teachers to be nominated by the Academic Council by reason of their specialized knowledge of the subjects which, though not assigned to the Faculty, have in the opinion of the Academic Council, important bearing on the subjects assigned to the Faculty;

(e) two experts in the field from outside the University to be appointed by the Board; and

(f) one member to be nominated by the Rector.

(2) The members, other than *ex-officio* members, shall hold office for three years.

(3) The quorum for a meeting of the Board of a Faculty shall be one-half of the total number of members, a fraction being counted as one.

3. **Functions of the Board of Faculty.—** The Board of each Faculty shall, subject to the general control of the Academic Council and the Board, have the powers to —

(a) co-ordinate the teaching, and research work in the subjects assigned to the Faculty;

(b) scrutinise the recommendations of the Board of Studies comprising the Faculty with regard to the appointment or paper-setters and examiners for graduate and post graduate examinations and to forward the panels of suitable paper-setters and examiners for each examination to the Rector;

(c) consider any other academic matter relating to the Faculty and report thereon to the Academic Council;

(d) prepare a comprehensive annual report regarding the performance of each department, comprising the Faculty for presentation to the Academic Council; and

(e) perform such other functions as may be prescribed by Statutes.

4. Dean.— (1) There shall be a Dean of each Faculty who shall be the Chairperson and convener of the Board of Faculty.

(2) The Dean shall be appointed by the Board from amongst the three most senior Professors of the Faculty on the recommendation of the Rector and shall hold office for a period up to three years and shall be eligible for re-appointment.

(3) The Dean shall present candidates for admission to degree (except honorary degrees) in the courses falling within the purview of the Faculty.

(4) The Dean shall have such powers and duties as may be prescribed by the Board on the recommendations of the Rector.

5. Academic Departments and Head of Department.— (1) There shall be an academic department for each subject or a group of subjects as may be prescribed by Regulations and a head of department shall head each academic department.

(2) The Head of an academic department shall be appointed by the Board on the recommendations of the Rector from amongst three senior most Professors other than any Professor already working as Dean for a period of three years and shall be eligible for re-appointment:

Provided that in a department where there are less than three Professors, the appointment shall be made from amongst the three senior most Professors and Associate Professors of the department:

Provided further that in a department in which there is no Professor or Associate Professor, no such appointment shall be made and the department shall be looked after by the Dean of the Faculty with the assistance of the senior most teacher of the department.

(3) The Head of department shall plan, organise and supervise the work of the department and shall be responsible to the Dean for the work of his department.

(4) The Head of department shall, under the general supervision of the Rector and the Dean, exercise all administrative, financial and academic powers and such other duties or powers as may be delegated to him.

(5) The Head of department shall prepare a comprehensive annual report regarding the performance of department at the graduate and postgraduate levels. Faculty research and development and submit this report to the Dean of the Faculty for his evaluation.

6. Board of Advanced Studies and Research.— (1) The Board of Advanced Studies and Research shall consist of—

(a) Board Advanced Studies and Research the Rector who shall be its Chairperson;

(b) all the Deans;

(c) one University professor from each faculty other than Professors having experience in research in relevant field to be appointed by the Academic Council;

(d) one University professor from each faculty other than Dean to be appointed by the Board;

(e) one member to be nominated by the Rector;

(f) three members from the relevant field Research Organisations and government departments to be nominated by the Board; and

(g) the Registrar as Secretary.

(2) The term of office of the members of the Board of Advanced Studies and Research, other than *ex-officio* members, shall be three years.

(3) The quorum for a meeting of the Board of Advanced Studies and Research, shall be one-half of the total number of members, a fraction being counted as one.

7. Functions of Board of Advanced Studies and Research.— The functions of the Board of Advanced Studies and Research shall be to—

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(a) advise the Authorities on all matters connected with the promotion of advanced studies and research publication in the University;

(b) consider and report to the Authorities on the institution of research degrees in the University;

(c) propose regulations regarding the award of research degrees;

(d) appoint supervisors for postgraduate research students and to approve titles and synopses of their theses or dissertations;

(e) recommend panels of names of examiners for evaluation of their other research examinations; and

(f) perform such other functions as may be prescribed by Statutes.

8. Selection Board.— (1) The Selection Board shall consist of—

(a) the Rector who shall be its Chairperson;

(b) the Dean of the Faculty concerned;

(c) the Head of the teaching department concerned;

(d) one member of the Board to be nominated by the Board;

(e) one eminent scientist or scholar to be nominated by the Board of Trustees; and

(f) one expert in the subject to be nominated by the University Grants Commission.

(2) The Registrar shall be the Secretary of the Selection Board.

(3) The members, other than *ex-officio* members, shall hold office for three years.

(4) The quorum for a meeting of the Selection Board shall be four.

(5) No member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Selection Board.

(6) The selection of candidate for the posts of Professors and Associate Professors, the Selection Board shall co-opt or consult three experts in the subject concerned and in selecting candidates for other teaching posts two experts in the subject concerned, to be nominated by the Rector, from a standing list of experts for each subject approved by the Board on the recommendations of the Selection Board and revised from time to time.

9. Functions of the Selection Board. The functions of the Selection Board shall be—

(a) to consider the applications and recommend to the Board the names of suitable candidates for appointment to teaching and other posts, as the case may be, and recommend suitable salary for the person concerned;

(b) to consider all cases of promotion or selection of officers of the University and recommend the names of suitable candidates for such promotion or selection to the Board;

(c) in the event of an unresolved difference of opinion between the Selection Board and the Board the matter shall be referred to the Board of Trustees whose decision shall be final.

10. Finance and Planning Committee.— (1) The Finance and Planning Committee shall consist of—

(a) the Rector who shall be its Chairperson;

(b) all the Deans;

(c) one member of the Board to be nominated by the Board;

(d) one member of the Academic Council to be nominated by the Academic Council;

(e) one nominee of the University Grants Commission;

(f) the Registrar; and

(g) one nominee of the Board of Trustees.

(2) The term of office of the nominated members shall be three years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be four.

11. Functions of the Finance and Planning Committee.— The functions of the Finance and Planning Committee Fund shall be to—

(a) prepare the annuals statement of accounts and propose annual budget estimates and advise the Board thereon;

(b) review periodically the financial position of the University:

(c) advise the Board and Board of Trustees on all matters relating to finance, investments and accounts of the University; and

(d) perform such other functions as may be prescribed by Statutes.

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THE NETWORK ANALYSER STUDY CENTRE (TRANSFER TO WAPDA) ORDINANCE, 1983

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4. Transfer of existing civil servants of the Centre to the Authority

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THE NETWORK ANALYSER STUDY CENTRE (TRANSFER TO WAPDA) ORDINANCE, 1983

ORDINANCE No. I OF 1983

[8th January, 1983]

An Ordinance to provide for transfer of the Network Analyser Study Centre, Lahore, to the Pakistan Water and Power Development Authority.

WHEREAS it is expedient to provide for the transfer of the Network Analyser Study Centre, Lahore to the Pakistan Water and Power Development Authority, and for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance: ─

1. Short title and commencement: —(1) This Ordinance may be called the Network Analyzer Study Center (Transfer to WAPDA) Ordinance, 1983.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context, –

(a) "appointed day" means the eighteenth day of July, 1981 ;

(b) "Authority" means the Pakistan Water and Power Development Authority; and

(c) "Centre" means the Network Analyser Study Center, office of the Chief Engineering Adviser, Lahore.

3. Transfer of the Centre to the Authority. The Centre shall stand transferred to the Author ity on and from the appointed day on the following terms and conditions, namely: ─

(a) the Authority shall pay to the Federal Government cost of network analyzer, air-conditioning and other items of equipment determined on the basis of their original book value minus depreciation at the rate of 3.3 per cent per annum from the date of commissioning;

(b) the ownership of land and buildings shall continue to be retained by the Federal Government and no rent shall be charged from the Authority on this account, but the government may construct office building for the Office of

Pakistan Commissioner for Indus Waters at the vacant premises of the center as and when considered necessary; and

(c) the Authority, if required, shall promptly carry out studies at the Center for the Federal Government free of cost.

4. Transfer of existing civil servants of the Centre to the Authority.— (1) Notwithstanding anything contained in any law or in the conditions of service, every civil servant employed in or under the Centre immediately before the appointed day, including persons on deputation to other organizations or abroad, shall, save as hereinafter provided, ceases to be a civil servant and stand transferred to and become an employee of, the Authority on the same terms and conditions, including remuneration, tenure of service, rights and privileges as to pension and gratuity and other matters, as were applicable to him immediately before the appointed day, until his employment in the Authority is terminated in accordance with his conditions of service or his terms and conditions are altered by regulations, which shall not be less favorable than those by which he was governed immediately before his transfer to the Authority.

(2) Any person referred to in subsection (1) who is on deputation with the Centre shall continue in the employment of the Authority on deputation in accordance with the terms of his deputation:

Provided that, if, within three months from the commencement of this Ordinance, he opts to be transferred to the service of the Authority on the terms and conditions referred to in subsection (1), he shall stand so transferred and cease to be a civil servant.

(3) Any person referred to in subsection (1) may, within three months from the commencement of this ordinance, opt to be transferred to the service of the authority and the option so exercised shall be final.

(4) The services of an employee who opts under subsection (3) not to be transferred to the Authority shall stand terminated on the date on which his option is accepted by the Federal Government and he shall be entitled to be paid by the Federal Government compensation equivalent to three months' remuneration

Explanation.—The compensation payable to an employee under this sub-section shall be in addition to and not in derogation of his rights as to pension, gratuity, provident fund money or other benefits to which he may be entitled under his conditions of service.

(5) The termination of service of an employee under sub-section (4) shall be deemed to be discharge from service owing to abolition of a permanent post for the purpose of admissibility of compensation pension.

(6) No person referred to in sub-section (1) who stand transferred to the Authority shall, notwithstanding anything contained in any law for the time being in force, be entitled to any compensation because of his transfer.

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THE NFC INSTITUTE OF ENGINEERING AND TECHNOLOGY MULTAN ACT, 2012

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THE NFC INSTITUTE OF ENGINEERING AND TECHNOLOGY MULTAN ACT, 2012

ACT NO. XIII OF 2012

[30th May, 2012]

An Act to establish NFC Institute of Engineering and Technology Multan

WHEREAS it is expedient to provide for the establishment of NFC Institute of Engineering and Technology Multan with degree awarding status to enhance the quality of higher education in the country and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

CHAPTER-I

PRELIMINARY

1. Short title and Commencement.—(1) This Act may be called the NFC Institute of Engineering and Technology Multan Act, 2012.

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means the Academic Council of the Institute;

(b) "affiliated college" means an educational institution affiliated to the Institute but not maintained or administered by it;

(c) "Authority" means any of the Authorities of the Institute specified in terms of Section 16;

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(d) "Chancellor" means the Chancellor of the Institute;

(e) "college" means a constituent college or an affiliated college;

(f) "Commission" means the Higher Education Commission set up under the Higher Education Commission Act, 2002 (LIII of 2002);

(g) "constituent college" means an educational institution, by whatever name described, maintained and administered by the Institute;

(h) "Dean" means the head of a Faculty or the head of an academic body granted the status of a Faculty under this Act or by the statutes or regulations:

(i) "Department" means a teaching, department maintained and administered, or recognized by the institute in the manner prescribed;

(j) "Director" means the head of an institute established as a constituent institution by the Institute by statutes or regulations in terms of the powers delegated by this Act;

(k) "Faculty" means an administrative and academic unit of the Institute consisting of one or more departments, as prescribed;

(l) "Government" means the Federal Government;

(m) "Institute" means the NFC Institute of Engineering and Technology;

(n) "Institute teacher" means a whole-time teacher appointed and paid by the Institute, or recognized by the Institute as such;

(o) "NFC Institute" means the NFC Institute of Science and Technology, Multan;

(p) "prescribed" means prescribed by statutes, regulations or rules made under this Act;

(q) "Principal" means the head of a college;

(r) "Pro-chancellor" means the Pro-Chancellor of the Institute;

(s) "Representation Committees" means the Representation Committees constituted under section 24;

(t) "Review Panel" means the Review Panel set up by the Chancellor in accordance with the provisions of section 8;

(u) "Search Committee" means the Search Committee set up by the Senate under section 12;

(v) "Senate" means the Senate of the Institute;

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(w) "statutes", "regulations" and "rules" means respectively the statutes, the regulations and the rules made under this Act and for the time being in force;

(x) "Syndicate" means the Syndicate of the Institute;

(y) "teachers" include Professors, Associate Professors, Assistant Professors and lecturers engaged whole-time by the Institute or by a constituent or affiliated college and such other persons as may be declared to be teachers by regulations; and

(z) "Vice-Chancellor" means the Vice-Chancellor of the Institute.

CHAPTER-II

THE INSTITUTE

3. Establishment of the Institute.—(1) The Institute of Engineering and Technology shall, from the date of publication of notifications in the official Gazette in this behalf, stand established in accordance with the provisions of this Act.

(2) The present regular or full-time employees discharging duties at NFC Institute shall be employed under the Institute under existing terms and conditions not less favorable than those prevailing at present. The students presently studying at NFC institute and registered with Bahauddin Zakariya University, Multan, shall stand shifted to the institute on its establishment.

(3) Notwithstanding anything contained in any other law for the time being in force and subject to the provision of section 40, the NFC Institute shall on the establishment of the Institute, stand merged in the Institute.

(4) The Institute shall consist of the following, namely.—

(a) the Chancellor, the Pro-Chancellor, the members of the Senate and the Vice-Chancellor;

(b) the members of the Authorities of the Institute established under section 16;

(c) all Institute teachers and persons recognized as students of the Institute in accordance with terms prescribed from to time; and

(d) all other full-time officers and members of the staff of the Institute.

(5) The Institute shall be a body corporate and shall have perpetual succession and a common seal, and may sue and be sued by the said name.

(6) The institute shall be competent to acquire and hold property, both movable and immovable, and to lease sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

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(7) Notwithstanding anything contained in any other law for the time being in force, the Institute shall have academic, financial and administrative autonomy, including the power to employ officers, teachers and other employees on such terms as may be prescribed, subject to the terms of this Act and the Higher Education Commission Act, 2002 (LIII of 2002). In particular, and without prejudice to the authority granted to the Commission by the law the Government or an authority or auditor appointed by the Government shall have no power to question the policy underlying the allocation of resources approved by the Senate in the annual budget of the Institute.

(8) All assets, properties, rights and interests of whatever kind, used, enjoyed, possessed, owned or vested in, or held in trust by and liabilities legally subsisting against the NFC Institute shall pass to the Institute established under this Act.

4. Powers and purpose of the Institute. The institute shall have the following powers, namely:—

(i) to provide for education and scholarship in such branches of knowledge, as it may deem fit, and to make provision for research, service to society and for the application, advancement and dissemination of knowledge in such manner as it may determine;

(ii) to prescribe courses of studies to be conducted by it and the colleges;

(iii) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under prescribed conditions;

(iv) to prescribe the terms and conditions of employment of the officers, teachers and other employees of the Institute and to lay down terms and conditions that may be different from those applicable to Government servants in general;

(v) to engage, where necessary, persons on contracts of specified duration and to specify the terms of each engagement;

(vi) to confer honorary degrees or other distinctions on approved persons in the manner prescribed;

(vii) to provide for such instruction for persons not being students of the Institute as it may prescribe, and to grant certificates and diplomas to such persons;

(viii) to institute programmes for the exchange of students and teachers between the Institute and other universities, educational institutions and research organizations, inside as well as outside Pakistan;

(ix) to provide career counseling and job search services to students and alumni;

(x) to maintain linkages with alumni;

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(xi) to develop and implement fund-raising plans;

(xii) to provide and support the academic development of the faculty of the Institute;

(xiii) to confer degrees on persons who have carried on independent research under prescribed conditions;

(xiv) to affiliate and disaffiliate educational institutions under prescribed conditions;

(xv) to inspect colleges and other educational institutions affiliated or seeking affiliation with it;

(xvi) to accept the examinations passed and the period of study spent by students of the Institute at other universities and places of learning equivalent to such examinations and periods of study in the Institute, as it may prescribe, and to withdraw such acceptance;

(xvii) to co-operate with other universities, public authorities or private organizations, inside as well as outside Pakistan, in such manner and for such purposes as it may prescribe; to institute Professorships, Associate Professorships, Assistant Professorships and

(xviii) Lectureships and any other posts and to appoint persons thereto;

(xix) to create posts for research, extension, administration and other related purposes and to appoint persons thereto;

(xx) to recognize selected members of the teaching staff of affiliated colleges or educational institutions admitted to the privileges of the

(xxi) to institute and award financial assistance to students in need, fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(xxii) to establish teaching departments, schools, colleges, faculties, institutes, museums and other centres of learning for the development of teaching and research and to make such arrangements for their maintenance; management and administration as it may prescribe;

(xxiii) to provide for the residence of the students of the institute and the colleges, to institute and maintain halls of residence and to approve or license hostels and lodging;

(xxiv) to maintain order, discipline and security on the campuses of the Institute and the colleges;

(xxv) to promote the extra curricular and recreational activities of such students, and to make arrangements for promoting their health and general welfare;

(xxvi) to demand and receive such fees and other charges as it may determine;

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(xxvii) to make provision for research, advisory or consultancy services and with these objects to enter into arrangements with other institutions, public or private bodies, commercial and industrial enterprises under prescribed conditions;

(xxviii) to enter into, carry out, vary or cancel contracts;

(xxix) to receive and manage property transferred and grants, contributions made to the Institute and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions in such manner as it may deem fit;

(xxx) to provide for the printing and publication of research and other works; and

(xxxi) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite or expedient in orderto further the objectives of the institute as a place of education, learning, and research.

5. Institute open to all classes, creeds, etc.—(1) The institute shall be open to all persons of either gender and of whatever religion, race, caste, creed, class, colour or domicile and no person shall be denied the privileges of the institute on the grounds of religion, race, caste, creed, class, colour or domicile.

(2) An increase in any fee or charge that is in excess of ten per cent per annum on an annualized basis from the last such increase may not be made except in special circumstances, and only with the approval of the Syndicate.

(3) The Institute shall institute financial aid programmes for students in need, to the extent considered feasible by the Syndicate given the resources available, so as to enable admission and access to the Institute and the various opportunities provided by it to be based on merit rather than ability to pay.

6.Teaching at the Institute.—(1) All recognized teaching in various courses shall be conducted by the Institute or the colleges in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations, distance learning and other methods of instruction as well as practical work in the laboratories, hospitals, workshops and other governmental or private organizations.

(2) The authority responsible for organizing recognized teaching shall be such as may be prescribed.

CHAPTER-III

OFFICERS OF THE INSTITUTE

7**. Principal Officers**.—The following shall be the principal officers of the Institute, namely.—

(a) The Chancellor;

(b) The Pro-Chancellor;

(c) The Vice-Chancellor;

(d) The Deans;

(e) The Principals of the constituent colleges;

(f) The Chairpersons of the teaching departments;

(g) The Registrar;

(h) The Treasurer;

(i) The Controller of Examinations; and

(j) Such other persons as may be prescribed by the statutes or regulations to be the principal officers of the Institute.

8. Chancellor.—(1) The President of Pakistan shall be the Chancellor of the institute and the Chairperson of the Senate.

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(2) The Chancellor shall, when present, preside at the meetings of the Senate and the Convocation of the Institute. In the absence of the Chancellor, the Senate may request Pro- Chancellor to preside over the Convocation of the Institute and meetings of the Senate.

(3) The members of the Senate as well as the Vice-Chancellor shall be appointed by the Chancellor from amongst the persons recommended by the Representation Committee set up for this purpose or the Search Committee established in accordance with this Act and the statutes, as the case may be.

(4) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(5) If the Chancellor is satisfied that serious irregularity or mismanagement with respect to the affairs of the Institute has occurred he may,—

(a) as regards proceedings of the Senate, direct that specified proceedings be reconsidered and appropriate action taken within one month of the direction having been issued:

Provided that if the Chancellor is satisfied that either no reconsideration has been carried out or that the reconsideration has failed to address the concern expressed he may, after calling upon the Senate to show cause in writing, appoint a five member Review Panel to examine and report to the Chancellor on the functioning of the Senate. The report of the Review Panel shall be submitted within such time as may be prescribed by the Chancellor. The Review Panel shall be drawn from persons of eminence in academics and in the fields of law, accountancy and administration; and

(b) as regards proceedings of any Authority or with respect to matters within the competence of any Authority other than the Senate, direct the Senate to exercise powers under section 19.

9. Removal from the Senate.—(1) The Chancellor may, upon the recommendation of the Review Panel, remove any person from the membership of the Senate on the ground that such person.—

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(a) has become of unsound mind;

(b) has become incapacitated to function as member of the Senate;

(c) has been convicted by a Court of law for an offence involving moral turpitude;

(d) has absented himself from two consecutive meetings without just cause; or

(e) has been guilty of misconduct, including use of position for personal advantage of any kind, or gross inefficiency in the performance of functions.

(2) The Chancellor shall remove any person from the memberships the Senate on a resolution calling for the removal of such person supported by at least three-fourths of the membership of the Senate:

Provided that before passing such resolution the Senate shall provide the member concerned a fair hearing:

Provided further that the provisions of this section shall not be applicable to the Vice-chancellor in his capacity as a member of the Senate.

10. The Pro-Chancellor.—(1) The Chairman National Fertilizer Corporation of Pakistan shall be the *ex-officio* Pro-Chancellor of the institute.

(2) The Pro-Chancellor shall perform functions of the Chancellor in the absence of Chancellor and such other functions as may be entrusted to him by the Chancellor. He shall also be responsible for overall administrative control of the Institute.

11. Vice-Chancellor.—(1) There shall be a Vice-Chancellor of the Institute who shall be an eminent academic and shall be appointed on such terms and conditions as may be prescribed.

(2) The Vice-Chancellor shall be the Chief Executive Officer of the Institute responsible for all academic functions of the Institute and for ensuring that the provisions of this Act, statutes, regulations and rules are faithfully observed in order to promote the general efficiency and good order of the Institute. The Vice-Chancellor shall have all powers prescribed for this purpose, including administrative control over the officers, teachers and other employees of the Institute.

(3) The Vice-Chancellor shall, if present, be entitled to attend any meeting of any Authority or body of the Institute.

(4) The vice-Chancellor may, in an emergency that in his opinion requires immediate action ordinarily not in the competence of the Vice-Chancellor, take such action and forward a report of the action taken to the Pro-Chancellor who may direct such further action as is considered appropriate.

(5) The Vice-Chancellor shall, also have the following powers, namely—

(a) to direct teachers, officers and other employees of the Institute to take up such assignments in connection with examination, administration, and such other activities in the Institute as he may consider necessary for the purposes of the Institute;

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(b) to sanction by re-appropriation an amount not exceeding an amount prescribed by the Senate for an unforeseen item not provided for in the budget and report it to the Pro- Chancellor immediately and to Senate at the next meeting;

(c) to recommend appointments of such categories of employees of the Institute and in such manner as may be prescribed by the statutes;

(d) to recommend suspension, punishment and removal, in accordance with prescribed procedure, from service officers;

(e) to delegate with the approval of Pro-Chancellor any of his powers under this Act to an officer or officers of the Institute; and

(f) to exercise and perform such other powers and functions as may prescribed be prescribed.

(6) The Vice-Chancellor shall preside at the Convocation of the institute in the absence of the Chancellor and Pro-Chancellor.

(7) The Vice-Chancellor shall present an annual report before the Senate within three months of the close of the academic year. The annual report shall present such information as regards the academic year under review as may be prescribed, including disclosure of all relevant facts pertaining to,—

(a) academics;

(b) research;

(c) administration; and

(d) finances.

(8) The Vice-Chancellor's annual report shall be made available, prior to its presentation before the Senate, to all officers and Institute teachers and shall be published in such numbers as are required to ensure its wide circulation.

12. Appointment and removal of the Vice-Chancellor.—(1) The Vice-Chancellor shall be appointed by the Chancellor on the basis of recommendations made by the Senate.

(2) A Search Committee for the recommendation of persons suitable for appointment as Vice-Chancellor shall be constituted by the Senate on the date and in the manner prescribed by the statutes and shall consist of two eminent members of society nominated by the Chancellor of whom one shall be appointed the Convener, two members of the Senate, two distinguished Institute teachers who are not members of the Senate and one academic of eminence not employed by the Institute. The two distinguished Institute teachers shall be selected by the Senate through a process, to be prescribed by statute that provides for the recommendation of suitable names by the Institute teachers in general. The Search Committee shall remain in existence till such time that the appointment of the next Vice-Chancellor has been made by the Chancellor.

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(3) The persons proposed by the Search Committee for appointment as Vice-Chancellor shall be considered by the Senate and of these a panel of three, in order of priority shall be recommended by the Senate to the Chancellor:

Provided that the Chancellor may decline to appoint any of the three persons recommended and seek recommendation of a fresh panel. In the event of a fresh recommendation being sought by the Chancellor the Search Committee shall make a proposal to the Senate in the prescribed manner.

(4) The Vice-Chancellor shall be appointed for a renewable tenure of four years on terms and conditions prescribed by statute. The tenure of an incumbent Vice Chancellor shall be renewed by the Chancellor on receipt of a resolution of the Senate in support of such renewal:

Provided that the Chancellor may call upon the Senate to reconsider such resolution once.

(5) The Senate may, pursuant to a resolution in this behalf passed by three fourths of its membership, recommend to the Chancellor through the Pro-Chancellor the removal of the Vice-

Chancellor on the ground of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantage of any kind:

Provided that the Chancellor may, on his own or on the request of the Pro-Chancellor, make a reference to the Senate stating the instances of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct on the part of the Vice-Chancellor that have come to his notice. After consideration of the reference the Senate may, pursuant to a resolution in this behalf passed by two-thirds of its membership, recommend to the Chancellor the removal of the Vice-Chancellor:

Provided further that prior to a resolution for the removal of the Vice-Chancellor being voted upon the Vice-Chancellor shall be given an opportunity of being heard.

(6) A resolution recommending the removal of the Vice-Chancellor shall be submitted to the Chancellor forthwith. The Chancellor may accept the recommendation and order removal of the Vice-Chancellor or return the recommendation to the Senate.

(7) At any time when the office of the Vice-Chancellor is vacant, or the Vice-Chancellor is absent or is unable to perform the functions of his office due to illness or some other cause, the Pro-Chancellor shall make such arrangements for the performance of the duties of the Vice-Chancellor as he may deem fit.

13. Registrar.—(1) There shall be a Registrar of the institute to be appointed by the Senate on the recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience as well as the professional and academic qualifications necessary for appointment to the post of the Registrar shall be as may be prescribed.

(3) The Registrar shall be a full-time officer of the institute and shall,—

(a) be the administrative head of the secretariat of the Institute and be responsible for the provision of secretariat support to the Authorities of the Institute;

(b) be the custodian of the common seal and the academic records of the Institute;

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(c) maintain a register of registered graduates in the prescribed manner;

(d) supervise the process of election, appointment or nomination of members to the various Authorities and other bodies in the prescribed manner; and

(e) perform such other duties as may be prescribed.

(4) The terms of office of the Registrar shall be a renewable period of three years:

Provided that the Senate may, on the advice of the Vice-Chancellor, terminate the appointment of the Registrar on grounds of inefficiency or misconduct in accordance with prescribed procedure.

14. Treasurer.—(1) There shall be a Treasurer of the Institute to be appointed by the Senate on the recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience and the professional and academic qualifications necessary for appointment to the post of the Treasurer shall be as may be prescribed.

(3) The Treasurer shall be the Chief Financial Officer of the Institute and shall,—

(a) manage the assets, liabilities, receipts, expenditures, funds and investments of the institute;

(b) prepare the annual and revised budget estimates of the Institute and present them to the Syndicate or a committee thereof for approval and incorporation in the budget to be presented to the Senate;

(c) ensure that the funds of the Institute are expended on the purposes for which they are provided;

(d) have the accounts of the Institute audited annually so as to be available for submission to the Senate within six months of the close of the financial year; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Treasurer shall be a renewable period of three years:

Provided that the Senate may, on the advice of the Vice-Chancellor, terminate the appointment of the Treasurer on grounds of inefficiency or misconduct in accordance with prescribed procedure.

15. Controller of Examinations.—(1) There shall be a Controller of Examinations, to be appointed by the Senate on the recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The minimum qualifications necessary for appointment to the post of the Controller of Examinations shall be as may be prescribed.

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(3) The Controller of Examinations shall be a full-time officer of the Institute and shall be responsible for all matters connected with the conduct of examinations and perform such other duties as may be prescribed.

(4) The Controller of Examinations shall be appointed for a renewable term of three years:

Provided that the Senate may, on the advice of the Vice-Chancellor terminate the appointment of the Controller of Examinations on grounds of inefficiency or misconduct in accordance with prescribed procedure.

CHAPTER-IV

AUTHORITIES OF THE INSTITUTE

16. Authorities.—(1) The following shall be the Authorities of the Institute, namely:—

(a) Authorities established by this Act,—

(i) the Senate;

(ii) the Syndicate; and

(iii) the Academic Council; and

(b) Authorities to be established by the statutes,—

(i) Graduate and Research Management Council;

(ii) Recruitment, Development, Evaluation and Promotion committees for teachers and other staff whether at the level of the department, the Faculty or the Institute;

(iii) Career Placement and Internship Committee of each Faculty;

(iv) Search Committee for the appointment of the Vice-Chancellor;

(v) the Representation Committees for appointment to the Senate, Syndicate and the Academic Council;

(vi) Faculty Council; and

(vii) Departmental Council.

(2) The Senate, the Syndicate and the Academic Council may set up such other committees or sub-committees, by whatever name described, as are considered desirable through statutes, or regulations as appropriate. Such committees or sub-committees shall be Authorities of the Institute for the purposes of this Act.

17. Senate.—(1) The body responsible for the governance of the Institute shall be described as the Senate, and shall consist of the following, namely:—

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(a) the Chancellor who shall be the Chairperson of the Senate;

(b) the Pro-Chancellor;

(c) the Vice-Chancellor;

(d) one member of the Government not below the rank of Additional Secretary from the Ministry of Industries and Production;

(e) two representatives of the National Fertilizer Corporation of Pakistan;

(f) four persons from society at large being persons of distinction in the field of administration, management, education, academics, law, accountancy, medicine, fine arts, architecture, agriculture, science, technology and engineering such that the appointment of these persons reflects a balance across the various fields:

Provided that the special focus or affiliation of the institute, to be declared in the manner prescribed, may be reflected in the number of persons of distinction in an area of expertise relevant to the Institute who are appointed to the Senate:

(g) one person from amongst the alumni or the Institute;

(h) two persons from the academic community of the country, other than an employee of the Institute, at the level of professor or principal of a college;

(i) four institute teachers; and

(j) one person nominated by the Commission.

(2) The numbers of the members of the Senate described against clauses (g) to (j) of sub-section (1) may be increased by the Senate through statutes subject to condition that the total membership of the Senate does not exceed twenty one, with a maximum of five Institute teachers, and the increase is balanced, to the extent possible, across the different categories specified in sub-section (1).

(3) All appointments to the Senate shall be made by the Chancellor. Appointments of persons described in clauses (g) and (h) of sub-section (1) shall be made from amongst a panel of three names for each vacancy recommended by the Representation Committee set up in terms of Section 24 and in accordance with procedure as may be prescribed:

Provided that effort shall be made, without compromising on quality or qualification, to give fair representation to women on the Senate:

Provided further that as regards the Institute teachers described in clause (I) of sub-section (1) the Senate shall prescribe a procedure for appointment on the basis of elections that provide for voting by the various categories or Institute teachers:

Provided also that the Senate may alternatively prescribe that appointment of Institute teachers to the Senate shall also be in the manner provided by this subsection for the persons described in clauses (g) and (h) of sub-section (1).

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(4) Members of the Senate, other than *ex-officio* members, shall hold office for three years. One- third of the members, other than *ex-officio* members, of the first Senate, to be determined by lot, shall retire from office on the expiration of one year from the date of appointment by the Chancellor. One- half of the remaining members, other than *ex-officio* members, of the first Senate, to be determined by lot, shall retire from office on the expiration of two years from the date of appointment and the remaining one-half, other than *ex-officio* members, shall retire from office on the expiration of the third year:

Provided that no person, other than an *ex-officio* member, may serve on the Senate for more than two consecutive terms:

Provided further that the Institute teachers appointed to the Senate may not serve for two consecutive terms.

(5) The Senate shall meet at least twice in a calendar year.

(6) Service on the Senate shall be on honorary basis:

Provided that actual expenses may be reimbursed as prescribed.

(7) The Registrar shall be the Secretary of the Senate.

(8) Unless otherwise prescribed by this Act, all decisions of the Senate shall be taken on the basis of the opinion of a majority of the members present. In the event of the members being evenly divided on any matter the person presiding over the meeting shall have a casting vote.

(9) The quorum for a meeting of the Senate shall be two-thirds of its membership, a fraction being counted as one.

18. Powers and functions of the Senate.—(1) The Senate shall have the power of general supervision over the Institute and shall hold the Vice-Chancellor and the Authorities accountable for all the functions of the Institute. The Senate shall have all powers of the Institute not expressly vested in an Authority or officer by this Act and all other powers not expressly mentioned by this Act that are necessary for the performance of its functions.

(2) Without prejudice to the generality of the foregoing powers, the Senate shall have the following powers:—

(a) to approve the proposed annual plan of work, the annual and revised budgets, the annual report and the annual statement of account;

(b) to hold, control and lay down policy for the administration of the property, funds and investments of the Institute, including the approval of the sale and purchase or acquisition of immovable property;

(c) to oversee the quality and relevance of the institute's academic programmes and to review the academic affairs of the Institute in general;

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(d) to approve the appointment of the Deans, Professors, Associate Professors and such other senior faculty and senior administrators as may be prescribed;

(e) to institute schemes, directions and guidelines for the terms and conditions of appointment of all officers, teachers and other employees of the Institute;

(f) to approve strategic plans;

(g) to approve financial resource development plans of the Institute;

(h) to consider the drafts of statutes and regulations proposed by the Syndicate and the Academic Council and deal with them in the manner as provided for in sections 26 and 27, as the case may be:

Provided that the Senate may make a statute or regulation on its own initiative and approve it after calling for the advice of the Syndicate or the Academic Council, as the case may be;

(i) to annul by order in writing the proceedings of any Authority or officer if the Senate is satisfied that such proceedings are not in accordance with the provisions of this Act, statutes or regulations;

(j) after calling upon such Authority or officer to show-cause why such proceedings should not be annulled;

(k) to recommend to the Chancellor removal of any member of the Senate in accordance with the provisions of this Act;

(l) to make appointment of members of the Syndicate, other than *ex-officio* members, in accordance with the provisions of this Act;

(m) to make appointment of members of the Academic Council, other than *ex-officio* members, in accordance with the provisions of this Act;

(n) to appoint Emeritus Professors on such terms and conditions as may be prescribed;

(o) to remove any person from the membership of any Authority if such person, —

(i) has become of unsound mind;

(ii) has become incapacitated to function as member of such Authority; or

(ii) has been convicted by a Court of law for an offence involving moral turpitude; and

(p) to determine the form, provide for the custody and regulate the use of the common seal of the Institute.

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(3) The Senate may, subject to the provisions of this Act delegate all or any of the powers and functions of any Authority, officer or employee of the Institute at its main campus, to any Authority, committee, officer or employee at its additional campus for the purpose of exercising such powers and performing such functions in relation to such additional campus, and for this purpose the Senate may create new posts or positions at the additional campus.

19. Visitations. The Senate may, in accordance with the terms and procedures as may be prescribed, cause an inspection to be made in respect of any matter connected with the Institute.

20. Syndicate.—(1) There shall be a Syndicate of the institute consisting of the following:—

(a) the Vice-Chancellor who shall be its Chairperson;

(b) the Deans of the Faculties of the Institute;

(c) three professors from different departments, who are not members of the Senate, to be elected by the Institute teachers in accordance with procedure to be prescribed by the Senate;

(d) Principals of the constituent colleges;

(e) the Registrar;

(f) the Treasurer; and

(g) the Controller of Examinations.

(2) Members of the Syndicate, other than *ex-officio* members, shall hold office for three years.

(3) As regards the three professors described in clause (c) of sub-section (1) the Senate may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the Representation Committee set up in terms of section 24. Appointment of persons proposed by the Representation Committee may be made by the Senate on the recommendation of the Vice-Chancellor.

(4) The quorum for a meeting of the Syndicate shall be one half of the total number of members, a fraction being counted as one.

(5) The Syndicate shall meet at least once in each quarter of the year.

21. Powers and duties of the Syndicate.—(1) The Syndicate shall be the executive body of the Institute and shall, subject to the provisions of this Act and the statutes, exercise general supervision over the affairs and management of the Institute.

(2) Without prejudice to the generality of the foregoing powers, and subject to the provisions of this Act, the statutes and directions of the Senate, the Syndicate shall have the following powers:—

(a) to consider the annual report, the annual and revised budget estimates and to submit these to the Senate;

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(b) to transfer and accept transfer of movable property on behalf of the Institute;

(c) to enter into, vary, carry out and cancel contracts on behalf of the Institute;

(d) to cause proper books of account to be kept for all sums of money received and expended by the Institute and for the assets and liabilities of the Institute;

(e) to invest any money belonging to the Institute including any unapplied income in any of the securities described in section 20 of the Trusts Act, 1882 (Act II of 1882), or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;

(f) to receive and manage any property transferred, grants, bequests, trust, gifts, donations, endowments and other contributions made to the Institute;

(g) to administer any funds placed at the disposal of the institute for specified purposes;

(h) to provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the Institute;

(i) to establish and maintain halls, residence and hostels or approve or license hostels or lodgings for the residence of students;

(j) to recommend to the Senate affiliation or disaffiliation of colleges;

(k) to recommend to the Senate admission of educational institutions to the privileges of the Institute and withdraw such privileges;

(l) to arrange for the inspection of colleges and the departments;

(m) to institute Professorships, Associate Professorships, Assistant Professorships, Lectureships, and other teaching posts or to suspend or to abolish such posts;

(n) to create, suspend or abolish such administrative or other posts as may be necessary;

(o) to prescribe the duties of officers, teachers and other employees of the Institute;

(p) to report to the Senate on matters with respect to which it has been asked to report;

(q) to appoint members to various Authorities in accordance with the provisions of this Act;

(r) to propose drafts of statutes for submission to the Senate;

(s) to regulate the conduct and discipline of the students of the Institute;

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(t) to take actions necessary for the good administration of the Institute in general and to this end exercise such powers as are necessary;

(u) to delegate any of its powers to any Authority or officer or a committee; and

(v) to perform such other functions as have been assigned to it by the provisions of this Act or may be assigned to it by the statutes.

22. Academic Council.—(1) There shall be an Academic Council of the Institute consisting of the following:

(a) the Vice-Chancellor who shall be its Chairperson;

(b) the Deans of Faculties and such Heads of departments as may be prescribed;

(c) five members representing the departments and the constituent colleges to be elected in the manner prescribed by the Senate;

(d) two Principals of affiliated colleges;

(e) five Professors including Emeritus Professors;

(f) the Registrar;

(g) the Controller of Examinations; and

(h) the Librarian.

(2) The Senate shall appoint the members of the Academic Council, other than the *ex-officio* and the elected members, on the recommendation of the Vice-Chancellor:

Provided that as regards the five professors and the members representing the departments and the constituent colleges the Senate may, as an alternative to elections; prescribe a procedure for proposal of a panel of names by the Representation Committee set up in terms of Section 24. Appointment of persons proposed by the Representation Committee may be made by the Senate on the recommendation of the Vice-Chancellor.

(3) Members of the Academic Council shall hold office for a period of three years.

(4) The Academic Council shall meet at least once in each quarter.

(5) The quorum for meetings of the Academic Council shall be one half of the total number of members; a fraction being counted as one.

23. Powers and functions of the Academic Council.—(1) The Academic Council shall be the principal academic body of the Institute and shall, subject to the provisions of this Act and the statutes have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the Institute and the colleges.

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(2) Without prejudice to the generality of the foregoing powers, and subject to the provisions of this Act and the statutes, the Academic Council shall have the power to,—

(a) approve the policies and procedures pertaining to the quality of academic programmes;

(b) approve academic programmes;

(c) approve the policies and procedures pertaining to student related functions including admissions, expulsions, punishments, examinations and certification;

(d) approve the policies and procedures assuring quality of teaching and research;

(e) recommend the policies and procedures for affiliation of other educational institutions;

(f) propose to the Syndicate schemes for the Constitution and organization of Faculties, teaching departments and boards of studies;

(g) appoint paper setters and examiners for all examinations of the Institute after receiving panels of names from the relevant authorities;

(h) institute programmes for the continued professional development of Institute teachers at all levels;

(i) recognize the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the Institute;

(j) regulate the award of studentships, exhibitions, medals and prizes;

(k) make regulations for submission to the Senate;

(l) prepare an annual report on the academic performance of the Institute; and

(m) perform such functions as may be prescribed by regulations.

24. Representation Committees.—(1) There shall be a Representation Committee constituted, by the Senate through statute for recommendation of persons for appointment to the Senate in accordance with the provisions of section 17.

(2) There shall also be a Representation Committee constituted by the Senate through statute for the recommendation of persons for appointment to the Syndicate and the Academic Council in accordance with the provisions of sections 20 and 22.

(3) Members of the Representation Committee for appointments to the Senate shall consist of the following:—

(a) three members of the Senate of one is from the National Fertilizer Corporation of Pakistan who are not Institute teachers;

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(b) two persons nominated by the institute teachers from amongst themselves in the manner prescribed;

(c) one person from the academic community, not employed by the Institute, at the level of professor or college Principal to be nominated by the Institute teachers in the manner prescribed; and

(d) one eminent citizen with experience in administration, philanthropy, development work, law or accountancy to be nominated by the Senate.

(4) The Representation Committee for appointments to the Syndicate and the Academic Council shall consist of the following:—

(a) two members of the Senate of one from NFC who are not Institute teachers; and

(b) three persons nominated by the Institute teachers from amongst themselves in the manner prescribed.

(5) The tenure of the Representation Committees shall be three years:
Provided that no member shall serve for more than two consecutive terms.

(6) The procedures of the Representation Committees shall be as may be prescribed.

(7) There may also be such other Representation Committees set up by any of the other Authorities as are considered appropriate for recommending persons for appointment to the various Authorities and other bodies of the Institute.

25. Appointment of committees by certain Authorities.—(1) The Senate, the Syndicate, the Academic Council and other Authorities may, from time to time, appoint such standing, special or advisory committees, as they may deem fit, and may place on such committee persons who are not members of the Authorities appointing the committees.

(2) The constitution, functions and powers of the Authorities for which no specific provision has been made in this Act shall be such as may be prescribed by statutes or regulations.

CHAPTER—V

STATUTES, REGULATIONS AND RULES

26. Statutes.—(1) Subject to the provisions of this Act, statutes, to be published in the official Gazette, may be made to regulate or prescribe all or any of the following matters:—

(a) the contents of and the manner in which the annual report, to be presented by the Vice- Chancellor before the Senate, shall be prepared.

(b) the University fees and other charges;

(c) the constitution of any pension, insurance, gratuity, provident fund and benevolent fund for Institute employees;

(d) the scales of pay and other terms and conditions of service of officers, teachers and other Institute employees;

(e) the maintenance of the register of registered graduates;

(f) affiliation and disaffiliation of educational institutions and related matters;

(g) admission of educational institutions to the privileges of the Institute and the withdrawal of such privileges;

(h) the establishment of Faculties, departments, colleges and other academic divisions;

(i) the powers and duties of officers and teachers;

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(j) conditions under which the Institute may enter into arrangements with other institutions or with public bodies for the purposes of research and advisory services;

(k) conditions for appointment of Emeritus Professors and award of honorary degrees;

(l) efficiency and discipline of Institute employees;

(m) the constitution and procedure to be followed by Representation Committees in carrying out functions in terms of this Act;

(n) the constitution and procedure to be followed by the Search Committee for appointment of the Vice-Chancellor;

(o) constitution, functions and powers of the Authorities; and

(p) all other matters which by this Act are to be or may be prescribed or regulated by statutes.

(2) The draft of statutes shall be proposed by the Syndicate to the Senate which may approve with such modifications as the Senate may think fit or may refer back to the Syndicate, as the case may be, for reconsideration of the proposed draft:

Provided that statutes concerning any of the matters mentioned in, clauses (a) and (1) of sub-section (1) shall be initiated and approved by the Senate, after seeking the views of the Syndicate:

Provided further that the Senate may initiate a statute with respect to any matter in its power or with respect to which a statute may be made in terms of this Act and approve such statute after seeking the views of the Syndicate.

27. Regulations.—(1) Subject to the provisions of this Act and the statute, the Academic Council may make regulations, to be published in the official Gazette, for all or any of the following matters:—

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(a) the courses of study for degrees, diplomas and certificates of the Institute;

(b) the manner in which the teaching referred to in sub-section (1) of section 6 shall be organized and conducted;

(c) the admission and expulsion of students to and from the Institute;

(d) the conditions under which students shall be admitted to the courses and the examinations of the institute and shall become eligible for the award of degrees, diplomas and certificates;

(e) the conduct of examinations;

(f) conditions under which a person may carry or, independent research to entitle him to a degree;

(g) the institution of fellowships, scholarships, exhibitions, medals and prizes;

(h) the use of the Library;

(i) the formation of Faculties, departments and Board of Studies; and

(j) all other matters which by this Act or the statutes are to be or may be prescribed by regulations.

(2) Regulations shall be proposed by the Academic Council and shall be submitted to the Senate which may approve them or withhold approval or refer them back to the Academic Council for reconsideration. A regulation proposed by the Academic Council shall not be effective unless it receives the approval of the Senate.

(3) Regulations regarding or incidental to matters contained in sub-clauses (g) and (i) shall not be submitted to the Senate without the prior approval of the Syndicate.

28. Rules.—(1) The Authorities and the other bodies of the Institute may make rules, to be published in the official Gazette, consistent with Act, to regulate any matter relating to the affairs of the Institute which has not been provided for by this Act or that is not required to be regulated by statutes or regulations, including rules to regulate the conduct of business and the time and place of meetings and related matters.

(2) Rules shall become effective upon approval by the Syndicate.

CHAPTER-VI

INSTITUTE FUND

The Institute shall have a fund to which shall be credited its income from fees, charges, donations, trusts, bequests, endowments, contributions, grants and all other sources.

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30. Audits and accounts.—(1) The Accounts of the Institute shall he maintained in such form and in such manner as may be prescribed.

(2) The teaching departments, constituent colleges or institutes and all other bodies designated as such by the Syndicate in terms of statutes shall be independent cost centres of the Institute with authority vested in the head of each cost centre to sanction expenditure out of the budget allocated to it. Provided that re-appropriation from one head of expenditure to another may be made by the head of a cost centre in accordance with and to the extent prescribed by the statutes.

(3) All funds generated by a teaching department, constituent college or other unit of the Institute through consultancy, research or other provision of service shall be made available without prejudice to the budgetary allocation otherwise made, after deduction of overheads in the manner and to the extent prescribed by statute; to the teaching department, constituent college or other unit for its development. A part of the funds so generated may be shared with the Institute teachers or researchers in charge of the consultancy, research or service concerned in the manner and to the extent prescribed by statute.

(4) No expenditure shall be made from the funds of the Institute, unless a bill for its payments has been issued by the head of the cost centre concerned in accordance with the relevant statutes and the Treasurer has verified that the payment is provided for in the approved budget of the cost centre, subject to the authority to re-appropriate available to the head of the cost centre.

(5) Provision shall be made for an internal audit of the finances of the Institute.

(6) Without prejudice to the requirement of audit by an auditor appointed by Government in accordance with the provisions of any other law in force, the annual audited statement of accounts of the Institute shall be prepared in conformity with the Generally Accepted Accounting Principles (GAAP) by a reputed firm of chartered accountants and signed by the Treasurer. The annual audited statement of accounts so prepared shall be submitted to the Auditor General of Pakistan for his observations.

(7) The observations of the Auditor General of Pakistan, if any, together with such annotations as the Treasurer may make, shall be considered by the Syndicate and shall be placed before the Senate within six months of closing of the financial year.

CHAPTER-VII

GENERAL PROVISIONS

31. Opportunity to showcause.— Except as otherwise provided by law, no officer, teacher or other employee of the Institute holding a permanent post shall be reduced in rank, or removed or compulsorily retired from service for cause arising out of any act or omission on the part of the person concerned unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

32. Appeal to the Syndicate and the Senate.— Where an order is passed punishing any officer (other than the Vice-Chancellor), teacher or other employee of the Institute or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, if the order is passed by any officer or teacher of the Institute other than the Vice-Chancellor, have the right to appeal to the Syndicate against the order, and if the order is passed by the Vice-Chancellor, have the right to appeal to the Senate.

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33. Terms of service and remedy.—(1) Any person aggrieved by the decision or order of the Institute may seek remedy from the Civil Court of competent jurisdiction:

Provided that any provision as regards the terms and conditions of employment of persons in the service of Pakistan in general or in comparable employment notwithstanding the service of persons employed by the Institute shall be entirely governed by the terms and conditions prescribed by the relevant statutes.

(2) An officer, teacher or other employee of the Institute shall retire from service on the attainment of such age or tenure of service as may be prescribed.

(3) No adverse change shall be made in the terms and conditions of employment of any Institute teacher in the employment of the Institute on the date of commencement of this Act.

34. Benefits and insurance.—(1) The Institute shall constitute for the benefit of its officers, teachers and other employees schemes, as may be prescribed, for the provision of post-employment benefits as well as health and life insurance while in service.

(2) Where any provident fund has been constituted under this Act, the provisions of the Provident Fund Act, 1925 (XIX of 1925), shall apply to such fund as if it were the Government Provident Fund.

35. Commencement of term of office of members of Authority.—(1) When a member of a newly constituted Authority is elected, appointed or nominated, his term of office, as fixed under this Act, shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remains absent from the Institute for a period of not less than six months he shall be deemed to have resigned and vacated his seat.

36. Filling of casual vacancies in Authorities.— Any casual vacancy among the members of any Authority shall be filled, as soon as conveniently may be, in the same manner and by the same person or Authority that had appointed the member whose place has become vacant and the person appointed to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

37. Flaws in the constitution of Authorities.— Where there is a flaw in the constitution of an Authority as constituted by this Act, the statutes or the regulations on account of the abolition of a specified office under Government or because an organization, institution or other body outside the Institute has been dissolved or has ceased to function, or because of some other similar reason, such flaw shall be removed in such manner as the Senate may direct.

38. Proceedings of Authorities not invalidated by the vacancies.— No Act, resolution or decision of any Authority shall be invalid by reason of any vacancy on the Authority doing, passing, or making it or by reason of any want of qualification or invalidity in the election, appointment or nomination of any *de facto* member of the Authority, whether present or absent.

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39. First statutes and regulations.— Notwithstanding anything to the contrary contained in this Act, the President of Pakistan shall promulgate the first statues and regulations which shall be deemed to be statutes and regulations made under sections 26 and 27 and shall continue to remain in force until amended or replaced by new statutes and regulations in accordance with the provisions of this Act.

40. Repeal and savings.— Notwithstanding anything contained in any other law, the certificate of incorporation of the NFC institute issued vide No. JRL/1840 dated the 30th August, 1994, shall stand repealed from such date as may be notified by the Government in the official Gazette:

Provided that the Government may save, through appropriate provision in the repealing notifications, such acts or other legislative instruments constituting the NFC institute as are necessary for preservation of such specific features that are essential given the nature of the Institute and are not in conflict with the management and governance structure laid down by this Act or for continuation of the legal status of an institute, college or other constituent unit of the Institute as on the date of the notification in the official Gazette.

41. Transitory provisions.—(1) Notwithstanding anything contained in this Act, on the establishment of the Institute, the Senate shall be structured which shall initiate, as soon as possible, the process for the appointment of the members of the Syndicate and the Academic Council in accordance with the provisions of this Act.

(2) Any administrative set up at NFC Institute in existence immediately before the commencement of this Act, shall continue to function and shall as far as may be, exercise the powers respectively assigned to the Vice- Chancellor and the corresponding Authorities by or under this Act, until such time as they are respectively replaced in accordance with the prevision of this Act.

(3) Notwithstanding anything contained in this Act, the first Vice-Chancellor shall be appointed by the Chancellor for a period of four years.

42. Removal of difficulties.—(1) If any question arises as to the interpretation of any of the provisions of this Act, it shall be placed before the Chancellor whose decision thereon shall be final.

(2) If any difficulty arises in giving effect to any of the provisions of this Act, the Chancellor may make such order after obtaining the views of the Senate, not inconsistent with the provisions of this Act, as may appear to him to be necessary for removing the difficulty.

(3) Where this Act makes any provision for anything to be done but no provision or no sufficient provision has been made as respects the authority by whom, or the time at which, or the manner in which, it shall be done, then it shall be done by such authority, at such time, or in such manner as the Chancellor may direct after obtaining the views of the Senate.

43. Indemnity.— No suit or legal proceedings shall lie against the Government, the Institute or any Authority, officer or employee of the Government or the Institute or any person in respect of any thing which is done in good faith under this Act.

44. Power to allow appointment of employees of the Government, other universities or educational or research institutions to the Institute.—(1) Notwithstanding anything contained in this Act the Senate may, on the advice of the Syndicate, allow any post in, the Institute to be filled by appointment, on such terms as the Senate may specify, an employee of the Government or any other university or educational or research institution.

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(2) Where any appointment has been made under this section, the terms and conditions of service of the appointee shall not be less favourable than those admissible to him immediately before such appointment and he shall be entitled to all benefits of his post of service.

Passed by the National Assembly on the 8th October, 2009 and by the Majlis-e-Shoora (Parliament) in its Joint Sitting on the 5th April, 2012 in terms of clause (3) of Article 70 of the Constitution of the Islamic Republic of Pakistan.

THE OIL AND GAS DEVELOPMENT CORPORATION (RE-ORGANIZATION) ORDINANCE, 2001

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Conversion of Corporation into a Company
4. Certain special provisions with respect to Company
5. Transfer of employees from the Corporation to the Company
6. Removal of difficulties
7. Repeal

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THE OIL AND GAS DEVELOPMENT CORPORATION (RE-ORGANIZATION) ORDINANCE, 2001

ORDINANCE No. XXVIII OF 2001

[5th July, 2001]

An Ordinance to provide for conversion of the Oil and Gas Development Corporation into Oil and Gas Development Company Limited

WHEREAS it is expedient to provide for conversion of the Oil and Gas Development Corporation into a public limited company for incorporation under the Companies Ordinance,1984(XLVII of 1984);

AND WHEREAS, the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE**,** in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999 and the provisional Constitution Order No. 1 of 1999 read with the Provisional Constitution (Amendment) Order No.9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Oil and Gas Development Corporation (Re-organization) Ordinance, 2001.

(2) It extends to whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on 23rd October, 1997.

2. Definitions.— (1) In this Ordinance, unless there is anything repugnant in the subject or context:

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(a) "Company" means the Oil and Gas Development Company Limited incorporated under the Companies Ordinance, 1984(XLVII of 1984).

(b) "Corporation" means the Oil and Gas Development Corporation established under the Oil and Gas Development Corporation Ordinance, 1961(XXX of 1961);

(c) "effective date" means the date of incorporation of Oil and Gas Development Company Limited under the Companies Ordinance, 1984(XLVII of 1984); and

(d) "OGDC Ordinance" means the Oil and Gas Development Corporation Ordinance, 1961(XXXVII of 1961).

3. Conversion of Corporation into a Company.— (1) The Corporation shall be deemed to have been converted into a company limited by shares with effect from the date of

incorporation of the Company with the Securities, and Exchange Commission of Pakistan, under the Companies Ordinance, 1984(XLVII of 1984).

(2) In consideration of the vesting in the Company of the property, rights and liabilities of the Corporation, the Company shall issue to the Federal Government in the name of the President of the Islamic Republic of Pakistan, such number of fully paid shares as the Federal Government may determine. The Federal Government may, whenever it deems appropriate, transfer shares of the company held by it to such persons on such terms and conditions and in such manner as it may determine.

Explanation.— For the purpose of this section-

(a) the expression "property" includes assets, rights and entitlements of every description and nature wherever situated; and

(b) the expression "liabilities" includes duties, obligations, loans, encumbrances, claims and charges of every description and nature, actual or contingent.

(3) All orders made, proceedings taken and acts done by any authority or by any person, which were made, taken or done, or purported to have been made, taken or done between the twenty-third day of October, 1997, i.e., the date of incorporation of the company and the date on which this Ordinance comes into force, in exercise of the powers derived from the OGDC Ordinance, shall, notwithstanding any other law, be deemed always to have been validly made, taken or done and the same are hereby affirmed, adopted and declared to have been validly made, taken or done by the Oil and Gas Development Company Limited and shall have had effect accordingly.

4. Certain special provisions with respect to Company.—(1) For the removal of doubts, it is hereby clarified that, as from the date of its incorporation as a Company, the Company shall-

(a) be deemed to own and hold all the assets, properties, lands, installations, plants, machinery, equipment, concessions, licences, grants and other rights of whatsoever nature owned and held by the Corporation as on that date, including, but no limited to all tangible, intangible, moveable and immovable properties, contractual and other rights, outstanding moneys claims receivables and investments;

(b) be entitled to the benefit of all notifications, licences, permissions, sanctions, authorizations, grants, concessions, decrees and orders issued or granted to all subsisting in favour of the Corporation as at the date of its incorporation;

(c) be deemed to have taken over all contractual rights, licences, grants, concessions and liabilities of the Corporation and shall be liable to pay and discharge all liabilities and obligations of whatsoever nature of the Corporation.

(2) All suits appeals or other legal proceedings of whatever nature by, against or relating to the Corporation pending on the effective date in any court, tribunal or other authority shall be continued, prosecuted and enforced in the same manner and to the same extent as they would have

been continued, prosecuted and enforced by or against, the Corporation, if the conversion of the Corporation into the Company would not have taken place, by or against the Company, and the same shall not abate, be discontinued or be in any way prejudiced or affected by the provisions of this Ordinance.

(3) As from the date of its incorporation, the Company shall for all material purposes be the successor-in interest of the Corporation, and the name of the Company shall be deemed to be substituted for the name of the Corporation in all contracts, agreements, licences, leases, grants, concessions (including without limitation petroleum concessions, exploration and prospecting licences or permits and mining leases) and all other documents of whatsoever nature relating to the Corporation and no objection shall be entertained by any court, tribunal or authority in regard to such substitution or on the ground that any such contract agreement or document as aforesaid was or is, in, or with, the name of Corporation and not the Company.

(4) The objects of the Corporation as set out in the OGDC Ordinance so far as they are not in conflict with the objects contained in the memorandum of the company shall be the objects of the Company and notwithstanding anything contained in any law for the time being in force, the conduct by the Company of any such business shall not be called in question by any person or authority in any manner or on any ground whatsoever, including but not limited to the ground that the Company was or is not eligible to commence or to carry on such business or that the Company failed to obtain any permission, authorization, consent, approval or sanction under any law in force for the time being.

5. Transfer of employees from the Corporation to the Company.—(1) All officers, workmen or other employees of the Corporation (hereinafter referred to as the employees) shall, as on the date of incorporation of the Company, be deemed to be employees of the Company on the same remuneration and other conditions of service, rights and privileges including, but not limited to, provisions as to the pension, provident fund and gratuity, if any, and other matters as were applicable to them before the conversion of the Corporation into Company.

(2) Notwithstanding anything in any law, contract, terms and conditions of service or any other instrument, no person transferred to the Company under sub-section (1) shall be entitled to any compensation as a consequence of transfer to the Company.

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6. Removal of difficulties.— If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may, by notification in the official Gazette, make such provisions as may appear to it to be necessary for the purpose of removing the difficulty.

7. Repeal.—(1) The Oil and Gas Development Corporation Ordinance, 1961(XXXVII of 1961) is hereby repealed.

THE PAKISTAN AERONAUTICAL COMPLEX BOARD ORDINANCE, 2000

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SECTIONS:

1. Short title, extent and commencement.
2. Definitions.
3. Establishment of the Board.
4. Terms of office of the members.
5. Meetings.
6. Functions of the Board.
7. Investment of the Board with certain powers.
8. Submission of estimates of receipts and expenditures to the Federal Government.
9. Accounts and audit etc.
10. Submission of annual report, returns, etc.
11. Delegation of Powers.
12. Mode of signifying communications from the Board.
13. Power to issue directions.
14. Power to make rules.
15. Dissolution of the Board.

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THE PAKISTAN AERONAUTICAL COMPLEX BOARD, ORDINANCE, 2000.

ORDINANCE No. XXVIII of 2000

[20th July, 2000]

An Ordinance to establish the Pakistan Aeronautical Complex Board Kamra

WHEREAS it is expedient to establish the Pakistan Aeronautical Complex Board Kamra and to provide for matters connected therewith or incidental thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. **Short title, extent and commencement.**—(1) This Ordinance may be called the Pakistan Aeronautical Complex Board Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Pakistan Aeronautical Complex Board Kamra established under section 3;

(b) "Chairman" means the Chairman of the Board:

(c) "factory" means a Pakistan Aeronautical Complex factory established by the Federal Government and functioning under the control of the Board; and

(d) "member" means a member of the Board and includes the Chairman thereof.

3. Establishment of the Board.—(1) As soon as may be after the commencement of this Ordinance, the Federal Government shall, by notification in the official gazette, establish, for carrying out the purposes of this Ordinance, a Pakistan Aeronautical Complex Board consisting of a Chairman and five members appointed by it.

(2) The Chairman shall be appointed by the Federal Government on recommendation of the Chief of the Air Staff.

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(3) Out of the five members to be appointed by the Federal Government, one shall be appointed as Member Finance in consultation with Ministry of Finance, the second to be as the Member Ministerial Co-ordination, third and fourth to be the Members Technical and Commercial, respectively and the fifth member shall be appointed from the corporate sector to be called the Member (Private) on the recommendation of the secretary, Defence Production Division.

4. Terms of office of the members.—(l) The Chairman and members shall hold office during the pleasure of the Federal Government for a term of four years and, unless earlier removed, shall be eligible for re-appointment and shall receive such salary and allowances as the Federal Government may determine:

Provided that the Member (Private) shall hold office in honorary capacity.

(2) Every member, except Member Ministerial Co-ordination and Member (Private), shall be a whole-time officer of the Board and shall perform such functions as are, or may be, assigned to him under this Ordinance.

(3) Every member, except Member (Private), shall, before assuming his office as such, relinquish or divest himself of any office or interest in any corporation, company or concern other than an industry owned by the Federal Government or sponsored by the Board.

5. Meetings.—(1) No business of the Board shall be transacted except at a meeting at which a quorum of three Members is present.

(2) The Chairman or, in his absence, senior most member shall preside at the meetings of the Board.

(3) At the meetings of the Board each member shall have one vote and, in the event of equality of votes, the Chairman or the member presiding shall have a second or casting vote.

6. Functions of the Board.—(1) The principal function of the Board shall be to manage, organize or, as the case may be, re-organize, within the existing financial resources, any factory and administer the affairs of the factories and to run them on sound commercial lines so as to adequately meet, during war and peace, the needs of the defence of the country.

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(2) The Board shall, in discharging its functions, be guided on questions of policy involving national interest, including defence requirement during war and peace, by such directions as the Federal Government, which shall be the sole judge whether or not national interest is involved, may give from time to time.

7. Investment of the Board with certain powers.— Notwithstanding anything contained in any law, regulation, rule, order, notification, agreement or other instrument for the time being applicable to any factory, or any officer or other employee appointed or engaged in, or in connection with, any factory, the Board may, in relation to such factory, officer or employee, exercise the following powers of the Federal Government or of any officer authorized for the purpose by the Federal Government, namely:—

(a) to determine the terms and conditions of service, recruitment, promotion, transfer, posting, dismissal, discharge, demotion and other disciplinary actions of all officers and other employees:

Provided that the terms and conditions of service of any officer or other employee appointed or engaged before the commencement of this Ordinance shall not be varied to his disadvantage and that he shall not be dismissed or removed from service or reduced in rank by any authority subordinate to that by which he was appointed:

Provided further that the officers or employees appointed before the commencement of this Ordinance shall be given an option, after the service rules for the officers and employees of the Board have been made, to opt for the new service rules or to continue to be governed by their existing service rules; but once the option has been exercised by an officer or employee within the time fixed by the Board, it shall be final, and an officer or employee who does not exercise the option within the prescribed time shall be considered to have opted for the new rules:

Provided also that the promotion, demotion or other disciplinary action against an officer or employee on deputation or secondment shall be governed by the service rules applicable to him;

(b) to appoint or engage such officers and other employees, advisers, consultants on contract as it considers necessary for the efficient discharge of its functions on such terms and conditions of service as it may determine;

(c) to carry out all technical and engineering projects or works, or to enter into contract or agreement pertaining to their execution;

(d) to make all purchases of plant, machinery and stores either in the country or abroad in such manner as it thinks fit and also to dispose of stores and equipment and write off the losses;

(e) to fix pay of the officers and other employees wherever necessary either initially or otherwise at any stage within the pay scales prescribed by the Federal Government;

(f) to utilize or incur expenditure in respect of lump sum grant allocated for the purpose in the budget;

(g) to utilize surplus capacity of factories to undertake commercial activities in markets within the country and abroad;

(h) to create and operate with the approval of the Federal Government non-lapsable revolving fund in foreign as well as local currency to meet objectives of indigenization and to promote export and R&D activities from sale proceeds of the factory products; and

(i) to make, subject to any direction issued in this behalf by the Federal Government, departmental, financial, and accounting rules and procedures based on sound commercial lines within six months of establishment.

8. Submission of estimates of receipts and expenditures to the Federal Government.— (1) The Board shall, in the month of December every year, submit, in such manner and form as the Federal Government may direct, to the Federal Government, for making necessary provision in its budget, a statement of the discharge of its functions under this Ordinance in respect of the new financial year together with a statement showing separately the estimated receipts and expenditure in foreign exchange for that year.

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(2) The Board shall not, without the previous sanction of the Federal Government, incur any expenditure or undertake any financial liability involving expenditure in excess of the amount provided for in the budget.

9. Accounts and audit etc.— (1) The Board shall maintain its accounts including those of the factories in such manner and form as may be prescribed by the Federal Government in consultation with the Auditor-General of Pakistan.

(2) The accounts of the Board, including those of the factories, shall be audited by the Auditor-General of Pakistan.

(3) The Board shall, within six months after the end of every financial year, submit to the Federal Government a statement of accounts audited by the Auditor-General of Pakistan.

(4) The Federal Government may, at any time, require the Auditor-General of Pakistan to report to it upon the adequacy of measures taken by the Board for the efficient management of the factories.

(5) The Board shall establish a costing mechanism in all the factories so as to exercise effective cost control and organized production on modern commercial lines.

10. Submission of annual report, returns, etc. —(1) The Board shall, as soon as possible after the end of every financial year but not later than the thirty-first day of December next following, submit to the Federal Government a report on the conduct of the affairs of the Board during the year.

(2) The Federal Government may require the Board to furnish it with—

(a) any return, statement, estimate, statistics or other information regarding any matter relating to, or under the control of, the Board;

(b) a report on any subject with which the Board is concerned; and

(c) any document or its copy in charge, or under the control, of the Board, and the Board shall comply with such requisition.

[1]**[11. Delegation of Powers.—**The Board may, from time, to time, authorize the Chairman, any one or more of its members or any subordinate authority of the Board to perform such functions or exercise such powers on its behalf as may be specified by the Board through a resolution passed at a meeting with proper quorum, and the Chairman, member or subordinate authority so authorized shall conform to such regulations or restrictions as may be prescribed by the Board].

12. Mode of signifying communications from the Board.— Any notice, determination, direction, requisition, appointment, expression of opinion, approval or sanction to be given or signified on the part of the Board for any of the purposes of, or in relation to, any powers or functions with which it has been invested under this Ordinance, shall be sufficient and binding if it is in writing signed by the Chairman or by any other person authorized by the Board to act in its behalf in respect of the matters to which such authorization may relate, and the Board shall not in any case be bound in respect of any of the matters aforesaid unless by some writing signed in the manner aforesaid.

13. Power to issue directions.— The Federal Government may, from time to time, issue directions to the Board to take such measures as it considers necessary for the efficient management and commercialization of the factories and the Board shall comply with such directions.

[1]Subs, by the Pakistan Aeronautical Complex Board (Amdt.) Ordinance, 2002 (LXXVIII of 2002), s. 2, for the original section 11.

14. Power to make rules.— The Federal Government may, by notification in the official Gazette, make rules for carrying out the purpose of this Ordinance.

15. Dissolution of the Board.— The Federal Government may, by notification in the official gazette, declare that the Board shall be dissolved on such date as may be specified therein, and the Board shall accordingly stand dissolved.

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THE PAKISTAN AGRICULTURAL RESEARCH COUNCIL ORDINANCE, 1981

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THE PAKISTAN AGRICULTURAL RESEARCH COUNCIL ORDINANCE, 1981

ORDINANCE No. XXXVIII OF 1981

[*29th December, 1981*]

An Ordinance to provide for constituting and re-organizing the Pakistan Agricultural Research Council.

WHEREAS it is expedient to provide for constituting and re-organising the Pakistan Agricultural Research Council and for matters connected therewith or ancillary thereto ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Provisional Constitution Order, 1981 (C.M.L.A. Order No. 1 of 1981), and in exercise of all powers enabling him in that behalf the President is pleased to make and promulgate the following Ordinance :—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement. — (1) This Ordinance may be called the Pakistan Agricultural Research Council Ordinance, 1981.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context—

(a) "agriculture" means crops, livestock including poultry, fisheries, forestry, range management, soil science, socio-economic institutional and engineering aspects connected therewith and such other activities and subjects as the Federal Government may, by notification in the official Gazette, declare to be agriculture within the meaning of this clause ;

(b) "Board" means the Board of Governors of the Council ;

(c) "Chairman" means the Chairman of the Council ;

(d) "Council" means the Pakistan Agricultural Research Council established under section 3 ;

(e) "Executive Committee" means the Executive Committee of the Board.

(f) "Prescribed" means prescribed by rules or regulations;

(g) "President" means the President of the Board ;

(h) "research establishment" includes agricultural experiment stations, field stations, institutes, centres, sub-centres, laboratories and other units of the Council howsoever designated ;

(i) "regulations" means regulations made under this Ordinance ; and

(j) "rules" means rules made under this Ordinance.

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CHAPTER II

ESTABLISHMENT OF THE COUNCIL

3. Establishment of the Council. — (1) There shall be established a Council to be called the Pakistan Agricultural Research Council.

(2) The Council shall be a body corporate having perpetual succession and a common seal with powers, subject to the provision of this Ordinance, to acquire, hold and dispose of property, both movable and immovable, and shall by the said name sue and be sued.

(3) Unless the Federal Government, by notification in the official Gazette, otherwise directs, the headquarters of the Council shall be at Islamabad.

(4) The Council may from time to time establish regional offices, local offices, sub-offices and research establishments at such places as it may deem fit.

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CHAPTER III

FUNCTIONS AND POWERS OF THE COUNCIL

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4. Functions and powers of the Council. The functions of the Council shall be—

(a) to undertake, aid, promote and coordinate agricultural research ;

(b) to arrange the expeditious utilization of the research results ;

(c) to establish research establishments mainly to fill in the gaps in existing programme of agricultural research ;

(d) to arrange the training of high-level scientific manpower in agricultural sciences ;

(e) to generate, acquire and disseminate information relating to agricultural ;

(f) to establish and maintain a reference and research library ; and

(g) to perform any other functions related to the matters aforesaid.

5. Directions from the Government. In discharging its functions, the Council shall be bound by such directives and orders, if any, as may be given to it on any questions of policy by the Federal Government which shall be the sole judge as to whether a question is a question of policy.

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CHAPTER IV

MANAGEMENT

6. Board of Governors.—(1) The overall control, direction and superintendence of the affairs of the Council shall vest in a Board of Governors consisting of the following members, namely: —

(i) the President ;

(ii) the Chairman ;

(iii) not more than five whole-time members ; and

(iv) such other members as the Federal Government may appoint on the recommendations of the Chairman from time to time.

(2) The appointment of the Chairman and other members shall be made by notification in the official Gazette.

7. President. The Federal Minister incharge of the Ministry dealing with Agriculture shall be the President of the Board.

8. Executive Committee.—(1) There shall be an Executive Committee consisting of the Chairman and the whole-time members of the Board.

(2) Subject to the provisions of this Ordinance and the rules and regulations and the general or special directions of the Board, the Executive Committee shall be the principal administrative body of the Council responsible for executing all policies and discharging all functions of the Council under this Ordinance.

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(3) Notwithstanding anything contained in sub-section (2), the Executive Committee shall—

(i) undertake regular review of the evaluation of the accomplishments and progress of the research projects and the programmes of the research organizations ; and

(ii) exercise control over the research activities of the Council.

9. **Chairman.** —(1) The Chairman shall be the chief executive of the Council.

(2) The President of Pakistan shall appoint an eminent scientist connected with agriculture to be the Chairman on such terms and conditions as he may determine.

(3) The Chairman shall hold office during the pleasure of the President of Pakistan.

(4) The Chairman shall have such powers and perform such functions as are assigned to him by or under this Ordinance.

(5) The Chairman may, from time to time, for the purpose of ensuring efficient functioning of the Council and facilitating its day to day functions, delegate to members, officers and employees of the Council such of his functions, powers or duties as may be considered necessary by him.

10. Whole-time members. The whole-time members shall be appointed by the President of Pakistan for a period of three years and shall perform such functions and exercise such powers as are assigned to them by or under this Ordinance and shall be eligible for re-appointment.

11. Term of office of non-official members. — (1) The members of the Board who are not officials of the Federal Government, hereinafter referred to as non-official members, shall, unless otherwise directed by the Federal Government, hold office for a term of three year and shall be eligible for re-appointment.

(2) A non-official member may, by writing under his hand addressed to the Federal Government, resign his office.

(3) A casual vacancy in the office of a non-official member shall be filled by the appointment of another member for the residue of the term of his predecessor.

12. Meetings. — (1) The meetings of the Board shall be held at least twice a year and shall be presided over by the President or, in his absence, by a member nominated by him for the purpose.

(2) Subject to the provisions of sub-section (1), the meetings of the Board and of the Executive Committee or of other committees shall be held at such times and at such places and in such manner as may be prescribed by regulations:

Provided that, until regulations are made in this behalf, such meetings shall be convened by the Chairman.

(3) Unless otherwise prescribed, one-third of the total members in the case of the Board and one-half of the total members in the case of the Executive Committee shall form a quorum at any meeting of the Board or the Executive Committee, as the case may be:

Provided that no quorum shall be necessary for an adjourned meeting.

13. Delegation of Powers by the Board. The Board may from time to time delegate to the Executive Committee such of its functions and powers as it may consider necessary:

Provided that the Executive committee may, in an emergency which in its opinion requires immediate action, take such action as it considers necessary and shall report it for approval to the Board in the next meeting.

14. Validity of Proceedings. No act, proceeding, decision or order of the Council, Board or Executive Committee shall be invalid by reason only of the existence of a vacancy in, or any defect in the constitution of the Council, Board or Executive Committee.

CHAPTER V

ESTABLISHMENT

15. Appointment of officers, etc. — (1) The Council may appoint such officers and staff as it may consider necessary for the efficient performance of its functions on such terms and conditions as may be prescribed.

(2) The Council may engage on contract experts and consultants for a period not exceeding two years at a time on such terms and conditions as it may determine and subject to such directions as the Board may from time to time give in this behalf.

(3) Notwithstanding anything contained in any contract or agreement or in the conditions of service, every person serving in or under the Agricultural Research Council constituted under the Agricultural Produce Cess Act, 1940 (XXVII of 1940) immediately before the commencement of this Ordinance, including persons on deputation to other organizations or abroad, shall stand transferred to the Council and become an employee, of the Council on the same terms and conditions, including remuneration, tenure of service, rights and privileges as to pension and gratuity and other matters, as were applicable to him immediately before the commencement of this Ordinance, until his employment in the Council is terminated in accordance with his conditions of service or his terms and conditions are altered by regulations, which shall not be less favourable than those by which he was governed immediately before his transfer to the Council.

16. Transfer of existing civil servants to the Council.—(1) Notwithstanding anything, contained in any law, contract or agreement or in the conditions of service, every civil servant employed in the Attached Department portion of the Directorate-General of the Pakistan Agricultural Research Council and serving in or under the Council immediately before the commencement of this Ordinance, including persons on deputation to other organizations or abroad, shall, save as hereinafter provide, cease to be a civil servant and stand transferred to, and become an employee of, the Council on the same terms and conditions, including remuneration, tenure of service, rights and privileges as to pension and gratuity and other matters, as were applicable to him immediately before the commencement of this Ordinance, until his employment in the Council is terminated in accordance with his conditions of service or his terms and-conditions are altered by regulations, which shall not be less favourable than those by which he was governed immediately before his transfer to the Council.

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(2) Any person referred to in sub-section (1) who is on deputation with the Attached Department portion of the Directorate-General of the Pakistan Agricultural Research Council shall continue in the employment of the Council on deputation in accordance with the terms of his deputation.

(3) Any person referred to in sub-section (1) may, within three months from the commencement of this Ordinance, opt not to be transferred to the service of the Council and the option so exercised shall be final.

(4) An employee who opts under sub-section (3) not to be transferred to the service of the Council may, as far as possible, be provided a suitable posting elsewhere by the Federal Government.

(5) If an employee does not accept the appointment offered to him under sub-section (4), within the time allowed to him, or if it is not possible for the Federal Government to provide a

suitable posting to him under that sub-section, his service shall stand terminated on the date on which he declines the offer or the time allowed to him expires or, as the case may be, on which the Federal Government informs him that it is not possible to provide a suitable posting to him, and he shall be entitled to be paid by the Federal Government compensation equivalent to three months' remuneration.

Explanation. — The compensation payable to an employee under this sub-section shall be in addition to and not in derogation of his rights as to pension, gratuity, provident fund money or other benefits to which he may be entitled under his conditions of service.

(6) The termination of service of an employee under sub-section (5) shall be deemed to be discharge from service owing to abolition of a permanent post for the purpose of admissibility of compensation pension.

(7) The Federal Government shall pay pension charges and gratuity in respect of, and provident fund accumulations of, each employee transferred to the Council under sub-section (1), in such manner and to such extent as may be prescribed by rules.

(8) No person referred to in sub-section (1) who stands transferred to the Council shall, notwithstanding anything contained in any law for the time being in force, be entitled to any compensation because of his transfer.

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CHAPTER VI

FINANCE

17. Grants, etc. — The Federal Government may, from time to time, place annual grants at the disposal of the Council for the smooth discharge of its functions and the efficient conduct of its affairs.

18. Funds. — (1) There shall be constituted for the Council a fund to which shall be credited all the sums received by the Council and out of which shall be defrayed all the expenditure incurred by the Council.

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(2) The funds of the Council shall consist of—

(a) grants made by the Federal Government and the Provincial Governments ;

(b) grants, donations, endowments, contributions, aid and assistance given by other organisations ;

(c) foreign aid and loans obtained or raised with the approval of the Federal Government ; and

(d) receipts from other sources.

19. Budget and accounts.—(1) The Council shall, in respect of each financial year, submit for the approval of the Federal Government, by such date and in such form as may be prescribed by rules, a statement showing the estimated receipts and expenditure and the sums which are likely to be required from the Federal Government during the financial year.

(2) The Council may open accounts in any scheduled bank in Pakistan.

(3) The accounts of the Council shall be maintained in such form and manner as the Federal Government may determine in consultation with the Auditor-General of Pakistan.

(4) The accounts of the Council shall be audit by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961) and are appointed by the Federal Government in consultation with the Auditor-General of Pakistan on such remuneration, to be paid by the Council, as the Federal Government may fix.

20. Exemption from taxes. Notwithstanding anything contained in the Business Profits Tax Act, 1947 (XXI of 1947), the Gift-tax Act, 1963 (XIV of 1963) the Wealth-tax Act, 1963 (XV of 1963), the Income Tax Ordinance, 1979 (XXXI of 1979) or any other law for the time being in force relating to income-tax, super-tax, wealth-tax, gift-tax, capital gains tax or business profits tax, the Council shall not be liable to pay any such tax on its income, capital, profits, wealth, gifts or gains.

21. Investment of funds. Subject to such instructions as the Federal Government may, from time to time, issue, the Council may invest its funds, in any security of the Federal Government or a Provincial Government or in any of the securities enumerated in section 20 of the Trusts Act, 1882.

22. Borrowing Power. The Council may, with the previous sanction of the Federal Government, and on such terms and conditions as may be approved by the Federal Government, borrow in Pakistan currency or foreign currency.

23. Financial Assistance to Council. The Council may, with the approval of the Federal Government, accept financial or any other assistance and grants of any kind in furtherance of its objects and in order to discharge its functions.

24. Annual report. The Council shall furnish to the Federal Government, as soon as possible after the end of each financial year, but not later than the last day of December next following, a report on the conduct of its affairs for that year, and shall publish the same alongwith a Summary of the accounts for that year.

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CHAPTER VII

GENERAL AND MISCELLANEOUS PROVISIONS

25. Power to make rules.—(1) The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing provision, such rules may provide for—

(i) the functions and powers of the Chairman ;

(ii) the appointment and terms and conditions of service of the whole-time members of the Council, including disciplinary matters ; and

(iii) the conditions under which the Council may enter into arrangements with other institutions and individual organisations, whether public, private or autonomous bodies.

26. Power to make regulations. — (1) The Council may, with the previous sanction of the Federal Government, by notification in the official Gazette, make regulations not inconsistent with this Ordinance and the rules providing for all matters for which provision is necessary or expedient for the purpose of giving effect to the provisions of this Ordinance and the efficient conduct of the affairs of the Council.

(2) In particular and without prejudice to the generality of the foregoing provision, the regulations may provide for—

(i) the appointment of the officers and employees of the Council ;

(ii) the terms and conditions of service of the officers and employees of the Council including pension and disciplinary matters ;

(iii) the conduct of business at the meetings of the Board and the Executive Committee ;

(iv) the duties, functions and conduct of the officers and employees of the Council ;

(v) preparation of annual estimates of income and expenditure and supplementary estimates ;

(vi) the forms of returns and statements for various purposes ;

(vii) the constitution of benevolent fund, group insurance, gratuity, provident fund and welfare fund for the Council employees ;

(viii) the manner in which payments are to be made by or on behalf of the Council and the officers by whom orders for making deposits or investments or for withdrawals or any other disposal of the income or funds of the Council shall be authenticated, made or signed ; and

(ix) the custody and use of common seal of the Council.

27. Officers, staff, etc. deemed to be public servants. Every official member of the Council or Board and every officer and employee of the Council shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (Act XLVof 1860).

28. Ordinance XXIII of 1969 not to apply to Council. Nothing contained in the Industrial Relations Ordinance, 1969 (XXIII of 1969), shall apply to or in relation to the Council or its establishments or any of the officers or employees of the Council.

29. Indemnity of Council, etc. —(1) No suit, prosecution or other legal proceedings shall lie against the Council or any member or any other officer or staff of the Council for anything in good

faith done or intended or purported to be done under this Ordinance or rule, regulation or order made thereunder.

(2) The Council shall not be responsible for any misfeasance, malfeasance or non-feasance of any officer or employee, for the time being of the Council.

30. Notice of suit Against Council, etc. — (1) [1][A suit may] be instituted against the Council or any member or any person associated with the Council or against any officer or employee of the Council or against any person acting under the direction or authority of the Council, the Chairman or of any officer or employee of the Council in respect of any act purporting to be done under this Ordinance or the rules or regulations [2][after] the expiration of [3][two months] from the delivery of a written notice at the head office of the Council or the place of abode of such member, officer, employee or person stating the cause of action, the name and address of the intending plaintiff and the nature of the relief sought.

(2) In every such suit the plaint shall contain a statement that such notice has been so delivered.

[4][(2A) Where any such suit is instituted without delivering or leaving such notice as aforesaid or before the expiration of the said period of two months, or where the plaint does not contain a statement that such notice has been so delivered, or left, the plaintiff shall not be entitled to any costs if settlement as regards the subject-matter of the suit is reached or the Council or the member, officer, employee or person concedes the plaintiff's claim, within the period of two months from the date of the institution of the suit:

Provided that, in a suit instituted without such notice, the Court shall allow not less than three months to the Council to submit its written statement.]

(3) Notwithstanding anything contained; in the Limitation Act, 1908 (IX of 1908), no such suit as is described in sub-section (1) shall, unless it is a suit for the recovery of immovable property or for a declaration of title thereto, commence otherwise than within six months next after the accrual of the cause of action.

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31. Certain claims for compensation to be barred. No person shall have any right, whether in contract, tort or otherwise, to any compensation for any loss incurred by reason of the operation of any of the provisions of this Ordinance or by reason of the compliance by any other organisation with any policy guidelines or directions given to it under this Ordinance or under any rules or regulations.

32. Winding-up. No provision of law relating to the winding up of bodies corporate shall apply to the Council and the Council shall not be wound up except by the orders of the Federal Government in such manner as the Federal Government may direct.

[1] Subs. by the Pakistan Agricultural Research Council (Amdt.) Ordinance, 1985 (10 of 1985), s.2, for "No. suit shall".
[2] Subs. *ibid.*, for "Until".
[3] Subs. *ibid.*, for "one month".
[4] Ins. *ibid.*,

33. Savings. Upon the commencement of this Ordinance,—

(a) all funds, properties, rights and interests of whatsoever kind issued, used, enjoyed, possessed, owned or vested in the Agricultural Research Council in existence immediately before such commencement and all liabilities legally subsisting against the said Council shall pass to the Council as established under this Ordinance ;

(b) everything done, action taken, obligations or liabilities incurred, rights and assets acquired, persons appointed or authorised, jurisdiction or powers conferred, endowments, bequests, funds or trusts created, donations or grants made, orders issued under any of the provisions of the Acts, rules or regulations, applicable to the said Council, shall remain in force and be continued and, having regard to the various matters which by this Ordinance have to be regulated or prescribed by rules or regulations, be deemed to have been respectively done, taken, incurred, acquired, appointed, authorised, conferred, created, made, or issued under this Ordinance and reference in any document to any of the provisions of the said Acts or the rules or regulations made thereunder shall, so far as may be, be deemed to be reference to the corresponding provisions of this Ordinance or the rules or regulations made or deemed to have been made thereunder ; and

(c) any rules or regulations made under the said Acts shall, in so far as they are not inconsistent with the provisions of this Ordinance or the rules and regulations made under this Ordinance having regard to the various matters which by this Ordinance have to be regulated or prescribed by rules or regulations respectively shall continue to be in force, until they are repealed, replaced, rescinded or modified in accordance with the provisions of this Ordinance.

34. Removal of difficulties. If any difficulty arises in giving effect to any provisions of this Ordinance, the Federal Government may make such order, not inconsistent with the express provisions of this Ordinance, as may appear to it to be necessary or expedient for the purpose of removing the difficulty.

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THE PAKISTAN ATOMIC ENERGY COMMISSION ORDINANCE, 1965

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THE PAKISTAN ATOMIC ENERGY COMMISSION ORDINANCE, 1965

[1]ORDINANCE No. XVII OF 1965.

*[*29th May, *1965]*

An Ordinance to provide for the establishment of an Atomic Energy Commission.

WHEREAS it is expedient to provide for the establishment of an Atomic Energy Commission for the promotion of the peaceful uses of atomic energy in Pakistan, the discharge of international obligations connected therewith, the execution of development projects involving nuclear power stations an matters incidental thereto;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 29 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan Atomic Energy Commission Ordinance, 1965.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(1) "Atomic energy" means the energy or ionizing radiations released in any process which involves transformation of, or reaction between atomic nuclear and includes energy liberated as a result of the fission of special nuclear material of fusion or atomic unclei :

(2) " Chairman " means the Chairman of the Commission ;

(3) "Commission " means the Pakistan Atomic Energy Commission established or deemed to be established under section 3 ;

(4) " prescribed " means prescribed by rules made under this Ordinance ;

(5) "special nuclear material" means plutonium – 239. Uranium - 235, or uranium - 233 or any other material which the Commission determines to be capable of releasing energy through fission.

[1]Approved by the National Assembly on 21st July, 1965, see Gaz. of P., 1965, Ext., p. 596.

3. Establishment of the Commission.—(1) As soon as may be after the commencement of this Ordinance, the [1][Federal Government] shall establish, in accordance with the provisions of this Ordinance, a Commission to be called the Pakistan Atomic Energy Commission.

(2) The Commission shall be a body corporate by the name of the Pakistan Atomic Energy Commission, having perpetual succession and a common seal, with power, subject to the provisions of Ordinance, to acquire and hold property, both movable and immovable, and shall by the said name sue and be sued.

(3) The headquarters of the Commission shall be at Islamabad.

[2]* * * * * * *

[3]**[3A Employment under Commission to be employment under Federal Government.** Every employment under the commission shall, for the purposes of the Pakistan Essential Services (Maintenance) Act, 1952 (LIII of 1952), be deemed to be employment under the Federal Government and the said Act shall have effect accordingly.

3B. [4][Act IV of 2008 not to apply to Commission]**.** Nothing contained in the Industrial Relations [4][Act 2008 (Act IV of 2008)] shall apply to or in relation to the Commission or any of the officers, advisers and employees appointed by it].

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[1] Sub. by the Pakistan Atomic Energy commission (Amdt.) Act, 1974 (16 of 1974), s. 2. for "Central Government".
[2]Sub-section (4) omitted by the Federal Laws (Revision and Declaration) ordinance, 1981 (27 of 1981) s. 3 and Sch. II.
[3]Added by Act 16 of 1974 s. 3,
[4]Sub. by the Pakistan Atomic Energy commission (Amdt.) Act. 2010 (21 of 2010), s. 2.

CHAPTER II

COMPOSITION AND FUNCTIONS OF THE COMMISSION

4. Composition of the Commission.—(1) The Commission shall consist of the following members[1] to be appointed by the [2][Federal Government], namely : —

Full-time members—

(a) a Chairman ;

[3]* * *

(b) a Finance member, being representative of the Ministry of Finance, Government of Pakistan; and

[4][(*c*) [5][Seven] technical members of whom one may be a Member for Administration ; and]

5* * *

[4][(d) * * * * * *

(e) * * * * * * *

(f) * * * * * * *

(2) The Chairman [3]* * * and other members of the Commission [3]* * * * shall be appointed by the [7][Federal Government].

(3) The Chairman shall be the chief executive officer of the Commission, and [3]* * * the other members, except the Finance member, shall perform such functions as the Commission may assign to them from time to time.

(4) The Finance member shall exercise such powers and discharge such duties as may be prescribed.

[5][(5) Notwithstanding the composition of the Board prescribed in subsection (1), the Federal Government may increase or decrease the number of members of the Commission and prescribe the qualifications and mode of appointment in such manner as it may deem appropriate.]

5. Term of office of members etc.—(1) Save as hereinafter provided, a member of the Commission [3]* * * * * shall hold office for a period of three years from the date of his appointment and shall be eligible for re-appointment for such further period or periods, not exceeding three years at any one time, as the [6][Federal Government] may deem fit.

(2) Where a person is appointed to be a member of the Commission by virtue of his holding an office or appointment he shall cease to be such member when he ceases to hold that office or appointment.

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[1] Members of the Commission have been appointed vide S.R.O. 661 (K)/65, see Gaz. of P., 1965, Pt. I, p. 569.
[2] Subs. by the Pakistan Atomic Energy Commission (Amdt.) Act, 1974 (16 of 1974) s. 2. for "Central Government".
[3]Omitted by Ord. 12 of 2001, ss 2&3.
[4]Subs. by Act. 16 of 1974 s. 4 for clause "c".
[5]Subs.omitted and add by the Pakistan Atomic Energy Commission (Amdt.) Act, 2010 (21 of 2010) s.3.
[7]Subs. Ibid., s. 2 for "Central Government".

(3) A person appointed to be a member of the Commission may at any time resign his office by letter addressed to the Chairman:

Provided that no resignation shall take effect until it has been accepted by the [1][Federal Government].

(4) A vacancy caused by resignation or any other reason shall be filled by the appointment of a person qualified to fill such vacancy.

(5) The [1][Federal Government] may at any time terminate the appointment of the Chairman [2]* * *or any other member of the Commission [2]* * * without assigning any reason.

(6) No act or proceeding of the Commission shall be invalid merely on the ground of the existence of a vacancy in, or defect in the constitution of, the Commission.

6. Functions of the Commission.—(1) The functions of the Commission shall be to do all acts and things, including research work, necessary for the promotion of the peaceful uses of atomic energy in the fields of agriculture, medicine and industry and for the execution of development projects involving nuclear power stations and the generation of electric power thereat.

(2) The Commission may, on behalf of the [3][Federal Government] or, with the approval of the [3][Federal Government], on behalf of a Provincial Government perform such other functions relating to the peaceful uses of atomic energy, and on such terms and conditions, as may be agreed upon between the Commission and such Government.

[4][(2A) Notwithstanding anything contained in the regulation of Mines and Oil-fields andMineral Development (Government Control) Act, the powers of the Federal Government under that Act (XXIV of 1948), shall, in relation to mines of nuclear substances and development of such substances be exercisable by the Commission.

Explanation.— In this sub-section, "nuclear substance" means any substance or material which the Commission determines as being a substance or material which is or may be used for the production of or use in, atomic energy or for research into matters connected therewith, and includes all substances obtained or obtainable from the soil by underground or surface working which are radioactive.]

(3) In the performance of its functions, the Commission shall be guided on questions of policy by the instructions, if any, given to it by the [1][Federal Government] which shall be the sole judge as to whether a question is a question of policy.

[1] Subs. by the Pakistan Atomic Energy Commission (Amdt.) Act, 1974 (16 of 1974), s. 2 for "Central Government,".
[2]Omitted by Ord. 12 of 2001, s. 3.
[3]Subs. by Act (16 of 1974), s. 2, for Central Government.
[4] Ins ibid., s. 5.

(4) The Commission shall, in order to carry out any functions under sub-section (1) or sub-section (2),—

(a) prepare and submit for the approval of the [1][Federal Government] proposals, schemes or projects in such form as may be indicated by the [1][Federal Government] or, where the functions are to be performed on behalf of a Provincial Government, by that Government ; and

(b) proceed to give effect to a proposal, scheme or project as approved by the [1][Federal Government].

7. Meetings of the Commission, etc.—(1) Save as hereinafter provided, the Commission shall regulate the procedure for its meetings.

(2) Meetings of the Commission shall be called by the Chairman on such date and at such time and place as may be specified by him:

Provided that—

(i) not less than four meetings shall be held every year, and

(ii) at least eight days' notice shall be given to the members specifying the date, time and place of the meeting.

(3) The annual report and the accounts of the Commission for every financial year shall be submitted at a meeting of the Commission to be held within six months of the close of that year for adoption and record subject to such reservations as the Commission may make.

(4) To constitute a quorum at a meeting of the Commission, not less than four members, including the Chairman, shall be present.

(5) All meetings of the Commission shall be presided over by the Chairman, and, in the absence of the Chairman, [2]* * * * * * * by a member of the Commission authorised in writing bythe Chairman ; and in the absence of such authorization or of the member so authorized, by a member elected for the purpose by the members present.

(6) Subject to such rules as the [1][Federal Government] may make regarding matters having financial implications, all questions at a meeting of the Commission shall be decided by a majority of the members present and voting, and in case of equality of votes, the person presiding shall have and exercise a second or casting vote.

(7) Any business which it may be necessary for the Commission to transact may be transacted by circulation among all its members, and any proposal so circulated and approved by a majority of the members shall be as effectual and binding as if such proposal had been passed at a regular meeting of the Commission.

[1] Subs. by the Pakistan Atomic energy commission (Amdt.) Act, 1974 (16 of 1974), s. 2, for "Central Government".
[2] Omitted and Subs. by Ord. 12 of 2001, s. 5.

[1][7A. Standing bodies and committees.** The commission may from time to time appoint such standing bodies or committees from amongst its members as it may consider necessary to assist it in the performance of its functions and to discharge such of its functions as it may assign to them.]

[2]* * * * * * *

[2]* * * * * * *

10. Funds of the Commission.—(1) The funds of the Commission shall comprise—

(a) funds of the Pakistan Atomic Energy Council which stand transferred to the Commission under section 23 ;

(b) grants from the [3][Federal] and Provincial Governments;

(c) donations and endowments ;

(d) income from investments and royalties ; and

(e) receipts of the Commission from such other sources as may be approved by the Commission.

(2) The Commission may open a deposit account with the State Bank of Pakistan or with any Agency of the State Bank other than a Government Treasury or, with the approval of the [4][Federal Government], with any other bank.

(3) The accounts of the Commission shall be audited by the [5][Auditor-General] of Pakistan, and shall be maintained, and presented for audit, in such form and manner as may be prescribed.

11. Budget. The Commission shall, by such date in each year as may be prescribed, submit to the [4][Federal Government] for approval, a budget in the prescribed form for each financial year showing the estimated receipts and expenditure and the sums which are likely to be required from the [4][Federal Government] during that financial year.

12. Delegation of powers. The Commission may, by general or special order in writing, direct that such of its powers shall, in such circumstances and under such conditions, if any, as may be specified in the order be exercisable also by the Chairman [6][the Deputy Chairman], or by such member or officer of the Commission as may be so specified.

13. Appointment of officers, etc.—(1) The Commission may, subject to the provisions of sub-section (2) and such general or special orders as the [4][Federal Government] may give it from time to time, appoint such officers, advisers and employees as it considers necessary for the efficient performance of its functions on such terms and conditions as it may deem fit.

(2) The [4][Federal Government] may direct the Commission to dispense with the services of any officer, adviser or employee and when so directed the Commission shall dispense with his services.

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[1]Ins. ibid., by the Pakistan Atomic Energy Commission (Amdt.) Act, 1974 (16 of 1974), s. 6
[2]Omitted by the Pakistan Atomic Energy Commission (Amdt.) Act, 2010 (21 of 2010) s.4.
[3]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central".
[4]Subs. by the Pakistan Atomic Energy Commission (Amdt.) Act, 1974 (16 of 1974), s. 2, for "Central Government".
[5]Subs. by Act 16 of 1974, s. 2, for "Comptroller and Auditor General".
[6]Ins. by the Pakistan Atomic Energy Commission (Amdt.) Ordinance, 1979 (65 of 1979), s. 5.

CHAPTER III

MISCELLANEOUS

14. Co-operation with international organizations, etc. The Commission may, subject to the prior approval of the [1][Federal Government], co-operate with any foreign national authority or international organization in respect of the peaceful uses of atomic energy pursuant to the express terms and conditions of any programme or agreement for co-operation to which such authority or organization is a party or pursuant to any other international arrangement made before or after the commencement of this Ordinance.

15. Submission of periodical reports, etc. The Commission shall submit to the [1][Federal Government] at such time and at such intervals as the [1][Federal Government] may specify—

(a) such periodical reports and summaries as may be required by the [1][Federal Government];

(b) annual reports on the Head-office and the different research centres, power stations and projects ;

(c) such periodical returns, accounts statements and statistics as may be required by the [1][Federal Government] ;

(d) information and comments asked for by the [1][Federal Government] on any specific point;

(e) copies of the documents required by the [1][Federal Government] ; and

(f) original documents required by the [1][Federal Government] for examination or any other purpose.

16. Directives from the [1][Federal Government]. The [1][Federal Government] may, from time to time, issue to the Commission such directives and orders as it may consider necessary for carrying out the purposes of this Ordinance and the Commission shall follow and carry out such directives and orders.

17. Discoveries and inventions to vest in the Commission. All rights relating to discoveries and inventions and any improvement in materials, methods, processes, apparatus or equipment made by any officer or employee of the Commission in the course of his employment shall vest in the Commission.

18. Declaration of fidelity and secrecy. Every member, adviser, officer or other employee of the Commission shall make such declaration of fidelity and secrecy as may be prescribed.

19. Power to make rules. The [1][Federal Government] may, by notification in the official Gazette, make rule to carry out the purposes of this Ordinance.

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[1] Subs. by the Pakistan Atomic Energy Commission (Amdt.) Act, 1974 (16 of 1974), s. 2, for "Central Government".

20. Power to make regulations. The Commission may, with the previous sanction of the [1][Federal Government], make such regulations, not inconsistent with this Ordinance or the rules made thereunder, as may, in its opinion, be necessary or expedient for the achievement of its aims and objects and for the performance of its functions.

21. Continuance of certain rules, etc. All rules, regulations, and bye-laws of the Pakistan Atomic Energy Council registered under the Societies Registration Act, 1860 (XXI of 1860), and in force immediately before the commencement of this Ordinance, shall, *mutatis mutandis*, and so far as they are not inconsistent with any of the provisions of this Ordinance continue in force until repealed or altered by rules or regulations, made under this Ordinance.

22. Winding up. No provision of law relating to the winding up of bodies corporate shall apply to the Commission, and the Commission shall not be wound up except by order of the [1][Federal Government], and in such manner as the [1][Federal Government] may direct.

23. Dissolution of Pakistan Atomic Energy Council, etc.—(1) Upon the commencement of this Ordinance the Pakistan Atomic Energy Council registered under the Societies Registration Act, 1860(XXI of 1860), shall, notwithstanding anything contained in that Act, stand dissolved, and upon such dissolution—

(a) all assets, rights, powers, authorities and privileges, and all property, movable and immovable cash and bank balances, reserve funds investments and all other interests and rights in, or arising out of, such property and all debts, liabilities and obligation of whatever kind of the Council subsistingimmediately before its dissolution shall stand transferred to and vest in the Commission.

(b) all officers, consultants, advisers, auditors and other employees of the Council shall, notwithstanding anything contained in any law or in any agreement, deed, document or other instrument, stand transferred to the Commission and shall be deemed to have been appointed or engaged by the Commission in accordance with the terms and conditions of service applicable to them and no officer, consultant, adviser, auditor or other employee whose services are so transferred shall be entitled to any compensation because of such transfer ;

(c) all debts and obligations incurred or contracts entered inot or rights acquired and all matters and things engaged to be done by, with or for the Council before its dissolution shall be deemed to have been incurred, entered into, acquired or engaged to be done, by, with or for the Commission ; and

(d) all suits and other legal proceedings instituted by or against the Council before its dissolution shall be deemed to be suits and proceedings by or against the Commission and shall be proceeded or otherwise dealt with accordingly.

(2) The [1][Federal Government] may, for the purpose of removing any difficulty in relation to the transfer and other matters specified in sub-section (1) make such orders as it considers expedient and any such order shall be deemed to be, and given effect to, as part of the provisions of this Ordinance.

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[1] Subs. by the Pakistan Atomic Energy Commission (Amdt.) Act, 1974 (16 of 1974), s. 2, for "Central government".

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THE PAKISTAN BOY SCOUTS ASSOCIATION ORDINANCE, 1959

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3. Constitution, powers and functions of Association
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THE PAKISTAN BOY SCOUTS ASSOCIATION ORDINANCE, 1959.

ORDINANCE NO. XLIII OF 1959

[29*th July*, 1959]

An Ordinance to incorporate the Pakistan Boy Scouts Association and to provide for certain matters connected therewith.

WHEREAS it is expedient to incorporate the Pakistan Boy Scouts Association and to provide for certain matters connected therewith ;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance :—

1. Short title, extent, and commencement.—(1) This Ordinance may be called the Pakistan Boy Scouts Association Ordinance, 1959.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such date[1] as the [2][Federal Government] may, by notification in the official Gazette, appoint.

2. Incorporation of Association.—Notwithstanding anything in the Societies Registration Act, 1860 (XXI of 1860), or in any other law, the Pakistan Boy Scouts Association, for the time being registered thereunder, shall, on the commencement of this Ordinance, cease to be so registered, and shall be deemed to be a body corporate, by the name of the Pakistan Boy Scouts Association (hereafter in this Ordinance referred to as the Association), having perpetual succession and a common seal, with power, subject to the rules made or deemed to have been made under section 3, to acquire, hold and dispose of property, movable or immovable, for the purposes of the Association, and shall by the said name sue and be sued.

3. Constitution powers and functions of Association.—The constitution, powers and functions of the Association shall, notwithstanding anything in the Companies Act, 1913 (VII of 1913), be such as may be prescribed by rules to be made by the Association, with the previous approval in writing of the [2][Federal Government], and until such rules are made, the rules of the Pakistan Boy Scouts Association registered under the Societies Registration Act, 1860 (XXI of 1860), and in force immediately before the commencement of this Ordinance, shall continue in force and be deemed to have been made under this section.

4. Exclusive right to titles, uniforms, badges, etc.—The Association shall have the sole and exclusive right to have and to use all emblems, badges, uniforms and decorations, descriptive or designating marks and titles, now or heretofore used by the Association, and also the title "Boy Scouts" or (saving the title of any unit of the Armed Forces of Pakistan or any Forces attached to or serving with such Forces), any title containing the word "Scouts" or any grammatical variation thereof, and shall also have the sole and exclusive right to manufacture, have or use any emblem, badge, decoration, uniform, descriptive or designating mark or title hereafter adopted by the Association for carrying out its objects.

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[1] The 14th day of August, 1959, *see* Gaz. of P., 1959, Ext., p. 1397.

[2] Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art. 2 and Table.

5. Penalty, etc.—(1) Whoever contravenes any provision of section 4 shall be punishable with fine.

(2) If such contravention is committed by a company, association or body of individuals, every member thereof who is knowingly a party to the contravention shall be deemed to be guilty of such contravention.

6. [1][*Omitted*]

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[1]Omitted by the Federal Laws (Revision and Declaration Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and II Sch.

THE PAKISTAN BROADCASTING CORPORATION ACT, 1973

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THE PAKISTAN BROADCASTING CORPORATION ACT, 1973

ACT No. XXXII OF 1973

[9th February, 1973]

An Act to establish a Pakistan Broadcasting Corporation

WHEREAS it is expedient to provide for the establishment of a Broadcasting Corporation to ensure effective operation and growth of broadcasting as a function-oriented public service medium, general improvement in the quality of programmes, speedy implementation of projects and better utilisation of talent, and for matters connected therewith;

It is hereby enacted as follows:—

CHAPTER I
PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Broadcasting Corporation Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once and shall be deemed to have taken effect on the twentieth day of December, 1972.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Board of Directors of the Corporation;

(b) "Chairman" means the Chairman of the Board;

(c) "Corporation" means the Pakistan Broadcasting Corporation established under section 3;

[1][ca "division concerned" means the division to which business of the Corporation stands allocated;]

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[2][(d) "Member" means a Member of the Board;]

(e) "regulation" means a regulation made under this Act;

(f) "rule" means a rule made under this Act;

[1][(fa) "secretary" shall have the same meaning as assigned thereto in the Rules of Business, 1973;

(fb) "SOE Act" means the State-Owned Enterprises (Ġovernance and Operations) Act, 2023 (VII of 2023); and]

(g) "station" means any production, receiving, or transmitting unit, fixed or mobile.

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[1]Ins. and added by Act No. VI of 2024, s. 2.

[2]Subs. by Ord. No. XCIV of 2002, s.2.

CHAPTER II

ESTABLISHMENT AND INCORPORATION OF THE CORPORATION

3. Establishment of the corporation.—(1) As from the commencement of this Act, there shall be established a Corporation to be called the Pakistan Broadcasting Corporation.

(2) The Corporation shall be a body corporate by the name of the Pakistan Broadcasting Corporation, having perpetual succession and a common seal, with power to hold and dispose of property, and shall by the said name sue and be sued.

[1]**[3A. Application of Act VII of 2023.**—(1) The provisions of the State-Owned Enterprises (Governance and Operations) Act, 2023 (VII of 2023) shall apply to the Pakistan Broadcasting Corporation which shall be deemed to be a state-owned enterprises for the purposes of the said Act.

(2) Where any inconsistency arises in a provision of the said Act and a provision of this Act for the purpose of governance of the corporation as a state-owned enterprise, the provisions of the said Act shall prevail.]

CHAPTER III

MANAGEMENT

[1]**[4. Board.**—(1) The general direction and the administration of the Corporation shall vest in a Board consisting of–

S. No.	Membership	Status
(1)	**(2)**	**(3)**
1.	A person to be appointed by the Federal Government from amongst the independent members	*Chairman*
2.	Secretary of the division concerned or in his absence his nominee not below the rank of an officer in BPS-20 or equivalent	*Member*
3.	Additional Foreign Secretary or in his absence his nominee not below the rank of an officer in BPS-20 or equivalent	*Member*
4.	Additional Secretary Finance or in his absence his nominee not below the rank of an officer in BPS-20 or equivalent	*Member*
5.	Director General, Inter-Services Public Relations (ISPR) or in his absence his nominee not below the rank of an officer in BPS-20 or equivalent	*Member*
6.	Managing Director, Pakistan Television Corporation or in his absence his nominee not below the rank of an officer in BPS-20 or equivalent	*Member*
7.	Director General	*Member-cum-Secretary*
8.	A representative of the Interior Division not below the rank of an officer in BPS-20 or equivalent	*Member*
9.	Nine eminent independent members to be appointed by the Federal Government including not less than one from each province, Islamabad Capital Territory, Gilgit-Baltistan and Azad Jammu and Kashmir	*Members*

[1]Ins. and subs. by Act No. VI of 2024, ss. 2A-3.

(2) The members, other than *ex-officio* members, shall hold office for a term of three years and shall be eligible for re-appointment but in no case for more than two consecutive terms and they may, by writing under their hand addressed to the Federal Government by giving a notice of not less than one month, resign their offices:

Provided that the resignation shall not take effect until it has been accepted by the Federal Government.

(3) In particular and without prejudice to the generality of the provisions of sub-section (1), the Board shall have full powers with regard to—

(a) the preparation of the annual revenue budget of the Corporation and approval of the budget and expenditure not included in its annual budget for capital and development expenditure;

(b) the formulation and implementation of all programs and policies; and

(c) the making of plans for infrastructural and technological development within the country and for promotion of the Corporation's interests, abroad.]

5. [1][*Omitted*]

[2][**6. Removal of independent members.—**The Federal Government may, by notification in the official Gazette, remove an independent member in accordance with the provisions of the SOE Act.]

7. Meetings of the Board.—(l) The Board shall meet at such time and such place as may be prescribed by regulations:

Provided that not less than one meeting of the Board shall be held [1][at least once in a quarter].

[2][(2) Not less than fifty percent of total membership of the Board including not less than four independent and one *ex-officio* members shall constitute quorum for a meeting of the Board.]

(3) The Chairman, or in his absence a [1][member] authorised by him, shall preside at the meetings of the Board.

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[2][**8. Director-General.—**(1) There shall be a Director General of the Corporation who shall be its chief executive officer to be appointed by the Board in such manner and on such terms and conditions as may be prescribed by the Board.

(2) The Director General shall—

(a) be responsible for the management of the Corporation and for its procedures in financial and. other matters under delegation from the Board and subject to the oversight and directions of the Board;

(b) ensure the proper implementation of strategies and policies approved by the Board; and

(c) put in place appropriate arrangements to ensure that funds and resources are properly safeguarded and are used economically, efficiently and effectively and in accordance with the state-owned enterprise business plan, the primary objective and all statutory obligations.]

[1]Omitted and Subs. by Ord. No. XCIV of 2002, ss. 5 and 7.
[2]Subs. by Act No. VI of 2024, ss. 4-6.

9. Delegation of powers.—The Board may, from time to time, delegate any of its powers to the Director-General or any other officer of the Corporation.

CHAPTER IV
FUNCTIONS OF THE CORPORATION

10. (1) The functions of the Corporation shall be—

(a) to provide broadcasting services for general reception in all parts of Pakistan and the territorial water thereof and on board ships and aircrafts (such services being hereafter referred to as Home Services) and in other countries and places (such services being hereafter referred to as External Services) for the purposes of disseminating information, education and entertainment through programmes which maintain a proper balance in their subject-matter and a high general standard of quality and morality;

(b) to broadcast such programmes as may promote Islamic ideology, national unity and principles of democracy, freedom, equality, tolerance and social justice as enunciated by Islam, discourage parochial, racial, tribal, sectarian, linguistic and provincial prejudices and reflect the urges and aspirations of the people of Pakistan;

(c) to broadcast in the Home Services such special programmes as the [1][Board] may, from time to time, direct;

(d) to broadcast programmes in the External Services to such countries and in such languages and at such times as the [1][Board] may, from time to time, direct;

(e) to bring to public awareness the whole range of significant activity and to present news or events in as factual, accurate and impartial a manner as possible;

(f) to carry out instructions of the Federal Government with regard to general pattern or policies in respect of programmes, announcements and news to be put out on the air from time to time;

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(g) to hold the existing, and to construct or acquire and establish or install additional, stations and apparatus;

(h) to hold the existing, and to construct or acquire additional, equipment and apparatus for telephony in Pakistan for purposes of broadcasting;

(i) to compile, prepare, print, publish, issue, circulate and distribute, with or without charge, such papers, magazines, periodicals, books, circulars and other such matter as may be conducive to any of the functions of the Corporation; and

(j) to collect news and information in any part of the world in any manner that may be deemed fit.

[1]Subs. by Ord. No. XCIV of 2002, s. 8.

(2) In the discharge of its functions the Corporation shall be guided on questions of policy by the instructions, if any, given to it from time to time by the Federal Government which shall be the sole judge as to whether a question is a question of policy.

CHAPTER V
ESTABLISHMENT

11. Employment of officers and staff.—The Board may, from time to time, employ such persons as it may consider necessary for the performance of its functions on such terms and conditions as it may prescribe by regulations.

12. Transfer of Radio Pakistan servants to the Corporation.—(1) Notwithstanding anything to the contrary in any contract or agreement or in the conditions of service, the Federal Government may, subject to the provisions of sub-sections (2) and (3), transfer persons in the service of Pakistan and serving in connection with the affairs of the department of the Government of Pakistan headed by the Director-General, Radio Pakistan, hereinafter referred to as Radio Pakistan, immediately before the commencement of this Act, including persons on deputation to other organisations in Pakistan or abroad, to the Corporation on the same terms and conditions to which they were entitled immediately before such commencement.

[1][(1A) The persons transferred to the Corporation under sub-section (1) shall cease to be civil servants in the service of Pakistan and become employees of the corporation from the date of its establishment under section 3, on the same terms and conditions to which they were entitled immediately before such transfer.

(1B) Notwithstanding any judgement of any Court or tribunal, including the Supreme Court, any law, contract, agreement or the conditions of service, all actions taken, powers exercised, orders or instructions issued, by the Corporation in respect of terms and conditions of employees referred to in sub-section (1A) after their transfer to the Corporation till the coming into force of the Pakistan Broadcasting Corporation (Amendment) Act, 1996 (IV of 1996), shall be deemed to have been validly taken, exercised or issued by the Corporation.]

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(2) Notwithstanding anything in sub-section (1), only such members of the Information Service of Pakistan serving Radio Pakistan immediately before the commencement of this Act shall be transferred to the Corporation as opt for service in the Corporation.

(3) The persons transferred to the Corporation under sub-section (2) shall, on such transfer, cease to be members of the Information Service of Pakistan.

(4) The terms and conditions of service of the members of the Information service of Pakistan transferred to the corporation under sub-section (2) shall not be altered by the Corporation to their disadvantage.

[1]Ins. by Act No. IV of 1996, s. 2 and shall be deemed always to have so been inserted.

(5) No person in the service of Pakistan who is transferred to the Corporation under sub-section (1) shall, notwithstanding anything contained in any law for the time being in force, be entitled to any compensation because of such transfer.

CHAPTER VI

FINANCE

13. Sources of income.— The sources of income of the Corporation shall be—

(a) grants-in-aid made by the Federal Government for approved projects of the Corporation;

(b) moneys paid by the Federal Government for the expenditure incurred by the Corporation on the External Services and other services performed by the Corporation at the instance and on behalf of that Government;

(c) such annual subsidy as the Federal Government may grant;

(d) licence fee as the Federal Government may fix in respect of licences issued under section 4 of the Wireless Telegraphy Act, 1933 (*XVII of 1933*), to possess wireless telegraphy apparatus;

(e) income derived from sale of programmes and broadcast time for advertisement; and

(f) income from other sources.

14. Budget for capital and development expenditure.—Before the commencement of each financial year, the Corporation shall submit to the [1][Board] for its approval a budget for the capital and development expenditure proposed to be incurred by the Corporation during the financial year and shall no incur any expenditure of the nature of capital and development expenditure which is not provided for in the budget as approved by the [1][Board].

15. Borrowing power.—The Corporation may, with the previous sanction of the Federal Government, and on such terms and conditions as may be approved by the Government, borrow in Pakistan currency or foreign currency.

16. Audit and accounts.—[1][(1) The accounts of the Corporation shall be maintained and audited in accordance with the provisions of Articles 169 and 170 of the Constitution of the Islamic Republic of Pakistan.]

(2) Copies of the audit report shall be sent to the Board and the report shall also be available for public inspection.

(3) The statement of audited accounts of the Corporation together with a report of the Board thereon shall be furnished to the [1][secretary finance division through the secretary of the division concerned] by the Corporation within six months of the close of every financial year.

(4) The [1][secretary finance division through the secretary of the division concerned] may at any time issue directions to the Corporation to rectify and audit objection and the Corporation shall comply with every such direction.

[1]Subs. by Act No. VI of 2024, ss. 7-8.

17. [1][*Omitted*]

18. Reports.—(1) The Corporation shall submit to the Federal Government at such time, after the end of every financial year, in such form and in such manner as may be prescribed by rules, a report on the conduct of its affairs for that year.

(2) The Federal Government shall cause the report to be laid the National Assembly.

19. Transfer of assets and liabilities of Radio Pakistan.—All assets and liabilities of the Federal Government in relation to Radio Pakistan subsisting immediately before the commencement of this Act shall, unless the Federal Government, by notification in the official Gazette, otherwise directs, vest in the Corporation as from such commencement.

20. Liquidation of Corporation.—No provision of law relating to the winding up of companies shall apply to the Corporation and the Corporation shall not be wound up save by an order of the Federal Government and in such manner as the Federal Government may direct.

CHAPTER VII
RULES AND REGULATIONS

21. Power to make rules.—The Federal Government may make rules for carrying out the purposes of this Act.

22. Power to make regulations.—[2][(1)] The Board may, with the previous sanction of the Federal Government, make regulations to provide for all matters not required to be provided for by rules and for which provision is necessary or expedient for carrying out the purposes of this Act.

[2][(2) The regulations made under this section on the first occasion, other than those having financial implications, may be made so as to have effect from the date of the establishment of the Corporation.]

[3][**22A. Removal of difficulties.**—**If** any difficulty arises in giving effect to any of the provisions of this Act, the Federal Government may make such order, not inconsistent with the provisions of this Act, as may appear to be necessary for the purpose of removing the difficulty.]

23. [4][*Omitted*]

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RGN Date: 23-08-2024

[1]Omitted by Act No. IV of 1999, s. 23.
[2]Re-numbered and added by Ord. No. XXXIII of 1979, s. 2.
[3]Ins. by Act No. VI of 2024, s. 9.
[4]Omitted by Ord. No. XXVII of 1981, s. 3 Sch. II.

THE PAKISTAN CIVIL AVIATION AUTHORITY ORDINANCE, 1982

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THE PAKISTAN CIVIL AVIATION AUTHORITY ORDINANCE, 1982.

*ORDINANCE No. XXX OF 1982

[*4th December, 1982*]

An Ordinance to establish a Civil Aviation Authority

WHEREAS it is expedient to establish a Civil Aviation Authority to provide for the promotion and regulation of civil aviation activities and to develop an infrastructure for safe, efficient, adequate,economical and properly coordinated civil air transport service in Pakistan ;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan Civil Aviation Authority Ordinance, 1982

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(i) "aerodrome" means any area of land or water designed, equipped, set apart or commonly used or intended to be used, either wholly or in part, for affording facilities for the landing and departure of aircraft, and includes all buildings, sheds, vessels and other structures and roads thereon or appertaining thereto ;

(ii) "airport" means an aerodrome at which facilities have, in the opinion of the Federal Government, been sufficiently developed to be of importance to civil aviation ;

(iii) "Authority" means the Civil Aviation Authority established under section 3 ;

(iv) "Board" means the Board referred to in section 7 ;

(v) "Chairman" means the Chairman of the Board ;

(vii) "Director-General" means the Director-General of the Authority

*Has been applied to the F ATA, by S.R.O. 1312(1)/97, dt. 25-1-97

(viii) "licence" means the certificate of competency which a licence-holder is required by the law of the country granting the licence to hold connection with his licence ; and

(ix) "member" means a member of the Board.

3. Establishment of the Authority.— (1) As soon as may be after the commencement of this Ordinance, the Federal Government shall, by notification in the official Gazette, establish an authority to be known as the Civil Aviation Authority for carrying out the purposes of this Ordinance.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal with power, subject to the provisions of this Ordinance, to acquire and hold property, both movable and immovable, and shall sue and be sued by the name assigned to it by sub-section (1).

4. Power of the Federal Government to issue directives. The Federal Government may, as and when it considers necessary, issue directives to the Authority on matters of policy, and such directives shall be binding on the Authority, and if a question arises whether any matter is a matter of policy or not; the decision of the Federal Government shall be final.

5. Powers and functions of the Authority.—(1) The Authority shall be responsible for the regulation and control of civil aviation activities in the country.

(2) The Authority shall from time to time prepare for the approval of the Federal Government five-year plans for the development of infrastructure for the promotion of safe, efficient, adequate, economical and properly coordinated civil air transport service and control and regulate civil aviation activities in Pakistan.

(3) The Authority shall frame schemes in respect of

(i) provision of civil airports and aerodromes in the country ;

(ii) rovision of air traffic services to aircraft ;

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(iii) provision of navigational services to aircraft ;

(iv) provision of communication services at the civil airports and aerodromes in the country ;

(v) provision of aeronautical and flight inspection services to all aircraft registered in Pakistan;

(vi) provision of search and rescue services ;

(vii) provision of crash, fire and rescue services at all airports and aerodromes to aircraft in need ;

(viii) management of estates at airports and aerodromes ; and

(ix) any other matter facilitating the achievement of the objects of this Ordinance

(4) The Authority may, if it considers necessary,

(i) cause studies, surveys, experiments or technical research to be made or contribute towards the cost of any such studies, surveys, experiments or technical research made by any, other agency at the request of the Authority;

[1][(ii) approve estimates of development projects and maintenance works and award ofcontracts for construction, maintenance and operation of airports and its establishment;]

(iii) subject to clause (ii) undertake any approved works, incur any expenditure, procure vehicles, plants, machinery and material, required for its use and enter into and perform all such contracts as it may consider necessary or expedient ;

(iv) acquire by purchase, lease, exchange or otherwise any land or immovable property or anyinterest in such land or property ;

(v) [1]* * * pledge any property vested in it, including the immovable assets transferred to it under section 11, to raise finances for the development projects to be undertaken by it ; and

(vi) seek and obtain advice and assistance in the preparation or execution of a scheme from any local body or agency of the Government and such local body or agency shall give the advice and assistance sought by the Authority to the best of its ability, and additional expenditure, if any, involved in such advice or assistance shall be borne by the Authority.

[1]* * * * * * *

(6) Notwithstanding anything contained in this Ordinance, the Authority may undertake the execution of any scheme relating to civil aviation activity as framed or sponsored by any local body or agency or exercise technical supervision and administrative and financial control over the execution thereof on such terms and conditions as may be agreed to between the Authority and the local body or agency.

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(7) The Authority and the Director-General may exercise such powers under the Civil Aviation Rules, 1978, and the Schedule to the Aircraft Rules, 1937, as the Federal Government may, by notification in the official Gazette, specify.

(8) The acquisition of any land or any interest in land for the Authority or for any scheme under this Ordinance shall be deemed to be an acquisition for a public purpose within the meaning of the Land Acquisition Act, 1894 (I of 1894), and the provisions of the said Act shall apply to all such proceedings.

(9) The Director-General or any person authorised by him in writing may enter upon any survey and land, erect pillars for the determination of intended lines of works, make borings and excavations and do all other acts which may be necessary for the preparation of any scheme, provided that, when the affected land does not vest in the Authority, the power conferred by this subsection shall be exercise in such manner as to cause the least interference with and the least damage to the rights of the owner thereof.

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[1]Subs. and omitted by Ordinance XI of 1999, s. 2.

(10) When any person enters into or upon any land in pursuance of sub-section (9), he shall at the time of entering or as soon thereafter as may be practicable pay or tender payment for all necessary damage to be done as aforesaid and in case of dispute as to the sufficiency of the amount so paid or tendered the dispute shall be referred to the Deputy Commissioner of the District whose decision shall be final.

6. Control of air transport and aviation services.— (1) Subject to the provisions of any other law for the time being in force, the Authority shall have control over

(i) all the civil airports and aerodromes in the country including their planning, construction,operation and maintenance ;

(ii) air routes in Pakistan, in consultation with the Federal Government ;

(iii) airspace management of civil airports and aerodromes ; and

(iv) collection of revenues at airports and aerodromes and at various offices of the Authority.

(2) The Authority may, with the approval of the Federal Government, hold negotiations withforeign countries to settle technical matters arising out of bilateral air transport agreements.

(3) Nothing in this section shall entitle the Authority to exercise any power in respect of such works, airports, aerodromes, airfields and things connected therewith as are owned by the Federal Government and established for the exclusive use of Defence Services.

(7) Management.— (1) The general direction and administration of the Authority and its affairs shall vest in a Board which may exercise all powers, perform all functions and do all acts and thingswhich may be exercised, performed or done by the Authority.

[1][(2) The Board shall consist of the following members, namely:—

(i)	Secretary of the Division to which the affairs of the Authority are allocated.	Chairman
(ii)	Vice-Chief of Air Staff.	Member
(iii)	Secretary, Planning and Development, Division.	Member
(iv)	Secretary, Culture, Sports, Tourism and Youth Affairs Division.	Member
(v)	Managing Director, Pakistan International Airlines Corporation.	Member
(vi)	[2][Special] Secretary (military) Finance Division.	Member
(vii)	Director-General, Civil Aviation Authority.	Member

[1]Subs. and omitted by Ordinance XI of 1999, s. 3.

[2]Subs. by SRO. 73(KE)/2004, dts 29-5-04.

(3) The Federal Government may, by notification in the official Gazette, amend sub-section (2) so as to add any clause thereto, or modify or omit any clause thereof.]

(4) The Federal Government may appoint not more than three additional members on such termsand conditions and for such period as it may determine.

(5) The meetings of the Board shall be held at such times and places and in such manner as maybe prescribed by regulations:

Provided that until regulations are made in this behalf, the meetings shall be held as and whenconvened by the Chairman.

(6) The Chairman or, in his absence, a member authorised by him in this behalf and threemembers shall constitute a quorum for a meeting of the Board.

8. Executive Committee.— (1) There shall be an Executive Committee of the Authority

Consisting of the Director-General, who shall be its head, and four other members, of whom three shall be nominated by the Board from amongst the most senior Officers of the Authority, and one to be nominated by the Ministry of Finance and designated as Finance Member.

(2) The Executive Committee shall exercise such administrative, executive, financial and technical powers as may be delegated to it by the Authority:

Provided that the Executive Committee may, in an emergency which in its opinion requires immediate action take such action as it considers necessary, and shall report it for approval to the Board in its next meeting.

9. Director-General, his duties, functions and powers.— (1) The Federal Government shall appoint the Director-General who shall be the executive head of the Authority and shall exercise suchpowers and perform such functions as may be specified under sub-section (7) of section 5 or delegated to him by the Board from time to time.

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(2) The Director-General shall receive such salary and allowances and be subject to such conditions of service as may be determined by the Federal Government.

10. Delegation of powers. The Authority may, by general or special order, delegate to the Executive Committee, the Director-General or an officer of the Authority any of its powers, duties or functions under this Ordinance, subject to such conditions as it may think fit to impose.

11. Transfer of assets and liabilities of the Department of Civil Aviation to the Authority.—(1) All assets and undertakings, including lands, buildings, airports and aerodromes, works, machinery, apparatus, equipment, material and plants vested in the Department of Civil Aviation, hereinafter referred to as the Department, shall vest in the Authority, and all liabilities in respect of the said assets shall be the liability of the Authority.

(2) The assets and liabilities of the Department shall be evaluated by the Federal Government and taken on books, and the excess of the assets over the liabilities will be deemed to be the Federal Government's contribution to the Authority either as equity or loan as may be determined by the

Federal Government.

(3) The evaluation of the net assets transferred to the Authority under sub-section (2), the terms governing the transfer, the return on equity, if any, and the conditions governing the loan shall be determined by the Federal Government.

[1]* * * * * * *

[2][(5) The Federal Government Lands and Buildings (Recovery of Possession) Ordinance 1965, (LIV of 1965) shall apply to lands and buildings vesting in the Authority and for the purpose of such application shall have effect as if reference therein to the Federal Government included a reference tothe Authority.]

12. Recruitment of officers, etc.—(1) The Authority may, from time to time, appoint such Officers, servants, experts and consultants as it may consider necessary for the performance of its functions.

(2) The Authority shall prescribe by regulations the procedure for appointment of its officers, servants, experts and consultants, and the terms and conditions of their service.

13. Members, officers etc., to be public servants. The Director-General, members, officers, servants, experts and consultants of the Authority, shall, when acting or purporting to act in pursuance of any of the provisions of this Ordinance or the rules or regulations made thereunder, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

14. Transfer of civil servants, etc., to the Authority.— (1) Notwithstanding anything contained in any law, contract or agreement or in the conditions of service.—

(a) every civil servant employed in the Department immediately before the establishment of the Authority, including a person on deputation to any other organisation in Pakistan or abroad but not being a person on deputation to the Department from any other organisation, shall, on such establishment, stand transferred to, and become an employee of, the Authority on such terms and conditions as may be prescribed by regulations:

Provided that the pay and allowances to which such civil servant shall be entitled shall not be less favourable than those to which he was entitled immediately before such transfer ; and

(b) unless the Authority otherwise directs, every person on deputation to the Department from any other organisation immediately before the establishment of the Authority shall, on such establishment, stand transferred to the Authority on the same terms and conditions to which he was entitled immediately before such transfer.

(2) No person who stands transferred to the Authority by virtue of sub-section (1) shall, notwithstanding anything contained in any laws, be entitled to any compensation because of such transfer.

[1] Omitted by Ordinance No. XI of 1999, s. 4.

[2] New sub-section (5), added by the Pakistan Civil A viation Authourity (Second Amdt.) Ordinance, 1984 (22 of 1984), s. 2.

(3) The Federal Government shall pay to the Authority pension charges and gratuity in respect of,and provident fund accumulations of, persons transferred by virtue of sub-section (1), in such manner and to such extent as the Federal Government may determine.

15. Budget. The Authority shall, in respect of each financial year, submit for the approval of the Federal Government by such date and in such form as may be specified by the Federal Government a statement showing the estimated receipts and current and development expenditure and the sums which are likely to be required from the Federal Government during the next financial year.

16. Civil Aviation Authority Fund. (1) There shall be a fund to be known as the "Civil Aviation Authority Fund" which shall vest in the Authority and shall be utilised by the Authority to meet charges in connection with its functions under this Ordinance including the payment of salaries and other remuneration to the Director-General, officers, servants, experts and consultants of the Authority.

(2) The Civil Aviation Authority Fund shall consist of—

(i) grants made by the Federal Government ;

(ii) loans obtained from the Federal Government ;

(iii) sale proceeds of bonds issued under the authority of the Federal Government;

(iv) loans obtained by the Authority with the special or general sanction of the FederalGovernment ;

(v) foreign aid and loans obtained with the sanction of and on such terms and conditions asmay be approved by, the Federal Government ; and

(vi) all otsher sums received and fees collected by the Authority.

(3) The Authority shall be competent to levy and collect, at such rates as may be prescribed by the Authority by regulations from time to time.

(i) air route navigation charges.

(ii) embarkation charges to be paid by the passengers travelling by air ;

(iii) fees paid by individuals in respect of issue and renewal of licences and any examinationprescribed by the Authority ;

(iv) fees and charges in respect of commercial exploitation of the Authority's properties,including land and aircraft ; and

(v) landing and housing charges.

(4) The Civil Aviation Authority Fund shall be kept in [1][any of the banks nationalized under the Banks (Nationalization) Act, 1974 (XIX of 1974)].

17. Maintenance of accounts. The accounts of the Authority shall be maintained in such form and manner as the Federal Government may determine in consultation with the Auditor-General of Pakistan.

18. Audit.— (1) The accounts of the Authority shall be audited every year by the Auditor-General of Pakistan [2]* * *.

(2) Copies of the audit report shall be sent to the Authority and the Authority shall forward the report alongwith its comments to the Federal Government.

(3) The audit report shall be available for public inspection.

(4) The Federal Government may issue directions to the Authority for the rectification of matters objected to by the Auditor-General and the Authority shall comply with every such direction.

(5) The Authority may, in addition to the audit under sub-section (1), cause to be carried out internal audit of its accounts.

19. Authority to be deemed to be a local Authority. The Authority shall be deemed to be a local authority for the purpose of borrowing money under the Local Authorities Loans Act, 1914 (IX of 1914), and the making and execution of any scheme under this Ordinance shall be deemed to be a work which such authority is legally authorised to carry out.

20. Liability of the Federal Government to be limited. The liability of the Federal Governmentto the creditors of the Authority shall be limited to the extent of grants made by it and the loans raised by the Authority with the sanction of the Federal Government.

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21. Submission of yearly report, returns, etc.—(1) The Authority shall submit to the Federal Government, as soon as possible after the end of every financial year but before the last day of September next following, a report on the conduct of its affairs for that year.

(2) A copy of the report mentioned in sub-section (1) together with a copy of the audit report referred to in section 18 shall be placed by the Federal Government before the National Assembly.

(3) The Public Accounts Committee shall scrutinise and examine the reports referred to in sub- section (2) in the same manner, and perform the same functions and exercise the same powersin respect thereof, as is or are required by it to be examined, performed and exercised in respect of appropriation accounts of the Federal Government and the report of the Auditor-General of Pakistan thereon.

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[1]Subs. by the Pakistan Civil Aviation Authority (Amdt.) Ordinance, 1984 (14 of 1984), s. 2, for certain words.

[2]The words in such manner as may be specified by the Federal Government" omitted by the Pakistan Civil A viation (Amdt.) Ordinance, 1983 (12 of 1983), s.

(4) The Federal Government may require the Authority to supply any return, statement estimate, statistics or other information regarding any matter under the control of the Authority or a copy of any document in the charge of the Authority; and the Authority shall comply with every such requisition.

22. Exemption from taxes. Notwithstanding anything contained in the Wealth Tax Act, 1963 (XVI of 1963), the Income-tax Ordinance, 1979 (XXXI of 1979), or any other law for the time being in force relating to income-tax, super-tax, wealth-tax or gift-tax, the Authority shall not be liable to pay and be exempt from paying any such taxes as aforesaid on its incomes, profits or gains for a period of five years beginning from the date of its establishment.

23. Ordinance XXIII of 1969 not to apply to Authority. The Industrial Relations Ordinance, 1969 (XXIII of 1969), shall not apply to or in relation to the Authority or any person in the service ofthe Authority.

24. Indemnity. No suit, prosecution or other legal proceedings shall lie against the Authority, the Director-General, or any member, officer, servant, expert or consultant of the Authority in respect of anything, done or intended to be done in good faith under this Ordinance.

25. Certain existing arrangements to continue. All contracts and working arrangement made and all liabilities incurred by the Federal Government in connection with, or for the purpose of, the Department, before the establishment of the Authority, shall be deemed to have been made or incurred by the Authority and have effect accordingly.

26. Power of Federal Government to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

27. Power of the Authority to make regulations. The Authority may make regulations, not inconsistent with this Ordinance and the rules made thereunder, to provide for all matters for which provision is necessary or expedient for carrying out the purposes of this Ordinance.

28. Winding-up of the Authority. No provision of any law relating to the winding-up of bodies corporate shall apply to the Authority and the Authority shall not be wound up except by order of the Federal Government and in such manner as the Federal Government may direct.

29. Removal of difficulties. If any difficulty arises in giving effect to any of the provision of this Ordinance, the President may make such order, not inconsistent with the provisions of this Ordinance, as may appear to him to be necessary for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of one year from the coming intoforce of this Ordinance.

THE PAKISTAN COAST GUARDS ACT, 1973

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THE PAKISTAN COAST GUARDS ACT, 1973

ACT NO. XVIII OF 1973

[4th February, 1973]

An Act to provide for the constitution and regulation of the Pakistan Coast Guards.

WHEREAS it is expedient to provide for the constitution and regulation of the Pakistan Coast Guards and for special measures to effectively check smuggling of any kind across the frontiers of Pakistan in the coastal area of the Arabian Sea and also to deal with persons acting in a manner prejudicial to the defence and security of Pakistan in that area ;

It is hereby enacted as follows :—

CHAPTER I
PRELIMINARY

1. Short title, application and commencement.—(1) This Act may be called the Pakistan Coast Guards Act, 1973.

(2) It shall apply to all members of the Pakistan Coast Guards wherever they may be serving.

(3) It shall come into force at once.

2. Interpretation.—In this Act, unless there is anything repugnant in the subject or context,—

(i) " Coastal area " means the area specified in the First Schedule;

(ii) " Commandant " means a person appointed under section 4 to be a Commandant of a Unit of the Force ;

(iii) " Custody " means the arrest and confinement of a person as prescribed ;

(iv) " Deputy Director General " means the Deputy Director General, Pakistan Coast Guards, appointed under section 4 ;

(V) " Director General " means the Director General, Pakistan Coast Guards, appointed under section 4 ;

(vi) " Force " means the Pakistan Coast Guards constituted under section 3 or any of the individual forces comprising it, as the context may require ;

(vii) " Junior Commissioned Officer " means a person commissioned, gazetted or in pay as a Junior Commissioned Officer in the Force ;

(viii) " Member of the Force " means a person, other than a person appointed under section 4, who is appointed to the Force and has signed a recruiting roll set out in the Second Schedule and the affirmation in the form set out in the Third Schedule ;

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(ix) " Officer " means a person, other than a junior commissioned officer, who is commissioned, gazetted or in pay as an officer of any of the Defence Services of Pakistan or of the Force ;

(x) " Prescribed " means prescribed by rules made under this Act; and

(xi) " Superior Officer ", in relation to any member of the force, means a higher appointment, or any non-commissioned officer, junior commissioned officer and an officer of a higher class, a higher grade in the same class, or holding a higher appointment which may place him in a superior position in relation to others according to usage of the Force.

3. Powers to constitute and maintain the force and its functions.—The Federal Government may constitute and maintain a Force to be called the Pakistan Coast Guards for performing the following functions, namely :—

(a) prevention of smuggling ;

(b) prevention of illegal immigration to and migration from the country ;

(c) stopping enemy agents or saboteurs from infiltrating into the country along the coastal areas ; and

(d) supplementing defence in war.

4. Appointment of officers of Force.—The Federal Government may, by notification in the official Gazette, appoint any member of any of the Defence Services of Pakistan to be—

(a) Director General ;

(b) Deputy Director General ;

(c) Commandant ; and

(d) any other Commissioned Officer of any of the Defence Services of Pakistan with any other designation.

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5. Appointment of subordinate and ministerial staff.—(1) The Director General or a person authorised by the Federal Government in this behalf may appoint junior commissioned officers, subordinate and ministerial staff and other members of the Force and determine the duties to be performed by such officers, staff and other members.

(2) Appointments under sub-section (1) shall be made by direct recruitment or promotion or from personnel on deputation from any of the Defence Services of Pakistan, the Civil Armed Forces, or any other Department of Government in such manner as may be prescribed.

Explanation.—In this sub-section, " Civil Armed Forces " means such forces as the Federal Government may, by notification in the official Gazette, specify.

(3) Before a person is appointed under sub-section (1), the statement contained in the recruiting roll and affirmation set out respectively in the second and third Schedule shall, in the

presence of a Commandant, or other officer appointed under section 4, at any convenient place be read out and, if necessary, explained to him who shall, in acknowledgement of the statement having been so read tut to him, put his signature to it.

(4) When the affirmation set out in the Third Schedule is read out, it shall be repeated by the person making affirmation before he signs it.

6. Superintendence, command, control and administration of the Force.—Subject to the superintendence and control of the Federal Government, the Force shall be commanded and administered by the Director General in accordance with the provisions of this Act and the rules made thereunder and such orders and instructions as may be made or issued by the Federal Government from time to time.

7. Pay, pension, etc., of officers and members.—The officer and members of the Force shall receive such pay, pension and other remuneration, and shall enjoy such leave and other privileges as may be prescribed from time to time.

8. Members to be subject to Pakistan Army Act, 1952.—(1) Every officer and member of the Force shall, unless he is already so subject, be subject to the Pakistan Army Act, 1952 (*XXXIX of 1952*), hereinafter referred to as the Act, as officers, junior commissioned officers and persons enrolled under the Act according as they are respectively officers, junior commissioned officers and other members of the Force.

(2) The Director General shall, in respect of all officers and members of the Force, have all the powers conferred by or under the Act on an officer empowered to convene a general court martial.

(3) Subject to sub-section (2), the Federal Government may, by general or special order, direct by what authority any jurisdiction, powers or duties incidental to the operation of the provisions of the Act shall be exercised or performed in respect of the Force.

9. Consequence of sentence of imprisonment.—A member of the Force who is sentenced to a term of imprisonment for a term which is not less than ninety days shall be deemed to have been dismissed from the Force.

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10. Suspension.—Any officer or junior commissioned officer shall be competent to suspend in the prescribed manner a member of the Force working under him for any mis-conduct, remissness or negligence in the discharge of his duties.

11. Place of imprisonment.—If a member of the Force sentenced under the Act to imprisonment for a term not exceeding one month is also dismissed from service, he shall be imprisoned in the nearest prison or such other prison as the Federal Government may, by general or special order, direct, but if he is not so dismissed, he may be confined in a quarterguard or such other place as the Director General may consider suitable.

12. Capture of deserters.—(1) Whenever any person subject to this Act deserts, his Commandant shall give written information of the desertion to such civil authorities as in his opinion may be able to afford assistance towards the capture of the deserter and such authorities shall thereupon take steps for the apprehension of the said deserter in like manner as if he were a person

for whose apprehension a warrant had been issued by a Magistrate, and shall deliver the deserter, when apprehended, into the custody of the Force.

(2) Any police officer may arrest without warrant any person whom he reasonably believes to be subject to this Act and a deserter or absentee without leave and bring him without delay before the nearest Magistrate, to be dealt with according to law.

13. Appeal and revision.—(1) In all cases decided by the Deputy Director General, of the Commandant or any other officer, a person aggrieved may, within thirty days of the order, appeal to the officer higher than the one awarding the punishment.

(2) A person aggrieved by an order of the Director General awarding any punishment may, within thirty days of the order, apply to the Federal Government for a revision.

CHAPTER II

14. Powers of the officers of the Force.—(1) The officers and members of the Force shall perform such functions of officers of customs as may be entrusted to them and exercise such powers under the Customs Act, 1969 (*IV of 1969*), as may be delegated to them under section 6 of that Act for the purposes of prevention of smuggling along the coastal areas of the Provinces of Sind and Baluchistan, excepting the limits of the various ports in those areas.

(2) In addition to the powers conferred under sub-section (1), the officers and junior commissioned officers of the Force shall exercise all the powers conferred on the officer in charge of a police station under the Police Act, 1861 (*V of 1861*), and under the Code of Criminal Procedure, 1898 (Act *V of 1898*).

15. Disposal of goods seized by members of the Force.—All goods seized by any officer or member of the Force shall be dealt with in accordance with the provisions of section 169 of the Customs Act, 1969 (*IV of 1969*), and an officer nominated by the Director General, shall be associated at the time of their final disposal by an appropriate Customs authority under that Act.

CHAPTER III

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16. Placing of Force under command of Chief of Staff, Pakistan Army.—(1) The Federal Government may at any time, by order in writing, place the entire Force or any part of it under the command of the Chief of Staff of the Pakistan Army for employment within the overall operational plan of the Pakistan Army.

(2) Notwithstanding an order under sub-section (1), the Force shall continue to be subject to the provisions of this Act.

17. Indemnity.—No suit, prosecution or other legal proceeding shall lie against any person for anything which is in good faith done or intended to be done under this Act or any rules or regulations made thereunder.

18. Power to make rules and regulations.—(1) The Federal Government may, by notification in the official Gazette, make rules—

(a) regulating the functions and powers of persons appointed under section 4;

(b) regulating the classes and grades of, and the remuneration to be paid to, officers and members of the Force and their conditions of service; and

(c) generally for the purpose of carrying into effect the provisions of this Act.

(2) The Director General may, by notification in the official Gazette published with the prior approval in writing of the Federal Government, make regulations consistent with this Act and the rules for carrying out the purposes of this Act.

19. [1]**[Omitted]**

FIRST SCHEDULE
[*See* section 2 (i)]

Southern strip of the Province of Baluchistan along and astride the existing road emanating from the Pak-Iran border connecting the towns of MAN-TURBAT—HOSHAB—BAZDAR—BELA—UTHAL to HUB RIVER (BUNDMURAD) and also the southern area of the Province of Sind along and astride the line and road from HUB RIVER (BUNDMURAD)—GADAP—SARI SING—THANO BULAKHAN—BANO—MIRPUR BATARO—JATTI to the Arabian Sea but excluding the limits of any port in those areas.

SECOND SCHEDULE
[*See* section 2 (viii)]

(*RECRUITING ROLL*)

After you have served in the Pakistan Coast Guards for such period as has been fixed under the Pakistan Coast Guards Act, 1973, you may at any time when not on active duty, apply for your discharge through the officer to whom you may be subordinate, to the Commandant, and you will be granted your discharge after three months from the date of your application, unless your discharge would cause the vacancies in that unit of the Coast Guards to exceed one tenth of the sanctioned strength, in which case you shall be bound to remain until this objection is waived or removed. But when on active duty, you shall have no claim to a discharge, and you shall be bound to remain to do your duty until the necessity for retaining you in the Coast Guards ceases, when you may make your application in the manner mentioned above.

SIGNED in acknowledgement of the above having been read out to me. I have understood the purport of what has been read out.

Person Enrolled.

Date…….....

SIGNED in my presence after I had ascertained that the recruit understood the purport of what he signed.

Commandant or other Enrolling Officer.

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), s. 3 and Sch., II.

THIRD SCHEDULE
[*See* section 2 (viii)]

(*FORM OF AFFIRMATION*)

I,....., solemnly affirm in the presence of Almighty God that I will be faithful and bear true allegiance to the Government of Pakistan and that I will, as in duty bound, honestly and faithfully serve in the Pakistan Coast Guards and go wherever I may be ordered by air, land or sea, and that I will observe and obey all commands of any officer set over me even to the peril of my life.

SIGNED in acknowledgement of the above having been read.

SIGNED in my presence after I had ascertained that the person understood the purport of what he signed.

Commandant or other Enrolling Officer.

Roman Urdu Translation of Affirmation

"Main.....Khuda-i-Taala ko hazir-o-nazir jankar Khulus ke sath iqrar karta hun kih Pakistan ki Hukumat ka sidq-i-dil se wafadar aur itaatguzar rahunga aur apna farz samjhunga kih Pakistan Coast Guards men imandari aur wafadari ke sath khidmat baja laun. Bharti hone ki sharait ke mutabiq khushki, hava ya samundar ke raste jahan bhi jane ka hukam milega jaunga aur jise mera afsar muqarrar kia jaega uske tamam ahkam ki tamil aur itaat karunga, khuwah us men mujhe jan ka khatra kiun na ho".

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RGN Date: 08-10-2024

THE PAKISTAN COLLEGE OF PHYSICIANS AND SURGEONS ORDINANCE, 1962

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THE PAKISTAN COLLEGE OF PHYSICIANS AND SURGEONS ORDINANCE, 1962

ORDINANCE NO. XX OF 1962

[19th May, 1962]

An Ordinance to establish a College of Physicians and Surgeons in Pakistan.

WHEREAS it is expedient to establish a College of Physicians and Surgeons in Pakistan for maintaining high principles of medical profession, promoting specialists medical practice, arranging post-graduate medical training, and for matters ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance: —

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan College of Physicians and Surgeons Ordinance, 1962.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Ordinance, unless there is anything repugnant in the subject or context, —

(a) "College" means the Pakistan College of Physicians and Surgeons established under section 3;

(b) "Council" means the Council of the College constituted under section 6;

(c) "Fellow" means a Fellow of the College;

(d) "prescribed" means prescribed by rules made under section 19.

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3. Establishment of the College.—(1) As soon as may be after the commencement of this Ordinance, there shall be established a College, to be called the Pakistan College of Physicians and Surgeons.

(2) The College shall be a body corporate, having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both movable and immovable, and shall, by the said name, sue and be sued.

4. Fellows of the College.—The College shall consist of the following persons who shall be called the Fellows of the College, namely: —

(a) persons, who have post-graduate medical qualifications with experience in teaching, research or public health administration, or who have attained eminence in any branch of medical science or public health administration, to be appointed as Fellows by the [1][Federal Government] when the College is first established under section 3;

[1]Subs. by F.A.O., 1975, Art. 2 and Table.

(b) persons elected as Fellows under clause (g) of sub-section (2) of section 9; and

(c) persons who have passed the Fellowship examination and are admitted as Fellows by the Council.

5. Functions of the College.—The following shall be the functions of the College, namely: —

(1) to promote specialist practice of medicine, surgery, gynaecology and obstetrics and such other specialities by securing improvement of teaching and training in hospitals and hospital methods;

(2) to arrange post-graduate medical, surgical and other specialists training;

(3) to hold and conduct examinations for grant of diplomas and admission to the Fellowship of the College;

(4) to provide for research;

(5) to bring together the physicians, surgeons and other specialists of Pakistan periodically for scientific discussions and practical demonstrations of various subjects; and

(6) to do all acts and things as it may consider necessary to carry out the purposes of this Ordinance.

6. The Council.—(1) There shall be constituted a Council of the College consisting of twenty members elected, in the prescribed manner, by the Fellows from amongst themselves:

Provided that the first Council shall consist of twenty members appointed from amongst the Fellows as follows: —

(a) eight members appointed by the [1][Federal Government];

(b) six members appointed by the Government of East Pakistan; and

(c) six members appointed by the Government of West Pakistan.

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(2) A member of the Council shall, subject to his continuance as a Fellow, hold office for a period of four years and shall be eligible for a re-election and in the case of the first members, for election.

(3) A casual vacancy in the office of the members of the Council shall be filled by appointment or election according as the member whose vacancy is being filled was appointed or elected and the person so appointed or elected shall hold office for the unexpired period of the term of his predecessor.

7. Election of Office-bearers.—(1) The members of the Council shall elect, in the prescribed manner, from amongst themselves a President, two Vice-Presidents and a Treasurer:

Provided that the first President shall be appointed by the [1][Federal Government] from amongst the members of the Council.

[1]Subs. by F.A.O., 1975, Art. 2 and Table.

(2) The President, Vice-President and the Treasurer shall hold office for a period of one year but each shall continue in office after the expiry of his term until his successor is elected and shall be eligible for re-election and in the case of the first President, for election.

(3) Any dispute relating to the election under sub-section (1) shall be referred to the [1][Federal Government] whose decision thereon shall be final.

8. Secretary.—(1) The Council shall appoint a Secretary on such terms and conditions as it may think fit.

(2) The Secretary may attend and take part in the proceedings of the Council but shall not be entitled to vote.

9. Powers of the Council.—(1) The general direction and administration of the affairs of the College shall vest in the Council which may exercise all such powers and do all such acts and things as may be exercised or done by the College.

(2) In particular and without prejudice to the generality of the foregoing power, the Council may—

(a) lay down the powers and functions of the officers of the College;

(b) hold examinations for the grant of Diplomas and admission to Fellowship of the College;

(c) appoint Boards of Examiners to conduct examination in different subjects;

(d) appoint Committees of the Council and lay down the powers and functions of such Committees;

(e) appoint auditors and other officers and employees of the College;

(f) admit as Fellows the persons who have passed Fellowship examination and signed the prescribed pledge;

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(g) elect as Fellows, in the prescribed manner, from amongst the distinguished medical graduates of not less than twenty years standing subject to the rules:

Provided that, except during the first two years, not more than two persons shall be elected as Fellows, in any one year;

(h) admit, subject to rules made in this behalf, distinguished persons as honorary Fellows of the College:

Provided that no physician or surgeon practising in Pakistan shall be admitted as an honorary Fellow;

(i) lay down fees, subscription and other charges for Fellowship, admission to examination and for such other matter as it may think fit; and

(j) do all such acts and things as may be necessary for the performance of the functions of the College.

10. Expulsion of Fellows.—(1) Where the Council is of the opinion that a Fellow is guilty of misconduct or of any conduct derogatory to the dignity of a Fellow and the interest of the College requires his expulsion from the Fellowship of the College, the Council may expel such Fellow by a resolution at a meeting specially called for the purpose passed by not less than two-thirds of the total number of members of the Council.

(2) The Council may also expel a Fellow for any other reason by a resolution at a meeting called for the purpose passed unanimously by all the members of the Council.

(3) The notice of every meeting called under sub-section (1) or sub-section (2) shall be given to the Fellow who is proposed to be expelled together with a statement of charges against him and every such Fellow shall be entitled to submit an explanation of his conduct in writing and also to attend the meeting of the Council and show cause against his expulsion.

11. The Executive Committee.—(1) There shall be an Executive Committee of the Council consisting of the President, the Vice-President, the Treasurer, the Secretary and two members elected by the members of the Council from amongst themselves.

(2) The Executive Committee shall exercise and perform such powers and functions of the Council in the management and conduct of the affairs of the College as may be entrusted to it by resolution of the Council or as the President may, in the case of emergency, require the Executive Committee to exercise and perform.

12. Funds.—(1) All receipts of the College from any source whatever shall constitute the College Fund which shall be applied, subject to any rules made in this behalf, by the Council to meet all expenditure for the administration and management of the affairs of the College.

(2) The Council shall make disbursment of College Funds by cheques signed by the Treasurer and the Secretary or by one member of the Executive Committee and the Secretary or by any two members of the Executive Committee.

13. Common Seal.—The common seal of the College shall be deposited at the office of the Council and shall not be used except by the authority of the Executive Committee and in the presence of two members of the Executive Committee and the Secretary each of whom shall append his signature to the documents on which the common seal is affixed.

14. Accounts and audit.—The Council shall maintain in the prescribed manner the accounts of all receipt and expenditure of the College and such account shall be audited annually by such auditors as may be appointed by it in this behalf.

15. Budget and Annual Report.—(1) The Council shall, before the close of every financial year, prepare an annual report of the working of the Council and a statement of the estimate of the receipts and expenditure of the College for the next succeeding financial year, and present at the Annual Meeting of the College the report and the statement which may be discussed at the meeting.

(2) After the close of the Annual Meeting of the College, the Council shall approve the estimate of receipts and expenditure, with or without modification.

16. Meeting of the College.—(1) The Council shall, before the close of every financial year, call at such time and place as it may think fit the annual meeting of the College—

(a) to receive and consider the annual report presented by the Council;

(b) to receive and discuss the statement of the estimate of receipt and expenditure of the College for the next succeeding financial year; and

(c) to transact such other business as the Council and the Fellows may think fit.

(2) The Council may also from time to time call general meetings of the Fellows for the purposes of providing information or for discussion of matters concerning the welfare of the College and the Fellows and such other matters within the scope of the objects of the College as the Council may think fit to present at such general meeting.

17. The President, etc., of the Council to be public servant.—The President and other members of the Council, and every officer and servant of the College acting or purporting to act under this Ordinance, shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

18. Bar to suits, etc.—No suit, prosecution of other legal proceedings shall lie against the College, Council or any person for anything which is in good faith done or intended to be done under this Ordinance.

19. Power to make rules.—The Council may make rules for carrying out the purposes of this Ordinance.

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THE PAKISTAN COMMISSIONS OF INQUIRY ACT, 1956

CONTENTS

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11. Act to apply to other inquiring authorities in certain cases.
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*[THE PAKISTAN COMMISSIONS OF INQUIRY ACT, 1956

[1]ACT NO. VI OF 1956

[11th *April*, 1956]

An Act to provide for the appointment of Commissions of Inquiry and for vesting such Commissions with certain powers.

WHEREAS it is expedient to provide for the appointment of Commissions of Inquiry and for vesting such Commissions with certain powers ;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Commissions of Inquiry Act, 1956.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Commission" means a Commission of Inquiry appointed or deemed to have been appointed under section 3 ; and

(b) " prescribed" means prescribed by rules made under section 12.

3. Appointment of Commission.—(1) The [2][Federal Government] may, if it is of opinion that it is necessary so to do, by notification[3] in the official Gazette, appoint a Commission of Inquiry for the purpose of making an inquiry into any definite matter of public importance and performing such functions and within such time as may be specified in the notification, and the Commission so appointed shall make the inquiry and perform the functions accordingly.

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[1] For Statement of Objects and Reasons, see Gaz. of P., dated the 4th April, 1956, Ext., p. 537.

The provisions of sections 2, 4,5,8,9,10 and 12 of this Act have been applied to Committee set up by Order no. 1/7/59-SB, dated the 15th May, 1959 (Gaz. of P., 1959, Ext., pp. 795-796), see Gaz. of P., 1959, Ext., p. 832.

[2] Subs. by the Pakistan Commissions of Inquiry (Amdt.) Act, 1975 (24 of 1975), s. 2. for "Central Government".

[3] For such notifn., see Gaz. of P., 1956, Ext., p. 1995.

*Rep. by IX of 2017, s. 19(1), Act shall continue in force for purposes of clause (3) of Article 155 of the Constitution of the Islamic Republic of Pakistan.

(2) The Commission may consist of one or more members appointed by the [1][Federal Government], and where the Commission consists of more than one member, one of them may be appointed as the President thereof.

4. Powers of Commission. The Commission shall have the powers of a Civil Court, while trying a suit under the Code of Civil Procedure, 1908, in respect of the following matters, namely :—

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any documents ;

(c) receiving evidence on affidavits ;

(d) issuing commissions for the examination of witnesses or documents.

5. Additional powers of Commission.—(1) Where the [1][Federal Government] is of opinion that, having regard to the nature of the inquiry to be made and other circumstances of the case, all or any of the provisions of sub-section (2) or sub-section (3) or sub-section (4) [2][or sub-section (4A)] or sub-section (5) or sub-section (6) should be made applicable to a Commission, the [1][Federal Government] may, by notification in the official Gazette, direct that all or such of the said provisions as may be specified in the notification shall apply to that Commission and on the issue of such a notification, the said provisions shall apply accordingly.

(2) The Commission shall have power to require any person, subject to any privilege which may be claimed by that person under any law for the time being in force, to furnish information on such points or matters as, in the opinion of the Commission, may be useful for, or relevant to, the subject matter of the inquiry.

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[1] Subs. by the Pakistan Commissions of Inquiry (Amdt.) Act, 1975 (24 of 1975), s. 2, for "Central Government".
[2] Ins. ibid., s. 3.

(3) The President or any officer, not below the rank of a gazetted officer, specially authorised in this behalf by the President may enter any building or place where the Commission has reason to believe that any books of account or other documents relating to the subject matter of the inquiry may be found, and may seize any such books of account or documents or take extracts or copies therefrom, subject to the provisions of section 102 and section 103 of the Code of Criminal Procedure, 1898 (Act V of 1898), in so far as they may be applicable.

(4) The Commission shall be deemed to be a Civil Court and when any offence as is described in section 175, section 178, section 179, section 180 or section 228 of the Pakistan Penal Code (XLV of 1860), is committed in the view or presence of the Commission, the Commission may, after recording the facts constituting the offence and the statement of the accused as provided for in the Code of Criminal Procedure, 1898 (Act V of 1998), forward the case to a magistrate having jurisdiction to try the same and the magistrate to whom any such case is forwarded shall proceed to hear the complaint against the accused as if the case had been forwarded to him under section 482 of the Code of Criminal Procedure, 1898.

[1][4A. Where a Commission consists of, or the President thereof is Judge of the Supreme Court or a High Court, the Commission shall have the same power as the High Court has to punish any person who ——

(a) abuses, interfers with or obstructs the process of the Commission in any way or disobeys any order of the Commission ;

(b) Scandalizes the Commission or otherwise does anything which tends to bring the Commission or a member of the Commission in relation to his office into hatred, ridicule or contempt ;

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[1] Ins. by the Pakistan Commissions of Inquiry (Amdt.) Act 1975, (24 of 1975), s. 3.

(c) does anything which tends to prejudice the determination of a matter pending before the Commission ; or

(d) does any other thing which, by any other law, constitutes contempt of court;

Provided that fair comment made in good faith and in the Public interest on the working of the Commission or on its final report after the completion of the enquiry shall not constitute contempt of the Commission.

(4B) The exercise of the power conferred on a Commission by sub-section (4A) shall be regulated by rules made by the Supreme Court.]

(5) Any proceeding before the Commission shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (XLV of 1860).

(6) The Commission shall have the powers of a civil court, while trying a suit under the Code of Civil Procedure, 1908 (V of 1908), in respect of requisitioning any public record or copy thereof from any court or office.

6. Statements made by persons to the Commission. No statement made by a person in the course of giving evidence before the Commission shall subject him to, or be used against him in, any civil or criminal proceeding except a prosecution for giving false evidence by such statement :

Provided that the statement—

(a) is made in reply to a question which he is required by the Commission to answer; or

(b) is relevant to the subject matter of inquiry.

7. Commission to cease to exist when to notified. The 1[Federal Government] may, if it is of opinion that the continued existence of a Commission is unnecessary, by notification in the official Gazette,

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[1] Subs. by the Pakistan Commissions of Inquiry (Amdt.) Act, 1975 (24 of 1975), s. 2, for "Central Government".

declare that the Commission shall case to exist from such date as may be specified in this behalf in such notification, and thereupon, the Commission shall cease to exist.

8. Procedure to be followed by the Commission. The Commission shall subject to any rules that may be made in this behalf, have power to regulate it's own procedure (including the fixing of places and times of its sittings and deciding whether to sit in public or in private) and may act notwithstanding the temporary absence of any member or the existence of a vacancy among its members.

9. Protection of action taken in good faith. No suit or other legal proceedings shall lie against the [1][Federal Government], the Commission or any member thereof, or any person acting under the direction either of the [1][Federal Government] or of the Commission in respect of anything which is in good faith done or intended to be done in pursuance of this Act or of any rules or orders made thereunder or in respect of the publication, by or under the authority of the [1][Federal Government] or the Commission, of any report, paper or proceedings.

10. Members, etc., to be public servants. Every member of the Commission and every officer appointed or authorised by the Commission to exercise functions under this Act shall be deemed to be a public servant within the meaning of section 21 of the Pakistan Penal Code (XLV of 1860).

[2][10A.—(1) The [1][Federal Government] may, by notification in the official Gazette and subject to such conditions or restriction, if any, as may be mentioned in the notification, confer upon the Commission the power to order a police investigation into any matter coming before it.

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[1] Subs. by the Pakistan Commissions of Inquiry (Amdt.) Act, 1975 (24 of 1975), s. 2,for "Central Government".

[2] Section 10A ins. by the Pakistan Commissions of Inquiry (Amdt.) Ordinance, 1959 (38 of 1959), s. 2.

(2) In conducting an investigation ordered under sub-section (1) the police shall exercise the powers conferred on the police in respect of a cognizable case by Chapter XIV of the Code of Criminal Procedure, 1898.]

11. Act to apply to other inquiring authorities in certain cases. Where any authority (by whatever name called), other than a Commission appointed under section 3, has been or is set up under any resolution or order of the [1][Federal Government] for the purpose of making an inquiry into any definite matter of public importance and the [1][Federal Government] is of opinion that all or any of the provisions of this Act should be made applicable to that authority, the [1][Federal Government] may, by notification in the official Gazette, direct that the said provisions of this Act shall apply to that authority, and on the issue of such notification, that authority shall be deemed to be a Commission appointed under section 3 for the purpose of this Act.

12. Power to make rules. The [1][Federal Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

13. [*Repeal of Ordinance XXIV of 1955.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and II Sch.*]

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[1] Subs. by the Pakistan Commissions of Inquiry (Amdt.) Act, 1975 (24 of 1975), s, 2 for "Central Government".

THE PAKISTAN COUNCIL OF ARCHITECTS AND TOWN PLANNER ORDINANCE, 1983

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THE PAKISTAN COUNCIL OF ARCHITECTS AND TOWN PLANNERS ORDINANCE, 1983

ORDINANCE No. IX OF 1983

[*7th Mach, 1983*]

An Ordinance to make provisions for the regulation of architectural and town planning professions.

WHEREAS it is expedient to make provision for the regulation of the architectural and town planning professions and for that purpose to constitute a Council of Architects and Town Planners;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following ordinance:—

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan Council of Architects and Town Planners Ordinance, 1983.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "architect" means a person who holds any of the architectural qualifications specified in the First Schedule or the Second Schedule and is registered as an architect with the Council;

(b) "architectural and town planning public organisation" means a Department of the Federal Government or a Provincial Government, a public corporation, autonomous or semi-autonomous body, cantonment board, municipality improvement trust or other local authority;

(c) "bye-law" means bye-laws made under this Ordinance;

(d) "Chairman" means Chairman of the Council;

(e) "Council" means the Pakistan Council of Architects and Town Planners constituted under section 3;

(f) "Executive Committee" means the Executive Committee of the Council;

(g) "institution" means an institution within or without Pakistan which grants degrees or diplomas in architecture or town planning and is recognised as such by the Council;

(h) "member" means a member of the Council and includes the Chairman and Vice-

Chairman;

(i) "prescribed" means prescribed by bye-laws;

(j) "professional architectural work" means the giving of professional advice and opinions, the making of measurement and layouts of buildings, the preparation of feasibility and other report, the production of concept, the originating, designing and planning, and, in association with relevant professionals, producing working drawings and contract documents, specification and bills of quantities, the inspection and supervision of works and issuing of certificates of such buildings and other works for which an architect offers his professional services;

(k) "professional town planning work" means the giving of professional advice and opinions in the field of urban and regional planning, the carrying out of physical and socio- economic surveys, the preparation of feasibility reports, layout plans, and development plans, and, in association with relevant professionals, carrying out inspection and supervision of works and issue of certificates of such schemes and works for which a town planner offers his professional services;

(l) "Register" means a Register maintained under section 16;

(m) "Registrar" means the Registrar of the Council;

(n) "town planner" a person who holds any of the town planning qualifications specified in the First Schedule or the Second Schedule and is registered as a town planner with the Council;

(o) "University" means a University established by law in Pakistan having an architectural or town planning faculty or department; and

(p) "Vice Chairman" means Vice Chairman of the Council

3. Constitution and incorporation of the Pakistan Council of Architects and Town Planners. (1) There shall be constituted in accordance with the provisions of this Ordinance a Council to be known as the Pakistan Council of Architects and Town Planners.

(2) The Council shall be a body corporate having perpetual succession and a common seal, with power, subject to the provisions of this Ordinance, to acquire, hold and dispose of land and property, both movable and immovable, and enter into contract, and shall by the name by which it is known sue and be sued.

(3) The membership of the Council shall be open to the town planners 1[till a separate council of town planners is constituted].

(4) The Council shall be composed of all persons whose names may hereafter be entered in the Register, so long as they continue to have their names borne on the Register.

[1] Subs. by Act No. IX of 1994, s. 2, (w.e.f. 07-03-1993).

(5) Notwithstanding anything contained in sub-section (4), the Council shall, upon its first constitution, be composed of—

(i) a Chairman, being an architect with not less than fifteen years' experience, to be nominated by the Federal Government;

(ii) two Vice-Chairmen, one being an architect and the other being a town planner with not less than fifteen years' experience, to be nominated by the Federal Government;

(iii) ten members, six being architects and four being town planners with not less than five years' experience, to be nominated by the Federal Government; and

(iv) two members, one being architect and one being a town planner, to be nominated by the Federal Government to represent architectural and town planning institutions in Pakistan.

(6) The tenure of the members of the Council upon its first constitution shall be [1][two years].

(7) The seal of the Council shall be authenticated in such manner as may be prescribed, and any document purporting to be sealed with the seal so authenticated shall be receivable as evidence of the particulars stated in the document.

(8) The headquarters of the Council shall be at such place as the Council may decide.

4. Chairman and Vice Chairman. (1) The Council shall have a Chairman who shall be an architect of not less than fifteen years' experience and two Vice Chairmen, one being an architect and the other a town planner of not less than fifteen years' experience, to be elected by the members from amongst themselves in the prescribed manner.

(2) Notwithstanding anything contained in sub-section (1), for a period of [2][two years] from the commencement of this Ordinance, the Chairman and Vice Chairmen shall be the persons nominated by the Federal Government under clauses (i) and (ii) of sub-section (5) of section 3.

(3) The Chairman and Vice Chairmen shall, subject to sub-section (2), hold office for a term of two years.

(4) No person shall be qualified to be elected as, or to be, Chairman or Vice Chairman for more than two consecutive terms.

5. Annual general meeting of the Council. (l) An annual general meeting of the Council shall be held at the headquarters of the Council at such time as may be appointed by the Executive Committee.

[1]Subs. by the Pakistan Council of Architects and Town Planners (Amdt.) Ordinance, 1984 (41 of 1984), s. 2, for "one year".
[2]Subs. *ibid*., s. 3, for "one year".

(2) The following business may be transacted at the annual general meeting, namely:—

(a) presentation of annual report;

(b) presentation of audited accounts;

(c) presentation of annual budget;

(d) appointment of auditors; and

(e) such other business as may be placed before the meeting by the Executive Committee or as the meeting may decide.

6. Extraordinary general meeting of the Council.—(1) An extraordinary general meeting of the Council shall be called by the Chairman at the headquarters of the Council

(a) within fourteen days of the receipt by him of a requisition signed by not less than fifty members and stating the business proposed to be transacted at the meeting; or

(b) at any time, if the holding of such meeting for the consideration of any urgent matter is in his opinion necessary.

(2) At a meeting called in pursuance of clause (a) of sub-section (1), no business other than the business stated in the requisition referred to in that clause shall be transacted.

7. General provisions relating to meetings of the Council.(1) An annual or extraordinary general meeting of the Council shall be held and conducted in accordance with the bye-laws.

(2) To constitute a quorum at an annual or extraordinary general meeting of the Council, the presence of not less than fifty members shall be necessary:

Provided that, in respect of the Council constituted under sub-section (5) of section 3 this sub-section shall have effect as if for the word “fifty” therein the word “five” were substituted.

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(3) All decisions of the Council at an annual or extraordinary general meeting shall be taken by majority of the members present and voting.

8. Function of the Council. The following shall be the function of council, namely:—

(a) maintenance of two Registers, one for persons qualified to practise as architects and the other for persons qualified to practise as town planners, and two lists, one for persons eligible to practise as unregistered architects and the other for persons eligible to practise as unregistered town planners;

(b) recognition of architectural and town planning qualifications for the purpose of registration of architects and town planners;

(c) removal of names, from the Register and restoration to the Register of names which have been removed;

(d) laying down of standards of conduct for the members;

(e) safeguarding the interests of the members;

(f) assisting the Government and national institutions in identification and solution of national problems relating to architecture and town planning;

(g) promotion of reforms in the architectural and town planning professions;

(h) management of the funds and properties of the Council;

(i) promotion of architectural and town planning education and review of courses of studies in consultation with the Universities and recognised institutions and advising the Government in the matter of architectural and town planning education;

(j) levy and collection of fees from applicants for registration or temporary licences and from members ;

(k) exercise of such disciplinary powers over the members and servants of the Council as may be prescribed;

(l) formation of such committees as may be prescribed;

(m) making recommendation to the Government for recognition of a professional architectural institute and a professional town planning institute to conduct examinations and prepare such other functions as the Council may deem necessary; and

(n) performance of all other functions connected with, or ancillary or incidental to, the aforesaid functions.

9. Executive Committee.—(1) There shall be an Executive Committee of the Council for the management of the affairs of the Council and for performing the functions assigned to the Council by or under this Ordinance.

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(2) The Executive Committee shall be composed of the following persons, namely:

(a) the Chairman and Vice Chairmen of the Council who shall also be the Chairman and Vice- Chairmen respectively of the Executive Committee;

(b) the Registrar;

(c) ten members, six being architects and four being town planners elected respectively by architects and town planners; and

(d) two members, one being an architect and the other a town planner, to be nominated by architectural and town planning institutions in Pakistan.

(3) Notwithstanding anything contained in sub-section (2), for a period of [1][two years] from the commencement of this Ordinance, the Executive Committee shall be composed of the persons nominated by the Federal Government under sub-section (5) of section 3.

(4) The members of the Executive Committee, other than the Registrar, shall, subject to sub-section (3), hold office for a term of two years and shall not hold office for more than two consecutive terms.

(5) No person shall be qualified to be elected as, or to be, a member of the Executive Committee if he does not possess five years' experience and is registered after the thirtieth day of June of the year in which the election is to be held or, as the case may be, nomination is to be made.

(6) The election of members of the Executive Committee under sub-section (2) shall be held so as to conclude not less than fifteen days before the term of the outgoing members is due to expire.

10. Recognition of architectural and town planning qualifications granted by institutions in Pakistan.—(1) The architectural and town planning qualifications granted by the institutions in Pakistan which are included in the First Schedule shall be the recognised qualifications for the purposes of this Ordinance.

(2) Any architectural or town planning institution in Pakistan which grants an architectural or town planning qualification not included in the First Schedule may apply to the Council to have such qualification recognised and the Council may, by notification in the official Gazette, amend the First Schedule so as to include such qualification therein.

11. Recognition of architectural and town planning qualifications granted by institutions abroad.—(1) The architectural and town planning qualifications granted by institutions outside Pakistan which are included in the Second Schedule shall be recognised qualifications for the purposes of this Ordinance.

(2) Any architectural or town planning qualification granted by an institution outside Pakistan not included in the Second Schedule may be recognised by the Council, and Council may, by notification in the official Gazette, amend the Second Schedule so as to include such qualification therein.

12. Grant of temporary licences.—(1) The Executive Committee may grant to any person domiciled outside Pakistan who does not hold any recognised architectural or town planning qualifications but who holds an equivalent diploma or degree in architecture or town planning from an institution recognised by the Council and who is a corporate member of an architectural or town planning body, society, institute or association recognised by the Council, a temporary licence for a specific project to work as an associate of an architect or town planner, who shall sign and seal the plans and specifications for the project.

(2) Any person to whom a temporary license has been granted shall, during the period for which the license is valid, be subject to the provisions of this Ordinance and the bye-laws.

[1] Subs. by the Pakistan Council of Architects and Town Planners (Amdt.) Ordinance, 1984 (41 of 1984), s. 4, for "one year".

13. Power to require information as to courses of study and examination. Every institution in Pakistan which grants a recognised architectural or town planning qualification shall furnish such information as the Council may, from time to time, require as to the courses of study and examination to be undergone in order to obtain such qualification.

14. Inspection of examination.—(1) The Council shall appoint such number of inspectors as it may deem requisite to attend at any or all of the examinations held by the institutions in Pakistan and the recognised professional architectural institutes and the recognised professional town planning institutes for the purpose of granting architectural or town planning qualifications which are recognised architectural and town planning qualifications or in respect of which recognition has been sought.

(2) Inspectors appointed under sub-section (1) shall not interfere with the conduct of any examination but they shall report to the Council on the sufficiency of the examination which they attend and on the courses of study and facilities for teaching provided by the institution in question at different stages in respect of such examination, and on any other matter in regard to which the Council may require them to report.

15. Withdrawal of recognition. When, upon report by an inspector, it appears to the Council that the courses of study and examination to be gone through in any institution in Pakistan in order to obtain a recognised architectural or town planning qualification or the standards of proficiency required from candidates in any examination held for the purpose of granting such qualification are not such as to secure to persons holding such qualification the knowledge and skill requisite for the efficient practice of architecture or town planning, the Council shall forward the report to the institution concerned with an intimation of the period within which it may submit its explanation to the Council.

(2) On receipt of the explanation or, where no explanation is submitted within the specified period, on the expiry of that period, the Council, after making such further inquiry, if any, as it may think fit, may, by notification in the official Gazette, direct that an entry shall be made in the First Schedule against the architectural or, as the case may be, town planning qualification to which the explanation relates declaring that it shall be a recognised architectural or town planning qualification only when granted before a specified date [1][:]

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[2][Provided that, before issuing a direction as aforesaid, the Council shall give the institution concerned an opportunity of being heard.]

16. Maintenance of Register, etc.—(1) The Council shall maintain in the prescribed manner—

(a) two separate Registers in which shall be entered the names and other particulars of persons possessing recognised architectural qualifications or, as the case may be, town planning qualifications whose applications for registration as architects or town planners are from time to time granted by the Council; and

[1] Subs. by the Pakistan Council of Architects and Town Planners (Amdt.) Ordinance, 1984 (41 of 1984), s. 5, for full-stop.
[2] Proviso added *ibid*.

(b) two separate Lists, hereinafter referred to as the Lists, in which shall be entered the names and other particulars of persons not possessing any of the aforesaid qualifications who were licensed as architects or, as the case may be, town planners by any public sector agency before the date appointed under sub-section (1) of section 28 and who are declared by the Executive Committee, after carrying out proper scrutiny by way of examination or otherwise, to be eligible to practise as unregistered architects or unregistered town planners, as the case may be.

(2) Every application for registration under this Ordinance, or for the inclusion of name in either of the Lists, shall be made to the Council in the prescribed form and be accompanied by the prescribed fee.

(3) Every person whose name is entered in a Register or in either of the Lists shall be entitled to receive a certificate of registration or, as the case may be, a certificate of entry of name in the List, under the hand of the Registrar.

(4) A certificate issued under sub-section (3) shall, subject to the provisions of this Ordinance, remain in force until the thirty-first day of December of the year in which it is issued and shall thereafter be renewable annually upon payment of the prescribed fee.

17. Registration.—(1) Every application for registration shall be considered by an Enrolment Committee consisting of the Chairman and Vice-Chairmen and three other members, being architects or town planners of not less than ten years' standing, nominated by the Executive Committee.

(2)The Enrolment Committee may either permit or refuse to permit the registration of any person:

Provided that the Enrolment Committee shall not refuse permission for registration unless-

(a) the applicant has been convicted of any such offence as implies in its opinion defect of character; or

(b) it has reason to believe that the applicant has been guilty of infamous conduct in any professional respect; or

(c) the applicant is unfit to practise on any other ground, including mental ill health.

18. Appeal against refusal to permit registration. Any person aggrieved by an order under sub- section (2) of section 17 refusing to permit the registration of his name in the Register may, within thirty days of the communication of the order, prefer an appeal to the Executive Committee.

(2) Upon the receipt of an appeal under sub-section (1), the Executive Committee may, after holding such inquiry as it may consider necessary and giving the appellant an opportunity of being heard in person or through an advocate, pass such order as it may deem fit.

19. Revision of register.—(1) the registrar shall remove form the register the name of any architect or town planner—

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(a) who has died ; or

(b) who has failed to have his certificate of registration renewed within one year of the date of its expirty ; or

(c) whose name has been directed under sub section (7) of section 22 to be removed from the register.

(2) The Registrar shall restore to the Register the name of any architect or town planner whose name has been removed from the Register under clause (b) of sub-section (1) if such architect or town planner applies for such restoration and pays the prescribed fee.

(3) The Council may, in its discretion, after the expiry of not less than one year following the removal from the Register of the name of any architect or town planner, grant registration to such architect or town planner if he applies for registration.

20. Complaints against architects or town planners.—(1) If at any time a complaint is made to the Council by any person as to the work or conduct of any architect or town planner, the Executive Committee may refer the matter for inquiry and report to an inquiry committee appointed by it.

(2) If, upon the receipt of such report, the Executive Committee considers that a prima facie case for the removal from the Register of the name of the architect or town planner to whom the complaint relates has been established, the Executive Committee may refer the case to a Tribunal.

21. Tribunals of Inquiry.—(1) For holding inquiries into the professional conduct of architects and town planners, the Executive Committee may constitute as many Tribunals of Inquiry as it may consider necessary.

(2) A Tribunal shall consist of three members appointed by the Executive Committee.

(3) The Executive Committee shall appoint one of the members of the Tribunal to be the Chairman thereof.

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22. Procedure in inquiries, etc.—(1) In inquiries relating to the professional conduct of an architect or town planner, the Tribunal shall, except as hereinafter provided, follow such procedure as may be prescribed.

(2) The Tribunal shall fix a date for the hearing of the case and shall cause notice of the day so fixed to be given to the complainant and the architect or town planner concerned, hereafter in this section referred to as the respondent, and shall afford to the complainant and the respondent an opportunity of leading evidence, if any, and of being heard before recommendations are made in the case.

(3) The Chairman of the Tribunal may empower a member of the Tribunal to consider and decide preliminary issues and to record evidence.

(4) On completion of the inquiry, the Tribunal may recommend to Executive Committee—

(a) dismissal of the complaint ; or

(b) imposition of any of the following penalties on the respondent, namely :—

(i) reprimand ;

(ii) removal of name from the Register for a period not exceeding twelve

(iii) months ; removal of name from the Register altogether ; or'

(c) prosecution of the respondent for the offence constituted by his conduct.

(2) The Tribunal may make such recommendation to the Executive Committee as to the cost of the proceedings before it as it may deem fit, and, where the Tribunal is of the opinion that a complaint made against a respondent is false and vexatious, it may, in addition and without prejudice to any other remedy available to the respondent, recommend imposition upon the complainant of costs not exceeding a sum of ten thousand rupees and payment to the respondent of the whole or any part of the costs recovered from the complainant.

(3) In any case in which it has recommended the imposition of any penalty on, or the prosecution of, the respondent, the Tribunal may also recommend that an amount not exceeding twice the amount of the fee received by the respondent from the complainant may be recovered from the respondent and paid to the complainant as compensation.

(4) The Executive Committee shall meet to consider the recommendations of the Tribunal within a period of six weeks from the date of receipt thereof and pass such orders as it may deem fit.

(5) Any order of the Executive Committee as to the costs of the proceedings before the Tribunal or as to the recovery of any amount from a complainant or a respondent shall be executable as if it were a decree of a civil court.

(6) When any architect or town planner is reprimanded under this Ordinance, a record of the punishment shall be entered against his name in the Register.

23. Review.—(1) The Executive Committee may, within thirty days of its order under sub-section (7) of section 22, either of its own motion or on application made to it in that behalf, review and, while so reviewing, modify, reverse or confirm the order.

(2) An order shall not be modified or reversed unless reasonable notice has been given to the parties affected thereby to appear and be heard. .

24. Powers of the Tribunal.—(1) For the purpose of any such inquiry as aforesaid, a Tribunal shall have the same powers as are vested in a Court under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely:—

(a) enforcing the attendance of any person;

(b) compelling the production of documents; and

(c) issuing commissions for the examination of witnesses.

(2) Every such inquiry shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860), and a Tribunal shall be deemed to be a civil court for the purposes of section 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898).

(3) For the purposes of enforcing the attendance of any person or of compelling the production of documents or issuing commissions,—

(a) the jurisdiction of a Tribunal shall extend to the whole of Pakistan; and

(b) a Tribunal may send to any civil court having jurisdiction in the place where the Tribunal is sitting any summons or other process for the attendance of a witness or the production of documents required by the Tribunal, or any commission which it desires to issue, and the civil court shall serve such process or issue such commission, as the case may be, and may enforce any such process as if it were a process for attendance or production before itself.

(4) Proceedings before a Tribunal in any such inquiry shall be deemed to be civil proceedings for the purposes of section 132 of the Evidence Act, 1872 (1 of 1872), and the provisions of that section shall apply accordingly.

25. Fund of the Council, accounts and audit.—(1) All sums received by the Council as fees, grants, donations or subscription shall form part of a fund which shall be managed, administered and utilised in such manner as may be prescribed.

(2) The Executive Committee shall cause to be maintained such books of account and other books in such form and manner as may be prescribed.

(3) The accounts of the Council shall be audited before the thirtieth day of November each year by an auditor appointed by the Council who is a chartered accountant within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961).

26. Bye-laws of the council.— (1) the council may make bye-laws for carrying out the purposes of this ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such bye-laws may provide for all or any of the following matters, namely:—

(a) the summoning and holding of meetings of the Council and Executive Committee, the time and places where such meetings are to be held, the conduct of business and the number of members necessary to constitute a quorum at a meeting of the Executive Committee

(b) the powers and duties of the Chairman and Vice-Chairmen;

(c) the terms of office and powers and duties of the Registrar and other officers and servants of the Council;

(d) the appointment, powers, duties and procedure of inspectors;

(e) the procedure for maintenance and publication of the Register, the fees to be charged under this Ordinance and establishment of sub-offices or branches of the Council;

(f) the management of the property of the Council and the maintenance and audit of its accounts;

(g) the procedure at any inquiry held under section 22; and

(h) any other matter which is to be or may be prescribed.

(3) The first Council shall make the bye-laws within [1][two years] of its assuming office and shall also frame a Code of Professional Conduct for architects and town planners.

(4) The Code of Professional Conduct framed under sub-section (3) may be amended, modified or repealed by the Council.

27. Proof of membership, etc. For the purposes of any action or proceeding under this Ordinance, a certificate of the Registrar certifying under the seal of the Council that, on a specified date, the name of a person was or was not borne on the Register shall be proof of its contents and of the authenticity of his signature, until the contrary is proved.

28. Penalties and procedure.—(1) After such date as the Federal Government may, after consultation with the Council, by notification in the official Gazette, appoint in this behalf, whoever undertakes any professional architectural or town planning work shall, if his name is not for the time being borne on the Register or on either of the Lists, be punishable with fine which may extend to five thousand rupees, and in the case of a continuing offence, with a further fine which may extend to two hundred rupees for every day after the first day during which the offence continues.

(2) Whoever wilfully procures or attempts to procure himself to be registered under this Ordinance as an architect or town planner, or to have his name entered in either of the Lists, by making or producing or causing to be made or produced any false or fraudulent representation or declaration, either orally or in writing, and any person who assists him therein, shall be punishable with fine which may extend to five hundred rupees

(3) Whoever falsely pretends to be registered under this Ordinance or to have his name borne on either of the Lists, or not being registered under this Ordinance or having his name borne on either of the Lists, uses with his name any words or letters representing that he is so registered or his name is so borne, irrespective of whether any person is actually deceived by such pretence or representation or not, shall be punishable with fine which may extend to five hundred rupees.

(4) No person undertaking any professional, architectural or town planning work shall, unless he is registered under this Ordinance or his name is borne on either of the Lists, be entitled to recover before any court or other authority any sum of money for service rendered in such work.

[1] Subs. by the Pakistan Council of Architects and Town Planners (Amdt.) Ordinance, 1984 (41 of 1984), s. 6, for "six months".

(5) No court shall take cognizance of any offence punishable under this Ordinance save on a complaint made by, or under the authority of, the Council.

(6) No court inferior to that of a Magistrate of the first class shall try any offence punishable under this Ordinance.

29. Infringement of Code of Professional Conduct. Any infringement of the Code of Professional Conduct framed under sub-section (3) of section 26 shall make a registered person liable to have his name removed from the Register.

30. Certain provisions to apply to unregistered architects and town planners. The provisions of sections 19, 20, 21, 22, 23 and 24, sub-section (3) of section 26, and sections 27, 28 and 29 shall *mutatis mutandis* apply to unregistered architects and unregistered town planners whose names are borne on the Lists.

31. Power to exempt. The Federal Government may, either on the recommendation of the Council or of its own motion, by notification in the official Gazette, exempt any person or class of persons, or any architectural or town planning works or class of such works, from the operation of the provisions of section 28, subject to such conditions, if any, as may be specified in the notification.

32. Commission of Inquiry.—(1) Whenever it is made to appear to the Federal Government that the Council is not complying with any of the provisions of this Ordinance, the Federal Government may refer the particulars of the complaint to a Commission of inquiry consisting of—

(a) a person who is, or has been, or is qualified to be, a Judge of a High Court, to be appointed by the Federal Government;

(b) an architect or town planner, to be nominated by the Federal Government; and

(c) an architect or town planner, to be nominated by the Council.

(2) The Commission shall proceed to inquire and report to the Federal Government as to the truth of the matters charged in the complaint; and, in case of any charge of default or of improper action being found by the Commission to have been established, the Commission shall recommend remedies, if any, which are in its opinion necessary.

(3) The Federal Government may require the Council to adopt the remedies so recommended within such time as, having regard to the report of the Commission, it may think fit; and, if the Council fails to comply with any requirement, the Federal Government may amend the bye-laws or make such provision or order or take such other steps as it may deem necessary to give effect the recommendations of the Commission.

(4) The Commission shall have power to administer oaths, to enforce the attendance of witnesses and the production of documents, and shall have all such other necessary powers for the purpose of any inquiry conducted by it as are exercised by a Civil Court under the Code of Civil Procedure, 1908 (Act V of 1908).

THE FIRST SCHEDULE

[See sections 2 (a) and (n) and 10]

RECOGNISED ARCHITECTURAL AND TOWN PLANNING QUALIFICATIONS GRANTED BY INSTITUTIONS IN PAKISTAN.

Name of Institution	Recognized Architectural and Town Planning Qualifications
PART I-ARCHITECTURE	
1. University of Engineering and Technology Lahore.	Bachelor of Architecture.
2. Dawood College of Engineering and Technology Karachi.	Bachelor of Architecture.
3. National College of Arts Lahore ..	(1) National Diploma in Architecture (Five-Year Diploma). (2) 3 Year Diploma in Architecture (Discontinued in 1960).
4. Government School of Architecture Karachi.	4-Year Diploma in Architecture (Discontinued in 1974).
PART II-TOWN PLANNING	
University of Engineering and Technology, Lahore.	(1) Master of Science in Town Planning. (2) Bachelor of Science in Town Planning. (3) Bachelor of Science in City and Regional Planning.

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THE SECOND SCHEDULE

[See sections 2(a) and (n) and 11]

RECOGNISED ARCHITECTURAL AND TOWN PLANNING QUALIFICATIONS GRANTED BY INSTITUTIONS OUTSIDE PAKISTAN

Name of Institution	Recognised Architectural and Town Planning Qualifications
1	2
PART I – ARCHITECTURE	
1. Middle East Technical University, Ankara, Turkey.	Bachelor of Architecture.
2. American University at Beirut, Lebanon.	Bachelor of Secience in Architectural Engineering.
3. Bangladesh University of Engineering and Technology, Dacca, Bangladesh.	Bachelor of Architecture.
4. University of Manchester, Manchester, U.K.	Bachelor of Architecture.
5. University of Nottingham, Nottingham, U.K.	Bachelor of Architecture.
6. University of Edinburgh, Edinburgh, U.K.	Diploma in Architecture.
7. Leeds Polytechnic, Leeds, U.K.	Diploma in Architecture.
8. Leicestor Polytechnic, Leicestor, U.K.	Diploma in Architecture.
9. Liverpool Polytechnic, Liverpool, U.K.	Diploma in Architecture.
10. Architectural Association School of Architecture, London, U.K.	Diploma in Architecture.
11. Polytechnic of Central London, London, U.K.	Diploma in Architecture.

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12. Oxford School of Architecture, College of Technology, Oxford, U.K.	Diploma in Architecture.
13. University of Sheffield, Sheffield, U.K.	Diploma in Architecture.
14. Brighton Polytechnic, Brighton, U.K.	Diploma in Architecture.
15. Tasmanian College of Advanced Education, Tasmania, Australia.	Diploma in Architecture.
16. University of Liverpool, Liverpool, U.K.	Bachelor of Architecture.
17. California State Polytechnic College, St. Lours, California, U.S.A.	Bachelor of Architecture.
18. University of Hawaii, Honolulu, Hawaii, U.S.A.	Bachelor of Architecture.
19. University of Houston, Houston, Texas, U.S.A.	Bachelor of Architecture.
20. University of Illinois, Chicago Illinois, U. S. A.	Bachelor of Architecture.
21. University of Illinois, Urbana, Illinois, U. S. A.	Bachelor of Architecture.
22. Illinois Institute of Technology, Chicago, Illinois, U. S. A.	Bachelor of Architecture.
23. Iowa State University, Ames, Iowa, U. S. A.	Bachelor of Arts in Architecture.
24. University of Kentucky, Lexington, Kentucky, U. S. A.	Bachelor of Architecture.
25. Massachusetts Institute of Technology, Cambridge, Massachusetts, U. S. A.	Bachelor of Architecture.
26. University of Michigan, Ann Arbor, Michigan, U. S. A.	Bachelor of Architecture.
27. University of Nebraska, Lincoln, College of Architecture, Nebraska, U. S. A.	Bachelor of Science in Architecture.
28. University of Oregon, Eugene, Oregon, U.S.A.	Bachelor of Architecture.
29. University of Pennsylvania, Philadelphia, Pennsylvania, U. S. A.	Bachelor of Architecture.

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30. Princeton University, Princeton, New Jersey, U. S. A.	Bachelor of Architecture.
31. University of Texas, Austin, Texas, U. S. A.	Bachelor of Architecture.
32. Washington University, St. Louis, Missouri, U. S. A.	Bachelor of Architecture.
33. Yale University, New Haven, Connecticut, U. S. A.	Bachelor of Architecture.
34. University of Texas, Arlington, Texas, U. S. A.	Bachelor of Science in Architecture.
35. New York Institute of Technology, New York, U. S. A.	Bachelor of Science in Architecture.
36. McGill University, Montreal, Canada.	Bachelor of Architecture.
37. University of Calgary, Calgary, Alberta, Canada.	Bachelor of Architecture.
38. J.J. School of Architecture, Bombay, India.	Diploma in Architecture (Diploma Awarded up to 31st December, 1980).
39. Delhi Polytechnic, New Delhi, India.	Diploma in Architecture (Diploma Awarded. up to 31st December, 1980).
40. Government College of Fine Arts, Hyderabad, India.	Diploma in Architecture (Diploma Awarded up to 31st December, 1980).
41. State Board of T echnical Education and Training Hyderabad, India.	Diploma in Architecture (Diploma Awarded up to 31st December, 1980).

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PART II. – TOWN PLANNING	
1. Graduate School of Ekistics. Athens, Technological Institute, Athens, Greece.	Master of Science in Eiskistics.
2. Asian Institute of Technology, Bangkok, Thailand.	Master in Human Settlements Planning.
3. Michigan State University, East Lansing, Michigan, U.S.A.	Master in Urban Planning.
4. University of Hawaii, U.S.A.	Master of Urban and Regional Planning.
5. University of Nottingham, U.K.	Master of Arts in Urban and Regional Planning.
6. University of Liverpool, U.K.	Master in Civil Design.
7. University of Edinburgh, U.K.	M. Phil. in Urban Design and Regional Planning.
8. College of Technology, Oxford, U.K.	Four years Degree Course in Planning Studies.
9. Graduate School of Ekistics, Athens, Technological Institute Athens, Greece.	Diploma in Ekistics (Discontinued in 1962).
10. University of Liverpool, U.K.	Diploma in Town Planning.
11. University of Edinburgh, U.K.	Diploma in Town Planning.
12. Durham University, U.K.	Post-graduate Diploma in Town Planning.
13. College of Technology, Oxford, U.K.	Diploma in Urban Planning.
14. University of New Castle Upon Tyne, Liverpool, U.K.	Post-graduate Diploma in Town Planning.

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THE PAKISTAN COUNCIL OF RESEARCH IN WATER RESOURCES ACT, 2007

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THE PAKISTAN COUNCIL OF RESEARCH IN WATER RESOURCES ACT, 2007

Act No. I OF 2007

[14th April, 2007]

An Act to provide for establishment of the Pakistan Council of Research in Water Resources

WHEREAS it is expedient to provide for establishment of the Pakistan Council of Research in Water Resources to conduct, coordinate and promote research in water resources and for matters connected therewith or ancillary thereto;

It is hereby enacted as follows:—

CHAPTER 1

PRELIMINARY

1. Short title, extent and commencement. (1) This Act may be called the Pakistan Council of Research in Water Resources Act, 2007.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context, —

(a) "Board" means the Board of Governors of the Council;

(b) "Chairman" means the Chairman of the Council;

(c) "Council" means the Pakistan Council of Research in Water Resources;

(d) "Executive Committee" means the Executive Committee of the Council;

(e) "Member" means a member of the Board;

(f) "prescribed" means prescribed by rules;

(g) "President" means the President of the Board;

(h) "regulations" means regulations made under this Act;

(i) "rules" means rules made under this Act;

(j) "Secretary" means Secretary of the Council;

(k) "Technical Advisory Committee" means the Technical Advisory Committee of the Council; and

(l) "water resources" means various fields of hydraulics and hydrology, namely, water supply, irrigation, drainage and reclamation, flood control, inland navigation and related problems prevalent in Pakistan.

3. Establishment of the Council.—(1) As soon as may be after the commencement of this Act, the Pakistan Council of Research in Water Resources shall be * established by the Federal Government in accordance with the provisions of the Act.

(2) The Council shall be a body corporate by the name of the Pakistan Council of Research in Water Resources having perpetual succession and a common seal, with powers, subject to the provisions of this Act, to acquire and hold property and shall by the said name sue and be sued.

(3) The headquarter of the Council shall be at Islamabad.

(4) Until the Council is established under this Act, notwithstanding its dissolution by section 25, it shall continue to function and while so functioning be deemed to be the Council established under this Act.

CHAPTER II

FUNCTIONS OF THE PAKISTAN COUNCIL OF RESEARCH IN WATER RESOURCES

4. Functions of the Pakistan Council of Research in Water Resources. The functions of the Council shall be to—

(a) conduct, organize, coordinate and promote research on all aspects of water resources including irrigation, drainage, reclamation, navigation, drinking water, industrial water, and sewerage management and to set up national research centers wherever necessary;

(b) design, develop and evaluate water conservation technologies for irrigation, drinking and industrial water;

(c) initiate national water quality monitoring programme including urban and rural areas of Pakistan and develop technologies for providing safe drinking water to the public;

(d) conduct and coordinate research on desertification, drought and flood mitigation;

(e) develop and maintain national water resources database for use by the planning, implementing agencies and public; or advise the government and submit policy recommendations regarding water quality, development, management, conservation and utilization of water resources;

(f) advise the government and submit policy recommendations regarding water quality, development, management, conservation and utilization of water resources;

*For establishment of Pakistan Council of Research in Water Resources Please see S.R.O 44(K.E.)/2007 dated 28-06-2007.

(g) publish scientific papers, reports and periodicals, as well as to arrange seminars, workshops and conferences on water related issues;

(h) establish liaison with other related national and international research and development organizations, universities and non-government organizations;

(i) undertake contractual research, provide consultancy services and collaborate with other organizations in the public and private sector;

(j) provide financial and technical support to universities and research institutions for collaborative research projects and fellowships;

(k) design and develop water related technologies and items of utility for various users according to market demand and undertake design and development projects on contract;

(l) undertake human resources development through training in skills related to the specialized functions of the Council; and

(m) commercialize its research and development results from sale of products, patents and services as well as collaboration with other organizations.

5. Management. The management of the Council shall consist of—

(a) Board of Governors;

(b) Chairman; and

(c) Executive Committee.

6. Board of Governors. The overall control, direction and superintendence of the affairs of the Council shall vest in a Board of Governors which may exercise all powers, perform all functions and do all acts and things which may be exercised, performed or done by the Council.

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7. Composition of the Board of Governors.— (1) The Board of Governors shall consist of following, namely:—

(a)	Minister for Science and Technology	*President*
(b)	Secretary, Scientific and Technological Research Division	*Vice- President*
(c)	Representative from Ministry Finance, not below the rank of Joint Secretary	*Member*

(d)	Representative from Ministry of Science and Technology not below the rank of Joint Secretary	*Member*
(e)	Chief Engineering Advisor, Ministry of Water and Power	*Member*
(f)	Four representatives to be nominated by Provincial Governments from the Water Sector Member	*Member*
(g)	Four Representatives of the Farmers, one each to be nominated by the respective Provincial Governments	*Member*
(h)	Representative of Water Industry to be Nominated by Federation of Pakistan Chamber of Commerce and Industries	*Member*
(i)	Chairman of the Council	*Member*
(j)	One Member each from the National Assembly and Senate to be nominated by the Speaker and Chairman Senate respectively. Member	*Member*

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(2) The Chairman of the Council shall act as Secretary of the Board.

8. Functions and powers of the Board. In particular and without prejudice to the generality of the powers conferred by section 6, the Board shall—

(a) approve overall plans, policies and programmes of the Council;

(b) review and approve annual and long-term business plans of the Council;

(c) review and approve research projects proposed by the Technical Advisory Committee;

(d) approve the annual development and non-development budget of the Council;

(e) create posts of such officers and servants and engage such consultants or experts, as it may consider necessary for the efficient performance of the functions of the Council, on such terms and conditions as it may deem fit;

(f) recommend to the Government to terminate the contract of the Chairman before the expiry of his tenure in case of unsatisfactory performance; and

(g) make regulations in the light of rules for carrying out activities considered necessary for achieving efficient functioning of the Council under this Act.

9. Term of office of members.—(1) Save as hereinafter provided, a member, other than an *ex-officio* member, shall hold office for a period of three years from the date of his nomination.

(2) A person who becomes, or is nominated to be, a member by virtue of his holding an office or appointment shall cease to be a member when he ceases to hold that office or appointment.

(3) A member, other than an *ex-officio* member, may at any time resign his office by writing under his hand addressed to the Government but shall continue to perform his functions until his resignation has been accepted.

(4) A vacancy caused by resignation or any other reason shall be filled by the nomination of a person qualified to fill such vacancy.

(5) No act or proceeding of the Board shall be invalid on the ground only of the existence of a vacancy in the Board.

(6) The Federal Government may increase or decrease the number of members of the Board of Governors and prescribe the qualifications and mode of appointment of such members in such manner as it may prescribe.

10. Meetings of the Board. — (1) Save as hereinafter provided, the Board shall regulate the procedure for its meetings.

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(2) Meetings of the Board shall be called by its President on such date and at such time and place as he may deem fit:

Provided that not less than two meetings shall be held in a year.

(3) Eight members shall constitute the quorum for a meeting of the Board.

(4) Each meeting of the Board shall be presided over by the President and, in his absence, by the Vice-president of the Board.

11. Chairman of the Council. The Chairman shall be an eminent scientist or engineer having at least 15 years experience in the relevant field and shall be appointed by the Federal Government on the recommendation of Board of Governors for a term of three years on such terms and conditions as may be determined. The Government, on the recommendation of Board of Governors, may extend the tenure of the Chairman for another term or terms as it may deem fit, or convert it into permanent appointment.

12. Powers and functions of the Chairman. The Chairman, who shall be the chief executive of the Council, shall work under the general policy guideline of the Board and have such powers, functions and duties as may be conferred on, or vested in, him by or under his Act.

The Chairman:—

(a) may, from time to time, for the purpose of ensuring efficient functioning of the Council and to facilitate its day to day functions, delegate to the Secretary or other officers of the Council, such of his functions, powers or ditties as he may consider necessary;

(b) shall in consultation with the Technical Advisory Committee formulate business and research plans and submit to the Board for approval;

(c) shall ensure the protection of all assets of the Council including intellectual property assets;

(d) shall promote commercialization of research and development work of the Council linking it with the market demand;

(e) arrange for annual performance evaluation of the Council;

(f) prepare the annual report of the Council for submission to the Federal Government which shall place it before the Parliament;

(g) identify areas of strength and weakness and formulate remedial programs;

(h commission industry specific studies to identify technical problems and to approve plans for technical scientific input by the Council towards their solution;

(i) arrange management courses on a regular basis for managerial levels of the Council; and

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(j) may subject to the provisions clause (e) of section 8, appoint such officers and employees as may be necessary for the efficient performance of the functions of the Council on such terms and conditions as may be prescribed under the rules.

13. Executive Committee.—(1) The Executive Committee shall assist the Chairman in the running the day to day functions of the Council and be responsible for administrative as well as financial matters of the Council. The Committee shall comprise the following members, namely:—

(a) Chairman of the Council;

(b) two most senior scientific or technical officers;

(c) Financial Adviser Ministry of Science and Technology; and

(d) Secretary of the Council who shall also act as its Secretary.

(2) All decisions of the Executive Committee shall be reported to the Board for information and approval.

(3) The Federal Government may increase or decrease the number of members of the Executive Committee and prescribe the qualifications and mode of appointment of such members in such manner as it may prescribe.

14. Technical Advisory Committee. — (1) The Board shall appoint a Technical Advisory Committee comprising such number of members and for such terms as it may deem fit.

(2) The Head of the Technical Advisory Committee will be nominated from amongst the non-official members of the Board.

(3) Non-official Members of Advisory Committee shall be nominated from amongst the following:—

(a) progressive farmers;

(b) water related industry; and

(c) Experts from the public and private sector.

(4) Chairman of the Council or his representative shall be a member of the Technical Advisory Committee.

(5) The Federal Government may increase or decrease the number of members of the Technical dvisory Committee and prescribe the qualifications and mode of appointment of such members in such manner as it may prescribe.

(6) The Committee shall—

(a) identify and prepare research programmes and projects relevant to the market demand;

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(b) propose Annual, Five Year Development Programmes of the Council;

(c) advise and report on any technical matters referred to it by the Board; and

(d) conduct performance evaluation of the research programme for consideration by the Board.

15. Funds of the Council. The Funds of the Council shall comprise—

(a) funds of the Council which stand transferred to the Council under section 25;

(b) grants from the Federal Government and the Provincial Governments;

(c) donations and endowments;

(d) funds generated through sale proceeds, technical services, and income from patents; and

(e) research grants.

[1][16. **Appointments.—**](1) The Council may appoint such employees as it may consider necessary for the efficient performance of its functions on such terms and conditions as may be prescribed.

(2) All appointments and promotions in the Council shall be in accordance with the service rules and regulations of the Council.

(3)The Council may engage experts, advisers and consultants on contract on such terms and conditions as it may determine.]

17. Budget and accounts.—(1) The Chairman shall, in respect of each financial year, submit for the approval of the Board, a statement showing all the expenditures incurred during the year along with estimated receipts and expenditures for the next financial year.

(2) The Council shall, by such date and in such from as may be prescribed by rules, submit to the Federal Government for approval its budget for each financial year showing the estimated receipts and expenditure and the sums which are likely to be required from the Federal Government during the financial year.

(3) The accounts of the Council shall be maintained in such form and manner as the Federal Government may determine in consultation with the Controller General of Pakistan.

(4) The accounts of the Council shall be audited by the Auditor General of Pakistan.

18. Delegation of powers. The Board may, by general or special order in writing, direct that such of its powers shall, in such circumstances and under such conditions, if any, as may be specified in the order, be exercised by the Chairman Executive Committee, or a member or officer of the Council.

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19. Submission of periodical reports, etc. The Council shall submit to the Federal Government at such time and at such intervals as the Federal Government may specify—

(a) annual report on the working of the Council;

(b) such periodical reports and summaries as may be required by the Federal Government;

(c) such periodical returns, accounts, statements and statistics as may be required by the Federal Government;

[1]Subs. by Act XIV of 2023, s.2.

(d) information and comments asked for by the Federal Government on any specific point;

(e) copies of the documents required by the Federal Government; and

(f) original documents required by the Federal Government for examination or any other purpose.

20. Directives from the Federal Government. (1) In the performance or its functions, the Council shall be guided on questions of policy by the instructions, if any, given to it by the Federal Government which shall be sole judge as to whether a question is a question of policy, provided that reasons for issuing such a directive are conveyed in writing.

(2) The Federal Government may dissolve and reconstitute the Board, if deemed necessary in public interest.

21. Discoveries and inventions to vest in the Council. All rights relating to discoveries and inventions and any improvements in materials, methods, processes, apparatus or equipment made by any officer or employee of the Council in the course of his employment shall vest in the Council and the researchers as per rules.

22. Declaration of fidelity and secrecy. Every member, adviser, officer or other employee of the Council shall make such declaration of fidelity and secrecy as may be prescribed.

23. Continuance of certain rules. All rules, regulations and bye-laws made by the Council and in force immediately before the commencement of this Act shall apply *mutadtis mutandis*, and so far as they are not inconsistent with any of the provisions of this Act, continue in force until repealed or altered by rules or regulations made under this Act.

24. Winding up. No provision of law relating to the winding up of bodies corporate shall apply to the Council and the Council shall not be wound up except by order of the Federal Government and in such manner as the Federal Government may direct.

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25. Dissolution of Council. Upon the commencement of this Act, the Council formed under the Resolution shall stand dissolved and upon such dissolution:

(a) all assets, rights, powers, authorities and privileges and property, movable and immovable, cash and bank balance, reserve funds, investments and all Other interests and rights in, or arising out of such property and all debts, liabilities and obligations of whatever kind of the Council subsisting immediately before its dissolution shall stand transferred to and vest in the Council;

(b) all officers and other employees of the Council shall; notwithstanding anything contained in any law or in any agreement, deed, document or other instrument, stand transferred to the Council in accordance with the present terms and conditions of the service applicable to them; and no officer or other employee whose services are so transferred shall be entitled to any compensation because of such transfer;

(c) a regular employee of the Council before the commencement of this Act shall have the option to remain civil servant under the Civil servants Act, 1973 (LXXI of 1973); and shall be entitled to all the privileges and facilities of the Federal Government such as pension, gratuity, housing and health.

(d) all debts and obligations incurred or contracts entered into or rights acquired and all matters and things engaged to be done by, with or for the Council formed under the Resolution before its dissolution shall be deemed to have been incurred, entered into, acquired or engaged to be done by, with or for the Council; and

(e) all suits and other legal proceedings instituted by or against the Council formed under the Resolution, before its dissolution shall be deemed to be suits and proceedings by or against the Council and may be proceeded or otherwise dealt with accordingly.

26. Exemption from taxes. Notwithstanding anything contained in the Income Tax Ordinance, 2001 (XLIX of 2001) or any other law for the time being in force relating to income tax, the Council shall not be liable to pay any such tax on its income, capital profit, wealth, gifts or gains.

27. Ordinance XCI of 2002, not to apply to the Council. Nothing contained in the Industrial Relations Ordinance, 2002 (XCI of 2002), shall apply to or in relation to the Council or any of the officers, advisers and employees appointed by it.

28. Power to make Rules. The Federal Government may, by notification in the official Gazette, within six months of the commencement of this Act; make rules to carry out its purposes.

29. Removal of difficulties. If any difficulty arises in giving effect to any provision of this Act, the Federal Government may make such order not inconsistent with the provisions of this Act, as may appear to it to be necessary or expedient for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of two years from the commencement of this Act.

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THE PAKISTAN COUNCIL OF SCIENTIFIC AND INDUSTRIAL RESEARCH ACT, 1973

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THE PAKISTAN COUNCIL OF SCIENTIFIC AND INDUSTRIAL RESEARCH ACT, 1973

[1]Act No. XXX of 1973

[9th February, 1973]

An Act to provide for the establishment of a Pakistan Council of Scientific and Industrial Research.

WHEREAS it is expedient to provide for the establishment of a Pakistan Council of Scientific and Industrial Research to undertake, promote and guide scientific and technological research in respect of problems connected with the establishment and development of industries under conditions prevailing in Pakistan, and to encourage the extension of the results of research to various sectors of the economic development of the country in the best possible manner;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Council of Scientific and Industrial Research Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Chairman" means the Chairman of the Council;

(b) "Council" means the Pakistan Council of Scientific and Industrial Research established under section 3;

(c) "Director", in relation to an Institute, means the Director of the institute ;

(d) "Governing Body" means the Governing Body of the Council;

(e) "institute" means an institute set up by the Council; (f) "member" means a member of the Council;

(g) "prescribed" means prescribed by rules made under this Act; and

(h) "registered Council" means the Pakistan Council of Scientific and Industrial Research registered under the Societies Registration Act, 1860 (XXI of 1860).

[1]For Statement of Objects and Reasons, *see* Gaz. of P.. 1973 Ext.. PL II. p. 278.

3. Establishment of the Council.—(1) As soon as may be after the commencement of this Act, the Federal Government shall establish, in accordance with the provisions of this Act, a Council to be called the Pakistan Council of Scientific and Industrial Research.

(2) The Council shall be a body corporate by the name of the Pakistan Council of Scientific and Industrial Research having perpetual succession and a common seal, with power, subject to the provisions of this Act, to hold and dispose of property, and shall by the said name sue and be sued.

(3) the headquarters of the Council shall be at Islamabad.

[1]* * * * * * *

[2][**3A. Ordinance XXIII of 1969 not to apply to Council.** Nothing contained in the Industrial Relations Ordinance, 1969 (XXIII of 1969) shall apply to or in relation to the Council or any of the officers, advisers and employees appointed by it.]

CHAPTER II

COMPOSITION AND FUNCTIONS OF THE COUNCIL, ETC.

4. Composition of the Council.—(1) The Council shall consist of the following twenty one members, namely:—

(a) a Chairman to be appointed by the Federal Government;

(b) a Finance Member, being a representative of the Ministry of Finance;

(c) two whole-time Science members, of whom at least one shall be an engineer or a technologist, to be nominated by the Federal Government;

(d) four officers serving under the Federal Government, to be nominated by that Government;

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(e) Director of Industries in each Province, *ex-officio*;

(f) three Directors of the institutes, to be nominated by the Federal Government so, however, that a Director shall not be nominated for another term until the other Directors have been members ;

(g) six representatives of industries in the private and public sectors, to be nominated by the Federal Government.

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and Sen., II.

[2]Added by the Pakistan Council of Scientific and Industrial Research (Amdt.) Ordinance, 1984 (42 of 1984), s. 2.

(2) The Chairman shall be the chief executive officer of the Council and the other members, except the Finance Member, shall perform such functions as the Council may assign to each of them from time to time.

(3) The Finance Member shall exercise such powers and perform such functions as may be prescribed.

5. Term of office of members, etc.—(1) Save as hereinafter provided, a members, other than an *ex-officio* member, shall hold office for a period of three years from the date of his nomination and shall be eligible for re-nomination for such further period or periods, not exceeding three years at any one time, as the Federal Government may deem fit.

(2) A person who becomes, or is nominated to be, a member by virtue of his holding an office or appointment shall cease to be a member when he ceases to hold that office or appointment.

(3) A member, other than an ex-officio member, may at any time resign his membership by writing under his hand addressed to the Federal Government but shall continue to perform his functions until his resignation has been accepted.

(4) A vacancy caused by resignation or any other reason shall be filled by the nomination of a person qualified to fill such vacancy.

(5) The Federal Government may at any time terminate the appointment of the Chairman or any other member without assigning any cause.

(6) No act or proceeding of the Council shall be invalid on the ground only of the existence of a vacancy in, or defect in the constitution of, the Council.

6. Functions of the Council. The functions of the Council shall be—

(a) to set up and manage technological research institutes exclusively for certain selected industries and such laboratories and centres as may be required for the promotion of the overall technological development of the country;

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(b) to coordinate and review the work of the institutes, laboratories and centres;

(c) to manage the existing research units of the registered Council pending their absorption in the institutes, laboratories and centres to be set up by the Council; and

(d) to undertake such special scientific and technological surveys and investigations as may be referred to it by the Federal Government from time to time.

7. Meetings of the Council, etc.—(1) Save as hereinafter provided, the Council shall regulate the procedure for its meetings.

(2) Meetings of the Council shall be called by its Chairman on such date and at such time and place as he may deem fit:

Provided that not less than two meetings shall be held in a year.

(3) Ten members shall constitute the quorum for a meeting of the Council.

(4) Each meeting of the Council shall be presided over by the Chairman and, in his absence, by a member elected for the purpose by the members present.

8. Governing Body.—(1) There shall be a Governing Body consisting of the following members, namely:—

(a) the Chairman;

(b) the Finance Member; and

(c) the two whole-time Science members.

(2) The Governing Body shall be the executive organ of the Council and shall, subject to the superintendence and control of the Council, perform all functions of the Council and shall be guided by such general or special instructions as may from time to time be given to it by the Council.

9. Board of Management of institutes.—(1) Each Institute shall be managed by a Board of Management consisting of seven to eleven members, depending on the size of the institute concerned, of whom not less than two and not more than four shall be the representatives of the industries concerned in the private and public sectors.

(2) The Director shall be the Chairman of the Board of Management of the institute and shall be directly responsible for the day to day working of the institute to the Board of Management and, through it, to the Governing Body.

(3) Members of the Board of Management, including the Director, shall be appointed by the Council for a term of three years and shall be eligible for re-appointment for such further period or periods, not exceeding three years at any one time, as the Council may deem fit.

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10. Funds of the Council.—(1) The funds of the Council shall comprise—

(a) funds of the registered Council which stand transferred to the Council under section 22;

(b) grants from the Federal Government and the Provincial Governments;

(c) donations and endowments; and

(d) income and receipts from such other sources as may be approved by the Federal Government.

(2) The Council may open a deposit account with the State Bank of Pakistan or with any agency of the State Bank other than Government Treasury or, with the approval of the Federal Government, with any other bank.

(3) The accounts of the Council shall be audited by the Auditor-General of Pakistan, and shall be maintained and Presented for audit in such form and manner as may be prescribed.

11. Budget. The Council shall, by such date and in such form as may be prescribed, submit to the Federal Government for approval its budget for each financial year showing the estimated receipts and expenditure and the sums which are likely to be required from the Federal Government during that financial year.

12. Appointment of officers, etc.—(1) The Council may, subject to the provisions of sub-section (2) and such general or special orders as the Federal Government may give from time to time, appoint such officer advisers and employee as it considers necessary for the efficient performance of its functions on such terms and conditions as it may deem fit.

(2) The Federal Government may direct the Council to terminate the services of any officer, adviser, or employee and the Council shall be bound to comply with any such direction.

13. Delegation of powers. The Council may, by general or special order in writing, direct that such of its powers shall, in such circumstances and under such conditions, if any, as may be specified in the order, be exercisable also by the Governing Body, the Board of Management of an Institute, or a member or officer of the Council.

CHAPTER III

MISCELLANEOUS

14. Submission of periodical reports, etc. The Council shall submit to the Federal Government at such time and at such intervals as the Federal Government may specify:—

(a) annual report on the working of the Council and of each Institute, laboratory and centre established by the Council:

(b) such periodical reports and summaries as may be required by the Federal Government;

(c) such periodical returns, accounts, statements and statistics as may be required by the Federal Government;

(d) information and comments asked for by the Federal Government on any specific point;

(e) copies of the documents required by the Federal Government; and

(f) original documents required by the Federal Government for examination of any other purpose.

15. Directives from the Federal Government. The Federal Government may, from time to time, issue to the Council such directives and orders as it may consider necessary for carrying out the purposes of this Act and the Council shall follow and carry out such directives and orders.

16. Discoveries and inventions to vest in the Council. All rights relating to discoveries and inventions and any improvements in materials, methods, processes, apparatus or equipment made by any officer or employee of the Council in the course of this employment shall vest in the Council

17. Declaration of fidelity and secrecy. Every member, adviser, officer or other employee of the Council shall make such declaration of fidelity and secrecy as may be prescribed.

18. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules for carrying but the purposes of this Act.

19. Power to make regulations. The Council may, with the previous sanction of the Federal Government, make such regulations, not inconsistent with this Act or the rules made thereunder, as may, in its opinion, be necessary or expedient for the achievement of its aims and objects or for the performance of its functions.

20. Continuance of certain rules. All rules, regulations and bye-laws made by the registered Council and in force immediately before the commencement of this Act shall, mutatis mutandis, and so far as they are not inconsistent with any of the provisions of this Act, continue in force until repealed or altered by rules or regulations made under this Act.

21. Winding up. No provision of law relating to the winding up of bodies .corporate shall apply to the Council and the Council shall not be wound up except by order of the Federal Government and in such manner as the Federal Government may direct.

22. Dissolution of registered Council.—(1) Upon the commencement of this Act, the registered Council shall, notwithstanding anything contained in the Societies Registration Act, 1860 (XXI of 1860), stand dissolved, and upon such dissolution—

(a) all assets, rights, powers, authorities and privileges and all property, movable and immovable, cash and bank balance, reserve funds, investments and all other interests and rights in, or arising out of, such property and all debts, liabilities and obligations of whatever kind of the registered Council subsisting immediately before its dissolution shall stand transferred to and vest in the Council;

(b) all officers and other employees of the registered Council shall, notwithstanding anything contained in any law or in any agreement, deed, document or other instrument, stand transferred to the Council and shall be deemed to have been appointed or engaged, by the Council in accordance with the terms and conditions of service applicable to them; and no officer or other employee whose services are so transferred shall be entitled to any compensation because of such transfer;

(c) all debts and obligations incurred or contracts entered into or rights acquired and all matters and things engaged to be done by, with or for the registered

Council before its dissolution shall be deemed to have been incurred, entered into, acquired or engaged to be done by, with or for the Council; and

(d) all suits and other legal proceedings instituted by or against the registered Council before its dissolution shall be deemed to be suits and proceedings or against the Council and may be proceeded or otherwise dealt with accordingly.

(2) The Federal Government may, for the purpose of removing any difficulty in relation to the transfer and other matters specified in sub-section (1), make such order as it considers expedient and any such order shall be deemed to be, and given effect to, as a part of the provisions of this Act.

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THE PAKISTAN ENGINEERING COUNCIL ACT, 1975

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THE PAKISTAN ENGINEERING COUNCIL ACT, 1975

[1](ACT No.V OF 1976)

[10th January, 1976]

An Act to make provision for the regulation of the engineering profession

WHEREAS it is expedient to make provision for regulation of the engineering profession and for that purpose to constitute an Engineering Council;

[2][WHEREAS the Council shall regulate the engineering profession with the vision that the engineering profession shall function as a key driving force for achieving rapid and sustainable growth in all national, economic and social fields;

WHEREAS the Council shall as its mission set and maintain realistic and internationally relevant standards of professional competence and ethics for engineers, and licence engineers and engineering institutions to competently and professionally promote and uphold the standards;

AND WHEREAS, the Council, covering the entire spectrum of engineering disciplines, shall function as an apex body to encourage and promote the pursuit of excellence in engineering profession and to regulate the quality of engineering education and the practice of engineering and thereby promote rapid growth in economic and social fields in Pakistan.]

It is hereby enacted as follows:-

1. Short title, extent and commencement.— (1) This Act may be called the Pakistan Engineering Council Act, 1975.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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[2]**[2. Definitions.** — In this Act, unless there is anything repugnant in the subject or the context,-

(i) **"Accreditation Committee"** means the Accreditation Committee constituted under sub-section (1) of section 14;

(ii) **"accredited engineering qualification"** means any of the qualification included in the First Schedule or the Second Schedule;

(iii) **"bye-laws"** means bye-laws made under this Act;

(iv) **"Chairman"** means the Chairman of the Council;

[1]For statement of Objects and Reasons, see Gaz. of P., 1975, Ext., Pt. III. p, 1500.

[2]Added and subs. by the Pakistan Enginering Council (Amdt.) Act, 2011 (II of 2011), ss. 2-3 and shall be deemed to have taken effect of the 15th Janurary, 2008.

(v) **"Constructor"** means any person, partnership, corporate body or any other legal entity which or who is engaged in the business of construction and is licenced and registered as such;

(vi) **"consulting engineer"** means any person, partnership, corporate body or any other legal entity which independently performs study, prepared reports, makes design, supervises construction or undertakes any other similar advisory activities in engineering disciplines and is registered as such by the Council;

(vii) **"continued professional development",** means the systematic maintenance, improvement and broadening of knowledge, understanding and skill, and the development of personal qualities necessary for the execution of professional and technical duties throughout the individual's working life;

(viii) **"Council"** means the Pakistan Engineering Council constituted under section 3;

(ix) **"creativity**" means innovation, invention, hypothesis, theories and such other actions in the realm of engineering profession contributory to development;

(x) **"engineering institution"** means an institution within or without Pakistan which grants degree, diploma and certificate in engineering and related education and is accredited as such by the Council;

(xi) **"engineering products"** means the products as a result of or the outcome of professional engineering works or engineering profession or both;

(xii) **"engineering profession"** means engineering education and practices of engineering and technology;

(xiii) **"engineering public organization"** means a department of the Federal Government or a Provincial Government, a Public Corporation, autonomous or semi-autonomous body, cantonment board, municipality, improvement trust or other local authority;

(xiv) **"engineering services"** means services relating to study, preparation of reports, design, supervision, estimation, documentation, evaluation and advising in matters of engineering profession and engineering works;

(xv) **"engineering university"** means a degree awarding university or institution as has more than fifty per cent of their undergraduate and postgraduate programmes as well as student population pertaining to engineering and are recognized as such;

(xvi) **"enrolment committee"** means the enrolment committee referred to in sub-section (1) of section 17;

(xvii) **"Governing Body"** means the Governing Body of the Council;

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(xviii) **"learned societies"** means institutions and associations for promotion of knowledge and excellence in engineering and technology;

(xix) **"Management Committee"** means the Management Committee of the Council;

(xx) **"member"** means a member of the Council and includes the Chairman, Senior Vice-Chairman, Vice-Chairman, professional engineers and registered engineers ;

(xxi) **"Operator"** means any person, partnership, corporate body or any other legal entity which is engaged in the business of operating construction work and is licenced and registered as such;

(xxii) **"prescribed"** means prescribed by bye-laws;

(xxiii) **"professional engineer"** means a person who holds an accredited engineering qualification and after obtaining a professional experience of five years, whether working privately or in the employment of an engineering public organization, has passed the prescribed engineering practice examination and is registered as such by the Council;

(xxiv) **"professional engineering bodies"** means professional engineering institutes, associations and such other bodies registered as such by the Council;

(xxv) **"professional engineering work"** means the giving of professional advice and opinions, the making of measurements and layouts, the preparation of reports, computations, designs, drawings, plans and specifications and the construction, inspection and supervision of engineering works, in respect of –

(a) railways, aerodromes, bridges, tunnels and metal led roads;

(b) dams, canals, harbours, light houses;

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(c) works of an electrical, mechanical, hydraulic, communication, aeronautical power engineering, geological or mining character;

(d) waterworks, sewers, filtration, purification and incinerator works;

(e) residential and non-residential buildings, including foundations framework and electrical and mechanical systems thereof;

(f) structures accessory to engineering works and intended to house them;

(g) imparting or promotion of engineering education, training and planning, designing, development construction, commissioning, operation, maintenance and management of engineering works in respect of computer engineering, environmental engineering, chemical engineering, structural engineering, industrial marine engineering and

naval architecture, petroleum and gas engineering, metallurgical engineering, agricultural engineering, telecommunication engineering, avionics and space engineering, transportation engineering, air-conditioning ventilation, cold storage works, system engineering, electronics, radio and television engineering, civil engineering, electrical engineering, mechanical engineering and biomedical engineering, etc;

(h) organizing, managing and conducting the teaching and training in engineering universities, colleges, institutions, Government colleges of technology, polytechnic institutions and technical training institutions;

(i) preparing standard bidding or contract documents, construction cost data, conciliation and arbitration procedures; guidelines for bid evaluation, prequalification and price adjustments for construction and consultancy contracts; and

(j) any other work which the Council may, by notification in the official Gazette, declare to be an engineering work for the purposes of this Act;

(xxvi) **"Register"** means the Register maintained under section 16;

(xxvii) **"registered engineer"** means a person who holds an accredited engineering qualification, whether working privately or in the employment of an engineering public organization and is registered as such by the Council. Registered engineer shall perform all professional engineering works except independently signing design ;

(xxviii) **"registered"** means registered under this Act;

(xxix) **"Registrar"** means the Registrar of the Council;

(xxx) **"Senior Vice-Chairman"** means the Senior Vice-Chairman of the Council;

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(xxxi) **"Think Tank"** means a creative and innovative body to advise on engineering and national development plans;

(xxxii) **"Think Tank Committees"** means bodies of eminent engineers constituted by the Council to assist in formulation of relevant policies relating to national development;

(xxxiii) **"University"** means a University established by law in Pakistan and having an engineering faculty; and

(xxxiv) **"Subsidiary"** means a body formed by the Government body of the Council to operate under its control and to perform its delegated functions.".

3. Constitution and incorporation of Engineering Council.— (1) There shall be constituted in accordance with the provisions of this Act an Engineering Council to be known as the Pakistan Engineering Council.

(2) The Council constituted under sub-section (1) shall be a body corporate having perpetual succession and a common seal, with power to acquire and hold property, both movable and immovable, and to contract, and shall by the name by which it is known sue and be sued.

(3) The Council shall be composed of all persons whose names may hereafter be entered in the Register, so long as they continue to have their names borne on the Register.

(4) Notwithstanding anything contained in sub-section (3), the Council shall, upon its first constitution, be composed of -

(a) a Chairman, being an engineer with not less than twenty years' standing to be nominated by the Federal Government;

(b) ten members, being engineers, of whom two each shall be nominated by the Federal Government and a Provincial Government; and

(c) one member, being an engineer, to be nominated by each University.

(5) The headquarters of the Council shall be at Islamabad or at such other place as the Federal Government may appoint.

[1]**[3A. Executive powers of the Council.—** (1) The general direction and administration of the Council and its affairs shall vest in the Governing Body which may exercise all powers and do all acts and things that may be exercised or done by the Council.

(2) Subject to the provisions of this Act, the bye-laws and the general or special delegation of powers by the Governing Body and the Management Committee, the Chairman shall be the Chief Executive of the Council and shall also be empowered to–

(a) take any action or step in emergency which in his opinion requires immediate action as he may consider necessary, subject to ratification by the Governing Body in its meeting immediately held thereafter; and

(b) exercise the powers of the Council in the matters relating to its administration and the staff of the Council, who may delegate such powers to the Registrar subject to such conditions as he may specify in this regard.

(3) The Council shall be funded through an initial grant by the Government and thereafter continuous financial support shall be provided besides that accrue from registrations for running the affairs of the Council].

[1]**[4. Chairman, Senior Vice Chairman and Vice-Chairmen.**— (1) There shall be a Chairman, Senior Vice-Chairman and four Vice-Chairmen of the Council who shall be eminent professional engineers of known integrity, competence, standing and stature with a minimum of twenty-five years of standing.

[1]Added and subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), ss. 4-5 and shall be deemed to have taken effect of the 15th January, 2008.

(2) The Chairman and Senior Vice-Chairman shall be elected by menbers from amongst themseleves in such manner as may be prescribed.

(3) Four Vice-Chairman shall be elected one from each Province by the votes registered in the respective Province.

(4) The Chairman, Senior Voice-Chairman and Vice-Chairmen shall hold office for a term of three years but no person shall hold office for more than two consecutive terms.

(5) When the Chairman by reason of absence from Pakistan or any other cause is unable to perform his functions, the Senior Vice-Chairman for the time being shall perform the functions of Chairman until the Chairman returns to Pakistan or, as the case may be, resumes his functions.]

5. Annual general meeting of the Council.— (1) An annual general meeting of the Council shall be held at the headquarters of the Council [1][or at a provincial capital by rotation] at such time as may be appointed by the [2][Governing Body.]

(2) The following business may be transacted at the annual general meeting, namely:—

(a) presentation of annual report;

(b) presentation of audited accounts;

(c) presentation of annual budget;

(d) appointment of auditors; and

(e) such other business as may be placed before the meeting by the [2][Governing Body] or as the meeting may decide.

6. Extraordinary general meeting of the Council.— (1) An extraordinary general meeting of the Council shall be called by the Chairman at the headquarters of the Council –

(a) within fourteen days of the receipt by him of a requisition signed by not less than one hundred members and stating the business proposed to be transacted at the meeting; or

(b) at any time, if the holding of such meeting for the consideration of any urgent matter is in his opinion necessary.

(2) At a meeting called in pursuance of clause (a) of sub-section (1), no business other than the business stated in the requisition referred to in that clause shall be transacted.

7. General provisions relating to meetings of Council.— (1) An annual or extraordinary general meeting of the Council shall be held and conducted in accordance with the bye-laws.

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[1]Ins by the Pakistan Engineering Council (Amdt.) Act, 1992 (26 of 1992), s. 4.

[2]Subs. by the Pakistan Enginering Council (Amdt.) Act, 2011 (II of 2011), s. 6 and shall be deemed to have taken effect of the 15th Janurary, 2008

(2) To constitute a quorum at an annual or extraordinary general meeting of the Council, the presence of not less than one hundred members shall be necessary:

Provided that, in respect of the Council as constituted under sub-section (4) of section 3, this sub-section shall have effect as if, for the words "one hundred" therein the word "six" were substituted.

(3) All decisions of the Council at an annual or extraordinary general meeting shall be taken by majority of the members present and voting.

8. Functions of the Council.— The following shall be the functions of the Council, namely:-

[1][(a) maintenance of a Register of persons qualified to work as registered engineers, professional engineers, consulting engineers, constructors and operators;

(b) accreditation of engineering qualifications for the purpose of registration of registered engineers, professional engineers;]

(c) removal of names from the Register and restoration to the Register of names which have been removed;

(d) laying down of standards of conduct for the members;

(e) safeguarding the interests of the members;

(f) promotion of reforms in the engineering profession;

(g) management of the funds and properties of the Council;

(h) promotion of engineering education and review of courses of studies in consultation with the Universities;

(i) levy and collection of fees from applicants for registration or temporary licences and members;

(j) exercise of such disciplinary powers over the members and servants of the Council as may be prescribed;

[1][(k) formation of such committees and subsidiaries as may be prescribed;

(l) assistance to the Federal Government as a Think Tank;

(m) promotion of engineering profession in totality;

(n) encouragement, facilitation and regulation of working of professional engineering bodies for creativity and as custodian of engineering under the umbrella of the Council;

[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 7 and shall be deemed to have taken effect of the 15th January, 2008

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(o) ensuring and managing of continued professional development through engineering academies and professional bodies;

(p) establishing standards for engineering contracts, cost and services;

(q) facilitating engineering sector industries;

(r) coordinating between various engineering forums and Federal Government;

(s) providing forum for arbitrations, pertaining to disputes in construction and consultancy contracts; and.

(t) performance of all other functions connected with, or ancillary or incidental to, the aforesaid functions.]

[1][**9. Governing Body.—** (1) There shall be a Governing Body which shall be the principal executive authority of the Council for supervising and governing the affairs and functions assigned to the Council by or under this Act and bye-laws.

(2) The Governing Body, [2][***], shall be composed of the following [2][sixty-six] professional engineers registered with the Council with a minimum twenty years standing, namely:-

(a) the Chairman, Senior Vice-Chairman and four Vice-Chairmen one from each Province who shall also be the Chairman, Senior Vice-Chairmen and Vice- Chairmen of the Governing Body;

(b) the Registrar;

(c) two distinguished professional engineers to be nominated by the Federal Government one member each from Azad Jammu and Kashmir and Gilgit- Baltistan;

(d) one distinguished professional engineer to be nominated by each Provincial Government;

(e) Five Vice-Chancellors of engineering universities (one nominated by each Provincial and one by the Federal Government);

[2][(ea) Engineer-in-Chief, Pakistan Army;]

(f) President or Chairman Association of Consulting Engineers (Pakistan);

(g) President or Chairman All Pakistan Contractors or their nominee;

(h) Elected President of the Institution of Engineering of Pakistan;

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 8 and shall be deemed to have taken effect of the 15th January, 2008.

[2]Omitted, Subs. & Ins by Pakistan Engineering Council (Amdt.) Act, 2016 (XLVI of 2016). s.2.

(i) Forty members to be elected in the prescribed manner in proportion to the number of engineers registered in each province, by the valid professional and registered engineers whose names are borne on the Register on the thirtieth June of the year in which election to the Governing Body are to be held, physical balloting will be held and no proxy voting to be permitted;

(j) Elected President of Pakistan Engineering Congress; and

(k) One nominees each from the following Ministry or Organizations of the Federal Government, not below the BPS-20, namely:—

(i) Planning Commission;

(ii) Ministry of Science and Technology;

(iii) Higher Education Commission.

(3) The members of the Governing Body, other than the Registrar, shall hold office for a term of three years and no person shall hold office for more than two consecutive terms.

(4) The members of the Governing Body shall be nominated or, as the case may be, elected not less than fifteen days before the term of the outgoing members is due to expire.

(5) The Governing Body shall hold at least three meetings per year, the quorum for which shall be thirty per cent of the total membership of the Governing Body.

(6) The election of members of the Governing Body under clause (i) of sub-section (2) shall be held so as to conclude not less than fifteen days before the terms of the outgoing members is due to expire.]

[1]**[9A. Management Committee.—** (1) There shall be a Management Committee, to oversee working of the Secretariat to run the affairs of the Council in accordance with the provisions of this Act and bye-laws.

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(2) The Management Committee shall be composed of the following, namely:-

(a) Chairman;

(b) Senior Vice-Chairman; and

(c) Four Vice-Chairmen.

(3) The tenure of the Management Committee shall be the same as that of the Governing Body. The Management Committee shall hold meetings at least once in a quarter, the quorum for which shall be three.]

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[1]Ins. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 9 and shall be deemed to have taken effect of the 15th January, 2008.

[1][**10. Accreditation of engineering qualifications granted by institutions in Pakistan**.— (1) The engineering qualifications granted by engineering institutions in Pakistan which are included in the First Schedule shall be the accredited engineering qualifications for the purposes of this Act.

(2) Any engineering institution in Pakistan which grants an engineering qualification not included in the First Schedule may apply to the Council to have such qualification accredited and the Council may, by notification in the official Gazette, amend the First Schedule so as to include such qualification therein.

11. Accreditation of foreign engineering qualifications.— (1) The engineering qualifications granted by engineering institutions outside Pakistan which are included in the Second Schedule shall be accredited engineering qualifications for the purposes of this Act.

(2) Any engineering qualification granted by an engineering institution outside Pakistan not included in the Second Schedule may be accredited by the Council and council may, by notification in the official Gazette, amend the Second Schedule so as to include such qualification therein.]

[1][**12. Grant of temporary licences.—** (1) The Enrolment Committee may grant to any person, domiciled outside Pakistan who does not hold an accredited engineering qualification but who holds an engineering degree or who is a corporate member of an engineering body, society, institute or association accredited by the Council of respective country, a temporary license for a specific project to work as an associate of a professional engineer; the professional engineer shall sign and seal the plans and specifications for the project.

(2) The Enrolment Committee may, if it feels that such action is warranted by special circumstances, grant to a person referred to in sub-section (1) a temporary licence to work as the engineer in charge of a specific project for so long as he is assisted by a professional engineer.

(3) The Enrolment Committee may, for works to be carried out at the discretion of an engineering public organization, grant a temporary licence to any person on the recommendation of such organization.

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(4) Any person to whom a temporary licence has been granted shall, during the period for which the licence is valid, be subject to the provisions of this Act and the bye-laws.]

13. Power to require information as to courses of study and examination.— Every engineering institution in Pakistan which grants a [1][accredited] engineering qualification shall furnish such information as the Council may, from time to time, require as to the courses of study and examination to be undergone in order to obtain such qualification.

[1][**14. Accreditation of engineering institutions.—** (1) The Council shall constitute an Accreditation Committee for organizing and carrying out a comprehensive program of accreditation of engineering universities, colleges and institutions etc. according to the criteria approved by the Governing Body in consultation with Higher Education Commission.

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), ss. 10-13 and shall be deemed to have taken effect of the 15th January, 2008.

(2) The curricula of courses of studies in various disciplines of engineering and minimum level and standard of such courses including lectures, laboratory, design, drawing and field work shall be examined and scrutinized by the Accreditation Committee who shall submit its report to the Governing Body for approval.]

15. Withdrawal of [1][accreditation].— [1][(1) When upon report by the Accreditation Committee, it appears to the Council that the courses of study and examination to be gone through in any engineering institution in Pakistan in order to obtain an accredited engineering qualification or the standards of proficiency required from candidates in any examination held for the purpose of granting such qualification are not such to secure to person holding such qualification the knowledge and skill requisite for the efficient practice of engineering, the Council shall forward the report to the engineering institution concerned with an intimation of the period within which it may submit its explaination to the Council.;]

(2) On receipt of the explanation or, where no explanation is submitted within the specified period, on the expiry of that period, the Council, after making such further inquiry, if any, as it may think fit, may, by notification in the official Gazette, direct that an entry shall be made in the First Schedule against the engineering qualification to which the explanation relates declaring that it shall be a [1][accredited] engineering qualification only when granted before a specified date.

16. Maintenance of Register, etc.— [1][(1) The Council shall maintain in the prescribed manner a Register in which shall be entered the names and other particulars of persons possessing accredited engineering qualifications whose application for registration as registered engineers, professional engineers, consulting engineers, constructors and operators are, from time to time, granted by the Council.]

(2) Every application for registration under this Act shall be made to the Council in the prescribed form and be accompanied by the prescribed fee.

[1][(3) Every registered engineer, professional engineer, consulting engineer registered under this Act shall be entitled to receive a certificate of registration under the hand of the Registrar.]

(4) A certificate of registration issued under sub section (3), shall, subject to the provisions of this Act, remain in force until the thirty-first day of December of the year in which it is issued and shall thereafter be renewable [2][for any number of years not exceeding three at a time] upon payment of the prescribed fee.

[1][(5) Every constructor and operator registered under this Act shall be entitled to receive a licence under the hand of the Registrar.].

17. Registration and removal of names from Register.—[1][(1) Every application for registration and every case of removal of a name from the Register shall be considered by an enrolment committee consisting of the Chairman; Senior Vice-Chairman and Vice-Chairmen and three other members, being engineers of not less than twenty years' standing, nominated by the Governing Body.

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), ss. 14-16 and shall be deemed to have taken effect of the 15th January, 2008.

[2]Subs. by the Pakistan Engineering Council (Amdt.) Act, 1992 (26 of 1992), s.6.

(2) The enrolment committee in its discretion may refuse to permit the registration of any person or direct the removal altogether or for a specified period from the Register of the name of any registered engineer, professional engineer, consulting engineer, constructor or operator who has been convicted of any such offence as implies in the opinion of the committee a defect of character after providing such person an opportunity of being heard, and shall record reasons for action under this section.]

(3) The enrolment committee may direct that any name removed from the Register under sub section (2) shall be restored.

(4) [1][* * * * * * *]

18. Appeal against removal of name from Register.— [2][(1) Any registered engineer, professional engineer, consulting engineer, constructor or operator aggrieved by an order under sub-section (1) of section 17 for the removal of his or its name from the Register may, within thirty days of the communication of the order, prefer an appeal to the Governing Body];

(2) Upon the receipt of an appeal under sub section (1), the [2][Governing Body] may, after holding such inquiry as it may consider necessary and giving the appellant an opportunity of being heard in person or through an advocate, pass such order as it may deem fit.

[2]**[19. Revision of Register.**— (1) The Registrar shall remove from the Register the name of any registered engineer, professional engineer, consulting engineer, constructor or opetator.

(a) who has died or, as the case may be, which has ceased to exist;

(b) who or which has failed to have his or its certificate of registration renewed within one year of the date of its expiry; or

(c) whose name has been directed under sub-section (2) of section 17 or sub section (7) of section 22 to be removed from the Register.

(2) The Registrar shall restore to the Register the name of any registered engineer, professional engineer, consulting engineer, constructor or operator whose name has been removed from the Register under clause (b) of sub-section (1) if such registered engineer, professional engineer, Consulting engineer, constructor or operator applies for such restoration and pays the prescribed fee.

(3) The Council may, in its discretion, after the expiry of not less than one year following the removal from the register of the name of any registered engineer, professional engineer, consulting engineer, constructor or operator grant registration to such registered engineer, professional engineer, consulting engineer, constructor or operator if he or it applies for registration.].

[1][20. Complaints against professional engineers, etc.— (1) A complaint made against any [2][registered engineer, professional engineer, consulting engineer, constructors or operator] as to work or conduct shall be considered by the enrolment committee and, if that committee is of the opinion that there are sufficient reasons to proceed against the person to whom the complaint relates, it may either proceed to inquire into the complaint itself or refer the complaint to a Tribunal of Inquiry.

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[1]Omited and Subs. by the Pakistan Engineering Council (Amdt.) Act, 1992 (26 of 1992), ss.7-8.

[2]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), ss. 17-19 and shall be deemed to have taken effect of the 15th January, 2008.

(2) Where the enrolment committee decides to proceed with the complaint itself, it shall follow the same procedure as has been prescribed for the Tribunal of Inquiry and may pass such order as it is competent to pass under sub section (7) of section 22.

(3) For the purpose of any inquiry, the enrolment committee shall be deemed to be a court within the meaning of the Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984), and shall exercise all the powers of a civil court for summoning witnesses, for compelling the production of documents and for issuing commissions.]

[1][(4) The Enrolment Committee may also take *suo moto* notice of a professional misconduct by registered engineer, professional engineer, consulting engineer, constructor or operator or an engineering organizations whether in the public or in private sector; and shall follow the same procedure as provided in sub-sections (1) and (2).]

21. Tribunals of Inquiry.— (1) For holding inquiries into the professional conduct of [1][registrered engineers, professional engineers, consulting engineers, constructors and operators] the [1][Governing Body] may constitute as many Tribunals of Inquiry as it may consider necessary.

(2) A Tribunal shall consist of three members appointed by the [1][Governing Body] out of a panel of members of the Council maintained by the Committee who have professional standing of not less than ten years and who hold, or have held high engineering assignments.

(3) The [1][Governing Body] shall appoint one of the members of a Tribunal to be the Chairman thereof.

22. Procedure in inquiries, etc.— (1) In inquiries relating to the professional conduct of [1][registered engineer, professional engineer, consulting engineer, contractors or operator], the Tribunal shall, except as hereinafter provided, follow such procedure as may be prescribed.

(2) The Tribunal shall fix a date for the hearing of the case and shall cause notice of the day so fixed to be given to the complaint and the [1][registered engineer, professional engineer, consulting engineer, contractors or operator] concerned, hereafter in this section referred to as the respondent, and shall afford to the complainant and the respondent an opportunity of leading evidence, if any, and of being heard before recommendations are made in the case.

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(3) The Chairman of the Tribunal may empower a member of the Tribunal to consider and decide preliminary issues and to record evidence.

(4) On completion of the inquiry, the Tribunal may recommend to the [2][enrolment committee.]—

(a) dismissal of the complaint;

(b) imposition of any of the following penalties on the respondent namely:-

(i) reprimand;

(ii) removal of name from the Register for a period not exceeding [2][five years];

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[1]Added and Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), ss. 19-21 and shall be deemed to have taken effect of the 15th January, 2008

[2]Subs. by the Pakistan Engineering Council (Amdt.) Act, 1992 (26 of 1992), s.9.

(iii) removal of name from the Register altogether; or

(c) prosecution of the respondent for the offence constituted by his or its conduct.

(5) The Tribunal may make such recommendation to the [1][enrolment committee] as to the cost of the proceedings before it as it may deem fit; and, where the Tribunal is of the opinion that a complaint made against a respondent is false and vexatious, it may, in addition and without prejudice to any other remedy available to the respondent, recommend imposition upon the complainant of costs not exceeding a sum of ten thousand rupees and payment to the respondent of the whole or any part of the costs recovered from the complainant.

(6) In any case in which it has recommended the imposition of any penalty on, or the prosecution of , the respondent, the Tribunal may also recommend that an amount not exceeding twice the amount of the fee received by the respondent from the complainant may be recovered from the respondent and paid to the complainant as compensation.

(7) The [1] [enrolment committee] shall meet to consider the recommendations of the Tribunal within a period of six weeks from the date of receipt thereof and pass such orders as it may deem fit.

[1][(7A) Any person aggrieved by an order under sub section (7) may, within thirty days of the communication of order to him, prefer an appeal to the [2][Governing Body]].

(8) Any order of the [1] [enrolment committee] as to the costs of the proceedings before the Tribunal or as to the recovery of any amount from a complainant or a respondent shall be executable as if it were an order of a District Judge.

(9) When any professional engineer or consulting engineer is reprimanded under this Act a record of the punishment shall be entered against his or its name in the Register.

23. Powers of the Tribunal.— (1) For the purpose of any such inquiry as aforesaid, a Tribunal shall have the same powers as are vested in a court under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely:—

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(a) enforcing the attendance of any person,

(b) compelling the production of documents, and

(c) issuing commissions for the examination of witnesses.

(2) Every such inquiry shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860), and a Tribunal shall be deemed to be a civil court for the purpose of sections 480 and 482 of the Code of Criminal Procedure 1898 (Act V of 1898).

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 1992 (26 of 1992), s.9.
[2]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 21 and shall be deemed to have taken effect of the 15th January, 2008

(3) For the purposes of enforcing the attendance of any person or of compelling the production of documents or issuing commissions—

(a) the jurisdiction of a Tribunal shall extend to the whole of Pakistan; and

(b) a Tribunal may send to any civil court having jurisdiction in the place where the Tribunal is sitting any summons or other process for the attendance of a witness or the production of documents required by the Tribunal, or any commission which it desires to issue, and the civil court shall serve such process or issue such commission, as the case may be, and may enforce any such process as if it were a process for attendance or production before itself.

(4) Proceedings before a Tribunal in any such inquiry shall be deemed to be civil proceedings for the purposes of [1][Articles 15 of the Qanun-e-Shahadat, 1984 (P.O. No. 10 of 1984)] and the provisions of that section shall apply accordingly.

24. Fund of the Council, accounts and audit.— (1) All sums received by the Council as fees, grants donations or subscriptions shall form part of a fund which shall be managed, administered and utilised in such manner as may be prescribed.

(2) The [2][Governing Body] shall cause to be maintained such books of account and other books in such form and manner as may be prescribed.

(3) The accounts of the Council shall be audited, before the thirtieth day of November each year, by an auditor appointed by the Council who is a chartered accountant within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961).

25. Bye-laws of the Council.— (1) The [2][Governing Body] may, with the previous sanction of the Federal Government, by notification in the official Gazette, make bye-laws for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such bye-laws may provide for all or any of the following matters, namely:-

(a) the summoning and holding of meetings of the Council and [2][Governing Body], the time and places where such meetings are to be held, the conduct of business and the number of members necessary to constitute a quorum at a meeting of the [2][Governing Body];

(b) the powers and duties of the Chairman, Vice-Chairman and Registrar;

(c) the terms of office and powers and duties of the Registrar and other officers and servants of the Council;

(d) the appointment, powers, duties and procedure of inspectors;

(e) the procedure for maintenance and publication of the Register, the fees to be charged under this Act and establishment of sub offices or branches of the Council;

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 1992 (26 of 1992), s.10.
[2]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 21 and shall be deemed to have taken effect of the 15th January, 2008

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(f) the management of the property of the Council and the maintenance and audit of its accounts;

(g) the procedure at any inquiry held under sub section (2) of section [1][22]; and

(h) any other matter which is to be or may be prescribed.

[2][**25A. Power to make regulations.—** The [1][Governing Body] may, in consultation with the committee of Vice-Chancellors of the Universities of Engineering and Technology of Pakistan set up by the [1][Higher Education Commission], make regulations, not inconsistent with the provisions of the this Act and the bye-laws, to provide for-

(a) minimum standard of courses of study and practical training for obtaining graduate and post-graduate engineering qualifications to be included in the First and Second Schedules;

(b) minimum requirement for the content and duration of courses of study as aforesaid;

(c) minimum qualifications for admission to engineering institutions offering course of study and laying down minimum standard for holding admission examinations;

(d) qualifications and experience required of teachers for appointment in engineering universities, colleges and institutions;

(e) minimum standards of examinations, and duration and standard of practical training, for securing [1][accreditation] of engineering qualifications under this Act; and

(f) qualifications and experience required of examiners for professional examinations of [1][accredited] engineering qualifications.

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26. Proof of membership, etc.— For the purposes of any action or proceeding under this Act, a certificate of the Registrar certifying under the seal of the Council that, on a specified date, the name of a person was or was not borne on the Register shall be proof of its contents and of the authenticity of his signature, until the contrary is proved.

27. Penalties and procedure.— (1) After such [3] date as the Federal Government may, after consultation with the Council, by notification in the official Gazette, appoint in this behalf, whoever undertakes any professional engineering work shall, if his name is not for the time being borne on the Register, be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both, and, in the case of a continuing offence, with a further fine which may extend to two hundred rupees for every day after the first during which the offence continues.

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), ss. 23-24 and shall be deemed to have taken effect of the 15th January, 2008.
[2]Ins. by the Pakistan Engineering Council (Amdt.) Act, 1983 (XVIII of 1983), s.4.
[3]For such date see Gaz. Of P. (Ext.,) (I), Pt. III, pp.3476-3699.

(2) After the date appointed as aforesaid, whoever employs for any professional engineering work any person whose name is not for the time being borne on the Register shall be punishable, on first conviction, with imprisonment for a term which may extend to six months, or with fine which may extend to five thousand rupees, or with both, and on a second or subsequent conviction, with imprisonment for a term which may extend to one year, or with fine which may extend to ten thousand rupees, or with both.

(3) Whoever willfully procures or attempts to procure himself or itself to be registered under this Act as a [1][registered engineer, professional engineer, consulting engineer, constructor or operator] by making or producing or causing to be made or produced any false or fraudulent representation or declaration, either orally or in writing, and any person who assists him therein shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

(4) Whoever falsely pretends to be registered under this Act, or not being registered under this Act, uses with his name or title any words or letters representing that he is so registered, irrespective of whether any person is actually deceived by such pretence or representation or not, shall be punishable with imprisonment for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

(5) No person undertaking any professional engineering work shall, unless he is registered under this Act, be entitled to recover before any court or other authority any sum of money for services rendered in such work.

[1][(5A) No person shall, unless registered as a registered engineer or professional engineer, hold any post in an engineering organization where he has to perform professional engineering work.]

(6) No court shall take cognizance of any offence punishable under this Act save on complaint made by, or under the authority of, the Council.

(7) No court inferior to that of a Magistrate of the first class shall try any offence punishable under this Act.

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28. Saving.— Nothing in this Act shall be deemed to—

(a) affect the right of any person who was, immediately before the date specified in a notification issued under sub-section (1) of section 27, entitled to practise as an architect to continue such practice, provided a professional engineering work is executed under the supervision of a professional engineer, or to prevent him from associating with a professional engineer;

(b) affect the right of any person to execute or undertake any work for which he has been trained in an institution specified by the Council, by notification in the official Gazette, for the purposes of this clause;

(c) affect the right of any person who was, immediately before the date specified in a notification issued under sub-section (1) of section 27, entitled to work as a land surveyor to continue such work, or

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[1]Subs and ins. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 25 and shall be deemed to have taken effect of the 15th January, 2008

(d) restrict the normal practice of his art or trade by an artisan or skilled workman [1][; or]

[1][(e) affect the rights of the members of the Governing Body constituted for the term commencing from the year 2008 and ending in 2010.]

29. Power to exempt.— If the Council so recommends, the Federal Government may, by notification in the official Gazette, exempt any person or class of persons, or any professional engineering work or class of such works, from the operation of the provisions of section 27, subject to such conditions, if any, as may be specified in the notification.

[2]**[29A. Supersession of Council**.— (1) If at any time it appears to the Federal Government that the Council has failed to exercise or has exceeded or abused any of the powers conferred upon it by or under this Act, the Federal Government may, if it is satisfied that such failure, excess or abuse has adversely affected the efficient conduct of the affairs of the Council or the achievenment of the objects of this Act, by notification in the official Gazette, supersede the Council for a period of two years and may, by a like notification extend the period of supersession for a further period of one year.

(2) Upon the supersession of the Council under sub-section (1)-

(a) the persons holding office as Chairman, Vice Chairman and members of the Council shall cease to hold office, and

(b) all powers and functions of the Council shall, during the period of supersession, be exercised and performed by such person or authority as the Federal Government may appoint in this behalf, as if such person or authority were the Council.

(3) The Council shall be reconstituted in accordance with the provisions of this Act for the exercise and performance of its pwers and functions on the expiry of the period specified in the notification under sub-section (1)].

30.Commission of Inquiry.—(1) Whenever it is made to appear to the Federal Government that the Council is not complying with any of the provisions of this Act, the Federal Government may refer the particulars of the complaint to a Commission of Inquiry consisting of-

(a) a person who is, or has been, or is qualified to be, a Judge of a High Court, to be appointed by the Federal Government;

(b) a professional engineer, to be nominated by the Federal Government; and

(c) a professional engineer, to be nominated by the Council.

(2) The Commission shall proceed to inquire and report to the Federal Government as to the truth of the matters charged in the complaint and, in case of any charge of default or of improper action being found by the Commission to have been established, the Commission shall recommend remedies, if any, which are in its opinion necessary.

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[1]Subs. and added by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 26 and shall be deemed to have taken effect of the 15th January, 2008

[2]Ins. by the Pakistan Engineering Council (Amdt.) Act, 2002 (CXXIX of 2002), s.2.

(3) The Federal Government may require the Council to adopt the remedies so recommended within such time as, having regard to the report of the Commission, [1][it] may think fit; and, if the Council fails to comply with any such requirement, the Federal Government may amend the bye-laws or make such provision or order or take such other steps as may seem necessary to give effect to the recommendations of the Commission.

(4) A Commission of Inquiry shall have power to administer oaths, to enforce the attendance of witnesses and the production of documents, and shall have all such other necessary powers for the purpose of any inquiry conducted by it as are exercised by a civil court under the Code of Civil Procedure, 1908 (Act V of 1908).

[2]**[30A. Indemnity.—** No suit, prosecution, or other legal proceedings shall lie against the Council or any of its Committees, Officers or servants for anything which is in good faith done or intended to be done in pursuance of this Act or the bye-laws or regulations made thereunder.]

[1]**[30B. Validation of actions.—** Anything done, actions taken, orders passed, instruments made, proceedings initiated, process or communications issued, powers conferred, assumed, exercised by the Council or its officer and servants on or after the 15th January, 2008, and before the commencements of the Pakistan Engineering Council (Amendment) Act, 2009 shall be deemed to have been validly done, made, issued , taken initiated, conferred, assumed and exercised and shall have, and shall be deemed always to have had, effect accordingly.]

31. **[Repeal].** *Omitted by the Federal Laws (Revision and Decloration) Ordinance, 1981 (XXVII of 1981), s. 3 and sch., II.*

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[1]Subs. by the Pakistan Engineering Council (Amdt.) Act, 2011 (II of 2011), s. 26 and shall be deemed to have taken effect of the 15th January, 2008

[2]Ins. by the Pakistan Engineering Council (Amdt.) Ordinance, 1983 (18 of 1983), s. 5.

THE PAKISTAN GIRL GUIDES ASSOCIATION ORDINANCE, 1960

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1. Short title, extent and commencement
2. Incorporation of Association
3. Constitution, powers and functions of Association
4. Exclusive right to titles, uniforms, badges, etc.
5. Penalty, etc.
6. [Omitted]

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THE PAKISTAN GIRL GUIDES ASSOCIATION ORDINANCE, 1960

ORDINANCE No. XLIV OF 1960

[2nd November, 1960]

AN
ORDINANCE

to incorporate the Pakistan Girl Guides Association and to provide for certain matters connected therewith

WHEREAS it is expedient to incorporate the Pakistan Girl Guides Association and to provide for certain matters connected therewith.

Now, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance: —

1. Short title, extent and commencement. — (1) This Ordinance may be called the Pakistan Girl Guides Association Ordinance, 1960.

(2) It extends to the whole of Pakistan.

(3) It shall come into force on such dates[1] as the [2][Federal Government] may, by notification in the official Gazette, appoint.

2. Incorporation of Association.—Notwithstanding anything in the Societies Registration Act, 1860 (XXI of 1860) or in any other law, the Pakistan Girl Guides Association, for the time being registered thereunder, shall, on the commencement of this Ordinance, cease to be so registered, and shall be deemed to be a body corporate by the name of the Pakistan Girl Guides Association (hereafter in this Ordinance referred to as the Association), having perpetual succession and a common seal, with power, subject to the rules made or deemed to have been made under section 3, to acquire, hold and dispose of property, movable or immovable, for the purposes of the Association, and shall by the said name sue and be sued.

3. Constitution, powers and functions of Association.—The Constitution, powers and functions of the Association shall, notwithstanding anything in the Companies Act, 1913 (III of 1913), be such as may be prescribed by rules to be made by the Association, with the previous approval in writing of the [2][Federal Government], and until such rules are made, the rules of the Pakistan Girl Guides Association registered under the Societies Registration Act, 1860 (XXI of 1860) and in force immediately before the commencement of this Ordinance, shall continue in force and be deemed to have been made under this section.

4. Exclusive right to titles uniforms, badges, etc. —The Association shall have the sole and exclusive right to have and to use all emblems, badges, uniforms and decorations, descriptive or designating marks and titles, now or heretofore used by the Association, and also the title "Girl Guides" or (saving the title of any unit of the Armed Forces of Pakistan or any Forces attached to or serving with such Forces), any title containing the word "Guides" or any grammatical variation thereof, and shall also have the sole and exclusive right to manufacture, have or use any emblem, badge, decoration, uniform, descriptive or designating mark or title hereafter adopted by the Association for carrying out its objects.

[1]Enforced on 8th December, 1960, see S. R. O. 45 (R), Gazette of Pakistan 1960, Extraordinary Page No. 1826 a.
[2]Subs. by Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Article 2 and Table.

5. Penalty, etc.—(1) Whoever contravenes any provision of section 4 shall be punishable with fine.

(2) If such contravention is committed by a company, association or body of individuals, every member thereof who is knowingly a party to the contravention shall be deemed to be guilty of such contravention.

6. [1][Omitted]

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RGN Date: 26-06-2024

[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (Ordinance No. XXVII of 1981), S.3 and II Sch.

THE PAKISTAN INDUSTRIAL DEVELOPMENT CORPORATION (DISSOLUTION) ORDINANCE, 1984.

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THE PAKISTAN INDUSTRIAL DEVELOPMENT CORPORATION (DISSOLUTION) ORDINANCE, 1984.

ORDINANCE NO. LII OF 1984

[7th November, 1984]

An Ordinance to provide for the dissolution of the Pakistan Industrial Development Corporation.

WHEREAS it is expedient to provide for the dissolution of the Pakistan Industrial Development Corporation and for matters ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Pakistan Industrial Development Corporation (Dissolution) Ordinance, 1984.

(2) It shall come into force at once.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Corporation" means the Pakistan Industrial Development Corporation established under the Pakistan Industrial Development Corporation Ordinance, 1962 (XXXVIII of 1962).

(b) "Company" means the Pakistan Industrial Development Corporation Limited, a company formed and registered under the Companies Act, 1913 (VII of 1913);

(c) "Managed Company" means a company formed and registered under the Companies Act, 1913 (VII of 1913) which is being managed by the Corporation and of the issued and subscribed share capital of which the whole or a part is held by the Corporation and its nominees;

(d) "project" means a project in the possession, ownership, power or control of the Corporation and includes the assets, rights, authorities, powers, privileges, properties, lands, buildings, mines, leases, lease-holds, licences, works, workshops, any related office, shop, factory godown, yard, stocks, stores, reserve fund, cash and bank balances, investments, security, book-debts, and all rights, interests and benefits in assignable contracts and choses in action relating to the project, and all books of accounts, registers, records and all other

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documents of whatever nature relating thereto and all borrowings, liabilities and obligations of whatever kind of or relating to the project;

(e) "properties", in relation to the Corporation, includes assets, rights, authorities, powers, privileges, properties, both movable and immovable, including lands, mines, leasees, leaseholds, licences, works, workshops, reserve funds, investments, shares, book-debts, and all rights interests and benefits in assignable contracts and choses in action; and

(f) "subsidiary" means a company formed by the Corporation and registered under the Companies Act, 1913 (VII of 1913) for the purpose of eventually owning and managing a project.

3. Ordinance to override other laws. The provisions of this Ordinance and any rule or order made thereunder shall have effect notwithstanding anything contained in any other law for the time being in force, or in any contract, agreement, award, memorandum or articles of association or other instrument whatsoever.

4. Transfer of projects, etc. of the Corporation. The Federal Government may, by order, direct that—

(a) the business, projects and properties of the Corporation shall stand transferred to the Company or to such subsidiary on such date in such manner and to such extent as may be specified in the order and the business, projects and properties so transferred shall, as from that date, be carried on by, and vest, in the Company or subsidiary, as the case may be; and

(b) all the shares held by the Corporation and its nominees in the capital of a Managed Company and subsidiary shall stand transferred to and vest in the Company on such date as may be specified in the order, and thereupon the Company shall become the registered holder of such shares and have the same rights under the Companies Act, 1913 (VII of 1913), or any other law or the articles of association of the Managed Company and the subsidiary as the Corporation and its nominees had immediately before the said date.

5. Contracts and proceedings.—(1) Unless otherwise expressly provided in this Ordinance, on the vesting of the business, projects, properties and shares of the Managed Companies in the Company or a subsidiary, all orders, contracts, deeds, bonds, agreements, powers of attorney, grants of legal representation and other instruments of whatever nature subsisting or having effect immediately before the date of the vesting, executed or issued by or in favour of the Corporation in relation to such business, projects, properties or Managed Companies shall be of as full force and effect against or in favour of the Company or as the case may be, the subsidiary and may be enforced or acted upon as fully and effectually, as if instead of the Corporation the Company or the subsidiary had been a party thereto or as if the same had been issued by or in favour of the Company or the subsidiary.

(2) If any suit, appeal or other proceedings of whatever nature in relation to any business, properties or Managed Company which is or, as the case may be, the shares of which are, vested in the Company or a subsidiary is pending by or against the Corporation, the same shall not abate, be

discontinued or be in any way prejudicially affected by reason of the vesting or of anything done under this Ordinance, but the suit, appeal or other proceedings may be continued, prosecuted and enforced by or against the Company or the subsidiary, as the case may be.

6. Continuance in service of employees, etc.—(1) All officers, advisers, workmen and other employees of the Corporation shall stand transferred to the Company or, as the case may be, subsidiary as from the date of vesting of the projects and properties in the Company or the subsidiary.

(2) Every officer, adviser, workman and other employee employed in a business or project or in connection with the properties vested in the Company or a subsidiary, by whomsoever appointed, shall, on the day of the vesting of the business, properties or project in the Company or the subsidiary, become an officer, adviser, workman or other employee as the case may be, of the Company or the subsidiary.

(3) An officer, adviser, workman or other employee who becomes an officer, adviser, workman or other employee of the Company or a subsidiary shall in the Company or the subsidiary be entitled to such terms and conditions as are not less favourable than those to which he was or may be entitled immediately before the day on which he becomes an officer, adviser, workman or other employee of the Company or the subsidiary and his transfer to the company or the subsidiary shall not entitle any such officer, adviser, workman or other employee to any compensation or to the designation he was holding at the time of such transfer and no claim for such compensation or designation shall be entertained by any court tribunal or other authority.

7. Dissolution of the Corporation.—(1) As soon as may be after the order under section 4 is issued, the Federal Government may, by notification in the official Gazette, direct that the Corporation shall be dissolved on such date as may be specified in the notification and thereupon the Corporation shall stand dissolved.

(2) Upon the dissolution of the Corporation under sub-section (I), the Pakistan industrial Development Corporation Ordinance, 1962 (XXXVIII of 1962), shall stand repealed.

8. Provident Fund. Notwithstanding anything contained in the Employees Provident Fund Trust Deed or Rules of the Corporation or any other law for the time being in force, the rights and privileges of the Corporation in respect of the Employees Provident Fund shall devolve upon the Company upon the dissolution of the Corporation and any such Fund shall become the fund of the Company.

9. Bar of Jurisdiction, etc.—(1) No Court shall call in question, or permit to be called in question, any order made or anything done or any action taken or purporting to be made, done or taken under this Ordinance.

(2) No suit, prosecution or other legal proceedings shall lie against the Federal Government, the Corporation, the Company, a subsidiary, a Managed Company, a project or any other person for anything in good faith done or intended or purporting to be done under this Ordinance.

10. Reference in other laws. Any reference to the Corporation in relation to a business, project or property which is or, as the case may be, to a Managed Company the shares of which are, vested in the Company or a subsidiary in any law, other than this Ordinance, or any contract or other instrument,

shall, if not inconsistent with any provision of this Ordinance, be construed as a reference to the Company or, as the case may be, the subsidiary.

11. Power to make rules. The Federal Government may, by notification in the official Gazette, make such rules as appear to it necessary or expedient for carrying out the purposes of this Ordinance.

12. Removal of difficulties. If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may make such order or issue such directives, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary or expedient for the purpose of removing the difficulty:

Provided that no such order shall be made after the expiry of one year from the commencement of this Ordinance.

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THE PAKISTAN INSTITUTE OF ENGINEERING AND APPLIED SCIENCES ORDINANCE, 2000

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THE PAKISTAN INSTITUTE OF ENGINEERING AND APPLIED SCIENCES ORDINANCE, 2000

ORDINANCE No. X of 2000

[22nd March, 2000]

An Ordinance to confer on the Pakistan Institute of Engineering and Applied Sciences, Islamabad, the power to award degrees

WHEREAS it is expedient to confer on the Pakistan Institute of Engineering and Applied Sciences, Islamabad, the power to award degrees and to provide for matters connected there with or ancillary thereto;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the Fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 as amended;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of Proclamation of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as amended, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement:— (1) This Ordinance may be called the Pakistan Institute of Engineering and Applied Sciences Ordinance, 2000.

(2) It shall come into force at once.

2. Definition:— In this Ordinance, unless there is anything repugnant in the subject or context,—

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(a) "Board" means the Board of Governors of the Institute constituted under section 9;

(b) "Chairman" means the Chairman of the Board;

(c) "Chancellor" means the Chancellor of the Institute;

(d) "Commission" means the Pakistan Atomic Energy Commission established under the Pakistan Atomic Energy Commission Ordinance, 1965; (XVII of 1965)

(e) "Institute" means the Pakistan Institute of Engineering and Applied Sciences notified as such *vide* Pakistan Atomic Energy Commission's Circular No. 19(116)/97-l, dated the 5th December, 1997;

(f) "prescribed" means prescribed by Rules;

(g) "Pro-Rector" means the Pro-Rector of the Institute appointed under section 8;

(h) "Rector" means the Rector of the Institute appointed under section 7; and

(i) "Rules" means the Rules made under this Ordinance.

3. Establishment of the Institute:— The Pakistan Institute of Engineering and Applied Sciences, Islamabad, as reconstituted in accordance with the provisions of this Ordinance shall be a body corporate having perpetual succession and a common seal with power to acquire, hold and dispose off property, both movable and immovable and shall by the said name sue and be sued.

4. Powers of the Institute:— The Institute shall have powers—

(a) to provide for instruction and training in engineering and applied sciences including medicine and any other discipline;

(b) to prescribe courses of study for all the educational and training programmes offered at the Institute, and approve courses of study offered by its affiliates;

(c) to decide teaching methods and strategies in order to ensure the most effective educational and training programmes;

(d) to specify selection criteria, admit and examine students, hold examinations and confer or award degrees, diplomas, certificates, academic and research prizes and distinctions on and to persons who fulfil the requirements or have passed its examinations in accordance with such conditions as may be prescribed by rules;

(e) to provide for the teaching of specified courses and training for persons not being the students of the Institute and grant certificates and diplomas to such persons, pursue and make provisions for research, innovations, inventions, demonstrations and other services as it may deem fit;

(f) to ensure technical excellence and promote humanitarian values among its students;

(g) to establish and maintain campuses for the effective discharge of its functions and responsibilities anywhere in Pakistan;

(h) to undertake joint investigation and collaborative research in the field of engineering, applied sciences and other allied disciplines;

(i) to provide assistance to industry, Government institutions and organisations in the country and abroad through expert advice, consultation or in any other manner as it may deem fit;

(j) to promote contact, establish liaison and enter into agreements, contracts and arrangements with national and international universities, institutions and other

research and development organisations within the country and abroad for effective discharge of its functions and responsibilities;

(k) to affiliate or associate itself with other institutions in Pakistan or abroad and allow affiliation to other institutions with itself;

(l) to print, publish and circulate periodicals, journals, magazines, monographs, books, and disseminate scientific, technological and other related knowledge and information conducive to the attainment of any of the objectives of the Institute;

(m) to award fellowships, scholarships, stipends, bursaries, medals and prizes;

(n) to confer, in the prescribed manner, honorary degrees;

(o) to confer, in the prescribed manner, the status of 'professor emeritus' on distinguished scholars and determine appropriate remuneration for them;

(p) to establish Chairs in various disciplines within the Institute that may be funded through its own resources or by individuals or organisations from within the country or abroad;

(q) to supervise and control the discipline of the students of the Institute;

(r) to promote extra-curricular and recreational activities of its students, and to make arrangements for promoting their health and general welfare;

(s) to perform internal security functions within its premises;

(t) to charge and receive such fees and other payments as it may determine;

(u) to accept and receive donations, contributions, subscriptions, aid and grants made by individuals and organisations, both national and foreign;

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(v) to use its financial and other resources to the fullest extent for the execution of its programmes; and

(w) to do all such acts and things as may be required to improve its objectives and perform its functions.

5. Officers of the Institute:— The following shall be the officers of the Institute, namely:—

(i) the Chancellor;

(ii) the Rector;

(iii) the Pro-Rector; and

(iv) such other officers as may be appointed by the Board.

6. Chancellor:— (1) The President of the Islamic Republic of Pakistan shall be the Chancellor of the institute.

(2) The Chancellor shall preside over the convocations of the Institute and, in his absence, the Chairman shall preside.

(3) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

7. Rector:— (1) The Chancellor shall, on the recommendation of the Chairman, appoint an educationist of distinction as Rector for such period and on such terms and conditions as he may determine.

(2) The Rector shall be the executive and academic head of the Institute and shall exercise general control and supervision over its affairs.

(3) The Rector shall be the executive and academic head of the Institute and shall exercise general control and supervision over its affairs.

8. Pro-Rector:— (1) The Pro-Rector shall be appointed by the Board, and shall act as the Secretary of the Board.

(2) In the absence of the Rector he shall act as Rector.

(3) The Pro-Rector shall assist the Rector in particular, on matters relating to teaching, research, academic programme and development projects.

9. Board of Governors:— (1) The overall control of the Institute shall vest in the Board of Governors subject to such conditions and restrictions as the Commission may deem fit.

(2) The Board shall consist of the following *ex-officio* members, namely:—

(i) Chairman, Pakistan Atomic Energy Commission, who shall also be the Chairman of the Board;

(ii) all full-time members of the Pakistan Atomic Energy Commission;

(iii) Secretary, Ministry of Education;

(iv) Secretary, Ministry of Science and Technology;

(v) Chairman, University Grants Commission, or his nominee of the rank of a full time member;

(vi) Vice-Chancellor, Quaid-i-Azam University;

(vii) Rector, National University of Science and Technology;

(viii) Chairman, Pakistan Engineering Council;

(ix) Chairman, Pakistan Medical and Dental Council; and

(x) Rector.

(3) The following shall be nominated members of the Board, namely:—

(a) two eminent engineers;

(b) two prominent scientists;

(c) two distinguished persons known for their learning and experience in the field of management, industry or related fields of interest; and

(d) two faculty members of the Institute.

(4) A nominated member of the Board shall be nominated by the Chairman in consultation with the Rector.

(5) A nominated member of the Board shall, unless the Chairman, with the approval of the Commission, terminates his membership earlier, hold office for a term of three years and shall be eligible for renomination on the expiry of his term.

(6) The office of a nominated member of the Board shall become vacant if he resigns or fails to attend three consecutive meetings of the Board without sufficient cause or leave of absence.

(7) A casual vacancy in the office of a nominated member of the Board shall be filled by a person nominated by the Chairman with approval of the Commission.

(8) No act or proceedings of the Board shall be invalid by reason only of the existence of a vacancy in, or any defect in the constitution of, the Board.

10. Powers and functions of the Board:— The Board shall exercise and perform the following powers and functions, namely:—

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(a) to recommend all such activities as may be required for the furtherance of the objectives;

(b) to approve the creation of new components of the Institute such as school, department, faculty, division, centre or any other teaching or research unit with the approval of the Commission;

(c) to undertake responsibility for the financial integrity of the Institute, for ensuring effectiveness of its future operations;

(d) to formulate or approve long-term strategies, policies and plans governing the activities and operation of the Institute so as to ensure its autonomy in teaching, research and other academic work;

(e) to approve the annual budget of the Institute;

(f) to call for annual, bi-annual or quarterly progress reports relating to the activities of the Institute and execution of the approved work plans to review the progress and direct the Rector to furnish information relating to any matter;

(g) to recommend to the Commission the creation of such administrative and academic posts on specified terms and conditions as may be deemed necessary for the performance of its function and to approve appointment to such posts on the recommendations of a duly constituted Selection Committee;

(h) to approve all affiliations and other arrangements through which universities and other research and development organizations may become associated with the Institute;

(i) to authorise when required, the mobility of qualified staff among universities, research organisations and other bodies, provided that the rights and privileges of the staff under this arrangement shall be protected;

(j) to perform such other functions and exercise such other powers as may be specified by the Commission.

11. Meetings of the Boards:— (1) The Board shall meet at least twice in a year on dates to be fixed by the Chairman:

Provided that a special meeting may be called at any time at the request of not less than five members of the Board to consider any matter of an urgent nature.

(2) The Chairman shall, preside over the meeting of the Board and in his absence, a member nominated by him shall preside.

(3) The quorum for a meeting of the Board shall be one half of its members, a fraction being counted as one, and out of which not less than four shall be the nominated members.

(4) The decision of the Board shall be expressed in terms of the views of the majority of the members present and voting and, if the members are equally divided, the Presiding Officer of the Board shall have and exercise a casting vote.

12. Delegation of Powers:—The Board may, by general or special order in writing, direct that such of its powers shall, in such circumstances and under such conditions, if any, as may be specified in the order, be exercisable by members of the Board or officers of the Institute as it may specify.

13. **Committees:**— (1) The Board may constitute the following committees, namely:—

(i) the Executive Committee;

(ii) the Academic Committee;

(iii) the Finance Committee; and

(iv) any other committee that may be needed

(2) The constitution, function and powers of the committees shall be such as may be prescribed.

(3) The decision of the Committees shall be subject to the approval of the Board.

14. Academic and Administrative employees:—(1) The regular technical, academic and administrative employees of the Commission may be transferred to work at the Institute as may be prescribed by rules and such employees shall be governed by the service regulations of the Commission.

(2) The Board may authorise grant of additional remuneration and privileges to the employees working at the Institute as it may deem fit.

(3) The Institute may continue to exercise such powers of recruitment, appointments and promotion as may be prescribed by the Commission from time to time.

(4) The Board may make appointment on contract basis on such terms and conditions as may be prescribed by rules.

15. Fund of the Institute:— The Institute shall have a fund to which shall be credited:—

(i) all grants and contributions made by the Commission;

(ii) donations, subscriptions, aid and grants made by the donors;

(iii) aid, grants and other forms of assistance by the Federal Government, Provincial Governments and local bodies, national and international institutions, organisations and agencies; and

(iv) fees, remuneration, charges for any service rendered, sale proceeds, royalties on publications, commission and receipts from any other source.

16. Audit and accounts:— (I) The accounts of the Institute shall be maintained in such form and manner as the Federal Government in consultation with the Auditor General of Pakistan, determine.

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(2) The accounts of the Institute shall be audited by an Auditor who is a Chartered Accountant within the meaning of the Chartered Accountants Ordinance, 1961, (X of 1961) and is appointed by the Federal Government in consultation with Auditor General of Pakistan on such remuneration, to be paid by the Institute, as the Federal Government may fix.

17. Declaration of fidelity and secrecy:— Every member of the Board, officer or other employee of the Institute shall make such declaration of fidelity and secrecy as may be prescribed by rules.

18. Institute open to all classes, creeds etc.:—The Institute shall be open to all persons of either sex of whatever religion, race, colour or domicile who are academically qualified for admission to the courses of study offered by the Institute based on the criteria and policy determined by the Board and no person shall be denied the privileges of the Institute on the ground only of sex, religion, race, class, colour or domicile.

19. Discoveries and inventions to vest in the Institute:— All rights relating to discoveries and inventions and any improvements in materials, methods, processes, apparatus or equipment made by any officer or employee of the Institute in the course of his employment shall vest in the Institute.

20. **Budget:**— (1) The Institute shall, in each year, submit to the Board for approval a budget by such date and in the form as may be prescribed by rules, for each financial year, showing the estimated receipts and expenditure and the sums which are likely to be required from the Federal Government during the financial year.

(2) The Institute may open accounts in any scheduled bank in Pakistan.

21. Indemnity:— No suit, prosecution or other legal proceeding shall lie against the Institute, Commission or any officer of the Institute for anything which is done or intended to be done in good faith under this Ordinance.

22. Transfer of assets and liabilities etc.:— Upon the commencement of this Ordinance,—

(a) everything done, action taken, obligations and liabilities incurred, persons appointed or authorised, fellowships or scholarships instituted and orders issued prior to such commencement shall be continued and, so far as may be, be deemed to have been respectively done, taken, incurred, appointed or authorised, instituted or issued by the Institute;

(b) all monies and properties held by the Institute immediately before such commencement shall stand transferred to, and vest in, the Institute; and

(c) all laws, rules, regulations and bye-laws applicable to the Institute shall, in so far as they are not inconsistent with the provisions of this Ordinance, continue to be in force until they are repealed, rescinded or modified under this Ordinance.

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23. Removal of difficulties, etc.:—If any difficulty arises in giving effect to any of the provisions of this Ordinance, the Commission may make such order, not inconsistent with the provisions of this Ordinance, as may appear to be necessary for removing such difficulty.

24. Power to make rules:—The Board may, with approval of the Commission, make rules for carrying out the purposes of this Ordinance.

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THE PAKISTAN INSTITUTE OF FASHION AND DESIGN ACT, 2011

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THE PAKISTAN INSTITUTE OF FASHION AND DESIGN ACT, 2011

ACT No. X OF 2011

[29th May, 2011]

An Act to provide for reconstitution of the Pakistan Institute of Fashion and Design, Lahore.

WHEREAS it is expedient to provide for reconstitution of the Pakistan Institute of Fashion and Design, Lahore with the powers to award degrees and for the matters connected therewith or ancillary thereto;

It is hereby enacted as follows:

CHAPTER-I

PRELIMINARY

1. Short title and commencement.— (l) This Act may be called the Pakistan Institute of Fashion and Design Act, 2011.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context,

(a) "Academic Council" means the Academic Council of the Institute;

(b) "Authority" means any of the Authorities of the Institute specified in terms of section 15;

(c) "Chancellor" means the Chancellor of the Institute;

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(d) "College" means a constituent college;

(e) "Commission" means the Higher Education Commission set up under the Higher Education Commission Ordinance, 2002 (LIII of 2002);

(f) "Dean" means the head of a Faculty or the head of an academic body granted the status of a Faculty under this Act or by the statutes or regulations;

(g) "Department" means a teaching department maintained and administered or recognized by the Institute in the manner prescribed;

(h) "Deputy Chairperson" means the Pro-Chancellor of the Institute;

(i) "Faculty" means an administrative and academic unit of the Institute consisting of one or more departments, as prescribed;

(j) "Government" means the Federal Government;

(k) "Institute" means the Pakistan Institute of Fashion and Design, Lahore, reconstituted under section 3;

(1) "Institute teacher" means a whole-time teacher appointed and paid by the Institute, or recognized by the Institute as such;

(m) "prescribed" means prescribed by statutes, regulations or rules made under this Act;

(n) "Principal" means the head of a college;

(o) "Representation Committees" means the Representation Committees constituted under section 23;

(p) "Review Panel" means the Review Panel set up by the Chancellor in accordance with the provisions of section 8;

(q) "Search Committee" means the Search Committee set up by the Senate under section 11;

(r) "Senate" means the Senate of the Institute;

(s) "statutes", "regulations" and "rules" means respectively the statutes, the regulations and the rules made under this Act and for the time being in force;

(t) "Syndicate" means the Syndicate of the Institute;

(u) "teachers" include Professors, Associate Professors, Assistant Professors and Lecturers engaged whole-time by the Institute or by a constituent college and such other persons as may be declared to be teachers by regulations; and

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(v) "Vice-Chancellor" means the Vice-Chancellor of the Institute.

CHAPTER-II

THE INSTITUTE

3. Incorporation of the Institute.— (l) The Pakistan Institute of Fashion and Design, Lahore shall, from the date of publication in the official Gazette of notification in this behalf, stand reconstituted as the Pakistan Institute of Fashion and Design having degree awarding status.

(2) The Institute shall consist of

(a) the Chancellor, the Pro-Chancellor, the members of the Senate and the Vice-Chancellor;

(b) the members of the Authorities of the Institute established under section 15;

(c) all institute teachers and persons recognized as students of the Institute in accordance with terms prescribed from to time; and

(d) all other full-time officers and members of the staff of the Institute.

(3) The Institute shall be a body corporate having perpetual succession and a common seal and may by the said name sue and be sued.

(4) The present regular or full time employees of the Institute shall continue to be employed under this Act under existing terms and conditions not less favourable than those prevailing at present,

(5) The Institute shall be competent to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

(6) Notwithstanding anything contained in any other law for the time being in force, the Institute shall have academic, financial and administrative autonomy, including the power to employ officers, teachers. and other employees on such terms as may be prescribed, subject to the terms of this Act and the Higher Education Commission Ordinance, 2002 (LIII of 2002). In particular, and without prejudice to the authority granted to the Commission by the law, the Government or an authority or auditor appointed by the Government shall have no power to question the policy underlying the allocation of resources approved by the Senate in the annual budget of the Institute.

(7) All properties, rights and interests of whatever kind, used, enjoyed, possessed, owned or vested in, or held in trust by or for the Institute and liabilities legally subsisting against the Institute shall pass to the Institute reconstituted under this Act.

(8) The Institute shall follow the guidelines and policy directives, as the Federal Government may issue, from time to time, for achieving the purposes of this Act.

4. Powers and purposes of the Institute.— The Institute shall have the following powers and purposes, namely:—

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(i) to provide for education and scholarship in such branches of knowledge as it may deem fit, and to make provision for research, service to society and for the application, advancement and dissemination of knowledge in such manner as it may determine;

(ii) to prescribe courses of studies to be conducted by it and the colleges;

(iii) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons, who have been admitted to and have passed its examinations under prescribed conditions;

(iv) to prescribe the terms and conditions of employment of the officers, teachers, and other employees of the Institute and to lay down terms and conditions that may be different from those applicable to Government servants in general;

(v) to engage, where necessary, persons on contracts of specified duration and to specify the terms of each engagement;

(vi) to confer honorary degrees or other distinctions on approved persons in the manner prescribed;

(vii) to provide for such instruction for persons not being students of the Institute as it may prescribe, and to grant certificates and diplomas to such persons;

(viii) to institute programs for the exchange of students and teachers between the Institute and other universities, educational institutions and research organizations, inside as well as outside Pakistan;

(ix) to provide career counseling and job search services to students and alumni;

(x) to maintain linkages with alumni;

(xi) to develop and implement fund-raising plans;

(xii) to provide and support the academic development of the Faculty;

(xiii) to confer degrees on persons who have carried on independent research under prescribed conditions;

(xiv) to accept the examinations passed and the period of study spent by students of the Institute at other universities and places of learning equivalent to such examinations and periods of study in the Institute, as it may prescribe, and to withdraw such acceptance;

(xv) to co-operate with other universities, public authorities or private organizations, inside as well as outside Pakistan, in such manner and for such purposes as it may prescribe;

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(xvi) to institute Professorships, Associate Professorships, Assistant Professorships and Lecturerships and any other posts and to appoint persons thereto;

(xvii) to create posts for research, extension, administration and other related purposes and to appoint persons thereto;

(xviii) to recognize selected members of the teaching staff of affiliated colleges or educational institutions admitted to the privileges of the Institute or such other persons as it may deem fit, as Institute teachers;

(xix) to institute and award financial assistance to students in need, fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(xx) to establish teaching departments, schools, colleges, faculties, institutes, museums and other centers of learning for the development of teaching and

research and to make such arrangements for their maintenance, management and administration as it may prescribe;

(xxi) to provide for the residence of the students of the Institute and the constituent colleges, to institute and maintain halls of residence and to approve or license hostels and lodging;

(xxii) to maintain order, discipline and security on the campuses of the Institute and the constituent colleges;

(xxiii) to promote the extra curricular and recreational activities of such students, and to make arrangements for promoting their health and general welfare;

(xxiv) to demand and receive such fees and other charges as it may determine;

(xxv) to make provision for research, advisory or consultancy services and with these objects to enter into arrangements with other institutions, public or private bodies, commercial and industrial enterprises under prescribed conditions;

(xxvi) to enter into, carry out, vary or cancel contracts;

(xxvii) to receive and manage property transferred and grants, contributions made to the Institute and to invest any fund representing such property, grants bequests, trusts, gifts, donations, endowments or contributions in such manner as it may deem fit;

(xxviii) to provide for the printing and publication of research and other works;

(xxix) to make rules, regulations and statutes for the Institute; and

(xxx) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite or expedient in order to further the objectives of the Institute as a place of education, learning and research.

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5. Institute open to all classes, creeds, etc.— (l) The Institute shall be open to all persons of either sex of whatever religion, race, caste, class, creed, colour or domicile who qualify for admission to the courses of study offered by the Institute based on the criteria and policy determined by the Senate, and no such person shall be denied the privileges of the Institute on the ground only of sex, religion, race, caste, class, creed, colour or domicile.

(2) An increase in any fee or charge that is in excess of ten *per cent per annum* on an annualized basis from the last such increase may not be made except in special circumstances, and only with the approval of the Senate.

(3) The Institute shall initiate financial aid programs for students in need, to the extent considered feasible by the Senate given the resources available, so as to enable admission and access to the Institute and the various opportunities provided by it to be based on merit rather than ability to pay;

Provided that the Institute may initiate self-finance schemes covering not more than ten *per cent* of the total number of candidates in any campus taught course or research-based program of study.

6. Teaching and examination at the Institute.— (l) All academic programs of the Institute shall be conducted in the prescribed manner and the Senate shall ensure that the courses of study, the curriculum and the practical work at the Institute are comparable in standard with other similar institutions.

(2) All recognized teaching in various courses shall be conducted by the Institute or a college in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations, distance learning and other methods of instruction as well as practical work in the laboratories, hospitals, workshops and other governmental or private organizations.

(3) The authority responsible for organizing recognized academic programs shall be such as may be prescribed.

(4) The Institute shall associate internal and external examiners in the conduct of examinations.

(5) No degree shall he granted unless a student has passed an examination in Islamic and Pakistan Studies, or, in the case of a non-Muslim student in Ethics and Pakistan Studies.

CHAPTER-III

OFFICERS OF THE INSTITUTE

7. Officers.— The following shall be the officers of the Institute, namely:

(a) the Chancellor;

(b) the Pro-Chancellor;

(c) the Vice-Chancellor;

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(d) the Deans;

(e) the Principals of the colleges;

(f) the Registrar;

(g) the Treasurer;

(h) the Controller of Examinations; and

(i) such other persons as may be prescribed by the statutes or regulations to be the officers of the Institute.

8. Chancellor and Pro-Chancellor.— (1) The President of Pakistan shall be the Chancellor of the Institute and the Chairperson of the Senate.

(2) The Chancellor shall, when present, preside at the meetings of the Senate and the convocation of the Institute. In the absence of the Chancellor, the Senate may request a, person of eminence to preside over the convocation of the Institute.

(3) The Federal Minister for Commerce or as, the case may be, the Minister-in-Incharge of the administrative Ministry, shall be the Pro-Chancellor of the Institute and Deputy Chairperson of the Senate.

(4) The members of the Senate as well as the Vice-Chancellor shall be appointed by the Chancellor from amongst the persons recommended by the Representation Committee set up for this purpose or the Search Committee established in accordance with the provisions of this Act and the statutes, as the case may be.

(5) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(6) If the Chancellor is satisfied that serious irregularity or mismanagement with respect to the affairs of the Institute has occurred, he may,

(a) as regards proceedings. of the Senate direct that specified proceedings be reconsidered and appropriate action taken within one month of the direction having been issued:

Provided that if the Chancellor is satisfied that either no reconsideration has been carried out or that the reconsideration has failed to address the concern expressed he may, after calling upon the Senate to show cause in writing, appoint a five member Review Panel to examine and report to the Chancellor on the functioning of the Senate. The report of the Review Panel shall be submitted within such time as may be prescribed by the Chancellor. The Review Panel shall be drawn from persons of eminence in academics and in the fields of law, accountancy and administration; and

(b) as regards proceedings of any Authority or with respect to matters within the competence of any Authority other than the Senate, direct the Senate to exercise powers under section 18.

9. Removal from the Senate.— (1) The Chancellor may, upon the recommendation of the Review Panel, remove any person from the membership of the Senate on the ground that such person:

(a) has become of unsound mind;

(b) has become incapacitated to function as member of the Senate;

(c) has been convicted by a court of law for an offence involving moral turpitude;

(d) has absented himself from two consecutive meetings without just cause; or

(e) has been guilty of misconduct, including use of position for personal advantage, of any kind, or gross inefficiency in the performance of functions.

(2) The Chancellor shall remove any person from the membership of the Senate on a resolution calling for the removal of such person supported by at least three-fourth of the membership of the Senate:

Provided that before passing such resolution the Senate shall provide the member concerned an opportunity of being heard:

Provided further that the provisions of this section shall not he applicable to the Vice-Chancellor in his capacity as a member of the Senate.

10. Vice-Chancellor of the Institute.— (1) There shall be a Vice-Chancellor of the Institute who shall be an eminent academic or a distinguished administrator and shall be appointed on such terms and conditions as may be prescribed.

(2) The Vice-Chancellor shall be the chief executive officer of the Institute responsible for all administrative and academic functions of the Institute and for ensuring that the provisions of this Act, statutes, regulations and rules are faithfully observed in order to promote the general efficiency and good order of the Institute. The Vice-Chancellor shall have all powers prescribed for this purpose, including administrative control over the officers, teachers and other employees of the Institute.

(3) The Vice-Chancellor shall, if present, be entitled to attend any meeting of any Authority or body of the Institute.

(4) The Vice-Chancellor may, in an emergency that in his opinion requires immediate action ordinarily not in the competence of the Vice-Chancellor, take such action and forward, within seventy-two hours, a report of the action taken to the members of the Emergency Committee of the Senate to be set up by statute. The Emergency Committee may direct such further action as is considered appropriate.

(5) The Vice-Chancellor shall also have the following powers, namely:

(a) to direct teachers, officers and other employees of the Institute to take up such assignments in connection with examination, administration and such other activities in the Institutes as. he may consider necessary for the purposes of the Institute;

(b) to sanction by re-appropriation an amount not exceeding an amount prescribed by the Senate for an unforeseen item not provided for in the budget and report it to the Senate at the next meeting;

(c) to make appointments of such categories of employees of the Institute and in such manner as may be prescribed by the statutes;

(d) to suspend, punish and remove, in accordance with prescribed procedure, from service officers, teachers and other employees of the Institute except those appointed by or with the approval of the Senate;

(e) to delegate, subject to such conditions as may be prescribed, any of his powers under this Act to an officer or officers of the Institute; and

(f) to exercise and perform such other powers and functions as may be prescribed.

(6) The Vice-Chancellor shall present an annual report before the Senate within three months of the close of the academic year. The annual report shall present such information as regards the academic year under review as may be prescribed, including disclosure of all relevant facts pertaining to

(a) academics;

(b) research;

(c) administration; and

(d) finances.

(7) The Vice-Chancellor shall make available annual report, prior to its presentation before the Senate, to all officers and Institute teachers and it shall be published in such numbers as are required to ensure its wide circulation.

11. Appointment and removal of the Vice-Chancellor.— (1) The Vice-Chancellor shall be appointed by the Chancellor on the basis of recommendations made by the Senate.

(2) A Search Committee for the recommendation of persons suitable for appointment as Vice-Chancellor shall be constituted by the Senate on the date and in the manner prescribed by statutes and shall consist of two eminent members of society nominated by the Chancellor of whom one shall, be appointed the convener two members of the Senate, two distinguished Institute teachers who are not members of the Senate and one academic of eminence not employed by the Institute. The two distinguished Institute teachers shall be selected by the Senate through a process, to be prescribed by statute that provides for the recommendation of suitable names by the Institute teachers in general. The Search Committee shall remain in existence till such time that the appointment of the next Vice-Chancellor has been made by the Chancellor.

(3) The persons proposed by the Search Committee for appointment as Vice-Chancellor shall be considered by the Senate and of these a panel of three in order of priority shall be recommended by the Senate to the Chancellor.

Provided that the Chancellor may decline to appoint any of the three persons recommended and seek recommendation of a fresh panel. In the event of a fresh recommendation being sought by the Chancellor the Search Committee shall make a proposal to the Senate in the prescribed manner.

(4) The Vice-Chancellor shall be appointed for a renewable tenure of five years on terms and conditions prescribed by statute. The tenure of an incumbent Vice-Chancellor of the Institute shall be renewed by the Chancellor on receipt of a resolution of the Senate in support of such renewal;

Provided that the Chancellor may call upon the Senate to reconsider such resolution once.

(5) The Senate may, pursuant to a resolution in this behalf passed by three-fourth of its membership, recommend to the Chancellor the removal of the Vice-Chancellor on the ground of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantages of any kind:

Provided that the Chancellor may make reference to the Senate stating the instances of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct on the part of the Vice-Chancellor that have come to his notice. After consideration of the reference the Senate may, pursuant to a resolution in this behalf passed by two-third of its membership, recommend to the Chancellor the removal of the Vice-Chancellor:

Provided further that prior to a resolution for the removal of the Vice-Chancellor being voted upon, the Vice-Chancellor shall be given an opportunity of being heard.

(6) A resolution recommending the removal of the Vice-Chancellor shall be submitted to the Chancellor forthwith, The Chancellor may accept the recommendation and order removal of the Vice-Chancellor or return the recommendation to the Senate for reconsideration and resubmission.

(7) At any time when the office of the Vice-Chancellor is vacant or the Vice-Chancellor is absent or is unable to perform the functions of his office due to illness or some other cause, the Senate shall make such arrangements for the performance of the duties of the Vice-Chancellor as it may deem fit.

12. Registrar.— (1) There shall be a Registrar of the Institute to be appointed by the Senate on the recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience as well as the professional and academic qualifications necessary for appointment to the post of the Registrar shall be as may be prescribed.

(3) The Registrar shall be a full-time officer of the Institute and shall

(a) be the administrative head of the secretariat of the Institute and be responsible for the provision of secretariat support to the Authorities of the Institute;

(b) be the custodian of the common seal and the academic records of the Institute;

(c) maintain a register of registered graduates in the prescribed manner;

(d) supervise the process of election, appointment or nomination of members to the various Authorities and other bodies in the prescribed manner; and

(e) perform such other duties as may be prescribed..

(4) The term of office of the Registrar shall be renewable period of three years:

Provided that the Senate may, on the advice of the Vice-Chancellor, terminate the appointment of the Registrar on grounds of inefficiency or misconduct in accordance with prescribed procedure.

13. Treasurer.— (l) There shall be a Treasurer of the Institute to be appointed by the Senate on the recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience and the professional and academic qualifications necessary for appointment to the post of the Treasurer shall be as may be prescribed.

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(3) The Treasurer shall be the chief financial officer of the Institute and shall

(a) manage the assets, liabilities, receipts, expenditures, funds and investments of the Institute;

(b) prepare the annual and revised budget estimates of the institute and present them to the Syndicate or a committee thereof for approval and incorporation in the budget to be presented to the Senate;

(c) ensure that the funds of the Institute are expended on the purposes for which they are provided;

(d) have the accounts of the Institute audited annually so as to be available for submission to the Senate within six months of the close of the financial year; and

(e) perform such other duties as may be prescribed.

(4) The term of office or the Treasurer shall be a renewable period of three years:

Provided that the Senate may, on the advice of the Vice-Chancellor terminate the appointment of the Treasurer on grounds of inefficiency or misconduct in accordance with prescribed procedure.

14. Controller of Examinations.— (1) There shall be a Controller of Examinations, to be appointed by the Senate on the recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The minimum qualifications necessary for appointment to the post of the Controller of Examinations shall be as may he prescribed.

(3) The Controller of Examinations shall be a full-time officer of the institute and shall be responsible for all matters connected with the conduct of examinations and to perform such other duties as may by prescribed.

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(4) The Controller of Examinations shall be appointed for a renewable term of three years.

Provided that the Senate may, on the advice of the Vice Chancellor, terminate the appointment of the Controller of Examinations on grounds of inefficiency or misconduct in accordance with prescribed procedure.

CHAPTER-IV

AUTHORITIES OF THE INSTITUTE

15. Authorities.— The following shall be the Authorities of the Institute namely:

(a) Authorities established by this Act: **—**

(i) the Senate;

(ii) the Syndicate; and

(iii) the Academic Council; and

(b) Authorities to be established by the statutes:—

(i) Graduate and Research Management Council;

(ii) Recruitment, Development, Evaluation and Promotion committees for teachers and other staff whether at the level of the department, the Faculty or the Institute;

(iii) Career Placement and Internship Committee of each Faculty;

(iv) Search Committee for, the appointment of the Vice-Chancellor;

(v) the Representation Committees for appointment to the Senate, Syndicate and the Academic Council;

(vi) Faculty Council; and

(vii) Departmental Council.

(2) The Senate, the Syndicate and the Academic Council may set up such other committees or sub-committees, by whatever name described, as are considered desirable through statutes or regulations as appropriate. Such committees or sub-committees shall be Authorities of the Institute for the purposes of this Act.

16. Senate.— (1) The body responsible for the governace of the Institute shall be described as the Senate, and shall consist of the following, namely: —

(a) the Chancellor who shall be the Chairperson of the Senate;

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(b) the Deputy Chairperson;

(c) the Vice-Chancellor;

(d) a senior member not below the rank of Additional Secretary of Ministry of Commerce;

(e) eight persons from society at large being persons of distinction in the fields of administration, management, education, academics, law, accountancy, medicine, fine arts, architecture, agriculture, science, technology and engineering such that the appointment of these persons reflects a balance across the various fields:

Provided that the special focus or affiliation of the Institute, to be declared in the manner prescribed, may be reflected in the number of persons

of distinction in an area of expertise relevant to the Institute who are appointed to the Senate;

(f) one person from amongst the alumni of the Institute;

(g) two persons from the academic community of the country, other than an employee of the Institute, at the level of professor or principal of a college;

(h) four Institute teachers;

(i) one person nominated by the Commission; and

(j) one member of the Senate of Pakistan to be nominated by Chairman, Senate of Pakistan.

(2) The numbers of the members of the Senate described against clauses (f) to (i) of sub-section

(1) may be increased by the Senate through statutes subject to condition that the total membership of the Senate does not exceed twenty-one, with a maximum of five Institute teachers, and the increase is balanced, to the extent possible, across the different categories specified in sub-section (1).

(3) All appointments to the Senate shall be made by the Chancellor Appointments of persons described in clauses (f) and (g) of sub-section (1) shall be made from amongst a panel of three names for each vacancy recommended by the Representation Committee set up in terms of section 23 and in accordance with procedure as may be prescribed:

Provided that effort shall be made, without compromising on quality or qualification, to give fair representation to women on the Senate:

Provided further that as regards the Institute teachers described in clause (h) of sub-section (1) the Senate shall prescribe a procedure for appointment on the basis of elections that provide for voting by the various categories of Institute teachers:

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Provided also that the Senate may alternatively prescribe that appointment of Institute teachers to the Senate shall also be in the manner provided by this sub-section for the persons described in clauses (f) and (g) of sub-section (1).

(4) Members of the Senate, other than *ex-officio* members, shall hold office for three years. One- third of the members, other than *ex-officio* members, of the first Senate, to be determined by lot, shall retire from office on the expiration of one year from the date of appointment by the Chancellor. One-half of the remaining memlgiers, other than *ex-officio* members, of the first Senate, to be determined by lot, shall retire from office on the expiration of two years from the date of appointment and the remaining one-half, other than *ex-officio* members, shall retire from office on the expiration of the third year:

Provided that no person, other than an *ex-officio* member, may serve on the Senate for more than two consecutive terms:

Provided further that the Institute teachers appointed to the Senate may not serve for two consecutive terms.

(5) The Senate shall meet at least twice in a calendar year.

(6) Service on the Senate shall be on honorary basis:

Provided that actual expenses may be reimbursed as prescribed.

(7) The Vice- Chancellor shall be the Secretary of the Senate.

(8) In the absence of the Chancellor, meetings of the Senate shall be presided over by the Deputy Chairperson. The Deputy Chairperson shall be the convener of the Senate. In case of absence of the Deputy Chairperson the Senate may elect a member, from amongst themselves, to chair the meeting.

(9) All decisions of the Senate shall be taken on the basis of the opinion of a majority of the members present. In the event of the members being evenly divided on any matter the person presiding over the meeting shall have a casting vote.

(10) The quorum for a meeting of the Senate shall be twothirds of its membership, a fraction being counted as one.

17. Powers and functions of the Senate.— (1) The Senate shall have the power of general supervision over the Institute and shall hold the Vice-Chancellor and the Authorities accountable for all the functions of the Institute. The Senate shall also have all powers of the Institute not expressly vested in an Authority or officer by this Act and all other powers not expressly mentioned by this Act that are necessary for the performance of its functions.

(2) Without prejudice to the generality of the foregoing powers, the Senate shall have the following powers, namely:

(a) to approve the proposed annual plan of work, the annual and revised budgets, the annual report and the annual statement of account;

(b) to hold, control and lay down policy for the administration of the property, funds and investments of the Institute, including the approval of the sale and purchase or acquisition of immovable property;

(c) to oversee the quality and relevance of the Institute's academic programs and to review the academic affairs of the Institute in general;

(d) to approve the appointment of the Principals, Deans, Professors, Associate Professors and such other senior faculty and senior administrators as may be prescribed;

(e) to institute schemes, directions and guidelines for the terms and conditions of appointment of all officers, teachers and other employees of the Institute;

(f) to approve strategic plans;

(g) to approve financial resource development plans of the Institute;

(h) to consider the drafts of statutes and regulations proposed by the Syndicate and the Academic Council:

Provided that the Senate may make statute or regulation on its own initiative and approve it after calling for the advice of the Syndicate or the Academic Council as the case may be;

(i) to annul by order in writing the proceedings of any Authority or officer if the Senate is satisfied that such proceedings are not in accordance with the provisions of this Act, statutes or regulations after calling upon such Authority or officer to show cause why such proceedings should not be annulled;

(j) to recommend to the Chancellor removal of any member of the Senate in accordance with the provisions of this Act;

(k) to make appointment of members of the Syndicate, other than *ex-officio* members, in accordance with the provisions of this Act;

(l) to make appointment of members of the Academic Council, other than ex-off+icio members, in accordance with the provisions of this Act;

(m) to appoint Emeritus, Professors on such terms and conditions as may be prescribed;

(n) to remove any person from the membership of any Authority if such person

(i) has become of unsound mind; or

(ii) has become incapacitated to function as member of such Authority; or

(iii) has been convicted by a court of law for an offence involving moral turpitude; and

(o) to determine the form, provide for the custody and regulate the use of the common seal of the Institute.

(3) The Senate may, subject to the provisions of this Act, delegate all or any of the powers and functions of any Authority, officer or employee of the Institute at its main campus, to any Authority, committee, officer or employee at its additional campus for the purpose of exercising such powers and performing such functions in relation to such additional campus, and for this purpose the Senate may create new posts or positions at the additional campus.

18. Visitation.— The Senate may, in accordance with the terms and procedures as may be prescribed, cause an inspection to be made in respect of any matter connected with the Institute.

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19. Syndicate.— (1) There shall be a Syndicate of the Institute consisting of the following, namely:—

(a) the Vice-Chancellor who shall be its Chairperson;

(b) the Deans of the Faculties;

(c) three professors from different departments, who are not members of the Senate, to be elected by the Institute teachers in accordance procedure to be prescribed by the Vice- Chancellor;

(d) Principals of the colleges;

(e) the Registrar;

(f) the Treasurer; and

(g) the Controller of Examinations.

(2) The Registrar shall also be the Secretary of the Syndicate.

(3) Members of the Syndicate, other than *ex-officio* members, shall hold office for three years.

(4) As regards the three professors described under clause (c) of sub-section (1) the Senate may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the Representation Committee set up in terms of section 23. Appointment of persons proposed by the Representation Committee may be made by the Senate on the recommendation of the Vice-Chancellor.

(5) The quorum for a meeting of the Syndicate shall be one-third of the total number of the total number of members, a fraction being counted as one.

(6) The Syndicate shall meet at least once in each quarter of the year.

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20. Powers and duties of the Syndicate.— (1) The Syndicate shall be the executive body of the Institute and shall, subject to the provisions of this Act and statutes, exercise general supervision over the affairs and management of the Institute.

(2) Without prejudice to the generality of the foregoing powers, and subject to the provisions of this Act, statutes and directions of the Senate, the Syndicate shall have the following powers, namely:

(a) to consider the annual report, the annual and revised budget estimates and to submit these to the Senate;

(b) to transfer and accept transfer of movable property on behalf of the Institute;

(c) to enter into, vary, carry out and cancel contracts on behalf of the Institute;

(d) to cause proper books of account to be kept for all sums of money received and expended by the Institute and for the assets and liabilities of the Institute;

(e) to invest any money belonging to the Institute including any unapplied income in any of the securities described in section 20 of the Trust Act, 1882 (Act II of 1882), or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;

(f) to receive and manage any property transferred, and grants, bequests, trust, gifts, donations, endowments and other contributions made to the Institute:

(g) to administer any funds placed at the disposal of the Institute for specified purposes;

(h) to provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the Institute;

(i) to establish and maintain halls of residence and hostels or approve or license hostels or lodgings for the residence of students;

(j) to recommend to the Senate admission of educational institutions to the privileges of the institute and withdraw such privileges;

(k) to arrange for the inspection of colleges and the departments:

(l) to institute Professorships, Associate Professorships, Assistant Professorships, Lectureships and other teaching posts or to suspend or to abolish such posts;

(m) to create, suspend or abolish such administrative or other posts as may be necessary;

(n) to prescribe the duties of officers, teachers and other employees of the Institute;

(o) to report to the Senate on matters with respect to which it has been asked to report:

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(p) to appoint members to various Authorities in accordance with the provisions of this Act;

(q) to propose drafts of statutes for submission to the Senate;

(r) to regulate the conduct and discipline of the students of the Institute;

(s) to take actions necessary for the good administration of the Institute in general and to this end exercise such powers as are necessary;

(t) to delegate any of its powers to any Authority or officer or a committee; and

(u) to perform such other functions as have been assigned to it by the provisions of this Act or may be assigned to it by statutes.

21. Academic Council.— (1) There shall be an Academic Council of the institute consisting of the following, namely:

(a) the Vice-Chancellor who shall be its Chairperson;

(b) the Deans of Faculties and such Heads of Departments as may be prescribed;

(c) five members representing the departments, institutes and the colleges to be elected in the manner prescribed by the Senate;

(d) five Professors including Emeritus Professors;

(e) the Registrar;

(f) the Controller of Examinations; and

(g) the Librarian.

(2) Senate shall appoint the members of the Academic Council, other than the *ex-officio* and the elected members, on the recommendation of the Vice-Chancellor of the Institute:

Provided that five professors and the members representing the departments, institutes and the constituent colleges, the Senate may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the Representation Committee set up in terms of section 23. Appointment of persons proposed by the Representation Committee may be made by the Senate on the recommendation of the Vice-Chancellor.

(3) Members of the Academic Council, other than the *ex-officio* members, shall hold office for three years.

(4) The Academic Council shall meet at least once in each quarter of the year.

(5) The quorum for meetings of the Academic Council shall be one-third of the total number of members, a fraction being counted as one.

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22. Powers and functions of the Academic Council.—(l) The Academic Council shall be the principal academic body of the Institute and shall, subject to the provisions of this Act and statutes, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the Institute and the colleges.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act and statutes, the Academic Council shall have the power to—

(a) approve the policies and procedures pertaining to the quality of academic programs;

(b) approve academic programs;

(c) approve the policies and procedures pertaining to student-related functions including admissions, expulsions, punishments, examinations and certification;

(d) approve the policies and procedures assuring quality of teaching and research;

(e) propose to the Syndicate schemes for the constitution and organization of Faculties, teaching departments and boards of studies;

(f) appoint paper setters and examiners for all examinations of the Institute after receiving panels of names from the relevant authorities;

(g) institute programs for the continued professional development of Institute teachers at all levels;

(h) recognize the examinations of other universities or examining bodies as equivalent to the corresponding examinations of the Institute;

(i) regulate the award of studentships, scholarships, exhibitions, medals and prizes;

(j) make regulations for submission to the Senate;

(k) prepare an annual report on the academic performance of the Institute; and

(1) perform such functions as may be prescribed by regulations.

23. Representation Committees.— (1) There shall be a Representation Committee constituted by the Senate through statute for recommendation of persons for appointment to the Senate in accordance with the provisions of section 16.

(2) There shall also be a Representation Committee constituted by the Senate through statute for the recommendation of persons for appointment to the Syndicate and the Academic Council in accordance with the provisions of sections 9 and 21.

(3) Members of the Representation Committee for appointments to the Senate shall consist of the following, namely: —

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(a) three members of the Senate who are not Institute teachers;

(b) two persons nominated by the Institute teachers from amongst themselves in the manner prescribed;

(c) one person from the academic community, not employed by the Institute, at the level of professor or college principal to be nominated by the Institute teachers in the manner prescribed; and

(d) one eminent citizen with experience in administration, philanthropy development work, law or accountancy to be nominated by the Senate.

(4) The Representation Committee for appointments to the Syndicate and the Academic Council shall consist of the following, namely:

(a) two members of the Senate who are not Institute teachers; and

(b) three persons nominated by the Institute teachers from amongst themselves in the manner prescribed.

(5) The tenure of the Representation Committees shall be three years:

Provided that no member shall serve for more than two consecutive terms.

(6) The procedures for conducting business of the Representation Committees shall be as may be prescribed.

(7) There may also be such other Representation Committees set up by any of the other Authorities as are considered appropriate for recommending persons for appointment to the various Authorities and other bodies of the Institute.

24. Appointment of committees by certain Authorities.—(1) The Senate, the Syndicate, the Academic Council and other Authorities may, from time to time, appoint such standing, special or advisory committees, as they may deem fit, and may place on such committees persons who are not members of the Authorities appointing the committees.

(2) The constitution, functions and powers of the Authorities for which no specific provision has been made in this Act shall be such as may be prescribed by statutes or regulations.

CHAPTER-V

STATUTES, REGULATIONS AND RULES

25. Statutes.— (1) Subject to the provisions of this Act, statutes may be made to regulate or prescribe all or any of the following matters, namely:

(a) the contents of and the manner in which the annual report, to be presented by the Vice- Chancellor before the Senate, shall be prepared;

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(b) the Institute fees and other charges;

(c) the constitution of any pension, insurance, gratuity, provident fund and benevolent fund for Institute employees;

(d) the scales of pay and other terms and conditions of service of officers, teachers and other Institute employees;

(e) the maintenance of the register of registered graduates;

(f) admission of educational institutions to the privileges of the Institute and the withdrawal of such privileges;

(g) the establishment of Faculties, departments, institutes, colleges and other academic divisions;

(h) the powers and duties of officers and teachers;

(i) conditions under which the institute may enter into arrangements with other institutions or with public bodies for purposes of research and advisory services;

(j) conditions for appointment of Emeritus Professors and award of honorary degrees;

(k) efficiency and discipline of institute employees;

(l) the constitution and procedure to be followed by Representation Committees in carrying out functions in terms of this Act;

(m) the constitution and procedure to be followed by the Search Committee for appointment of the Vice-Chancellor;

(n) constitution, functions and powers of the Authorities; and

(o) all other matters which by this Act are to be or may be prescribed or regulated by statutes.

(2) The draft of statutes shall be proposed by the Syndicate to the Senate which may approve or pass with such modifications as the Senate may think fit or may refer back to the Syndicate, as the case may be, for reconsideration of the proposed draft:

Provided that statutes concerning any of the matters mentioned in clauses (a) and (k) of sub-section (1) shall be initiated and approved by the Senate, after seeking the views of the Syndicate:

Provided further that the Senate may initiate statutes with respect to any matter in its power or with respect to which statutes may be made in terms of this Act and approve such statutes after seeking the views of the Syndicate.

26. Regulations.— (1) Subject to the provisions of this Act and statutes, the Academic Council may make regulations for all or any of the following matters, namely:

(a) the courses of study for degrees, diplomas and certificates of the Institute;

(b) the manner in which the teaching referred to in subsection (1) of section 6 shall be organized and conducted;

(c) he admission and expulsion of students to and from the Institute;

(d) the conditions under which students shall be admitted to the courses and the examinations of the Institute and shall become eligible for the award of degrees, diplomas and certificates;

(e) the conduct of examinations;

(f) conditions under which a person may carry on independent research to entitle him to a degree;

(g) the institution of fellowships, scholarships, exhibitions, medals and prizes;

(h) the use of the library;

(i) the formation of Faculties, departments and Board of Studies; and

(j) all other matters which by this Act or the statutes are to be or may be prescribed by regulations.

(2) Regulations shall be proposed by the Academic Council and shall be submitted to the Senate which may approve them or withhold approval or refer them back to the Academic Council for reconsideration. A regulation proposed by the Academic Council shall not be effective unless it receives the approval of the Senate.

(3) Regulations regarding or incidental to matters contained in sub-clauses (g) and (i) shall not be submitted to the Senate without the prior approval of the Syndicate.

27. Rules.— (1) Subject to the provision of sub-section (2), the Authorities and the other bodies of the Institute may make rules, consistent with this Act, to regulate any matter relating to the affairs of the Institute including rules to regulate the conduct of business and the time and place of meetings and related matters.

(2) Rules shall become effective upon approval by the Syndicate.

(3) Notwithstanding the provisions of sub-rule (1), the rules made by the Institute before the commencement of this Act shall, in so far as they are not inconsistent with the provisions of this Act, continue in force until they are repealed or amended under this Act.

CHAPTER-VI

INSTITUTE FUND

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28. Fund of the Institute.— The institute shall have a fund to which shall be credited its income from fees, charges, donations, trusts, bequests, endowments, contributions, grants and all other sources.

29. Audits and accounts.— (1) The accounts of the Institute shall be maintained in such form and in such manner as may be prescribed.

(2)The teaching departments, colleges and all other bodies designated as such by the Syndicate in terms of statutes shall be independent cost centres of the Institute with authority vested in the head of each cost centre to sanction expenditure out of the budget allocated to it:

Provided that re-appropriation from one head of expenditure to another may be made by the head of a cost-centre in accordance with and to the extent prescribed by statutes.

(3) All funds generated by a teaching department, constituent college or other unit of the Institute through consultancy, research or other provision of service shall be made available without prejudice to the budgetary allocation otherwise made, after deduction of overheads in the manner and

to the extent prescribed by statute, to the teaching department, constituent college or other unit for its development. A part of the funds so generated may be shared with the Institute teachers or researchers in charge of the consultancy, research or service concerned in the manner, and to the extent prescribed by statute.

(4) No expenditure shall be made from the funds of the Institute, unless a bill for its payments has been issued by the head of the cost-centre concerned in accordance with the relevant statutes and the Treasurer has verified that the payment is provided for in the approved budget of the cost-centre, subject to the authority to re-appropriate, available to the head of the cost-centre.

(5) Provision shall be made for an internal audit of the finances of the Institute.

(6) Without prejudice to the requirement of audit by an auditor appointed by the Government in accordance with the provisions of any other law in force, the annual audited statement of accounts of the institute shall be prepared in conformity with the Generally Accepted Accounting Principles (GAAP) by a reputed firm of chartered accountants and signed by the Treasurer. The annual audited statement of accounts so prepared shall be submitted to Auditor-General of Pakistan for his observations.

(7) The observations of the Auditor-General of Pakistan, if any, together with such annotations as the Treasurer may make, shall be considered by the Syndicate and shall be placed before the Senate within six months of closing of the financial year.

CHAPTER-VII

GENERAL PROVISIONS

30. Opportunity to show cause.— Except as otherwise provided by law, no officer, teacher or other employee of the institute holding- a permanent post shall be reduced in rank or removed or compulsorily retired from service for cause arising out of any act or omission on the part of the person concerned unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

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31. Appeal to the Syndicate and the Senate.— Where an order is passed punishing any officer other than the Vice-Chancellor, teacher ot other employee of the Institute or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, where the order is passed by any officer or teacher of the Institute other than the Vice-Chancellor, have the right to appeal to the Syndicate against the order, and where the order is passed by the Vice-Chancellor, have the right to appeal to the Senate.

32. Service of the Institute.— (l) An officer, teacher or other employee of the Institute shall retire from service on the attainment of such are or tenure of service as may be prescribed.

(2) No adverse change shall be made in the terms and conditions of employment of any Institute teacher in the employment of the Institute on the date of commencement of this Act.

(3) As regards the terms and, conditions of employment of persons in the service of Pakistan in general or in comparable employment notwithstanding the service of persons employed by the Institute shall be entirely governed by terms and conditions prescribed by the relevant statutes.

33. Benefits and insurance.— (1) The Institute shall constitute for the benefit of its officers, teachers and other employees schemes, as may be prescribed for the provision of post-employment benefits as well as health and life insurance while in service.

(2) Where any provident fund has been constituted under this Act, the provisions of the Provident Funds Act, 1925 (XIX of 1925), shall apply to such funds as if it were the Government Provident Fund.

34. Commencement of term of office of members of Authority.— (1) When a member of a newly-constituted Authority is elected, appointed or nominated, his term of office shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remains absent from the Institute for a period of not less than six months he shall be deemed to have resigned and vacated his seat.

35. Filling of casual vacancies in Authorities.— Any casual vacancy among the members of any Authority shall be filled, as soon as conveniently may be, in the same manner and by the same person or Authority that had appointed the member whose place has become vacant and the person appointed to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

36. Flaws in the constitution of Authorities.— Where there is a flaw in the constitution of an Authority, as constituted by this Act, statutes or regulations on account of the abolition of a specified office under Government or because an organization, institution or other body outside the Institute has been dissolved or has ceased to function, or because of some other similar reason, such flaw shall be removed in such manner as the Senate may direct.

37. Proceedings of Authorities not invalidated by the vacancies.— No act, resolution or decision of any Authority shall be invalid by reason of any vacancy of the Authority doing, passing or making it or by reason of any want of qualification or invalidity in the erection, appointment or nomination of any *de facto* member of the Authority, whether present or absent.

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38. First statutes and regulations.— Notwithstanding anything to the contrary contained in this Act, the Chancellor shall make the first statutes and regulations which shall be deemed to be statutes and regulations made under sections 25 and 26 and shall continue to remain in force until amended or till such time as new statutes and regulations are made in accordance with the provisions of this Act.

39. Transitory provisions.— (1) Notwithstanding anything contained in this Act, the members of the first Senate, except the Institute teachers, shall be appointed by the Chancellor in accordance with the numbers and criteria for membership specified in this Act. The first Senate so constituted shall initiate, as soon as possible, the, process for the appointment of the members of the Syndicate and the Academic Council in accordance with the provisions of this Act.

(2) Notwithstanding anything contained in this Act and subject to the provisions of sub-section (1) of section (3), the first Vice-Chancellor shall be appointed by the Chancellor for a period of three years.

40. Transfer of assets and liabilities, etc. Upon the commencement of this Act, **—**

(a) everything done, action taken, obligations and liabilities incurred, persons appointed or authorized, fellowships or scholarships instituted and orders issued by the Institute prior to commencement of this Act shall be continued and, so far as may be, deemed to have been respectively done, taken, incurred, appointed or authorized, instituted or issued by the Institute; and

(b) all the money and properties held by the Institute immediately before such commencement shall stand transferred to, and vest in, the reconstituted Institute.

41. Power to allow appointment of employees of the Government, other universities or educational or research institutions to the Institute. —(1) Notwithstanding anything contained in this Act, the Senate may, on the advice of the Syndicate, allow any post in the Institute to be filled by appointment, on such terms as the Senate may specify, an employee of the Government or any other university or educational or research institution.

(2) Where any appointment has been made under this section, the terms and conditions of service of the appointee shall not be less favourable than those admissible to him immediately before such appointment and he shall be entitled to all benefits of his post of service.

42. Act to override other instruments, etc.— The provisions of this Act shall have effect not with standing anything contained in any instrument, resolution or certificate of incorporation of the Institute.

43. Indemnity.— No suit or legal proceedings shall lie against the Government, the Institute or any Authority, officer or employee of the Government or the Institute or any person in respect of anything which is done in good faith under this Act.

44. Removal of difficulties.— (1) If any question arises as to the interpretation of any of the provisions of the Act, it shall be placed before the Chancellor whose decision thereon shall be final.

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(2) If any difficulty arises in giving effect to any of the provisions of the Act, the Chancellor may make such order after obtaining the views of the Senate, not inconsistent with the provisions of the Act, as may appear to him to be necessary for removing the difficulty.

(3) Where the Act makes any provision for anything to be done but no provision or no sufficient provision has been made as respects the authority by whom, or the time at which, or the manner in which, it shall be done, then it shall be done by such authority, at such time, or in such manner as the Chancellor may direct after obtaining the views of the Senate.

THE PAKISTAN INSTITUTE OF INTERNATIONAL AFFAIRS (ADMINISTRATION) ORDINANCE, 1980

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THE PAKISTAN INSTITUTE OF INTERNATIONAL AFFAIRS (ADMINISTRATION) ORDINANCE, 1980

ORDINANCE No. VII OF 1980

[10th March, 1980]

An Ordinance to provide for the proper administration of the Affairs of the Pakistan Institute of International Affairs

WHEREAS it is expedient to provide for the proper administration of the affairs of the Pakistan Institute of International Affairs;—

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, read with the Laws (Continuance in Force) Order, 1977 *(C.M.L.A. Order No.1 of 1977)*, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Pakistan Institute of International Affairs (Administration) Ordinance, 1980.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Administrator" means the Administrator appointed under section 5;

(b) "Institute" means the Pakistan Institute of International Affairs registered under the Societies Registration Act, (XXI 1860); and

(c) "Managing Committee" means the Managing Committee set up under section 5.

3. Ordinance to over-ride other laws. This Ordinance shall have effect notwithstanding anything contained in the Societies Registration Act, (XXI 1860), or any other law for the time being in force.

4. Dissolution of Council of the Institute, etc. On the commencement of this Ordinance,—

(a) the Council of the Institute shall stand dissolved;

(b) any person exercising or having the right to exercise immediately before the commencement of this Ordinance any power or function in relation to the Institute shall cease to exercise or to have the right to exercise such power or function ;

(c) the administration of the affairs of the Institute shall vest in the Administrator;

(d) all assets, rights, powers, authorities and privileges, all property movable and immovable, cash and bank balances, reserves funds, investments, and all other interests and rights in, or arising out of, such property, of the Institute shall stand transferred to, and vest in, the Administrator;

(e) all debts and liabilities incurred, all obligations under taken, all contracts entered into, and all agreements made by or with the Institute, shall stand transferred to, and be deemed to have been incurred, undertaken, entered into or made, by or with, the Administrator ;

(f) any sum payable to, or recoverable by, the Institute shall be deemed to be payable to, or recoverable by, the Administrator; and

(g) all suits and other legal proceedings instituted by or against the Institute before such commencement shall be deemed to have been instituted by or against the Administrator and may be continued or proceeded with accordingly.

5. Appointment of Administrator and Managing Committee, etc.—(1) The Federal Government shall appoint an Administrator for the administration of the affairs of the Institute.

(2) To aid and advise the Administrator in the performance of his functions, the Federal Government shall constitute a Managing Committee consisting of such persons as it may appoint to be members thereof.

(3) The Administrator shall, subject to any direction issued by the Federal Government, be competent to exercise all such powers and perform all such functions as may be necessary for the efficient administration of the affairs of the Institute.

(4) The Administrator shall be a Corporation sole and may sue or be sued in his corporate name.

(5) The Administrator and a member of the Managing Committee shall hold office during the pleasure of the Federal Government.

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(6) Neither the Administrator nor a member of the Managing Committee shall be personally liable in respect of any debt or liability incurred, obligation, undertaken, contract entered into, or agreement made, by the Institute.

6. Future Management of the Institute. Within six months of the commencement of this Ordinance, the Administrator shall, in consultation with the Managing Committee, prepare and submit to the Federal Government detailed proposals as to—

(a) the future organizational set up of the Institute ;

(b) financial and administrative measures designed to make the Institute a viable proposition ; and

(c) the recovery of the arrears and dues of the Institute.

7. Continuance in service of employees. Unless the Administrator otherwise directs in any particular case, all the employees of the Institute in employment immediately before the commencement of this Ordinance shall continue in their respective employments on the same terms and conditions as were applicable to them immediately before such commencement.

8. Bar of jurisdiction. No court shall grant any injunction or make any order or entertain any proceedings in relation to anything in good faith done or intended to be done under this Ordinance.

9. indemnity. No suit or other legal proceeding shall lie against the Federal Government or the Administrator or any other person in respect of anything in good faith done or intended to be done under this Ordinance.

10. Power to make rules. The Federal Government may make rules for carrying out the purposes of this Ordinance.

11. Removal of difficulties. If any difficulty arises in giving effect to any provision of this Ordinance, the Federal Government may make such order, not consistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty.

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THE PAKISTAN INSURANCE CORPORATION (RE-ORGANIZATION) ORDINANCE, 2000

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THE PAKISTAN INSURANCE CORPORATION (RE-ORGANIZATION) ORDINANCE, 2000

ORDINANCE No. XXXVI of 2000

[11th August, 2000]

An Ordinance to provide for conversion of the Pakistan Insurance Corporation into Pakistan Reinsurance Company Limited

WHEREAS, it is expedient to provide for conversion of the Pakistan Insurance Corporation into a public limited company for incorporation under the Companies Ordinance, 1984. (XLVII of 1984).

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and Provisional Constitution Order No. 1 of 1999, as well as Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Pakistan Insurance Corporation (Re-Organization) Ordinance, 2000.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

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2. Definitions.— (1) In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Company" means the Pakistan Reinsurance Company Limited incorporated under the Companies Ordinance, 1984; (XLVII of 1984)

(b) "Corporation" means the Pakistan Insurance Corporation established under the Pakistan Insurance Corporation Act, 1952; (XXXVIII of 1952)

(c) "effective date" means the date on which property, rights and liabilities of the Corporation are vested in the Company under section 3; and

(d) "shareholder" means a person holding shares in the Corporation immediately before the effective date.

3. Vesting of the rights, property and liabilities of the Corporation in the Company.— (1) As soon as may be after the commencement of this Ordinance the Federal Government may, by order, published in the official Gazette, direct that as and from such date, as may be specified in the order by the Federal Government, all or any property, rights and liabilities to which the Corporation was entitled or subject, immediately before such orders, and identified therein, shall, on such terms and conditions as the Federal Government may determine, vest in the Company and become the property, rights and liabilities of the Company.

(2) An order issued under sub-section (1) shall—

(a) provide for all such matters consequential and incidental to the matters provided for in sub-section (1) as the Federal Government may consider necessary or expedient; and

(b) specify the employees of the Corporation who shall, as from the effective date, be transferred to, and become employees of, the Company referred to in the order:

Provided that such order shall not vary the terms and conditions of service of such employees to their disadvantage.

(3) An order issued under sub-section (1) in favor of the Company shall also provide for—

(a) the continuation by the Company of the operations and undertaking of the Corporation on the same basis as were carried on immediately prior to the date of the order;

(b) the dissolution of the Corporation from the effective date;

(c) the applicability and extent of the regulations made under the Pakistan Insurance Corporation Act, 1952 (XXXVIII of 1952) to the Company from the effective date; and

(d) the requirement or otherwise of registration of the Company under the Insurance Ordinance, 2000, or any other law for the time being in force relating to registration of insurance companies in Pakistan.

(4) In Consideration of the vesting in the Company of the Property of the Corporation, the Company Shall issue fully Paid result in each shareholder having the same Proportionate voting rights in the Company as he enjoyed in the Corporation immediately before the effective date:

Provided that at the option of a shareholder exercised in writing to the Federal Government not later than thirty days from the effective date, the Federal Government shall pay the shareholder an amount equal to the principal of the shares in the Corporation held by that shareholder, and in such a case the shares in the Corporation shall be surrendered to the Federal Government and the shares in the Company which would, but for the operation of this proviso, have been issued to that shareholder shall instead be issued in the name of the President of Islamic Republic of Pakistan.

(5) Notwithstanding anything contained in any other law in force, or the listing rules of any stock exchange upon which the shares in the Corporation are listed or traded, shares in the Corporation

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shall, as from a date one hundred and twenty days after the effective date, cease to be listed on any stock exchange in Pakistan and immediately after the close of trading on that day, shares in the company shall, without any further action, be listed on any stock exchange in Pakistan on which the shares of the Corporation were listed immediately before that date.

(6) If any property of the Corporation vests in the Company subject to any charge, burden, hypothecation or encumbrance, the same shall be deemed to be on the assets of the Company and the provisions of section 121 of the Companies Ordinance, 1984, (XLVII of 1984) shall apply to such charge, burden, hypothecation or encumbrance as if it had been created on the assets of the Company on the effective date and so that the publication of the order in the official gazette shall take effect in the same manner in all respect as a certificate of registration under section 130 of the said Ordinance.

(7) No stamp duty shall be payable under any law for the time being in force on or in relation to the transfer or vesting of property of the Corporation under any order issued under subsection (1), or on any shares or securities or the certificates or scrips evidencing title thereto issued to the President of the Islamic Republic of Pakistan or any shareholder.

(8) All contracts, bonds, agreements, powers of attorney, grants of legal representation and all other instruments of whatever kind in each case subsisting or having effect immediately before the effective date and owed or incurred by the Corporation or to, which the Corporation may have been a party all of which being exclusively in relation to, connected with, the Corporation as to be reasonably construed and considered as obligations or liabilities of the Corporation so that the same shall remain in full force and effect against the Company as they were before the effective date against the Corporation and may be acted upon as fully and effectively as if instead of the Corporation, the Company had been a party thereto.

(9) All suits, appeals or other legal proceedings of whatever nature by, against or relating to the Corporation which shall be pending on the effective date in any court, tribunal or other authority shall be continued, prosecuted and enforced in the same manner and to the same extent as they would have been continued, prosecuted and enforced by, or against, the Corporation, if this Ordinance would not have been promulgated, by or against the Company, and the same shall not abate, be discontinued or be in any way prejudiced or affected by the provisions of this Ordinance.

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Explanation.—For the purpose of this section—

(a) the expression "property" includes assets, rights and entitlements of every description and nature wherever situated; and

(b) the expression "liabilities" includes duties, obligations, loans, encumbrances, claims and charges of every description and nature, actual or contingent, and all matters pertaining to continuation or run-off in respect of reinsurance contracts and arrangements, whether or not they are capable under any law of Pakistan or of any other State or under any arrangement or otherwise, of being vested, transferred or assigned by the Corporation.

4. Terms and conditions of service of employees.— (1) No person transferred to the Company pursuant to sub-section (2) hereinafter referred to as a "Transferred Employee", shall be entitled to any compensation as a consequence of transfer to the Company:

Provided that the Federal Government shall guarantee the existing terms and conditions of service and rights including pensioner benefits of the Transferred Employees to which they were entitled on the date of their transfer to the Company.

(2) The terms and conditions of service of any Transferred Employee shall not be altered adversely by the Company except in accordance with the laws of Pakistan or with the consent of the Transferred Employees and the award of appropriate compensation.

(3) Under the order vesting property of the Corporation in the Company, the Federal Government shall require the Company to assume the responsibility of pension benefits of relevant employees and the Company shall not alter such pension benefits without the consent of the employees concerned and the award of appropriate compensation.

5. Registration Fees.— The Pakistan Reinsurance Company Limited being a successor company to a continuing Corporation shall be exempted from any registration fees of any Registration Authority or Commission by whatever name.

6. Removal of difficulties.— If any difficulty arises in giving effect to the provisions of this Ordinance, the Federal Government may make such order, not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purposes of removing the difficulty.

7. Repeal.— Immediately after incorporation and registration of Pakistan Reinsurance Company as public limited company, the Pakistan Insurance Corporation Act, 1952, (XXXVIII of 1952) shall stand repealed.

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THE PAKISTAN INTERNATIONAL AIRLINES CORPORATION ACT, 1956

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THE PAKISTAN INTERNATIONAL AIRLINES CORPORATION ACT, 1956.

[1]ACT NO. XIX OF 1956

[18th *April,* 1956]

An Act to establish the Pakistan International Airlines Corporation.

WHEREAS it is necessary to provide for the establishment of a Corporation to facilitate acquisition of the air-transport under-taking of the Orient Airways Limited, and to make further and better provision for the operation and development of air-transport services and purposes connected therewith ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan International Airlines Corporation Act, 1956.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Interpretation. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Board of Directors of the Corporation ;

[2]**[(aa)** "Chairman" means Chairman of the Board ;]

(b) "Corporation" means the Pakistan International Airlines Corporation established under this Act ; and

(c) "prescribed" means prescribed by rules or regulations made under this Act.

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[1] *For Statement of Objects and Reasons, See Gaz. of Pak., 1956, Ext., dated the 5th April, 1956, p. 586.*

[2] *Cl. (aa) ins. by the Pakistan International Airlines Corporation (Amdt.) Act, 1975 (1 of 1976), s. 2 (w.e.f. 8th January, 1976).*

3. Establishment and incorporation.—(1) As soon as may be after the commencement of this Act, the [1][Federal Government] shall establish a Corporation to be called the Pakistan International Airlines Corporation.

(2) The Corporation shall be a body corporate by the name of the Pakistan International Airlines Corporation, having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire and hold property both movable and immovable and to carry out the functions and duties of the Corporation under this Act, and shall by the said name sue and be sued.

4. Functions of the Corporation.—(1) It shall be the function of the Corporation to take over the undertaking of the Orient Airways Limited hereinafter in this Act referred to as the "said Company" and all such under-takings of the [1][Federal Government] as were under-taken for the purposes of the Corporation and, subject to the provisions of the [2][Civil Aviation Ordinance, 1960] to provide and further develop safe, efficient, adequate, economical and properly co-ordinated air-transport services, internal as well as international ; and the Corporation shall so exercise its powers as to secure that air-transport services are developed to the greatest possible advantage in the interests of the country.

(2) Without prejudice to the generality of the powers conferred by sub-section (1) the Corporation shall in particular have power,—

(a) to operate any air-transport service or any flight by aircraft for a commercial or other purpose, and to carry out all forms of aerial work ;

[3]**[(aa)** to acquire, own, run, manage, or participate in the running or management of, any hotel or business connected therewith ;]

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[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975).
[2] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s . 3 and II Sch.
[3] New cl. (aa) ins. by the Laws Amendment Ordinance, 1965 (39 of 1965), s. 3, (w.e.f. 4th October, 1965).

(b) to provide for the instruction and training in matters connected with aircraft or flight by aircraft of persons employed or desirous of being employed either by the Corporation or by any other person ;

(c) with the previous approval of the [1][Federal Government], to promote any organisation outside Pakistan for the purpose of engaging in any activity of a kind which the Corporation has power to carry on ;

(d) to acquire, hold or dispose of any property, whether movable or immovable, or any air-transport undertaking ;

(e) to repair, overhaul, reconstruct, assemble or recondition aircraft, vehicles or other machines and parts, accessories and instruments thereof or therefor and also to manufacture such parts, accessories and instruments, whether the aircraft, vehicles or other machines are owned by the Corporation or by any other person ;

(f) to do all things incidental to or connected with any of the matters referred to in sub-section (1) and in clauses (a) to (e).

(3) In discharging its functions the Corporation shall have careful regard to business principles.

5. Administration of the affairs of the Corporation.—(1) The general direction and the administration of the Corporation and its affairs shall vest in the Board of Directors which may exercise all powers and do all acts which may be exercised or done by the Corporation.

(2) The [1][Federal Government] may, as and when it considers necessary, issue directives to the Corporation on matters of policy, and such directives shall be binding on the Corporation. If a question arises whether any matter is a matter of policy or not, the decision of the [1][Federal Government] shall be final.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975).

[1][**6. The Board of Directors.**—](1) The Board of Directors shall consist of the following [2][eleven] Directors, namely :—

(a) The Chairman ;

(b) [3][Eight] Directors to be nominated by the Federal Government ; and

(c) two Directors to be elected by shareholders other than the Federal Government.

(2) Every Director, other than the Chairman, shall—

(a) perform such special duties as the Board may, by regulations, assign to him; and

(b) receive such remuneration, fees or allowances, and enjoy such privileges, as the Federal Government may determine].

7. Terms of office of Directors.—(1) An appointed Director [4]* * * shall hold office for a term of three years unless sooner removed by the [5][Federal Government], and may be appointed thereafter for a further term or terms of such duration as the [5][Federal Government] may in appointing him therefor, determine.

(2) An elected Director [6]* * * shall hold office for a term of three years and continue in office after the expiry of his term until his successor is elected, and shall be eligible for re-election.

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[1] *The original section 6 has been Subs. by the Pakistan International Airlines, Corporation (Amdt.) Act, 1975 (1 of 1976), s. 3 (w.e.f. 8th January, 1976), which have successively been amended by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1959 (19 of 1959), s. 2 (w.e.f. 2nd April, 1959), the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1960 (40 of 1960), s. 2 (w.e.f. 6th October, 1960), and F.A.O., 1975, Art. 2 (w.e.f. 28th July, 1975) to read as above.*

[2] *Subs. by the Pakistan International Airlines (Amdt.) Ordinance, 1983 (4 of 1983), s. 2, for "ten".*

[3] *Subs. ibid., for "seven".*

[4] *The words "other than the Managing Director" were first ins. by Ord. 19 of 1959, s. 3 and then omitted by Act 1 of 1976, s. 4.*

[5] *Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".*

[6] *The original words "or a Director who is deemed to be elected" omitted by Ord. 19 of 1959, s. 3.*

(3) A casual vacancy in the office of a Director shall be filled by appointment or election, as the case may be, and a Director elected to fill a vacancy shall hold office for the unexpired period of the term of his predecessor:

Provided that it shall not be necessary to elect a Director to fill a casual vacancy of an elected Director occurring within three months of the end of the term in which it occurs.

(4) Directors who are not servants of the Government shall be paid such fees for attending the meetings of the Board or of any executive committee appointed by the Board of which they are members as may be prescribed by the Board.

(5) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of the Board.

[1][**8. Chairman.**—](1) The Federal Government shall appoint a Chairman of the Board, who shall be the chief executive of the Corporation.

(2) The Chairman shall, unless removed earlier, hold Office for a period of three years on such terms and conditions as the Federal Government may determine; and shall, subject as aforesaid, be eligible for re-appointment.

(3) The Chairman shall exercise such powers and perform such functions as may be assigned to him by the Board or as the Federal Government may, from time to time, determine.

(4) The Chairman shall receive such remuneration, fees or allowances, and enjoy such privileges, as the Federal Government may determine.

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[1] Ss. 8 and 8A have been subs. by the Pakistan International Airlines Corporation (Amdt.) Act, 1975 (1 of 1976), s. 5 (w.e.f. 8th January, 1976), for the original s. 8 which has successively been amended by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1959 (19 of 1959), s. 4 (w.e.f. 2nd April, 1959), the Pakistan International Airlines Corporation (Amdt.) Act, 1966 (17 of 1966), s. 2 (w.e.f. 18th June, 1966), and F.A.O., 1975, Art. 2 and Sch. (w.e.f. 28th July, 1975), to read as above.

8A. Managing Director. —(1) There shall be a Managing Director of the Corporation, who shall be appointed by the Federal Government after consultation with the Chairman.

(2) The Managing Director shall hold office for such period, and be subject to such terms and conditions of service, as the Federal Government may determine after consultation with the Chairman.

(3) The Managing Director shall exercise such powers and perform such functions as may be prescribed by the Board and as the Chairman may assign to him from time to time.].

9. Disqualification of Directors.—(1) No person shall be appointed or elected or shall continue to be a Director who—

(a) is or at any time has been convicted of an offence involving moral turpitude ; or

(b) is or at any time has been adjudicated insolvent ; or

(c) is found lunatic or becomes of unsound mind ; or

(d) is a minor.

(2) No person [1][other than the [2][Chairman]] [3][or a person specified by the Federal Government] shall be appointed or elected or shall continue to be a Director who is or who becomes a member of the salaried staff of the Corporation.

(3) No Director shall continue in office after absenting himself from three consecutive meetings of the Board without the leave of the Chairman or, in the case of the Chairman, of the [4][Federal Government].

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[1] *Ins. by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1959, (19 of 1959), s. 5.*
[2] *Subs. by the Pakistan International Airlines Corporation (Amdt.) Act 1976 (1 of 1976,) "s. 6 for Managing Director".*
[3] *Ins. by the Pakistan International Airlines (Amdt.) Ordinance, 1981 (18 of 1981), s. 2.*
[4] *Subs. by F.A.O., 1975, Art. 2, and Table for "Central Government".*

10. Appointment of officers, etc. [1]**[(*)]** The Corporation may appoint such officers, advisers and employees as it considers necessary for the efficient performance of its functions on such terms and conditions as it may see fit [2][:]

[2][Provided that, if the Federal Government so directs, the Corporation shall appoint an officer, adviser or employee having such qualifications, on such terms and conditions and for performance of such functions as the Federal Government may specify.]

[3]* * * * * * *

11. Meetings of the Board.——(1) The meetings of the Board shall be held at such time and such places as may be prescribed:

Provided that a meeting may also be otherwise convened by the Chairman when he so thinks fit and shall be convened if two or more Directors so request in writing addressed to the Chairman.

Quorum. (2) To constitute a quorum at a meeting of the Board not less than [4][three] Directors shall be present.

(3) Each Director including the Chairman shall have one vote, and in the event of an equality of votes the Chairman shall have a casting or a second vote.

(4) [5][In the absence of the Chairman], the Directors present shall choose one from among themselves to be the Chairman of the meeting.

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[1] *Sub-section (1) which was re-numbered by ord. 53 of 1984 has been omitted by the Pakistan International Airlines (Amdt.) Act, 1989 (7 of 1989), s. 2.*

[2] *Subs. and added by the Pakistan International Airlines (Amdt.) Ordinance, 1980 (24 of 1980), s. 2.*

[3] *Sub-section (2), (3) and (4) which were Added by Ord. 53 of 1984, has been omitted by Act 7 of 1989, s. 2.*

[4] *Subs. by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1959 (19 of 1959), s. 6, for "five".*

[5] *Subs. and shall be deemed to have been so subs. by the Pakistan International Airlines Corporation (Amdt.) Act, 1966 (17 of 1966), s. 3, (w.e.f. 18th June 1966) for "If for any reason the Chairman is unable to be present at a meeting".*

12. Head Office. The Corporation shall establish its head office in Karachi and may establish offices within Pakistan and abroad if the Board so thinks fit.

13. Deposit account. The Corporation may open an account in the National Bank of Pakistan or in any scheduled bank in Pakistan or, with the prior approval of the [1][Federal Government], in any other bank in Pakistan. The Corporation may open an account outside Pakistan in any bank which may be a scheduled bank according to the law of the country in which the account has to be opened, or with the prior approval of the [1][Federal Government] in any bank.

14. Investment of funds. The Corporation may invest its funds in any securities of the [1][Federal Government] or a Provincial Government.

15. Borrowing powers. The Corporation may, with the previous sanction of the [1][Federal Government] and on such terms and conditions as may be approved by the Government, borrow in Pakistan currency or in foreign currency.

16. Audit.——(1) The accounts of the Corporation shall be audited by not less than two auditors holding certificates under section 144 of the Companies Act, 1913 (VII of 1913), who shall be appointed by the [1][Federal Government], in consultation with the Comptroller and Auditor-General of Pakistan hereinafter referred to as the Auditor-General, on such remuneration, to be paid by the Corporation, as the [1][Federal Government] may fix, and the Auditor-General shall have the power to give directions to the auditors in regard to the extent and method of their audit subject to the provisions of the Companies Act, and to prescribe the forms of accounts to be maintained by the Corporation consistent with the requirements of that Act.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government". (w.e.f. 28th July, 1975).

(2) Notwithstanding the provisions of the preceding sub-section, the Auditor-General, where the [1][Federal Government] is required under section 26 to make good any losses sustained by the Corporation shall, and in other cases may, either of his own motion or upon a request received in this behalf from the [1][Federal Government], undertake such audit of the accounts of the Corporation at such time as may be considered necessary, and the Corporation shall, at the time of such audit, produce the account books and connected documents at such place or places as the Auditor-General may fix, and furnish such explanations and information as the Auditor-General or an officer or officers authorised by him in this behalf may ask for.

(3) Every auditor appointed under sub-section (1) shall be given a copy of the annual balance sheet of the Corporation and shall examine it together with the accounts and vouchers relating thereto, and shall have a list delivered to him of all books kept by the Corporation and shall at all reasonable times have access to the books, accounts and other documents of the Corporation, and may in relation to such accounts examine any Director or officer of the Corporation.

(4) The auditors shall report to the shareholders upon the annual balance sheet and accounts and in their report they shall state whether in their opinion the balance sheet is a full and fair balance sheet containing all necessary particulars and properly drawn up so as to exhibit a true and correct view of the state of the Corporation's affairs, and in case they have called for any explanation or information from the Board, whether it has been given and whether it is satisfactory.

(5) The Board may at any time issue directions to the auditors requiring them to report to it upon the adequacy of measures taken by the Corporation for the protection of its shareholders and creditors or upon the sufficiency of the information and other means placed at the disposal of the auditors in auditing the affairs of the Corporation.

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[1] *Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975).*

[1]**[17. Accounts.—**(1) A statement of its accounts audited by the auditors referred to in the preceding section and a report by the Directors thereon shall be furnished to the [2][Federal Government] by the Corporation [3][within seven months of the close] of every financial year.

[4][(2) The [2][Federal Government] shall, as soon as possible, lay the statement and report, received by it under sub-section (1) before the National Assembly.]

18. General meetings.—(1) A general meeting (hereinafter referred to as the annual general meeting) shall be held at the head office of the Corporation annually within six months from the date on which the annual accounts of the Corporation are closed, and a general meeting may be convened by the Board at any other time.

(2) The shareholders present at the annual general meeting shall be entitled to discuss the annual accounts, the annual report of the Board on the working of the Corporation, and the auditors' report on the annual balance sheets and accounts.

(3) Every shareholder holding a share of Rs. 10 shall be entitled to a vote, and to an additional vote for every additional share of rupees ten ; and for this purpose two shares of rupees five each shall be reckoned to be the equivalent of a share of rupees ten.

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[1] S.17 was re-numbered as sub-section (1) of that section by the Pakistan International Airlines Corporation (Amdt.) Act, 1958 (16 of 1958), s. 2 (with effect from the 18th April, 1956).

[2] Subs. by F.A.O., 1975, Art. 2, and Table for "Central Government" (w.e.f. 28th July, 1975).

[3] Subs by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1959 (49 of 1959), s. 2, for "as soon as possible after the end" (w.e.f. 3rd September, 1959).

[4] Sub-section (2) added by Act 16 of 1958, s. 2.

19. Declaration of fidelity and secrecy. Every Director, auditor, officer or servant of the Corporation shall, before entering upon his duties make a declaration of fidelity and secrecy in the form set out in the Schedule to this Act.

20. Indemnity of Directors.—(1) Every Director shall be indemnified by the Corporation against all losses and expenses incurred by him in the discharge of his duties except such as are caused by his own wilful act or default.

(2) A Director shall not be personally responsible for the acts of any other Director or of any officer or servant of the Corporation for any loss or expense resulting to the Corporation by reason of the insufficiency or deficiency in value of or title to any property or security acquired or taken on behalf of the Corporation, or by the wrongful act of any person under a liability to the Corporation, or by anything done by him in good faith in the execution of the duties of his office.

21. Transfer to the Corporation of the undertaking of the Orient Airways Ltd.—— (1) On such date as the [1][Federal Government] may by notification in the official Gazette appoint (hereinafter in this Act referred to as "the appointed date"), which shall be as soon as may be after the appointment of the first Board of Directors, under sub-section (1) of section 6, the entire undertaking of the said Company shall be transferred to and vested in the Corporation.

(2) The undertaking so transferred and vested shall include all assets, rights, powers, authorities and privileges and all property, movable and immovable, including lands, works, workshops, aircraft, cash balance, reserve funds, investments and book debts and all other rights and interests arising out of such property as were immediately before the appointed date in the ownership, possession or power of the said Company in relation to the undertaking whether within or without Pakistan and all books of account and documents relating thereto, and all borrowings, liabilities and obligations of whatever kind then subsisting of the said Company in relation to the undertaking.

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[1] *Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975).*

(3) Subject to the other provisions of this Act, all contracts and working arrangements subsisting immediately before the appointed date as affecting the said Company shall, in so far as they relate to the undertaking of the said Company, cease as from the appointed date to have effect or to be enforceable against the said Company or any person who was a surety or had guaranteed the performance thereof, and shall be enforceable and of effect against or in favour of the Corporation in which the undertaking has vested as if instead of the said Company the Corporation has been named therein.

(4) Subject to the other provisions of this Act any proceeding or cause of action pending or existing immediately before the appointed date by or against the said Company in relation to its undertaking may as from the appointed date be continued or enforced by or against the Corporation in which it has vested by virtue of this Act as it might have been continued or enforced by or against the said Company if this Act had not been passed, and shall cease to be continued or be enforceable by or against the said Company or its surety or guarantor.

22. Certain existing arrangements to continue. All contracts and working arrangements made and all liabilities incurred by the [1][Federal Government] before the appointed date in connection with or for the purposes of the Corporation shall be deemed to be made or incurred by the Corporation and have effect accordingly.

23. Winding up and dissolution of Orient Airways Ltd.—(1) The said Company shall be wound up voluntarily in accordance with the provisions of the Companies Act, 1913 (VII of 1913), relating to members voluntarily winding up:

(a) the winding up of the said Company shall commence on the appointed date without the passing by the said Company of any special or other resolution for winding up :

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[1]*Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975).*

(b) the Directors of the said Company shall not be under any obligation to make any such statutory declaration as is required by section 207 of the Companies Act, 1913 (VII 1913); and

(c) the winding up of the said Company shall be conducted by the Directors of the said Company in office at the appointed day who shall be deemed to be joint liquidators for the purposes of the said winding up with power to act by a majority of their number. In case of any of the joint liquidators ceasing to hold his office as joint liquidator by reason of his death, resignation or otherwise the remaining joint liquidators shall continue to function as joint liquidators until the winding up of the affairs of the said Company is completed.

(2) For the purposes of the winding up and for any other purpose necessary for enabling it to give effect to the provisions of this Act, the said Company may after the appointed date retain temporarily for its own use such offices, books, accounts and documents and the services of such officers and servants on such terms and conditions as may be agreed between the Corporation and the said Company, or failing agreement, as may be determined by the [1][Federal Government].

24. Valuation of assets of Orient Airways Ltd. and allotment of shares to the shareholders of Orient Airways Ltd.——(1) So soon as may be after the commencement of this Act, the [1][Federal Government] shall through such persons and in such manner as it thinks fit, cause as expeditiously as may be a valuation of the net value of the assets of the said Company (after taking into account all the liabilities of the said Company) as on the 30th September, 1953, to be completed, and the valuation so made shall on being approved by the [1][Federal Government] be notified in the official Gazette and shall be final ; and

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[1] Subs. by F.A.O., 1975, Art. 2. and Table, for "Central Government" (w.e.f. 28th July, 1975).

each shareholder of the said Company shall thereupon be entitled, subject to the provisions of section 25 to receive, in exchange for his shares in the said Company, shares in the Corporation of a value which shall be in proportion to the valuation of the total net assets of the said Company, as approved by the [1][Federal Government] under this section, to the aggregate amount subscribed on the existing shares of the said Company.

(2) No shareholder in the said Company shall be entitled to any other or further claim, in respect of the shares held by him in the said Company, in the winding up of the said Company or against the said Company or the Corporation.

25. Share capital.—(1) The authorised share capital of the Corporation shall in the first instance be five crores of rupees.

(2) The subscribed capital of the Corporation shall in the first instance be allotted and subscribed to as follows, that is to say,—

(a) shares of the value of two crores and seventy-five lakhs of rupees or of the value of the assets resulting from the investments made by the [1][Federal Government] for the purposes of the Corporation, as on the 30th September, 1953, and assessed on the basis agreed upon between the [1][Federal Government] and the said Company, whichever is less, shall be allotted to the [1][Federal Government] ;

(b) shares of the value of half a crore of rupees shall be offered to the public for subscription ; if any shares so offered are not subscribed to by the public under this clause within six months of the date when the shares are so offered, the [1][Federal Government] shall subscribe to them ;

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[1] *Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975).*

(c) shares of the value of one crore of rupees or of the value of the net assets of the said Company as on 30th September 1953, as determined by the valuation made and approved under section 24, whichever is less shall be allotted to the shareholders of the said Company in consideration of the acquisition of the undertaking of the said Company as fully paid-up shares [1][;]

[2][Provided that all shares not so allotted before the commencement of the Pakistan International Airlines Corporation (Amendment) Ordinance, 1962, shall, upon such commencement, stand allotted to, and be held by, the [3][Federal Government.].

[4][(2A) If, before the expiry of a period of three years from the commencement of the aforesaid Ordinance, any person to whom a share has not already been allotted under clause (c) of sub-section (2) applies to the Corporation for the allotment of shares to which he may be entitled under that clause, the [3][Federal Government] may, on the recommendation of the Board, and after making such enquiries as it may consider necessary, transfer to such person, out of the shares held by it under the proviso thereto the shares to which, in the opinion of the [3][Federal Government], such person is so entitled.]

(3) The Corporation may increase its capital whenever it thinks fit with the previous sanction of the [3][Federal Government], and the [3][Federal Government] may impose such conditions as it considers necessary when sanctioning any increase.

(4) The [3][Federal Government,] [5][whether by itself or together with any financial institution,

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[1] *Subs. by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1962 (23 of 1962), s. 2, for full stop (w.e.f. 31st May, 1962).*
[2] *Proviso added, ibid.*
[3] *Subs. by F.A.O. 1975, Art. 2 and Table, for "Central Government". (w.e.f. 28th July, 1975).*
[4] *New Sub-section (2A) ins. by the Pakistan International Airlines Corporation (Amdt.) Ordinance, 1962 (23 of 1962), s. 2.*
[5] *Ins. by the Pakistan Airlines (Amdt.) Act, 1985 (15 of 1985), s. 2.*

banking company, insurance Corporation or statutory Corporation owned, managed or controlled by it,] shall not at any time hold shares of value less than 51 per cent of the value of the shares issued by the Corporation.

(5) All transfers of the shares of the Corporation shall be subject to the provisions of this Act, and the rules made thereunder.

26. Limited guarantee against loss. The [1][Federal Government] shall make good any losses sustained by the Corporation during the three years next after 30th September, 1953, but not thereafter unless otherwise determined by the [1][Federal Government].

27. Liquidation of Corporation. No provision of law relating to the winding up of companies or corporations shall apply to the Corporation and the Corporation shall not be wound up save by order of the [1][Federal Government] and in such manner as the [1][Federal Government] may direct.

28. Provisions relating income-tax and Super-tax. For purposes of the [2][Income-tax Ordinance, 1979] (XXXI of 1979)] the Corporation shall be deemed to be a company within the meaning of that Act, and shall be liable to income-tax and super-tax accordingly on its income, profits and gains.

29. Power of [1][Federal Government] to make rules. The [1][Federal Government] may make rules [3]not inconsistent with this Act for the purpose of giving effect to the provisions of this Act and where the rules made under this section are inconsistent with the regulations made under the next succeeding section the rules shall prevail.

30. Power of Board to make regulations. The Board may with the previous sanction of the [1][Federal Government], make regulations[4]not inconsistent with this Act to provide for all matters for which provision is necessary or expedient for the purpose of giving effect of the provisions of this Act.

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[1] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government" (w.e.f. 28th July, 1975.)

[2] Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 2 and II Sch., for "Income Tax Act, 1922".

[3] For the Pakistan International Airlines Corporation Rules, 1958, Gaz. of Pak., 1958, Pt. III, pp. 41—46.

[4] For Regulations made under this section, see Gaz. of Pak., 1958, Pt. VII, pp. 13—16.

31. Rules and regulations to be held before the legislature. All rules and regulations made under this Act shall be published in the official Gazette, and shall come into force upon such publication and shall be laid thereafter as soon as may be before the National Assembly.

32. [*Repeal of Ordinance I of 1955 and XXVIII of 1955*] *Rep. by the Repealing and Amending Ordinance, 1965 (10 of 1965), s. 2 and Ist. Sch.*

THE SCHEDULE

(*See Section 19*)

DECLARATION OF FIDELITY AND SECRECY

I, ……. Hereby declare that I will faithfully, truly and to the best of my judgment, skill and ability, execute and perform the duties required of me as a Director, officer, employee or auditor (as the case may be) of the Pakistan International Airlines Corporation, and which properly relate to any office or position in the said Corporation held by me.

I further declare that I will not communicate or allow to be communicated to any person not legally entitled thereto any information relating to the affairs of the Corporation nor will I allow any such person to inspect or have access to any books or documents belonging to or in the possession of the Corporation and relating to the business of the Corporation.

Signed before me

……. Signature …….

……. Signature …….

Dated……. Signature …….

THE PAKISTAN NATIONAL COUNCIL OF THE ARTS ACT, 1973.

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THE PAKISTAN NATIONAL COUNCIL OF THE ARTS ACT, 1973.

[1]ACT NO LIX OF 1973

[*11th August, 1973*]

An Act to provide for the establishment of the Pakistan National Council of the Arts.

WHEREAS it is expedient to provide for the establishment of a Pakistan National Council of the Arts for the patronage, promotion and development of the Arts, and for matters connected therewith or incidental thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.— (1) This Act may be called the Pakistan National Council of the Arts Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once

2. Definitions. In this Act, unless there is anything repugnant in the subject or context,—

(a) "artistic activity" means any activity so declared by the Federal Government by notification in the official Gazette;

(b) "Board" means the Board of Governors of the Council constituted under section 4;

(c) "Chairman" means the Chairman of the Council;

(d) "Council" means the Pakistan National Council of the Arts established under section 3; and

(e) "Director-General" means the Director-General of the Council.

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3. Establishment of the Council.—(1) As soon as may be after the commencement of this Act, the Federal Government may, by notification in the official Gazette, establish a Council to be called the Pakistan National Council of the Arts.

(2) The Council shall be a body corporate having perpetual succession and a common seal, with power to acquire, hold and dispose of property, both movable, and immovable, and shall by the said name sue and be sued.

[1] For Statement of Objects and Reasons, *see* Gaz. of P., 1973, Ext., Pt. III, p. 1205.

[1][4. **Board of Governors.**— (1) The management, overall control and supervision of the affairs of the council shall vest in a Board of Governor consisting of the following members, namely:—

(a) the Federal Minister-in-Charge of Culture who shall also be the Chairman;

(b) the Minister of State for Culture, who shall also be the Vice-Chairman:

Provided that, if there is no such Minister of State; the Federal Government may nominate any member of the Board to be the Vice-Chairman;

(c) the Secretary to the Government of Pakistan in the Division dealing with Culture;

(d) a representative of the Ministry of Foreign Affairs;

(e) the Financial Adviser of the Division dealing with Culture;

(f) the Joint Secretary to the Government of Pakistan in the Division dealing with Culture;

(g) the Director-General;

(h) the Director of Archaeology;

(i) the Managing Director, Pakistan Television Corporation;

(j) the Director-General, Pakistan Broadcasting Corporation;

(k) twenty persons, including five women, eminent in the fields or art and culture, to be nominated by the Chairman; and

(l) a member-secretary to be appointed by the Chairman.].

(2) The Board of Governors shall have power to co-opt. members from amongst persons who are specialists in their respective field, for advice on particular projects and matters under consideration.

(3) The members of the Board, excepting the *ex-officio* members, shall hold office for a term of three years and shall be eligible for re-election or re-nomination, as the case may be.

(4) A member of the Board, other than an *ex-officio* member, may, by writing under his hand addressed to the Chairman, resign his office.

(5) Any casual vacancy in the office of a member other than an *ex-officio* member shall be filled by a person nominated by the Federal Government and the person so nominated shall hold office for the unexpired period of the term of his predecessor.

[1] Subs. by the Pakistan National Council of the Arts (Amdt.) Ordinance, 1979 (61 of 1979), s. 2, for sub-section (1).

5. Director-General.—(1) The Director-General shall be appointed by the Chairman on such remuneration and other terms and conditions as the Chairman may determine.

(2) The Director-General shall be the chief executive of the Council and shall be responsible to the Board for carrying out the objectives of the Council.

(3) The Director-General may, by writing under his hand addressed to the Chairman, resign his office.

6. Headquarters. The headquarters of the Council shall be at Islamabad.

7. Functions.—(1) The Council shall—

(a) advise the Federal Government on matters of policy on artistic activity and their implementation;

(b) improve knowledge, understanding and practice of the arts and advise the Federal Government in order to increase regional activity through systematic planning and coordination at all levels;

(c) coordinate, evaluate and supervise activities of cultural organizations and individuals engaged in cultural activities;

(d) advise and assist the Provincial Governments in the setting up of Provincial Art Councils to serve as liaison between the local cultural bodies and the Council with regard to their activities and financial assistance;

(e) plan, establish and run art academies, folk museums, exhibition halls, auditoria, art galleries and similar other institutions;

(f) organize exhibitions of arts and crafts within Pakistan and in other countries;

(g) organize national and regional ensembles for performance within the country and in other countries;

(h) organize and promote cultural fairs and festivals;

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(i) help, establish and organize national unions of artists on the basis of their chosen field of activity;

(j) help in the implementation of cultural pacts and programmes on directions of the Federal Government;

(k) have contacts with similar organizations in other countries, through the Federal Government;

(l) set up penals of experts in specific fields of the arts where necessary; and

(m) perform any other function in the field of arts which the Federal Government may direct or which the council may consider necessary or desirable.

(2) Where it appears to the Council that an organization engaged in artistic activity which is in receipt of any grant from the Federal Government or the council, is conducting its activities in

a manner contrary to the policy laid down by the Council or is in any other way mismanaging its affairs, the Council may, and where the Federal Government so directs shall, hold an enquiry into the affairs of such organization and submit a report to the Federal Government alongwith its recommendations.

8. Funds. The funds of the Council shall be derived from the following sources, namely:—

(i) grants of the Federal Government and the Provincial Governments; and

(ii) contributions and donations from individuals, local bodies, corporations, institutions, organizations and agencies.

9. Audit of accounts. The accounts of the Council shall be audited by an auditor who is a Chartered Accountant within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961.), appointed by the Federal Government, in consultation with the Auditor-General of Pakistan, on such remuneration, to be paid by the Council, as the Federal Government may fix.

10. Power to make rules. The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

11. Power to make regulations. The Council may make such regulations as it may consider necessary for carrying the provisions of this Act into effect.

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THE PAKISTAN NATIONAL SERVICE ORDINANCE, 1970

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THE PAKISTAN NATIONAL SERVICE ORDINANCE, 1970

*ORDINANCE NO. XXII OF 1970

[*7th November,* 1970]

An Ordinance to introduce compulsory national service in Pakistan

WHEREAS it is expedient to introduce compulsory national service in Pakistan and to provide for matters ancillary thereto;

NOW, THEREFORE, in pursuance of the Proclamation of the 25th day of March, 1969, read with the Provisional Constitution Order, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent, application and commencement.— (1) This Ordinance may be called the Pakistan National Service Ordinance, 1970.

(2) It extends to the whole of Pakistan and applies to all citizens of Pakistan wherever they may be.

(3) It shall come into force on such [1]day as the [2][Federal Government] may, by notification in the official Gazette, appoint in this behalf.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "emoluments", in relation to a person, includes the pay, allowances, gratuity, fees, commissions, perquisites and profits which such person is entitled to receive from his employer for his services;

(b) "employer" means any person or body of persons, whether incorporated or not, who or which employs another person for hire or reward, either directly or through a contractor, whether the terms of employment be express or implied and includes, in the case of an establishment, the person responsible for the management, supervision and control of the establishment;

(c) "essential service" means any service which the [2][Federal Government] may, by notification in the official Gazette, declare to be essential for securing the defence or the security of Pakistan or of any part thereof or for the maintenance of supplies and services essential to the life of the community;

(d) "establishment" means any office, firm, industrial unit, undertaking, shop or premises in which persons are employed for the purpose of carrying on any manufacturing process, business, trade or service;

*The Ordinance has been declared to be validly made by the Competent Authority, *see* the Validation of Laws Act, 1975 (63 of 1975)
[1]*i.e.* the 25th day of November, 1970, *see* Gaz. of P., 1970, Ext. (Islamabad), p. 4626.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(e) "matriculate" means a person who has passed the Matriculation Examination or Secondary School Leaving Certificate Examination, or any other equivalent examination, of a board or other authority set up by Government or by Government or by or under any law and includes a person who has passed such other examination as the [1][Federal Government] may, by notification in the official Gazette, declare to be equivalent of such examination;

(f) "national service" means the service required to be rendered under sub-section (4) of section 5; and

(g) "prescribed" means prescribed by rules made under this Ordinance.

3. National service liability, etc. —(1) Subject to the provisions of this Ordinance, every male citizen of Pakistan who has attained the age of eighteen years and has not attained the age of twenty years and possesses educational qualifications not below that of a matriculate shall be liable to render national service.

(2) Every male citizen of Pakistan who, at the commencement of this Ordinance, has attained the age of eighteen years and has not attained the age of twenty years and possesses educational qualifications not below that of a matriculate shall, not later than one month from such commencement, offer himself for national service in such manner and to such authority as may be prescribed.

(3) Every male citizen of Pakistan who, at any time after the commencement of this Ordinance,—

(a) being a matriculate, attains the age of eighteen years, or

(b) having attained the age of eighteen years, becomes a matriculate,

Shall, not later than one month from the date on which he attains the age of eighteen years or, as the case may be, becomes a matriculate, offer himself for national service in such manner and to such authority as may be prescribed.

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(4) Nothing in sub-section (1), sub-section (2) or sub-section (3) shall apply to persons—

(a) who are members of any of the Defence Services or civilian armed forces of, or any police force in, Pakistan or are employed in any of the ordinance factories in Pakistan; or

(b) who, being engaged in any essential service or being students of any medical, engineering or veterinary institution, are declared by the [1][Federal Government], by notification in the official Gazette, to be exempt from the liability to render national service.

4. Deferment of liability to render national service.—(1) The liability to render national service of any person who is a student of any institution may, on an application made in this behalf to the prescribed authority, be deferred for such period as the authority may deem fit having regard to the duration of the course of studies taken up by such person.

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

(2) Where the liability of any person to render national service has been deferred for any period under sub-section (1), the age up to which he is liable to be called up for such service shall be deemed to be extended by that period.

5. Selection and enrolment, etc.— (1) An officer or authority prescribed in this behalf may, by a notice in writing, require any person liable to render national service to report in person to such authority and at such time and place as may be specified in the notice and the person to whom a notice has been issued shall report accordingly.

(2) A person who has reported in pursuance of a notice under sub-section (1) shall be selected for national service unless—

(a) his liability to render national service has for the time being been deferred under section 4; or

(b) he is exempted after medical examination from the requirement of rendering national service; or

(c) he is exempted from the requirement of rendering national service in accordance with rules made under this Ordinance.

(3) A person selected under sub-section (2) shall report to such authority and at such time and place as may be specified by the authority by whom he is so selected for the purpose of being enrolled in the Pakistan Army, the Pakistan Navy or, as the case may be, the Pakistan Air Force.

(4) A person who has reported under sub-section (3) shall, subject to the provisions of this Ordinance and the rules made thereunder, render national service for a period of one year in the Pakistan Army, the Pakistan Navy or, as the case may be, the Pakistan Air Force in which he shall be enrolled for that period.

(5) Save as otherwise provided in the rules made under this Ordinance, a person, while he is rendering ntional service, shall—

(a) be subject to the service law of the Defence Service in which he is enrolled for such service; and

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(b) receive such honorarium per month as may be prescribed and be entitled to such other facilities and privileges, other than salary, as are admissible to a person enrolled in the Pakistan Army, the Pakistan Navy or, as the case may be, the Pakistan Air Force.

6. National Service Reserve. A person who has completed national service shall be placed on the National Service Reserve created for the purposes of this Ordinance and shall, until he has attained the age of thirty-five years, be liable to be called up—

(a) for refresher training every year; and

(b) for service from time to time in the Defence Service in which he rendered national service.

7. Refresher training.—(1) A person in the National Service Reserve shall, when called up for training under clause (a) of section 6 by a notice in writing by the officer or authority prescribed

in this behalf, report in person to such authority and at such time and place as may be specified in the notice and shall receive in the Defence Service in which he rendered national service the prescribed training for the prescribed period which shall not be less than fifteen days or more than thirty days.

(2) Save as otherwise provided in this Ordinance or the rules made thereunder, a person, while he is undergoing training in a Defence Service under sub-section (1), shall—

(a) be subject to the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Navy Ordinance, 1961 (XXXV of 1961), or, as the case may be, the Pakistan Air Force Act, 1953(VI of 1953),; and

(b) receive such honorarium as may be prescribed and be entitled to such other facilities and privileges, other than salary, as are admissible to a person enrolled in the Defence Service in which he is undergoing training.

8. Service in Defence Services.—(1) A person in the National Service Reserve shall, when called up for service in a Defence Service under clause (b) of section 6 by a notice in writing by the officer or authority prescribed in this behalf, report in person to such authority and at such time and place as may be specified in the notice.

(2) A person who has reported in pursuance of a notice under sub-section (1) shall be enrolled in the Pakistan Army, the Pakistan Navy or, as the case may be, the Pakistan Air Force unless he is, after medical examination, declared unfit for such enrolment.

(3) A person enrolled in a Defence Service under sub-section (2) shall, unless he is earlier discharged or released, serve in that Service until he has attained the age of thirty-five years:

Provided that nothing in this sub-section shall be deemed—

(a) to prevent the retention in the Defence Service with his consent of any such person after he has attained the age of thirty-five years; or

(b) to terminate the liability under section 6 of any such person who is discharged or released before he has attained the age of thirty-five years to be called up for refresher training every year or for service in a Defence Service.

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[1]**[8A. Service of notice.**—(1) A notice under sub-section (1) of section 5, or sub-section (1) of section 7, or sub-section (1) of section 8, shall be served on the person to whom it relates in such manner as the officer by whom it is issued may deem fit.

(2) Where a person to whom a notice referred to in sub-section (1) relates does not report in person as required by such notice, the officer issuing the notice may cause the notice to be published for the information of such person in such manner as that officer deems to be sufficient; and such publication shall be deemed to be valid service.]

9. Certificate to granted. Every person—

(i) who has offered himself for national service in pursuance of sub-section (2) or sub-section (3) of section 3 but has not been selected for national service; or

(ii) whose liability to render national service has been deferred under section 4; or

[1]Ins. by the Pakistan National Services (Amdt.) Ordinance, 1971 (37 of 1971), s. 2.

(iii) who has been exempted from rendering national service under clause (b) or clause (c) of sub-section (2) of section 5; or

(iv) who has completed national service,

Shall be granted by the officer or authority prescribed in this behalf a certificate to the effect that such person has so offered himself for national service but has not been selected for such service or has been so exempted, or that his liability to render such service has been deferred for the period specified in the certificate or, as the case may be, that he has completed national service.

10. Permission to leave Pakistan necessary. A person for the time being in Pakistan who is liable to render national service and does not hold a certificate granted under section 9 shall not leave Pakistan without the permission in writing of such officer or authority as the [1][Federal Government] may, by notification in the official Gazette, authorise in this behalf.

[2]**[11. Extension of age limit**. Where any maximum qualifying age has been fixed for regulating the eligibility of persons for admission to a competitive examination held for appointment to any service or post or any academic or professional institution or for appointment to any service or post, a person who has rendered national service shall, for the purpose of such eligibility be entitled, notwithstanding anything contained in any other law for the time being in force or in any rule, order or other instrument, to the period actually spent by him in national service being deducted from his age.]

12. Employers not to employ certain persons. No employer shall employ a person who is liable to render national service unless such person holds a certificate granted under section 9.

13. Obligations of employers of persons in the Reserve. The employer of any person for the time being on the National Service Reserve who is called up for refresher training under section 7 shall, for all purpose, treat the period spent by such person in such training as period spent in the performance of duties in the service of the employer and shall not—

(i) terminate the services of such person while he is under going such training or on the ground that he is liable to be or has been called up for such training; or

(ii) make any deduction from the emoluments to which such person is entitled while on duty.

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14. Penalty. —(1) A person shall be punishable with imprisonment for a term which may extend to three years, or with fine which may extend to fifteen thousand rupees, or with both, if he—

(a) contravenes the provisions of sub-section (2) or sub-section (3) of section 3; or

(b) fails to render national service when required to do so; or

(c) fails to comply with notice under sub-section (1) of section 5; or

(d) fails to comply with notice, or to receive training, under sub-section (1) of section 7; or

[1]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[2]Subs. by Ord. 37 of 1971, s. 3, for Section 11.

(e) fails to comply with notice under sub-section (1) of section 8; or

(f) contravenes the provisions of section 10; or

(g) contravenes the provisions of section 12; or

(h) contravenes the provisions of section 13.

(2) A person who is convicted of an offence under sub-section (1) shall not be eligible to hold any office in the service of Pakistan or any appointment in any establishment.

[1][(3) No prosecution for an offence under sub-section (1) shall be instituted except upon a report in writing of the facts constituting such offence made by an officer prescribed in this behalf.

(4) A court trying an offence under sub-section (1) shall presume that a report, or a copy thereof certified to be true copy by the officer by whom it was made, under sub-section (3) purporting to have been made by an officer competent to make it was made by such officer.]

15. Power to make rules.—(1) The [2][Federal Government] may, by notification in the official Gazette, make [3]rules for carrying out the purposes of this Ordinance.

(2) In particular, and with out prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

(a) the manner in which and the authority to which a person liable to render national service shall offer himself for such service;

(b) the officers and authorities by whom notices may be issued under sub-section (1) of section 5, or sub-section (1) of section 7, or sub-section (1) of section 8;

(c) the circumstances in which and the grounds on which a person may be exempted from the requirement of rendering national service;

(d) the honorarium payable to a person while rendering the national service;

(e) the manner in which person may be enrolled for rendering national service in any of the Defence Services;

(f) the manner in which persons who have completed national service may be placed on the National Service may be placed on the National Service Reserve;

(g) the nature of the training which persons on the National Service Reserve shall undergo, the period of such training, and the honorarium payable to such persons;

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[1]Added by the Pakistan National Services (Amdt.) Ordinance, 1971, (37 of 1971), s. 4.
[2]Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".
[3]For such Rules, *see* S.R.O., 288 (1)/70, dated 25th November, 1970, *see* Gaz. of P., 1970 Ext. (Islamabad), P. 4626.

(h) the officers and authorities by whom certificates under section 9 may be granted;

(i) the extent to which and the manner in which persons enrolled for rendering national service in any of the Defence Services or called up for training under sub-section (1) of section 7 shall be subject to the Pakistan Army Act, 1952 (XXXIX of 1952), the Pakistan Navy Ordinance, 1961 (XXXV of 1961), or, as the case may be, the Pakistan Air Force Act, 1953 (VI of 1953); and

(j) any other matter which may be necessary for carrying out the purposes of this Ordinance.

16. Jurisdiction of courts barred. No order made or proceedings taken under this Ordinance shall be called in question in any court including a High Court and the Supreme Court.

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82991 Date: 11-11-2024

THE PAKISTAN NAVAL ACADEMY (AWARD OF DEGREES) ORDINANCE, 1965

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SECTIONS:

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2. Definitions.
3. Conferment of degrees on Cadet-entry Officers.
3A. Conferment of degrees on others.
4. Power to make Regulations.

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THE PAKISTAN NAVAL ACADEMY (AWARD OF DEGREES) ORDINANCE, 1965.

[1]ORDINANCE No. XX OF 1965

[4*th June*, 1965]

An Ordinance to authorise the Pakistan Naval Academy to confer degrees.

WHEREAS it is expedient to authorise the Pakistan Naval Academy to confer degrees;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1), of Article 29 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance: —

1. Short title extend and commencement.—(1) This Ordinance may be called the Pakistan Naval Academy (Award of Degrees) Ordinance, 1965.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Cadet-entry Officer" means a person appointed as a cadet in any branch of the Pakistan Navy, and includes any such person promoted to the rank of midshipman or acting sub-lieutenant, while still undergoing the prescribed course;

(b) "prescribed course" means a course of training prescribed by regulations made under this Ordinance.

[2][**3. Conferment of degrees on Cadet-entry Officers.** The Pakistan Naval Academy shall have the power to confer the degree of the Bachelor of Science or Bachelor of Arts, abbreviation whereof shall be B.Sc (N.A) or B.A (N.A.), respectively, and four years Bachelor of Studies in Naval and Management Sciences), on any Cadet-entry Officer on his successful completion of the prescribed course in the Pakistan Naval Academy appropriate to his branch.]

[3]**[3A.Conferment of degrees on others.**— The Pakistan Naval Academy shall also have the power to confer the degrees referred to in section 3 on any officer of a foreign government on his successfully completing the prescribed course in that Academy].

4. Power to make Regulations. The Pakistan Naval Academy may, with the previous approval in writing of the [4][Federal Government], make regulations for carrying out the purposes of this Ordinance.

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[1] Approved by the National Assembly of Pakistan on 21st July, 1965, see Gaz. of P., 1965, Ext., p. 586.
This Ordinance has been applied to the Provincially Administered Tribal Areas or to the parts or those areas to which it does not already apply see Regulation No. I of 1972, s. 2, and Sch.
[2]Subs by Act. XII of 2010, s. 2.
[3] Ins. by Pakistan naval Academy (Award of Degrees) (Amdt.) Act 1972 (7 of 1972), s. 2.
[4] Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".

THE PAKISTAN NUCLEAR REGULATORY AUTHORITY ORDINANCE, 2001

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THE PAKISTAN NUCLEAR REGULATORY AUTHORITY ORDINANCE, 2001

ORDINANCE No. III OF 2001

[*22nd January, 2001*]

An Ordinance to provide for the establishment of the Pakistan Nuclear Regulatory Authority for regulation of nuclear safety and radiation protection in Pakistan and the extent of civil liability for nuclear damage resulting from any nuclear incident;

WHEREAS it is expedient to provide for the establishment of the Pakistan Nuclear Regulatory Authority to be the competent national authority for regulation of safety of nuclear installations, the protection against risks arising from ionizing radiation, the extent of civil liability for nuclear damage resulting from any nuclear incident and for matters ancillary thereto or connected therewith;

AND WHEREAS the National Assembly and the Senate stand suspended in pursuance of the Proclamation of Emergency of the fourteenth day of October 1999, and the Provisional Constitution Order No. 1 of 1999;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October 1999, and the Provisional Constitution Order No. 1 of 1999, as well as Order No.9 of 1999; and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Pakistan Nuclear Regulatory Authority Ordinance, 2001.

2. It extends to the whole of Pakistan.

3. It shall come into force at once.

2. Definitions.—— In this Ordinance, unless there is anything repugnant in the subject or context,

(a) "Authority" means the Pakistan Nuclear Regulatory Authority established under section 3;

(b) "authorization" means an authorization granted under section 20 or, as the case may be, sections 21, 22 or 23;

(c) "Chairman" means the Chairman of the Authority;

(d) "Commission" means the Pakistan Atomic Energy Commission established under the Pakistan Atomic Energy Commission Ordinance, 1965(XVII of 1965);

(e) "ionizing radiation" means any electromagnetic or particular radiation capable of producing ions, directly or indirectly in its passage through matter;

(f) "license" means a license issued under section 19;

(g) "member" means a member of the Authority;

(h) "nuclear damage" means loss of life, any personal injury or any loss of, or damage to, property which arises out of or results from the radioactive properties or a combination of radioactive properties with toxic, explosive or other hazardous properties of nuclear substance, radioactive materials or radioactive products or waste in, or of nuclear material coming from, originating in, or sent to, a nuclear installation, or from the ionizing radiation emitted by any other source of radiation inside a nuclear installation;

(i) "nuclear fuel" means any material which is capable of producing energy by self sustaining chain process of nuclear fission, nuclear fusion or other nuclear transmutation;

(j) "nuclear incident" means any occurrence, or series of occurrences having the same origin which causes nuclear damage or but only with respect to preventive measures, creates a grave and imminent threat of causing such damage;

(k) "nuclear installation" means:

(i) any nuclear reactor used as a source of power or for any other purpose;

(ii) any factory using nuclear fuel for the production of nuclear material, or any factory for the processing of nuclear material including any factory for the reprocessing of irradiated nuclear fuel; and

(iii) any facility where nuclear material is stored, other than storage incidental to the carriage of such material:

Provided that several nuclear installations of one operator, which are located at the same site, may be considered as a single nuclear installation;

(l) "nuclear material" means:—

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(i) nuclear fuel, including natural uranium and depleted uranium, capable of producing energy by a self-sustaining chain process of nuclear fission outside a nuclear reactor, either alone or in combination with some other material; and

(ii) radioactive products or waste;

(m) "nuclear substance" means any substance or nuclear material which the Authority determines as being a substance or material which may be used for production of or use in atomic energy or for research into matters connected therewith and includes all substances obtained or obtainable from the soil or water by under-ground or surface working or from the atmosphere;

(n) "operator", in relation to a nuclear installation, means the person licensed under section 19;

(o) "person" means any individual, corporation, partnership, firm, association, trust, estate, public or private institution, group, Government agency, any state or any political sub-division or any political entity within a state, any foreign Government or nation, or other entity and includes any legal successor, representative, agent or agency of any of the aforesaid;

(p) "radiation generator" means a device or an apparatus capable of generating radiation, such as X-rays, neutrons, electrons, or other charged particles, which may be used for scientific, industrial or medical purposes;

(q) "radioactive material" means any substance which contains or consists of radioactive nuclide, naturally occurring or 'artificially produced, provided that the specific activity of the substance is in accordance with the levels as may be prescribed by regulations;

(r) "regulations" means regulations made under this Ordinance; and

(s) "rules" means rules made under this Ordinance.

3. Establishment of the Authority.— (1) As soon as may be, but not later than thirty days after the commencement of this Ordinance, the Federal Government shall, by notification in the official Gazette, establish, in accordance with provisions of this Ordinance, an Authority to be called the, Pakistan Nuclear Regulatory Authority;

Provided that till such time as the Authority is fully constituted, the Chairman shall exercise the powers, perform the functions and discharge the duties of the Authority.

(2) The Authority shall be a body corporate having perpetual succession, and a common seal, and may sue and be sued in its own name and, subject to and for the purposes of this Ordinance, may enter into contracts and may acquire, purchase, take, hold and enjoy moveable and immovable property of every description and may convey, assign, surrender, yield up, charge, mortgage, demise, reassign, transfer or otherwise dispose of or deal with, any moveable or immovable property or any interest vested in it.

(3) The head office of the Authority shall be at Islamabad and it may set up offices, at such places as it may deem appropriate;

(4) The common seal of the Authority shall be kept in the custody of the Chairman or such other person as may be prescribed by regulations and documents required or permitted to be executed under the common seal shall be specified and authenticated in such manner as may be prescribed by regulations.

4. Composition of the Authority.—(1) The Authority shall consist of a Chairman not more than two full-time members and seven part-time members to be appointed by the Federal Government.

(2) The Chairman and every member of the Authority shall be a person of ability, integrity and standing having such knowledge and experience as hereinafter specified.

(3) The Chairman shall be a person holding a postgraduate degree in physical or nuclear sciences or in engineering and technology, preferably a Ph.D. or equivalent from an internationally recognised university and have worked for at least twenty-five years in the field of nuclear sciences or nuclear engineering and technology.

(4) Each of the two full-time members shall be a person holding a postgraduate degree in physical or nuclear sciences or be graduate in engineering and technology from an internationally recognised university and have worked for at least twenty years in the relevant field of radiation protection, nuclear safety or reactor safety.

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(5) Seven part-time members as follows:—

(a) three technical members:

(i) two of whom shall be reputable scientists or engineers from internationally recognized universities holding a post-graduate professional degree in nuclear physics or nuclear engineering and technology and have worked at least for fifteen years in the relevant field; and

(ii) one medical doctor holding a postgraduate professional degree in nuclear medicine, radiotherapy or radiation sciences and have worked at least for fifteen years in the relevant field;

(b) two nominees one each from the Ministry of Health and the Pakistan Environmental Protection Agency not below the rank of Joint Secretary;

(c) one nominee from the Pakistan Atomic Energy Commission with the rank or grade equivalent to that 'of a full-time member of the Commission; and

(d) Director General, Strategic Plans Division, JSHQ.

(6) There shall be a Secretary of the Authority who shall be a non-voting member of the Authority.

(7) No person shall be appointed as the Chairman or a member unless he is a citizen of Pakistan.

5. Chairman.– The Chairman shall be the Chief Executive Officer of the Authority and shall, subject to the provisions of this Ordinance, the rules and regulations, be responsible for the day to day administration of the affairs of the Authority

6. Term of office of the Chairman.—(1) Subject to the provisions of this Ordinance, the Chairman shall hold office for a term of four years from the date of his appointment.

(2) The Chairman shall be eligible for reappointment for a period of four years but not for more than two consecutive terms.

7. Term of office of a member.— Subject to the provisions of this Ordinance, a full-time member and a part-time member other than an ex-officio member, shall hold office for a period of four years from the date of his appointment and shall be eligible for reappointment for a period of four years but not for more than two consecutive terms.

8. Resignation by the Chairman or a member.– The Chairman, a full-time member or a part-time member may, by giving in writing to the Federal Government a notice of not less than three months, resign his office:

Provided that the resignation shall not take effect until it has been accepted by the Federal Government.

9. Removal of the Chairman or a member.—(1) Subject to sub-section (2), the Federal Government may by notification in the official Gazette, remove the Chairman or any member from his office.

(2) The Chairman or any member may be removed from his office, if he:—

(a) in the opinion of the Federal Government, fails to discharge, or becomes incapable of discharging, his duties under this Ordinance;

(b) has been declared insolvent;

(c) has been declared to be disqualified for employment in, or has been dismissed from the service of Pakistan;

(d) has been convicted of an offence involving moral turpitude; or

(e) has knowingly acquired or continued to hold without the permission in writing of the Federal Government, directly or indirectly or through a partner, any share or interest in any contract or employment with, or by on behalf of the Authority, in any land or property which in his knowledge, is likely to benefit or has benefitted as a result of the operation of the Authority:

10. Filling of a casual vacancy.— A casual vacancy in the office of the Chairman or a member shall be filled by the appointment of another Chairman or, as the case may be, member for the remaining term of office of his predecessor.

11. Terms and conditions of service.— (1) The salary and allowance payable to, and other terms and conditions of service of, the Chairman and a full-time member shall be such as may be prescribed by rules.

(2) Remuneration and-allowances of a part-time member shall be such as may be prescribed by regulations.

12. Meetings of the Authority.— (1) The Authority shall meet at such times and place and in such manner, as may be prescribed by regulations:

Provided that until regulations are made in this behalf, such meetings shall be convened by the Chairman.

(2) As and when required, and for the purpose of advice, the Chairman may, in consultation with full-time members, invite a senior level expert or representative of a relevant organization to participate in the meetings of the Authority.

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13. Directorates of the Authority.—The Authority may establish one or more Directorates which shall execute, enforce and supervise all decision of the Authority and all nuclear anal radiation safety measures vested in the Authority under the provisions of this Ordinance or the rules and regulations made thereunder.

14. Advisory Committees.— (1) The Authority may, from time to time, constitute such Advisory Committees, from amongst its members or other suitably qualified persons, for assisting the Authority in the performance of its functions generally, or for advising on or evaluating any particular nuclear or radiation safety aspect.

(2) An Advisory Committee constituted under sub-section (1) shall perform such functions as may be prescribed by regulations

15. Appointment of advisers and consultants.— (1) The Authority may employ suitably qualified advisers and consultants to transact any business or to do any act required to be transacted or done in exercise of its powers or performance of its functions under this Ordinance.

(2) The decision to employ and the terms and conditions of employment under sub- section (1) shall be made by the Authority as it may deem fit.

16. Functions and powers of the Authority.— (1) Subject to the provisions of this Ordinance, the Authority shall have the responsibility for controlling, regulating and supervising all matters related to nuclear safety and radiation protection measures in Pakistan.

(2) Without prejudice to the-generality of the foregoing powers, the following shall be the powers and functions of the Authority, namely:

(a) to devise, adopt, make and enforce such rules, regulations, orders or codes of practice for nuclear safety and radiation protection as may, in its opinion, be necessary;—

(b) to plan, develop and execute comprehensive policies and programmes for the protection of life, health and property against the risk of ionizing radiation;

(c) to regulate the radiation safety aspects of:—

(i) Exploitation of any radioactive ore;

(ii) Production, import, export, transport, possession, processing, reprocessing; use, sale, transfer, storage or disposal of a nuclear substance, radioactive material or any other substance as the Authority may, by notification in the official Gazette, specify;

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(iii) equipment used for production, use or application of nuclear energy for :—

(a) the generation of electricity; or

(b) any other uses;

(d) to approve effective reporting procedures with respect to radiation incidents and to ensure that plans for protective action in emergency situation have been prepared;

(e) to ensure that corrective actions are undertaken when unsafe or, potentially unsafe conditions are detected concerning a nuclear

installation, radiation generator, nuclear material, nuclear substance or radioactive material;

(f) to ensure that appropriate measures for physical protection of nuclear installations and nuclear materials are taken;

(g) to establish the extent of insurance to be carried by a licensee against the risks of nuclear damage to the public;

(h) to grant authorization, or issue licence for the production, storage, disposal, trade in and use of any nuclear substance, radioactive material or any other substance or equipment used for production or use of nuclear energy as the Authority may, by notification in the official Gazette, specify;

(i) to inspect all nuclear installations, radiation generators, nuclear materials, nuclear substances or radioactive materials to ensure that regulations concerning safety measures are properly followed;

(j) to advise the Federal Government departments or Provincial Government departments, educational and research institutions, public or private industry and other undertakings on questions related to nuclear safety and radiation protection; and

(k) to do all other acts and things, such as initiating and coordinating research and development necessary for carrying into effect the provisions of this Ordinance.

17. Directives, orders and instructions from the Federal Government.— (1) The Federal Government may, from time to time, issue to the Authority such directives and orders as it may consider necessary for carrying out the purposes of this Ordinance and the Authority shall follow and carry out such directives and orders.

(2) In discharging its functions, the Authority shall be bound by such instructions, if any, as may be given to it on any question of policy by the Federal Government which shall be the sole judge as to whether a question is a question of policy.

18. Delegation of powers. The Authority may, by general or special order in writing, direct that any of its powers, shall, in such circumstances and under such conditions, if any, as may be specified in the order, be exercisable also by the Chairman, a member or officer of the Authority.

19. Power to issue license.—(1) No person shall, unless he is exempted as may be prescribed by regulations, or unless he is the holder of a license issued by the Authority:

(a) acquire, design, manufacture, construct, install or operate any device to the contains any radioactive material or produce ionizing radiation including

consumer products, sealed sources, unsealed sources and radiation generators, including mobile radiography equipment;

(b) establish installations and facilities which contain radioactive materials or devices which produce radiation including irradiation facilities, mines and mills processing radioactive ores, installations processing radioactive substances, nuclear installations and radioactive waste management facilities;

(c) explore for mines and mill, extract, acquire, handle, use for; medical, industrial, veterinary, or agriculture purposes, or for education, training or research, etc., sell, lease, lend, buy, transfer, import, export, convert, enrich, produce, store, process, reprocess, fabricate, transport, dispose of any radioactive ores, radioactive material, nuclear substance or any other substance as the Authority may, by notification in the official Gazette, specify; and

(d) treat food by ionizing radiation.

(2) Subject to sub-section (1), the Authority may, on application made to it accompanied by such fee, information and documents, as may be prescribed by regulations, issue a licence for carrying out of such activities as are specified in the licence for such period as may be so specified.

(3) The Authority may require an applicant to demonstrate by submitting the required information that the activity for which the license is required would not be hazardous to public or the environment.

(4) The Authority may prescribe terms and conditions that may be attached to a licence.

(5) The Authority may require the establishment of effective reporting procedure in respect of radiation accidents and ensure that the plans for mitigating the effects of nuclear incidents have been prepared.

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20. Power to grant authorization.—(1) The Authority may, on application made to it accompanied by such fee, information and documents, as may be prescribed by regulations, grant an authorization for carrying out of such activities as are specified in the authorization for such period as it tray specify.

(2) The Authority may specify terms and conditions that may he attached to an authorization.

21. Authorization prior to licensing.– No person shall commence construction of any nuclear installation without first obtaining an authorization for the purpose from the Authority as may be prescribed by regulations.

Explanation. For the purposes of this section, "construction" includes the sitting, designing and construction of buildings for, and every stage of setting up of, a nuclear installation.

22. Authorization prior to radioactive waste discharge and disposal.— No person shall discharge, or dispose of; radioactive waste to the environment without first obtaining an authorization for the purpose from the Authority as may be prescribed by regulations.

23. Authorization for nuclear powered vehicle, vessel or aircraft, and any vehicle, vessel or aircraft carrying nuclear material.— No person shah cause a nuclear powered vehicle, vessel or aircraft, and any vehicle, vessel or aircraft carrying nuclear material to enter in Pakistan without first obtaining an authorization for this purpose from the Authority as may be prescribed by regulations.

24. Cancellation or suspension of an authorization or a licence.— (1) Where any person has been found to have contravened any of' the provisions of this Ordinance, the rules and regulations, or has consistently failed to comply with the terms and conditions of an authorization or, as the case may be, a licence, the Authority may, subject to sub-section (2), cancel or suspend the authorization or, as the case may be, the license.

(2) Before taking any action under sub-section (1) the Authority shall issue a notice to such person to, show cause and give him an opportunity of being heard or an opportunity to rectify the omission subject to such conditions as the Authority may specify.

25. Actions to be taken subsequent to cancellation or suspension of licence.— In case the Authority cancels or suspends a license under section 24, it may subsequently undertake all or any of the following actions in respect of the installation or facility covered under the licence, namely:

(a) ask the licensee to put the installation or facility in safe State and Shut down the installation or facility;

(b) permit the licensee to continue operating the installation or facility under such term and conditions as the Authority may specify; or

(c) appoint another person to take over the operation of the installation or facility.

26. Transitional.— (1) Whoever before the commencement of this Ordinance is engaged in activities requiring authorization or license under this Ordinance shall declare to the Authority and shall apply for grant of an authorization or, as the case may be, issue of a licence within six months from such commencement.

(2) Pending action, on the application submitted pursuant to sub-section (1), the applicant may continue to pursue such activities referred to in sub-section (1), provided that all necessary measures to comply with the provisions of this Ordinance are taken immediately.

27. Control of contaminated foodstuff.— No person shall sell, distribute or otherwise dispose of foods that have been contaminated by material producing ionizing radiation except as may be prescribed by regulations.

28. Power to obtain information.— The Authority, any officer of the Authority or any other person authorized in that behalf by the Authority may, by a notice, in writing, served on any person require such person to make such returns, at such time, and maintain such particulars as may be specified in the notice in respect of all or any of the following matters, namely:—

(a) any such radioactive material, or nuclear substance specified in the notice as is in his possession or under his control;

(b) any plant in his possession or under his control designed or adapted for the production or use of atomic energy, ionizing radiation or radioactive material;

(c) any contract entered into by him or any right granted by or to him relating to such production or use as aforesaid; and

(d) any other information in his possession relating to any work carried out by him, or on his behalf or under his direction in connection with such production or use.

29. Power of entry, inspection, etc.— Any member of the Authority, any officer of the Authority or any other person authorized in that behalf by the Authority may, at all reasonable hours, enter any premises, vehicle, vessel or aircraft for the purpose of satisfying himself as to whether the provisions of this Ordinance and the rules and regulations made thereunder have been, are being adequately complied with and may—

(a) carry out any tests and investigations;

(b) obtain and analyse any samples;

(c) examine designs, drawings, records, memoranda, reports or documents pertaining to the use, operation, maintenance or storage of any radiation generator or, as the case may be, nuclear substances or radioactive materials;

(d) inspect all measures and records pertaining to environmental and personnel monitoring and disposal of radioactive wastes;

(e) obtain any other information required for the safety evaluation of any radiation generator or nuclear installation concerned; and

(f) lock and seal any nuclear installation or radiation generator, or any part thereof, where any nuclear substance or radiation generator is being used, stored, operated or maintained in contravention of the provisions of this Ordinance or the rules and regulations made thereunder.

30. Fixation of extent of civil liability.— The Authority shall have the power to fix the extent of civil liability for an operator in case of various nuclear incidents.

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31. Absolute and exclusive liability of an operator.– An operator shall be absolutely and solely liable for nuclear damage upon proof` that such damage has been caused by a nuclear incident—

(a) in his nuclear installation, however, caused such as handling, storage, use, etc.; and

(b) involving nuclear material coming from, or originating or originally received in, his nuclear installation.

32. Insurance or other financial guarantee.— Every opera or of a nuclear installation shall maintain insurance or other financial guarantee adequate to cover his civil liability for nuclear damage, in such amount of such type and on such terms as the Authority may from time to time, determine.

33. Indemnity by the Federal Government.— The Federal Government shall ensure payment of claims against any operator liable for nuclear damage and for such damage by providing necessary funds to the extent that the yield of insurance or other financial guarantee maintained by the operator under section 32 falls short to satisfy such clams in full:

Provided that in no case shall the civil liability of the Federal Government be more than fifteen times the insurance or the financial guarantee required to be carried by an operator of a nuclear installation:

34. Saving as to governmental and certain other installations.– Nothing in section32 shall apply to a nuclear installation owned and operated by the Federal Government and the Federal Government shall assume limited civil liability up to at least an amount to be determined by the Authority for any nuclear damage in the event of a nuclear incident in any such nuclear installation.

35. Claim against foreign operators.— In the event of nuclear incident occurring within Pakistan and engaging the civil liability for nuclear damage of an operator in a country other than Pakistan, jurisdiction over claims under this Ordinance shall be that of the Courts of competent jurisdiction in Pakistan unless specifically provided otherwise by the terms of a contract in writing.

36. Limitation.– (1) The right to compensation under this Ordinance shall be extinguished if any action is not brought within ten years from the date of the nuclear incident and within three years from the date on which the person suffering nuclear damage had knowledge of the nuclear damage provided that the period shall in no case exceed ten years.

(2) Where nuclear damage is caused by a nuclear incident involving nuclear material which at the time of the nuclear incident was stolen, lost, jettisoned or abandoned, the period established pursuant to subsection (1) shall be computed from the date of that nuclear incident, but the period shall in no case exceed twenty years from the date of the theft, loss, jettison or abandonment.

37. Re-adjustment.— Any person suffering nuclear damage, who has brought an action for compensation within the period specified in section 36 may amend his claim to take into account any aggravation of the damage, even after the expiry of that period, provided the final judgement has not been entered.

38. Co-operation with International Organization, etc.— In order to carry out its functions in a smooth and effective manner, the Authority may, with the prior approval of the Federal Government, enter into co-operation agreements with any other nuclear regulatory authority or international organization in respect of the peaceful uses of atomic energy pursuant to the express terms and conditions of any programme or agreement for co- operation to which such authority or organization is a party or pursuant to any other international arrangement made before or after the commencements of this Ordinance.

39. Environmental surveillance and radiation emergency plans.—(1) The Authority shall ensure, implement and co-ordinate national programme of environmental surveillance to check any build-up of environmental radioactivity that might affect the public. Such programme shall be carried out in collaboration with various governmental, public or private bodies concerned.

(2) The Authority shall ensure, co-ordinate and enforce preparation of emergency plans for action to be taken following foreseeable types of nuclear incidents that might affect the public. Such plans shall include arrangements for reporting and communication, the co- ordination of action between the various public bodies involved, the training of personnel and the provision of necessary facilities and instrumentation.

(3) If the radiation from environmental contamination by radioactive material reaches a level of intensity at which public health may be endangered, the Authority shall at once notify the Federal, Provincial, local and other authorities concerned who shall immediately take, in consultation with the Authority, all necessary protective and safety measures.

(4) The protective and safety measures referred to in sub-sections (1), (2) and (3) may include restrictions on the movements of persons and objects such as confining people to their homes, isolating people and objects, limiting the transfer of persons and foods, curtailing or prohibiting sales of foodstuffs, farm products and the use of water, evacuating certain zones or forbidding entry thereto, rendering dangerous objects harmless, destroying animals and dispensing of the bodies.

(5) If in the opinion of the Authority it is necessary, the Civil Defence Organization, the police or other law enforcing agencies or the Armed Forces may be called upon to assist in the implementation of the measures specified in sub-section (4).

40. Appointment of officers, employees and consultants.—(1) Subject to the provisions of sub-section (3), the Authority may appoint such officers, employees and consultants as it may consider necessary for the efficient performance of its functions on such terms and conditions as it may deem fit.

(2) The Authority may also borrow the services of officers, employees and consultants of other organizations on ouch terms and conditions as may be mutually settled between the lending organization and the Authority.

(3) The method and procedure of appointment and the terms and conditions of service of officers and employees shall be regulated by rules to be made with the prior approval of the Federal Government under Section 55:

Provided that till such time such Rules are made under Section 55, the PAEC Service Regulations as amended from time to time shall, mutatis mutandis regulate appointments of officers and employees and the terms and conditions of their Service.

41. Funds of the Authority.— The funds of the Authority shall comprise:

(a) funds of the Commission related to the Directorate of Nuclear Safety and Radiation Protection as transferred to the Authority under section 54;

(b) grants from the Federal Government;

(c) grants from a Provincial Government;

(d) income from the grant of authorization and issue of licence;

(e) international grants; and

(f) receipts from such other sources as may be approved by the Authority.

42. Budget.— (1) The Authority shall, in respect of each financial year, submit for the approval of the Federal Government, by such date and in such form as may be prescribed by rules, a statement showing the estimated receipts and expenditures.

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(2) Any surplus of receipts over the actual expenditure in a year, after payment of tax, shall be remitted to the Federal Consolidated Fund and any deficit from the actual expenditure shall be made up by the Federal Government.

43. Audit and accounts.— (1) The Authority shall maintain complete and accurate books of accounts of its actual expenses and receipts in such form and manner as the Federal Government may, in consultation with the Auditor-General of Pakistan, determine.

(2) The accounts of the Authority shall be audited by the Auditor-General of Pakistan.

44. Offences.— (1) Any person who contravenes any of the provisions of sections 19,20, 21, 22 or 23 shall be punishable with imprisonment for a term which may extend to seven years, or with fine which may extend to one million rupees, or with both.

(2) Any person who fails to furnish any return required under this Ordinance or the rules and regulations made thereunder, or willfully furnishes any false return or information, or obstructs any officer or other person duly authorized under this Ordinance in the discharge of his duty thereunder, shall be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to 0.25 million rupees, or with both.

(3) Any operator licensed under section 19 or any person authorized under sections20, 21, 22 or 23, who contravenes any of the provisions of any rules or regulations made under this Ordinance, or any term or conditions imposed thereunder, shall be punishable with imprisonment for a term which may extend to three years, or with tine which may extend to 0.5 million rupees or with both.

(4) Any person who fails to comply with, or contravenes any provisions, conditions or requirements contained under this Ordinance or the rules and regulations made thereunder or commits an offence where no penalty is elsewhere provided, shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to 0.1 million rupees, or with both

(5) All Penalties and fines recovered by the Authority shall be credited to the Federal Consolidated Fund

45. Cognizance of offences.— (1) No Court shall take cognizance of an offence punishable under this Ordinance except upon complaint in writing made by the Authority or an officer of the Authority authorized by it.

(2) Notwithstanding anything contained in the Code of Criminal Procedure, 1898 (Act V of 1898) —

(a) no Court inferior to that of a Judicial Magistrate of the first class shall try an offence punishable under this Ordinance;

(b) all offences under this Ordinance shall be non-bailable; and

(c) it shall be lawful for any Judicial Magistrate of the first class to pass any sentence authorized by this Ordinance.

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(3) The Authority, before filing a complaint under sub-section (1), shall give show cause notice and opportunity of being heard to the licensee.

46. Tribunals.— (1) The Authority may, from amongst its professional staff, establish special tribunals for resolving disputes between its Directorates and licensees or such other matters as the Authority may assign.

(2) The Authority's determinations on decisions by tribunals set up under sub-section (1) shall be deemed to be decrees of a civil court under the Code of Civil Procedure,1908(Act V of 1908).

47. Mode of recovery.— All sums payable to the Authority under the provisions of this Ordinance and the rules and regulations made thereunder shall be recoverable as arrears of land revenue.

48. Power to exempt.— The Authority may, by notification in the official Gazette, exempt any activity, person, class of persons, quantity of a nuclear substance or radiation facility, temporarily or permanently, from the application of all, or any of, the provisions of this Ordinance subject to such conditions, as it may specify in the notification.

49. Submission of periodical reports, etc.— The Authority shall submit to the Federal Government periodical reports, accounts statements, or any other report at such time and at such intervals as the Federal Government may specify.

50. Discoveries and inventions to vest in the Authority.— All rights relating to discoveries and inventions and any improvements in materials, methods, processes, apparatus or equipment made by any officer or employee of the Authority in the course of his employment shall vest in the Authority.

51. Declaration of fidelity and secrecy.— The chairman, every member, adviser, consultant, officer or any other employee of the Authority shall, before entering upon his duties, shall make declaration of fidelity and secrecy as may be prescribed by rules.

52. Chairman, members, etc., to be public servants.— The Chairman, members, officers and employees of the Authority shall, when acting or purporting to, act in pursuance of any of the provisions of this Ordinance, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code 1860(Act XLV of 1860).

53. Indemnity.— No suit, prosecution or other legal proceedings shall lie against the Authority, the Chairman, members, officers and servants of the Authority in respect of anything which is in good faith done or intended to be done under this Ordinance.

54. Dissolution of PNRB and DNSRP and transfer of rights and liabilities of the Commission regarding DNSRP to the Authority.— Upon commencement of this Ordinance the Pakistan Nuclear Regulatory Board (PNRB) set up under the Prime Minster's Secretariat Notification, dated the 30th October, 1994, and the Directorate of Nuclear Safety and Radiation Protection (DNSRP) of the Commission set up under the Pakistan Nuclear Safety and Radiation Protection (~~P~~NSRP) Ordinance 1984, shall stand dissolved and upon such dissolution:—

(a) all assets, rights, powers, authorities and privileges, and all property, movable and immovable, cash and bank balances, reserve funds, investments and all other interests and rights in, or arising out of, such property and all debts, liabilities and obligations of whatever kind of the PNRB and of the Commissions relating to DNSRP subsisting immediately before its dissolution shall stand transferred to and vest in the Authority;

(b) all officers, consultants, advisers, auditors and other employees of the PNRB and of the Commission working in the DNSRP shall have option to remain on the strength of the Commission or to join the Authority, those opting for the Authority shall, notwithstanding anything contained in any law or in any

agreement, deed, document or other instrument, stand transferred to the Authority and shall be deemed to have been appointed or engaged by the Authority in accordance with the terms and conditions of service prescribed by regulations, and no officer, consultant, adviser, auditor or other employee whose services are so transferred shall be entitled to any compensation because of such transfer; and

(c) all debts and obligations, incurred or contracts entered into or rights acquired and all matters and things engaged to be done by, with or for the DNSRP, or with or for the Commission related to DNSRP, before dissolution of DNSRP shall be deemed to have been incurred, entered into, acquired or engaged to be done by, with or for the Authority.

55. Power to make rules.— The Authority may, with the approval of the Federal Government, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

56. Power to make regulations.— (1) The Authority may, by notification in the official Gazette, make regulations, not inconsistent with this Ordinance and the rules, for carrying out the purposes of this Ordinance.

(2) In particular and without prejudice to the generality of the foregoing power, such regulations may provide for—

(a) charging and collection of fees in connection with its licensing and regulatory functions provided that such fees shall be imposed by regulations on the basis of such published criteria as the Authority deems appropriate, taking into consideration among other criteria the nature of the activity authorized; and

(b) charging of consultation fees and expenses, etc., from the applicant for any services provided, including the expenses of any consultation of experts.

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57. Expenses for safety measures or medical examination.— The expenses of any safety measures or medical examination carried out under this Ordinance or any regulations made thereunder shall be borne by the applicant.

58. Ordinance to override other laws.— This Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force.

59. Removal of difficulties.— If any difficulty arises in giving effect to the provisions of this Ordinance, the Federal Government may make such orders not inconsistent with the provisions of this Ordinance, as may appear to it to be necessary for the purpose of removing the difficulty:

Provided that no such power shall be exercised after the expiry of one year from the commencement of this Ordinance.

60. Repeal and savings.— (1) The Pakistan Nuclear Safety and Radiation Protection Ordinance, 1984(IV of 1984), is hereby repealed.

(2) All regulations, guides, regulatory requirements, procedures etc., made under the provisions of the Pakistan Nuclear Safety and Radiation Protection Ordinance, 1984, and in force immediately before the commencement of this Ordinance, shall, mutatis mutandis and in so far as they are not inconsistent with any of the provisions of this Ordinance, shall continue in force until repealed or altered by rules or regulations made under this Ordinance.

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THE PAKISTAN NURSING COUNCIL ACT, 1973

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THE PAKISTAN NURSING COUNCIL ACT, 1973.

[1]ACT NO. XXVI OF 1973

[9th February, 1973]

An Act to amend and consolidate the laws relating to registration and training of nurses, midwives and health visitors.

WHEREAS it is expedient to amend and consolidate the laws relating to registration and training of nurses, midwives and health visitors and to provide for matters ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Nursing Council Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

[2][**2. Definitions.**—In this Act, unless there is anything repugnant in the subject or context,—

(a) **"Board"** means a Provincial Nursing and Midwifery Examination Board constituted under section 20;

(b) **"BSN"** means a bachelors of science in nursing and determined as a Recognized higher Qualification;

(c) **"CNS"** means Clinical Nurse Specialist a registered nurse who having enrolled in and successfully completed one year post BSN diploma in a relevant discipline and or MSN degree in specialized clinical tract recognized by PN&MC and is registered with PN&MC and is licensed to practice as a Clinical Nurse Specialist under section 24(c)(i) and 36(2)(h) of this Act within a defined scope of practice:

(d) **"Council"** means the Pakistan Nursing and Midwifery Council (PN&MC) established under section 4;

(e) **"Current registration"** means registration given by Pakistan Nursing and Midwifery Council, which is present on its Register;

(f) **" HEC"** means the Higher Education Commission of Pakistan;

(g) **"LEW"** means Lady Health Visitor who has completed the prescribed qualification recognized by PN&MC, and has been registered and licensed by the PN&MC as a registered Lady Heath Visitor;

(h) **"Member"** means a member of the Council;

(i) **"Ministry"** means administrative ministry of PN& MC;

(j) **"MNHSRC"** means Ministry of National Health Services, Regulation & Coordination;

[1]For Statement of Objects and Reasons, see Gaz. of R. 1973. Ext.. Ft. III. p. 28H.
[2]Subs. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.2.

(k) **"National Medical Authority"** means the Authority constituted under section 15 of the Pakistan Medical Commission Act, 2020;

(l) **"Nurse"** means registrant of PN&MC licensed to practice as a nurse;

(m) **"NP"** means Nurse Practitioner a registered advanced practice nurse, who having been enrolled to a Master Degree in Nursing (MSN) recognized by PN&MC, is registered with PN&MC as Nurse Practitioner and is currently licensed by PN&MC to practice autonomously and in collaboration with others under section 15 (c)(i) and section 26 (2)(i) of this Act within a defined scope of practice;

(n) **"PN&MC"** means the Pakistan Nursing and Midwifery Council;

(o) **"Prescribed"** means prescribed by this Act and rules and regulations made under this Act;

(p) **"Recognized Higher Qualifications"** means a degree qualification recognized by the Higher Education Commission granted by an institution established and maintained in Pakistan or in a foreign country, or granted by a Board/University for nurses, midwives and LHV which is declared to be a recognized higher qualification for the purposes of this Act:

Provided any qualification recognized as a higher qualification under this Act and obtained by a person registered with the PN&MC prior to the date of the amendment of the Act shall continue to be recognized for the benefit of the person regisred prior to the date of the amendment;

(q) **"Recognized qualifications"** means a qualification granted by a Board/University for which is declared to be a recognized qualification for the purposes of this Act and includes:—

(i) a qualification specified in the schedule; and

(ii) a qualification which was, immediately before the commencement of this Act, a recognized qualification under the Pakistan Nursing Council Act, 1952 (LIX of 1952) and 1973 to the extent of only such person registered with the PN&MC prior to this amendment to the Act unless continued to be recognized after the amendment to this Act.

(r) **"Register"** means the register of nurses, midwives, Lady Health Visitors and nursing auxiliaries maintained under section 20;

(s) **"Regulations"** mean regulations made under this Act;

(t) **"RM"** means Registered Midwife who has completed the prescribed qualification recognized by PN&MC and has been registered and licensed by PN&MC to practice as a registered midwife; and

(u) **"Other Committees"** means sub-committees appointed by the council for special purpose under section 11(2) of the Act.]

[1][**2A. Purpose of Pakistan Nursing and Midwifery Council.**—(a) To protect, promote, and maintain the public health and wellbeing,

(b) To serve the public of Pakistan with regards to healthcare services in general, but nursing and Midwifery services in particular,

(c) To ensure competence of registered professionals of PN&MC, and

(d) To liaison with all stakeholders about nursing and Midwifery education, professional conduct and practice within and outside the Republic of Pakistan,]

[1][**3. Establishment of the Council. (**1) The Federal Government shall, as soon as may be, establish a Council to be called the Pakistan Nursing Council, which shall consist of the following member, namely:—

(a)	Secretary of the concerned Division or his nominee not below the rank of BPS-20;	*Ex-Officio* Member
(b)	Chief Nursing Administrator, by whatever name called of the Armed Forces Nursing Service;	*Ex-Officio* Member
(c)	one nurse from each Province, to be elected by the provincial nursing board, one senior nurse from federal capital to be nominated by the concerned division and one senior nurse from the Government of Gilgit Baltistan to be elected by the nursing board of that Government;	Member
(d)	Three members pointed by the Prime Minister on the recommendation of the concerned Division from whom one member shall be a,—	Members

(i) Philanthropist or from civil society of known integrity and eminence with a minimum of fifteen years of related experience in the field of philanthropist or civil society;

(ii) legal profession of known integrity and eminence with a minimum of fifteen years of experience in the field of law as a practicing lawyer or a retired High Court Judge;

(iii) Charted Accountant of known integrity and eminence with a minimum of fifteen years of related experience in the field of accountancy.

(2) The Council established under sub-section (1) shall be a body corporate having perpetual succession and a common seal, with power, among others, to acquire, hold and dispose of property, and shall by its name sue and be sued.]

[1]Ins.& Subs. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.3 & 4.

[1][**3A. Powers of the Council.—**The powers of the Council shall be,—

(a) to license and regulate Registered Nurse, Nurse Specialist, Nurse Practitioner, Midwife and Lady Health Visitor practice in Pakistan;

(b) to register, maintain and update the register of Registered Nurses, Nurse Specialists, Nurse Practitioners, Midwives and Lady Health Visitors;

(c) to prescribe the requirements to be met as to the evidence of good health and good character in order to satisfy the Registrar that an applicant is capable of safe and effective practice as a nurse or midwife of lady health visitor;

(d) to require public, private and non-government educational institutions and employers of registrants of the Council to promptly submit annual returns of registered nurses, midwives, lady heath visitors in their employment and such other information as may become necessary from time to time;

(e) to assist and advise the Federal and Provincial Governments on matters pertaining to policies of nursing and midwifery professions;.

(f) to carry out licensure examinations for grant of licence to practice with PN&MC and to practice; and to develop, revise and update curricula and recommend these as appropriate to nursing teaching institutions;

(g) Provided that all actions of the council will be in accordance with the law and Council will ensure that the right to prescribe drugs or medical devices may not be given to Registered Nurses, Nurse Specialists, Nurse Practitioners, Midwives, or Lady Health Visitors, or any other nurse practitioners in contravention of the law and without the prior approval of the Federal Government;

(h) to evaluate and accredit institutions that provide education and training in nursing, midwifery and LHV, and to cooperate with other accreditation bodies where necessary in accordance with the objectives of the PN&MC subject to evaluation and accreditation of institutions affiliated with a university shall be regulated by the university and the Higher Education Commission on criteria formulated and provide by the PN&MC;

(i) to designate new nursing and midwifery programs, specialties and categories where deemed necessary by the council;

(j) to determine Scope of Practice for its registrants;

(k) to set, monitor and update,—

i. standards for education, clinical practice. professional conduct and institutional accreditation;

ii. conditions/policies for registration/licence to practice;

iii. conditions/policies for enrollment into nursing programs; and

iv. conditions/policies for institutions offering nursing programs.

[1]Ins. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.5.

(l) to formulate, revise and update policies, and to advocate and motivate institutions, government and private sector to adopt the changes suggested for the improvement of nursing, midwifery and LHV in the country;

(m) to establish an independent arm(s) for quality assurance, examination. accreditation and or curriculum development and approvals for PN&MC credibility as deemed by the council. The independent arms shall accredited by any international credible agency such as ISO;

(n) to determine and receive fees donations, grants or any other financial benefits or assistance;

(o) to collect, analyze data and disseminate information about nursing midwifery and lady health visitors' education, practice and the nursing, midwifery and lady health visitors' workforce;

(p) to consider any matter affecting nursing, midwifery and lady health visiting falling within the ambit of the Council and make representations or take such action as the Council deems advisable:

(q) to approve alter, modify and/or change the Rules and Regulations of the Council when deemed fit and necessary for the promotion of the purposes of the Act;

(r) to elect the Executive Committee of the Council;

(s) to approve the annual audited accounts audited by a duly appointed chartered accountant;

(t) to appoint a registered Chartered Accountant at its Annual General Meeting for auditing the accounts of the PN&MC; and

(u) to do all things necessary and ancillary to the above purposes of the Act.

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3(B). Notwithstanding anything contained in this Act, the Prime Minister on the recommendation of the Minister-in-Charge of the concerned division, may remove all or any member of the Board in the manner as may be prescribed.]

4. Term of office of members.—(1) Subject to the provisions of this section, an elected or nominated member shall hold office for a term of three years from the date of his election or nomination, as the case may be.

(2) An elected or a nominated member may at any time [1][submit his written, signed resignation] to the President of the Council, and the seat of such member shall thereupon become vacant.

(3) An elected or a nominated member shall be deemed to have vacated his seat—

[1][(a) On completion of his tenure of three (3) years as prescribed in sub-section in (2) above without any further notification by PN&MC/NHSRC;]

[1]Subs & ins. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.6.

[1][(b)] if he ceases to represent the particular interest which he was [1][**] nominated to represent or [1][ceases] to hold any office or appointment by virtue of which he was [1][eligible] to be elected or nominated; or

[1][(c)] if he is declared by the Council to have been absent without sufficient cause from three consecutive meetings of the Council.

[1][(d) if the nominating authority withdraws the nomination at any time.]

(4) An elected or a nominated member shall be eligible for re-election or re-nomination but not for more than two consecutive terms.

5. Casual vacancies. A casual vacancy in the office of a member shall be filled for the remainder of the term of such member by [2][**] nomination of another person in his place in the same manner in which such member was [2][**] nominated.

6. Vacancy, etc., not to invalidate proceedings. No act or proceeding of the Council shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of, the Council.

7. Meetings of Council.—(1) The Council shall, for the purpose of transacting its business, meet at least once every [2][three] months at such [2][time and place] as the Council may deem fit or as the President of the Council may determine.

(2) Special meetings may be held at such times and places as the Council may deem fit or as the President of the Council may determine.

[2][(3) A written notice along with the agenda and the time and place of each meeting shall be set by post or courier or by modern electronic means that constitutes documentary proof of notice such as an email, by the Register of the Council to all the members at least ten days before the date fixed for such meeting:

Provided that an emergency meeting may be called at twenty-four hour notice.]

(4) Unless otherwise prescribed, [3][four] members shall form a quorum for the meetings of the Council; and all decisions of the Council shall be made by a majority of the members present and voting.

[2][**(8). President and Vice-President**.—(1) The President and the Vice-President shall be appointed by the Prime Minister on the recommendation of the concerned Division from amongst the Members specified in clauses (c) and (d) of sub-section (1) of section 3

(2) The President and the Vice-President shall hold office for a period of three years.]

9. Executive Committee.— [2][(1) The Council will, for efficient functioning, form an Executive Committee to meet more frequently than the Council and oversee day to day functions. The executive committee would include the President of the Council, who will chair the committee, and four other members of Council, elected by the Council, with duties and authority as recommended by Council. The Council may replace a member of the executive committee by majority vote.]

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[1]re-numbered, omitted, ins., and subs. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.6.
[2]Omitted and subs., by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.7, 8, 9 & 10.
[3]Subs. by Act XLVI of 2023, s.2.(always be deemed to have been so substituted on and from commencement of the Pakistan Nursing Council (Amendment) Act, 2023 (V of 2023)).

[1][(2) Council may also constitute such other committees or sub-committees as it may deem fit for carrying out the purposes of this Act.]

(3) The Executive Committee shall exercise and perform such powers and functions as are, or may be, conferred or imposed upon it by [1][the Council and will report on its activities to Council at every Council meeting].

[1][**9A. The President**.—The President shall be the head of the council and shall preside over all meetings of the Council and the executive committee and shall convene the meetings.

9B. The Vice-President.—The Vice-President shall act in the absence of the President and shall carry out any duties assigned to him/her by the President.

9C. Office of the Council.—The office of the council will consist of full-time employees of the Council, including a Secretary, Finance director, Human resource Director and such other persons as Council might consider necessary for the efficient functioning of Council and to meet the aims of this Act. Council will have the authority to create, redesignate or abolish posts, and establish salaries and benefits for its employees, so long as the fiscal implications remain within the approved budget:

Provided the Federal Government may by notification direct the National Medical Authority to undertake and provide all administrative functions of the PN&MC including the functions of the Finance Director, Human Resource Director, Director Curriculum and Education and Director Registration except the functions of the Secretary which shall be performed by the Secretary of the Council. The costs of such administrative functions shall be reimbursed to the National Medical Authority by the PN&MC or the Federal Government as directed by the Federal Government.

9D. Secretary.—The Council will appoint a full time Secretary as prescribed. The Secretary shall:

(a) Act under the direction of and report to the President and Council;

(b) Be responsible for the efficient management of the office of the PN&MC;

(c) Send out notices for the meetings to be held in consultation with the President and shall record the minutes of all meetings and send out notices along with the agenda;

(d) Keep the President informed of all matters; and

(e) Perform any other duties as prescribed by the President and Council.

9E. Finance Director.— The Council subject to section 9C will appoint a full time Finance Director as prescribed. The Finance Director shall be responsible for the

[1]Subs., and ins. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.10 & 11.

financial management and maintenance of proper accounts of the Council and shall ensure the annual audit by a duly appointed registered chartered accountant. He shall report all matters to the President and shall keep the Council informed of all important matters, and update the Council at each Council meeting.

9F. Appointment of other Personnel.— (1) The Council may appoint any other personnel, including a Director of Registration and a Director of Curriculum and Education, as required for the efficient functioning of the Council to meet the requirements of the Act as deemed fit by council.

(2) The Council shall determine, in accordance with the available budget, the terms and conditions of service and the pay and allowances of the officers and servants.

9G. Functions of Council.—Function of the Council shall be,—

(a) to administer, manage and run the affairs of the PN&MC efficiently and to hire and fire staff whenever or wherever deemed necessary in the interests of the PN&MC.

(b) to properly maintain the records, minutes and all documents of the PN&MC.

(c) to administer the finance and maintain the accounts of the PN&MC with annual audits by a chartered accountant duly appointed by the Council.

(d) to hire staff to positions necessary for the efficient administration and management of the PN&MC.

(e) to co-opt, or appoint persons who are not members of the Council to serve on commissions, or to provide consultation and advice to the Council.

(f) to acquire, rent, let, hire or dispose off property, borrow moneys, accept and administer any trust or donation, and charge fees for any services of the Council, in the interests of the promotion of the purposes of the Act.

(g) to carry out all actions connected and ancillary to the purposes of the Act.]

10. Officers and [1][Supportive Staff] of the Council.—(1) The Council shall appoint [1][professional and administrative and supportive staff on contract] as it may deem [1][fit and] necessary for carrying out the purposes of this Act:

[1][* * * * * * *]

(2) The Council shall, [1][*****], determine the terms and conditions of service and fix the pay and allowances of its officers and [1][supportive staff].

11. [2][*]Nursing Examination Board.— [2][(1) The PN&MC in consultation with Federal Government shall constitute a nursing examination board.]

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[1]Subs., ins. deleted and omitted by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.12.
[2]Omitted and Subs. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.13.

(2) The functions of a Board shall be [1][to hold examinations and] to confer, grant or issue diplomas, licenses, certificates or other documents stating or implying that the holder, grantee or recipient thereof has acquired a qualification in nursing, midwifery, health visiting, public health nursing or auxiliary nursing [1][*****].

[1][(3) Verify Pre-enrollment certificates from the relevant authority on random basis. The board shall verify from issuing board of higher secondary & intermediate boards or authorities on random basis each year and send report to the Council.

(4) If any documents are found fake or forged then debar student and issue warning letter to the institution from where the enrolment has been sent. A copy of such documents must be sent to PN&MC.]

(3) A Board shall conduct its proceedings in such manner as may be prescribed.

[2]**[12. Recognition of institutions or authority conducting educational course or programs**.—(1) Any institution or authority aiming to conduct any Degree/courses/programs of study, in nursing, midwifery and health visiting shall apply to the PN&MC for its recognition. The institution may start the course only after obtaining approval from the PN&MC,—

(2) The Council may hold such inquiry as it may think fit, to require the institution or authority making an application under sub-section (1), to fulfil the following requirements as may be prescribed by the PN&MC,—

(a) Proof of legitimacy of the institution - submit documentary proof of registration under whichever authority registered; and financial sustainability for next five years;

(b) Prove capacity to conduct the program applied for by possessing the,—

(i) Proper infrastructure;

(ii) Qualified number of faculty; and

(iii) Clinical facility;

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(c) Satisfy the PN&MC that it shall comply with the Rules, Regulations and Standards as prescribed by the PN&MC.]

13. [2][Recognition of foreign qualification].—(1) The Council may, for settling a scheme of reciprocity for recognition of qualifications, enter into negotiations with any authority in a foreign country which, by the law of such country, is entrusted with the maintenance of, or is authorised to maintain, a register of nurses, midwives or health visitors.

(2) The Council may, in pursuance of any scheme of reciprocity settled under sub-section (1), by notification in the official Gazette, declare in respect of any qualification or higher qualification granted by any authority in such country that such qualification or such higher

[1]Ins. and omitted by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.13.
[2]Subs., by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.14 & 15.

qualification, or such qualification or higher qualification only when granted after the date specified in the notification, shall be a recognised qualification or a recognised higher qualification for the purposes of this Act.

(3) Notwithstanding that a scheme of reciprocity has not been settled under sub-section (1), the Federal Government may, after consultation with the Council, by notification in the official Gazette, declare that a qualification or higher qualification granted by an institution or authority of a foreign country shall, for such period and subject to such conditions, if any, as may be specified in the notification, be a recognised qualification or a recognised higher qualification for the purposes of this Act.

14. Certification of certain persons as possessed of recognized qualification.— (1) Where, upon an application made in this behalf, the Council is satisfied that a person is, by reason of qualifications granted by an institution outside Pakistan and of experience gained in Pakistan, possessed of qualifications not inferior to a recognised qualification, it may, with the approval of the [1][Higher Education Commission], certify that such person possesses qualifications which entitle him to be regarded as possessing a recognised qualification.

(2) A person in favour of whom a certificate under subsection (1) has been granted shall be deemed to be possessed of a recognised qualification for the purposes of this Act.

15. Effect of recognition.— Notwithstanding anything contained in any other law for the time being in force,—

(a) a person possessing a recognised qualification shall be entitled to be enrolled in the register;

(b) a person possessing a recognised higher qualification shall be entitled to have such qualification entered as a supplementary qualification in the register; and

(c) no person shall, after the commencement of this Act, be entitled—

(i) to be enrolled in the register as a nurse, midwife, health visitor, public health nurse or nursing auxiliary unless such person possesses a recognised qualification; or

(ii) to have any of his qualifications which is not a recognised higher qualification entered as [1][an advanced professional] qualification in the register.

16. Institutions to furnish information required by Council.—Every institution or authority which conducts any [2][educational programs] for the purpose of preparing candidates for any recognised qualification or recognised higher qualification, or applies for the recognition of any qualifications granted by it [2][in the fields Nursing, Midwifery or Health Visitors], shall furnish to the Council such information as it may, from time to time, require relating to—

(a) the [2][educational programs];

(b) examinations conducted during such [2][educational programs];

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[1]Subs. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.16 & 17.
[2]Subs., ins. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.18.

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(c) the ages at which admissions are allowed to such courses of study and training; and

[1][(d) Clinical setting and beds pertaining to education Program; and

(e) Any other matter generally pertinent to the requirements for its recognition.]

(d) any other matter generally pertinent to the requirements for its recognition.

17. Inspection of institution.—[2][(1) The Council shall form a Committee for accreditation from amongst those who have a qualification level higher than the qualification level of the program for which the institution or authority is applying for recognition.]

(2) The persons nominated under sub-section (1) shall report to the [2][Council] on the suitability of the institution or authority for the purposes of [2][educational program] and the adequacy of training imparted therein.

(3) The [2][Council] shall forward a copy of a report made under sub-section (2) to the institution or authority concerned for making such observations thereon as it may think fit to make within the period specified by the Committee.

[2][(4) Upon the expiry of the period specified under sub-section (3) the Council shall, make such recommendations thereon as it may deem fit.]

[2][(5) Council Members cannot be members of the Accreditation committee.

(6) Any college or institution affiliated with a university for purposes of granting a nursing qualification shall be inspected and accredited and regulated by the university and the Higher Education Commission subject to criteria of accreditation and curriculum prescribed by the PN&MC.]

18. Withdrawal of recognition.—(1) Where, after considering a report submitted under sub-section (4) of section 17, the Council is of opinion—

(a) that the [2][educational program] required to be undergone for obtaining a recognised qualification or recognised higher qualification, or conditions for admission to such [2][educational program], or the standards of proficiency acquired by the candidates at the examinations held by the Board, are not in conformity with, or fall short of the standards required by, the regulations, or

[2][(b) that an Institution or authority recognized by the Council for the education of Nurses, Midwives, Lady Health Visitors does not satisfy the prescribed requirements as to educational program for obtaining recognized qualifications or recognized higher qualifications the council shall send a statement to that effect stating clearly the reasons for non-recognition to the institution or authority concerned, and requesting submission within a specified period or such explanation as the institution or authority may like to offer.]

[2][* * * * * * *]

[1]Ins. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.18.
[2]Subs., ins. omitted by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.19 & 20.

(3) Upon the expiry of the period specified under [1][clause (b) of sub-section (1)], the [1][Council], after considering the explanation, if any, offered by any institution or authority, [1][shall] take such steps as may be necessary to ensure compliance by the institution or authority with the requirements of this Act and regulations.

(4) Without prejudice to any steps that may be taken by it under sub-section (3) with respect to an institution or authority, the Council may, by notification in the official Gazette, declare that any qualification granted by such institution or authority which is a recognised qualification or a recognised higher qualification shall, if it is granted after a date specified in the notification, cease to be recognised qualification or, as the case may be, a recognised higher qualification.

(5) The Council may, by notification in the official Gazette, declare that any qualification granted outside Pakistan which is a recognised qualification or a recognised higher qualification shall, if it is granted after a date specified in the notification, cease to be a recognised qualification or, as the case may be, a recognised higher qualification.

[2][**18A. Maintenance of Data Base.—**The council will maintain the following data for national nursing human resources, —

(a) Pre-Registration;

(b) Registration; and

(c) Faculty registration:

Provided the Council shall maintain and verify the CNIC and all other necessary credentials of a person registered and licensed by the PN&MC and carry out biometrics of all persons registered and maintain the updated information of where each person registered and licensed under the Act is working. Such information shall be shared by the Council with the Federal Government. Provincial Governments, National Medical Authority and the respective healthcare commissions.]

19. Maintenance of the register.— The Council shall, for the purpose of registration of nurses, midwives, health visitors and nursing auxiliaries possessing recognised qualifications or recognised higher qualifications, maintain a register in which shall be entered such particulars relating to the persons registerd as may be prescribed.

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20. Procedure for registration.—(1) Any person possessing a recognised qualification or recognised higher qualification who is not disqualified for registration under section 22 may make an application, accompanied by the prescribed fee, for registration of his name in the register.

(2) The Council shall, if it is satisfied that the applicant possesses a recognised qualification or recognised higher qualification and is not disqualified for registration under section 22, register the name of the applicant in the register.

(3) No application under sub-section (1) shall be rejected except after giving the applicant an opportunity of being heard.

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[1]Subs., by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.20.
[2]Ins., by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.21.

21. Removal of name from the register.—(1) The Council may, if it is satisfied that a person has, after his registration, become disqualified for such registration, remove the name of such person from the register and thereupon such person shall cease to be so registered:

Provided that no name shall be so removed except after giving the person affected an opportunity of being heard [1][where a person's name has been removed from the register, the Council shall publish this fact on its website].

(2) The Council may, at any time for reason to be recorded in writing, restore in the register the name of any person [1][who] has been removed therefrom under sub-section (1).

22. Disqualification for registration. A person shall be disqualified for registration in the register if he—

(a) has been convicted of any offence under this Act or of any other offence which in the opinion of the Council implies a defect of character; or

(b) has, at any enquiry held by the Council in which the person was given a reasonable opportunity of being heard, been found guilty of such conduct as is considered derogatory to his profession in accordance with the regulations made under section 26.

23. Prohibition of employment of unregistered nurses, etc. No hospital, asylum, infirmary, dispensary or lying in hospital maintained [1][by public or private sector] shall employ therein any person as nurse, midwife, health visitor or nursing auxiliary unless such person—

(a) is registered in the register; or

(b) is a trainee at an institution recognised for the purpose by the Council and is certified by the head of that institution to have already received sufficient training to be able to perform his duties safely and satisfactorily.

24. Penalty for certain offences.—(1) A person shall be punishable with imprisonment of either description for a term which may extend to [2][one year], or with fine [2][***], or with both, if—

(a) he procures or attempts to procure the registration of his name in the register, or abets the procurement of such registration of any name, by making or causing to be made in any manner whatsoever any false or fraudulent statement, representation or declaration; or

(b) he, not being registered in the register, represents that he is so registered, or uses with his name any title or any word or letter representing or calculated to represent that he is so registered; or

(c) he practices as a nurse, midwife, health visitor or nursing auxiliary in contravention of any regulations made under section 26.

[2][(2) No suit, prosecution or other legal proceeding shall lie against the Government, the Council or any committee thereof, or any officer or staff of the Government or Council for anything which is in good faith done or intended to be done under this Act.]

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[1]Ins., and subs., by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.22 & 23.
[2]Subs.,omitted and ins by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.24.

25. Annual report.—(1) The Council shall submit to the Federal Government [1][and display on its website], as soon as possible after the end of every [1][fiscal] year, a report on the conduct of its affairs during that year.

(2) The Federal Government may at any time require the Council to furnish it with—

(a) a report on any subject with which the Council is concerned;

(b) any return, statement, statistics or other information regarding any matter under the control of the Council; or

(c) a copy of any document in the charge of the Council,

and the Council shall comply with every such requisition.

26. Power to make regulations.—(1) The Council [1][shall], make regulations for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for—

(a) the management of the property of the Council and the maintenance and audit of its accounts;

(b) the manner in which the elections of the President, Vice-President and members shall be conducted;

(c) the summoning and holding of the meetings of the Council or of a Board, the conduct of business thereat and the number of members necessary to constitute a quorum;

(d) prescribing the functions of the Executive Committee, the summoning and holding of meetings thereof, the times and places at which such meetings shall be held, and the number of members necessary to constitute a quorum;

(e) prescribing the powers and duties of the President and the Vice-President;

(f) prescribing the terms and conditions of service and the powers and duties of the officers and [2][supportive staff] of the Council;

(g) [1][* * * * * * *]

(h) prescribing the conditions for admission to courses of training as aforesaid;

(i) prescribing the standards of examination and other requirements to be satisfied for declaration of any qualification as recognised qualification or recognized higher qualification;

[1]Ins., subs., and omitted by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.25 & 26.

(j) regulating the practice of nurses, midwives, health visitors and nursing auxiliaries and for prohibiting persons not registered in the register from so practicing;

(k) prescribing fees to be charged for registration or for any other purpose of the Act;

(1) prescribing fees for recognition of any institution or authority; and

[1][(m) Prescribing a code of professional conduct and standard for practice and education for Nurses, Midwives and Lady Health Visitors; and

(n) Prescribing the functions of the Nursing Examination Boards.]

(m) any other matter which is to be or may be prescribed.

[1][**26A. Powers to make Rules**.—The Federal Government may make rules for carrying out the purposes of this Act in respect of functions ascribed to the Federal Government under the Act.]

27. *[Repeal and Saving.] Omitted by the Federal Laws. (Revision and Declaration) Ordinance, 1981 (XXVII of 1981). s. 3 and Sch., II.*

[2][**THE SCHEDULE**

[*See* section 3(n)]

RECOGNIZED QUALIFICATION:

(a) Bachelor's of Science in Nursing: Four years Degree Course.

(b) Post RN Bachelor's in Nursing: Two years Degree Course.

(c) Master's in Nursing (MSN): Two years Degree Course.

(d) Doctorate in Nursing: 4 years Degree Course.

(e) Post Basic Specialization: 1 year diploma course in different disciplines e.g. Cardiac Care Nursing, Oncology Nursing etc.

(f) Lady Health Visitor (LHV): Twenty-seven months Diploma Course.

(g) Community Midwife (CMW): Two years Diploma Course.

(h) Pupil Midwife: One year Certificate Course.

(i) Associate Degree (LHV): Two years Course.

(j) Associate Midwifery Degree: Two years Midwifery Course.

(k) Post Associate Bachelor's Degree for (LHV): Two years Degree Course.

(l) Post Associate Midwifery Degree (RM): Two years Midwifery Degree Course.]

[1]Ins. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) ss.26 & 27.
[2]Subs. by Pakistan Nursing Council (Amendment) Act, 2023 (Act No V of 2023) s.28.

THE PAKISTAN ORDINANCE FACTORIES BOARD ORDINANCE, 1961

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1. Short title and commencement.
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9. Accounts and audit.
10. Submission of annual report, returns, etc.
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12. Mode of signifying communications from the Board.
13. Power to issue directions.
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THE PAKISTAN ORDINANCE FACTORIES BOARD ORDINANCE, 1961

ORDINANCE NO. XVII OF 1961

[15th May, 1961]

An Ordinance to provide for the constitution of a Pakistan Ordnance Factories Board and for investing it with certain powers and functions of the Central Government in relation to the ordnance factories.

WHEREAS it is expedient to provide for the constitution of a Pakistan Ordnance Factories Board and for investing it with certain powers and functions of the Central Government in relation to the ordnance factories;

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

1. Short title and commencement.—(1) This Ordinance may be called the Pakistan Ordnance Factories Board Ordinance, 1961.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

[1]* * * * * * *

(b) "Board" means the Pakistan Ordnance Factories Board constituted under this Ordinance;
(c) "Chairman" means the Chairman of the Board;
[(d) "factory" means an ordnance factory owned by the [2][Federal Government];
(e) "member" means a member of the Board.

3. Constitution of the Board.— (1) As soon as may be after the commencement of this Ordinance, the [2][Federal Government] shall, by notification[3] in the official Gazette, constitute, for carrying out the purposes of this Ordinance, a Pakistan Ordnance Factories Board consisting of [4][six members] appointed by it.

(2) The [2][Federal Government] shall appoint one of the members to be the Chairman of the Board, one to be the Financial Adviser to the Board [5][,] the third to be the Director of the Industrial and Commercial Relations of the Board [6][[4][,] the fourth to be the Member Production Coordination of the Board], [4][, the fifth member to be called Member (Private) who shall be appointed from the

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[1] *Cl. (a) omitted by F.A.O., 1975, Art. 2 and Sch.,*
[2] *Subs. by F.A.O., 1975, Act 2 and table, for "Central Government".*
[3] *For such Notification see, Gaz of P., 1961, Ext., p. 1125.*
[4] *Subs. added and ins. by Ord. 58 of 2001, ss. 2 and 3.*
[5] *Subs by A.O, 1975 Act 2 and table for "and".*
[6] *Added ibid.,*

corporate sector on the recommendation of the Secretary, Defence Production Division, and the sixth member shall be the Member Ministerial Co-ordination to be nominated by the Federal Government.

4. Terms of office of the members.—(1) A member shall hold office for a term of four years unless sooner required to vacate by the [1][Federal Government] and shall be eligible for re-appointment and shall receive such salary allowances as the [1][Federal Government] may fix.[:][2]

[2][Provided that the Member (Private) shall hold office in honorary capacity.]

(2) Every member shall be a whole time officer of the Board and shall perform such functions as are or may be assigned to him by or under this Ordinance.

(3) Every member [2][except Member (Private),] shall, before assuming his office as such, relinquish or divest himself of any office or interest in any corporation, company or concern other than an industry owned by the [1][Federal Government] or sponsored by the Board.

5. Meetings.—(1) No business of the Board shall be transacted except at a meeting at which a quorum of [3][three members] is present.

(2) The Chairman and in his absence a member nominated by him shall preside at the meetings of the Board.

(3) At the meetings of the Board each member shall have one vote and, in the event of equality of votes, the Chairman or the member presiding shall have a second or casting vote.

6. Functions of the Board.—(1) The principal function of the Board shall be to manage and administer the affairs of the factories and to run them on sound commercial lines so as to adequately meet during war and peace the needs of the defence of the country and to utilise the surplus capacity of the factories to meet the needs of the civilian population.

(2) The Board shall, in discharging its functions, be guided on question of policy involving national interest, including defence requirements during war and peace, by such directions as the [1][Federal Government], which shall be the sole judge whether or not national interest is involved, may give from time to time.

7. Investment of the Board with certain powers.— Notwithstanding anything contained in any law, regulation, rule, order, notification, agreement or other instrument for the time being applicable to any factory, or any officer or other employee appointed or engaged in, or in connection with, any factory, the Board may, in relation to such factory, officer or employee, exercise the following powers of the [1][Federal Government] or of any officer authorized for the purpose by the [1][Federal Government], that is to say,—

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[1]*Subs. by F.A.O., 1975 Art. 2 and Table for "Central Government".*
[2]*Subs. added and ins. by Ord. 58 of 2001, ss. 2 and 3.*
[3]*Subs. ibid., s. 3, for "two members"*

(a) to determine the terms and conditions of service, recruitment, promotion, transfer, posting,, dismissal, discharge, demotion and other disciplinary actions of all officers and other employees:

Provided that the terms and conditions of service of any officer or other employee appointed or engaged before the commencement of this Ordinance shall not be varied to his disadvantage and that he shall not be dismissed or removed from service or reduced in rank by any authority subordinate to that by which he was appointed;

(b) to appoint or engage such officers and other employees, advisers, consultants on contract as it consider necessary for the efficient discharge of its functions on such terms and conditions of service as it may determine;

(c) to carry out all technical and engineering projects or works or to enter into contract or agreement pertaining to their execution;

(d) to make all purchases of plant, machinery and stores either in the country or abroad in such manner as it thinks fit and also to dispose of stores and equipment;

(e) to fix pay of the officers and other employees wherever necessary either initially or otherwise at any stage within the pay scales prescribed by the [1][Federal Government];

(f) to utilise or incur expenditure in respect of lump sum grant allocated for the purpose in the Budget; and

(g) subject to any direction issued in this behalf by the [1][Federal Government], to frame departmental financial and accounting rules and procedure.

8. Submission of estimates of receipt and expenditures to the Federal Government.— (1) The Board shall, in the month of November every year, submit, in such manner and form as the [1][Federal Government] may direct, to the [1][Federal Government], for making necessary provision in its Budget, a statement of the estimated receipts and expenditure pertaining to the discharge of its functions under this Ordinance in respect of the new financial year together with a statement showing separately the estimated receipts and expenditure in foreign exchange for that year.

(2) The Board shall not, without the previous sanction of the [1][Federal Government], incur any expenditure, or undertake any financial liability involving expenditure, in excess of the amount provided for in the Budget.

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[1]*Subs. by F.A.O., 1975 Art. 2 and Table for "Central Government".*

9. Accounts and audit.— (1) The Board shall maintain its accounts including those of the factories in such manner and form as may be prescribed by the [1][Federal Government] in consultation with the Auditor-General.

(2) The accounts of the Board including those of the factories shall be audited by the Auditor-General.

(3) The Board shall, as soon as possible after the end of every financial year, submit to the [1][Federal Government] the statement of accounts audited by the Auditor-General.

(4) The [1][Federal Government] may at any time require the Auditor-General to report to it upon the adequacy of measures taken by the Board for the efficient management of the factories.

10. Submission of annual report, returns, etc.— (1) The Board shall, as soon as possible after the end of every financial year but not later than the thirty-first day of December next following, submit to the [1][Federal Government] a report on the conduct of the affairs of the Board during that year.

(2) The [1][Federal Government] may require the Board to furnish it with—

(a) any return, statement, estimate, statistics or other information regarding any matter relating to, or under the control of, the Board;

(b) a report on any subject with which the Board is concerned; or

(c) any document or copy in charge or under the control of the Board, and the Board shall comply with such requisition.

11. Delegation of powers.— Subject to any rules made in this behalf by the [1][Federal Government], the Board may, by general or special order, direct that any of its powers, functions and duties under this Ordinance shall be exercised, performed or discharged also by the Chairman or any other member or any officer of the Board specified in the order.

12. Mode of signifying communications from the Board.—Any notice, determination, direction, requisition, appointment, expression of opinion, approval or sanction to be given or signified on the part of the Board for any of the purposes of, or in relation to, any powers or functions with which it has been invested under this Ordinance, shall be sufficient and binding if it is in writing signed by the Chairman or by any other person authorized by the Board to act in its behalf in respect of the matters to which such authorization may relate, and the Board shall not in any case be bound in respect of any of the matters aforesaid unless by some writing signed in the manner aforesaid.

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[1]*Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".*

13. Power to issue directions.— The [1][Federal Government] may, from time to time, issue directions to the Board to take such measures as it considers necessary for the efficient management of the factories and the Board shall comply with such directions.

14. Power to make rules.— The [1][Federal Government] may make rules for carrying out the purposes of this Ordinance.

15. Dissolution of the Board.— The [1][Federal Government] may, by notification in the official Gazette, declare that the Board shall be dissolved on such date as may be specified therein, and the Board shall accordingly stand dissolved.

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[1]*Subs. by F.A.O., 1975, Art. 2 and Table, for "Central Government".*

THE [PAKISTAN RED CRESCENT SOCIETY] ACT

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1. Short title and extent
2. Constitution of [Pakistan Red Crescent Society]
3. Appointment of Managing Body
4. Incorporation
5. Power to make rules
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7. Purposes to which funds of Society may be applied
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FIRST SCHEDULE

SECOND SCHEDULE

THE PAKISTAN CODE

THE [1][PAKISTAN RED CRESCENT SOCIETY] ACT

ACT NO. XV OF 1920

[20th March, 1920]

An Act to constitute [2][a [1][Pakistan] Red Crescent Society]

[3][WHEREAS it is expedient to provide for the future administration of the various monies and gifts received from the public for the purposes of medical and other aid to the sick and wounded and other purposes of a like nature, and more especially for the administration of the monies and properties which maybe allotted to Pakistan out of the assets of the Indian Red Cross Society.]

AND WHEREAS it is expedient to constitute a [1][Pakistan Red Crescent Society] with a view to the continuation of the work carried on by the Indian Red Cross Society and to provide for the affiliation therewith of the other societies and bodies having similar objects and of the Provincial Branches of the Indian Red Cross Society falling in [4]* * * Pakistan; It is hereby enacted as follows : —]

1. Short title and extent.—(1) This Act may be called the [5][Pakistan [1][Red Crescent] Society Act], [6][Repealed].

[3][(2) It extends to all the territories of Pakistan].

[3]**[2. Constitution of [1][Pakistan Red Crescent Society]**. There shall be constituted a Society to be known as [5][the] [1][Pakistan]Red Crescent Society (hereafter called the society).

The first members of the Society shall be such persons as were members of the Indian Red Cross Society immediately before the appointed day and are resident in Pakistan.]

[3][3. Appointment of Managing Body.— (i) Until such time as a Managing Body of the Society is elected under the provisions of sub-section (iv) the Managing Body shall consist of (*a*) such persons as were members of the Managing Body of the Indian Red Cross Society immediately before the appointed day and are resident in Pakistan ; and (*b*) such other persons not exceeding 30 in number as may be nominated by the [4][President of Pakistan.]

[1]Subs. by Act No. XIV of 1974, ss. 2, 3, 4 and 5. This Act later on repealed by Ordinance No. XXVII of 1981 s.2, Schedule I.
[2]Subs. by the Federal Laws (Revision and Declaration) Act No. XXVI of 1951, s. 4 and Sch. III.
[3]Subs. by Order No. G.G.O. V of 1947, dated the 20th December, 1947.
[4]Omitted and subs. by A.O., 1961, Art. 2 and Sch. (*w. e. f. the 23rd March, 1956*).
[5]Subs. by A.O., 1949.
[6]Rep. by the Federal Laws (Revision and Declaration) Act No. XXVI of 1951, s. 3 and Sch. II.

[1][(ii) The President of Pakistan shall be the President of the Society.]

(iii) The [1][President of Pakistan] may nominate as office, bearers of the first Managing Body such persons as he may select for the purpose.

(iv) Before the expiry of 6 months from the date of constitution of the first Managing Body a new Managing Body shall be elected by the members of the Society in accordance with the rules made under Section 5. Until such rules are made, the rules made by the Indian Red Cross Society shall be followed with such adaptations as may be necessary.]

4. Incorporation. The first members of the Society and all persons who may hereafter become members thereof so long as they continue so to be, are hereby constituted a body corporate under the name of the [2][Pakistan] [Red Crescent Society], and the said body shall have perpetual succession and a common seal with power to hold and acquire property, moveable and immoveable and shall sue and be sued by the said name.

5. Power to make rules. [3][The Managing Body shall within 6 months of its constitution make rules for the management, control and procedure of the Society.] The rules may provide among other matters for the following namely :—

(a) the conditions of membership of the Society ;

(b) the appointment and term of office of members of the Managing Body ;

(c) the choice of representatives of international and other Committees ;

(d) representation on the Managing Body of Provincial and State Branch Committees and affiliated societies and bodies ;

(e) the constitution of Finance, Medical and other Committees and the delegation of powers to them ; and

(f) the regulation of the procedure generally of the Society and Managing Body.

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[3]**[6. Dissolution and transfer of property of Joint War Committee**. The following property shall vest in the Society :

(a) All property moveable or immoveable which may be allotted to the Society out of the assets held immediately before the appointed day by the Indian Red Cross Society ; and

(b) All gifts made to the Society for purposes which are purposes of the Society.]

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[1]Subs. by A.O., 1961 (*w. e. f. the 23rd March, 1956*).
[2]Subs. by Act No. XIV of 1974, s.6, repealed by Ordinance No. XXVII of 1981, s.2, Schedule I.
[3]Subs. by G.G.O. V of 1947.

7. Purposes to which funds of Society may be applied. Notwithstanding anything contained in any appeal for subscriptions or gifts to or for the purposes of the Committee, the Managing Body may in its discretion apply—

(a) either the corpus of the income or any part of such corpus or income of any property vested in it under [1][clause (a) of section 6] for the relief of sickness, suffering or distress caused by the operation of war in [1][Pakistan] or in any other country in which Expeditionary Forces from [1][Pakistan] may, from time to time, be employed and for purposes cognate to that object and in maintaining [2][Red Crescent Depots] for military purposes ;

(b) in accordance with the provisions of section 8 the income only of any such property but not the corpus or any part thereof for the relief of sickness or suffering in Pakistan, whether due to the operation of war or not, or in pursuance of any of the objects set forth in the First Schedule.

[1][8. Constitution of Branch Committees.— (1) All Branch Committees of the Indian Red Cross Society which immediately before the appointed day had their headquarters at any place which has thereafter been included in [3]* * *Pakistan, shall be deemed to have been constituted under this Act, and all property vested in them before the coming into force of the Pakistan Red Cross Society Order, 1947, shall continue to be so vested :

[4][Repealed]

[5][(1A) There shall be a Branch Committee for the Capital of the Federation which shall consist of such persons, one of whom shall be the Chairman, as the President may appoint.

(1B) There shall be a Branch Committee for each of the Provinces of Baluchistan, the North-West Frontier, Sind and the Punjab (excluding the Islamabad Capital Territory) constituted in accordance with the provisions of sub-section (1D), and all property vested in the Branch Committee for the Province of West Pakistan functioning immediately before the commencement of the Pakistan Red Cross Society (Amendment) Act, 1972, shall, upon the constitution of the Branch Committee for each such Province, vest in that Committee in such manner, and to such extent, as may be determined by the President.

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(1C) All property vested in the Branch Committee for the Karachi Division functioning immediately before the commencement of the Pakistan Red Cross Society (Amendment) Act, 1972, shall vest in the Branch Committee constituted under sub-section (1B) for the Province of Sind.

(1D) The first Branch Committee for each of the provinces referred to in sub-section (1B) shall consist of such persons, not exceeding ten in number, one of whom shall be the Chairman, as may be appointed by the Governor of the Province concerned.

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[1]Subs. by Order No. G.G.O. V of 1947, dated the 20th December, 1947.
[2]Subs. by Act No. XIV of 1974, s.7, repealed by Ordinance No. XXVII of 1981, s.2, Schedule I.
[3]Omitted by A.O., 1961, Art. 2 and Sch. (*w. e. f. the 23rd March,1956*).
[4]Rep. by the Federal Laws (Revision and Declaration) Act No. XXVI of 1951, s. 3 and Sch. II.
[5]Subs. by Act No. XXVI of 1972, s.2, repealed by Ordinance No. XXVII of 1981, s.2, Schedule I.

(lE) Regulations shall be made in pursuance of section 12 by the first Committee for each of the Provinces referred to in sub-section (1B) and, until regulations are so made, the procedure provided for the Branch Committee for the Province of West Pakistan functioning immediately before the commencement of the Pakistan Red Cross Society (Amendment) Act, 1972, shall be followed with such adaptations as may be necessary.]

[1]* * * * * *

(4) Subject to the requirements of the Managing Body for the purposes of clause (a) of section 7 and any provision for expenses of management, the income of any property which vests in the Society under the provisions of clause (a) of section 6 shall be distributed annually among the Branch Committees according to the percentages specified in the Second Schedule, to be expended by them and at their discretion upon all or any of the objects referred to in clause (b) of section 7.

(5) The [2][President of Pakistan] may, by notification in the official Gazette, direct that any Branch Committee specified in the Second Schedule shall be excluded therefrom or that any newly constituted Branch Committee not specified therein shall be included therein, and that the percentages specified in that Schedule shall be varied as required by any such exclusion or inclusion.

(6) On the issue of a notification under sub-section (5) the Second Schedule shall be deemed to be amended in accordance with such_notification.

(7) No notification under sub-section (5) shall be made without the consent of every Branch Committee which is for the time being included in the Second Schedule.]

9. Affiliation of other Societies. The Managing Body may also affiliate to the Society any other society or body having all or any of the objects and purposes referred to in section 7, and may provide for the allocation and distribution of funds, through such society or body, to or for any such objects or purposes.

10. Decision of Managing Body as to purposes final. The Managing Body shall have authority to determine in all cases what matters properly fall within the scope of clause (b) of section 7, and its decision in all such matters shall be binding on all Branch Committees and affiliated societies or bodies.

11. Receipt and use of gifts. The Managing Body may also receive and hold gifts of whatsoever description either for the general purposes of the Society or for any particular purpose for which the corpus or income of the property vested in it under clause (b) of section 6 may be applied under the provisions of section 7, and on receipt of such gifts may, subject to the provisions of rules made under section 5, apply the same to such purposes, either directly or through Branch Committees, or societies or bodies affiliated under section 9.

12. Powers of Branch Committees. Subject to the provisions of rules made under section 5, each Branch Committee shall have all power to regulate its own procedure and constitution, to receive gifts and expend all monies received by it for its purposes, either directly or through other societies or bodies.

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[1]Omitted by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch. II.
[2]Subs. by A.O., 1961, Art. 2 and Sch., (*w. e. f. the 23rd March, 1956*).

[1][Provided that ten per cent. of all cash donations received by any Branch Committee for any of the general objects set out in the First Schedule shall be placed at the disposal of the Managing Body to be applied by it for the general purposes of the Society.]

FIRST SCHEDULE
(*See* section 7)

Objects to which the funds of the Society may be applied

[2][(1) The care of the sick and wounded who are or were members of the Pakistan Forces.]

(2) The care of those suffering from tuberculosis, having regard in the first place to soldiers and sailors, whether they have contracted the disease on active service or not.

(3) Child welfare.

(4) Work parties to provide the necessary garments, etc., for hospitals and health institutions in need of them.

(5) Assistance required in all branches of nursing health and welfare work, ancillary to any organizations which have or may come into being in [3][Pakistan] and which are recognised by the Society.

(6) Home Service Ambulance Work.

[2][(7) Provision of comforts and assistance to persons who are or were members of the Pakistan Forces.]

(8) Such other cognate objects as may, from time to time be approved by the Society.

(9) The expenses of management of the Society and its branches and affiliated societies and bodies.

(10) The representation of the Society on or at international or other Committees formed for furthering objects similar to those of the Society.

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[1]Added by Act No. XVIII of 1953, s.3.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance No. XXVII of 1981, s. 3 and Sch., II.
[3]Subs. by G.G.O. V of 1947.

[1][SECOND SCHEDULE

(See section 8)

Name of Branch Committee	*Approximate percentage of claim.*
1. [2][Karachi Division]	2
2. West Pakistan	55.46
3. East Pakistan	42.54]

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Date: 16-09-2024

[1]Subs. by Act No. XIII of 1957, S. 3.
[2]Subs. by the Central Adaptation of Laws Order P.O. No. 1 of 1964; This Act later on repealed by Ordinance No. XXVII of 1981, S.2, Schedule I.

THE PAKISTAN SCIENCE FOUNDATION ACT, 1973

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5. Board of Trustees
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19. *[Repeal.]*

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THE PAKISTAN SCIENCE FOUNDATION ACT, 1973

[1]ACT No. III OF 1973

[*31st January, 1973*]

An Act to provide for the establishment of the Pakistan Science Foundation.

WHEREAS it is expedient to provide for the establishment of the Pakistan Science Foundation and for matters ancillary thereto;

It is hereby enacted as follows:—

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Science Foundation Act, 1973.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definition. In this Act, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Board of Trustees of the Foundation;

(b) "Chairman" means the Chairman of the Foundation; and

(c) "Foundation" means the Pakistan Science Foundation established under, this Act.

3. Establishment of the Foundation.—(1) As soon as may be after the commencement of this Act, the Federal Government may, by notification in the official Gazette, establish a Pakistan Science Foundation to promote and finance scientific activities having a bearing on the socio-economic needs of the country.

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(2) The Foundation shall be a body corporate by the name of the Pakistan Science Foundation, having perpetual succession and a common seal, with power, subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and shall by the said name sue and be sued.

(3) The head office of the Foundation shall be at Islamabad.

4. Functions of the Foundation.—(1) The Foundation shall function as a financing agency for—

[1] For Statement of Objects and Reasons, *see* Gaz. of P., 1973, Ext., Pt. III, p. 27.

(i) the establishment of comprehensive scientific and technological information and dissemination centres;

(ii) the promotion of basic and fundamental research in the universities and other institutions on scientific problems relevant to the socio- economic development of the country;

(iii) the utilisation of the results of scientific and technological research including pilot plant studies to prove the technical and economic feasibility of processes found to be promising on a laboratory scale;

(iv) the establishment of science centres, clubs, museums, herbaria and planetaria;

(v) the promotion of scientific societies, associations and academies engaged in spreading the cause of scientific knowledge in general or in the pursuit of a specific scientific discipline or technology in particular;

(vi) the organisation of periodical science conferences, symposia and seminars;

(vii) the exchange of visits of scientists and technologists with other countries;

(viii) the grant of awards, prizes and fellowships to individuals engaged in developing processes, products and inventions of consequence to the economy of the country; and

(ix) special scientific surveys not undertaken by any other organization and collection of scientific statistics related to the scientific effort of the country.

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(2) The Foundations shall also—

(i) review the progress of scientific research sponsored by it and evaluate the results of such research;

(ii) maintain a National Register of highly qualified and talented scientists of Pakistan, including engineers and doctors, in or outside the country and to assist them, in collaboration with the concerned agencies in finding appropriate employment; and

(iii) establish liaison with similar bodies in other countries.

(3) In the performance of its functions, the Foundation shall be guided on questions of policy by the instructions, if any, given to it by the Federal Government which shall be the sole judge as to whether a question is a question of policy.

5. Board of Trustees. The general direction, conduct and management of the affairs of the Foundation, including administration of its funds, shall vest in a Board of Trustees consisting of the following members namely:—

Whole-time members

(i) the Chairman;

(ii) one eminent scientist;

(iii) the Director of Finance;

to be appointed by the President;

Part-time members

(iv) the Chairman of the National Science Council;

(v) four scientists to be nominated by the National Science Council; and

(vi) eleven eminent scientists to be nominated by the President.

(2) The remuneration and other terms and conditions of service of the Chairman and the two other whole-time members of" the Board' shall be such as may be determined by the President.

[1][**6. Chairman of the Foundation.**—(1) The Chairman of the Board shall be the Chairman of the Foundation and shall be appointed from amongst eminent scientist of the country having experience of research and scientific administration:—

(2) The Chairman shall, subject to sub-section (3), hold office for a term not exceeding three years and shall be eligible for re-appointment

(3) The President may at any time terminate the appointment of the Chairman without notice and without assigning any reason.].

[2][**7. Members of the Board.**—(1) The members of the Board, other than the ex-officio member shall, subject to sub-section (3), hold office for a term not exceeding three years and shall be eligible for re-appointment or re-nomination, as the case may be.

(2) A member, other than an ex-officio member, may at any time resign his office by writing under his hand addressed to the President but shall continue to perform his functions until his resignation has been accepted.

(3) The President may at any time terminate the appointment or, as the case may be, nomination of any member of the Board without notice and without assigning any reason].

[1] Subs, by the Pakistan Science Foundation (Amdt.) Ordinance, 1979 (13 of 1979), s. 2.
[2] Subs. by the Pakistan Science Foundation (Amdt.) Ordinance, 1979 (13 of 1979), s. 3.

8. Meetings of the Board.—(1) The meetings of the Board shall be held at least twice a year and shall be presided over by the Chairman or, in his absence, by its whole-time scientist member.

(2) All decisions at a meeting of the Board shall be taken by a majority of the votes of the members present and voting.

9. Quorum at the meeting of the Board. To constitute a quorum at a meeting of the Board not less than nine members shall be present.

10. Executive Committee. There shall be an Executive Committee consisting of the Chairman and the two other whole-time members of the Board.

11. Delegation of powers. The Board may, from time to time, delegate to the Chairman or the Executive Committee such of its powers and functions as it may consider necessary.

12. *Ad hoc* Committees. The Foundation may set up ad hoc committees consisting of university professors and other leading scientists and experts to scrutinize applications for financial assistance for carrying out scientific research submitted to the Foundation by the universities or other institutions or by individual scientific workers or groups of scientific workers and to review and evaluate the results of research sponsored by the Foundation.

13. Funds. The funds of the Foundation shall consist of—

(a) grants made by the Federal Government and the Provincial Governments;

(b) donations and endowments; and

(c) income from other sources.

14. Budget. The Foundation shall cause to be prepared and approve a statement of its receipts and expenditure for each financial year.

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15. Accounts and Audit.—(1) The funds of the Foundation shall be kept in a personal ledger account of the Foundation with the State Bank of Pakistan or with any Branch of the National Bank of Pakistan acting as an agent of the State Bank.

(2) The accounts of the Foundation shall be maintained in such form and manner as the Auditor-General of Pakistan may determine in consultation with the Federal Government.

(3) The accounts of the Foundation shall be audited by one or more auditors who are chartered accountants within the meaning of the Chartered Accountants Ordinance, 1961 (X of 1961) and are appointed by the Foundation in consultation with the Auditor-General of Pakistan.

16. Appointments of officers and servants.—(1) The Foundation may appoint such officers and servants, and engage such consultants or experts, as it may consider necessary for the efficient performance of its Functions, on such terms and conditions as it may deem fit.

(2) In fixing the terms and conditions of service of its officers and servants, the Foundation

shall as nearly as may be conform to the scales of pay, allowances and conditions of service applicable to the corresponding class of employees of the Federal Government.

17. Annual Report.—(1) The annual report of the Foundation, which shall, among other things, clearly bring out the benefits accruing to the nation as a result of the activities sponsored by the Foundation, shall be prepared by the Chairman and submitted, through the Board, to the Federal Government alongwith the audited accounts of the Foundation.

(2) The annual report alongwith the audited accounts of the Foundation shall be laid before the National Assembly.

18. Regulation. The Foundation may make Regulations for the efficient conduct of it affairs.

19. [Repeal.] Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981(XXVIIof 1981), s. 3 and Sch., II.

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THE PAKISTAN STANDARDS AND QUALITY CONTROL AUTHORITY ACT, 1996

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THE PAKISTAN STANDARD AND QUALITY CONTROL AUTHORITY ACT, 1996

ACT NO. VI OF 1996

An Act to provide for the establishment of Pakistan Standards and Quality Control Authority

WHEREAS it is expedient to establish a Pakistan Standards and Quality Control Authority to provide for the standardization and quality control services ;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Pakistan Standards and Quality Control Authority Act, 1996.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Authority" means the Pakistan Standards and Quality Control Authority established under section 3 ;

(b) "Advisory Council" means the Advisory Council appointed under section 6 ;

(c) "article" means (as respect standardization and marking) any substance, artificial or natural, or partly artificial or partly natural, whether raw or partly or wholly processed or manufactured, but does not include any article to which the Agricultural Produce (Grading and Marking) Act, 1937 (I of 1937), for the time being applies:

(d) "Board" means the Board of Directors constituted under section 5 ;

(e) "certificate" means certificate granted under this Act to use either Authority standard quality mark or the Authority conformity mark or Authority safety mark in relation to any article ;

(f) "Director-General" means the Director General of the Authority ;

(g) "Inspector" means an Inspector appointed by the Authority under section 15 ;

(h) "license" means a license granted under this Act to use Pakistan standard and quality mark in relation to any article, product or process which conforms to the relevant Pakistan standard ;

(i) "metrology" means the field of knowledge concerned with measurements and includes units of measurement and their field of application and all theoretical and practical problems relating to measurements ;

(j) "Pakistan standard" means the standard (including any tentative or provisional standard) established and published by the Directorate of Standards of the Authority ;

(k) "Pakistan Standards Institution" means the institution set-up under the Resolution of the Government of Pakistan in the Late Ministry of Commerce and (Industries Division) No. l-l-22(I)/58, dated the 3rd day of October, 1958, and registered under the Societies Registration Act, 1860 (XXI of 1860) ;

(l) "prescribed" means prescribed by rules made under this Act;

(m) "process" includes any practice, treatment and mode of manufacture of any article ;

(n) "product" means raw material, semi-finished or finished products ;

(o) "quality" means conformity to a given requirement or specification of a product or service;

(p) "quality assurance" means a system of activities whose purpose is to provide an assurance that the overall quality control is in fact being done effectively ;

(q) "quality control" means control over the quality of all the industrial and processed goods, their manufacturing processes and testing methods by the Authority ;

(r) "rules" means rules made under this Act;

(s) "standard" means a technical specification or other document available to the public, drawn up with the cooperation and consensus or general approval of all interests affected by it, based on the consolidated results of science, technology and experience aimed at the promotion of optimum community benefits and approved by the Authority ;

(t) "testing" means the action or process of examining a substance under known condition in order to determine its identity and quality or one of the constituents and includes the action by which the physical properties, materials and machines are tested in order to determine their particular requirements or performances ; and

(u) "training" means training of technical staff in the field of standardization, testing, quality control, legal, metrology, inspection and industrial research of the concerned departments and industries in Pakistan as well as of trainees from other friendly countries.

CHAPTER II

CONSTITUTION

3. Constitution of the Authority.—(1) There shall be established an Authority to be known as the Pakistan Standards and Quality Control Authority to carry out the purposes of this Act.

(2) The Authority shall be a body corporate having perpetual succession and a common seal, with power subject to the provisions of this Act, to acquire and hold property, both movable, and immovable, shall by said name sue and be sued.

(3) The headquarters of the Authority shall be at Karachi and it may, with the prior approval of the Federal Government set-up regional offices at such places as, when and where required.

4. Management.—(1) The general direction and administration of the Authority and its affairs shall vest in the Board which may exercise all powers and do all acts and things which may be exercised, or done by, the Authority.

(2) The Board shall in discharging its functions act on sound principles of standardization, quality control, testing and metrology and shall be guided on questions of policy by such directions as the Federal Government may give from time to time.

(3) If any question arises as to whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

5. Constitution of the Board.—(1) The Board shall consist of the following members, namely:—

(i) Minister for [1][Science and Technology], Government of Pakistan	Chairman.
(ii) Director General of the Authority	Vice- Chairman.
(iii) Deputy Director General (Finance) of the Authority	Member.
(iv) Deputy Director General (Standards Development) of the Authority	Member.
(v) Deputy Director General (Quality Control) of the Authority	Member.
(vi) Deputy Director General (Technical Services) of the Authority	Member.
(vii) A representative of the Ministry of Commerce, Government of Pakistan	Member.
(viii) A representative of the Federation of Pakistan Chambers of Commerce and Industry	Member.
(ix) Secretary of the Authority	Member/ Secretary.

(2) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy, or any defect, in the constitution of the Board.

(3) The members of the Board, except the Chairman, shall received such salary and allowances and shall be subject to such conditions of service as may be determined by the Federal Government.

(4) No person shall continue to be a member who

(a) is or, at any time, has been convicted of an offence involving moral turpitude ; or

(b) is or, at any time, has been adjudicated insolvent; or

(c) is found to be a lunatic or of unsound mind ; and

(d) has a financial interest in any scheme or a conflicting interest directly or indirectly and has failed to disclose such interest in writing to the Federal Government.

[1] Subs. by the Pakistan Standards and Quality Control Authority (Amdt.) Act, 1997 (29 of 1997),s.2, for "Industries".

6. Advisory Council.—(1) There shall be an Advisory Council to be appointed by the Federal Government for carrying out the activities of various directorates of the Authority.

(2) The Advisory Council shall consist of the following members, namely:—

(i) Secretary, Ministry of [1][Science and Technology], Government of Pakistan.	Chairman.
(ii) Three Members of the National Assembly and one Senator.	Vice- Chairman.
(iii) A representative of Ministry of Finance.	Member.
(iv) A representative of Ministry of [2][Industries and Production].	Member.
(v) A representative of Ministry of Commerce.	Member.
(vi) A representative of Ministry of Defence.	Member.
(vii) A representative of Ministry of Eduction.	Member.
(viii) A representative of Ministry of Communications.	Member.
(ix) A representative of Ministry of Food and Agriculture.	Member.
(x) A representative of Ministry of Health.	Member.
(xi) A representative of Ministry of Petroleum and Natural Resources.	Member.
(xii) A representative of Ministry of Water and Power.	Member.
(xiii) A representative of Ministry of Housing and Works.	Member.
(xiv) A representative of each Provincial Government	Member.
(xv) A representative of University Grants Commission	Member.
(xvi) A representative of Pakistan Council of Engineers.	Member.
(xvii) A representative of Scientific and Research Institutions.	Member.
(xviii) A representative of Consumers Organizations	Member.
(xix) A representative of Federation of Pakistan Chambers of Commerce and Industry and one representative each of the Chambers of Commerce and Industry at Karachi, Lahore, Quetta and Peshawar.	Member
(xx) Director General, Pakistan Standards and Quality Control Authority	Member/Secretary

7. Director-General.—(1) There shall be a Director General of the Authority who shall be the chief executive of the Authority and shall be appointed by the Federal Government.

(2) The Director General and other members shall discharge such duties and perform such functions as are assigned to them by or under this Act.

(3) Until the Board is duly constituted, the Director General shall, subject to such directions as the Federal Government may give from time to time, exercise the powers, and perform the function of the Board.

(4) The officers of the Authority shall have such powers and shall perform such functions as may be assigned to them by the Director General.

[1]Subs. by the Pakistan Standards and Quality Control Authority (Amdt.) Act, 1997 (29 of 1997), s. 3, for "Industries".
[2]Subs. ibid., for "Science and Technology".

CHAPTER III

POWERS

8. Powers and functions of the Authority.—The powers ad functions of the Authority shall be—

(i) designing, measuring and testing instruments and test procedures;

(ii) inspection and testing of products and services for their quality, specification and characteristics, during use and for import and export purposes ;

(iii) to review the matters which may be necessary for quality improvement of products or processes ;

(iv) Preparation, implementation, co-ordination or arranging of the training programmers on standardization, quality control testing and weights and measures, for technical staff of the Authority, other organizational and trainees from foreign countries ;

(v) setting up, assisting in, establishing and authorizing various inspection and testing centres and agencies at important industrial sites and towns ;

(vi) providing for the quality labelling standards which shall specify ingredients, performance, specification, usage, methods and other relevant quality control matters ;

(vii) grading the products when requested by manufacturers, or whenever necessary for the purpose of quality improvement ;

(viii) setting up the mode of inspection and the manner in which samples may be obtained ;

(ix) examination of manufacturing plants for the designated products or processes for approval of marks of the Authority ;

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(x) to stop manufacture, storage and sale of such products which do not conform to the Pakistan or any other country's standards recognized by the Authority ;

(xi) inspection and taking of samples of any material or product for examination as to whether any article or process in relation to which any of Authority mark has been used conforms to the Pakistan standard or a standard of any other country recognized by the Authority or whether any of the Authority mark has been improperly used in relation to any article or process with or without license or certificate ;

(xii) specification of the manner and condition subject to which a license or certificate to use any of the Authority marks may be granted or renewed, suspended, cancelled or withdrawn ;

(xiii) granting, renewal, suspension, cancellation or with-drawl of a license or certificate for the use of any of the Authority marks ;

(xiv) levying of fees, for marking, grant or renewal of any license or certificate in relation to use of any of the Authority marks ;

(xv) levying of fees for checking, inspection and testing of products for import, export of local consumption ;

(xvi) framing and publishing, amending , revising or with-drawl of the Pakistan standards in relation to any article, product, process ;

(xvii) determination of Pakistan standards for the measurement of length, weight, volume energy and materials ;

(xvii) collection, circulation of statistics and other information relating to standardization, quality control, metrology, applied research ;

(xix) establishment, maintenance of libraries, museum, laboratories and accreditment of other laboratories for the purpose of furthering the practices of standardization, metrology and quality control;

(xx) communication with public and Government agencies on national and international levels, on matters connected with standardization and other activities of the Authority through circulars, books, public media or through seminars, symposia workshops and printing and publishing such circulars and books ;

(xxi) securing recognition of the Pakistan Standards and confidence in Pakistani products abroad ;

(xxii) registration of inspection agencies ;

(xxiii) coordination and cooperation with other national, regional and international organizations, associations, societies, institutions or councils, whether incorporate or not, whose objects are wholly or in part similar to those of the Authority ; and

(xxiv) constitution of committees for carrying out the schemes and programmers of the Authority.

9. Authentication of orders and other instruments of the Authority.—All orders, decisions and all other instruments issued by the Authority shall be authenticated only by the signatures of such officer or officers who are authorized by the Authority in this behalf.

10. Prohibition of improper use of Authority marks.—No person shall use, in relation to any article, product or process or in the title of any patent or in any trade marks or design the Authority marks except under a license or certificate issued under this Act.

11. Prohibition of use of certain names, etc.—No person shall without the previous permission of the Authority and subject to such conditions as may be prescribed, use—

(a) any name which may resemble the name of the Authority or contain the expressions “Pakistan standard” or “Pakistan standard specification” or any abbreviation of such expression ; or

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(b) any mark or trade mark in relation to any article or process containing the expressions "Pakistan standards" or "Pakistan standard specification" or any abbreviation of such expressions.

12. Prohibition of registration in certain cases.— (1) Notwithstanding anything contained in any law for the time bing is force, no registering body shall register any company, firm or any body or persons or a trade mark or design or grant a patent, in respect of an invention which hears a title containing any name or mark in contravention of provision of sections 10 or 11.

(2) Where any question arises before a registering authority whether the use of any name or mark is in contravention of section 10 or section 11, the registering authority may refer the question to the Federal Government whose decision thereon shall be final.

13. Power to prohibit or restrict export of certain articles.—(1) The Federal Government may, by notification in the official Gazette and subject to such conditions and exceptions imposed by the Authority issuing a license or certificate, prohibit, restrict or otherwise control the taking out of Pakistan of articles of any specified description which do not bear the Authority mark or regulate practices, including trade practice and procedure connected with the export of such articles.

(2) Any article specified in the notification issued under sub-section (1) shall be deemed to be the goods of which taking out of Pakistan has been prohibited or restricted under section 16 of the Customs Act, 1969 (IV of 1969), and all the provisions of that Act shall have effect accordingly.

14. Power to prohibit, manufacture, keeping in stock and sale of certain articles.—(1) The Federal Government may, in consultation with the Authority and by notification in the official Gazette, prohibit, with effect from such date as may be specified in the notification, the manufacture, storage and sale of any article specified therein which does not conform to the Pakistan standard.

(2) The Federal Government may, by notification in the official Gazette, require any article which conforms to a particular Pakistan standard to be marked with such distinctive mark as may be specified in the notification.

15. Inspectors.—(1) The Authority may appoint Inspectors for the purpose of enforcing quality control and inspection of article or process in relation to which any of the Authority mark has been used and for the purpose of performing such functions as may be assigned to them.

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(2) Subject to any rules made under this Act, an Inspector shall have power to—

(a) Inspect any operation carried on in connection with any article or process in relation to which any of the Authority mark has been used ;

(b) take samples of any article, or of any material or substance used in any article or process, in relation to which any Authority mark has been used ;

(c) seize and detain for such time as may be necessary any article to which he believes any provision of this Act has been contravened ; and

(d) stop, search or seize any aircraft, ship or any transport vehicle in which he believes on reasonable grounds that any article subject to the provisions of this Act, is being transported thereon does not conform to Pakistan standard.

(3) Every Inspector shall be issued by the Authority a certificate of appointment which shall be produced by the Inspector on demand.

(4) Any person who obstructs or impedes in performance of duties of an Inspector or any other authorized officer shall be guilty of an offence punishable under section 22.

(5) Any article seized under this Act may, at the option of the Inspector, be kept or stored in the premises where it was seized or may at the direction of the Inspector be removed to any other place.

(6) The Inspector shall release any article seized by him under this Act when he is satisfied that all the requirements of the Act with respect thereto have been complied with.

(7) Any person who, without the authority of an Inspector, removes, alters, or interferes in any way with any article seized under this Act, shall be guilty of an offence punishable under section 22.

(8) Any person who knowingly makes any false or misleading statements either verbally or in writing to any Inspector engaged in carrying out his duties under this Act shall be guilty of an offence punishable under section 22.

16. Power to obtain information, etc.—Every licensee shall supply the Authority with such information and with such samples of any material or substance used in relation to any article or process as the Authority may require.

17. Powers of Authority to other bodies, etc.—The Federal Government may, in consultation with the Authority and by notification in the official Gazette, direct that any power exercisable by the Authority under this Act shall, in relation to such matters and subject to such conditions as may be specified in the direction, be exercisable also by such body or such organization as may be specified in the notification.

18. Appeals.—(1) Any person aggrieved by an order passed by the Authority or by a person or body acting as Authority under clause (xiii) of section 8, may prefer an appeal to the Court of Session.

(2) The appeal shall be presented in such form and manner and within such time and on payment of such fee as may be prescribed.

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(3) The Court of Session shall dispose of the appeal after giving the appellant an opportunity of being heard and shall, in dealing with appeals under this section, follow such procedure as specified in the Code of Criminal Procedure, 1898 (V of 1898).

19. Certain matters to be kept confidential.—Any information coming into notice of the Authority or any of its officer in relation to any article or process subject to this Act shall be treated as confidential and shall not be communicated or revealed to any person :

Provided that nothing in this section shall apply to the disclosure of any information for the purpose of prosecution under this Act.

20. Penalty for improper use of Authority marks, etc.—(1) Any person who contravenes the provisions of sections 10, 11 or 12, shall be punishable with imprisonment of either description for a term which may extend to one year, or with fine which shall not be less than thirty thousand rupees, or with both.

(2) A court convicting a person under this section may direct that any property in respect of which the contravention was made shall be forfeited to the Federal Government.

21. Penalty for contravention of section 13.—If any person contravenes the provisions of any notification issued under section 13 or of any license or certificate issued thereunder, he shall without prejudice to confiscation of property or penalty to which he may be liable under the provision of the Customs Act, 1969 (IV of 1969) as applied by sub-section (2) of the said section 13, be punishable with imprisonment of either description for a term which may extend to one year, or with fine which shall not be less than fifty thousand rupees, or with both.

22. Penalty for other contraventions.—Whoever contravenes any of the provisions of this Act or any rule made or notification issued thereunder, including a notification issued under Section 14, prohibiting, manufacture, storage or sale of an article not conforming to the Pakistan Standard shall, if no other penalty is elsewhere provided under this Act, be punishable with imprisonment of either description for a term which may extend to one year, or with fine which shall not be less than fifty thousand rupees, or with both.

23. Cognizance of offences by courts.—No court inferior to that of a Magistrate of the First Class shall try any offence punishable under this Act.

24. Protection of action taken under this Act.—No suit, prosecution or other legal proceeding shall lie against the Federal Government or the Authority or any person acting under the authority of the Federal Government or the Authority for anything which is in good faith done or intended to be done in pursuance of this Act or any rule or regulation made thereunder.

25. Power to exempt.—The Federal Government may, by notification in the official Gazette, exempt any article or class of articles from the operation of all or any of the provisions of this Act.

26. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

27. Power to make regulations.—The Authority may, with the previous approval of the Federal Government, by notification in the official Gazette, make regulations not inconsistent with this Act or the rules to carry out the purposes of this Act, including procedure for holding meetings of the Authority.

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CHAPTER IV

ESTABLISHMENT

28. Appointment of officers, servants, etc., by the Authority.—(1) The Authority may, from time to time, create posts and appoint such officers, servants, experts or consultants as it may consider necessary for the performance of its functions on such terms and conditions as may be prescribed :

Provided that appointment to the posts in Basic Pay Scale 20 or above shall not be made except with the previous approval in writing of the Federal Government.

(2) The Authority shall lay down the procedure for the appointment of its officers, servants, experts and consultants, and the terms and conditions of their service, including the constitution and management of pension and gratuity for them, and shall be competent to take disciplinary action against them.

29. Appointment of officers, servants etc., by the Director-General in cases of urgency.—Subject to section 28, the Director-General may, in cases of urgency, appoint such officers, servants, experts or consultants and on such terms and conditions as may be recommended by a selection committee, constituted under the rules :

Provided that every appointment made under this section shall be reported to the Board and Authority without unreasonable delay and in no case beyond six months.

30. Members and officers etc. to be public servants.—The Director-General, members, officers, servants, experts and consultants of the Authority shall, when acting or purporting to act in pursuance of any of the provisions of this Act, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code. (XLV of I860).

31. Delegation of powers to the Director-General etc.—The Authority may, by general or special order and subject to such conditions as it may think fit to impose, delegate to the Director-General or a member, or an officer of the Authority, all or any of its powers or functions under this Act.

CHAPTER V

FINANCE

32. Funds.—(1) There shall be created a fund to be known as the Pakistan Standards and Quality Control Authority Fund which shall vest in the Authority and shall be utilized by the Authority to meet charges in connection with its functions under this Act including the payment of salaries and other remuneration to the Director-General, members, officers, servants, experts and consultants of the Authority.

(2) The Pakistan Standards and Quality Control Authority Fund shall be financed from the following sources:—

(a) grants or loan made by the Federal Government;

(b) loans, aid and donations from the national or international agencies ; and

(c) revenue earned from the levy of various types of fees, such as marking fee, testing fee, registration fee and from the sale of standards.

(3) All sums payable to the Authority may be recovered as an arrear of land revenue.

33. Budget.—The Authority shall, in respect of each financial year, submit for approval of the Federal Government, on such date as may be prescribed, a statement of the estimated receipts and expenditure, including requirements of foreign exchange for the next financial year.

34. Audit and Accounts.—(1) The accounts of the Authority shall be audited every year by the Auditor General of Pakistan Revenue in such manner as may be prescribed.

(2) Copies of the audit reports shall be sent to the Federal Government alongwith the comments of the Authority.

(3) The audit report shall be available for public inspection.

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(4) The Federal Government may issue directions to the Authority for rectification of any item objected to by the Auditor General of Pakistan Revenue and the Authority shall comply with such directions.

35. Save, as provided in the rules or regulations, the Deputy Director-General (Finance) of the Authority shall be consulted on every new proposal of expenditure.

CHAPTER VI

MISCELLANEOUS

36. Submission of yearly reports and returns.—(1) As soon as possible after the end of every financial year but before the last day of the month of December of that year, the Authority shall submit to the Federal Government a report on the conduct of its affairs for that year.

(2) The Federal Government may, after giving sufficient notice to the Authority, require it to furnish the Government with—

(a) any return, statement, estimate, statistics, or other information regarding any matter under the control of the Authority ;

(b) a report on any subject with which the Authority is concerned ; and

(c) a copy of any document in the charge of the Authority.

37. Dissolution of the department of Central testing laboratories and the Pakistan Standards Institution.—Upon the commencement of this Act, the department of Central Testing Laboratories and the Pakistan Standards Institution, hereinafter referred to as the said organisations, shall stand dissolved, and—

(i) all assests, rights, powers, authorities and privileges and all properties, movable and immovable, cash and bank balance, reserve funds, investment and all other interests and rights in, or arising out of such properties and all debts, liabilities and obligations of whatever kind of the said organizations subsisting immediately before their dissolution shall stand transferred to and vest in the Authority.

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(ii) all officers and other employees of the said organizations shall, notwithstanding anything constrained in any law or in any agreement, deed, document or other instrument, stand absorbed and transferred to the Authority after obtaining prior option from the employees of the said organizations and shall be deemed to have been appointed or engaged by the Authority in accordance with the terms and conditions which shall not be less favourable than in their previous organizations; and no officer or other employee whose services are so absorbed and transferred shall be entitled to any compensation because of such absorption or transfer ;

(iii) all debts and obligations incurred or contracts entered into or rights acquired and all matters and things engaged to be done by, with or for the said organizations before their dissolution shall be deemed to have been incurred, entered into, acquired or engaged to be done by, or for, the Authority ; and

(iv) all suits and other legal proceedings instituted by or against the said organizations before their dissolution shall be deemed to be suits and proceedings by or against the Authority and may be proceeded or otherwise dealt with accordingly.

38. Removal of difficulties.—The Federal Government may, for the purpose of removing any difficulty in relation to the absorption and transfer and other matters specified in section 37, make such order as it considers expedient and any such order shall be deemed to be, and given effect to, as a part of the provisions of this Act.

39. Repeal.—The Pakistan Standards Institution (Certification Marks) Ordinance, 1961(XLVIII of 1961), is hereby repealed.

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THE PAKISTAN TOBACCO BOARD ORDINANCE, 1968

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THE PAKISTAN TOBACCO BOARD ORDINANCE, 1968

[1]ORDINANCE NO. I OF 1968

[8th February, 1968]

An Ordinance to provide for the establishment of Tobacco Board for the promotion of the cultivation, manufacture and export of tobacco and tobacco products.

WHEREAS it is expedient to provide for the establishment of a Tobacco Board for the promotion of the cultivation, manufacture and export of tobacco and tobacco products and for matters ancillary thereto;

AND WHEREAS the national interest of Pakistan in relation to economic and financial stability of Pakistan within the meaning of clause (2) of Article 131 of the Constitution requires Central legislation in the matter;

AND WHEREAS the National Assembly is not in session and the President is satisfied that circumstances exist which render immediate legislation necessary;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 29 of the Constitution and of all other powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance : —

1. Short title, extent and commencement.—(1) This Ordinance may be called the Pakistan Tobacco Board Ordinance, 1968.

(1) It extends to the whole of Pakistan.

(2) It shall come into force at once.

2. Definitions. In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Board" means the Pakistan Tobacco Board constituted under section 3 ;

(b) "Committee" means the Tobacco Development Committee constituted under section 12 ;

(c) "export" means to take out of Pakistan by any means to any place outside Pakistan;

(d) "owner" includes any agent of an owner;

(e) "prescribed" means prescribed by rules made under this Ordinance;

[1] Approved by the National Assembly ofPakistan on the 14th May, 1968 and received the assent ofthe President on the 17th May, 1968, see Gaz. ofP., 1968, Ext. (Rawalpindi), dated the 20th May, 1968, p. 323.

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(f) "tobacco" means the commodity which is made from the leaves of the plant " *nicotiana tobaccum* [1][or *nicotiana rustica*] " and is commonly known as tobacco and includes adjacent tender stalks or green tobacco but does not include tobacco waste;

(g) "tobacco seed" includes seeds, roots, stumps, cuttings, buds and any living portion of the plant *nicotiana tobaccum* which may be used to propagate that plant or to manufacture cigarettes, cigars, cheroots, pipe tobacco, or chewing tobacco.

3. Constitution of the Pakistan Tobacco Board.—(1) As soon as may be after the commencement of this Ordinance, the [2][Federal Government] shall constitute a Board to be called the Pakistan Tobacco Board consisting of the following members, namely:—

[3][(a) one member from the North-West Frontier Province or the Punjab to be elected by the Cigarette Manufacturers Association of Pakistan;

(b) [4][six] members, [5][three] each from the North-West Frontier Province and the Punjab, to be nominated by the Provincial Government concerned from amongst the tobacco growers;

(c) one members to be nominated by the Federal Government on the recommendation of the Federation of Pakistan Chambers of Commerce and Industry;]

(d) [6][four] members, one to be nominated by each Provincial Government;

(e) one member, being an officer serving under the [2][Federal Government] in the Ministry of Industries, to be nominated by the [2][Federal Government];

(f) two members to be nominated by the [2][Federal Government] [7][;]

[8][(g) one member, being an officer serving under the [2][Federal Government] in the Ministry of Agriculture and Works (Food and Agriculture Division), to be nominated by the [2][Federal Government] [;] [9]

[10][(h) such other members as the Federal Government may nominate.]

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[1]Ins. by the Pakistan Tobacco Board (Amdt.) Act, 1973 (4 of1973) , s . 2.

[2] Subs. by the Pakistan Tobacco Board (Amdt.) Act, 1975 (19 of1975) , s . 2, for "Central Government" .

[3] Subs. ibid., s. 3, for cls . (a) , (b) and (c) which were previously amended by various enactments.

[4] Subs. by the Pakistan Tobacco Board (Amdt.) Ordinance, 1979 (11 of1979) , s . 2, for "four" .

[5] Subs. ibid., for "two".

[6] Subs. by the Pakistan Tobacco Board (Amdt.) Act, 1975 (19 of1975) , s . 3, for "five" , which was previously amended.

[7] Subs. by the Tobacco Board (Amdt.) Ordinance, 1971 (5 of1971) , s . 2, for full-s top.

[8]Added ibid

[9]Subs. by the Pakistan Tobacco Board (Amdt.) Ordinance, 1982 (21 of1982) , s. 2, for full stop.

[10] Added ibid.

(2) The [1][Federal Government] shall publish in the official Gazette the [2][designations of the officers of the Federal Government or a Provincial Government nominated to be members of the Board and the names of the other persons elected or nominated to be such members] and the Board shall be deemed to be constituted upon such publication.

(3) The [1][Federal Government] shall appoint one of the members nominated by it under clause (f) of sub-section (1) to be the Chairman of the Board.

(4) The Board constituted under sub-section (1) shall be a body corporate by the name of the Pakistan Tobacco Board, having perpetual succession and a common seal, with power to acquire, own and dispose of any property and shall, by the said name, sue and be sued.

4. Terms of members, etc.—(1) A member of the Board shall, subject to the provisions of this section, hold office for two years and shall be eligible for re-election or re-nomination.

(2) When a member ceases to reside in Pakistan or becomes otherwise incapable of acting as such, the [1][Federal Government] shall declare the seat of the member to be vacant.

[3][(2A) If a member elected or nominated under clause (a) , clause (b) or clause (c) of sub-section (1) of section 3 absents himself from three consecutive meetings of the Board without the leave of the Chairman thereof, his seat shall become vacant.]

(3) When the seat of a member becomes vacant under sub-section (2) [3][or sub-section (2A)] , or by reason of resignation or death, the vacancy shall be filled for the remainder of the terms of such member by election or nomination of another person in his place in the same manner as such member was elected or nominated.

(4) Where any authority or body entitled to do so fails to elect or nominate a member within the prescribed time, the [1][Federal Government] may nominate a person to fill the seat of such member, and the person so nominated shall be deemed to have been elected or nominated by such authority or body.

5. Vacancy, etc., not to invalidate the proceedings of the board. No act or proceedings of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of, the Board.

6. Functions of the Board. The functions of the Board shall be—

(a) to regulate, control and promote the export of tobacco and tobacco products and to fix grading standards,

(b) to undertake and assist research connected with tobacco industry, impart training in tobacco testing and generally to take measures in the interest of the tobacco industry,

[1]Subs. by the Pakistan Tobacco Board (Amdt.) Act, 1975 (19 of1975) , s . 2, for "Central Government" .
[2]Subs. by Act 19 of1975, s . 3, for "names of all the members of the Board" .
[3]Ins.ibid., s.4.

(c) to render assistance for the development of the existing and new tobacco growing areas and establishment of model farms, to organise and assist special research connected with tobacco cultivation and generally to render assistance for improving tobacco production.

(d) to collect statistics on any matter relating to tobacco and tobacco industry, and

(e) to perform such other function as the [1][Federal Government] may, from time to time, direct.

7. Control of the Board.—(1) The Board shall be subject to the superintendence and control of the [2][Federal Government] and shall be guided, in the discharge of its functions, by such general or special instructions as may, from time to time, be given to it by the [1][Federal Government].

(2) The records of the Board shall be open to inspection by any officer authorised in this behalf by the [1][Federal Government].

(3) The [1][Federal Government] may cancel, suspend or modify, as it thinks fit, any act of the Board.

8. Fixation of prices.—(1) The [1][Federal Government] may, by notification in the official Gazette, fix the minimum prices below which, and the maximum prices above which, tobacco of various grades shall not be bought or sold for consumption within Pakistan or for export ; and different prices may be fixed in respect of different areas.

(2) No person shall buy or offer to buy or sell or offer to sell tobacco at any price below the minimum or above the maximum fixed under sub-section (1) .

9. Levy of cess.—(1) For the purposes of this Ordinance, there shall be levied and collected in such manner as may be prescribed a cess on tobacco produced in Pakistan at such rate or rates, not exceeding three per cent *ad valorem*, as the [1][Federal Government] may by notification in the official Gazette, specify in this behalf; and the proceeds of the cess, after deducting the cost of collection, if any, shall be paid to the Board.

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[2][(1A) The [1][Federal Government] may, from time to time, by notification in official Gazette, fix, for the purpose of levying a cess under sub-section (1), tariff values of tobacco produced in Pakistan and may there tariff values for the time being in force.

(1B) Different tariff values may be fixed for different classes or descriptions of tobacco.]

(2) The Board shall apply the proceeds of the cess paid to it under sub-section (1) for meeting the expenses which may be necessary for the performance of its functions under this Ordinance including expenses for contributing towards a contributory provident fund constituted and maintained in such manner as may be prescribed for the benefit of the employees of the Board.

[1]Subs. by the Pakistan Tobacco Board (Amdt.) Act, 1975 (19 of1975) , s . 2, for "Central Government" .
[2]Sub-sections (1A) and (1B) Ins . by the Pakistan Tobacco Board (A mdt.) Act, 1971 (5 of 1971) , s. 3.

10. Power to borrow. The Board may, subject to any rules made in this behalf, borrow money for any purpose for which it is authorised under section 9 to expend the proceeds of the cess.

11. Keeping of accounts and audit and annual reports.—(1) The Board shall keep regular accounts of all moneys received, borrowed and expended by it.

(2) The accounts of the Board shall be audited every year by auditors approved in this behalf by the [1]* * * Auditor-General of Pakistan.

(3) The auditors shall submit to the Board and to the [2][Federal Government] a statement of the accounts audited by them together with a report stating therein any irregularity noticed in the accounts or any objection to any expenditure.

(4) The Board shall, as soon as may be after the close of a financial year, publish an annual report of its activities during that year together with a statement of its accounts.

12. Constitutions of the Tobacco Development Committee.—(1) The [1][Federal Government] may set up a Committee of the Board, to be called the Tobacco Development Committee, consisting of—

(a) the Chairman of the Board;

(b) One member to be appointed by the [2][Federal Government] from amongst the members elected to the Board under clause (a) of subsection (1) of section 3;

[3][(c) one members to be appointed by the Federal Government from amongst the persons nominated to the Board under clause (b) of sub-section (1) of section 3;

(d) one member to be appointed by the Federal Government from amongst the persons nominated to the Board under clause (d) of sub-section (1) of section 3.]

(2) A member of the Committee shall cease to be so when he ceases to be a member of the Board.

(3) The Board may, with the previous approval of the [2][Federal Government], grant such allowances to a member of the Committee, not being a Government Servant, as it may think fit.

13. Functions of the Committee. The Committee shall execute the policies of the Board in the matter of rendering assistance in the development the existing and of new tobacco growing areas and establishment of model tobacco farms in accordance with such schemes as may be approved by the [2][Federal Government], render assistance to cultivators to improve their production, and perform such other functions as the Board may, with approval of the [2][Federal Government], direct.

[1]The words "Comptroller and" Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of1981) , s. 3 and Sch., II.
[2]Subs. by the Pakistan Tobacco Board (A mdt.) Act, 1975 (19 of1975) , s . 2., for "Central Government".
[3]Subs. by the Pakistan Tobacco Board (A mdt.) Ordinance, 1975 (19 of1975) , s. 5, for cls. (c) and (d).

14. Grants and loans by Government to the Board.—(1) The [1][Federal Government] may make grants or give loans to the Board to be placed at the disposal of the Committee for carrying out the functions of the Committee.

(2) The [1][Federal Government] may, subject to such conditions as it may impose, authorise the Committee to give, out of the funds placed at its disposal, loans to any person for the improvement and expansion of tobacco farms.

15. Keeping of accounts.—(1) The Committee shall keep accounts of all moneys received and expended by it.

(2) The accounts maintained by the Committee shall be audited by the auditors appointed for the purpose by the Board with the previous approval of the [1][Federal Government].

(3) A statement of the accounts audited shall be furnished by the Committee to the Board and to the [1][Federal Government] as soon as may be after the end of each financial year.

16. Appointment of officers, etc. The Board may, subject to the approval of the [1][Federal Government], appoint such officers, advisers and other employees as may be necessary for the efficient performance of the functions of the Board and of the Committee.

17. Export allotment and its distribution.—(1) The [1][Federal Government] may, after consultation with the Board, by notification in the official Gazette, fix for each year the export allotment of tobacco and tobacco products and shall distribute the export allotment so fixed in such manner as it may deem fit.

(2) Every person shall export the full amount of his share of the export allotment during the year to which the allotment relates.

18. Control of export of tobacco and tobacco seeds.—(1) No tobacco or tobacco product shall be exported except under a licence issued by or on behalf of the Board in such manner and subject to such conditions as may be prescribed.

(2) No tobacco seed shall be exported except under a permit issued by or on behalf of the [1][Federal Government].

19. Registration of contracts. The [1][Federal Government] may, by general or special order, require any contract or class of contracts for sale of tobacco for export to be registered with such organisation and in such manner as may be specified in the order.

20. Power to prohibit transportation, storage or sale. The [1][Federal Government] may, by general or special order, prohibit any exporter or class of exporters from transporting, storing, buying, selling or otherwise disposing of any tobacco except in such manner and under such conditions as may be specified in the order.

1 Subs. by the Pakistan Tobacco Board (A mdt.) Act, 1975 (19 of1975) , s . 2, for "Central Government" .

[1][**20A. Power to direct purchase.** In such circumstances, and subject to such conditions, as may be prescribed, and with a view to relieving distress amongst growers of tobacco or saving the market of a vital agricultural commodity from violent fluctuations, the [2][Federal Government] may, by general or special order in writing, direct any manufacturer of, or dealer in, tobacco or any class of such manufacturer or dealers, to purchase, during such period or periods and from such area or areas, such quantity of tobacco, and to hold such minimum stock, as may be specified in the order.].

21. Power to call for information, *e*tc.—(1) The [2][Federal Government] may, at any time, by order, direct any person or class of persons to maintain such accounts and to furnish to the Board and to any officer or authority subordinate to the [2][Federal Government] such returns or other information relating to the cultivation, production, manufacture, sale or purchase of tobacco by such person or class within such time and giving such particulars as may be specified in the order; and every such order shall be published in the official Gazette.

(2) Any person authorised in this behalf by the [2][Federal Government] or by the Board or any member of the Board authorised by the Chairman of the Board may, at all reasonable times, enter any tobacco curing yard or any place or premises where tobacco or tobacco waste is manufactured, stored, kept or exposed for sale and may require the production for his inspection of any book, register, record or other paper kept therein and ask for any information relating to the cultivation, production, manufacture, storage or keeping for sale of tobacco or tobacco waste.

22. Delegation of powers. The [2][Federal Government] may, by notification in the official Gazette, direct that any power conferred upon it by or under this Ordinance shall, in relation to such matters and subject to such conditions, if any, as may be specified therein, be exercisable also by the Board.

23. Power to exempt. The [2][Federal Government] may, by notification in the official Gazette, exempt any tobacco or tobacco products or any class thereof from the operation of all or any of the provisions of this Ordinance.

24. Penalties.—(1) Any contravention of the provisions of section 18 shall be punishable as if it were an offence under item No. [3][9 of the table below sub-section (1) of section 156 of the Customs Act, 1969 (IV of 1969) and the provisions of section [4][157 and Chapters XVIII and XIX] of that Act shall apply accordingly.

(2) Save as provided in subsection (1), any person who contravenes or fails to comply with any provision of this Ordinance or any order or direction issued thereunder shall be punishable with imprisonment for a term which may extend to three years, or with fine, or with both.

(3) Where any person contravening the provisions of this Ordinance is a company or a body corporate, every director, manager secretary, or other officer, and every agent and servant thereof and, in the case of an unlimited company or a company limited by guarantee, also every member thereof shall be punishable as if he had contravened the provisions of this Ordinance:

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[1]Ins . by the Pakistan Tobacco Board (A mdt.) Ordinance, 1972 (8 of1972) , s . 2.
[2]Subs. by the Pakistan Tobacco Board (Amdt.) Act, 1975 (19 of1975) , s . 2, for "Central Government" .
[3]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of1981) , s. 3 and Sch. II, for "8 ofs ection 167 ofthe Sea Customs Act, 1878" .
[4]Subs. ibid., for "168 and Chapter XVI".

THE PORT QASIM AUTHORITY ACT, 1973

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THE PORT QASIM AUTHORITY ACT, 1973

[1]Act NO. XLIII OF 1973

[27th June, 1973]

An Act to provide for the establishment of the Port Qasim Authority

WHEREAS it is expedient to provide for the establishment of an Authority for making all arrangements for the planning, development and management of Muhammad Bin Qasim Port at Phitti Creek, hereinafter referred to as Port Qasim, and associated facilities and industries and for matters incidental thereto;

It is hereby enacted as follows:—

CHAPTER I

PRELIMINARY

1. Short title, extent and commencement.—(1) This Act may be called the Port Qasim Authority Act, 1973.

(2) It extends to the whole of the Port area.

(3) It shall come into force at once.

2. Definitions. In this Act unless there is anything repugnant in the subject or context,—

(a) "agency" means any department or organization of the Federal Government or a Provincial Government and includes a corporation or other body set up or controlled by such Government;

(b) "Authority" means the Port Qasim Authority established under section 4;

(c) "building" includes any factory, industrial or business establishment, shop, godown, warehouse, house, outhouse, hut, hutment, shed, garage, stable, well or platform and any other structure, whether meant for residential or business purposes or not, made of masonry, bricks, wood, mud, thatch, metal or any other material, but does not include a temporary structure made for purposes connected with agriculture;

(d) "Board" means the Board constituted under section 6;

(e) "Chairman" means the Chairman of the Board;

(f) "Deputy Commissioner" means the Deputy Commissioner having jurisdiction in the Port area, and includes any other officer appointed by the Authority to exercise or perform all or any of the powers of functions of Deputy Commissioner under this Act;

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[1]For Statement of Objects and Reasons, *see* Gaz. of P., 1973 Ext., Pt. III, p. 999.

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[1][(fa) "division concerned" means the Minister for the division to which the business of the Authority stands allocated;]

(g) "goods" includes wares and merchandise of every description;

(h) "high-water mark" means a line drawn through the highest points reached by ordinary spring-tides at any season of the year;

(i) "land" includes buildings and benefits arising out of land and things attached to the earth or permanently fastened to anything attached to the earth and the foreshore and the bed of the sea;

[2][(j) "local body" means a local council, a municipal corporation, a municipal committee, a body of commissioners, a Cantonment Board or any other body constituted under any law relating to local Government and includes an Improvement Trust;]

[3][(k) "market value" means the average market value prevailing during the preceding three years.]

(l) "master" when used in relation to any vessel, means any person having for the time being the charge or control of such vessel;

(m) "member" means a member of the Board;

(n) "owner" when used in relation to goods, includes any consignor, consignee, shipper, agent for shipping, clearing or removing such goods, or agent for the sale or custody of such goods; and, when used in relation to any vessel, includes any part owner, charterer, consignee or mortgagee in possession thereof;

(o) "port area" means the areas falling within the limits of Port Qasim as may be defined for the purposes of this Act;

(p) "regulations" means regulations made under this Act;

(q) "rules" means rules made under this Act;

(r) "scheme" means a planning scheme or a development scheme made under this Act.

3. Declaration of Port area.—(1) The Federal Government may, by notification in the official Gazette, define the limits of Port Qasim for the purposes of this Act; and may, from time to time, by a like notification, alter such limits.

(2) The limits defined under sub-section (1) may extend to any part of the navigable approaches to the Port area, and may include any wharves, tramways, warehouses, sheds and other works made on

[1]Ins. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 2.
[2]Subs. by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981 s. 3 and Sch., II.
[3]Subs. by Ord. 43 of 2002, s. 2.

behalf of the public for convenience of traffic, for safety of vessels, or for the improvement, maintenance and good government of the port, whether within or without high-water mark, and, subject to any rights of private property therein, any portion of the shore within fifty yards of high-water mark.

CHAPTER II

ESTABLISHMENT OF THE AUTHORITY

4. Establishment of the Authority.—(1) There shall be established an Authority to be known as the Port Qasim Authority for carrying out the purposes of this Act.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal with power, subject to the provisions of this Act, to acquire and hold property, both movable, and immovable, and shall by its name sue and be sued.

5. Management.—(1) The general direction and administration of the Authority and its affairs shall vest in the Board which may exercise all powers and do all acts and things which may be exercised or done by the Authority.

(2) The Board in discharging its functions shall act on sound principles of port planning and development and port management and shall be guided on questions of policy by such direction as the Federal Government may, from time to time, give.

(3) If any question arises as to whether any matter is a matter of policy or not, the decision of the Federal Government shall be final.

6. Constitution of the Board.—(1) The Board shall consist of not less than three and not more than seven members, including the Chairman, to be appointed by the [1][Prime Minister].

(2) The Chairman and other members shall, unless the [1][Prime Minister] otherwise [2][determines], hold office for a period of [2][three] years.

(3) Any person ceasing to be Chairman or a member of the Board by reason of the expiry of the term of his office shall be eligible for reappointment for another term of five years or for such shorter term as the [1][Prime Minister] may decide.

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(4) No act or proceeding of the Board shall be invalid merely on the ground of the existence of any vacancy in, or any defect in the constitution of, the Board.

(5) The Chairman and any member may, by writing under his hand addressed to the [1][Prime Minister], resign his office:

Provided that his resignation shall not take effect until accepted by the [1][Prime Minister].

7. Remuneration and conditions of service. The Chairman and each member shall receive such salary and allowances and shall be subject to such condition of service as may be determined by the [1][Prime Minister].

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[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), ss. 3-4.
[2]Subs. by Ord. 43 of 2002, s. 3.

8. Duties and functions of Chairman and members.—(1) The Chairman and members shall discharge such duties and perform such functions as are assigned to them by or under this Act.

(2) Until the Board is duly constituted, the Chairman shall, subject to such directions as the [1][division concerned] may from time to time give, exercise the powers, discharge the duties and perform the functions of the Board.

9. Headquarters of the Authority and meetings of the Board.—[2][(1) Authority shall have its headquarters within the port area. The Board may establish branch or liaison offices in the vicinity of headquarters or elsewhere.]

(2) The meetings of the Board shall be held at such times and places and in such manner as the regulations may provide:

Provided that, until regulations are made in this behalf, the meetings of the Board shall be held as and when convened by the Chairman.

CHAPTER III

POWERS AND DUTIES OF THE AUTHORTIY

10. Master-plan and master-programme.—The Authority shall prepare a master-plan and a phased master-programme for the development of the Port area and the plan and programme shall be submitted to the [1][division concerned] for approval.

11. Preparation of schemes by local bodies or agencies.—(1) The Authority may, pursuant to the master-plan and the master-programme, call upon any local body or agency operating in the Port area to prepare, in consultation with the Authority, a scheme or schemes in respect of matters ordinarily dealt with by such local body or agency, and thereupon the local body or agency shall be responsible for the preparation of the scheme or schemes within a reasonable time.

(2) Such schemes may relate to—

(a) land use, zoning and land reservation;

(b) public buildings;

(c) industry;

(d) transportation and communications: highways, roads, streets, railways, aerodromes, jetties, wharves, moorings, navigational aids, sheds, ware-houses, godowns, navigation channels and workshops;

(e) telecommunications, including wireless, television, radio, telephone;

(f) utilization of water, power and other natural resources;

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[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), ss. 5-6.
[2]Subs. by Ord. 43 of 2002, s. 4.

(g) community planning, housing, slum clearance, amelioration;

(h) community facilities, including water supply, sewerage disposal, electricity supply, gas supply, and other public utilities;

(i) residential accommodation and welfare facilities for employees of the Authority;

(j) environmental control and prevention of pollution.

(3) The [1][division concerned] may, by notification in the official Gazette, add to, alter or amend the list of subjects given in sub-section (2), and any such addition, alteration or amendment shall take effect as if it had been enacted in this Act.

(4) The expenditure incurred on the preparation of any such schemes as aforesaid shall be borne as agreed to between the Authority and the local body or agency, and, in the event of disagreement between them, as may be determined by the [1][division concerned].

(5) No planning or development scheme shall be prepared by any person or by any local body or agency operating in the Port area without the prior approval of the Authority.

(6) The Authority may, pursuant to the master-plan and master-programme, prepare such other schemes for the Port area as the need for port development and port management may require.

12. Manner and form, etc., of scheme.—All schemes under section 11 shall be prepared in such manner and form as the [1][division concerned] may specify, and shall contain among other things the following information, namely:—

(a) description of the scheme and the manner of its execution;

(b) estimate of costs and benefits;

(c) allocation of costs to the various purposes to be served by the scheme.

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13. Powers [2][and Functions] of the Authority.—(1) Subject to the other provision of this Act, the Authority may take such measures and exercise such powers as may be necessary for the carrying out of the purposes of this Act.

(2) Without prejudice to the generality of the powers conferred by sub-section (1), the Authority may—

(a) incur any expenditure necessary for carrying out the purposes of this Act;

(b) acquire any land in the Port area in accordance with the procedure laid down in Chapter IV;

(c) undertake any works in the Port area in pursuance of any scheme prepared under sub-section (6) of section 11;

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[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 6.
[2]Ins. by Ord. 43 of 2002, s. 5.

(d) procure plant, machinery, instruments and materials required for its use;

(e) enter into and perform all such contracts as it may be considered necessary;

(f) cause studies, surveys, experiments and technical researches to be made or contribute towards the cost of any such studies, surveys, experiments or technical research made by any other agency at the request of the Authority;

(g) issue interim development orders for areas for which a master-plan is under preparation and restrict or prohibit by general or special order any change in the use of land and alteration in buildings, structures and installations;

(h) cause removal of any works obstructing the execution of any of its schemes;

(i) seek and obtain advice and assistance for the preparation of any planning scheme or for the execution of any schemes from any local body or agency and such local body or agency shall give the advice and assistance sought by the Authority to the best of its ability, knowledge and judgment, and additional expenditure, if any, involved in giving such advice or assistance shall be borne by the Authority [1][;]

[1][(j) entrust, transfer, assign or give on contract works connected with the development and operations of the Port to any other person, agency, department, company or contractor on such terms and conditions as the Authority may determine subject to rules, regulations and instructions made or issued under this Act:

Provided that the Authority shall not entrust, transfer, assign or give on contract any of its operations without approval of the [2][division concerned];

(k) to contract out any or all the services or works required to be executed by the Authority under the provisions of this Act; and

(l) to form subsidiary company or companies under the Companies Ordinance, 1984 (XLVII of 1984) either wholly owned or with participation of private sector with prior approval of the Federal Government.]

(3) The Authority shall frame—

(a) a scale of tolls, dues, rates and charges, annual or other, to be paid by the owners of vessels playing whether for hire or not and whether regularly or occasionally, within or partly within and partly without the limits of the Port area, in respect of such vessels and of persons whether in charge of, or on board, such vessels, and also in respect of the licensing, registration and regulation of such vessels and persons:

Provided that no such tolls, dues, rates and charges shall be chargeable in respect of vessels which are liable to port dues under the provisions of

[1]Subs. and added by Ord. 43 of 2002, s. 5.
[2]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 7.

Schedule I to the Ports Act, 1908 (XV of 1908);

(b) a scale of tolls, dues, rates and charges—

(i) for the landing and shipment of goods from and in sea-going vessels, and not being sea-going vessels, respectively, at such docks, wharves, quays, stages, moorings, jetties, piers and anchorages as belong to the Authority, or any other agency authorised by the Authority to construct such facilities;

(ii) for the use of such docks, wharves, quays, stages, moorings, jetties, piers and anchorages by such vessels;

(iii) for the storing and keeping of any goods stored in any premises belonging to the Authority;

(iv) for the removal of goods; and

(v) for the use of any moorings;

(c) a scale of tools for the use of the said docks, wharves, quays, moorings, stages, jetties, piers and anchorages by any such vessels, in case the Authority permits the goods to be landed or shipped by persons other than its own officers and servants; and

(d) a scale of charges for—

(i) any service to be performed by the Authority or its servants in respect of any vessels or goods;

(ii) the use of any works or appliances to be provided by the Authority;

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(iii) for the carrying of passengers and their personal effects on vessels belonging to, or hired by, the Authority; and

(iv) for the towing of and rendering assistance to any vessels, tugs, or other boats, or their equipment, within the limits of the Port area or outside those limits, for the purpose of saving or protecting life or property.

(4) Every scale framed under sub-section (3) shall be submitted to the [1][division concerned] and, after approval or modification by the [1][division concerned], shall be published in the official Gazette.

14. Tolls and charges may be remitted in special cases. The Board may, in special cases, with the previous sanction of the [1][division concerned], remit the whole or any portion of a toll, due, rate or charge leviable according to any scale for the time being in force under section 13:

[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), ss. 7-8.

Provided that the sanction of the [1][division concerned] shall not be necessary if the remission in any one case does not exceed five thousand rupees or such larger sum as the [1][division concerned] may from time to time specify:

Provided further that, in a case where the remission does not exceed two thousand rupees, the remission may be granted by the Chairman or an officer authorized by him in his behalf.

15. Board's lien for tolls and charges.—(1) For the amount of all tolls, dues, rates and charges leviable under this Act in respect of any goods, the Board shall have a lien on such goods, and shall be entitled to seize and detain the same until such tolls, dues, rates and charges are fully paid and for the amount of rent lawfully due on buildings, plinths, stacking areas and other premises which are the property of the Board, and not paid after bills therefor have been duly preferred, the Board shall have a lien on all goods therein or thereon, and shall be entitled to seize and detain the same.

(2) Tolls, dues, rates and charges in respect of goods to be landed shall become payable immediately on the landing of goods and, in respect of goods to be removed from the premises of the Board or to be shipped for export, shall be payable before the goods are removed or shipped.

(3) The lien of such tools, dues, rates and charges shall have priority over all other liens and claims, except a lien for freight, primage and general average, where such lien has been preserved in the manner hereinafter provided, and a lien for money payable to the Federal Government under any law for the time being in force.

16. Owner's lien for freight.—(1) If the master or owner of any vessel, at or before the time of landing from such vessel of any goods at any wharf, dock, quay, stage, jetty or pier, gives to the Board notice in writing that such goods are to remain subject to a lien for freight, primage or general average of any amount to be mentioned in such notice, such goods shall continue to be liable, after the landing thereof, to such lien.

(2) Such goods shall be retained either in the warehouses and sheds of the Board or, with the consent of the Collector of Customs, in a public warehouse, at the risk and expense of the owner of the said goods, until the lien is discharged as hereinafter mentioned.

17. Discharge of Shipowner's lien for freight. Upon the production to any officer appointed by the Board in that behalf of a document purporting to be a receipt for, or a release from, the amount of such lien, executed by the person by or on whose behalf such notice has been given, the Board may permit such goods to be removed without regard to such lien.

18. Goods may be removed to warehouse.—(1) Whenever goods which have been landed have, without any default on the part of the Board, been left for five clear days on or in any wharf of shed belonging to the Board, the Board may cause such goods to be removed either to any warehouse belonging to it, or, with the consent of the Collector of Customs, to a public warehouse; and the removal to and detention in any such warehouse shall be at the risk and expense of the owner of the said goods.

(2) Whenever any goods are so removed, the Board shall give notice of such removal to the consignee or other person concerned by notification in the official Gazette specifying therein the name

[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 8.

of the ship which brought the goods, the date of her arrival, and the numbers, marks and descriptions of the goods so far as the same appear and the consignee of such goods or other person to whom notice has been given as aforesaid, in addition to the expenses of the removal of the same, shall be liable, in case the goods are removed to any warehouse of the Board, to a charge for warehousing for the time during which the goods shall remain in the said warehouse.

(3) If the goods are removed to a public warehouse, the said consignee shall be liable to the charges for warehousing goods in such public warehouse and the said goods shall remain subject to all liens to which they would have been liable if they had remained in the possession of the Board, and shall be subject to the power of sale hereinafter given.

19. Recovery of tolls and charges by sale of goods.—(1) If the tolls, dues, rates and charges payable to the Board under this Act in respect of any goods which have been landed or if rents due under section 15 are not paid, or if the lien for freight, primage or general average, where such notice as aforesaid has been given, is not discharged, the Board may, and in the latter event, if required by or on behalf of the person claiming such lien for freight, primage or general average, shall at the expiration of two months from the time when the goods were placed in its custody, or seized and detained for rents due sell by public auction the said goods, or so much thereof as may be necessary to satisfy the amounts hereinafter directed to be paid out of the produce of such sale.

(2) Before making such sale, at least ten days' notice of the same shall be given by publication thereof in the official Gazette and in two local newspapers.

(3) If the address of the consignee of the goods or of his agent has been stated on the manifest of the cargo, or in any of the documents which have come into the hands of the Board, or is otherwise known, notice shall also be given to the consignee of the goods or to his agent by letter delivered at such address or sent by post; but the title of a *bona-fide* purchaser of such goods shall not be invalidated by reason of the omission to send such notice, nor shall any such purchaser be bound to inquire whether such notice has been sent:

Provided that, if such goods are of so perishable a nature as, in the opinion of the officer appointed by the Board in that behalf, to render early or immediate sale necessary or advisable, the Board may within such period being not less than twenty four hours after the landing of the goods, as it thinks fit, sell by public auction the said goods or such portion of them as aforesaid in which event such notice, if any, shall be given to the consignee of the goods or his agent as the urgency of the case admits of.

20. Removal of unclaimed goods.—(1) When delivery of goods is not claimed by the owner at the expiry of one month from the date on which they are placed in the custody of the Board, the Board shall cause a notice to be served upon the owner requiring him to remove the goods:

Provided that, where all rates and charges in respect of such goods have been duly paid, such notice shall not be served till the expiration of two months from the said date.

(2) Such notice shall be published and served in the manner prescribed in sub-sections (2) and (3) of section 19, but where the owner is not known, or the notice cannot be served upon him or he does not comply with the notice, the Board may sell the goods by public auction after the expiration of ten weeks from the date on which such goods were placed in the custody of the Board.

(3) The Federal Government may, by notification in the official Gazette, exempt any goods or class of goods from the operation of this section.

21. Power to distrain vessels for non-payment of rates, etc.— (1) If the master of any vessel in respect of which any tolls, dues, rates, charges or penalties shall be payable under this Act, or any bye-laws made thereunder, refuses or neglects to pay the same or any part thereof on demand, it shall be lawful for the Board to distrain or arrest of its own authority such vessel, and the tackle, apparel or furniture belonging thereto, or any part thereof and detain the same until the amount so due shall be paid.

(2) In case any part of the said rates or penalties, or of the cost of the distress or arrest or of the keeping of the same, shall remain unpaid for a period of fifteen days next after any such distress or arrest shall have been so made the Board may cause the vessel, or other thing so distrained or arrested, to be sold, and with the proceeds of such sale may satisfy such tolls, dues, rates, charges or penalties and costs of sale remaining unpaid, rendering the surplus, if any, to the master of such vessel on demand.

22. Port-clearance not to be granted till rates, etc., paid. If the Board shall give to the officer of Government, whose duty is to grant the port-clearance of any vessel, a notice stating that an amount therein specified is due in respect of tolls, dues, rates, charges or penalties chargeable under this Act, or any bye-laws or orders made hereunder against such vessel or the owner or master of such vessel, in respect thereof, such officer shall not grant such port-clearance until the amount so chargeable shall have been paid.

23. Alternative remedy by suit. Notwithstanding anything contained in sections 15, 16, 17, 18, 19, 20, 21 and 22, the Board may recover by suit any tolls, dues, rates, charges, damages, expenses, costs, or in case of sale the balance there of when the proceeds of sale are insufficient or any penalties or fines payable to or recoverable by the Board under this Act or under any bye-laws made thereunder.

24. Surplus of port dues to be paid to Board. The surplus, if any, of the moneys credited under section 36 of the Ports Act, 1908 (XV of 1908), to the account of the port fund of the port, after defraying therefrom all expenses legally chargeable to the said account, shall be paid to the Board.

25. Right of Board to maintain pilots.-(1) The Board shall have the right of maintaining pilots for the navigation of vessels at the port, and shall be bound to provide a sufficient number of pilots for that purpose, and all fees for pilotage shall be paid to the Board :

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Provided that no person shall be appointed to be a pilot by the Board who is not for the time being authorized under the provisions of the Ports Act, 1908 (XV of 1908), to pilot vessels.

(2) The Board may also, from time to time, make such bye-laws and regulations as it shall think fit—

(a) for fixing and regulating the wages and allowances for pilotage to be received by pilots ; and

(b) for regulating the behavior and conduct of pilots whether maintained by the Board or not, and shall enforce the observance of such bye-laws and regulations

[1]Subs. by ord 43 of 2002, s.6

by the imposition of pecuniary penalties not exceeding [1][the amount as may be notified in official Gazette by the Board] for each offence, or by suspension, or deprivation of appointment, or otherwise as may appear to it to be expedient :

Provided that such bye-laws shall first have been approved by the [1][division concerned], and published in the manner laid down in section 26.

26. Approval and publication of bye-laws. No bye-law, or alteration or revocation of a bye-law, shall have effect until the same shall have been approved by the [1][division concerned] and such approval shall have been published in the official Gazette and no bye-law or alteration or revocation of a bye-laws shall be approved by the [1][division concerned] until a draft of the same and a notice specifying a date at or after which the draft will be submitted to the [1][division concerned] shall have been published in the official Gazette and in such other manner as the [1][division concerned] may from time to time prescribe, nor unless the said draft shall have been submitted for its approval.

27. Removal, etc., of building. The Board [2][or any officer authorized by the Board] shall not order or cause any building in the Port area to be removed or demolished unless an opportunity of being heard has been given to the owner or occupier thereof and his objections, if any, has been duly considered, and the Board [2][or any officer authorized by the Board] is satisfied that the removal or demolition of the building is essential to the execution of its schemes.

28. Private wharves, etc., prohibited.— (1) Save as hereinafter provided, no person except the Board shall make, erect or fix below high-water mark within the Port area any wharf, dock, quay, stage, jetty, pier, erection or mooring.

(2) Any matter or thing so made, erected or fixed may be removed by the Board and the person who has so made, erected or fixed any such matter or thing shall be punished with fine, [2][as fixed by the Board from time to time, an initial fine and recurring fine] for every day during which such mater or thing has been permitted to remain so made, erected or fixed after notice to remove the same has been given to him, and shall also be liable to pay all expenses which may have been incurred by the Board in removing such matter or thing.

29. Power to permit erection of private wharves, etc. The Board may, by an order in writing and subject to such conditions as it may specify in the order, permit any person to make, erect or fix below high-water mark within the Port area any wharf, dock, quay, stage, jetty, pier, erection or mooring.

30. Power to amend schemes. Any scheme prepared under section 11 may at any time be amended or modified by the Authority and where the amended or modified scheme exceeds the financial power of the Authority, it shall obtain the previous approval in writing of the [1][division concerned].

31. Execution of schemes, etc., through local bodies and agencies.—(1) The Authority may require a local body or agency within whose jurisdiction any particular area covered by a scheme lies-

(a) to execute a scheme in consultation with the Authority;

(b) to take over and maintain any of the works and services in that area; and

(c) to enforce regulations on behalf of the Authority.

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[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), ss. 9-11.
[2]Subs. by the ord. 43 of 2002, s.7.

(2) The expenditure incurred on the execution of any scheme or on the taking over or maintenance of any work, or the enforcement of regulations, under this section, shall be borne as may be agreed to between the Authority and the local body or agency, and, in the event of disagreement, as may be determined by the [1][division concerned].

32. Borrowing powers. — (1) The Authority may, with the previous approval in writing of the [1][finance division], raise funds for the purpose of raising its working capital by issuing bonds and debentures carrying interest at such rates as may be approved by the [1][finance division].

(2) The repayment of the principal and the payment of interest due on the bonds and debentures issued by the Authority shall be guaranteed by the Federal Government.

33. Utilization of building material. Notwithstanding anything contained in any other law for the time being in force or in any contract or agreement, no person shall, without the prior concurrence of the Authority, allocate, exploit or in any manner utilize, except for the purpose of his own personal use, such natural resources used as building materials as the Authority may, by notification in the officials Gazette, specify in this behalf.

CHAPTER IV

ACQUISITION OF LAND

34. Liability to acquisition. All land in private ownership within the Port area shall be liable to acquisition at any time in accordance with the provisions of this Chapter.

35. Entry upon land, preliminary surveys, etc. — (1) It shall be lawful for the Authority, and any member thereof, and for the Deputy Commissioner, and any such person as may, either generally or specially, be authorized by the Authority in this behalf, —

(a) to enter upon and survey and take levels of any land;

(b) to dig or bore into the sub-soil;

(c) to do all other acts necessary to ascertain whether land is adapted for the purposes of this Act;

(d) to set out the boundaries of the land purposed to be acquired and the intended line of the work, if any, proposed to be made thereon;

(e) to make such levels, boundaries and line by placing marks and cutting trenches; and

(f) where it is necessary for the purposes of the survey, taking of levels or marking of line, to cut down and clear away any part of any standing crop, fence or jungle.

(2) No person shall enter into any building or upon any enclosed court or garden attached to a dwelling house (unless with the consent of the occupier thereof) without previously giving such occupier at least twenty-four hours, notice in writing of his intention to do so.

[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), ss. 11-13.

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36. Compensation for damage. Where any damage is caused to any land in consequence of anything done in pursuance of section 35, there shall be paid compensation, the amount of which shall be determined in the manner and in accordance with the provisions hereinafter set out, that is to say,

(a) where the amount of compensation can be fixed by agreement, it shall be fixed in accordance with such agreement; and

(b) where no such agreement can be reached, it shall be fixed by the Deputy Commissioner.

37. Power to acquire land.— (1) Subject to the other provisions of the Act, the rules made thereunder and the directions of the Authority, the Deputy Commissioner may, by order in writing, acquire any land for the purposes of this Act.

(2) No order under sub-section (1) shall be issued except on the receipt by the Deputy Commissioner of specific directions from the Authority.

38. Land to be marked out, measured and planned. Where any land is proposed to be acquired under section 37, the Deputy Commissioner shall cause the land (unless it has been already marked out) to be marked out and measured, and if no plan has been made thereof, a plan to be made of the same.

39. Notice to persons interested.— (1) The Deputy Commissioner shall then cause public notice to be given at convenient places on or near the land to be taken, stating that the Authority intends to take possession of the land, and that claims to compensation for all interests in such land may be made to him.

(2) Such notice shall state the particulars of the land so needed and shall require all persons interested in the land to appear personally or by agent before the Deputy Commissioner at a time and place therein mentioned, such time not being earlier than ten days after the date of publication of the notice, and to state the nature of their respective interests in the land and the amount and particulars of their claims to compensation for such interests and their objections, if any, to the measurements made under section 35, and the Deputy Commissioner may require any such statement to be made in writing and signed by the party or his agent.

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40. Enquiry and award by Deputy Commissioner. On the day so fixed, or on any other day to which the enquiry has been adjourned, the Deputy Commissioner shall proceed to enquire into the objections, if any, which any person interested has stated pursuant to the notice given under section 39, and into the market value of the land and into the respective interests of the persons claiming the compensation, and shall make an award of—

(i) the true area of the land;

(ii) the compensation which in his opinion should be allowed for the land; and

(iii) the apportionment of such compensation among all the persons known or believed to be interested in the land of whom, or of whose claims, he has information, whether or not they have appeared before him.

41. Compensation. Where any land is acquired under this Act, there shall be paid compensation the amount of which shall be determined by the Deputy Commissioner who shall be guided by the provision of sections 42 and 43.

42. Matters to be considered in determining. In determining the amount of compensation to be awarded for land acquired under this Act, the Deputy Commissioner shall take into consideration-

(i) the market value of the land;

(ii) the damage sustained by the person interested by reason of dispossession of any standing crops or trees which may be on the land;

(iii) the damage, if any, sustained by the person interested at the time of taking possession of the land by reason of serving such land from his other land;

(iv) the damage, if any, sustained by the person interested at the time of taking possession of the land by reason of the acquisition injuriously affecting his other property, movable or immovable, in any manner, or his earnings; and

(v) if, in consequence of the acquisition of the land, the person interested is compelled to change his residence or place of business, the reasonable expenses, if any, incidental to such change.

43. Factors to be ignored in determining compensation. In determining compensation as aforesaid, the Deputy Commissioner shall not take in to consideration—

(i) the degree of urgency which has led to the acquisition;

(ii) any disinclination of the person interested to part with the land acquired;

(iii) any damage sustained by him which, if caused by a private person, would not render such person liable to a suit;

(iv) any increase likely to accrue to the value of the land acquired from the use to which such land will be put on acquisition; or

(v) any increase likely to accrue to the value of other land of the person interested from the use to which the land acquired will be put on acquisition.

44. Vesting of land in the Authority. Immediately on the making of the award under section 40, the land shall vest in the Authority free from all encumbrances and thereupon the Deputy Commissioner may, after giving reasonable notice to the occupier, enter upon and take possession of the same.

45. Acquisition. In cases of urgency, the Deputy Commissioner may immediately after the publication of the notice mentioned in sub-section (1) of section 39 enter upon and take possession of the land which shall thereupon vest absolutely in the Authority free from all encumbrances:

Provided that the Deputy Commissioner shall not take possession of any building or part of building under this section without giving to the occupier thereof at least twenty-four hours' notice of his intention to do so, or such longer notice as may be reasonably sufficient to enable such occupier to remove his movable property from such building without unnecessary inconvenience.

46. Power of Deputy Commissioner to call for information. With a view to acquiring any land or determining any compensation thereof or to carrying out any other purpose of this Act, the Deputy Commissioner may—

(a) require any person, by order in writing, to furnish such information in his possession relating to any land as may be specified in the order; and

(b) enter or authorize any person to enter upon any land and take such action as may be necessary.

47. Authority to give direction. The Authority may give directions to the Deputy Commissioner in respect of the exercise of his powers and the discharge of his functions under this Chapter and the Deputy Commissioner shall be guided, and act in accordance with, such directions.

48. Appeals.— (1)The Authority or any person aggrieved by an award or final order of the Deputy Commissioner may, within fifteen days of the award or order, appeal to the Provincial Government.

(2) An officer authorized by the Provincial Government in this behalf may, after giving the Authority and the persons affected by the award or order appealed against an opportunity of submitting any objection to the appeal and of being heard, pass such orders thereon as he may think fit.

(3) The order passed on any appeal under sub-section (2) shall be final and shall not be called in question by or before any Court or other authority.

49. Deputy Commissioner and authorised officer to have powers of civil court, etc.—(1) The Deputy Commissioner making any inquiry or conducting any proceedings for an award under this Act, or the officer hearing an appeal under section 48, shall have the same powers in respect of the following matters as are vested in the civil court, when trying a suit under the Code of Civil Procedure 1908 (Act V of 1908), namely: —

(a) summoning and enforcing attendance of any person and examining him on oath or affirmation;

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(b) requiring the discovery or production of any document;

(c) requisitioning any record from any court or office;

(d) issuing commissions for examination of witnesses, inspection of property or making any local investigation;

(e) appointing guardian *ad litem* or next friends;

(f) adding or substituting representatives of deceased parties or proceedings;

(g) adding or dropping parties from pending proceedings;

(h) restoration of cases dismissed for default;

(i) consolidation and splitting up cases; and

(j) any other matter connected with the holding of any inquiry or hearing of an appeal.

(2) The Deputy Commissioner or the officer hearing an appeal under section 48 shall be deemed to be a court for the purposes of sections 480 and 482 of the Code of Criminal Procedure, 1898 (Act V of 1898), and a proceeding before him shall be deemed to be a judicial proceeding within the meaning of sections 193 and 228 of the Pakistan Penal Code (Act XLV of 1860).

CHAPTER V

ESTABLISHMENT

50. Appointment of officers, servants, etc. The Authority may, from time to time, appoint such officers and servants as it may consider necessary for the performance of its functions, on such terms and conditions as it may deem fit.

51. Recruitment, conditions of service, etc. The Authority shall, by regulations made with the prior approval of the [1][division concerned], lay down the procedure for the appointment of its officers and servants, and the terms and Conditions of their service including the constitution and management of provident fund for them, and shall be competent to take disciplinary action against them.

52. Members and officers to be public servants. The Chairman, members, officers and servants of the Authority shall, when acting or purporting to act in pursuance of any of the provisions of this Act, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

53. Indemnity. No suit, prosecution or other legal proceedings shall lie against the Authority, the Board, the Chairman, any member, officer or servant of the Authority in respect of anything in good faith done or intended to be done under this Act.

54. Delegation of powers to Chairman, etc. The Authority may, by general or special orders, delegate to the Chairman, or a member or an officer of the Authority, any of its powers, duties or functions under this Act, subject to such conditions as it may think fit to impose.

CHAPTER VI

FINANCE

55. Port Qasim Authority Fund. — (1) There shall be formed a fund to be known as the "Port Qasim Authority Fund" which shall vest in the Authority and shall be utilized by the Authority to meet the charges in connection with its functions under this Act, including the payment of salaries and other remuneration to the Chairman, members, officers, servants, experts and consultant of the Authority.

[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 14.

(2) To the credit of the Port Qasim Authority Fund shall be placed—

(a) grants made by the Federal Government;

(b) loans obtained from the Federal Government;

(c) grants made by local bodies;

(d) sale proceeds of movable and immovable property and receipts for services rendered;

(e) loans obtained by the Authority with the special or general sanction of the Federal Government;

(f) foreign aid and loans obtained from any source outside Pakistan with the sanction of, and on such terms as may be approved by, the Federal Government;

(g) proceeds of all charges and recoveries made under the Ports Act, 1908 (XV of 1908), and the provisions of this Act; and

(h) all other sums receivable by the Authority.

56. Budget.—(1) In the month of November each year, the Authority shall submit to the [1][division concerned] for approval a statement of the estimated receipts and expenditure in rupees in respect of the next financial year.

(2) In the manner prescribed by the [1][division concerned], the Authority shall also submit to the [1][division concerned] for approval a statement of the estimated receipts and expenditure in foreign exchange in respect of the next financial year.

(3) The Authority shall obtain specific sanction of the [1][division concerned] in respect of each individual scheme costing rupees twenty-five lakhs non-recurring or rupees five lakhs recurring or more to be financed out of the Port Qasim Authority Fund.

[2][**56A. Surplus to be remitted to Federal Consolidated Fund**.—Any surplus of receipts over the actual expenditure in a year, after payment of tax, shall be remitted to the Federal Consolidated Fund (FCF) and any deficit from the actual expenditure shall be made up by the Federal Government to the extent of funds deposited in FCF.]

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57. Audit and Accounts. [1][division concerned] (1) The accounts of the Authority shall be maintained by the Authority in such form as may be prescribed by the Auditor-General of Pakistan consistent with the requirements of the Act.

(2) The accounts of the Authority shall be audited by not less than two auditors who are chartered accountants within the meaning of the Chartered Accountants ordinance 1961 (X of 1961), appointed by the [1][division concerned] in consultation with the Auditor-General of Pakistan, on such remuneration, to be paid by the Authority, as the [1][division concerned] may fix.

(3) Notwithstanding the provisions of sub-section (2), the Auditor-General may, either of his own motion or upon a request received in this behalf from the [1][division concerned], undertake such audit of the accounts of the authority at such time as may be considered necessary, and the Authority shall, at the time of such audit, produce the account books and connected documents at such place or places as the Auditor-General may fix, and furnish such explanations and information as the Auditor-General or an officer authorized by him in this behalf may ask for.

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[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), ss. 15-16.
[2]Ins. by the Finance Act No. V of 2019, s.7.

(4) Every auditor appointed under sub-section (2) shall be given a copy of the annual balance-sheet of the Authority, and shall examine it together with the accounts and vouchers relating thereto and shall have a list delivered to him of all books kept by the Authority; and shall at all reasonable times have access to the books, accounts and other documents of the Authority, and may in relation to such accounts examine any officer of the Authority.

(5) The auditors shall report to the [1][division concerned] upon the annual balance-sheet and accounts and in their report state whether in their opinion the balance-sheet is a full and fair balance-sheet containing all necessary particulars and property drawn up so as to exhibit a true and correct view of the state of the Authority's affairs, and in case they have called for any explanation or information from the Board, whether it has been given and whether it is satisfactory.

(6) The [1][division concerned] may at any time issue directions to the auditors requiring them to report to it upon the adequacy of measures taken by the Authority for the protection of the interests of the [1][division concerned] and of the creditors of the Authority or upon the sufficiency of their procedure in auditing the accounts of the Authority, and may at any time enlarge or extend the scope of the audit or direct that a different procedure in audit be adopted or that any other examination be made by the auditors if in its opinion the public interest so requires.

(7) The Authority shall comply with every direction issued by the [1][division concerned] for the rectification of matters objected to in audit.

CHAPTER VII

PENALTY AND PROCEDURE

[2]**[58. Penalty**.— Whoever contravenes any provision of this Act or any rule, regulation or bye-law, made or scheme sanctioned thereunder, or commits a default by omission or commission, or makes a mis-declaration bearing upon the safety and security in port, on-shore or off-shore shall, if no other penalty is provided for such contravention, default, omission or commission or mis-declaration be punishable with imprisonment for a term which may extend to one year, or with fine which may extend to rupees one million, or with both.]

59. Penalty for evading rates, etc. Any person who removes or attempts to remove, or abets within the meaning of the Pakistan Penal Code (XLV of 1860), the removal of any goods, vessel, animal or vehicle with the intention of evading payment of the tolls, dues, rates or charges lawfully payable in respect thereof shall be punishable with fine which may extend to two thousand rupees.

60. Compensation for damage to property of Board.—(1) In case damage or mischief is done to any wharf, dock, quay, jetty, pier or work constructed or acquired by the Board under this Act by any vessel, through the negligence of the master thereof or of any of the mariners or persons employed therein, not being in the service of the Board, any Magistrate of the first class having jurisdiction in the Port area, may on the application of the Board and on declaration by it that payment for such damage or mischief has been refused or has not been made on demand, issue a summons to the master or owner of such vessel, requiring him to attend on a day and at an hour named in the summons to answer touching such damage or mischief.

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[1]Subs. by the Port Qasim Authority (Amdt.) Act, 2021 (XL of 2021), s.16.
[2]Subs. by Ord. 43 of 02, s. 9.

(2) If, at the time appointed in the summons, and whether the person summoned appears or not, it is proved that the alleged damage was done through such negligence as aforesaid, and that the pecuniary amount of the same does not exceed two thousand rupees, the Magistrate may issue his warrant of distress, under which a sufficient portion of the boats, masts, spars, ropes, cables, anchors or stores of the vessel may be seized and sold to cover the expenses of and attending the execution of the distress, and the pecuniary amount of damage as aforesaid, and such amount shall be paid to the Board out of the proceeds of the distress:

Provided that if, at the time of the damage or mischief, the vessel was under the orders of a duly authorized officer belonging to the pilot service maintained by the Board under section 25 or to the Harbour Masters of Port Officer's department, and if such damage or mischief is in any way attributable to the order, act or improper omission of such officer, the case shall not be cognizable by the Magistrate under this section.

[1][**60A. Fines and penalties to be credited to the Federal Consolidated Fund**.—All fines and penalties recovered by the Authority shall be credited to the Federal Consolidated Fund.]

61. Cognizance of offences.— No Court shall take cognizance of any offence punishable under this Act except on a complaint in writing made by the Authority or by an officer authorised for the purpose by the Authority.

62. Recovery of dues as arrears of land revenue. All fees and sums due on account of property for the time being vested in the Board and all arrears of tolls, charges, rates and dues imposed under this Act may be recovered as arrears of land revenue, in addition to the other modes provided by this Act.

CHAPTER VIII

MISCELLANEOUS

63. Submission of yearly reports and returns. (1) The Authority shall submit to the [2][division concerned], as soon as possible after the end of every financial year but before the last day of December next following, a report on the conduct of its affairs for that year.

(2) The [2][division concerned] may, after giving sufficient notice to the Authority, require it to furnish the [2][division concerned] with—

(i) any return, statement, estimates, statistics, or other information regarding any matter under the control of the Authority; or

(ii) a report on any subject with which the Authority is concerned; or

(iii) a copy of any documents in the charge of the Authority; and the Authority shall comply with every such requisition.

64. Members not personally liable. No member shall be liable for any contract made or expense incurred by or on behalf of the Board; but the funds from time to time in the hands of the Board shall be liable for and chargeable with all contracts made in the manner provided in this Act.

65. Limitation of suits, etc. — (1) No suit shall be commenced against any person for anything done or purporting to have been done in pursuance of this Act, without giving to such person one month's previous notice in writing of the intended suit and of the cause thereof, nor after six months from the accrual of the cause of such suit.

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[1]Ins. by the Finance Act No. V of 2019, s.7.
[2]Subs. by the Port Qasim Authority (Amdt.) Act, 2021 (XL of 2021), s. 17.

(2) In the case of a suit for damages, if tender of sufficient amends shall have been made before the suit was brought, the plaintiff shall not recover more than the amount so tendered and shall pay all costs incurred by the defendant after such tender.

66. Board not responsible for certain acts of its officers and servants. The Board shall not be responsible for any misfeasance, malfeasance or non-feasance of any officer or servant appointed under this Act or of any Conservator, any Port Officer or Harbour Master, or of any assistant or deputy of any such officer or of any person acting under the authority or direction of or in subordination to any such officer, assistant or deputy, nor for any damage sustained by any vessel in consequence of any defect in any of the moorings, hawsers or other things belonging to the Board which may be used by such vessel:

Provided that nothing in this section shall protect the Board from a suit in respect of damages to or loss of, goods landed or shipped by them or retained in their custody.

67. Power to dispose of land. The Authority may retain, or may lease, sell, exchange, rent or otherwise dispose of any land vested in it.

68. Power of Government to make rules. The Federal Government may, by notification in the official Gazette, make rules to carry out the purposes of this Act.

69. Power of Authority to make regulations.—(1) The Authority may, with the prior sanction of the [1][division concerned], make regulations for carrying out the purposes of this Act.

(2) In particular, and without prejudice to the generality of the foregoing power, such relations may provide for—

(a) regulating, declaring and defining the wharves, quays, stages, jetties and piers, on and from which goods shall be landed from and shipped in vessels within the Port area;

(b) the safe and convenient use of such wharves, quays, stages, jetties, piers and of Landing places, tramway, warehouses, sheds and other works in and adjoining the same;

(c) regulating the reception and removal of goods within and from the premises of the Board, and for declaring the procedure to be followed in taking charge of goods which may have been damaged before landing or may be alleged to be so damaged;

(d) settling the mode of payment of tolls, charges, dues and rates levied under this Act;

[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 18.

(e) providing water for ships and for licensing and regulating water-boats within the Port area;

(f) The removal of wrecks from the port and keeping clean the Port area, the foreshore and the works of the Board and for preventing filth or rubbish being thrown therein or thereon; and

(g) the guidance of persons employed by the Authority under this Act, and generally for carrying out the purposes of this Act.

70. Control of [1][division concerned] over acts and proceedings of Board. All acts and proceedings of the Board shall be subject to the control of the [1][division concerned] and the [1][division concerned] may suspend or modify any such acts or proceedings.

71. Transfer of Phitti Creek Project Cell to the Authority.— (1) Notwithstanding anything to the contrary in any contract or agreement or in the conditions of service, the [1][division concerned] may, subject to the provisions of sub-section (2), transfer persons in the service of Pakistan serving in the Phitti Creek Project Cell, hereinafter referred to as the Cell, under the department of the Government headed by the Director-General, Ports and Shipping, immediately before the commencement of this Act to the Authority on the same terms and conditions to which they were entitled immediately before such commencement.

(2) Notwithstanding anything in sub-section (1), only such persons serving in the Cell shall be transferred to the Authority as opt for service in the Authority.

(3) No person in the service of Pakistan who is transferred to the Authority under sub-section (1), shall, notwithstanding anything contained in any law for the time being in force, be entitled to any compensation because of such transfer.

[1][71A. Responsibilities of Master, regarding damages and declaration, etc. The Master, agent, and owner of a vessel, shall, severally, and jointly, be responsible for:

(a) any damage caused to the property and servants of the Port, whether within Ports's limits or in the approaches, by their vessel or servants. Such vessel shall be detained by the Authority till such time the cost of the damage as determined by the Authority is paid;

(b) any mis-declaraton of particulars of a vessel and for disobeying the parameters specified for handling of vessels in Port Qasim Harbour, and shall be liable to a penalty as determined and notified by the Authority from time to time; and

(c) the sinking or grounding of any vessel or causing damage to any other vessel in the port limits or approaches, caused by their vessel of their servants, and for removal of the sunk, ground or damaged vessel at their own risk and cost, failing which, the Authority may salvage or remove such vessel out of the port's limits and the cost of such removal shall be recoverable from the sale proceeds of such vessel.

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[1]Ins. new sections ss. 71A-71C by Ord. 43 of 2002, s. 10.
[1]Subs. by the Port Qasim Authority (Amendment) Act, 2021 (XL of 2021), s. 19.

71B. Port to be pollution free, etc.— (1) The Authority shall be responsible for maintaining the marine environments of the port's limits in order to ensure that the sea, land, an air is free from pollution.

(2) No Owner, Agent or Master of a vessel, or any industry, manufacturing establishment, mill, factory or any kind, cargo handling company, terminal operator, etc., shall discharge any solid or liquid waste, oily, noxious radioactive and hazardous substances, bilge discharges, residues and mixtures containing noxious solid and liquid wastes, de-blasting of un-washed cargo tanks and line washing, garbage, emission of any effluent or waste or air pollution or noise in any amount concentration or level in excess of the National Environmental Quality Standards, or standards, which may be specified, from time to time, by the Authority for Port limits.

(3) Any person contravening the provisions of sub-section (2) shall be liable to penalty as determined and notified by the authority from time to time for each contravention in addition to the charges for cleaning of the Port and removal of pollution therefrom.

71C. Environmental Pollution etc.—(1) No proponent of a project shall commence construction or operation unless he has filed with this Authority as initial environmental examination or, where the project is likely to cause an adverse environmental effect, an environment impact assessment, and has obtained from the Authority approval in respect thereof.

(2) The Authority shall: —

(a) review the initial environmental examination and accord its approval, or require submission of an Environmental Impact Assessment by the proponent; or

(b) review the Environmental Impact Assessment and accord its approval subject to such condition as it may deem fit to impose, or require that the Environment Impact Assessment be re-submitted after such modification as may be stipulated.]

72. Dissolution of Authority and transfer of its assets and liabilities.—(1) The Federal Government may, by notification in the official Gazette, declare that the Authority shall be dissolved on such date as may be specified in such notification, and the Authority shall stand dissolved accordingly.

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(2) On and from the said date—

(a)

(i) all properties, funds and dues placed at the disposal of the Authority by the Federal Government; and

(ii) all properties, funds and dues exchanged for, derived from, or otherwise attributable to, the properties, funds and dues referred to in the clause (i), which immediately before the said date, were held by or were realisable by the Authority shall vest, in, and be realisable by, the Federal Government;

(b) all properties, funds and dues, other than those referred to in sub-clause (*a*), which, immediately before the said date, were vested in or were realisable by

the Authority shall vest in and be realizable by the Federal Government or such agency as the Federal Government may determine, and its decision thereon shall be final;

(c) all liabilities which, immediately before the said date, were enforceable against the Authority shall be assumed by and be enforceable against the Federal Government or such agency as the Federal Government determines under clause (*b*) as the case may be;

(d) for the purpose of completing the execution of any scheme which has not been fully executed by the Authority and of realizing properties funds and dues referred to in clauses (*a*) and (*b*), the functions of the Authority under this Act shall be discharged by the Federal Government or by the agency determined by the Federal Government under clause (b), as the case may be;

(e) the agency referred to in clauses (*b*), (*c*) and (*d*) shall keep such accounts of all moneys respectively received and expended by it under this Act as a Federal Government may prescribe.

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THE POST OFFICE NATIONAL SAVINGS CERTIFICATES ORDINANCE, 1944

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1. Short title, application and commencement
2. Interpretation
3. Restriction of transfer
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THE POST OFFICE NATIONAL SAVINGS CERTIFICATES ORDINANCE, 1944

[1]ORDINANCE NO. XLII OF 1944

[*9th September, 1944*]

An Ordinance to make certain provision in respect of Post Office Twelve-Year National Savings Certificates and other classes of Savings Certificates.

WHEREAS an emergency has arisen which renders it necessary to make certain provision in respect of Post Office Twelve-Year National Savings Certificates and other classes of Savings Certificates;

NOW, THEREFORE, in exercise of the powers conferred by section 72 of the Government of India Act, as set out in the Ninth Schedule to the Government of India Act, 1935 (26 Geo. 5,c.2.), the Governor-General is pleased to make and promulgate the following Ordinance:-

1. Short title, application and commencement.—(1) This Ordinance may be called the Post Office National Savings Certificates Ordinance, 1944.

(2) It applies to—

(a) Post Office Twelve-Year National Savings Certificates issued in pursuance of the Notification of the Government of India in the Finance Department, No. F. 17(100)-F/43, dated the 4th September, 1943, and

(b) any [2]other classes of savings certificates to which the [3][Federal Government] may from time to time by notification in the official Gazette direct that the provisions of this Ordinance shall apply.

(3) It shall come into force at once.

2. Interpretation.—In this Ordinance—

(a) "minor" means a person who is not deemed to have attained his majority under the Majority Act, 1875 (IX of 1875);

(b) "savings certificate" includes a Post Office Twelve-Year National Savings Certificate referred to in clause *(a)* of sub-section (2) of section 1 and a savings certificate of any other class to which the provisions of this Ordinance have been applied by a direction in pursuance of clause *(b)* of that sub-section;

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[1]The Ordinance has been applied to–

(i) Baluchistan, *see* Notification No. 52-W., dated the 11th October, 1944, Gazette of India, 1944, Pt. I, p. 1326;
It has been extended to–
(a) Leased Areas of Baluchistan by the Leased Areas (Laws) Order, 1950 (G. G. O. 3 of 1950).
(b) the Baluchistan States Union by the Baluchistan States Union (Federal Laws) (Extension) Order, 1953 (G. G. O., 4 of 1953), as amended ; and
(c) the Khairpur State by the Khairpur (Federal Laws) (Extension) Order, 1953 (G. G.O. 5 of 1953), as amended.
The Act has been and shall be deemed to have been brought into force in Gwadur with effect from the 8th September, 1958, by the Gwadur (Application of Central Laws) Ordinance, 1960 (37 of 1960), s. 2.

[2]The Provision of this Ordinance have been applied to the Pakistan Post Office Twelve-year Savings Certificates and to the Pakistan Defence Savings Certificates, *see* Gaz. of P. 1948, Pt. I, p. 601; the Pakistan Post Office Ten-Years Savings Certificates and Pakistan Post Office Five-Years Saving Certificates, *see ibid*., 1953, Pt. I, p. 235; and the Ten-Years National Development Certificates, *see ibid*., 1957, Ext. p. 2215.

[3]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. of 1975), Art. 2 and Table.

(c) "transfer" means a transfer *inter vivos* and does not include a transfer by operation of law.

3. Restriction of transfer.—Notwithstanding any provision in any enactment or any rule of law for the time being in force to the contrary, no transfer, whether made before or after the commencement of this Ordinance or, as the case may be, before or after the making of a direction in pursuance of clause *(b)* of sub-section (2) of section I, of a savings certificate shall be valid without the previous consent in writing of an officer of the Post Office authorised by general or special order of the [1][Federal Government] in that behalf.

4. Payment on death of holder of savings certificate.—(1) If a person dies and is at the time of his death the holder of a savings certificate, payment of the sum for the time being due thereon may be made in the manner provided in the Government Savings Banks Act, 1873 (V of 1873), for the payment of deposits belonging to the estates of deceased person, and the provisions of sections 4 to 9 of the said Act shall apply accordingly as if the holder of the savings certificate were a depositor in a Government Savings Bank and the sum for the time being due on the certificate were a deposit in such a Bank:

Provided that in such application section 8 of the said Act shall be construed as if the reference therein to three thousand rupees were a reference to the amount of the maximum holding of savings certificates prescribed in the rules made or deemed to have been made under this Ordinance applicable to the particular savings certificate;

Provided further that—

(a) the powers conferred by the said provisions on the Secretary of a Government Savings Banks shall be exercisable by the Postmaster-General for the area within which the post office of issue of such savings certificate is situate [2][or if that area is in India, by the Postmaster-General for such area in Pakistan as the [1][Federal Government] may by a general or special order specify in this behalf].

(b) where in any one case payment is to be made of savings certificates issued from more post offices than one, the said powers shall be exercisable by the Postmaster-General for the area in which any of the said post offices is situate.

(2) Nothing in sub-section (1) shall be deemed to require any person to accept payment of the amount due on a savings certificate before it has reached maturity.

5. Holdings by or on behalf of minors.—Notwithstanding any provision in any enactment or any rule of law for the time being in force to the contrary,—

(1) a minor may apply for and hold savings certificates and any person may apply for and hold savings certificates on behalf of a minor;

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (P. O. No. of 1975), Art.2 and Table.
[2]Ins, by A. O., 1949.

(2) where any certificate is held by or on behalf of a minor, the minor shall, whether the certificate was applied for and issued before or after the commencement of this Ordinance or, as the case may be, before or after the making of a direction in respect of such certificate in pursuance of clause *(b)* of sub-section (2) of section 1, be bound by the provisions of this Ordinance and of any rules made or deemed to have been made thereunder applicable to such savings certificate and by the terms of any declaration made by the applicant for the certificate in pursuance of the said rules;

(3) payment of the sum for the time being due on a savings certificate held by or on behalf of a minor may be made—

(a) to him personally, if he himself applied, for the certificate, or

(b) for the use of the minor, if the application for the certificate was made by any person other than the minor,—

(i) to any such person, being a parent of the minor or guardian of his property, as may be nominated in that behalf in the form of application, or

(ii) if no such nomination has been made, to any guardian of the property of the minor appointed by a competent Court, or where no such guardian has been so appointed, to either parent of the minor, or where neither parent is alive, to any other guardian of the minor,—

and the receipt of the minor or, as the case may be, of his parent or guardian for any sum paid under this clause shall be a sufficient discharge therefore.

6. Rules.—(1) The [1][Federal Government] may by notification in the official Gazette make rules relating to any class of savings certificate.

(2) In particular and without prejudice to the generality of the foregoing power, such rules may provide for the application for, the issue, maximum limits of holding and discharge of, and conditions as to interest or discount relating to, any class of savings certificate, and may also provide—

(a) that where any such maximum limits of holdings are exceeded, no interest shall be payable on the amount of such excess;

(b) that if any interest has been paid on any amount of such excess, it shall be recoverable as an arrear of land-revenue or in such other manner as the rules may prescribe.

(3) All rules relating to—

(a) the Post Office Twelve-Year National Savings Certificates in force at the commencement of this Ordinance,

(b) any other class of savings certificate in force at the time when a direction in pursuance of clause (b) of subsection (2) of section 1 is made in respect thereof—

shall, so far as they are not inconsistent with the provisions of this Ordinance, continue in force until they are duly rescinded or amended, and shall be deemed to have been made under this Ordinance.

Date: 11-02-2025

[1]Subs. by the Federal Adaptation of Laws Order, 1975 (President's Order No. 4 of 1975), Art.2 and Table.

THE PUBLIC PROCUREMENT REGULATORY AUTHORITY ORDINANCE, 2002

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THE PUBLIC PROCUREMENT REGULATORY AUTHORITY ORDINANCE, 2002

ORDINANCE NO. XXII OF 2002

[15th May, 2002]

An

Ordinance

to provide for the establishment of Public Procurement Regulatory Authority for regulating public procurement of goods, services [1][,] *works* [1][and disposal of public assets] *in the public sector*

WHEREAS it is expedient to provide for the establishment of a Public Procurement Regulatory Authority for regulating procurement of goods, services [1][,] works [1][and disposal of public assets] in the public sector and for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in pursuance of the Proclamation of Emergency of the fourteenth day of October, 1999, and the Provisional Constitution Order No. 1 of 1999, read with the Provisional Constitution (Amendment) Order No. 9 of 1999, and in exercise of all powers enabling him in that behalf, the President of the Islamic Republic of Pakistan is pleased to make and promulgate the following Ordinance:—

CHAPTER I.-PRELIMINARY

1. Short title, extent and commencement.—(1) This Ordinance may be called the Public Procurement Regulatory Authority Ordinance, 2002.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Ordinance, unless there is anything repugnant in the subject or context,—

(a) "Authority" means the Public Procurement Regulatory Authority established under section 3;

(b) "Board" means the Board constituted under section 6;

(c) "Chairperson" means the Chairperson of the Board;

[1][(ca) "disposal" means auction, rental, lease, donations, destruction and recycling of public assets or any combination thereof;]

(d) "Fund" means the fund established under section 9;

[1][(e) "goods" means articles and objects of every kind and description including raw materials, products, equipment, machinery, spares, scraps,

[1]Subs. and Ins. by Act. No II of 2023, ss. 2, 3 and 4.

waste material and commodities in any form and includes all type of assets such as immovable property, physical objects in any form or matter, intangible assets, goodwill, intellectual property and proprietary right, as well as service incidental thereto if the value of these services does not exceed the value of such goods;]

(f) "Managing Director" means the Managing Director appointed under section 8;

(g) "member" means a member of the Authority;

(h) "misprocurement" means public procurement in contravention of any provision of this Ordinance, any rules, regulations, orders or instructions made thereunder or any other law in respect of, or relating to, public procurement;

(i) "prescribed" means prescribed by rules made under this Ordinance;

(j) "procuring agency" means—

(i) any Ministry, Division, Department or any Office of the Federal Government;

(ii) any authority, corporation, body or organization established by or under a Federal law or which is owned or controlled by the Federal Government.

[1][(ja) "public asset" means all types of goods owned and possessed by the procuring agency,]

(k) "Public Fund" means the Federal Consolidated Fund and the Public Account of the Federation and includes funds of enterprises which are owned or controlled by the Federal Government.

[1][(l) "public procurement" means acquisition of goods, services or construction of any works financed wholly or partly out of the public fund and includes disposal of public assets and commercial transactions between procuring agency and private party, in terms of which the private party is allowed to:—

(i) perform a procuring agency's assigned functions, including operations and management, on its behalf;

(ii) assume the use of public asset; or

(iii) receive a benefit either from budget or revenue of the Federal Government or from fees or charges to be collected by the private party for performing the procuring agency's function or any combination thereof;]

(m) "regulations" means regulations made under this Ordinance;

(n) "rules" means rules made under this Ordinance;

[1]Ins. and Subs. by Act. No II of 2023, s. 4.

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(o) "service" means any object of procurement other than goods or works; and

(p) "works" means any construction work consisting of erection, assembly, repair, renovation or demolition of a building or structure or part thereof, such as site preparation, excavation, installation of equipment or materials and decoration, finishing and includes incidental services such as drilling, mapping, satellite photography, seismic investigations and similar activities, if the value of those services does not exceed that of the works themselves.

CHAPTER II.-ESTABLISHMENT OF AUTHORITY

3. Establishment of Authority.—(1) There is hereby established an Authority to be called the Public Procurement Regulatory Authority for carrying out the purposes of this Ordinance.

(2) The Authority shall be a body corporate, having perpetual succession and a common seal, with powers subject to the provisions of this Ordinance, to acquire and hold property, both movable and immovable, and, sue and be sued by the name assigned to it by subsection (1).

(3) The headquarters of the authority shall be at Islamabad and it may establish its offices at such other place or places in Pakistan as it may consider appropriate.

4. Power of the Federal Government to issue directives.— The Federal Government may, as and when it considers necessary, issue directives to the Authority on matters of policy, and such directives shall be binding on the Authority.

5. Functions and powers of the Authority.—(1) Subject to other provisions of this Ordinance, the authority may take such measures and exercise such powers as may be necessary for improving governance, management, transparency, accountability and quality of public procurement of goods, services and works in the public sector.

(2) Without prejudice to the generality of the powers conferred by sub-section (1), the Authority may—

(a) monitor application of the laws, rules, regulations, policies and procedures in respect of, or relating to, procurement;

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(b) monitor the implementation of and evaluate laws, rules, regulations, policies and procedures in respect of, or relating to, inspection or quality of goods, services and works and recommend reformulation thereof or revisions therein as it deems necessary;

(c) recommend to the Federal Government revisions in or formulation of new laws, rules and policies in respect of or related to public procurement;

(d) make regulations and lay down codes of ethics and procedure for procurement, inspection or quality of goods, services and works;

(e) monitor public procurement practices and make recommendations to improve governance, transparency, accountability and quality of public procurement;

(f) monitor overall performance of procuring agencies and make recommendations for improvements in their institutional set up;

(g) provide and coordinate assistance to procuring agencies for developing and improving their institutional framework and public procurement activities;

(h) submit reports to the Government in respect of public procurement activities of procuring agencies;

(i) call any functionary of procuring agencies to provide assistance in its functions and call for any information from such agencies in pursuance of its objectives and functions; and

(j) perform any other function assigned to it by the Federal Government or that is incidental or consequential to any of the aforesaid functions.

CHAPTER III.-MANAGEMENT AND ADMINISTRATION OF THE AUTHORITY

6. Board.—(1) General directions and administration of the Authority and its affairs shall vest in a Board which may exercise all powers, perform all functions and do all acts and things which may be exercised, performed or done by the Authority.

(2) The Board shall consist of the following Members, namely:—

(1)	Secretary, Finance Division.	***Chairperson***
(2)	Secretary, Ministry of Industries and Production.	***Member***
(3)	Secretary, Defence Production Division.	***Member***
(4)	Secretary Ministry of Water and Power.	***Member***
(5)	Secretary, Ministry of Housing and Works.	***Member***
(6)	Secretary, Ministry of Communications.	***Member***
(7)	Three Members from private sector to be nominated by the Federal Government.	***Members***
(8)	Managing Director.	***Member***

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(3) The Managing Director shall act as Secretary to the Board.

(4) A member appointed from the private sector shall hold office for a period of three years and shall be entitled to such terms and conditions as the Federal Government may determine.

(5) A member from the private sector may, by writing in his hand addressed to the Federal Government, resign his office.

(6) A casual vacancy in the office of a private sector member shall be filled by appointment of another member from the private sector for the residue of the terms of his predecessor.

7. Meeting of the Board.—(1) The meeting of the Board shall be presided over by the Chairperson or, in his absence the member elected by the members, shall preside at the meeting of the Board.

(2) Five members shall constitute a quorum for a meeting of the Board requiring a decision by the Board.

(3) The meeting of the Board shall be held at such times, places and in such manner as may be prescribed by regulation.

(4) The members shall have reasonable notice of the time and place of the meeting and matters on which a decision by the Board shall be taken in such meeting.

(5) The decision of the Board shall be taken by the majority of its members present and, in case of a tie, the member presiding a meeting shall have a casting vote.

(6) All orders, determination and decision of the Board shall be taken in writing and shall be signed by the Managing Director.

8. Managing Director.—(1) The Federal Government shall select and appoint a whole time Managing Director to serve as member of the Board and shall be responsible for day to day administration of the Authority for such period and on such terms and conditions as the Federal Government may, determine.

(2) The Managing Director shall be appointed for three years and he shall be eligible for re-appointment but his total tenure shall in no case exceed six years.

(3) No person shall be appointed or continue as Managing Director, if he—

(a) has been convicted of an offence involving moral turpitude;

(b) has been removed from service for misconduct;

(c) has been adjudicated as insolvent;

(d) is incapable of discharging his duties by reasons of physical or mental incapacity and has been so declared by a Medical Board appointed by the Federal Government; or

(e) fail to disclose any conflict of interest at or within the time provided for such disclosure by or under this Ordinance or contravene any of the provisions of this Ordinance.

(4) The Managing Director may, at any time, resign his office by writing under his hand addressed to the Federal Government.

(5) The Managing Director shall be paid such salary and allowances as the Federal Government may determine but his salary and allowances shall not be varied to his disadvantage during his term of office.

(6) The Managing Director shall not, during the term of his office, engage himself to any other service, business, vocation or employment nor shall he before the expiration of one year thereof enter into employment or accept any advisory or consult relationship with any person engaged in public procurement activity:

Provided that where the Managing Director is a Government servant there shall be no such restrictions on his employment after he has retired or transferred from the post of Managing Director

and where he is from private sector he shall not have any direct or indirect financial interest or have any connection with any company engaged in public procurement activity for so long as he holds office and for a period of one year thereafter.

(7) The Managing Director shall have power and responsibility to—

(a) exercise administrative control over the personnel of the Authority;

(b) exercise, in respect of the Authority, such other management, administrative and financial powers as deemed appropriate by the Authority.

(c) submit the annual budget proposals of the Authority to the Board;

(d) prepare the annual report of the Authority for the Board and the Federal Government;

(e) exercise such powers as the Board may delegate to him; and

(f) act on behalf of the Authority, in any emergency, subject to the obligation to report such action to the Board at its next meeting and to seek the Board's ratification of any action so taken.

CHAPTER IV.-FINANCIAL PROVISIONS

9. Fund.—(1) There is hereby established a Fund to be known as the Public Procurement Regulatory Authority Fund which shall vest in the Authority and shall be utilized by the Authority to meet the charges in connection with its functions under this Ordinance.

(2) To the credit of the Public Procurement Authority, a fund shall be placed comprising—

(a) such sums as the Federal Government may, from time to time, allocate to it in the annual budget;

(b) grants;

(c) income from investment by the Authority; and

(d) all other sums or properties which may in any manner become payable to or vest in, the Authority in respect of any matter.

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(3) The Authority, while performing its functions and exercising its powers under the Ordinance, shall exercise highest sense of prudence as far as expenditures are concerned.

10. Expenditure to be charged on the Fund.— The Fund shall be expended for the purpose of—

(a) paying any expenditure lawfully incurred by the Authority, relating to remuneration of its members, employees, advisers, and consultants of the Authority, including provident fund contributions, superannuating allowances or gratuities, legal fees and costs as well as other fees and costs;

(b) paying any other expenses, costs or expenditure properly incurred or accepted by the Authority in the performance of its functions or the exercise of its powers under this Ordinance;

(c) purchasing or hiring equipment, machinery and any other work and undertakings in the performance of its functions or the exercise of its powers under this Ordinance;

(d) repaying any financial accommodation received; and

(e) generally, paying any expenses for carrying into effect the provisions of this Ordinance.

11. Power to obtain finances and receive grants.— The Authority may, from time to time and with the approval of the Federal Government, accept grants from entities both domestic and international, including multilateral agencies for meeting any of its obligations or performing of any of its functions.

12. Investment.— The Authority may invest its surplus funds in accordance with the instructions of the Federal Government.

13. Budget and accounts.— The Authority shall cause its accounts to be maintained properly and in respect of each financial year submit for approval of the Federal Government by such date and in such form as may be specified by the Federal Government a statement showing the estimated receipts and current expenditure and the sums to be required from the Government during the next financial year.

14. Maintenance of accounts.— The Authority shall cause proper accounts to be kept and shall after the end of each financial year cause to be prepared for that financial year a statement of accounts of the Authority which shall include a balance sheet and an account of receipt and expenditure.

15. Audit.— The accounts of the Authority, shall be audited every year by the Auditor-General of Pakistan.

CHAPTER V.-REGULATORY AND OTHER PROVISIONS.

16. Information.—(1) The Authority may call for any information required by it for carrying out the purposes of this Ordinance, from any person or any institution in public procurement activities and any such person or institution shall provide the required information called by the Authority.

(2) The Authority shall furnish to the Federal Government such information with respect to the policies and procedures it is pursuing or proposes to pursue in the performance of any of its functions under this Ordinance as the Federal Government may, from time to time, require.

17. Annual report.— Within one hundred and twenty days from the end of each financial year, the Authority shall cause a report to be prepared on its activities including inquiries and investigations made by the Authority under this Ordinance during that financial year and release to the public after it has been seen by the Cabinet.

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CHAPTER VI.-MISCELLANEOUS

18. Appointment of officers and staff, etc.—(1) The Authority may, from time to time and within its resources, appoint such officers, servants, advisers, consultants and experts as it may consider necessary for performance of its functions.

(2) The Authority shall by regulations prescribe the procedure for appointment of its officers, servants, advisers, consultants and experts and the terms and conditions of their service.

19. Members, officers, etc. to be public servants.— The Chairperson, members, Director-General, officers, servants, advisers, consultants and experts of the Authority shall, when acting or purporting to act in pursuance of any of the provisions of this Ordinance or the rules and regulations made thereunder, be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

20. Delegation.— The Authority may, by such conditions and limitations as it may deem fit to impose, delegate any of its functions or powers to the Managing Director, or one or more members or any of its officers except the power to—

(a) approve audited accounts;

(b) recommend exemption under section 21; and

(c) make or repeal regulation made under this Ordinance.

[1][**20A. Mechanism for grievance redressal.**— The procuring agency shall, by rules and regulations made under this Ordinance, have a mechanism for grievance redressal of bidder during procurement.]

21. Power to exempt.— The Authority may, for reasons to be recorded in writing, recommend to the Federal Government that the procurement of an object or class of objects in the national interest be exempted from the operation of this Ordinance or any rule or regulation made thereunder or any other law regulating public procurement and the Federal Government on such recommendations shall exempt the aforesaid objects or class of objects from the operation of the laws and rules and regulations made thereunder.

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[**21A. Ordinance not to apply to certain bodies corporate, etc**.—(1) Notwithstanding anything contained in this Ordinance the provisions thereof shall not apply to a body corporate, company, institution undertaking or establishment specified in the Schedule to this Ordinance, which has been privatized pursuant to the Privatization Commission Ordinance, 2000 (LII of 2000).

(2) The Federal Government may, by notification in the official Gazette, amend the Schedule so as to add any entry thereto, modify or omit any entry therein.]

22. Validity of proceedings.— No act or proceedings of the Authority or the Board, shall be invalid by reason only of the existence of a vacancy in, or defect in the constitution of, the Authority or the Board.

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[1]Ins. new section 20A by Act. No II of 2023, s. 5.
[2]Ins. new section 21A by Act. No III of 2006, s. 19.

23. Indemnity.— No suit, prosecution, or other legal proceedings shall lie against the Authority, the Board, the Chairperson or any member, officer, servants, advisers or consultants of the Authority in respect of anything in good faith done or intended to be done under this Ordinance or the rules and regulations made thereunder.

24. Common seal.—(1) The Authority shall have a common seal and such seal shall be kept by the Managing Director or such other person as the Chairperson may authorise.

(2) The seal shall be authenticated in the same manner as may be prescribed by regulation and any document purported to be sealed with the seal so authenticated shall be receivable as evidence of the particular stated in the document.

25. Winding up.— No provision of law relating to winding up of bodies corporate shall apply to the Authority and the Authority shall not be wound up except by the orders of the Federal Government in the same manner as the Federal Government may direct.

26. Power of the Federal Government to make rules.— The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Ordinance.

27. Power of the Authority to make regulations.— The Authority may make regulations, not inconsistent with the provisions of this Ordinance and the rules made thereunder, for carrying out the purposes of this Ordinance.

[1][**THE SCHEDULE**

[See section 21A]

1. The Pakistan Telecommunication Company Limited.]

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[1]Added by Act. No III of 2006, s. 19.

THE QUAID-E-AZAM UNIVERSITY ACT, 1973

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THE [2][QUAID-E-AZAM UNIVERSITY ACT, 1973]

[1]ACT NO. XXVIII OF 1973

[9th February, 1973]

An Act to reconstitute and reorganize the University of Islamabad.

WHEREAS it is expedient to reconstitute and reorganize the University of Islamabad for the purpose of improving its administration;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the [2][Quaid-e-Azam University Act, 1973].

(2) It shall come into force at once.

2. Definitions.—In this Act, unless there is anything repugnant in the subject or context,—

(a) "Academic Council" means the Academic Council of the University;

[3][(aa) "affiliated college" means an educational institution affiliated to, but not maintained or administered by, the University;]

(b) "Authority" means an Authority of the University specified in section 18;

(c) "Chancellor" means the Chancellor of the University;

[3][(cc) "College" means a constituent college or an affiliated college;]

(d) "constituent college " means a college maintained and administered by the University;

(e) "Dean" means the Chairman of the Board of a Faculty;

(f) "Director" means the head of an Institute;

(g) "educational institution" means an institution imparting instruction in a subject or subjects relating to a Faculty;

(h) "Faculty" means a Faculty of the University;

(i) "Government" means the Federal Government;

(j) "Institute" means a constituent institute maintained and administered by the University;

(k) "prescribed" means prescribed by Statutes, Regulations or Rules;

[1]For Statement of Objects and Reasons see Gaz. of P., 1973. Ext., Pt. Ill, p. 251.
[2]Subs. by the University of Islamabad (Amdt.) Act, 1976, (60 of 1976) s. 2, for "University of Islamabad Act, 1973."
[3]Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 2.

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(l) "Principal" means the head of a [1]* * * college;

(m) "Pro-Chancellor" means the Pro-Chancellor of the University;

[2]* * * * * * *

(n) "Vice-Chancellor" means the Vice-Chancellor of the University;

(o) "Registered graduate" means a graduate of the University who has his name entered in the register maintained for the purpose;

[3]* * * * * * *

(q) "Statutes", "Regulations" and "Rules" means the Statutes, Regulations and Rules made or deemed to have been made under this Act and for the time being in force;

(r) "Syndicate" means the Syndicate of the University;

(s) "Teachers" include Professors, Associate Professors, Assistant Professors and Lecturers engaged whole-time by the University or by a constituent college for teaching honours or post-graduate classes, and such other persons as may be declared to be Teachers by the Regulations;

(t) "Teaching Department" means a teaching department maintained and administred or recognized by the University;

[4][(u) "University" means the Quaid-e-Azam University as renamed under this Act;]

(v) "University Teacher" means a whole-time Teacher appointed and paid by the University, or recognized by the University as such.

CHAPTER II

THE UNIVERSITY

3.Incorporation.—[5][(1) The University of Islamabad as reconstituted in accordance with the provisions of this Act and having its principal seat at Islamabad shall, on and from the commencement of the University of Islamabad (Amendment) Act, 1976 (XIV of 1976), be renamed as 'the Quaid-e-Azam University'.]

[1]Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 2.
[2]Cl (mm) omitted by the Quaid-e-Azam University (Amdt.) Ordinance. 1980 (I of 1981), s. 2.
[3]CI. (p) omitted by the Quaid-e-Azam University (Amdt.) Ordinance. 1985 (31 of 1985). s. 2.
[4]Subs by the University of Islamabad (Amdt.) Acl. 1976 (60 of 1976). s. 3 for "clause (u)".
[5]Subs by the University of Islamabad (Amdt.) Act, 1976 (60 of 1976), s. 4, for "sub-section (1)".

(2) The University shall consist of—

(i) The Chancellor, the Pro-Chancellor, the Vice-Chancellor, [1]* * * the Deans, the Principals, the Directors, the Chairmen of Teaching Departments, the Registrar, the Treasurer, the Controller of Examinations, the Librarian, the Auditor and such other officers as may be prescribed;

(ii) members of [2]* * the Syndicate, the Academic Council and other Authorities of the University;

(iii) all University Teachers; and

(iv) Professors Emeritus.

(3) The University shall be a body corporate by the name of the [3][Quaid-e-Azam University] and shall have perpetual succession and a common seal, and shall by the said name sue and be sued.

(4) The University shall be competent to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

4. Powers of the University.—The University shall have the powers—

(a) to provide for instruction in such branches of learning as it may deem fit, and to make provision for research and for the advancement and dissemination of knowledge in such manner as it may determine;

(b) to prescribe courses of studies to be conducted by it and the [4]* colleges;

(c) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under prescribed conditions;

(d) to confer in the manner prescribed honorary degrees or other distinctions on persons approved for the purpose;

(e) to provide for such instruction for persons not being students of the University as it may determine, and to grant certificates and diplomas to such persons;

(f) to confer degrees on persons who have carried on independent research under prescribed conditions;

[5][(ff) to grant affiliation to an educational institution and to withdraw such affiliation;]

(g) to inspect colleges and other educational institutions associated [6][with or affiliated to, seeking association with or affiliation to, it];

[1] The words "the Pro-Vice Chancellor" which was inserted by Act 60 of 1976, have been omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1981 (1 of 1981), s. 3.
[2] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s.3.
[3] Subs. by Act 60 of 1976, s. 3 for "University of Islamabad".
[4] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 3.
[5] Ins. *ibid*.,
[6] Subs., *ibid* for certain words.

(h) to accept the examinations passed, and the periods of study spent, by students of the University at other universities and places of learning as equivalent to such examinations and periods of study in the University as it may determine, and to withdraw such acceptance;

(i) to co-operate with other universities and authorities in such manner and for such purposes as it may determine;

(j) to institute Professorships, Associate Professorships, Assistant Professorships and Lecturerships and any other posts and to appoint persons thereto;

(k) to create posts for research, extensions, administration and other related purposes and to appoint persons thereto;

(l) to recognize as University Teachers such persons as it may deem fit;

(m) to institute and award fellowships, scholarships, exhibitions, bursaries, medals and prizes under prescribed conditions;

(n) to establish teaching departments, colleges, faculties, laboratories, workshops, hospitals, farms, institutes, museums and other centres of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may determine;

(o) to control the residence of the students of the University and the constituent colleges, to institute and maintain halls of residence and to approve or license hostels and lodgings;

(p) to supervise and control the discipline of the students of the University and the constituent colleges, to promote the extra-curricular and recreational activities of such students, and to make arrangements for promoting their health general and welfare;

(q) to demand and receive such fees and other charges as it may determine;

(r) to make provision for research and advisory services and with these objects to enter into arrangements with other institutions or with public bodies under prescribed conditions;

(s) to enter into, carry out, vary or cancel contracts;

(t) to receive and manage property transferred and grants bequests, trusts, gifts, donations, endowments and other contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions and to convert one kind of property into another, in such manner as it may deem fit;

(u) to provide for the printing and publication of research and other works; and

(v) to do all such other acts and things, whether incidental to the powers aforesaid or not, as may be requisite in order to further the objects of the University as a place of education, learning and research.

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5. University open to all classes, creeds, etc.—The University shall be open to all persons of either sex of whatever religion, race, creed, class or colour and no citizen of Pakistan shall be denied the privileges of the University on the ground only of sex, religion, race, caste, creed, class or colour:

Provided that nothing in this section shall be deemed to prevent religious instruction being given to the students in their own religious faiths in such manner as may be prescribed.

6. Teaching in the University.—(1) All recognized teaching in various courses shall be conducted by the University or the constituent colleges in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations as well as practical work in the laboratories, hospitals, workshops and farms and other methods of instruction.

(2) The authority responsible for organizing recognised teaching shall be such as may be prescribed.

(3) The courses and the curricula shall be such as may be prescribed.

7. [*University Students Union.*] *Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (XXXI of 1985), s.4.*

CHAPTER III

OFFICERS OF THE UNIVERSITY

8. Officers of the University.—The following shall be the officers of the University, namely:—

(i) the Chancellor;

(ii) the Pro-Chancellor;

(iii) the Vice-Chancellor;

[1]* * * * * * *

(iv) the Deans;

(v) the Directors;

(vi) the Principals [2][of constituent colleges];

(vii) the Chairmen of the Teaching Departments;

(viii) the Registrar;

(ix) the Treasurer;

(x) the Controller of Examinations;

(xi) the Librarian; and

(xii) such other persons as may be prescribed by the Regulations to be officers.

[1]New clause (iiia) ins. by the University of Islamabad (Amdt.) Act. 1976 (60 of 1976), s. 6. omitted by the Quaid-e-Azam University (Amdt.) Ordinance. 1981 (I of 1981). s. 4.

[2]Added by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 4.

9. Chancellor.—(1) The President of the Islamic Republic of Pakistan shall be the Chancellor of the University.

(2) The Chancellor shall, when present, preside at the convocation of the University [1]* * *.

(3) If the Chancellor is satisfied that the proceedings of any Authority are not in accordance with the provisions of this Act, the Statutes, the Regulations, or the Rules, he may, after calling upon such Authority to show cause why such proceedings should not be annulled, by order in writing, annul the proceedings.

(4) Every proposal to confer an honorary degree shall be subject to confirmation by the Chancellor.

(5) The Chancellor shall have the powers to assent to such Statutes as are required to be submitted to him by the [1][Syndicate] or withhold assent or refer them back to the [1][Syndicate] for reconsideration.

(6) The Chancellor may remove any person from the membership of any Authority, if such person—

(i) has become of unsound mind; or

(ii) has become subject to an incapacity which prevents him from functioning as a member of such Authority; or

(iii) has been convicted by a court of law of an offence involving moral turpitude.

10. Visitation.—(1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter connected with the affairs of the University and shall, from time to time, appoint such person or persons as he may deem fit for the purpose of carrying out inspection of—

(i) the University, its buildings, laboratories, libraries, museums, workshops and equipment;

(ii) any institution, college or hostel maintained, recognized or licensed by the University;

[2][(ii-A) any affiliated college;]

(iii) the teaching and other work conducted by the University; and

(iv) the conduct of examinations held by the University.

(2) The Chancellor shall give notice to the Syndicate of his intention to cause an inspection or inquiry to be made under sub-section (1), and the Syndicate shall be entitled to be represented thereat.

(3) The Chancellor shall communicate to the Syndicate his views with regard to the results of an inspection or inquiry made under sub-section (1) and shall, after ascertaining the views of the Syndicate thereon, advise the Syndicate on the action to be taken by it.

[1] Omitted and Subs by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 5.
[2] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 5.

(4) The Syndicate shall, within such time as may be specified by the Chancellor, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of an inspection or inquiry communicated to it under sub-section (3).

(5) Where the Syndicate does not, within the time specified by the Chancellor, take action to the satisfaction of the Chancellor he may, after considering any explanation furnished or representation made by the Syndicate, issue such directions as he thinks fit, and the Vice-Chancellor shall comply with such directions.

11. Pro-Chancellor.—(1) The Minister for Education of the Government of Pakistan shall be the Pro-Chancellor of the University, *ex-officio*.

(2) In the absence of the Chancellor from the Capital of the Federation or during the Chancellor's inability to act or when the Chancellor so directs, the Pro-Chancellor shall exercise all powers and perform all functions of the Chancellor.

12. Vice-Chancellor.—(1) The Vice-Chancellor shall be appointed by the Chancellor on such terms and conditions as the Chancellor may determine and shall hold office during the pleasure of the Chancellor for a term not exceeding four years.

(2) At any time when the office of the Vice-Chancellor is vacant, or the Vice-Chancellor is absent or is unable to perform the functions of his office due to illness or some other cause, the Chancellor shall make such arrangement for the performance of the duties of the Vice-Chancellor as he may deem fit.

13. Powers and duties of the Vice-Chancellor.—(1) The Vice-Chancellor shall be the principal executive and academic officer of the University, shall ensure that the provisions of this Act, the Statutes, the Regulations and the Rules are faithfully observed in order to promote the general efficiency and good order of the University, and shall have all powers necessary for this purpose, including administrative control over all officers, teachers and other employees of the University.

(2) The Vice-Chancellor shall, in the absence of both the Chancellor and Pro-Chancellor, preside at a convocation of the University [1]* * * and shall, if present, preside at the meetings of the Authorities of which he is the Chairman and be entitled to attend and preside at any meeting of any other Authority or body of the University.

(3) The Vice-Chancellor may, in an emergency which in his opinion requires immediate action, take such action as he may consider necessary and shall, as soon thereafter as possible, report his action [1]* * to the officer, Authority or other body which in the ordinary course would have dealt with the matter.

(4) The Vice-Chancellor shall also have the powers—

(i) to create and fill temporary post, in consultation with the Dean of the Faculty concerned, for a period not exceeding six months;

(ii) to sanction all expenditure provided for in the approved budget, and to re-appropriate funds within the same major head of expenditure;

[1]Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 6.

(iii) to sanction by re-appropriation an amount not exceeding five thousand rupees for an unforeseen item not provided for in the budget, and report it to the Syndicate at the next meeting;

(iv) to appoint paper-setters and examiners for all examinations of the University after receiving panels of names from the relevant Authorities;

(v) to make such arrangements for the scrutiny of papers, marks and results as he may consider necessary;

(vi) to direct teachers, officers and other employees of the University to take up such assignments in connection with teaching, research, examination and administration, and such other activities in the University as he may consider necessary for the purpose of the University;

(vii) to delegate, subject to such conditions, if any, as may be prescribed, any of his powers under this Act to an officer or other employee of the University;

(viii) to appoint employees on an initial monthly pay which is below four hundred and fifty rupees; and

(ix) to exercise and perform such other powers and functions as may be prescribed.

13A. [*Pro-Vice Chancellor.***]** *Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1981 (I of 1981), s. 5.*

14. Registrar.—(1) The Registrar shall be whole-time officer of the University and shall be appointed by the Syndicate on such terms and conditions as it may determine.

(2) The Registrar shall—

(a) be the custodian of the Common Seal and the academic records of the University;

(b) maintain a Register of Registered graduates in the prescribed manner;

(c) conduct elections of members to the various Authorities in the prescribed manner; and

(d) perform such other duties as may be prescribed

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15. Treasurer.—(1) The Treasurer shall be a whole-time officer of the University and shall be appointed by the Chancellor on such terms and conditions as the Chancellor may determine.

(2) The Treasurer shall—

(a) manage the property, the finances and the investments of the University;

(b) prepare the annual and revised budget estimates of the University and present them to the Finance and Planning Committee, [1][and the Syndicate];

(c) ensure that the funds of the University are expended for the purposes for which they are provided; and

(d) perform such other duties as may be prescribed.

16. Controller of Examinations.—(1) The Controller of Examinations shall be a whole-time officer of the University and shall be appointed by the Syndicate on such terms and conditions as it may determine.

[1]Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985) s. 7.

(2) The Controller of Examinations shall be responsible for all matters connected with the conduct of examinations and perform such other duties as may be prescribed.

17. University Auditor.—(1) There shall be a University Auditor who shall be an officer in the service of Government whose services have been lent to the University.

(2) The duties of the University Auditor shall include pre-audit of all bills and demands for payment submitted to the University.

CHAPTER IV

AUTHORITIES OF THE UNIVERRSITY

18. Authorities.—The following shall be the Authorities of the University, namely:—

[1]* * * * * * *

(ii) the Syndicate;

(iii) the Academic Council;

(iv) the Boards of Faculties;

(v) the Boards of Studies;

(vi) the Selection Board;

(vii) the advanced Studies and Research Board;

[2][(vii-A) the Affiliation Committee].

(viii) the Finance and Planning Committee;

(ix) the Discipline Committee; and

(x) such other authorities as may be prescribed by Statutes.

19. [*The Senate.***]** *Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (XXXI of 1985), s. 8.*

20. [*Powers and duties of the Senate.***]** *Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (XXXI of 1985), s. 9.*

21. The Syndicate.—[3][(1) The Syndicate shall consist of—

(i) The Vice-Chancellor, who shall be its Chairman;

(ii) One member of the National Assembly to be nominated by the Speaker of the Assembly;

[4]* * * * * * *

(iv) The Chief Justice of Pakistan or [5][a Judge of the Supreme Court of Pakistan nominated by him;]

(v) The Secretary, Ministry of Education, Government of Pakistan.

(vi) One nominee of the University Grants Commission;

(vii) One Dean to be nominated by the Chancellor on the recommendation of the Vice- Chancellor;

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[1] CI. (i) omitted by the Quaid-e-Azam university(Amdt.) Ordinance, 1985(31 of 1985), S.8.
[2] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978], s. 6.
[3] Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1980 (1 of 1981), s. 7.
[4] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 10.
[5] Subs. *ibid*., for "certain words."

[1][(viii) One professor to be elected by the Professors of the University from amongst themselves;

(viiia) One Associate Professor to be elected by the Associate Professors of the University from amongst themselves,].

(ix) Three persons of eminence to be nominated by the Chancellor;

(x) One principal of an affiliated college to be nominated by the chancellor; [2]*

[3]* * * * * * *

[4][(xii) One Aalim to be nominated by the Chancellor ; and

(xiii) One woman to be nominated by the Chancellor.]]

(2) The members of the Syndicate, other than *ex-officio* members, shall hold office for [5][three] years.

(3) The quorum for a meeting of the Syndicate shall be one half of the total number of members, a fraction being counted as one.

22. Powers and duties of Syndicate.—(1) The Syndicate shall be the executive body of the University and shall, subject to the provisions of this Act and the Statutes, exercise general supervision over the affairs and management of the property of the University.

(2) In particular and without prejudice to the generality of the foregoing provision, the Syndicate shall have the power—

(a) to hold, control and administer the property and funds of the University;

(b) to govern and regulate, with due regard to the advice of the Finance and Planning Committee in this behalf, the finances, accounts and investments of the University and, for that purpose, to appoint such agents as it may think fit;

(c) to consider the annual report and the annual and revised budget estimates and [6][approve the same] and to re-appropriate funds from one major head of expenditure to another;

(d) to transfer and accept transfer of movable or immovable property on behalf of the University;

(e) to enter into, vary, carry out and cancel contracts on behalf of the University;

[1] Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 10.
[2] Oniitted by the Quaid-e-Azam University (Second Amdt.) Ordinance, 1981 (7 of 1981),s. 2.
[3] Omitted by Ord. 31 of 1985 s. 10.
[4] Added by Ord. 7 of 1981, s. 2.
[5] Subs. ibid. for "two" which was subs. by Ordinance I of 1981, s. 7.
[6] Subs. by Ordinance 31 of 1985. s. 11.

(f) to cause proper books of account to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University;

(g) to invest any money belonging to the University, including any unapplied income, in any of the securities described in section 20 of the Trusts Act, 1882 (II of 1882), or in the purchase of immovable property or in such other manner as it may determine, with the like power of varying such investment;

(h) to receive and manage any property transferred and grants, bequests, trusts, gifts donations, endowments and other contributions, made to the University, and to administer any funds placed at the disposal of the University for specified purposes;

(i) to determine the form, provide for the custody and regulate the use of the Common Seal of the University;

(j) to provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for the purposes of the University, and to establish and maintain halls of residence and hostels or approve or license hostels or lodgings for the residence of students;

(k) to arrange for the inspection of the [1]* colleges and the Teaching Departments and Institutes;

(l) to institute Professorships, Associate Professorships, Assistant Professorships, Lecturerships and other teaching posts, or to suspend or abolish such posts;

(m) to create, suspend or abolish such administrative, research, extension or other posts as may be necessary;

(n) to appoint University Teachers and other officers on the recommendations of the Selection Board for Teaching and other posts on an initial monthly pay which is not below four hundred and fifty rupees;

(o) to appoint Professors Emeritus on such terms and conditions as may be prescribed;

(p) to confer with the prior approval of the Chancellor Honorary Degrees in accordance with the conditions prescribed;

(q) to prescribe the duties of Officers, Teachers and other employees of the University;

(r) to suspend, punish and remove from service in the prescribed manner officers (other than the Vice-Chancellor [2]* * * and the Treasurer), Teachers and other employees whom it is empowered to appoint;

[3]* * * * * * *

[1] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 8.
[2] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1981 (1 of 1981), s. 8.
[3] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 11.

(t) to appoint members to the various Authorities in accordance with the provisions of this Act;

[1][(u) to frame and approve the Statutes].

(v) to consider, and deal in the manner prescribed in sub-section (2) of section 28 with, the Regulations made by the Academic Council;

(w) to regulate, determine and administer all other matters concerning the University and to this end exercise all necessary powers not specifically mentioned in this Act and the Statutes;

(x) to delegate any of its powers to an Authority or officers or a Committee or sub-committee;

[2][(x-a) to advise the Chancellor on the grant of affiliation to an educational institution and the withdrawal of such affiliation; and]

(y) to perform such other functions as have been assigned to it by the other provisions of this Act or may be assigned to it by the Statutes.

23. Academic Council.—(1) The Academic Council shall consist of—

(i) the Vice-Chancellor, who shall be its Chairman;

[3]* * * * * * *

(ii) the Secretary, Ministry of Education, Government of Pakistan;

(iii) the Deans;

(iv) the Directors of institutes;

(v) the Principals;

(vi) the University Professors and Professors Emeritus ;

(vii) the Chairman of the Teaching Departments;

(viii) four Associate Professors, not being Chairmen of the Teaching Departments, to be elected by the Associate Professors;

(ix) four Assistant Professors and Lecturers to be elected by the Assistant Professors and Lecturers;

(x) four teachers of constituent colleges, having at least five years experience of teaching in a Degree College, elected from amongst themselves;

[1] Subs. *by the* Quaid-e-Azam University (Amdt) Ordinance, 1985(31 of 1985) S.11 for sub-clause "(u)".
[2] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance 1978 (26 of 1978), s. 8.
[3] New clause (ia) ins. by the University of Islamabad (Amdt.) Act, 1976 (60 of 1976), s. 11, have been omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1981, (I of 1981), s.7.

[1][(x-a) two Professors of affiliated colleges, having at least five years experience of teaching in a Degree College, elected from amongst themselves;]

(xi) three persons eminent in the arts, the sciences and the professions, of whom one shall be from each category, to be nominated by the Chancellor;

(xii) the Registrar;

(xiii) the Librarian;

(xiv) the Controller of Examinations.

(2) Members appointed by nomination or election shall hold office for three years.

(3) The quorum for a meeting of the Academic Council shall be one-third of the total number of members, fractions being counted as one.

24. Powers and duties of Academic Council.—(1) The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Act and the Statutes, have the power to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the University and the [2]* colleges.

(2) In particular and without prejudice to the generality of the foregoing provisions, the Academic Council shall have the power—

(a) to advise the Syndicate on academic matters;

(b) to regulate the conduct of teaching, research, and examinations;

(c) to regulate the admission of students to the courses of studies and examinations in the University;

(d) to regulate the conduct and discipline of the students of the University;

(e) to propose to the Syndicate schemes for the constitution and organisation of Faculties, Teaching Departments, Institutes and Boards of Studies;

(f) to consider and formulate proposals for the planning and development of teaching and research in the University;

(g) to make Regulations, on the recommendations of the Boards of Faculties and the Boards of Studies Prescribing the courses of studies and the syllabi for all University examinations:

Provided that, if the recommendations of a Board of Faculty or a Board of Studies, are not received by the prescribed date, the Academic Council may, subject to the approval of the Syndicate, continue for the next year the courses of studies already prescribed for an examination;

(h) to recognize the examinations of other Universities or examining bodies as equivalent to the corresponding examinations of the University;

[1] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance 1978 (26 of 1978), s.10.
[2] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 7.

(i) to regulate the award of studentships, scholarships, exhibitions, medals and prizes;

(j) to frame Regulations for submission to the Syndicates; and

(k) to appoint members to the various Authorities in accordance with the provisions of this Act; and

(l) to perform such other functions as may be prescribed by Statutes.

25. Constitution, functions and powers of other Authorities.—Subject to the provision of this Act, the constitution, functions and powers of the Authorities for which no specific provision, or insufficient provision, has been made in this Act shall be such as may be prescribed by Statutes.

26. Appointment of Committees by the Authorities.—The [1]* * Syndicate, the Academic Council and any other Authority may, from time to time, appoint such standing special or advisory committees, as it may deem fit, and may appoint to such committees persons who are not its members.

CHAPTER V

STATUTES, REGULATIONS AND RULES

27. Statutes.—(1) Subject to the provisions of this Act, Statutes may be made to regulate or prescribe all or any of the following matters, namely:—

(a) the constitution of pension, insurance, gratuity, provident fund and benevolent fund for University employees;

(b) the scales of pay and other terms and conditions of service of officers, Teachers and other employees of the University;

(c) the maintenance of the Register of Registered Graduates;

(d) admission of educational institutions to the privileges of the University and the withdrawal of such privileges;

(e) the conduct of elections for membership of the Authorities and related matters;

(f) the establishment of Faculties, Institutes, Colleges and other academic divisions;

(g) the powers and duties of officers and Teachers;

(h) the conditions under which the University may enter into arrangements with other institutions or with public bodies for purposes of research and advisory services;

(i) the conditions for appointment of Professors Emeritus and award of honorary degrees;

(j) efficiency and discipline of University employees; and

(k) all other matters which are to be or may be prescribed or regulated by statutes.

[1]Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 12.

[1][(2) The Syndicate shall frame and approve the Statutes:

Provided that the Syndicate shall not approve statutes affecting the constitution or powers of any Authority, until such Authority has been given an opportunity of expressing an opinion in writing upon the proposals:

Provided further that the draft of Statutes concerning any of the matters mentioned in clauses (a) and (b) of sub-section (1) shall be forwarded to the Chancellor and shall not be effective until it has been approved by the Chancellor.

(3) The Chancellor may, of his own motion, frame and approve Statutes concerning any of the matters mentioned in clauses (a) and (b) of sub-section (1).]

28. Regulations.—(1) Subject to the provisions of this Act and Statutes, Regulations may be made for all or any of the following matters, namely:—

(a) the general scheme of studies including the duration of courses and the number of subjects or papers for an examination;

(b) the courses of study for degrees, diplomas and certificates of the University;

(c) the manner in which the recognised teaching referred to in sub-section (1) of section 6 shall be organized and conducted;

(d) the admission of students to the University;

(e) the conditions under which students shall be admitted to the courses and the examinations of the University and shall become eligible for the award of degrees, diplomas and certificates;

(f) the conduct of examinations;

(g) fees and other charges to be paid by the students for admission to the courses of study and the examinations of the University;

(h) the conduct and discipline of students of the University;

(i) conditions of residence of the students of the University or the constituent colleges, including the levying of fees for residence in halls of residence and hostels;

(j) the approval and licensing of hostels and lodgings for students;

(k) the conditions under which a person shall carry on independent research to entitle him to a degree;

(l) the institution of fellowships, scholarships, exhibitions, medals and prizes;

(m) the institution of stipends and free and half-free studentships;

(n) the academic costume;

(o) the use of the Library;

[1]Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985). s. 13.

(p) the formation of Teaching Department, Institutes and Boards of Studies; and

(q) all other matters which are to be or may be prescribed by Regulations.

(2) The draft of Regulations shall be prepared by the Academic Council and shall be submitted to the Syndicate which may approve or withhold approval or refer it back to the Academic Council for reconsideration:

Provided that the Syndicate may frame a Regulation at its own initiative and approve it after calling for the advice of the Academic Council.

(3) No Regulation shall be valid unless it has been approved by the Syndicate.

29. Amendment and repeal of Statutes and Regulations.—The procedure for adding to, amending or repealing the Statutes and the Regulations shall be the same as that provided respectively for the framing or making of Statutes and Regulations.

30. Rules.—(1) The Authorities and the other bodies of the University may make rules consistent with this Act, the Statutes and the Regulations to regulate the conduct of their business and the time and place of meetings and related matters:

Provided that the Syndicate may direct the amendment or the annulment of any rules made by another Authority or body [1]* * * under this section:

Provided further that, if such other Authority or body is dissatisfied with such direction, it may [2][apply for review to the Syndicate] whose decision in the matter shall be final.

(2) The Syndicate may make rules to regulate any matter relating to the affairs of the University, which by this Act is not specifically required to be provided for by statutes or Regulations.

[3][CHAPTER V-A

AFFILIATION OF EDUCATIONAL INSTITUTIONS

30-A. Affiliation to be approved by Syndicate.— No educational institution shall be granted affiliation to, or admitted to the privileges of, the University except with the approval of the Syndicate and the Chancellor.

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30-B. Application for Affiliation.—(1) An educational institution applying for affiliation to the University shall make an application to the University and shall satisfy it—

(a) that the educational institution is under the management of a Government or of a regularly constituted governing body;

(b) that the financial resources of the educational institution are such as to enable it to make due provision for its continued maintenance and efficient working;

(c) that the strength and qualifications of the teaching and other staff, and the terms and conditions of their service, are adequate to make the provision for the courses of instructions, teaching or training to be undertaken by the educational institution;

[1] Omitted by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 14.
[2] Subs. *ibid*., s. 15.
[3] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 11.

(d) that the educational institution has framed proper rules regarding the efficiency and discipline of its staff and other employees;

(e) that the building in which the educational institution is to be located is suitable, and that provision will be made in conformity with the Statues and the Regulations for—

(i) the residence of students, not residing with their parents or guardians, in the hostels established and maintained by the educational institution or in hostels or lodgings approved by it; and

(ii) the supervision and physical and general welfare of students;

(f) that provision has been made for a library and adequate library services;

(g) that, where affiliation is sought in any branch of experimental sciences, due arrangements have been made for imparting instruction in that branch of science in a properly equipped laboratory, museum and other places of practical work;

(h) that due provision will, so far as circumstances may permit, be made for the residence of its Principal and members of the teaching staff in or near the educational institution or the place provided for the residence of students; and

(i) that the affiliation of the educational institution will not be injurious to the interests of education or discipline of any other educational institution in its neighbourhood.

(2) The Application shall further contain an undertaking that, after the educational institution is affiliated, any transference of, and charges in, the management and in the teaching staff, save in the case of Government colleges, shall forthwith be reported to the University, and that the teaching staff shall posses such qualifications as are, and may be, prescribed.

30C. Grant of affiliation.—The Syndicate may, after considering the report of the Affiliation Committee, grant or refuse to grant affiliation to an educational institution, and if it grants affiliation, it shall advise the Chancellor to assent to it:

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Provided that affiliation shall not be refused unless the educational institution has been given an opportunity to show cause why affiliation should not be refused on the grounds to be given in writing.

30D. Extension of affiliation. Where an educational institution desires to add to the courses of instruction in respect of which it is affiliated, the procedure prescribed for affiliation of educational institutions shall, so far as may be, be followed.

30E. Inspection and report.—(1) Every educational institution affiliated to the University shall furnish such reports, returns and other information as the University may require to enable it to judge the efficiency of the educational institution.

(2) The University shall cause every such educational institution to be inspected from time to time by one or more competent persons authorized by it in this behalf.

(3) The University may call upon any educational institution affiliated to it to take, within a specified period, such action as may appear to the University to be necessary in respect of any of the matters referred to in sub-section (1) of section 30B.

30F. Disaffiliation.—(1) If an educational institution affiliated to the University has failed to observe any of the conditions of its affiliations, or its affairs are conducted in a manner which is prejudicial to the interests of education, the rights conferred on the educational institution by affiliation may, on a report made by the Affiliation Committee and with the approval of the Syndicate and the sanction of the Chancellor, be withdrawn in whole or in part or modified:

Provided that the syndicate may, on a report of the affiliation committee, and after considering such representation as the educational institution may wish to make, restore to it such rights either in whole or in part.

(2) The procedure to be followed for the withdrawal of affiliation shall be such as may be prescribed.

30G. Appeal against decision of Syndicate.—An appeal shall lie to the [1][Chancellor] against the decision of the Syndicate refusing to affiliate an educational institution, or withdrawing in whole or in part, the rights conferred on such institution by affiliation, or against modification of such rights.].

CHAPTER VI

UNIVERSITY FUND

31. University Fund.—The University shall have a fund to which shall be credited its income from fees, donations, trusts, bequests, endowments, contribution, grants and all other sources.

32. Audit and accounts.—(1) The accounts of the University shall be maintained in such form and in such manner as may be prescribed.

(2) No expenditure shall be made from the funds of the University [2][if it is not included in the approved budget of the university nor] unless a bill for its payment has been audited by the University Auditor in conformity with the Statutes, the Regulations and the rules.

(3) The annual statement of the accounts of the University, signed by the Treasurer and the University Auditors, shall be submitted to the Government within six months of the closing of the financial year.

(4) The accounts of the University shall be audited once a year by an Auditor appointed by the Government for the purpose.

(5) The observations of the Government Auditor, together with such annotations as the Treasurer may make, shall be presented to the Syndicate.

[1] Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 15.
[2] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1981 (I of 1981), s.10.

CHAPTER VII

GENERAL PROVISONS

33. Opportunity to show cause.—Except as otherwise provided, no officer, Teacher or other employee of the University holding a permanent post shall be reduced in rank, or removed or compulsorily retired from service, unless he has been given a reasonable opportunity of showing cause against the action proposed to be taken.

34. Appeal to and review by the Syndicate.— (1) Where an order is passed punishing any officer (other than the Vice-Chancellor), Teacher or other employee of the University or altering or interpreting to his disadvantage the prescribed terms or conditions of his service, he shall, where the order is passed by the Vice-Chancellor or any other officer or teacher of the University, have the right to appeal to the Syndicate against the order, and, where the order is made by the Syndicate, have the right to apply to that Authority for review of that order.

(2) The appeal or application for review shall be submitted to the Vice-Chancellor who shall lay it before the Syndicate with his views.

[1][(3) No order on an appeal or application for review shall be passed without affording to the appellant or applicant, as the case may be, an opportunity of being heard.]

35. Pension, insurance, gratuity, provident fund and benevolent fund.—The University shall constitute for the benefit of its officers, Teachers and other employees in such manner and subject to such conditions as may be prescribed, such pension, insurance, gratuity, provident fund and benevolent fund scheme as it may deem fit.

(2) Where any provident fund is constituted under this Act, the provisions of the Provident Fund Act, 1925 (XIX of 1925), shall apply to such fund as if it were a Government Provident Fund and the University were the Government.

36. Commencement of term of office of members of Authorities.—When a member of a newly constituted Authoirty is elected, appointed or nominated, his term of office, as fixed under this Act shall commence from such date as may be prescribed.

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[2]**[36A. Member of an Authority to cease to be member in certain circumstances**.—An elected, appointed or nominated member of any Authority shall cease to be a member if he—

(a) absents himself, without the leave of such Authority, from three consecutive meetings thereof; or

(b) accepts any assignments which involves his absence from the University for a period of six months or more.]

37. Filling of casual vacancies in Authorities.—Any casual vacancy among the elected, appointed or nominated members of any Authority shall be filled, as soon as conveniently may be, by the person or persons or the body who elected, appointed or nominated the member whose place has become vacant and the person elected, appointed or nominated to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he fills would have been a member.

[1] Added by the Quaid-e-Azam University (Amdt.) Ordinance, 1984 (27 of 1984), s. 2.
[2] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1981 (7 of 1981), s. 3.

38. Filling of vacancies in Authorities in certain circumstances.—Where a vacancy in the membership of an Authority cannot be filled because of—

(a) the office the holder whereof was to be a member of the Authority *ex-officio* having ceased to exist;

(b) the organization, institution or other body, other than the University, having ceased either to exist or to function; or

(c) the occurrence of other circumstances in which it has become impracticable to fill the vacancy, the vacancy shall be filled in such manner as the Chancellor may direct.

39. Disputes about membership of Authorities.—If a question arises whether any person is entitled to be a member of any Authority, the matter shall be referred to a committee consisting of the Vice-Chancellor, the Judge of the Supreme Court of Pakistan who is a member of the Syndicate and the most senior of the Deans who are members of the Syndicate; and the decision of this committee shall be final and binding.

40. Proceedings of Authorities not invalidated by vacancies.—No act, proceeding, resolution or decision of any Authority shall be invalid by reason only of any vacancy in, or any defect in the constitution of, or in the election, appointment or nomination of any member of, the Authority.

41. First Statutes.—Notwithstanding anything to the contrary contained in this Act, the Statutes set out in the Schedule shall be deemed to be the Statutes framed under section 27 and shall remain in force until they are amended or replaced by new Statutes framed in accordance with this Act.

42. [*Repeal and Savings.***]** *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

43. [*Transitional Provisions.***]** *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

[1][43A. Tripartite mobility.—(1) Any Officer, teacher or other employee of the University shall, as the Chancellor may direct, serve in a Government department or an educational or research institution in the public interest:

Provided that the terms and conditions offered to him shall not be less favourable than those admissible to him in the University and that full benefit of his previous service shall be allowed to him:

Provided further that, in the case of a teacher, such direction shall be issued after consulting the Syndicate.

(2) The Chancellor may place the services of an employee of the Government or any other University or an educational or research institution at the disposal of the University in the public interest:

Provided that the terms and conditions offered to him shall not be less favourable than those enjoyed by him immediately before his services are placed at the disposal of the University and that full benefit of his previous service shall be allowed to him:

[1]Subs. by the Quaid-e-Azam University (Second Amdt.) Ordinance, 1981 (7 of 1981), s. 4 for the original section 43A which was added by Ord. 1 of 1981 s. 11.

Provided further that, in the case of a teacher, the Chancellor may consult the Selection Board of the University before placing his services at the disposal of the University.]

44. Removal of difficulties.—(1) If any difficulty arises as to the first constitution or reconstitution of any Authority upon the coming into force of this Act or otherwise in giving effect to the provisions of this Act, the Chancellor may, on the recommendation of the Vice-Chancellor, give appropriate directions to remove such difficulty.

[1][**44A. Dissolution of Associations or Unions of the University Employees**.—All Associations or Unions of the University employees, by whatever name called, shall stand dissolved:

Provided that the Vice-Chancellor may constitute Committees for the welfare and academic advancement of the employees.]

45. [*Repeal of Ordinance XXXIX of 1972*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s. 3 and Sch., II.*

THE SCHEDULE

(*See* section 41)

THE FIRST STATUTES

1. *The Faculties*.—(1) The University shall include the following Faculties and such other faculties as may be prescribed by Statutes, namely:—

(i) Faculty of Mathematical Sciences;

(ii) Faculty of Physical Sciences;

(iii) Faculty of Chemical Sciences;

(iv) Faculty of Biological Sciences;

(v) Faculty of Earth Sciences;

(vi) Faculty of Social Sciences [2][;]

[2][(vii) Faculty of Medicines.]

(2) There shall be a Board of each Faculty which shall consist of—

(i) the Dean of the Faculty to be [3][appointed] in the manner prescribed in paragraph (2) of Statute 2 [2][:]

[2][Provided that, in the case of subjects in a Faculty which are taught in the affiliated college or colleges only, —

[1]Added by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 16.
[2]Subs. and added by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 12.
[3]Subs. by the Quaid-e-Azam University (Second Amendment) Ordinance, 1981 (7 of 1981), s. 5.

(a) if there is only one such college, the principal of that college, or

(b) if there are more than one such college, the person elected by the Principals of such colleges from amongst themselves, shall be the Dean of the Faculty.]

(ii) the Professors, Associate Professors and Chairman of the Teaching Departments comprised in the Faculty;

(iii) two members of each Board of Studies comprised in the Faculty, to be nominated by the Board of Studies concerned ; and

(iv) three Teachers to be nominated by the Academic Council by reason of their specialised knowledge of the subjects which, though not assigned to the Faculty, have, in the opinion of the Academic Council, important bearing on the subjects assigned to the Faculty.

(3) The members mentioned in clauses (iii) and (iv) of paragraph 2 shall hold office for three years.

(4) The quorum for a meeting of the Board of a Faculty shall be one-half of the total number of members, a fraction being counted as one.

(5) The Board of each Faculty shall, subject to the general control of the Academic Council and the Syndicate, have the power—

(a) to co-ordinate the teaching and research work in the subject assigned to the Faculty;

(b) to scrutinise the recommendations of the Board of Studies Comprised in the Faculty in regard to the appointment of paper setters and examiners, except for research examiners, and to forward the panels of suitable papers setters and examiners for each examination to the Vice-Chancellor;

(c) to consider any other academic matter relating to the Faculty and to report thereon to the Academic Council; and

(d) to perform such other functions as may be prescribed by Statutes.

2. *Dean.*—(1) There shall be a Dean of each Faculty who shall be the Chairman and convener of the Board of the Faculty.

[1][(2) The Dean of each Faculty shall be appointed by the Chancellor on the recommendation of the Vice-Chancellor from amongst the Professors in the Faculty,]

(3) The Dean shall hold office for [2][five] year.

(4) The Dean shall present candidates for admission to degrees (except honorary degrees) in the courses falling within the purview of the Faculty.

(5) The Dean shall exercise such other powers and perform such other duties as may be prescribed.

[1]Subs. by the Quaid-e-Azam University (Second Amendment) Ordinance, 1981 (7 of 1981), s. 5, which was previously subs. by Ord. 1 of 1981, s. 12.
[2]Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 17.

3. *Teaching Departments and Chairmen*.—(1) There shall be a Teaching Department of each subject or group of subjects, as may be prescribed by Regulations, and each Teaching Department shall be headed by a Chairman.

[1][(2) The Chairman of a Teaching Department or the Director of an Institute shall be appointed by the Syndicate on the recommendations of the Vice Chancellor from amongst the [2][five] most senior Professors and Associate Professor of the Department for a period of three years :

Provided that in Departments in which there is no Professor or Associate Professor, the Department shall be looked after by Dean of the Faculty with the help and assistance of [2][a teacher of the Department nominated by the Vice-Chancellor.]]

(3) The Chairman of a Department shall plan, organize and supervise the work of the Department and shall be responsible to the Dean for the work of his Department.

4. *Boards of Studie***s**.—(1) There shall be a separate Board of Studies for each subject or group of subjects, as may be prescribed by Regulations.

(2) Each Board of Studies shall consist of—

(i) the Chairman of the Teaching Department concerned;

(ii) all Professors and Associate Professors in the Teaching Department concerned;

(iii) two University Teachers, other than Professors or Associate Professors, to be appointed by the Academic Council;

(iv) three Teachers, other than University Teachers, to be appointed by the Syndicate;

(v) one expert to be appointed by the Vice-Chancellor:

Provided that, in the case of subjects which are taught in the constituent colleges [3][or affiliated colleges] only, the Board of Studies shall consist of—

(a) a Chairman to be appointed by the Syndicate;

(b) five teachers of the colleges to be appointed by the Academic Council; and

(c) two experts to be appointed by the Vice-Chancellor.

(3) The term of office of members of the Board of Studies other than *ex-officio* members shall be three years.

(4) The quorum for a meeting of the Board of Studies shall be one-half of the number of members, a fraction being counted as one.

(5) The Chairman of the University Teaching Department concerned shall be the Chairman and Convener of the Board of Studies. Where in respect of a subject there is no University Teaching Department, the Chairman of the Board of Studies shall be appointed by the Syndicate.

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[1] Subs. by Ordinance, 7 of 1981, s. 5 which was earlier amended by Ord. I of 1981.
[2] Subs, by the Quaid-e-Azam University (Amdt.) Ordinance, 1985(31 of 1985), s. 17.
[3] Ins. by the Quaid-e-Azam University (Amdt.) Ordinance, 1978 (26 of 1978), s. 12.

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(6) The functions of the Board of Studies shall be—

(a) to advise the Authorities on all academic matters connected with instruction, research and examination in the subject or subjects concerned;

(b) to propose curricula and syllabi for all degree, diploma and certificate courses in the subject or subjects concerned;

(c) to suggest a panel of names of paper setters and examiners in the subject or subjects concerned; and

(d) to perform such other functions as may be prescribed by Regulations.

5. *Advanced Studies and Research Board*.—(1) The Advanced Studies and Research Board shall consist of—

(i) the Vice-Chancellor, who shall be its Chairman;

(ii) the Deans;

(iii) three University Professors, other than Deans, to be appointed by the Syndicate; and

(iv) three University Teachers having research qualifications and experience, to be appointed by the Academic Council.

(2) The term of office of the members of the Advanced Studies and Research Board other than *ex-officio* members shall be three years.

(3) The quorum for a meeting of the Advanced Studies and Research Board shall be one-half of the total number of members, a fraction being counted as one.

(4) The functions of the Advanced Studies and Research Board shall be—

(a) to advise the Authorities on all matters connected with the promotion of advanced studies and research in the University;

(b) to consider and report to the Authorities on the institution of research degrees in the University;

(c) to propose Regulations regarding the award of research degrees;

(d) to appoint supervisors for research students and to determine the subjects of their thesis ;

(e) to recommend panels of names of paper setters and examiners for research examinations after considering the proposals of the Board of Studies in this behalf; and

(f) to perform such other functions as may be prescribed by Statutes.

6. *Selection Board*.—[1][(1) The Selection Board shall consist of—

(1) the Vice-Chancellor who shall be its Chairman;

[1]Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 17.

(2) Chairman, University Grants Commission, Islamabad.

(3) Secretary, Ministry of Education, Islamabad.

(4) The Chairman, of the Federal Public Service Commission or a member nominated by him;

(5) The Chief Justice of Pakistan or a Judge of the Supreme Court of Pakistan nominated by him;

(6) One member of the Syndicate and two other men of eminence, to be nominated by the Chancellor, provided that none of the three is an employee of the University;

(7) The Dean of the Faculty concerned;

(8) The Chairman of the teaching Department concerned:

Provided that when the Board meets for selection of officers other than teachers, the Dean of the Faculty and the Chairman of the Teaching Department shall not take part in the proceedings of the Board].

(2) The members mentioned in clause (v) of paragraph (1) shall hold office for two years.

(3) The quorum for a meeting of the Selection Board shall be three.

(4) No member who is a candidate for the post to which appointment is to be made shall take part in the proceedings of the Board.

(5) In selecting candidates for the posts of Professors and Associate Professors, the Selection Board shall co-opt or consult three experts in the subject concerned and, in selecting candidates for the other teaching posts, two experts in the subject concerned, to be nominated by the Vice- Chancellor from a standing list of experts for each subject approved by the Syndicate on the recommendation of the Selection Board and revised from time to time.

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7. *Functions of Selection Board*.—(1) The Selection Board for Teaching and other posts shall consider the applications received in response to an advertisement and recommend to the Syndicate the names of suitable candidates for appointment to such posts.

(2) The Selection Board may recommend to the Syndicate the grant of a higher initial pay in a suitable case for reasons to be recorded.

(3) The Selection Board may recommend to the Syndicate the appointment of an eminently qualified person to a Professorship in the University on terms and conditions which differ in any particular from those prescribed.

(4) In the event of an unresolved difference of opinion between the Selection Board and the Syndicate, the matter shall be referred to the Chancellor whose decision shall be final.

[1][*7A. Affiliation Committee*.—(1) The Affiliation Committee shall consist of—

(i) a Chairman to be nominated by the Syndicate;

(ii) two Professors to be nominated by the Syndicate;

(iii) one representative of the University Grants Commission to be nominated by that Commission;

(iv) one representative of the Ministry of Education to be nominated by that Ministry; and

(v) an officer of the University to be nominated by the Vice-Chancellor, who shall also act as Secretary to the Committee.

(2) The term of office of the members of the Affiliation Committee, other than *ex-officio* members, shall be two years.

(3) The Affiliation Committee may co-opt such experts, not exceeding two, as it may deem necessary.

(4) The quorum for a meeting of the Affiliation Committee shall be three.

(5) The functions of the Affiliation Committee shall be—

(a) to make inspection of an educational institution seeking affiliation to, or admission to the privileges of the University and make a report to the Syndicate;

(b) to enquire into complaints of breach of any of the conditions of affiliation by the affiliated college and make a report to the Syndicate; and

(c) to perform such other functions as may be prescribed by Regulations].

8. *Finance and Planning Committee*.—(1) The Finance and Planning Committee shall consist of—

(i) the Vice-Chancellor, who shall be its Chairman;

[2]* * * * * * *

(ii) one member of the Senate, to be appointed by the Senate;

(iii) one member of the Syndicate, to be appointed by the Syndicate;

(iv) two members of the Academic Council, to be appointed by the Academic Council;

(v) one member to be nominated by the Chancellor; and

(vi) the Treasurer.

(2) The term of office of the members other than the Vice-Chancellor and the Treasurer shall be three years.

(3) The quorum for a meeting of the Finance and Planning Committee shall be three.

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[1]Ins. by the Quaid-e-Azam University (Amdt.) Ordinance. 1978 (26 of 1978). s. 12.

[2]New clause (ia) ins. by the University of Islamabad (Amdt.) Act, 1976 (60 of 1976), s. 12 has been omitted by the Quaid-e-Azam University (Amdt.) Ordinance. 1981 (1 of 1981), s.12.

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9. *Functions of the Finance and Planning Committee*. The functions of the Finance and Planning Committee shall be—

(a) to consider the annual statement of accounts, the annual revised budget estimates and advise the syndicate thereon;

(b) to review periodically the financial position of the University;

(c) to advise the Syndicate on all matters relating to planning, development, finance, investments and accounts of the University; and

(d) to perform such other functions as may be prescribed by Statutes.

10. *Discipline Committee*.—(1) The Discipline Committee shall consist of—

(i) a Chairman, to be nominated by the Vice-Chancellor;

(ii) [1][one] Professors, to be nominated by the Academic Council;

(iii) one member, to be nominated by the Syndicate;

(iv) the Officer Incharge of Students Affairs who shall also be its secretary; and

[2][(v) one Professor or Associate Professor to be nominated by the Vice-Chancellor.

(2) The term of office of the members of the Committee, other than *ex-officio* members, shall be two years.

(3) The quorum for a meeting of the Discipline Committee shall be four.

(4) The functions of the Discipline Committee shall be—

(a) to propose Regulations to the Academic Council for the conduct of University students, maintenance of discipline and for dealing with cases of indiscipline; and

(b) to perform such other functions as may be prescribed by Regulations.

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[1]Subs. by the Quaid-e-Azam University (Amdt.) Ordinance, 1985 (31 of 1985), s. 17, for "two".
[2]Clause (v) which was previously amended by the University of Islamabad (Amdt.) Act. 1976 (60 of 1976), s. 12, have been subs. *ibid*..

THE SOUTH ASIAN STRATEGIC STABILITY INSTITUTE UNIVERSITY ISLAMABAD ACT, 2013

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THE SOUTH ASIAN STRATEGIC STABILITY INSTITUTE UNIVERSITY ISLAMABAD ACT, 2013

ACT No. VI OF 2013

[11th March, 2013]

An Act to provide for the establishment of South Asian Strategic Stability Institute (SASSI) University, Islamabad

WHEREAS it is expedient to provide for the establishment of South Asian Strategic Stability Institute (SASSI) University at Islamabad and for matters connected with and ancillary thereto;—

It is hereby enacted as follows:

CHAPTER I

PRELIMINARY

1. Short title and commencement. — (l) This Act may be called the South Asian Strategic Stability Institute University Islamabad Act, 2013.

(2) It shall come into force at once.

2. Definitions.— In this Act, unless there is anything repugnant in the subject or context, . —

(i) "Academic Council" means the Academic Council of the University;

(ii) "Authority" means any of the authorities of the University;

(iii) "Affiliated institution" means Educational institution authorized by the board to conduct academic programs, research and development projects as approved by the University;

(iv) "Board" means the Board of Governors of the University;

(v) "Board of trustees" means Board of Trustees of the University;

(vi) "Chancellor" means the Chancellor of the University;

(vii) "College" means a constituent college, department, Institute or Centers;

(viii) "Commission" means the Higher Education Commission of Pakistan;

(ix) "Constituent college" means an educational institution, by whatever manner described; maintained and administered by the University;

(x) "Controller" means the head of examination department of the University;

(xi) "Dean" means the head of a faculty of the University;

(xii) "Department" means teaching department of the University;

(xiii) "Director" means the head of an institute established as a constituent institute by the University;

(xiv) "Executive Committee" means the Executive Committee of the University;

(xv) "Faculty" means an administrative and academic unit of the University consisting of one or more departments. It also includes any Professor, Associate Professor, Assistant Professor or Lecturer, tutor, engaged whole-time or part-time by the University, or by-a constituent college, institute or Centre;

(xvi) "Government" means the Federal Government;

(xvii) "Institute" means an institute or Centre, maintained and administered by the University;

(xviii) "Officer" means any officer of the University;

(xix) "Patron" means the Patron of the University;

(xx) "prescribed" means prescribed by the statutes, regulations or rules;

(xxi) "Professor Emeritus" means a retired Professor appointed by the Chancellor on honorary basis;

(xxii) "Principal" means the head of a college, or the institution under the university by whatever name or the designation;

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(xxiii) "Registrar" means the Registrar of the University;

(xxiv) "Committee" means the committee set up by the Board of Trustees;

(xxv) "Statutes", "regulations" and "rules" mean respectively the statutes, regulations and rules made under this Act;

(xxvi) "Trust" means the South Asian Strategic Stability Institute SASSI Trust;

(xxvii) "University" means South Asian Strategic Stability Institute University Islamabad, established under this Act; and

(xxviii) "Vice-Chancellor" means the Vice-Chancellor of the University.

CHAPTER II

THE UNIVERSITY

3. Establishment and incorporation of the University.— (1) There shall be established a University to be called as the South Asian Strategic Stability Institute University Islamabad, consisting of,—

(a) the Patron, the Chancellor, the Vice-Chancellor, the members of the Board and the Board of Trustees;

(b) the members of Executive Committee, Deans, the Chairmen of the teaching departments and members of the Academic Councilor any other Councils, Committee or Advisory Committees, as the Board of Governors may establish or authorize from time to time of the University;

(c) the members of the boards, committees and other bodies as the Board may establish;

(d) the members of the Faculties and students of the University and its constituent units in-accordance with the terms prescribed from time to time, and all other; and

(e) such other officers and members of the staff as the Board may, from time to time, specify.

(2) The University shall be a body corporate by the name of South Asian Strategic Stability Institute (SASSI) University, having perpetual succession and a common seal, with powers. Among others, to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any movable and immovable property which may have become vested in or been acquired by it.

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(3) The principal seat of the University shall be at Islamabad and it may set up its campuses, colleges, institutes, offices, research or study centers and other facilities at such places in Pakistan as well as abroad as the Board of Governors may determine. The additional campuses shall be set up in other parts of the country, and in other parts of the world.

(4) Notwithstanding anything contained in any other law for the time being in force, the University shall have academic, financial and administrative autonomy, including the powers to employ officers, teachers and other employees on such terms as may be prescribed, subject to the terms of this Act.

(5) In particular and without prejudice to the authority granted to the Commission by the law, the Government or an authority or auditor appointed by the Government shall have no power to question the policy underlying the allocation of resources approved by the Board in the annual budget of the University.

4. Powers and purposes of the University. — The University shall have the following powers, namely:—

(i) to promote and dissemination of knowledge and technology and to provide education, training, research, demonstration and scholarship in such branches of learning, as it may determine.

(ii) to make provisions for research, service to society and for the application, advancement and dissemination of knowledge by employing information technology including satellite, television, internet etc., or through conventional and innovative methods in the fields of management sciences, medical sciences, computer sciences, professional psychology strategic studies, security studies, environmental sciences, engineering and such other disciplines from the fields of natural and social sciences as it may determine;

(iii) to determine courses for study at the under graduate level in its constituent units as well as in its affiliated institutions, centers and colleges;

(iv) to prescribe courses of studies to be conducted by it and its affiliated constituents units and appropriate bodies;

(v) to hold examinations and to award and confer degrees, diplomas, certificates and other academic distinctions to and on persons who have been admitted to and have passed its examinations under prescribed conditions;

(vi) to prescribe the terms and conditions of employment of the officers, Faculty and other employees of the University;

(vii) to affiliate itself or associate with any other Institutions or Universities and relevant bodies whether national or international;

(viii) to pursue and coordinate research innovation and development;

(ix) to decide teaching methods and strategies in order to ensure most effective research and academic programmes;

(x) to use the financial and other resources allocated to it for execution of its functions;

(xi) to engage, where necessary, any persons on contract of specified duration and to specify the terms of each engagement;

(xii) to confer honorary degrees or other distinctions on approved persons in the manner prescribed by the board of Governors in consultation with board of Trustees for the purpose;

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(xiii) to confer degrees on the person who have carried out an independent research under prescribed conditions;

(xiv) to liaison with other research or academic organizations, industry and the relevant organizations or institutions to promote public private partnership, innovation and research, development, industrialization for the purposes of education, training and development;

(xv) to provide for such instruction for persons not being students of the University as it may prescribe and to grant certificates and diplomas to such persons;

(xvi) to institute programs for the academic collaboration and exchange of students and Faculty between the University and other universities, educational institutions and research organizations, inside as well as outside Pakistan;

(xvii) to maintain linkages with alumni and the industry and the relevant bodies;

(xviii) to develop and implement fund-raising plans;

(xix) to provide and support the academic development of the faculty of the University;

(xx) to affiliate and disaffiliate educational institutions or relevant oganizations under prescribed conditions;

(xxi) to inspect colleges and other educational institutions affiliated or seeking affiliation with it;

(xxii) to accept the examinations passed and. the period of study spent by students of the University at other universities and places of learning equivalent to such examinations and periods of study in the University, as it may prescribe, and to withdraw such acceptance;

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(xxiii) to co-operate with other universities, public authorities or private organizations, inside as well as outside Pakistan, in such manner and for such purposes as it, may prescribe;

(xxiv) to institute professorships, associate professorships, assistant professorships and lectureships and any other posts and to appoint persons thereto;

(xxv) to create posts for teaching, research, extension, administration and other related purposes and to appoint persons thereto;

(xxvi) to recognize selected members of teaching staff of colleges or educational institutions admitted to the privileges of the University or such other persons, as it may deem fit, as University Faculty;

(xxvii) to institute and award fellowships, scholarships, bursaries, medals and prizes under prescribed conditions;

(xxviii) to establish teaching departments, schools, colleges, faculties, institutes, workshops, laboratories, Museums and other centers of learning for the development of teaching and research and to make such arrangements for their maintenance, management and administration as it may prescribe;

(xxix) to maintain order, discipline and security on campuses of the University and the colleges as per the rules and regulations of the University;

(xxx) to promote extra-curricular and recreational activities of the students and to make arrangements for promoting their health and general welfare;

(xxxi) to demand and receive such fees and other charges as it may determine from time to time;

(xxxii) to make provisions for research, advisory or consultancy services and with these objects to enter into arrangements with other institutions, public or private bodies, commercial and industrial enterprises relevant Government, International, Nongovernmental Bodies, under prescribed conditions;

(xxxiii) to enter into, carry out, vary or cancel contracts;

(xxxiv) to receive and manage property transferred and grants, contributions made to the University and to invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions and convert one kind of property into other in such manner as it may deem fit;

(xxxv) to provide for the printing and publication of research and other works:

(xxxvi) to do all such other acts and things. whether incidental to the powers aforesaid or not, as may be requisite or expedient in order to further the objectives of the University as a place of education. learning and research; and

(xxxvii) to decide virtual, online and distance teaching methods and strategies in order to ensure the conduct of most effective educational and training programs in the light of policy on the subject made by the Board of trustees.

5. University open to all classes, creeds, etc.— The University shall be open to all persons of either gender and of whatever religion, race, creed, class, color or domicile who qualify for the admission as set forth in the rules and regulations and the criteria and the policy maintained by the body and no person shall be denied privileges of the University on the ground of religion. race, caste, creed, class, color or domicile.

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6. Teaching at the University.— (1) All recognized teaching in various courses shall be conducted by the University or the colleges in the prescribed manner and may include lectures, tutorials, discussions, seminars, demonstrations and other methods of instruction as well as practical work in the laboratories, hospitals, workshops and other organizations as it may deem appropriate.

(2) The authority responsible for organizing recognized teaching shall be such as may be prescribed.

CHAPTER III

OFFICERS OF THE UNIVERSITY

7. Officers of the University.—— The following shall be the officers of the University, namely:-

(a) Patron;

(b) Chancellor;

(c) Vice-Chancellor;

(d) Deans;

(e) Principals of the constituent colleges;

(f) Head of the teaching and research departments;

(g) Registrar;

(h) Treasurer;

(i) Controller of examinations and academic affairs; and

(j) such other persons as may be prescribed by the statutes or regulations or by the Board.

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8. Patron.—— (1) The Patron shall be appointed by the Trust.

(2) The Patron shall, when present, preside at the convocation of the University. In the absence of the Patron, the Board may request a person of eminence or the Chancellor to preside over the convocation of the University.

(3) The Patron shall have the authority to annul any decision or action of the Board of Governors, which he thinks was taken against the interest of academic excellence, religious and cultural ideology and national integrity.

9. Visitation.— (1) The Patron may, in accordance with the terms and procedures as may be prescribed, cause an inspection or inquiry to be made at the request of the Board of trustees or on his own motion in respect of any matter connected with affairs of the University and shall, from time to time, direct any person or persons to inquire into or carry out inspection of,-

(a) the University, its building, laboratories, libraries and other facilities;

(b) any institution, department or hostel maintained by the University;

(c) the adequacy of financial and human resources;

(d) the teaching, research, curriculum, examination and other matters of the University; and

(e) such other matters as the Patron may specify.

(2) The Patron shall communicate to the Board of trustees his views with regard to the result of visitation and shall, after ascertaining the views of the Board, advise the Chancellor on the action to be taken by it.

(3) The Chancellor shall, within such time as may be specified by the Patron, communicate to him such action, if any, as has been taken or may be proposed to be taken upon the results of visitation.

(4) The Chancellor shall communicate to the Board his views with regard to the results of inspection or inquiry and shall after ascertaining the views of said board, advice the action to be taken.

(5) Where the Board of Governors as per Chancellor's direction does not, within the time specified, take action to the satisfaction of the Patron, the Patron may issue, in consultation with the board of trustees, such directions, as he deems fit and the Board shall comply with all such directions.

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10. Appointment and removal of Patron.— The Patron may be appointed for a fixed period of time two years and can be extended for another term of same length. He may be removed before expiry of his term by the Board of trustees resolution on any misconduct.

11. Chancellor.— (l) The Chancellor of the University shall be appointed by the board of Trustees to hold the office for a term determined by the Trust.

(2) The Chancellor shall in the absence of Patron, preside over the convocations and meetings of the university of which his presence is desirable in the light of business being transacted. Every proposal to confer an honorary degree shall be subject to confirmation of the Chancellor.

(3) Where the Chancellor is satisfied that the proceedings or orders of any authority are not in accordance with provision of the act, the statues, regulations or rules, he may after, calling upon such

authority to show cause in writing, annul such proceedings or order, after the final approval from the board of trustees.

12. Appointment and removal of the Chancellor.— (1) The terms of the office of chancellor shall be for period of three years:

Provided that there will be no bar to appoint a chancellor for a second or subsequent term.

(2) The Board of trustees may, in consultation with the patron, remove the chancellor; if he, —

(a) has become of unsound mind; or

(b) has been incapacitated to function as member of such authority; or

(c) has been convicted by a court of law of Pakistan of an offence involving moral turpitude; or

(d) on the resolution of the board of trustees for misconduct.

13. Vice-Chancellor.— (1) There shall be a Vice-Chancellor of the University who shall be appointed by the Board of Trustees in consultation with the chancellor. The Vice-Chancellor shall be an eminent academician or a distinguished administrator and shall be appointed on such terms and conditions as may be prescribed.

(2) The Vice-Chancellor shall be the chief executive officer of the University responsible for all administrative and academic, functions of the University and for ensuring that the provisions of this Act, statutes, regulations and rules are faithfully observed.

(3) He shall have the overall responsibility for the direction, organization, administration and programmes of the university, in accordance with the guidelines and general policies formulated by the board of governors and for the implementation of the decisions and policies of the board.

(4) The Vice-Chancellor shall, if present, be entitled to attend any meeting of any authority or body of the University.

(5) The Vice-Chancellor may, in an emergency that in his opinion requires an immediate action ordinarily not in his competence, take such action and report to the Board.

(6) The Vice-Chancellor shall be appointed for a renewable tenure of five years on terms and conditions prescribed by statutes. The tenure of an incumbent. Vice-Chancellor shall be renewed by the Chancellor on receipt of a resolution of the Board in support of such renewal and under recommendation of Board of trustees:

Provided that the Chancellor may call upon the Board to reconsider such resolution once.

(7) The Board may, pursuant to a resolution in this behalf passed by simple majority vote of its membership, and on the final recommendation of the board of trustees recommend to the Chancellor the removal of the Vice-Chancellor on the ground of inefficiency, moral turpitude or physical or mental incapacity or gross misconduct, including misuse of position for personal advantage of any kind:

Provided that the Chancellor may make a reference to the Board stating about inefficiency, moral turpitude or physical or mental incapacity or gross misconduct on the part of the Vice-Chancellor that has come to his notice. After consideration of the reference, the Board under recommendation may, pursuant to a resolution in this behalf passed by simple majority of its membership, recommend to the Chancellor the removal of the Vice-Chancellor:

Provided further that prior to a resolution for removal of the Vice-Chancellor being voted upon, the Vice-Chancellor shall be given an opportunity of being heard.

(8) A resolution recommending removal of the Vice-Chancellor shall be submitted to the Chancellor forthwith. The Chancellor may accept the recommendation and order removal of the Vice-Chancellor or return the recommendation to the Board of Governors.

(9) At any time when office of the Vice-Chancellor is vacant or the Vice Chancellor is absent or is unable to perform functions of his office due to illness or some other cause, the Board of Governors shall make such arrangements for performance of the duties of the Vice-Chancellor as it may deem fit.

(10) The Vice-Chancellor shall also have the following powers, namely:—

(a) to oversee, monitor and supervise all academic activities, including examinations and applied research to ensure that proper academic standards are maintained, in consultation with the academic council and the board of governors.

(b) to direct, faculty, scholars, officers and other employees of the University to take up such assignments in connection with examination, administration and such other activities in the University, as he may consider necessary for purposes of the University;

(c) to sanction by re-appropriation an amount, not exceeding an amount prescribed by the Board, for an unforeseen item not provided for in the budget;

(d) to make appointment of such categories of employees of the University and in such manner, as may be prescribed by statutes;

(e) to suspend, punish and remove from service, in accordance with prescribed procedure, officers, teachers and other employees of the University except those appointed by or with approval of the Board;

(f) to delegate, subject to such conditions. as may be prescribed, any of his powers under this Act to an officer or officers of the University; and

(g) to exercise and perform such other powers and functions as may be prescribed.

14. Dean.— (l) There shall be a Dean of each faculty, department, college, institution or centre to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The dean shall be incharge of the faculty and shall assist the Vice Chancellor on matters relating to teaching, research, academic program and extension of other development projects.

(3) Subject to overall supervision of the Vice-Chancellor, the dean shall formulate and recommend to the Academic Council, rules and regulations relating to academic and research matters of the faculty.

(4) The dean shall also have the following powers, namely:-

(a) to collaborate with universities, industry and other research organizations;

(b) to formulate recommendations to the Academic Council on the courses of study to be taught in different departments of the faculty;

(c) to co-ordinate the award of fellowships, stipends, medals and prizes;

(d) to co-ordinate the teaching and research work of the faculty;

(e) to perform such other functions and exercise such other powers as may be entrusted or delegated to him by the Board or the Vice Chancellor; and

(f) to delegate any of his powers to appropriate levels of management. subject to such conditions as he may deem fit.

15. Registrar.—(1) There shall be a Registrar of the University to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions, as may be prescribed.

(2) The experience as well as professional and academic qua1ifications necessary for appointment to the post of the Registrar shall be as may be prescribed.

(3) The Registrar shall be a full-time officer of the University and shall,—

(a) be the administrative head of the secretariat of the University and be responsible for the provision of secretariat support to the authorities of the University;

(b) be the custodian of the common seal and the academic record of the University;

(c) maintain a register of registered graduates in the prescribed manner;

(d) supervise the process of election, appointment or nomination of members to the various authorities and other bodies in the prescribed manner; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Registrar shall be a renewable period of three years:

Provided that the Board may, on advice of the Vice-Chancellor, terminate appointment of the Registrar on grounds of inefficiency or misconduct in accordance with prescribed procedure.

16. Treasurer.— (1) There shall be a Treasurer of the University to be appointed by the Chancellor on recommendation of the Vice-Chancellor, on such terms and conditions as may be prescribed.

(2) The experience as well as professional and academic qualifications necessary for appointment to the post of the Treasurer shall be as may be prescribed.

(3) The Treasurer shall be the chief financial officer of the University and shall,—

(a) manage the assets, liabilities, receipts, expenditures, funds and investments of the University;

(b) prepare annual and revised budget estimates of the University and present them to the Executive Committee or a committee thereof for approval and incorporation in the budget to be presented to the Board;

(c) ensure that funds of the University are expended on the purposes for which they are provided;

(d) have accounts of the University audited annually; and

(e) perform such other duties as may be prescribed.

(4) The term of office of the Treasurer shall be for a renewable period of three years:

Provided that the Board may, on advice of the Vice-Chancellor, terminate the appointment of the Treasurer on grounds of inefficiency or misconduct in accordance with prescribed procedure.

17. Controller of examinations.— (1) There shall be a Controller of examinations to be appointed by the Board on recommendation of the Vice-Chancellor on such terms and conditions as may be prescribed.

(2) The minimum qualifications necessary for appointment to the post of the Controller of examinations shall be as may be prescribed.

(3) The Controller of examinations shall be a full-time officer of the University and shall be responsible for all matters connected with the conduct of examinations and shall perform such other duties as may be prescribed.

(4) The Controller of examinations shall be appointed for a renewable term of three years:

Provided that the Chancellor may, on advice of the Vice-Chancellor, terminate appointment of the Controller of examinations on grounds of inefficiency or misconduct in accordance with prescribed procedure.

CHAPTER IV

AUTHORITIES OF THE UNIVERSITY

18. Authorities.— (1) The following shall be the authorities of the University, namely:

(a) authorities established by the Act,—

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(i) Board;

(ii) Executive Committee;

(iii) Academic Council; and

(iv) Board of Advance Study and Research; and

(b) authorities to be established by the statutes,—

(i) board of studies;

(ii) selection board;

(iii) finance and planning committee;

(iv) search committee for appointment of the Vice-Chancellor;

(v) representation committees for appointment to the Board;

(vi) Board of The Trustees;

(vii) quality assurance committee;

(viii) discipline committee; and

(ix) such other authorities as may be prescribed by the Board.

19. Board of Governors.— (1) The body responsible for governance of the University shall be described as the Board and shall consist of the following, namely:—

(a) the Chairmen of the Trust who shall be a chairperson of the board (the board of governors);

(b) the Chancellor;

(c) the Vice-Chancellor;

(d) one member of the Government not below the rank of Additional Secretary from any Ministry of Government;

(e) four persons from society at large being persons of distinction in the fields of administration, government, management, education, academics, law, accountancy, medicine, fine arts, architecture, agriculture, science, technology, engineering, social and natural sciences and such that the appointment of these persons reflects a balance across the various fields:

Provided that special focus or affiliation of the University, to be declared in the manner prescribed, may be reflected in the number of persons of distinction in an area of expertise relevant to the University who are appointed to the Board;

(f) one person nominated by the Patron of the University;

(g) two persons from the academic community of the country, other than an employee of the University, at the level of professor or principal of a college nominated by the Board of Governors or Chancellor; and

(h) one person nominated by the Higher Education Commission.

(2) The number of members of the Board of Governors described under clauses (e) to (g) of subsection (1) may be increased by the Board of Governors through statutes subject to the condition that total membership of the Board does not exceed twenty-one, with a maximum of five University

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teachers (faculty) and the increase is balanced, to the extent possible, across different categories specified in subsection (1).

(3) Appointment of persons described under clause (e) of sub-section (1) shall be made in accordance with procedure as may be prescribed. All appointments to the Board shall be made by the Chancellor in consultation of the board of trustees and the Chairman of the Board will be permanent member of the Board of Governor with veto powers.

(4) Members of the Board, other than *ex officio* members, shall hold office for three years. One-third of the members, other than *ex officio* members, of the first restructured Board, to be determined by lot, shall retire from office on expiration of one year from the date of appointment by the Chancellor. One-half of the remaining members, other than *ex officio* members, of the first restructured Board, to be determined by lot, shall retire from office on expiration of two years from the date of appointment and the remaining one-half, other than *ex officio* members, shall retire from office on expiration of the third year.

(5) The Board shall meet at least twice in a calendar year.

(6) Service on the Board shall be on honorary basis:

Provided that actual expenses may be reimbursed as may be prescribed.

(7) The Registrar shall be secretary of the Board.

(8) In absence of the Chancellor, meetings of the Board shall be presided over by such member, not being an employee of the University or the Government, as the Chancellor may, from time to time, nominate. The member so nominated shall be convener of the Board.

(9) Unless otherwise prescribed by this Act, all decisions of the Board shall be taken on the basis of opinion of a majority of the members present. In the event of the members being evenly divided on any matter, the person presiding over the meeting shall have a casting vote.

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(10) The quorum for a meeting of the Board shall be two thirds of its membership, a fraction being counted as one.

20. Powers and functions of the Board of Governors.— (1) The Board shall have power of general supervision over the University and shall hold the Vice-Chancellor and the authorities accountable for all functions of the University.

(2) The Board shall have all powers of the University not expressly vested in an authority or officer by this Act and all other powers not expressly provided by this Act that are necessary for performance of its functions but which are not inconsistent with the provisions of this Act or the statutes, regulations and rules made thereunder.

(3) Without prejudice to the generality of the foregoing powers, and subject to the provision of this Ordinance, the statutes and prior approval of the board of trustees, the Board shall have the powers,—

(a) to approve proposed annual plan of work, annual and revised budgets, annual report and annual statement of accounts;

(b) to hold, control and lay down policy for administration of the property, funds and investments of the University, including approval of the sale and purchase or acquisition of immovable property;

(c) to oversee quality and relevance of the University's academic programs and to review academic affairs of the University in general;

(d) to approve appointment of Deans, Professors, Associate Professors and such other senior faculty and senior administrators as may be prescribed;

(e) to institute schemes, directions and guidelines for the terms and conditions of appointment of all officers, faculty, teachers and other employees of the University;

(f) to approve the strategic plans of the University;

(g) to approve financial resource development plans of the University;

(h) to consider drafts of statutes and regulations proposed by the Executive Committee and the Academic Council and deal with them in the manner as provided for in sections 27 and 28, as the case may be:

Provided that the Board of Governors may make a statute or regulation on its own initiative and approve it after calling for advice of the Executive Committee or the Academic Council, as the case may be;

(i) to annul by order in writing the proceedings of any authority or officer if the Board is satisfied that such proceedings are not in accordance with the provisions of this Act, statutes or regulations after calling upon such authority or officer to show cause why such proceedings should not be annulled;

(j) to recommend to the Chancellor removal of any member of the Board in accordance with the provisions of this Act;

(k) to make appointment of members of the Executive Committee, other than ex officio members, in accordance with the provisions of this Act;

(l) to make appointment of members of the Academic Council, other than *ex officio* members, in accordance with the provisions of this Act;

(m) to appoint Professors emeritus on such terms and conditions as may be prescribed;

(n) to remove any person from membership of any authority if such person has,—

(i) become of unsound mind; or

(ii) become incapacitated to function as member of such authority; or

(iii) been convicted by a court of law for an offence involving moral turpitude; and

(o) to determine the form, provide for the custody and regulate the use of the c ommon seal of the University.

(3) The Board may, subject to the provisions of this Act delegate all or any of the powers and functions of any authority, officer or employee of the University at its main campus, to any authority, committee, officer or employee at its additional campus, colleges, institutions or centers for the purpose of exercising such powers and performing such functions in relation to such additional campus and for this purpose the Board of Governors may create new posts or positions at the additional campus as it deems appropriate.

21. Executive Committee.— (1) There shall be an Executive Committee of the University consisting of the following, namely:—

(a) Vice-Chancellor who shall be its chairperson;

(b) deans of faculties of the University;

(c) three Professors from different departments, who are not members of the Board, to be elected by the University teachers in accordance with procedure to be prescribed by the Board of Trustees in consultation with the Board;

(d) Principals of the constituent colleges, centers and institutions;

(e) Registrar;

(f) Treasurer; and

(g) Controller of examinations.

(2) Members of the Executive Committee, other than ex officio members, shall hold office for three years.

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(3) As regards the three Professors described in clause (c) of subsection (1), the Board of Governors may, as an alternative to elections, prescribe a procedure for proposal of a panel of names by the representation committee set up in terms of section 25. Appointment of persons proposed by the representation committee may be made by the Board on recommendation of the Vice-Chancellor.

(4) The quorum for a meeting of the Executive Committee shall be one-half of the total number of members, a fraction being counted as one.

(5) The Executive Committee shall meet at least once in each quarter of the year.

22. Powers and duties of the Executive Committee.— (1) The Executive Committee shall be the executive body of the University and shall, subject to the provisions of this Act and the statutes, exercise general supervision over affairs and management of the University.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act, the statutes and directions of the Board of trustees, the Board of Governors, the Executive Committee shall have the following powers to,—

(a) consider annual report, annual and revised budget estimates and to submit these, to the Board of trustees;

(b) transfer, and accept transfer, of movable property on behalf of the University;

(c) enter into, vary, carry out and cancel contracts on behalf of the University;

(d) cause proper books of accounts to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University;

(e) invest any money belonging to the University including any unapplied income in any of the securities described in section 20 of the Trusts Act, 1882 (Act II of 1882) or in the purchase of immovable property or in such other manner, as it may prescribe, with the like power of varying such investments;

(f) receive and manage any property transferred and grants, bequests, trust, gifts, donations, endowments and other contributions made to the University;

(g) administer any funds placed at the disposal of the University for specified purposes;

(h) provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for carrying out the work of the University;

(i) establish and maintain halls of residence and hostels or approve or license hostels or lodgings for residence of students;

(j) recommend to the Board admission of educational institutions to the privileges of the University and withdraw such privileges;

(k) arrange for the inspection of colleges and the departments;

(l) institute professorships, associate professorship, assistant professorship, lectureships and other teaching posts or to suspend or to abolish such posts;

(m) create, suspend or abolish such administrative or other posts as may be necessary;

(n) prescribe the duties of officers, teachers and other employees of the University;

(o) report to the Board on matters with respect to which it has been asked to report;

(p) appoint members to various authorities in accordance with the provisions of this Act;

(q) propose drafts of statutes for submission to the Board;

(r) regulate conduct and discipline of students of the University;

(s) take actions necessary for good administration of the University in general and to this end exercise such powers as are necessary;

(t) delegate any of its powers to any authority or officer or a committee; and

(u) perform such other functions as have been assigned to it by provisions of this Act or may be assigned to it by statutes.

23. Academic Council.— (1) The Academic Council of the University shall be the academic body of the University and shall by statues have the powers to lay down proper standards of instructions, research and publication and examination and to regulate and promote academic life of the University.

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(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Act and the statutes the Academic Council shall have the powers to,—

(a) advise the board of Governors on the academic matters;

(b) regulate the conduct of teaching, research, publication and examination;

(c) approve the policies and procedures pertaining to the quality of academic programs;

(d) approve academic programs;

(e) approve the policies and procedures pertaining to student-related functions including admissions, expulsions, punishments, examinations and certification;

(f) approve the policies and procedures assuring quality of teaching and research;

(g) propose to the Executive Committee schemes for the constitution and organization of faculties, teaching departments and boards of studies;

(h) appoint paper setters and examiners for all examinations of the University after receiving panels of names from the relevant authorities;

(i) institute programs for the continued professional development of University teachers at all levels;

(j) recognize examinations of other universities or examining bodies as equivalent to the corresponding examinations of the University;

(k) regulate award of studentships, scholarships, exhibitions, medals and prizes;

(l) make regulations for submission to the Board of Governors for the constitution of faculties and the teaching departments;

(m) prepare an annual report on academic performance of the University;

(n) regulate the admission of students to the courses of studies and the examinations at the University;

(o) regulate the conduct and the discipline of the students and faculty; and

(p) perform such functions as may be prescribed by regulations and statutes.

(3) There shall be academic department for the each subject or group of subjects as may be prescribed by regulations and each academic department shall be headed by a head of department.

(4) The Head of Academic Department shall be appointed by the board on the recommendation of the Vice-Chancellor from amongst three senior most professors shall be eligible for re-appointment provided that in a department where there are less than three eligible professors, the appointment shall be made amongst three most senior associates professors and professors of departments. The head of department shall plan, organize and supervise the work of department and shall be responsible to the dean for the work of department.

(5) The Head of department shall under the supervision of Vice-Chancellor and dean supervise all administrative, financial and academic powers and such other duties and powers as may be delegated to him.

(6) The head of departments shall prepare a comprehensive reports regarding the performance of departments at the under graduate, graduate and post graduate level, faculty research and development and submit the report to the dean of faculty for his evaluation.

(7) The Board of advance studies and research shall consist of,—

(a) Vice-Chancellor;

(b) all the deans;

(c) one University professor from each faculty other than dean to be appointed by the Board;

(d) one member nominated by the Patron; and

(e) three members from the relevant research originations and Government departments to be nominated by the Board of Governors and registrar as the secretary.

Term of the members of board of advance studies other than the ex-officio member shall be three years and the quorum will be one half of total number of members.

24. First Statutes.— The schedule prescribes the regulations for the establishment of departments, faculties and bodies under the first statutes of the University.

25. Appointment of committees by certain authorities.— (1) The Board, the Executive Committee, the Academic Council and other authorities may, from time to time, appoint such standing, special or advisory committees, as they may deem fit, and may place on such committee persons who are not members of the authorities appointing the committees.

(2) The Board of trustees shall take necessary actions on all related issues of the University and its decision shall be the final after Chairman of the trust decision on that issue.

(3) The constitution, functions and powers of the authorities for which no specific provision has been made in this Act shall be such as may be prescribed by statutes or regulations.

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CHAPTER V

STATUTES, REGULATIONS AND RULES

26. Regulations.— (1) Subject to the provisions of this Act and the statues, the Academic Council may make regulations, to be published in the official Gazette, for all or any of the following matters, namely:-

(a) courses of study for degrees, diplomas and certificates of the University;

(b) manner in which the teaching referred to in subsection (1) of section 6 shall be organized and conducted;

(c) admission and expulsion of students to and from the University;

(d) conditions under which students shall be admitted to the courses and examinations of the University and shall become eligible for award of degrees, diplomas and certificates;

(e) conduct of examinations;

(f) conditions under which a person may carry on independent research to entitle him to a degree;

(g) institution of fellowships, scholarships, exhibitions, medals and prizes;

(h) use of the library;

(i) formation of faculties, departments and board of studies; and

(j) all other matters which by this Act or the statutes are to be or may be prescribed by regulations.

(2) Regulations shall be proposed by the Academic Council and shall be submitted to the Board which may approve them or withhold approval or refer them back to the Academic Council for reconsideration. A regulation proposed by the Academic Council shall not be effective unless it receives approval of the Board.

(3) Regulations regarding or incidental to matters contained in clauses (g) and (i) of subsection (1) shall not be submitted to the Board without prior approval of the Executive Committee.

27. Amendment and repeal of statutes and regulations. The procedure for adding to, amending or repealing the statutes and the regulations shall be the same as that prescribed respectively for framing or making Statutes and Regulations.

28. Rules.— (1) The authorities and other bodies of the University may make rules, to be published in the official Gazette, consistent with this Act, statutes and the regulations, to regulate any matter relating to affairs of the University which has not been provided for under this Act or that is not required to be regulated by statutes and regulations, including rules to regulate the conduct of business and the time and place of meetings and related matters.

(2) Rules shall become effective upon approval by the Executive Committee and the Board of trustees.

CHAPTER VI

UNIVERSITY FUND

29. The University fund.— (1) The University shall have a fund to which shall be credited its income from fees, donations, trusts, bequests, endowments, grants, contributions and all other sources.

(2) Capital recurrent expenditure of the University shall be met from contributions made by the Board and any other source, including other foundations, universities and individuals and from the income derived from such sources.

(3) No contribution, donation or grant which may directly or indirectly involve any immediate or subsequent financial liability for the University, shall be accepted without prior approval of the Board.

30. Audit and accounts.— (1) The accounts of the University shall be maintained in such form and manner as may be determined by the Board and work under the Finance and Planning committee. The committee shall consist of Vice-Chancellor, all the Deans, one member of the Board nominated by the Board, one nominee of the Academic Council, and one member of the independent auditor. The quorum of the meeting shall be five and the term of nominated members will be three years. The Director finance shall be the Secretary of the Finance and Planning Committee.

(2) Function of committee shall be to prepare the annual statement of accounts, propose and annul budget estimates and advice to the Board thereon, review periodically the Financial position of the university and advice the Board on all matters related to finance, investment and accounts of the university and to perform such other functions as may be prescribed by the statutes.

CHAPTER VII

GENERAL PROVISIONS

31. Commencement of term of members of authorities.— (1) When a member of a authority is elected, appointed or nominated, his term of office, as fixed under this Act shall commence from such date as may be prescribed.

(2) Where a member who has accepted any other assignment or for any other similar reason remained absent from the University for a period of not less than six months, he shall be deemed to have resigned and vacated his seat.

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32. Disputes about membership of authorities.— (1) Notwithstanding anything contained in this Act, a person nominated or appointed to any authority shall cease to be member of such authority as soon as he ceases to hold the position by virtue of which he was nominated or appointed.

(2) If a question arises whether any person is entitled to be a member of any authority, the matter shall be referred to a committee consisting of the Chancellor, two nominees of the Board of Governors and a nominee of the Vice-Chancellor and decision of the committee thereon shall be final and binding.

33. Proceedings of authorities not invalidated by vacancies.— No act, resolution or decision of any authority shall be invalid by reason of any vacancy on the authority doing, passing

or making it or by reason of any want of qualification or appointment or nomination of any *de facto* member or the authority, whether present or absent.

34. Removal of difficulties.— If any difficulty arises as to the first constitution or reconstitution of any authority upon coming into force of this Act or otherwise in giving effect to any provision of this Act, the Patron may give appropriate directions to remove such difficulty.

35. Indemnity. No suit or legal proceedings shall lie against the Government, the University or any authority or employee of the University or any person, in respect of anything which is done or purported to have been done in good faith under this Act.

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THE SUPREME COURT (NUMBER OF JUDGES) ACT, 1997

CONTENTS

1. Short title and commencement
2. Maximum number of Supreme Court Judges other than Chief Justice

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THE SUPREME COURT (NUMBER OF JUDGES) ACT, 1997

ACT NO. XXXIII OF 1997

[1st November, 1997]

An Act to determine the number of the judges of the Supreme Court of Pakistan

WHEREAS Article 176 of the Constitution of the Islamic Republic of Pakistan provides that the Supreme Court of Pakistan shall consist of a Chief Justice and so many other judges as may be determined by Act of Majlis-e-Shoora (Parliament);

AND WHEREAS it is appropriate that the number of judges of the Supreme Court is determined by Act of Majlis-e-Shoora (Parliament) as required by the Constitution;

It is hereby enacted as follows:—

1. Short title and commencement.—(1) This Act may be called the Supreme Court (Number of Judges) Act, 1997.

(2) It shall come into force at once.

[1][**2. Maximum number of Supreme Court Judges other than Chief Justice.—** The maximum number of Judges of the Supreme Court of Pakistan other than the Chief Justice shall be up to thirty-three.]

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[1]Subs. by Act No. XXX of 2024, s.2.

THE TRANSFER OF POPULATION WELFARE PROGRAMME (FIELD ACTIVITIES) ORDINANCE, 1983.

CONTENTS

SECTIONS:

1. Short title and commencement.
2. Ordinance to override other laws.
3. Definitions.
4. Transfer of field activities to the Provincial Government.
5. Powers, functions and responsibilities of the Provincial Governments.
6. Functions of the Federal Government, etc.
7. Transfer of other activities to the Provinces.
8. Transfer, etc., of employees.
9. Assets and liabilities, etc.
10. Financing of the Population Welfare Programme.
11. Removal of difficulties.
12. Power to make rules.

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THE TRANSFER OF POPULATION WELFARE PROGRAMME (FIELD ACTIVITIES) ORDINANCE, 1983.

ORDINANCE No. XIX OF 1983

[*2nd August, 1983*]

An Ordinance to provide for the transfer of field activities of the Population Welfare Programme to the Provincial Governments.

WHEREAS it is expedient to provide for the transfer of field activities of the Population Welfare Programme under the Population Welfare Division to the Provincial Governments for their speedy implementation and exercising effective supervision and control and for matters connected therewith or ancillary thereto;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action ;

NOW, THEREFORE, in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of all powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance : —

1. Short title and commencement.— (1) This Ordinance may be called the Transfer of Population Welfare Programme (Field Activities) Ordinance, 1983.

(2) It shall come into force on such date as the Federal Government may, by notification in the official Gazette, appoint.

2. Ordinance to override other laws. This Ordinance shall have effect notwithstanding anything contained in any other law for the time being in force.

3. Definitions. In this Ordinance, unless there is anything repugnant to the subject or context,—

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(a) "Board" and "Council" shall have the same meaning as in the Population Welfare Planning Programme (Appointment and Termination of Service) Ordinance, 1981 (XIV of 1981) ;

(b) "employee" means a person whose services have been regularized under the Population Welfare Planning Programme (Appointment and Termination of Service) Ordinance, 1981 (XIV of 1981) or who has been recruited in or under the Population Welfare Division after the promulgation of the said Ordinance ;

(c) "field activities" means—

(i) provision of Population Welfare Motivational Services by establishing contacts with the clients at all levels ;

(ii) provision of Family Health Service, Clinical and Non-clinical contraception through Family Welfare Centres and those Reproductive

Health Service Establishments located in the Provincial Government hospitals, and, particularly, provision of services for rural areas ;

(iii) provision of Population Welfare motivation and services through line departments of the Provincial Governments;

(iv) supply of contraceptives and medicines to the desirous clients in urban and rural areas of the districts through the network of community distribution points, and other agencies involved in the programme;

(v) implementation of publicity and communication strategy;

(vi) promotion of community involvement and active participation in Population Welfare Programme activities;

(vii) coordination of Population Welfare Programme activities with other nation-building departments at district and local levels;

(viii) setting up of Advisory Management Committees at Family Welfare Centre level and Population Welfare Councils at district and provincial levels as provided in the Population Welfare Plan, 1981-84 ; and

(ix) any other activity of the Population Welfare Programme that the Federal Government may specify;

(d) "Population Welfare Programme" means any such programme in operation at the commencement of this Ordinance or as may be formulated by the Federal Government from time to time.

4. Transfer of field activities to the Provincial Governments.— (1) The field activities of the Population Welfare Programme shall stand transferred to the Provincial Governments.

(2) The Federal Government shall determine as to whether a particular activity is a field activity within the meaning of this Ordinance.

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5. Powers, functions and responsibilities of the Provincial Governments.— (1) Upon the transfer of field activities of the Population Welfare Programme to the Provincial Government, all powers and functions of the Federal Government in respect of field activities shall, subject to the other provisions of this Ordinance, vest in the Provincial Governments.

(2) The Provincial Government shall supply to the Federal Government such returns, statistics and information as may be required for monitoring, evaluation and research.

(3) The Provincial Government shall closely collaborate with the Federal Government in respect of the functions of the Federal Government referred to in sub-section (1) of section 6 and activities which are identified by the Federal Government as Federal functions.

6. Functions of the Federal Government, etc.— (1) The Federal Government shall continue to perform all functions pertaining to National Policy, Planning and Coordination, Information, Training, Supplies, Statistics, Monitoring and Evaluation, Research and Foreign Assistance.

Explanation.— In this sub-section, "Information" includes "Education" and "Communication" components of the Population Welfare Programme.

(2) In the performance of their functions relating to field activities, the Provincial Government shall be guided by such guidelines and instructions on questions of policy as may be laid down and given from time to time by the Federal Government, which shall be the sole judge as to whether a question is a question of policy.

7. Transfer of other activities to the Provinces. The working of the field activities of the Population Welfare Programme shall be reviewed by the Federal Government from time to time and the Federal Government may transfer to the Provincial Governments [1][or withdraw from such Government any activities of the Population Welfare Programme as it may deem necessary to improve the execution of the Population Welfare Programme].

8. Transfer, etc. of employees.— (1) Notwithstanding anything contained in any contract or agreement or in the conditions of service, an employee shall be retained in the Population Welfare Division or transferred to the Provinces as follows :—

(a) an employee who was recruited or appointed by the Council shall be retained in, or, as the case may be, stand transferred to, the Population Welfare Division ;

(b) an employee who was recruited by the Board shall be retained in, or, as the case may be, stand transferred to the Province in which he was originally recruited ;

(c) an employee who was originally recruited by the Board but subsequently appointed by the Council shall be retained in, or, as the case may be, stand transferred to the Population Welfare Division.

(d) an employee shall, if he was recruited for the Population Welfare Division, be retained in that Division and, if he was recruited against a post in a Province, stand transferred to the Province of his domicile; and

(e) a female employee who is married or a widow may be allowed the option to be transferred to the Province of the husband's or late husband's domicile:

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Provided that the Provincial Government of the Province in which an employee who is to be so transferred to the Population Welfare Division or to another Province is serving immediately before the commencement of this Ordinance may retain the services of such employee for such period as may be agreed upon between the Provincial Government and the Population Welfare Division or, as the case may be, the Government of the other Province to which he is to be transferred:

Provided further, that the services of an employee, who immediately before the commencement of this Ordinance was working in relation to any of the functions of the Federal Government under the Ordinance, shall be retained by the Federal Government in consultation and with the agreement of the Provincial Government concerned.

[1]Subs. and shall be deemed always to have been so subs. by ordinance No. 32 of 2001, s. 2.

(2) Every employee referred to in sub-section (1) shall be entitled to the same terms and conditions of service with respect to grade, remuneration, leave and pension to which he was entitled immediately before the commencement of this Ordinance [1][and shall, notwithstanding anything contained in any other law for the time being in force or any judgment of any Court or tribunal, including a High Court and the Supreme Court, be deemed to have become the civil servants of the respective Provincial Government on such commencement and shall be governed by the rules and regulations made under the Provincial laws relating to civil servants].

(3) Unless otherwise directed by the Provincial Government, all authorities and officers and ministerial staff exercising powers and functions immediately before the date of transfer shall, as from that day, continue to exercise their respective powers and functions.

(4) No employee referred to in sub-section (1) shall be entitled to any compensation because of his transfer by virtue of, or under, the provisions of this Ordinance.

[2][(5) Notwithstanding any judgment of any Court or tribunal, including a High Court, the Supreme Court, any law, contract, agreement or in the conditions of service, all actions taken, powers, including financial and administrative, exercised, orders or instructions issued, by the Federal Government and Provincial Governments in respect of terms and conditions of employees referred to in sub-section (1) after their retention in the Federal Government or transfer to the Provincial Governments, shall be deemed always to have been validly taken, exercised or issued by the Federal Government and Provincial Governments.]

9. Assets and liabilities, etc. On the commencement of this Ordinance,—

(a) all rights and privileges, assets and liabilities, debts and obligations of the Federal Government relating to field activities of the Population Welfare Programme subsisting immediately before such commencement shall, as from such commencement, be the rights, privileges, assets, liabilities, debts and obligations of the Provincial Government within whose territorial jurisdiction they exist ;

(b) any contract made on behalf of the Federation for matters relating to field activities of the Population Welfare Programme before such commencement shall, as from such commencement, if the contract is for purposes which are exclusively purposes of the Provincial Government, be deemed to have been made on behalf of the Province concerned ;

(c) all rights and liabilities relating to field activities of the Population Welfare Programme which have accrued or may accrue under any such contract shall, to the extent to which they would have been rights or liabilities of the Federation, be the rights or liabilities of the Province concerned ; and

(d) all suits and other legal proceedings relating to field activities of the Population Welfare Programme instituted by or against the Federation before such transfer shall, as from such commencement, be deemed to be suits and proceedings by or against the Province concerned.

[1]Added and shall be deemed always to have been so added by ordinance 32 of 2001, s. 3.
[2]Added *ibid*.

10. Financing of the Population Welfare Programme.— (1) The financial liability of the Federal Government in respect of field activities shall be limited to the extent of the approved projects and financial grants shall be provided to the Provincial Governments through the Development Budget of the Population Welfare Division.

(2) The grants provided to the Provincial Governments for specific approved projects shall not be transferred by them to other projects or for any other purpose.

(3) The Provincial Government shall maintain complete and accurate account and other record in respect of the Population Welfare Programme in such manner and form as may be specified by the Federal Government in consultation with the Auditor General of Pakistan, provided that separate accounts shall be maintained for the Head Office and for each organization, unit or project.

(4) The accounts shall be audited by the Auditor General of Pakistan.

11. Removal of difficulties. The Federal Government may, for the purpose of removing any difficulty that may arise in bringing into operation, or giving effect to, any provision of this Ordinance, make such orders as it may consider necessary.

12. Power to make rules.— (1) The Federal Government may, by notification in the official Gazette, make rules for the purpose of giving effect to all or any of the provisions of this Ordinance.

(2) The Provincial Governments may, for the purpose of carrying out the field activities of the Population Welfare Programme, make rules with the prior approval of the Federal Government.

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THE WOMEN'S UNIVERSITY ORDINANCE, 1985

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THE WOMEN'S UNIVERSITY ORDINANCE, 1985

ORDINANCE XXIX OF 1985

An Ordinance to provide for the establishment of Women's University at Islamabad

WHEREAS it is expedient to provide for the establishment of Women's University at Islamabad;

AND WHEREAS the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE in pursuance of the Proclamation of the fifth day of July, 1977, and in exercise of powers enabling him in that behalf, the President is pleased to make and promulgate the following Ordinance:—

CHAPTER I

PRELIMINARY

1. Short title and commencement.— (1) This Ordinance may be called Women's University Ordinance, 1985.

(2) It shall come into force at once.

2. Definitions. —In this Ordinance, unless there is anything repugnant in the subject or context:-

(a) "Academic Council" means the Academic Council of the University;

(b) "Affiliated College" means an educational institution affiliated to the University but not maintained or administered by it;

(c) "Authority" means any of the authorities of the University specified in section 16;

(d) "Chancellor" means the Chancellor of the University;

(e) "Dean of University College" means the head of a University College;

(f) "Director" means the Director of an Institute;

(g) "Institute" means a teaching unit in a University College;

(h) "Officer" means an officer of the University specified in section 8;

(i) "Prescribed" means prescribed by Statutes, Regulations or Rules;

(j) "Principal" means the head of an affiliated college;

(k) "Pro-Chancellor" means the Pro-Chancellor of the University;

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(l) "Syndicate" means the Syndicate of the University;

(m) "Teachers" include Professors, Associate Professors, Assistant Professors, Lecturers and research staff engaged whole-time by the University for teaching graduate, honors or post-graduate classes and such other persons as may be recognized to be Teachers by the University;

(n) "Teaching Unit" means a constituent/affiliated college, institute, department or such other unit where instruction/research is being undertaken;

(o) "University" means the Women University constituted under this Ordinance and includes University colleges;

(p) "University College" means a college maintained and administered by the University; and

(g) "Vice-Chancellor" means the Vice-Chancellor of the University.

3. Incorporation of the University.—(1) There shall be established a University to be called the Women's University with its principal seat at Islamabad consisting of such affiliated and university colleges or teaching units as may be prescribed.

(2) The University shall consist of the Chancellor, the Vice-Chancellor, the Dean Administration, the Deans of University Colleges, Officers, Teachers and Members of Authorities.

(3) The University shall be a body corporate by the name of Women's University and shall have perpetual succession and a common seal and shall, by the aforesaid name, sue and be sued.

(4) The University shall be competent to acquire and hold property, both movable and immovable, and to lease, sell or otherwise transfer any property vested in it.

4. Powers of the University. —The University shall have the powers:—

(a) to provide for instruction in such branches of learning as it may deem fit, and to make provision for research and for the advancement and dissemination of knowledge in such manner as it may determine ;

(b) to prescribe courses of study to be taught in the affiliated and university colleges ;

(c) to hold examinations and confer degrees, diplomas, certificates and other academic distinctions on persons who have been admitted to and passed its examinations under the prescribed conditions

(d) to confer, in the prescribed manner, honorary degrees or other academic distinctions on such persons as the Chancellor may approve ;

(e) to confer degrees on persons who have done research under prescribed conditions ;

(f) to provide for teaching specified courses of training for persons not being students of the University and grant certificates and diplomas to such persons

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(g) to affiliate or disaffiliate colleges in the prescribed manner ;

(h) to admit colleges to its privileges or withdraw such privileges from them in the prescribed manner ;

(i) to inspect colleges affiliated or seeking affiliation ;

(j) to accept the examinations passed, or the periods of the study spent by the students of the University at other universities, colleges or places of learning as equivalent to such examinations or periods of study in the University as it may determine, and to withdraw such acceptance ;

(k) to co-operate with other universities or authorities in such manner and for such purposes as it may determine ;

(1) to create posts in connection with teaching, research extension training and administration of its affairs and for any other purposes related thereto and appoint persons thereto ;

(m) to recognize as Teachers such persons as it may deem fit ;

(n) to institute and award fellowships, scholarships, bursaries, medals and prizes in the prescribed manner ;

(o) to establish institutes, centers of advanced studies, museums and other centers of learning for the development of teaching and research and make such arrangements for their maintenance, management and administration as it may determine ;

(p) to control the residence of students affiliated and university colleges and to establish and maintain halls of residence and approve any place as hostel for lodging of students ;

(q) to supervise and control the discipline of students of affiliated and university colleges, promote the extra-curricular and recreational activities of such students, and to make arrangements for promoting their health and general welfare ;

(r) to take disciplinary action against, and impose penalty on, students in the prescribed manner ;

(s) to charge and receive such fees and other payments as it may determine ;

(t) to receive and manage property transferred, and any grants bequests, trusts, gifts, donations, endowments and other contributions made to the University and invest any fund representing such property, grants, bequests, trusts, gifts, donations, endowments or contributions in such manner as it may deem fit ;

(u) to provide for the printing and publication of research and other works ; and

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(v) to do all such other acts or things, whether incidental to the powers aforesaid or not, as may be necessary to further the objectives of the University as a place of education, learning and research.

5. Jurisdiction of the University. —The University shall have jurisdiction in the whole of Pakistan within the limits of University colleges and affiliated colleges;

6. University open to all classes, creeds, etc. —The University shall be open to all women students, irrespective of religion, race, class, colour or creed and no woman shall be denied the privilege of the University on the grounds of religion, race, class, colour, or creed;

Provided that nothing in this section shall be deemed to prevent religious instruction being given to the students in their own religious faiths in such manner as may be prescribed.

7. Teaching in the University. —(1) All recognized teaching in various courses in the University and affiliated colleges shall be conducted in the prescribed manner, and it may include lectures, tutorials, discussions, seminars, demonstrations, practical work in laboratories and workshops and other methods of instruction.

(2) The teaching in any prescribed course in the University or affiliated colleges shall be organized by such Authority as may be prescribed.

(3) The courses and the curricula for teaching in the affiliated and university colleges shall be such as may be prescribed.

(4) A discipline to be called "Islamic and Pakistan Studies" shall be offered, as a compulsory subject at the Bachelor's level, in the University and affiliated colleges provided that non-Muslim students may opt for "Ethics and Pakistan Studies" ;

(5) A degree shall not be awarded to a student unless has passed the examination in the discipline referred to in subsection (4).

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CHAPTER II

OFFICERS OF THE UNIVERSITY

8. Officers of the University.— (1) The following shall be the officers of the University namely:—

(i) the Chancellor ;

(ii) the Pro-Chancellor ;

(iii) the Vice-Chancellor ;

(iv) the Dean Administration ;

(v) the Deans of University Colleges ;

(vi) the Directors of Institutes ; and

(vii) such other officers as may be appointed by the Board.

9. Chancellor.—(1) The President of Pakistan shall be the Chancellor of the University.

(2) The Chancellor shall, when present preside at the convocation of the University.

(3) Where the Chancellor is satisfied that the proceedings of any Authority or the orders of any officer are not in accordance with the provisions of this Ordinance, the Statutes, the Regulations or the Rules, he may, after calling upon such Authority or officer to show cause why such proceedings or orders should not be annulled by order in writing, annul such proceedings or orders.

(4) The Chancellor may remove any person from the membership of any Authority if such person—

(a) has become of unsound mind ; or

(b) has become subject to an incapacity which prevents him or her from functioning as a member of such Authority ; or

(c) does not attend three consecutive meetings of the Authority without intimation to the Vice-Chancellor ; or

(d) remains absent from the country for more than six months ; or

(e) has been convicted by a Court of law of an offence involving moral turpitude.

10. Visitation.— (1) The Chancellor may cause an inspection or inquiry to be made in respect of any matter directly or indirectly connected with the affairs of the University and shall, from time to time, appoint one or more persons to conduct such inspection or inquiry.

(2) The Chancellor shall give notice to the Syndicate of his intention to cause an inspection or inquiry to be made under subsection (1), and the Syndicate shall be entitled to be represented thereat.

(3) After the inspection or inquiry is completed, the Chancellor shall cause his views as a result thereof to be communicated to the Syndicate, and after ascertaining the reaction of the Syndicate, the Chancellor may advise the Syndicate to take such action, or refrain from doing such thing, and within such time, as he may specify in this behalf.

(3) Where the Syndicate fails to carry out the advice of the Chancellor given under subsection (3) within the specified time, the Chancellor may, after considering the explanation or representation, if any, made by the Syndicate, issue such directions as he deems fit, and the Vice-Chancellor shall comply with such directions.

11. Pro-Chancellor.— (1) The Minister for Education of the Government of Pakistan shall be the Pro-Chancellor of the University.

(2) The Pro-Chancellor shall perform such duties and functions and exercise such powers as may be assigned and delegated to him by the Chancellor.

(3) In the absence of the Chancellor, the Pro-Chancellor shall, when present, preside at a convocation of the University.

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12. Vice-Chancellor. —(1) The Vice-Chancellor shall be appointed by the Chancellor on such terms and conditions as the Chancellor may determine, and shall hold office during the pleasure of the Chancellor for a term not exceeding four years.

(2) When the office of the Vice-Chancellor is vacant or she is absent or is unable to perform the functions of her office due to illness or some other cause, the Pro-Chancellor may make such arrangements for the performance of the duties of the Vice-Chancellor as he may deem fit.

13. Powers and duties of the Vice-Chancellor.— (1) The Vice-Chancellor shall be the principal executive and academic officer of the University and shall ensure that the provisions of this Ordinance, the Statutes, the Regulations and the Rules are faithfully observed in order to promote the general efficiency and good order of the University and shall have all powers necessary to exercise control and enforce discipline overall officers, teachers, students and employees of the University.

(2) The Vice-Chancellor shall, in the absence of the Chancellor and the Pro-Chancellor, preside at a convocation of the University and shall, if present, preside at the meetings of the Authorities or other bodies of the University colleges of which she may or may not be the head.

(3) The Vice-Chancellor may take such action in an emergency as she may consider necessary and report, as soon thereafter as possible, the action so taken to the officer, Authority or other body which, in the ordinary course, would have taken that action.

(4) The Vice-Chancellor shall also have the powers—

(i) to create and fill posts temporarily for a period not exceeding six months ;

(ii) to sanction all expenditure provided for in the approved budget, and to re-appropriate funds within the same major head of expenditure ;

(iii) to sanction re-appropriation of an amount not exceeding twenty five thousand rupees for an unforeseen item not provided for in the budget, and report it to the Syndicate at the next meeting;

(iv) to direct Teachers, officers and employees of the University to take up such assignments in connection with teaching, research, examination and administration, and such other activities in the University, as she may consider necessary for the purpose of the University ;

(v) to delegate, subject to such conditions if any, as may be prescribed, any of her powers under this Ordinance to an office or other employee of the University ;

(vi) to exercise general control and supervision over the system of examination in the University colleges ; and

(vii) to exercise and perform such other powers and functions as may be prescribed.

14. Dean Administration.— (1) The Dean Administration will be a whole-time officer of the University and shall be appointed by the Syndicate on such terms and conditions as it may determine.

(2) Under the general supervision of the Vice-Chancellor, the Dean Administration shall:—

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(a) be the custodian of the common seal and the academic records of the University ;

(b) maintain a Register of Registered Graduates in the prescribed manner ;

(c) conduct elections of members to the various Authorities in the prescribed manner ;

(d) be the Secretary of the Syndicate, the Academic Council, the Finance and Planning Committee, the Selection Committee and such other committees as may be prescribed ;

(e) manage the property, finances and investments of the University ;

(f) prepare the annual and revised budget estimates of the University and place such estimates before the Finance and Planning Committee and the Syndicate ;

(g) ensure that the funds of the University are expended for the purposes for which they are provided ;

(h) be responsible for preparing development projects, development budget and other plans for academic development of the University ;

(i) organize and assist in conducting periodic evaluation of academic programmes of the University ;

(j) organize studies and prepare recommendations on consolidation of existing programmes, elimination of in fructuous activities and introduction of new programmes based on new developments in various fields o knowledge;

(k) exercise control over the development budget and ensure the proper execution of development projects of the University Colleges ; and

(l) perform such other duties as may be specified by the Vice-Chancellor for and other Authorities from time to time.

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15. Deans of University Colleges.— (1) There shall be a Dean of each University College who shall be its academic and executive head and. shall be responsible to the Vice-Chancellor for the performance of her duties.

(2) A Dean shall be appointed by the Syndicate on the recommendation of the Vice-Chancellor on such terms and conditions as may be prescribed.

(3) The duties and function of a Dean shall be such as may be prescribed.

CHAPTER III.

AUTHORITIES OF THE UNIVERSITY

16. Authorities. The following shall be the Authorities of the University namely:—

(i) the Syndicate ;

(ii) the academic Council ;

(iii) the Selection Committee ; ,.

(iv) the Finance and Planning Committee ;

(v) the College Council of a University College ;

(vi) the Board of Studies of a University College ;

(vii) the Discipline Committee of a University College ; and t4;~

(viii) such other Authorities as may be prescribed.

17. Syndicate.— (1) The Syndicate shall consist of:—

(i) the Vice-Chancellor, who shall be its Chairman ;

(ii) the Chief Justice of Pakistan or a Judge of the Supreme Court nominated by him ;

(iii) the Secretary, Women's Division, Government of Pakistan ;

(iv) the Chairman or whole-time Member of the University Grants Commission ;

(v) the Education Secretary, Government of Pakistan, or his nominee not below the rank of Joint Secretary ;

(vi) one member of the National Assembly to be nominated by the Speaker of the Assembly

(vii) the Vice-Chancellor of Allama Iqbal Open University ;

(viii) three Deans of University College to be elected from amongst themselves ;

(ix) two women of eminence to be nominated by the Chancellor ; and

(x) the Dean Administration, who shall also be its Secretary.

(2) The members of the Syndicate, other than the *ex-officio* members, shall hold office for three years.

(3) The number of members to constitute the quorum for a meeting of the Syndicate §hall be seven.

18. Power of the Syndicate.— (1) The Syndicate shall be the executive body of the University and shall, subject to the provisions of this Ordinance and the Statutes, exercise general supervision over the affairs and the property of the University.

(2) Without prejudice to the generality of the foregoing powers and subject to the provisions of this Ordinance and the Statutes, the Syndicate shall have the powers:—

(a) to hold, control and administer the property and funds of the University ;

(b) to govern and regulate, with due regard to the advice of the Finance and Planning Committee in this behalf, the finances, accounts and investments of the University: and for that ,purpose, to appoint such agents as it may deem fit;

(c) to consider the annual report and the annual and revised budget estimates and to re-appropriate funds from one major head of expenditure to another ;

(d) to transfer and accept transfer of movable or immovable property on behalf of the University ;

(e) to enter into, vary, carry out and cancel contracts on behalf of the University ;

(f) to cause proper books of accounts to be kept for all sums of money received and expended by the University and for the assets and liabilities of the University ;

(g) to invest any money belonging to the University, including any unapplied income, in any of the securities described in section 20 of the Trusts Act, 1982 (II of 1982), or in the purchase of immovable property or in such other manner as it may determine, with the like power of varying such investment ;

(h) to receive and manage property transferred and grants, bequests, trusts, gifts, donations, endowments and other contributions made to the University, and to administer any funds placed at the disposal of the University for a specified purpose ;

(i) to determine the form, provide for the custody and regulate the use of the common seal of the University ;

(j) to provide the buildings, libraries, premises, furniture, apparatus, equipment and other means required for the purposes of the University, and to establish and maintain halls of residence and hostel or approve or license hostels or lodgings for the residence of students ;

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(k) to arrange for the inspection of affiliated and university colleges and the Teaching Departments and Institutes ;

(1) to institute Professorships, Associate Professorships, Assistant Professorships, Lectureships and other teaching posts, or to suspend or abolish such posts ;

(m) to create, suspend or abolish such administrative, research, extension or other posts as may be necessary ;

(n) to appoint Teachers and other officers on the recommendations of the Selection Board for teaching and other costs in the Basic Scale of Pay 17 and above ;

(o) to appoint Professor Emeritus on such terms and conditions as may be prescribed ;

(p) to confer, with the prior approval of the Chancellor, honorary degrees in accordance with the conditions prescribed ;

(q) to prescribe the duties of officers, teachers and employees of the University ;

(r) to suspend, punish and remove from service in the prescribed manner officers (other than the Vice-Chancellor), teachers and employees whom it is empowered to appoint ;

(s) to appoint members to the various Authorities in accordance with the provisions of this Ordinance ;

(t) to propose drafts, of Statutes for approval of the Chancellor ;

(u) to regulate, determine and administer all other matters concerning the University and to this and exercise all necessary powers not specifically mentioned in this Ordinance and the Statutes but not inconsistent with the provisions of this Ordinance ;

(v) to delegate any of its powers to an Authority or officer or a committee or sub-committee ;

(w) to advise the Chancellor on the grant of affiliation to a college and the withdrawal of such affiliation ; and

(x) to perform such other functions as have been assigned to it by the Statutes;

19. Academic Council.—(1) The Academic Council shall consist of :—

(i) the Vice-Chancellor, who shall be its Chairperson ;

(ii) the Deans of University colleges ;

(iii) the Principals of affiliated colleges ;

(iv) the Professors and Directors of Institutes ;

(v) five persons to be nominated by the Chancellor ;

(vi) three women to be nominated by the Syndicate ;

(vii) one representative of the National Academy of Higher Education ; and

(viii) the Dean Administration, who shall also be its Secretary.

(2) The members of the Academic Council, other than *ex-officio* members, shall hold office for three years; and if the office of any such member becomes vacant before the expiry of such vacancy shall be filled in accordance with subsection (1).

(3) The number of members to constitute the quorum for a meeting of the Academic Council shall be one-third of the total number of members, a fraction being counted as one.

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20. Powers and duties of the Academic Council.— (1) The Academic Council shall be the academic body of the University and shall, subject to the provisions of this Ordinance, the Statutes and the Regulations, have the powers to lay down proper standards of instruction, research and examinations and to regulate and promote the academic life of the University and affiliated colleges.

(2) In particular and without prejudice to the generality of the fore going provisions and subject to the provisions of this Ordinance, the Statutes and the Regulations, the Academic Council shall have the powers:—

(a) to advise the Syndicate on academic matters ;

(b) to regulate teaching, research and examinations ;

(c) to regulate the admission of students to the courses of studies and examinations of the University colleges ;

(d) to regulate the award of studentships, scholarships, medals and prizes ;

(e) to regulate the conduct and discipline of students of the University colleges ;

(f) to propose to the Syndicate schemes for the constitution and organization of Institutes and other academic bodies ;

(g) to make Regulations for consideration and approval of the Syndicate ;

(h) to propose for each academic year, on the recommendations of the Boards of Studies of University colleges, Regulations prescribing the courses of studies, the syllabi and the outlines of texts for all examinations;

Provided that, if the recommendations of a Board of Studies are not received by the prescribed date, the Academic Council may, subject to the approval of the Syndicate permit such Regulations to continue for the next following year ;

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(i) to recognize the examinations of other Universities or examining bodies as equivalent to the corresponding examinations of the University ;

(j) to appoint members to the Authorities in accordance with the provisions of this Ordinance ; and

(k) to perform such other functions as may be prescribed by Statutes.

21. Constitution, functions and powers of other Authority. The constitution, functions and powers of the Authorities for which no specific provision, or insufficient provision, has been made in this Ordinance shall be such as may be prescribed by Statutes.

22. Appointment of Committees by the Authorities. Any Authority may from time to time, constitute such standing, special or advisory committees as it may deem fit, and appoint to such committees persons who are not its members.

CHAPTER IV

STATUTES, REGULATIONS AND RULES

23. Statutes.— (1) Subject to the provisions of this Ordinance, Statutes may be made to provide for and regulate all or any of the following matters, namely:—

(a) the scales of pay and other terms and conditions of service of officers, teachers and employees of the University and the constitution of their pension, insurance, gratuity, provident fund and benevolent fund ;

(b) the conduct and discipline of the officers, teachers and employees of the University ;

(c) the constitution, powers and duties of the Authorities and conduct of election to such Authorities and related matters ;

(d) the affiliation and disaffiliation of colleges and related matters ;

(e) the admission of educational institutions to the privileges of the University and the withdrawal of such privileges ;

(f) the establishment of institutes and service divisions ;

(g) the powers and duties of officers, teachers and employees of the University ;

(h) the conditions for appointment of Professor Emeritus ;

(i) the conditions on which the University may enter into arrangement; with public bodies or other organizations for purposes of research and advisory services ;

(j) the general scheme of studies including the duration of courses and the number of subjects-and papers for examinations ;

(k) the award of Honorary Degrees ; and

(1) any other matters which are to be or may be prescribed or regulated by Statutes.

(2) The draft of the Statutes shall be proposed by the Syndicate to the Chancellor who may approve it with or without any modification or refer it back to the Syndicate for reconsideration, or reject it:

Provided that Statutes affecting the constitution or powers of any Authority shall not be proposed until such Authority has been given an opportunity of expressing its opinion in writing on the proposal;

Provided further that the Statutes shall not be effective until they have been approved by the Chancellor.

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(3) Notwithstanding anything contained in sub-section (2), the Statutes set out in the Schedule shall be deemed to be Statutes framed under this section and shall remain in force until they are amended or replaced by Statutes framed in accordance with this section.

24. Regulations.— (1) Subject to the provisions of this Ordinance and the Statutes, Regulations may be made in respect of all or any of the following matters, namely:—

(a) the courses of studies for degrees, diplomas and certificates of the University ;

(b) the manner and method of teaching conducted in the University and affiliated colleges;

(c) the admission of students to the University and conditions under which they are allowed to take courses and examinations of the University and become eligible for the award of degrees, diplomas and certificates ;

(d) the fees and other charges to be paid by students for admission to the courses of studies and the examinations of the University;

(e) the conduct of examinations ;

(f) the conduct and discipline of students of the University ;

(g) the residence of the students of affiliated university colleges including the levying of fees for residence in halls of residence and hostels and approval of hostels and lodgings for students ;

(h) conditions for acquiring research degrees, such as M. Phil and Ph. D.

(i) the institution of fellowships, scholarships, medals and prizes ;

(j) the institution of stipends and fee and half-fee studentships ;

(k) the academic costume;

(1) the use of the library ;

(m) the formation of Teaching Departments and Board of Studies ; and

(n) other matters which, under this Ordinance or Statutes, are to be or may be prescribed by Regulations.

(2) The Academic Council shall prepare and submit the Regulations to the Syndicate, which may approve them with or without modifications or refer them back to the Academic Council for reconsideration, or reject them.

(3) No regulation shall be valid unless it has been approved by the Syndicate.

25. Rules. The Authorities and the other bodies of the University may make rules, consistent with the Ordinance, the Statutes and Regulations, to regulate the conduct of their business and the time and place of their meetings and other matters related thereto:

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Provided that the Syndicate may direct the amendment or repeal of any rules made by any Authority;

Provided further that if any such Authority is dissatisfied with such direction given by the Syndicate, it may appeal to the Pro-Chancellor whose decision shall be final.

CHAPTER V

AFFILIATION OF COLLEGES TO THE UNIVERSITY

26. Affiliation of colleges.— (1) A college seeking affiliation to the University shall make an application satisfying the University that:—

(a) the college is under the management of the Government or a regularly constituted governing body ;

(b) the financial resources of the college are sufficient to ensure its continued maintenance and efficient working ;

(c) the strength and qualifications and the terms and conditions of service of the teaching and other staff of the college are satisfactory for the purpose of teaching of prescribed courses of studies and training in the college ;

(d) the college has proper rules governing the conduct and discipline of its employees;

(e) the building of the college is suitable and commodious for its requirements ;

(f) the college has, or can make, a provision in the .prescribed manner for the residence of students not residing with their parents or guardians, and their supervision and physical and general welfare ;

(g) the college has a provision for a library and adequate library services ;

(h) the college has properly equipped laboratories, museums and other places of practical work required for courses of studies taught in the college ;

(i) the college has, or can make, provision for the residence of its Principal and other members of the teaching staff in the college building or near such building or the residence of students ; and

(j) the affiliation of the college will not be injurious to the provisions made by another college or educational institution in the neighborhood for the interests of education or discipline of its students.

(2) The application shall further contain an understating by the college that, after the college is affiliated, any changes in the management of teaching staff shall forthwith be reported to the University, and that the teaching staff shall possesses such qualifications as are, or may be, prescribed.

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(3) The Syndicate shall, after considering the recommendations of the Affiliation Committee, dispose of the application for affiliation in accordance with such procedure as may be prescribed and may grant or refuse affiliation;

Provided that the affiliation shall not be refused, unless the college has been given an opportunity of making a representation against the proposed decision.

27. Extension of affiliation. — Where an affiliated college desires to add to the courses of studies in respect of which it is granted affiliation, the procedure prescribed for affiliation of colleges shall, as far as may be followed.

28. Inspection and reports.— (1) Every affiliated college shall furnish such reports, returns and other information as the University may require to enable it to Judge the efficiency of the college.

(2) The University may call upon any affiliated college to take, within a specified period, such action in respect of any matter mentioned in subsection (1) of section 26 as the University may deem fit.

29. Disaffiliation.— (1) Where any affiliated college has failed to fulfil any requirement of this Ordinance, or has failed to observe any of the conditions of affiliation or its affairs are conducted in a manner prejudicial to the interests of education, the Syndicate may, in the prescribed manner, and after considering any representation that the college may wish to make, modify or withdraw all or any of the privileges conferred on the college by the affiliation.

(2) Where any college has been refused affiliation or all or any of the privileges conferred on any college by the affiliation have been modified or withdrawn under subsection (1), it may, within the prescribed period, apply for review to the Syndicate against such refusal or, as the case may be, modification or withdrawal, and the application shall be disposed of in such manner as may be prescribed.

CHAPTER VI

UNIVERSITY FUND

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30. University Fund. —There shall be a fund of the University to be called the University Fund to which shall be credited all money received by it from fees, donations, trusts, bequests, endowment, contributions, grants and other sources.

31. Audit of accounts.— (1) The accounts of the University shall be maintained in such form and in such matter as may be prescribed.

(2) No expenditure shall be made from the University Fund unless a bill for payment has, in the prescribed manner, been audited by the Resident Auditor in conformity with the Statutes, Regulations and Rules.

(3) The Resident Auditor shall be a person taken from the Audit Department of the Federal Government or such terms and conditions as the Syndicate may determine.

(4) The accounts of the University shall be audited in the prescribed manner once a year by the auditor appointed by the Federal Government in this behalf.

(5) The annual statement of accounts of the University signed by the Dean Administration and the Resident Auditor shall be submitted to the Federal Government within six months of the closing of the financial year.

(6) The accounts of the University together with audit objections, if any, and the observations of the auditor appointed by the Federal Government and the Dean Administration shall, in the prescribed manner be presented to the Syndicate.

CHAPTER VII

INSTRUMENT OF INNOVATION

32. Research Center. —There shall be a Research Center to undertake inter-disciplinary study for planning, promotion and evaluating women's education.

33. Functions of Research Centre. — The functions of the Research Centre shall be :—

(a) to undertake research and policy studies on education and employment of women, including part-time education programmes ;

(b) to make studies to determine and define the role of women in national development ;

(c) to make evaluative studies on institutional and other programmes for women in the country ;

(d) to develop learning and teaching materials for its own needs and other institutions for women in the country ;

(e) to monitor, analyse, utilize and disseminate innovations in education for women ;

(f) to make exploratory studies on the needs of special categories, such as gifted and handicapped women population, and formulate appropriate plans for meeting the identified needs ; and

(g) to perform such other functions as may be prescribed.

34. Committee of Control. —The Research Centre shall be supervised by a Committee of Control consisting of the following members, namely:—

(i) the Vice-Chancellor, who shall also be its Chairman ;

(ii) the Secretary, Women's Division, or her nominee not below the rank of a Joint Secretary ;

(iii) The Vice-Chancellor, Allama Iqbal Open University, or his nominee not below the rank of Professor ;

(iv) a Dean of a University college to be nominated by the Syndicate ;

(v) the Chairman, University Grants Commission, or his nominee ;

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(vi) the Chairman, Pakistan Institute of Development Economics ;

(vii) five women representatives to be nominated by the Syndicate ;

(viii) the Dean Administration.

CHAPTER VIII

GENERAL PROVISIONS

35. Retirement from service. —An officer, Teacher or employee of the University shall retire from service:—

(i) on such date, after this or she has completed twenty-five years of service qualifying for pension or other retirement benefits as the competent authority may, in the public interest, direct ; or

(ii) where no direction is given under clause (i), on the completion of sixty years of his or her age.

Explanation. —In this section, 'competent authority' means the appointing authority or a person duly authorized by the appointing authority in that behalf, not being a person lower in rank than the officer, Teacher or employee concerned.

36. Opportunity to show cause. —Except as otherwise provided, no officer, Teacher or employee of the University holding a permanent post shall be reduced in Rank, or removed or compulsorily retired from service, unless he or she has been given a reasonable opportunity of showing cause against the action proposed to be taken.

37. Appeal to and review by the Syndicate.— (1) Where an order is passed punishing any officer, other than the Vice-Chancellor, or any teacher or employee of the University or altering or interpreting to his or her disadvantage the prescribed terms or conditions of service, he or she shall, where the order is passed by the Vice-Chancellor or any other officer or teacher of the University, have the right to appeal to the Syndicate against the order, and, where the order is made by the Syndicate, have the right to apply to the Syndicate for review of that order.

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(2) The appeal or application for review shall be submitted to the Vice Chancellor who shall lay it before the Syndicate with her views.

(3) No order on an appeal or application for review shall be passed without affording to the applicant, as the case may be an opportunity of being heard.

38. Pension, insurance, gratuity, provident fund and benevolent It fund. —(1) The University shall constitute for the benefit of its officers, teachers and employees, in such manner and subject to such conditions as may be prescribed, such pension, insurance, gratuity, provident fund and benevolent fund schemes as it may deem fit.

(2) Where any provident fund is constituted under this Ordinance, the provisions of the Provident Funds Act, 1925 (XIX of 1925), shall apply to such fund as if it were a Government Provident Fund and the University were the Government.

39. Commencement of term of office Authorities. —When a member of a newly constituted Authority is elected, appointed or nominated, his or her term of office, as fixed under this Ordinance, shall commence from such day as may be prescribed.

40. Filling of casual vacancies in Authorities. —Any casual vacancy among the elected, appointed or nominated members of any Authority shall be filled, as soon as conveniently may be, by the person or the body who elected, appointed or nominated the member whose place has become vacant and the person elected, appointed or nominated to the vacancy shall be a member of such Authority for the residue of the term for which the person whose place he or she fills would have been a member.

41. Filling of vacancies in authorities in certain circumstances. — Where a vacancy in the membership of an Authority cannot be filled because of:—

(a) the office the holder whereof was to be member of the Authority *ex-officio* having ceased to exist ;

(b) the organization, institution or other body, other than the University, having either ceased to exist or to function ; or

(c) the occurrence of other circumstances in which it has become impracticable to fill the vacancy ; the vacancy shall be filled in such manner as the Chancellor may direct.

42. Disputes about membership of Authorities. —(1) Notwithstanding anything contained in this Ordinance, a person nominated or elected to an Authority shall cease to be a member of such Authority as soon as he or she ceases to hold the position by virtue of which he or she was elected, appointed or nominated.

(2) If a question arises whether any person is entitled to be a member of any Authority, the matter shall be referred to a committee consisting of the Vice-Chancellor, the Judge of the Supreme Court and the nominee of the University Grants Commission who are members of the Syndicate and the decision of the said committee shall be final.

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43. Proceedings of Authorities not invalidated by vacancies. —No act, proceeding, resolution or decision of any Authority shall be invalid by reason only of the existence of any vacancy in, or any defect in the constitution of the Authority.

44. Tripartite mobility.— (1) Any officer, teacher or employee of the University shall, as the Chancellor may direct, serve in any post under the Federal Government or a Provincial Government or an educational or research institution in the public interest

Provided that the terms and conditions offered to him or her shall not be less favourable than those admissible to him or her in the University and that full benefit of his or her previous service shall be allowed to him or her.

(2) The Chancellor may, in consultation with the Selection Committee place the services of an employee of the Government or any other University or an educational or research institution at the disposal of the University in the public interest;

Provided that the terms and conditions offered to him or her shall not be less favourable than those enjoyed by him or her immediately before his or her services are placed at the disposal of the University and that full benefit of his or her previous service shall be allowed to him or her.

45. Bar of jurisdiction. —No Court shall have jurisdiction to entertain any proceedings, grant any injunction or make any order in relation to anything done or purporting to have been, or intended to be done under this Ordinance.

46. Indemnity. — No suit or legal proceeding shall lie against the Federal Government, the University or any Authority, officer or employee of the Federal Government or the University in respect of anything in good faith done or purporting to have been, or intended to be, done under this Ordinance.

47. Removal of difficulties. — If any difficulty arises, within twelve months of the coming into force of this Ordinance, as to the implementation of any of the provisions of this Ordinance, the Chancellor may, on the recommendation of the Vice-Chancellor, give appropriate directions to remove such difficulty.

48. Savings. —A college transferred to the University as a University college shall be deemed to have established by the University, under the Ordinance and:—

(a) everything done, action taken, obligations and liabilities incurred, persons appointed or authorized, fellowships or scholarship instituted of orders issued by the college shall be continued and, so far as may be deemed to have been done, taken, incurred, appointed or authorized, instituted or issued by the University established under this Ordinance ;

(b) all moneys and properties held by the college immediately before the transfer of the college do the University shall stand transferred to the University ;

(c) any rules made by the college, in so far as they are not inconsistent with the provisions of this Ordinance, shall continue in force until they are repealed, rescinded or modified under this Ordinance ; and

(d) the employees of the college shall have the option to become the employees of the University on such terms and conditions as it may determine provided that the rights and privileges of such employees shall not be less favourable than those admissible to them immediately before their becoming employees of the University.

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THE SCHEDULE

THE STATUTES

[*See* section 23 (3)]

1. University Colleges.— (1) The University shall include such Colleges as may be notified by the Federal Government from time to time.

(2) A University College may have one or 'more of the following institutes, namely :

(i) Institute of Home Economics ;

(ii) Institute of Food Technology ;

(iii) Institute of Textile Technology and Garmenting ;

(iv) Institute of Electronics ;

(v) Institute of Pharmacy ;

(vi) Institute of Industrial Arts and Architecture ;

(vii) Institute of Mass Communication ;

(viii) Institute of Education (producing teachers for Technical Institute for Women, Education for the disabled, Guidance and Counseling in Schools, Community Education and Development, particularly for Women in Rural Areas) ;

(ix) Institute of Health Studies (To include para-medical Education and Training, Development of Mental Health, Nursing Services, Health Education, Community Health, Child Care, Nutrition etc. ;

(x) Institute of Sports and Physical Education ;

(xi) Institute of Management (including Commercial Education, Public Administration, Business Administration and Industrial Management) ;

(xii) Institute of Physical and Life Sciences ;

(xiii) Institute of Social Sciences and Humanities ;

(xiv) Institute of Islamic Studies ;

(xv) Institute of Linguistics and Languages ; and

(xvi) any other institute as may be prescribed.

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2. College Council.— (1) There shall be a College Council for each University college which shall consist of :—

(i) the Dean of the College who shall also be its Chairman ;

(ii) the Directors of the Institutes of the college ;

(iii) the Professors of the Institute ;

(iv) one Associate Professor, one Assistant Professor and one Lecturer to be nominated by the Vice-Chancellor, in consultation with the Deans and

(v) five women from amongst the educationists or a profession to be nominated by the Syndicate ; and

(vi) Dean shall appoint one of her administrative officers as Secretary to the Council.

(2) The members, other than the *ex-officio* members, shall hold office for two years.

(3) The quorum for the meeting of the College Council shall be one-half of the total number of members, a fraction being counted as one.

(4) The Council shall, subject to the general control of the Academic Council and the Syndicate, have the powers to:—

(a) co-ordinate the programmes of studies of the Institutes in the college ;

(b) organize courses of study and examinations of the Institutes ;

(c) consider any other academic matter related to the Institutes and to report thereon to the Academic Council ; and

(d) perform such other functions as may be assigned to it.

3. Directors.—(1) There shall be a Director of every Institute to be appointed by the Vice-Chancellor on the recommendations of the Dean of the College, for such period as she may determine, from amongst the three most senior Professors in the Institute.

(2) The Director shall organize and supervise the work of the Institute and shall be responsible to the Dean of the College for the work of her Institute.

4. Board of Studies.— (1) There shall be a separate Board of Studies for each Institute which shall consist of :—

(i) the Director of the Institute ;

(ii) all Professors and Associate Professors in the Institute ;

(iii) one Assistant Professor and one lecturer to be nominated by the College Council ; and

(iv) three experts to be nominated by the Vice-Chancellor on the recommendations of the Dean of the College.

(2) The term of office of the members of the Board of Studies, other than *ex-officio* members, shall be three years.

(3) The quorum for the meetings of the Board of Studies shall be one half of the total number of members, a fraction being counted as one.

(4) The Director of the Institute shall be the Convener of the Board of Studies.

(5) The functions of the Board of Studies shall be :—

(a) to advise the Authorities on all academic matters connected with instruction, publication, research and examination in the subject or subjects concerned ;

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(b) to propose curricula and syllabi for all degree, diploma an certificate courses in the subject or subjects concerned ; and

(c) to perform such other functions as may be prescribed by Regulations.

5. Selection Committee.— (1) There shall be a Selection Committee of the University which shall consist of :—

(i) the Vice-Chancellor, who shall also be its Chairperson ;

(ii) the Dean of the relevant University college to be nominated by the Pro-Chancellor;

(iii) the Secretary, Women's Division, Islamabad ;

(iv) one nominee of the Chairman University Grants Commission ;

(v) a nominee of the Ministry of Education not below the rank of a Joint Secretary;

(vi) one Director of the relevant Institute to be nominated by the Vice Chancellor ; and

(vii) one member of the Syndicate and two other persons of eminence to be appointed by the Syndicate, provided that none of them is an employee of the University.

(2) The terms of office of members of the Selection Committee, other than *ex officio* members, shall be two years.

(3) The quorum for the meetings of the Selection Committee shall be six,

(4) No member who is a candidate for the post to which appointment is to be made by the Selection Committee shall take part in the proceedings of the Committee.

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(5) In selecting candidates for the posts of Professor and Associate Professor, the selection Committee shall co-op: or consult three experts in the subject concerned and, in selecting candidates for other teaching posts, two experts in the subject concerned, to be nominated by the Vice-Chancellor.

6. Functions of Selection Committee.— (1) The Selection Committee shall consider the applications received in response to an advertisement in case of direct appointment and shall recommend to the Syndicate the names of suitable candidates for appointment to teaching or other posts in Basic Scale of Pay 17 and above and may also recommend;'

(a) the grant of a higher initial pay in a suitable case for reasons to be recorded; or

(b) the appointment of an eminently qualified person to a Professorship in the University college on terms and conditions other than those prescribed.

(2) The Selection Committee shall consider all cases of promotions of officers of the University and recommend to the Syndicate the name of suitable candidates for such promotions.

(3) In the event of a difference of opinion between the Selection committee and the Syndicate, the matter shall be referred to the Pro chancellor whose decision shall be final.

7. Finance and Planning Committee.— (1) There shall be a Finance and Planning Committee of the University which shall consist of:—

(i) the Vice-Chancellor, who shall also be its Chairperson ;

(ii) one member of the Syndicate to be appointed by the Syndicate ;

(iii) one Dean of University college to be nominated by the Pro Chancellor ;

(iv) one member of the Academic Council to be nominated by the Academic Council;

(v) two nominees of the Chancellor ;

(vi) a nominee of the University Grants Commission ;

(vii) one representative of the Ministry of Finance not below the rank of a Joint Secretary.

(viii) the Dean Administration.

(2) The term of office of the members of the Finance and Planning Committee, other than ex officio members, shall be two years.

(3) The quorum for the meetings of the Finance and Planning Committee shall be five.

9. Functions of the Finance and Planning Committee. —The functions of the Finance and Planning Committee shall be:—

(a) to consider the annual statement of accounts and the annual and revised budget estimates and advise the Syndicate thereon

(b) to review periodically the financial position of the University including University Colleges ;

(c) to recommend development projects, development budget and other plans for the physical development of the University colleges and supervise their execution on behalf of the Syndicate ;

(d) to advise the Syndicate on all matters related to planning, development, finance, investments, and accounts of the University colleges ; and

(e) to perform such other functions as may be prescribed.

10. Discipline Committees.— (1) Each University college shall constitute a Discipline Committee comprising Director, two Senior Teachers and Incharge of Student's. Affairs of the University college.

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(2) The term of office of the members of the Discipline Committee, other than *ex-officio* members, shall be two years.

(3) The quorum for the meetings of the Discipline Committee shall be three.

(4) The functions of the Discipline Committee shall be: —

(a) to deal with all cases of indiscipline in the University college ;

(b) to propose Regulations relating to the conduct of students, maintenance of discipline and breach of discipline ;

(c) to suspend, expel or rusticate students on the basis of the inquiry conducted under the Rules and Regulations ; and

(d) to perform such other functions as may be prescribed.

(5) An appeal against the decision of the Discipline Committee shall lie with the Dean of the College whose decision shall be final.

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